

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[942 NE2d 225, 917 NYS2d 16]

In the Matter of the STATE OF NEW YORK, Appellant, v MUSTAFA
RASHID, Respondent.

Argued October 19, 2010; decided November 23, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 22, 2009. The Appellate Division affirmed an order of the Supreme Court, New York County (Daniel P. Conviser, J.; op 25 Misc 3d 318), which had (1) granted respondent's motion to dismiss a petition seeking sex offender civil management of respondent pursuant to Mental Hygiene Law article 10, and (2) dismissed the petition.

Matter of State of New York v Rashid, 68 AD3d 615, affirmed.

HEADNOTES

Appeal — Preservation of Issue for Review

1. In a proceeding seeking sex offender civil management of respondent pursuant to Mental Hygiene Law article 10, the issue of whether an individual must be a detained sex offender on the date when the Attorney General files a sex offender civil management petition against the individual in order to remain subject to civil management under article 10, which was raised by respondent in Supreme Court but not in the Appellate Division, was preserved for review by the Court of Appeals. The Court of Appeals will consider a question that has been raised in the tribunal of original jurisdiction even though it may not have been argued in the Appellate Division.

Crimes — Sex Offenders — Civil Commitment or Supervision

2. A Mental Hygiene Law article 10 proceeding seeking sex offender civil management of respondent, who was not subject to State custody or supervi-

sion at the time the Attorney General filed any of the three petitions against him, was not timely commenced. In order to pursue civil management under Mental Hygiene Law article 10, the Attorney General must file the required petition against an individual in a court of competent jurisdiction before that individual's release from State custody or supervision. Here, the first of the three petitions was filed the day after respondent's parole supervision ended. Although the State Division of Parole gave interagency notice to the Commissioner of Mental Health and the Attorney General pursuant to Mental Hygiene Law § 10.05 (b) before respondent was released from parole supervision, the filing of the interagency notice did not mark the point in time when the civil management proceeding began, and did not "lock in" or "freeze" respondent's status as "detained." Nor should it be inferred from Mental Hygiene Law § 10.06 (h) and (f) that the Attorney General was entitled to file the petition after respondent's release from State supervision. Mental Hygiene Law § 10.06 (h), which permits a court to order a respondent who was released subsequent to notice under Mental Hygiene Law § 10.05 (b) and "is therefore at liberty when the petition is filed" to be returned to confinement for purposes of the probable cause hearing, is meant to deal with the circumstance where a petition is filed against someone "at liberty" because not confined, but who is still subject to State supervision. Mental Hygiene Law § 10.06 (f), which authorizes the Attorney General to file a "securing petition" to protect the public safety at any time after receipt of section 10.05 (b) notice in order to prevent a respondent's release "if it appears that the respondent may be released prior to the time the case review team makes a determination," may be used to stop an individual's release from custody or parole supervision, but is not directed at an individual whose parole has expired. Moreover, requiring the Attorney General to file a sex offender civil management petition before the respondent's release from State custody or supervision is in keeping with the Legislature's intent to create a special set of procedures in article 10 to deal with the civil management of mentally ill sex offenders who are completing their prison terms.

Crimes — Sex Offenders — Civil Commitment or Supervision

3. Penal Law § 70.30 is not relevant to the question of which sentences make someone eligible for sex offender civil management under Mental Hygiene Law article 10. Section 70.30 (1) (b) of the Penal Law provides that when two or more indeterminate sentences are consecutive, the minimum and maximum sentences are added to form aggregate minimum and maximum wholes, subject to certain limitations. Although the primary function of section 70.30 was to allow for the ready calculation of parole eligibility, consideration of that statute is permissible when determining the Sex Offender Registration Act (SORA) eligibility of a prisoner serving multiple sentences, as there is an absence of any statutory guidance within SORA itself as to the eligibility of persons serving multiple sentences. By contrast, Mental Hygiene Law article 10 contains its own provision for determining which offenders subject to multiple sentences will be eligible for article 10 civil commitment. It is a comprehensive and complex scheme that defines which offenses "count" for purposes of eligibility for civil management: sex offenses, sexually-motivated designated felonies committed prior to article 10's effective date, and those non-sex crimes that are related offenses. Superimposing Penal Law § 70.30 on article 10 for purposes of making eligibility determinations would distort this statutory scheme.

Crimes — Sex Offenders — Civil Commitment or Supervision

4. A Mental Hygiene Law article 10 proceeding seeking sex offender civil management of respondent was properly dismissed, as respondent did not

stand convicted of a Sex Offender Management and Treatment Act-qualifying offense, and so was not a detained sex offender. Shortly before respondent was released from a local correctional facility where he was serving a determinate sentence for a misdemeanor conviction, and shortly before the expiration of his parole supervision upon the expiration of the maximum term of his prior consecutive indeterminate sentences related to his previous robbery convictions, the State Division of Parole (Division) notified the Commissioner of Mental Health and the Attorney General pursuant to Mental Hygiene Law § 10.05 (b) that respondent was an individual who might be a detained sex offender. At the time of the notification, however, respondent was not under the Division's supervision on account of a conviction for a sex offense, or a sexually-motivated designated felony committed prior to article 10's effective date, or offenses which were prosecuted along with a sex offense or were part of the same criminal transaction as a sex offense, and he was not an inmate serving his current term of incarceration for robbery in the Department of Correctional Services' custody, as his parole had not been revoked.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 575–577, 618; AM JUR 2d, Mentally Impaired Persons §§ 125, 127, 128.
CARMODY-WAIT 2d, Sentencing Procedures § 203:9.
McKINNEY's, Mental Hygiene Law art 10; § 10.05 (b); Penal Law § 70.30.
NY JUR 2d, Appellate Review §§ 563, 595; NY JUR 2d, Criminal Law: Procedure § 3126; NY JUR 2d, Infants and Other Persons Under Legal Disability §§ 56, 89, 94.
SIEGEL, NY PRAC §§ 528, 530, 543.

ANNOTATION REFERENCE

See ALR Index under Appellate Review; Incompetent or Insane Persons.

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POINTS OF COUNSEL

Andrew M. Cuomo, Attorney General, New York City (Laura R. Johnson, Barbara D. Underwood and Benjamin N. Gutman of counsel), for appellant. Mustafa Rashid is subject to Mental Hygiene Law article 10 under both the single-term rule and the related-offenses definition. (*People v Buss*, 11 NY3d 553; *People v Delk*, 59 AD3d 733, 12 NY3d 783; *People v Merejildo*, 45 AD3d 429; *People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*, 15 NY3d 126.)

Mental Hygiene Legal Service, First Judicial Department, New York City (Sadie Zea Ishee, Marvin Bernstein, Diane Goldstein Temkin and Karen Gomes Andresian of counsel), for respondent. I. In 2008, Mustafa Rashid was on parole for robbery, not for a sex offense or a related offense. (*People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*, 15 NY3d 126; *People v Maney*, 37 NY2d 229; *People v Zephrin*, 14 NY3d 296; *People v Francois*, 14 NY3d 732; *People v Buss*, 11 NY3d 553; *Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149; *Kansas v Hendricks*, 521 US 346; *Foucha v Louisiana*, 504 US 71; *People v Knox*, 12 NY3d 60; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358.) II. Mustafa Rashid was not subject to any form of State custody or supervision when these proceedings commenced, and therefore cannot be deemed a “detained sex offender.” (*People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*, 15 NY3d 126; *Telaro v Telaro*, 25 NY2d 433; *Quain v Buzzetta Constr. Corp.*, 69 NY2d 376; *People ex rel. David NN. v Hogan*, 53 AD3d 841; *Matter of Gershel v Porr*, 89 NY2d 327; *Mullane v Central Hanover Bank & Trust Co.*, 339 US 306; *Vitek v Jones*, 445 US 480; *Matter of State of New York v Millard*, 19 Misc 3d 283.)

OPINION OF THE COURT

READ, J.

In this appeal, we are called upon to resolve issues of interpretation of article 10 of the Mental Hygiene Law, the key component of the recently enacted Sex Offender Management and Treatment Act (SOMTA) (L 2007, ch 7). We hold that in order to pursue civil management under article 10, the Attorney General must file the required petition against an individual in a court of competent jurisdiction before that individual’s release from State custody or supervision. We also hold that Penal Law § 70.30 is not relevant to the question of which sentences make someone eligible for civil management under article 10.

I

On January 6, 1992, respondent Mustafa Rashid pleaded guilty to two counts of first-degree robbery (Penal Law § 160.15), and single counts of first-degree burglary (Penal Law § 140.30), first-degree rape (Penal Law § 130.35), and first-degree sodomy (former Penal Law § 130.50). This plea satisfied charges arising from two separate criminal incidents—the robbery of a gas station attendant and a home invasion—for which

Rashid was arrested and indicted separately in 1988. He was sentenced to an indeterminate term of imprisonment of 8 to 16 years, running from his arrest.

Rashid was released to parole supervision in July 1999, after serving 11 years and eight months of his sentence. But on May 19, 2000, he was arrested and indicted separately for three robberies. On December 12, 2001, he pleaded guilty to two counts of third-degree robbery (Penal Law § 160.05), for each of which he was sentenced to an indeterminate term of 2 to 4 years, and one count of criminal possession of a weapon in the fourth degree (Penal Law § 265.01), for which he was sentenced to prison for one year. The indictment satisfied by Rashid's plea to the weapon-possession count also accused him of sexual abuse. These sentences ran concurrently to each other but consecutively to the undischarged portion of the indeterminate sentence imposed on Rashid in 1992 (*see* Penal Law § 70.25 [2-a]; *see also* *People ex rel. Gill v Greene*, 12 NY3d 1, 6 [2009]). He was subsequently released to parole supervision on January 6, 2006.

Rashid was returned to prison for violating the conditions of his parole in July 2006. He was released to parole supervision again in April 2007, but went back to prison after violating the conditions of his parole in August of that year. Rashid was next released to parole supervision in early 2008. He was arrested for the misdemeanor crimes of petit larceny (Penal Law § 155.25) and criminal possession of stolen property in the fifth degree (Penal Law § 165.40) on May 6, 2008. Upon pleading guilty to petit larceny, Rashid received a definite sentence, which he served at Rikers Island, a local correctional facility. Rashid remained subject to the supervision of the State Division of Parole (the Division) throughout his time at Rikers Island, but his parole was not revoked, apparently because his jail sentence ended days before his parole expiration date: Rashid was freed from Rikers Island on October 31, 2008, and his parole supervision ended on November 4, 2008, when he reached the maximum term (20 years) of his consecutive indeterminate sentences.

On November 5, 2008, the Attorney General filed a petition in Supreme Court seeking sex offender civil management of Rashid pursuant to article 10 of the Mental Hygiene Law. SOMTA and article 10 are designed to reduce the risks posed by and to address the treatment needs of those sex offenders who suffer from mental abnormalities that predispose them to commit repeated sex crimes (*see* Mental Hygiene Law §§ 10.01, 10.03 [i]). To these ends, whenever an individual “who may be a

detained sex offender” is “nearing an anticipated release”¹ into the community, an “agency with jurisdiction”² other than the Division must notify the Attorney General and the Commissioner of Mental Health (the Commissioner), while the Division may elect to do so (Mental Hygiene Law § 10.05 [b]). As relevant to this appeal, a “detained sex offender” is

“a person who is in the care, custody, control, or supervision of an agency with jurisdiction, with respect to a sex offense or designated felony, in that the person is either:

“(1) A person who stands convicted of a sex offense as defined in subdivision (p) of this section [10.03], and is currently serving a sentence for, or subject to supervision by the division of parole, whether on parole or on post-release supervision, for such offense or for a related offense; . . .

“(4) A person who stands convicted of a designated felony that was sexually motivated and committed prior to the effective date of this article [10].” (Mental Hygiene Law § 10.03 [g] [1], [4].)

Again as relevant to this appeal, a “sex offense” includes felonies defined in article 130 of the Penal Law and any felony attempt or conspiracy to commit those crimes, as well as “a designated felony . . . if sexually motivated and committed prior to” article 10’s effective date (Mental Hygiene Law § 10.03 [p]). The list of “designated felon[ies]” encompasses a broad range of felony crimes, including assault, gang assault, stalking, manslaughter, murder, kidnaping, burglary, arson, robbery, various prostitution and obscenity offenses, crimes involving sexual performance by a child, and any felony attempt or conspiracy to commit the enumerated crimes. “Related offenses” include “any offenses that are prosecuted as part of the same criminal action or proceeding, or which are part of the same criminal

1. “Release” and “released” mean “release, conditional release or discharge from confinement, from supervision by the division of parole, or from an order of observation, commitment, recommitment or retention” (Mental Hygiene Law § 10.03 [m]).

2. An “[a]gency with jurisdiction” over a person means “that agency which, during the period in question, would be the agency responsible for supervising or releasing such person, and can include the department of correctional services, the office of mental health, the office for people with developmental disabilities, and the division of parole” (Mental Hygiene Law § 10.03 [a]).

transaction, or which are the bases of the orders of commitment received by the department of correctional services in connection with an inmate's current term of incarceration" (Mental Hygiene Law § 10.03 [l]).

Upon receipt of section 10.05 (b) notice, the Commissioner is authorized to "designate multidisciplinary staff" at the Office of Mental Health (OMH) to conduct "a preliminary review" of the need for "the person who is the subject of the notice" to be evaluated by a three-member "case review team," at least two of whose members must be "professionals in the field of mental health or the field of developmental disabilities, as appropriate, with experience in the treatment, diagnosis, risk assessment or management of sex offenders" (Mental Hygiene Law § 10.05 [a], [d]). If the staff decides after preliminary review to make a referral to a case review team, notice must be given to the individual whose case is to be referred (whom the statute identifies as "the respondent" at this point)³ (Mental Hygiene Law § 10.05 [e]).

The case review team considers a variety of records, may arrange for a psychiatric examination, and ultimately determines whether the respondent is a "sex offender requiring civil management"—i.e., is both "detained" within the meaning of section 10.03 (g) and suffers from a "mental abnormality" as defined by section 10.03 (i)⁴ (*see* Mental Hygiene Law § 10.03 [q]). If the case review team determines that the respondent is not a sex offender requiring civil management, it notifies the respondent and the Attorney General, who then "shall not file a sex offender civil management petition" (Mental Hygiene Law § 10.05 [f]). If, however, the case review team reaches the contrary conclusion, written notice is given to the respondent and the Attorney General, "accompanied by a written report from a psychiatric examiner that includes a finding as to whether the respondent has a mental abnormality" (Mental Hygiene Law § 10.05 [g]).

3. The statute defines "[r]espondent" as "a person referred to a case review team for evaluation, a person as to whom a sex offender civil management petition has been recommended by a case review team and not yet filed, or filed by the attorney general and not dismissed, or sustained by procedures under this article" (Mental Hygiene Law § 10.03 [n]).

4. "Mental abnormality" is defined as "a congenital or acquired condition, disease or disorder that affects the emotional, cognitive, or volitional capacity of a person in a manner that predisposes him or her to the commission of conduct constituting a sex offense and that results in that person having serious difficulty in controlling such conduct" (Mental Hygiene Law § 10.03 [i]).

After receipt of section 10.05 (g) notice, the Attorney General may elect to file an article 10 petition against the respondent in the Supreme Court or County Court of the county where the respondent is located (Mental Hygiene Law § 10.06 [a]). Within 30 days after a petition is filed, Supreme Court or County Court must “conduct a hearing without a jury to determine whether there is probable cause to believe that the respondent is a sex offender requiring civil management” (Mental Hygiene Law § 10.06 [g]). If probable cause is established, the respondent may be confined, pending completion of a jury trial to be conducted within 60 days thereafter (Mental Hygiene Law § 10.06 [k]; § 10.07 [a]). The jury (or judge, if jury trial is waived) must then determine “by clear and convincing evidence whether the respondent is a detained sex offender who suffers from a mental abnormality” (Mental Hygiene Law § 10.07 [d]). The Attorney General bears the burden of proof, and any jury determination must be by unanimous verdict (*id.*).

If the jury (or judge, as the case may be) concludes that the respondent is a “detained sex offender who suffers from a mental abnormality,” then the court must “consider whether the respondent is a dangerous sex offender requiring confinement *or* a sex offender requiring strict and intensive supervision” (Mental Hygiene Law § 10.07 [f] [emphasis added]). If the court “finds by clear and convincing evidence” that the respondent is afflicted with

“a mental abnormality involving such a strong predisposition to commit sex offenses, and such an inability to control behavior, that [he] is likely to be a danger to others and to commit sex offenses if not confined to a secure treatment facility, then the court shall find the respondent to be a dangerous sex offender requiring confinement,” who “shall be committed to a secure treatment facility for care, treatment, and control until such time as he or she no longer requires confinement” (*id.*).

Alternatively, if the judge “does not find that the respondent is a dangerous sex offender requiring confinement,” the court “shall make a finding of disposition that the respondent is a sex offender requiring strict and intensive supervision, and the respondent shall be subject to a regimen of strict and intensive

supervision and treatment” in accordance with article 10’s provisions (*id.*).⁵

Here, the Division sent section 10.05 (b) notice to the Commissioner and the Attorney General on September 29, 2008, stating that Rashid had been “identified . . . as a person who is a detained sex offender . . . warrant[ing] notice to [OMH] of [impending] release”; and that he was under the Division’s supervision until his sentence expired on November 4, 2008. On the attached case review worksheet, the Division specified that first-degree sodomy was the “qualifying sex offense or sexually motivated designated felony offense,” and that Rashid exhibited a “pattern of sex offense.”

On October 6, 2008, OMH gave section 10.05 (e) notice to Rashid; and on October 17, 2008, OMH issued section 10.05 (g) notice to Rashid and the Attorney General. The section 10.05 (g) notice set out two findings made by the case review team: that Rashid was “a sex offender requiring civil management as defined by SOMTA”; and—in contrast to the SOMTA-qualifying offense flagged in the referral from OMH (i.e., first-degree sodomy)—that Rashid’s “sex offense was a designated felony that was sexually motivated.”⁶ As noted previously, Rashid was released from jail on October 31, 2008, his parole expired on November 4, 2008, and the Attorney General filed a sex offender civil management petition against him the next day, November 5, 2008.

Supreme Court directed that Rashid be confined pending the probable-cause hearing. Upon Rashid’s motion, the court dismissed the first petition for improper service, but denied

5. The third annual report made by the Commissioner to the Governor and the Legislature pursuant to Mental Hygiene Law § 10.10 (i) (*see* http://www.omh.ny.gov/omhweb/statistics/SOMTA_Report.pdf) states that, during the 12-month reporting period from November 1, 2008 through October 31, 2009, OMH handled 1,798 referrals (involving 1,686 unique offenders) from agencies with jurisdiction. Of these 1,686 offenders, 194 (11.5%) were referred for evaluation by a case review team, of which 63 (3.7%) were recommended for civil management. Further, from April 13, 2007, when SOMTA took effect, to October 31, 2009, there have been 185 decisions regarding civil management. Mental abnormality was found in 171 (92.4%) of the trials, 99 of which resulted in a finding that the respondent is a dangerous sex offender requiring confinement, and 72 of which resulted in orders mandating strict and intensive supervision and treatment.

6. Section 10.05 (g) of the Mental Hygiene Law states that where the notice “indicates that a respondent stands convicted of or was charged with a designated felony, it shall also include the case review team’s finding as to whether the act was sexually motivated.”

Rashid's application for immediate release from custody in light of the Attorney General's representation that a second petition would be filed the same day.

At the probable-cause hearing held on November 19, 2008, the Attorney General argued that Rashid was a detained sex offender because he was subject to State custody or supervision for his 1992 convictions for rape and sodomy by operation of section 70.30 of the Penal Law. The Attorney General also suggested, in the alternative, that Rashid's SOMTA-qualifying offense was a sexually motivated designated felony because "even though [Rashid] only pled to a misdemeanor [i.e., his plea in 2001 to weapon possession] the misdemeanor was . . . on the indictment with the sexually motivated robbery as well." When the judge asked the Attorney General "When did you begin the Article 10?" he responded, "on October 6, 2008, we served notice to the respondent pursuant to 10.05 of the Mental Hygiene Law." The Attorney General immediately added that he was referring to section 10.05 (e).

The judge concluded that Rashid was a detained sex offender. He explained that

"[i]n doing so the Court relies on Article 70.00 of the Penal Law, which relates to consecutive sentences . . .

"Under Article 70.00 [the 1992 and 2001] sentences combined so that the minimum and maximum instead of being 8 to 16 is 10 to 20. And that *if this proceeding was commenced prior to the expiration of the 20 years during which time [Rashid] was still incarcerated*, accordingly under the definition of a detained sex offender, [he] is a detained sex offender" (emphasis added).

Additionally, the judge concluded that Rashid suffered from a mental abnormality, relying on the testimony of the State's expert, a licensed psychologist and psychiatric examiner for OMH.

Accordingly, the court determined that there was probable cause to believe that Rashid was a sex offender requiring civil management. Because of Rashid's "long history of criminality going back to his youth," the court further determined that there was probable cause to believe that Rashid was dangerous enough to require confinement pending trial, and that lesser conditions of confinement were insufficient to protect the public

since his behavior while incarcerated was “exemplary,” but once released he reverted to substance abuse and violent crime (see *Mental Hygiene Legal Serv. v Spitzer*, 2007 WL 4115936, 2007 US Dist LEXIS 85163 [SD NY 2007], *affd sub nom. Mental Hygiene Legal Servs. v Paterson*, 2009 WL 579445, 2009 US App LEXIS 4492 [2d Cir 2009] [imposing preliminary injunction requiring specific, individualized judicial finding with respect to portion of Mental Hygiene Law § 10.06 (k) addressing pretrial detention]). The judge ordered Rashid to be committed to a secure treatment facility pending completion of trial, which he scheduled. The case was then adjourned to another judge to handle further proceedings.

Rashid next moved to dismiss the petition on several grounds, including that his conviction for a weapon-possession misdemeanor was not a sexually motivated designated felony. On June 5, 2009, the judge granted Rashid’s motion because, as he subsequently explained, Rashid’s “conviction for criminal possession of a weapon in the fourth degree (a class A misdemeanor) does not qualify as a ‘designated felony’ under the statute” and “[t]he only allegations in the second petition which asserted that [Rashid] was a detained sex offender arose from this misdemeanor conviction” (see 25 Misc 3d 318, 326 [Sup Ct, NY County 2009]).⁷ The court granted the State leave to replead and file another petition, however.

The Attorney General then filed a third petition—the subject of this case—on June 10, 2009. This petition relied upon *People v Buss* (11 NY3d 553 [2008]) (handed down after the probable-cause hearing) and Penal Law § 70.30 to argue that Rashid was a “detained sex offender” because he was serving an aggregate maximum sentence that encompassed the 1992 convictions for rape and sodomy. Further, the Attorney General also asserted in the third petition that the relevant date to determine whether Rashid was a detained sex offender was September 29, 2008,

7. The probable-cause court was likewise not won over by the Attorney General’s argument that Rashid was in State custody or under State supervision for a sexually motivated designated felony stemming from his 2001 convictions. In the motion court judge’s view, the effect of his dismissal of the second petition and the State’s subsequent filing of a third petition was therefore simply “to conform the pleadings in the petition to the allegations which both of the parties . . . had been assuming would constitute the basis for [Rashid’s] trial” (25 Misc 3d at 327 n 9).

the date on which the Division gave section 10.05 (b) notice to the Commissioner and the Attorney General.⁸

Rashid moved to dismiss this petition on the ground that he was not a detained sex offender for two reasons: first, that at no relevant time was he serving a sentence or subject to parole or postrelease supervision for a “sex offense” or a “related offense,” as those terms are defined in article 10; second, that article 10 requires a respondent to be a detained sex offender when the petition is filed. Supreme Court did not rule on the latter issue. Instead, for purposes of Rashid’s motion to dismiss, the court assumed that the State’s position was correct (25 Misc 3d at 330).

Turning to the first issue, the judge concluded that *Buss* did not govern which sentences, in addition to sex offenses, make an individual eligible for civil management because the Legislature “obviously inserted” the definition for “related offenses” into the statute for this very purpose (*id.* at 332). By contrast, SORA “provide[d] no clear answer regarding the sentence calculation question . . . addressed . . . in *Buss*,” making application of the general rule in Penal Law § 70.30 reasonable (*id.* at 331).

Applying article 10’s definitions for a “detained sex offender” and “related offenses” to the facts of this case, the judge observed that at the time Rashid received the section 10.05 (b) notice, he was in jail for petit larceny; he was not an inmate incarcerated under orders of commitment received by the Department of Correctional Services (DOCS). And while Rashid was still subject to parole supervision for his 2001 convictions, those convictions were not for sex offenses, or for crimes that were part of the same criminal transaction as a sex offense. The judge concluded that because Rashid was therefore not “currently serving a sentence for, or subject to supervision by the division of parole . . . for [a sex] offense or for a related offense” (Mental Hygiene Law § 10.03 [g] [1]), he was not a detained sex offender at the time alleged by the Attorney General to be relevant—i.e., September 29, 2008. Accordingly, Supreme Court granted Rashid’s motion and dismissed the petition, declaring that Rashid was not a detained sex offender at

8. This was a shift of position. As already noted, the Attorney General represented at the probable-cause hearing that the relevant date was October 6, 2008, when OMH gave section 10.05 (e) notice to Rashid. The probable-cause court did not discuss the timeliness issue, but implicitly decided that the Attorney General had commenced a timely proceeding.

the time of either the interagency notice under section 10.05 (b) or the case review team notice under section 10.05 (e).

The Appellate Division affirmed. The court concluded that the different consequences of SORA registration and article 10 involuntary civil commitment, as well as the definition in article 10 of the “related offenses” to be considered in determining eligibility for civil commitment, “render[ed] Penal Law § 70.30 inapplicable for the purpose of merging the sentence for the rape into [Rashid’s] subsequent sentence for the nonsexual offense” (68 AD3d 615, 616 [1st Dept 2009]). After granting the State permission to appeal (14 NY3d 711 [2010]), we denied Rashid’s motion to vacate the stay of his release originally put in place by Supreme Court and continued by the Appellate Division, and granted him a calendar preference (15 NY3d 801 [2010]). We now affirm.

II

[1] We first consider whether an individual must be a detained sex offender on the date when the Attorney General files a sex offender civil management petition against him in order to remain subject to civil management under article 10. As a threshold matter, this issue is preserved for our review. Although not raised in the Appellate Division, Rashid contested timeliness on this basis in Supreme Court (*see Matter of Seitelman v Lavine*, 36 NY2d 165, 170 n 2 [1975] [“This court will consider a question that has been raised in the tribunal of original jurisdiction even though it may not have been argued in the Appellate Division”]; *Telaro v Telaro*, 25 NY2d 433, 437-438 [1969] [expressly rejecting argument that party “abandoned or waived” an argument by failing to raise it at the Appellate Division]).

Here, Rashid was not subject to State custody or supervision at the time the Attorney General filed any of the three petitions. But a petition must allege “that the respondent is a sex offender requiring civil management” (Mental Hygiene Law § 10.06 [a] [emphasis added]), which is defined as “a detained sex offender who suffers from a mental abnormality” (Mental Hygiene Law § 10.03 [q]). Moreover, as relevant to this appeal, a “detained sex offender” must be “*in the care, custody, control, or supervision of an agency with jurisdiction*” and, when on parole, “*currently . . . subject to [the Division’s] supervision . . . for [a sex] offense or for a related offense*” (Mental Hygiene Law § 10.03 [g] [1] [emphasis added]; *see also People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*,

15 NY3d 126, 135 [2010] [remarking that Legislature could have, but did not, extend article 10's coverage to sex offenders living unsupervised in the community]).

The Attorney General argues that the State may still pursue civil management in this case because Rashid, although not subject to parole supervision when the petitions were filed in Supreme Court, *was* a detained sex offender on September 29, 2008 when the Division gave interagency notice pursuant to section 10.05 (b). According to the Attorney General, the interagency notice marks the point in time “when this *proceeding* began” (emphasis added), even though Rashid was unaware of it. The State therefore asserts that filing the interagency notice somehow “locked in” or “froze” Rashid's status as “detained”—apparently for all time. As a result, it is unimportant that he was, in fact, *not* detained within the meaning of article 10 when the petition was filed.⁹

This novel interpretation finds no support in the statutory text. In the first place, the interagency notice required by section 10.05 (b) refers to “a person who *may be* a detained sex offender” (emphasis added), not someone who *is* a detained sex offender. All of the notices called for by section 10.05, titled “Notice and case review,” simply denote milestones in an internal administrative review procedure that may—but usually does not (*see* n 5, *supra*)—result in a sex offender civil management petition. Thus, there is no actual “proceeding” against a respondent until the Attorney General elects to file a petition (*see* CPLR 304 [a] [“(a) special proceeding is commenced by filing a petition”]). In *Joseph II.*, we described the issue as “whether [respondents] were detained sex offenders *when the State began proceedings against them under article 10*” (15 NY3d at 132 [emphasis added]), clearly referring to “proceedings” commenced with the filing of a petition. If the Legislature had intended to enact something as counterintuitive as the

9. The dissent principally argues that a petition may be filed against someone who is not in State custody or subject to State supervision because “the Legislature expressed an unmistakable intent throughout article 10 not to impose rigid deadlines for taking action” (dissenting op at 27). While it is true that the failure to meet article 10's time lines does not defeat the subsequent filing of a petition, it does not follow that the Attorney General may seek the civil commitment of an individual over whom the criminal justice system no longer exerts authority. It also does not follow that, having timely commenced a proceeding by the filing of a petition, the subsequent trial has to be completed before that individual's underlying sentence expires (*see* dissenting op at 30).

State claims to have been the case—i.e., that an individual forever remains a detained sex offender subject to civil management under article 10 once “an agency with jurisdiction” notifies the Commissioner and the Attorney General that this individual “may be” a detained sex offender—it surely would have made its wishes explicit.

Lacking any conspicuous textual support for its position, the State asks us to make inferences from section 10.06 (h) and (f) of article 10. Section 10.06 (h) provides that

“[i]f the respondent was released subsequent to notice under subdivision (b) of section 10.05 of this article, and is therefore at liberty when the petition is filed, the court shall order the respondent’s return to confinement, observation, commitment, recommitment or retention, as applicable, for purposes of the probable cause hearing.”

According to the State, this provision “underscores that the Legislature contemplated an offender’s release prior to the filing of the petition”; and “[t]hus, it is unmistakably permissible to file a petition against a convicted sex offender who is at liberty.”

The State’s interpretation of section 10.06 (h) assumes, however, that “at liberty” means free from *both* State custody *and* State supervision. The statuses to which a respondent may be “return[ed]” from “liberty” under this provision are, however, all custodial in nature and typically followed by a period of State supervision. This suggests that section 10.06 (h) is meant to deal with the circumstance where a petition is filed against someone “at liberty” because not confined, but who is still subject to State supervision;¹⁰ not a situation—such as we have here—where State supervision ended before the petition was filed. Section 10.06 (h) is not rendered “superfluous,” as the dissent contends, just because it does not cover every conceivable “release” subsequent to section 10.05 (b) notice (*see* dissenting op at 29).

10. This seems to have been the fact pattern in *People ex rel. David NN. v Hogan* (53 AD3d 841 [3d Dept 2008]) and *Matter of State of New York v Millard* (19 Misc 3d 283 [Sup Ct, Broome County 2008]), the two lower court cases relied on by the State and cited by the dissent to argue that section 10.06 (h) “expressly contemplates that a petition can be filed after a respondent has completed a sentence” (dissenting op at 29). In both *David NN.* and *Millard*, the sex offenders, recently released from OMH custody, were subject to parole supervision when the Attorney General filed the article 10 petitions against them.

Section 10.06 (f) authorizes the Attorney General to file a “securing petition” to protect the public safety at any time after receipt of section 10.05 (b) notice in order to prevent a respondent’s release “if it appears that the respondent may be released prior to the time the case review team makes a determination.” If a securing petition is filed, “there shall be no probable cause hearing until such time as the case review team may find that the respondent is a sex offender requiring civil management”; and “[i]f the case review team determines that the respondent is not a sex offender requiring civil management, the attorney general shall so advise the court and the securing petition shall be dismissed.” (*Id.*)

The State points out that a securing petition is discretionary; that “[t]he statute does not say that the failure to file a securing petition will terminate the article 10 process”; and that an individual held on a securing petition does not fall within the definition of a “detained sex offender” under Mental Hygiene Law § 10.03 (g). Again, the State simply assumes that this provision is directed at an individual whose parole has expired. The Legislature was far more likely to have been worried about someone scheduled to be released from State custody into the community who might threaten the public safety notwithstanding being subject to State supervision. And although there is nothing in the plain language of this provision to prevent the Attorney General from filing a securing petition to stop an individual’s release from parole supervision, it does not follow that the Attorney General may subsequently file a sex offender civil management petition against an individual subject to a securing petition once that individual’s parole expires.¹¹ As the State correctly noted, the definition of “detained sex offender” does not cover a person in custody pursuant to a securing petition filed pursuant to section 10.06 (f).

[2] In sum, we read article 10 to require the Attorney General to file a sex offender civil management petition while a

11. The Mental Hygiene Legal Service contested the facial constitutionality of this provision in federal court on due process grounds. The District Court Judge, although acknowledging “serious and legitimate concerns about the potential operation of [section] 10.06 (f),” ultimately “decline[d] to issue a preliminary injunction against a provision that [might] rarely if ever be used, or if used, may be capable of being interpreted or applied [by New York courts] in a manner that does not offend the due process clause”; i.e., “[d]epending upon how New York courts interpret their own statute, there may be no need to reach any federal constitutional issue” (*Mental Hygiene Legal Serv.*, 2007 WL 4115936 at *11, 2007 US Dist LEXIS 85163 at *36-38).

respondent is in State custody or, if the respondent is not confined, still subject to State supervision. This interpretation is in keeping with the Legislature's intent to create a special set of procedures in article 10 to deal with the civil management of mentally ill sex offenders who are completing their prison terms. Article 10 was not designed to cover such individuals once they pass beyond the purview of the criminal justice system. At that point, the involuntary commitment provisions in article 9 of the Mental Hygiene Law might come into play in an appropriate case (*see* Mental Hygiene Law § 9.27 [a]).

III

In *Buss*, the defendant pleaded guilty in 1983 to one count of first-degree sexual abuse and one count of second-degree assault, and was sentenced to concurrent indeterminate sentences of 2 to 6 years' imprisonment. While on parole in 1987, he attacked and stabbed an acquaintance. This time, Buss pleaded guilty to attempted murder in the second degree in full satisfaction of an indictment that included first-degree rape and first-degree sodomy counts. He was sentenced as a second violent felony offender to 10 to 20 years' imprisonment.

When Buss was released from prison in 2002, the Board of Examiners of Sex Offenders determined that he was required to register under SORA, citing the 1983 conviction for sexual abuse, and recommended that he be designated a level three sex offender. Buss objected, arguing that SORA did not apply to him because his sentence of sexual abuse "was due to expire" before SORA took effect in 1996 (11 NY3d at 556). The People countered that, by operation of Penal Law § 70.30 (1) (b), Buss was still serving a sentence for his 1983 conviction when SORA took effect. Section 70.30 (1) (b) provides that when two or more indeterminate sentences are consecutive, the minimum and maximum sentences are added to form aggregate minimum and maximum wholes, subject to certain limitations.

We agreed with the People, holding that "for SORA purposes a prisoner serving multiple sentences is subject to all sentences, whether concurrent or consecutive, that make up the merged or aggregate sentence he is serving. Buss was therefore still serving a sentence for his 1983 sex crime at the time SORA became effective in 1996" (11 NY3d at 557-558). We noted that "the primary function" of section 70.30 was "to allow for the ready calculation of parole eligibility," but considered it "reasonable" to consider this provision to decide "whether a prisoner who

has been given multiple sentences is subject to all his sentences for the duration of his term of imprisonment” for purposes of determining SORA eligibility (*id.* at 557).

[3] Here, the State argues that, by virtue of Penal Law § 70.30 (1) (b) and our decision in *Buss*, Rashid was on parole for a SOMTA-qualifying offense until November 4, 2008 when his aggregate indeterminate sentence of 10 to 20 years expired. This is so, they contend, because that sentence encompassed not only his convictions for robbery in 2001, but also his convictions for rape and sodomy in 1992. By contrast, Rashid reasons that although it made sense for us to look to section 70.30 when trying to figure out an inmate’s eligibility for SORA registration, we “did so in the absence of any statutory guidance within SORA itself as to the eligibility of persons serving multiple sentences”; and “[b]y contrast, Article 10 contains its own provision for determining which offenders subject to multiple sentences will be eligible for Article 10 civil commitment”; specifically, the definition for “[r]elated offenses.” The motion court and the Appellate Division agreed with Rashid on this point, and so do we.

“Related offenses” include (1) offenses “prosecuted as part of the same criminal action or proceeding” as a sex offense as defined in article 10; (2) offenses “which are part of the same criminal transaction” as a sex offense as defined in article 10; and (3) offenses “which are the bases of the orders of commitment received by the department of correctional services in connection with an inmate’s current term of incarceration” (Mental Hygiene Law § 10.03 [I]). Individuals subject to State custody or supervision on account of an offense within the first two categories of “[r]elated offenses” are eligible for civil management under article 10; the third category covers “inmates” serving their “current term[s] of incarceration” in DOCS’s custody.¹²

Thus, the Legislature enacted in article 10 a comprehensive and complex scheme that defines which offenses “count” for

12. This third category of “[r]elated offenses” is broadly worded, reflecting the Legislature’s apparent decision to give the State more leeway to pursue civil commitment against soon-to-be-released DOCS inmates than parolees (*see also* Mental Hygiene Law § 10.05 [b] [providing that an “agency with jurisdiction” *must* notify the Attorney General and the Commissioner of the impending release of a potential detained sex offender, while the Division *may* do so]). Thus, article 10 does not set out a “more favorable” eligibility rule for DOCS inmates about to be released on parole or postrelease supervision than Penal Law § 70.30 creates for purposes of assessing their SORA eligibility (*cf.* dissenting op at 34). A DOCS inmate does not even have to have been committed to DOCS’s custody for a sex offense in order to be a “detained sex offender.”

purposes of eligibility for civil management: sex offenses, sexually-motivated designated felonies committed prior to article 10's effective date, and those non-sex crimes that are related offenses. Superimposing Penal Law § 70.30 on article 10 for purposes of making eligibility determinations would distort this statutory scheme.

[4] The State argues, in the alternative, that Rashid's 2001 robbery convictions qualify as "related offenses" because "at the time the article 10 process began, [his] 'current term of incarceration' was that [20]-year aggregate maximum term, in connection with which [DOCS] had received the commitment orders related to his robbery convictions as well as to his rape conviction." But Rashid was on parole and/or incarcerated at Rikers Island when "the article 10 process" was kicked off in the fall of 2008; the third prong of the definition of "related offenses" covers DOCS inmates, not a parolee or someone incarcerated for a misdemeanor in a local jail. In sum, when the Division notified the Commissioner and the Attorney General on September 29, 2008 that Rashid was an individual who might be a detained sex offender, he was not under the Division's supervision on account of conviction for a sex offense (his 2001 felony convictions were for robbery); or a sexually-motivated designated felony committed prior to article 10's effective date (the weapon-possession conviction was for a misdemeanor); or offenses which were prosecuted along with a sex offense or were part of the same criminal transaction as a sex offense; he was not an "inmate" serving his "current term of incarceration" for robbery in DOCS's custody because his parole was not revoked. Hence, Rashid did not "stand[] convicted" of a SOMTA-qualifying offense, and so was not a detained sex offender.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

GRAFFEO, J. (dissenting). In 1988, after respondent Mustafa Rashid was released from a Texas prison, he forcibly raped one woman and sodomized another during an armed invasion of a residence in New York. Released on parole in 1999, Rashid subsequently burglarized a woman's apartment, brandished a weapon, sexually assaulted the woman and her eight-month-old daughter, and then threatened to kill them. Rashid was reincarcerated and prior to the completion of his sentence, the State instituted civil commitment proceedings against him pursuant to article 10 of the Mental Hygiene Law because he was

considered a sex offender with an alleged mental abnormality that predisposed him to committing sexually violent crimes if released into the community. The State's evidence showed that Rashid denied having engaged in sexual assaults, refused to complete sex offender treatment while imprisoned, showed "significant traits" of being a psychopath and was at "high risk" of committing additional sex crimes. A mental health expert opined that Rashid's release from confinement "would be a serious danger to the community" and that nothing less than his commitment to a secure facility would be sufficient to ensure the safety of the public. Based on this proof, it is undisputed that there was probable cause to believe that Rashid was a subject for civil management.

Because the majority concludes that Rashid is not a sex offender within the meaning of article 10 and should be freed into society without restriction, I respectfully dissent.

I

Realizing that certain sexual predators pose a threat to public safety after their sentences expire, the Legislature has adopted extensive statutory procedures for the examination of certain individuals and, where declared to be mentally ill, such persons may be eligible for civil confinement beyond the termination of their supervision by the criminal justice system. The State originally utilized article 9 of the Mental Hygiene Law, which permits involuntary hospitalization of the mentally ill, but this Court held that incarcerated persons were to be processed under Correction Law § 402 because it was specifically directed toward mentally ill persons who were imprisoned (*see State of N.Y. ex rel. Harkavy v Consilvio*, 7 NY3d 607 [2006] [*Harkavy I*]).

Apparently concerned that section 402 was inadequate (*see People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*, 15 NY3d 126, 132 [2010]), in 2007, the Legislature enacted the Sex Offender Management and Treatment Act as article 10 of the Mental Hygiene Law (L 2007, ch 7). The legislative impetus for the Act was a concern that some recidivistic sex offenders "have mental abnormalities that predispose them to engage in repeated sex offenses" and should be placed in "comprehensive programs of treatment and management" (Mental Hygiene Law § 10.01 [a], [b]). The mental abnormalities that qualify offenders for civil management are those that cause "serious difficulty in controlling" the urge to engage in sexually violent criminal conduct (*id.* § 10.03

[i]; *see id.* § 10.03 [q]). Article 10 provides that continued confinement beyond the expiration of a criminal sentence is restricted to the most dangerous sex offenders who have “such a strong predisposition to commit sex offenses, and such an inability to control behavior, that the person is likely to be a danger to others and to commit sex offenses if not confined to a secure treatment facility” (*id.* § 10.03 [e]). Sex offenders with mental abnormalities that do not rise to that level of dangerousness are treated instead with a program of “strict and intensive supervision” that does not involve confinement in a mental hygiene secure facility (*id.* § 10.03 [r]). In light of the restrictions on personal freedom that stem from an adjudication that a person is a sex offender requiring civil management, article 10 provides those individuals subject to review with specific procedural and substantive protections (*see e.g. id.* § 10.06 [b], [c], [e], [g]; § 10.07 [d], [e]; § 10.09).

The provisions of article 10 apply to any person who may be a “detained sex offender.” As relevant to the case now before us, the definition of a “detained sex offender” includes “a person who is in the care, custody, control, or supervision of an agency with jurisdiction”—such as the Department of Correctional Services (DOCS), the Division of Parole or the Office of Mental Health (OMH)—and is “currently serving a sentence for, or subject to supervision by the division of parole” for a sex offense or a related offense (*id.* § 10.03 [g] [1]). Article 10 review begins when the agency with jurisdiction over a sex offender notifies the Attorney General and OMH that the individual is nearing “release” (*id.* § 10.05 [b]), i.e., the completion of incarceration, postrelease supervision (PRS) or parole (*see id.* § 10.03 [m]). OMH then reviews the person’s records to determine whether the sex offender should be referred to a “case review team” for evaluation (*id.* § 10.05 [d]).

If the individual is referred to the review team, notice of the referral must be provided to the sex offender (*see id.* § 10.05 [e]) and that individual is then designated a “respondent” for the remainder of the proceedings (*see id.* § 10.03 [n]). The case review team assesses various records and materials to evaluate whether the respondent is a sex offender who suffers from a “mental abnormality” and is in need of civil management (*see id.* § 10.05 [e]). If found to require further management, article 10 directs the review team to notify the respondent and the Attorney General (*see id.* § 10.05 [g]). The Attorney General must then decide whether to file a civil management petition in court against the respondent (*see id.* § 10.06 [a]).

Once a petition is filed, counsel is appointed for the respondent and a court must find probable cause to believe that a sex offender is in need of civil management (*see id.* § 10.06 [c], [g]). In cases where probable cause exists, the respondent is entitled to have a jury unanimously determine whether the Attorney General has proved by clear and convincing evidence that the respondent is a sex offender with a mental abnormality (*see id.* § 10.07 [d]). Should the factfinder conclude that the State has met its burden, the court must then make its own determination as to whether the respondent should be confined in a secure facility or permitted to remain in the community under intensive supervision (*see id.* § 10.07 [f]).

II

Respondent Mustafa Rashid was incarcerated in Texas in the 1980s following his second robbery conviction in that state. He was paroled in May 1988 and moved to New York. In October of that year, Rashid stole money during a knifepoint robbery of a gas station. On November 8th, he invaded a home while armed, stole property, forcibly raped a woman, sodomized another and stabbed a person who attempted to intercede. Rashid subsequently pleaded guilty to rape in the first degree, sodomy in the first degree, two counts of robbery in the first degree and robbery in the second degree. He was sentenced to an aggregate prison term of 8 to 16 years.

Rashid was paroled in July 1999. Less than a year later, he committed three different robberies during a five-day period. According to the indictments, the first robbery occurred when he entered a woman's home, indicated that he had a gun and threatened to shoot her if she did not give him money. The next day, Rashid approached a woman on an elevator, again pretended to have a gun and said that he would kill her unless she handed over money. After she replied that she had none, he went to the victim's apartment and told her husband that he had kidnapped her, knew she was pregnant and would kill her if the man did not give him cash.

The third robbery occurred when Rashid burglarized another woman's residence. He displayed an ice pick and threatened to kill the woman if she did not follow his orders. Rashid took the woman's eight-month-old daughter out of her arms, touched the baby's vagina, placed the ice pick to the woman's neck, fondled her breasts and masturbated until he ejaculated. While continuing to threaten the woman, he said, "If you don't give me money,

I will kill you and your baby.” The woman gave Rashid some cash and he left. Rashid was arrested later that day.

As a result of these incidents, DOCS revoked Rashid’s parole based on the 1988 home invasion and sex offenses. For these new crimes, he was indicted for robbery in the first degree, burglary, forcible sexual abuse, weapon possession and related offenses. Rashid subsequently pleaded guilty to two counts of robbery in the third degree and one count of criminal possession of a weapon in the fourth degree. An aggregate sentence of 2 to 4 years was imposed and was to run consecutively to the undischarged portion of the prior 8-to-16-year sentence that Rashid was still serving (*see* Penal Law § 70.25 [2-a]). Under Penal Law § 70.30 (1) (b), DOCS merged the two sentences into one, resulting in a combined sentence of 10 to 20 years that would not be completed until November 2008.

Rashid was paroled a second time in 2006, but parole supervision was revoked that July after Rashid was arrested for criminal possession of stolen property and larceny. He was given a third opportunity at parole, which he failed by using cocaine and not participating in drug treatment. After being paroled again in February 2008, a few months later Rashid was caught shoplifting and was charged with petit larceny. Since he pleaded guilty to that crime in return for a one-year sentence to be served at Rikers Island, and his sentence for the 1988 sex offenses and 2000 robberies was due to expire in November 2008, DOCS decided not to pursue revocation of his parole.

On September 29, 2008, the Division of Parole began an article 10 civil management review by notifying OMH that Rashid was a detained sex offender who was nearing the end of his sentence. On October 6th, OMH notified Rashid that his case had been referred to a review team to determine whether it would be recommended that he required civil management. Later that month, the case review team informed the Attorney General that it had concluded that Rashid required civil management.

Rashid was released from Rikers Island on October 31, 2008. His parole for the 1988 and 2000 offenses ended on November 4th. The Attorney General filed an article 10 petition in Supreme Court the next day. Because Rashid was at liberty, the court ordered his return to custody pursuant to Mental Hygiene Law § 10.06 (h) pending a hearing to determine whether there was probable cause to believe that Rashid was a sex offender requiring civil management.

At the probable cause hearing, a psychologist for the State testified about the evaluation of Rashid. He stated that Rashid had denied the sexual components of his crimes despite his prior guilty pleas and that he suffered from two psychological disorders that caused him to have trouble controlling his tendencies and behavior, and that a particular component of his personality disorder involved the acting out in a “sexually aggressive manner” when he was given the opportunity during the commission of nonsexual crimes. The psychologist also believed that Rashid showed “significant traits” of being a psychopath and that Rashid’s poly-substance abuse contributed to his difficulty maintaining “independent impulse control” over his sexual predispositions while under the influence of narcotics.

The psychologist used an actuarial instrument called the Static-99 to assess Rashid’s likelihood of committing another sex offense. He assigned Rashid a raw score of 7 out of 10, which placed him in “a high risk category for future sexual recidivism” that made him 46 times more likely than the average individual to commit a sex crime in the next five years and 66 times more likely over a 10-year span. The expert also noted that Rashid had never completed a sex offender treatment program. Based on all of these factors, the psychologist concluded that releasing Rashid without any restrictions “would be a serious danger to the community” and that he needed to be “in a secured treatment facility” pending the article 10 trial. Supreme Court found probable cause to believe that Rashid was a sex offender requiring civil management and therefore ordered that he be confined until trial.

In the petition underlying the trial, the State alleged that Rashid was a “detained sex offender” at the time the Mental Hygiene Law § 10.05 (b) notice was issued by the Division of Parole to OMH in September 2008. Although the maximum 16-year sentence for the 1988 sex offenses had been set to expire in 2004, the State maintained that because that sentence ran consecutively to the sentence for the 2000 offenses, and in accordance with *People v Buss* (11 NY3d 553 [2008]), the total aggregate sentence was 10 to 20 years. Consequently, the State asserted that the sentence for the sex offenses did not expire until November 2008 and, therefore, Rashid remained detained for a sex crime when the article 10 notice was issued regarding civil commitment review. The State alternatively contended that the 2000 offenses were “related offenses” that could serve as a

predicate for an article 10 petition because they were referenced in the DOCS commitment orders and those sentences related to the earlier sex crimes since the prison terms ran consecutively.

Prior to trial, Rashid moved to dismiss the petition, claiming that the reasoning of *Buss* did not apply to his case because it dealt with the requirements of the Sex Offender Registration Act (SORA) and, furthermore, his 2000 offenses were not “related offenses” since the commitment orders did not cite the sentence for the 1988 sex crimes. Rashid maintained that the petition was untimely. He asserted that even if *Buss* applied, he was not a “detained” sex offender when the State instituted the article 10 proceeding since his criminal sentence expired the day before the first petition had been filed.¹ As the majority notes, Supreme Court granted Rashid’s motion and dismissed the petition (25 Misc 3d 318 [Sup Ct, NY County 2009]), and the Appellate Division affirmed (68 AD3d 615 [1st Dept 2009]).

III

I am dissenting in this case because I agree with the State’s contention that Rashid was a detained sex offender when the article 10 process commenced. The different actors in the article 10 process—the case review team, the Attorney General and the probable cause court—must all decide whether a person is a “sex offender requiring civil management” (Mental Hygiene Law § 10.05 [e]; § 10.06 [a], [k]), a phrase that requires the offender to be “detained” (*id.* § 10.03 [q]). As relevant to this appeal, a sex offender is defined as detained under the statute if the person “stands convicted of a sex offense” and is “currently serving” a sentence, PRS or parole for that offense or a related offense (*id.* § 10.03 [g] [1]). The threshold issue, and the basis of my disagreement with the majority and the courts below, is at what operative point must an offender be “currently serving” a sentence for a sex crime to qualify for civil management review.

Textually, the statutory language employs the present tense (*see id.*). The majority concludes that this requires the Attorney General to allege in an article 10 petition that the sex offender is serving a sentence and remains “detained” at the time the petition is filed. Certainly, the words used by the Legislature in a statutory enactment usually provide the initial basis for

1. Rashid’s argument was directed at the third article 10 petition. The first petition was dismissed for improper service; the second was dismissed because it was erroneously premised on a misdemeanor offense.

analyzing its intended scope (*see e.g. Matter of M.B.*, 6 NY3d 437, 447 [2006]). The majority's interpretation is probably not untenable if the language is viewed in isolation. But there are instances when a strictly textual analysis of an isolated phrase cannot be harmonized with other parts of a comprehensive legislative scheme and would produce results that are so fundamentally inconsistent with the overarching purpose of the statute that it must yield to reasonableness and common sense in order to truly effectuate the Legislature's intent (*see e.g. Long v State of New York*, 7 NY3d 269, 273 [2006]; *People v Santi*, 3 NY3d 234, 242 [2004]).

This is one of those cases. The majority's holding that a petition must be filed before a sex offender completes a sentence cannot be reconciled with other provisions of the Act's text, its structure or its underlying legislative purpose. The majority's analysis will also give rise to a conundrum because a simplistic definitional analysis of "currently serving," carried to its logical conclusion, will render article 10 inapplicable in many cases that the Legislature intended to reach. Based on my reading of article 10 as a whole, I believe that the crucial juncture for determining whether an offender is "detained" and "currently serving" a sentence for a sex crime occurs at the time the offender is first notified that his case is being reviewed under article 10. I offer several reasons for this conclusion.

Nothing in the civil management act expressly imposes a strict time limitation on the Attorney General's ability to file a petition and commence the court proceeding. Rather, the Act establishes advisory time frames for each of the early stages in the article 10 process. The initial notice to OMH and the Attorney General is supposed to occur at least 120 days before a sex offender's anticipated release (*see Mental Hygiene Law* § 10.05 [b]). The case review team's notice of its determination is to be issued within 45 days after OMH was first notified (*see id.* § 10.05 [g]). If the Attorney General decides that a petition will be filed, it should be done within 30 days after receiving notice of the case review team's finding (*see id.* § 10.06 [a]). Each of these statutes emphasize that the failure to meet these time frames "shall not affect the validity of [any] notice or any subsequent action, including the filing of a sex offender civil management petition" by the Attorney General (*id.* § 10.05 [b] [emphasis added]; *see id.* § 10.05 [g]; § 10.06 [a]). Under the majority's rationale, the latter phrase is rendered superfluous and it ignores the catchall provision that emphasizes that the

“[t]ime periods specified” in article 10 “for actions by state agencies are goals that the agencies shall try to meet, but failure to act within such periods shall not invalidate later agency action except as explicitly provided by the provision in question” (*id.* § 10.08 [f]).

The majority overlooks three important factors in finding the petition here untimely. The most obvious is that the Legislature expressed an unmistakable intent throughout article 10 not to impose rigid deadlines for taking action, up to and including the filing of the petition. Second, the Attorney General is given 30 days to consider the OMH review team’s finding before deciding whether to file a petition (*see id.* § 10.06 [a]). The Attorney General’s office received Rashid’s case on October 17, 2008 and made a decision on November 5th—less than 30 days later—yet it is being penalized by the majority for fulfilling its responsibility to properly review a case before deciding to proceed with a petition. Third, even if the petition had been filed more than 30 days after receipt of the referral, article 10 expressly provides that no sanction may be imposed, but that is effectively what the majority has done by dismissing the petition.

There was undoubtedly a practical reason for the Legislature to adopt advisory time guidelines rather than mandatory directives. It recognized that the number of cases and the time necessary to engage in adequate review would vary. For the 12-month period from November 2007 to the end of October 2008, OMH reviewed 1,581 sex offenders for possible civil management² and from November 2008 to the end of October 2009, the agency reviewed 1,798 cases.³ From the large pool of cases reviewed between the enactment of article 10 through April 2010, OMH referred 383 cases to the Attorney General for civil management consideration.⁴

2. See New York State Office of Mental Health, 2008 Annual Report on the Implementation of Mental Hygiene Law Article 10, at 8, available at http://www.omh.state.ny.us/omhweb/resources/publications/2008_SOMTA_Report.pdf (accessed Oct. 29, 2010) (hereinafter 2008 OMH Report).

3. See New York State Office of Mental Health, 2009 Annual Report on the Implementation of Mental Hygiene Law Article 10, at 8, available at http://www.omh.state.ny.us/omhweb/statistics/SOMTA_Report.pdf (accessed Oct. 29, 2010) (hereinafter 2009 OMH Report).

4. See New York State Office of the Attorney General, A Report on the 2007 Law that Established Civil Management for Sex Offenders in New York

(n. cont’d)

Although OMH is to make a determination 75 days before the anticipated release date of each offender (*see* Mental Hygiene Law § 10.05 [b], [g]), it's not unreasonable to expect that this extensive caseload has made compliance with that time frame difficult. On average, the Attorney General receives a referral from OMH only about 19 days before the respondent's release date (*see* 2009 OMH Report at 11; 2008 OMH Report at 7). In this case, consistent with that time frame, the Attorney General had a mere 18 days before Rashid was scheduled to finish his sentence. This not only made it difficult for the Attorney General to meet the goal of filing a petition within 45 days of Rashid's release (*see* Mental Hygiene Law § 10.06 [a]), it also increased the likelihood that the Attorney General would need additional time beyond Rashid's release date to investigate and reach an appropriate decision on whether to file an article 10 petition. Prior to today, the Attorney General had no reason to believe that there was a need to hastily file article 10 petitions to stop the clock from running out before it had an adequate opportunity to conduct thorough reviews of all the facts and circumstances of each offender's background when making critical determinations to seek civil commitments. After all, article 10 repeatedly advises that its time frames are advisory and that a failure to meet them will have no jurisdictional effect on the outcome of the proceedings.

The Legislature anticipated these difficulties and devised two safety-valve provisions to prevent a person who may be a dangerous sex offender from being immunized from article 10 review as a result of being released into the community. Section 10.06 (f) allows the Attorney General to file a securing petition if it appears that the offender may be released before the case review team can make its determination and where the Attorney General believes that public safety requires continued detention. This procedure was obviously not available to the Attorney General in this case since the OMH review team completed its assessment prior to the completion of Rashid's sentence.

Second, subdivision (h) of section 10.06 states that if a sex offender "was released" from custody after the initial section 10.05 (b) notice to OMH and "is therefore *at liberty when the petition is filed*," a court is required to order the person back into custody upon the filing of the petition for the purpose of a

State, at 11 (Apr. 13, 2010), available at http://www.ag.ny.gov/bureaus/sexual_offender/pdfs/April%202010%20Yearly%20Report.pdf (accessed Oct. 29, 2010) (hereinafter 2010 OAG Report).

probable cause hearing (*id.* § 10.06 [h] [emphasis added]). This statutory provision expressly contemplates that a petition can be filed after a respondent has completed a sentence (*see People ex rel. David NN. v Hogan*, 53 AD3d 841, 843 [3d Dept 2008], *lv denied* 11 NY3d 708 [2008]; *Matter of State of New York v Millard*, 19 Misc 3d 283, 287-288 [Sup Ct, Broome County 2008]). Contrary to the majority's suggestion, "release" is not just limited to the completion of a term of imprisonment—it also encompasses an individual who has completed a term of parole (*see* Mental Hygiene Law § 10.03 [m] [defining the term to include "discharge from confinement" or "from supervision by the division of parole"]).

That is what happened here. When Rashid completed parole on November 4, 2008, he was released within the meaning of section 10.03 (m) and was therefore "at liberty when the petition [wa]s filed" under section 10.06 (h). Consequently, the Attorney General permissibly sought Rashid's return to confinement and Supreme Court granted that relief. Although the majority reasons that section 10.06 (h) only applies to individuals who remain on parole when the petition is filed (*see* majority op at 15), this conflicts with the fact that being "at liberty" can arise from a discharge from parole (*see* Mental Hygiene Law § 10.06 [h] ["the respondent was released . . . and is therefore at liberty"]) and that a release based on the expiration of a term of parole is treated the same as release from incarceration—in both situations, the Act provides a means for returning the person to State custody. Thus, the majority's holding that a petition cannot be filed after a sex offender is released (despite receiving notice while serving the sentence) unequivocally contradicts the language of sections 10.03 (m) and 10.06 (h) and disregards the rule that courts should not read legislative enactments in a manner that causes them to become superfluous (*see e.g. Matter of Amorosi v South Colonie Ind. Cent. School Dist.*, 9 NY3d 367, 373 [2007]).

The majority's belief that "at liberty" refers only to individuals who are on parole when the petition is filed is further at odds with one of the important reasons the Legislature enacted article 10—to reach the most serious sex offenders who are so dangerous that they cannot be conditionally released during the term of their sentences and therefore remain incarcerated for the entire duration of their sentences. Under the majority's reading of section 10.06 (h), the commencement of an article 10 process while a person is still imprisoned, as opposed to being

on parole like Rashid was, and the filing of an article 10 petition the day after the completion of the maximum prison sentence would bar the return to custody that is permitted by subdivision (h), regardless of how dangerous the person may be. It is precisely because the criminal justice system can “no longer exert[] authority” over such a sex offender (majority op at 14 n 9) that the Legislature authorized the Attorney General to seek relief in the civil courts without the unduly burdensome jurisdictional filing requirement that the majority has imposed.

Aside from the implications of Mental Hygiene Law § 10.06 (h), I believe that the majority’s strict textual application of “detained” and “currently serving” cannot be reconciled with the time frame set forth in article 10 for the civil management trial. The finder of fact cannot render a determination that a sex offender has a mental abnormality requiring civil management unless it also decides that the respondent is still “detained” under a sentence for a sex crime (Mental Hygiene Law § 10.07 [d]; *see id.* § 10.03 [g] [1]). Similarly, if the factfinder rules in the State’s favor, the court must then assess whether the respondent is a “dangerous sex offender requiring confinement” or a “sex offender requiring strict and intensive supervision” (*id.* § 10.07 [f]), both of which require current detention for a sex crime (*see id.* § 10.03 [e], [r]). Yet article 10 contemplates that a trial will generally occur after a sentence has expired: the statute provides that the probable cause hearing be conducted approximately 15 days before an anticipated release date (*see id.* § 10.06 [g]) and the trial is supposed to commence no more than 60 days later (*see id.* § 10.07 [a])—i.e., 45 days *after* the offender’s scheduled release. Even if the trial begins before a respondent’s sentence is completed, it is doubtful that the offender will still be serving the sentence by the time the jury begins deliberations since article 10 litigation “is often protracted” and almost half of all cases take more than a year from the probable cause determination to reach conclusion (2009 OMH Report at 13).

How, then, will it ever be possible for a factfinder or a judge to say that a sex offender with a mental abnormality is “currently serving a sentence for” a sex crime? In reaching its holding in this case, the majority does not appear to have contemplated how its strict textual approach will apply in future article 10 cases that are timely commenced but cannot be completed before the respondent’s underlying sentence expires. Ultimately, the majority’s decision will either create interpretative

inconsistencies within the Act or result in different meanings of the same statutory language at various stages of the proceedings.

In my opinion, since “detained” and “currently serving” cannot realistically be interpreted as referring to the present tense throughout the statutory process, the rule for determining civil management eligibility should be whether the offender was serving a sentence on the day the case is assigned to an OMH review team because that is when the offender first receives notice that an article 10 civil commitment process has been initiated (see Mental Hygiene Law § 10.05 [e]) and the offender is first denoted as a “respondent” (see *id.* § 10.03 [n]). I am not alone in this analysis, as other judges contemplating the meaning of article 10 have similarly held (see *People ex rel. David NN. v Hogan*, 53 AD3d at 843-844 [“The statutes only require the detained person to be in the agency’s custody and nearing release when the initial notice is given, . . . not when the petition is filed . . . (A) petition could have been filed even had (the) petitioner been at liberty”]). Thus, an article 10 petition will be untimely only if the sentence expires before notice is issued (see generally *Joseph II.*, 15 NY3d at 134-135). I therefore conclude that the article 10 proceeding in this case was timely commenced against Rashid because he was under parole supervision at the time he was notified that his case was being referred to an OMH review team for possible civil management consideration.

By finding Rashid’s petition to be untimely, the majority necessarily rules that section 10.06 (h) does not mean what it plainly says; it adopts a new jurisdictional timing rule that cannot be found elsewhere in article 10; it disregards the Legislature’s decision to create nonmandatory time periods that do “not affect the validity of the petition” if they are not met (see Mental Hygiene Law § 10.06 [a]); it penalizes the Attorney General for undertaking the obligation to consider a case within 30 days; and it fails to recognize that article 10 court proceedings will generally occur after a criminal sentence is completed. Broad ramifications may flow from this decision—article 10 court proceedings have been commenced against over 300 sex offenders (see 2010 OAG Report at 14) and we have no information about how many of those respondents were serving their sentences when the petitions were filed. Based on the plain language of section 10.06 (h), it was reasonable for the Attorney General to believe—not only in this case but in others as well—that completion of parole by a person who had been living in

the community would not be an insurmountable impediment to the filing of a petition providing that the notice to the respondent occurred before that person completed the sentence.

For all of these reasons, I would hold that the petition was timely filed because Rashid was under parole supervision when he was informed that his case would be subject to article 10 review procedures.

IV

Because I have concluded that Rashid was “detained” as defined by Mental Hygiene Law § 10.03 (g) (1) when the article 10 process began, it is also necessary for me to consider whether that detention was for a sex offense.

Penal Law § 70.30 is the only New York statute supplying the rules for how to calculate multiple terms of imprisonment. Under subdivision (1) (b), if two indeterminate prison terms run consecutively, the minimums are added together to produce the new minimum and the maximums are added to produce the new maximum. Because Rashid was serving 8 to 16 years for the 1988 sex offenses when he committed the 2000 robberies and received a new 2-to-4-year sentence, those terms had to run consecutively, even though the sentencing court in the more recent proceeding did not formally make that pronouncement (see Penal Law § 70.25 [2-a]; *People ex rel. Gill v Greene*, 12 NY3d 1, 6 [2009]). Thus, Rashid’s total sentence was 10 to 20 years, which meant that the sentence (including parole) would not be fully completed until November 2008.

The majority concludes that Penal Law § 70.30 (1) (b) does not apply to the determination of whether a person was serving a sentence for a sex offense for article 10 purposes. It reasons that the statute is irrelevant because article 10 has its own rule for examining whether a sentence for a sex crime is still being served and therefore concludes that Rashid finished his sex offense sentence in 2004, rendering him ineligible under article 10. I disagree.

Article 10 states that a person must be “currently serving” a sentence for a sex offense (see Mental Hygiene Law § 10.03 [g] [1]), but it does not contain any provision that directs how to make the “currently serving” determination when an offender is subject to multiple terms of imprisonment, as Rashid was. Nor does article 10 preclude a court from considering the otherwise generally applicable provisions of Penal Law article

70. In the absence of such a restriction, the default calculation rule of Penal Law § 70.30 (1) (b) should govern.

Our decision in *People v Buss* (11 NY3d 553 [2008])—which dealt with the Sex Offender Registration Act (SORA)—supports this conclusion. In *Buss*, the defendant had committed a sex offense in 1983 (before SORA was enacted) and was sentenced to 2 to 6 years. While on parole in 1987, he tried to murder a woman and was charged with attempted murder and first-degree rape and sodomy, among other offenses. He pleaded guilty to attempted murder in satisfaction of the indictment and received a consecutive sentence of 10 to 20 years (producing an aggregate of 12 to 26 years). The issue was whether the new sentence had to be added to the earlier one for the purpose of SORA eligibility, meaning the defendant was still serving a sentence for the 1983 sex offense when SORA became effective in 1996.

We held that the calculation rule of Penal Law § 70.30 (1) (b) was applicable and that the defendant was therefore subject to SORA. Our analysis was straightforward: “the Penal Law provides for a method whereby two or more sentences are *made into one*” and “the result . . . is a single, indeterminate sentence” (11 NY3d at 557) whenever a person is subject to more than one term of imprisonment. We observed that one of the primary goals of SORA was “to protect the public from the danger of recidivism posed by sex offenders” and explained that the advancement of this legislative purpose was “best served by recognizing that a person who is returned to prison while on parole for a sex offense continues to be subject to his sex offense sentence for the duration of the aggregate sentence” since “[c]ommon sense and experience dictate that a defendant’s conduct while on parole is a reliable predictor of the risk he poses to society” (*id.* at 558 [citations and internal quotation marks omitted]). Hence, we held that section 70.30 applies to “the question of whether a prisoner who has been given multiple sentences is subject to all his sentences for the duration of his term of imprisonment” (*id.* at 557).

Under a comparable analysis, I believe that the reasoning of *Buss* applies with equal force to article 10 proceedings. Like SORA, article 10 was designed to address public safety concerns (*see* Mental Hygiene Law § 10.01 [d])—the Legislature declared that “recidivistic sex offenders pose a danger to society” (*id.* § 10.01 [a]). As in *Buss*, advancement of this legislative objective is best served by recognizing that sex offenders “continue[]

to be subject to [the] sex offense sentence for the duration of the aggregate sentence” (*Buss*, 11 NY3d at 558). Nothing in article 10 convinces me that the Legislature intended to create a different and more favorable sentence calculation rule for dangerous sexual predators with mental abnormalities than for other categories of sex offenders who are required to register under SORA. If that was what the Legislature wanted to accomplish, it would have said so in article 10.

Furthermore, contrary to the majority’s conclusion (*see* majority op at 18-19), the definition of “related offenses” does not prevent the rationale of *Buss* from pertaining to this situation. To be sure, that phrase expands the application of the civil management act to individuals who are serving time for non-sex offenses (*see* Mental Hygiene Law § 10.03 [l]). But incarceration for a “related offense” is irrelevant to assessing whether a person is still serving a sentence for a “sex offense”—a different and independent category that defines eligibility for civil management. The only way to make the latter determination is to refer to Penal Law § 70.30 (1) (b). Tellingly, the majority never says that Rashid was not, in fact, on parole for the 1988 sex offenses when the article 10 process began. Certainly he was. I would therefore hold that Rashid was still serving his sentence for the 1988 sex offenses when the article 10 process began, which qualified him as a “detained sex offender” within the meaning of Mental Hygiene Law § 10.03 (g) (1).⁵

V

As a final point, we held in *Harkavy I* that the State could not apply article 9 of the Mental Hygiene Law to sex offenders who were serving a sentence when that process began (*see* 7 NY3d at 613-614). But we also explained that article 9 could be used in situations where sentences had expired (*id.* at 614). Thus, although the majority now concludes that article 10 cannot be used against Rashid because his sentence was completed before the petition was filed, nothing prevents the State from seeking to have him involuntarily hospitalized under Mental Hygiene Law article 9 as a mentally ill person who is in need of treatment and is a danger to society (*see* Mental Hygiene Law § 9.27). If Rashid is as impaired and dangerous as the State has alleged, the ironic result here may be commitment proceedings under

5. In light of this conclusion, it is unnecessary for me to address whether the 2000 robberies were “related offenses” that would provide an independent basis for an article 10 petition.

article 9 in which Rashid will not be entitled to many of the significant procedural and substantive protections that apply in article 10 cases.

Based on my reading of the civil management act and our decision in *Buss* (11 NY3d 553 [2008]), I would reverse the order of the Appellate Division and allow the article 10 trial to proceed.

SMITH, J. (dissenting). This case, like *People ex rel. Joseph II. v Superintendent of Southport Correctional Facility* (15 NY3d 126 [2010]), presents narrow issues of statutory construction, not the substantive question of how far Mental Hygiene Law article 10 goes, or constitutionally may go, in permitting what amounts to preventive detention for dangerous sex offenders. I join Judge Graffeo's dissent because I believe she has correctly analyzed the issues that are before us. In doing so, I do not necessarily imply that I think article 10 does, or constitutionally may, permit the detention of Rashid or other prisoners similarly situated. Neither of the main opinions in this case, as I read them, addresses that issue.

Chief Judge LIPPMAN and Judges CIPARICK, PIGOTT and JONES concur with Judge READ; Judge GRAFFEO dissents and votes to reverse in a separate opinion in which Judge SMITH concurs in another opinion.

Order affirmed, without costs.

[941 NE2d 1151, 916 NYS2d 574]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v CHARLES FRAZIER, Respondent-Appellant.

Argued November 15, 2010; decided December 14, 2010

SUMMARY

CROSS APPEALS, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 13, 2009. The Appellate Division modified, on the law, a judgment of the Supreme Court, New York County (Rena K. Uviller, J., at competency hearing; Charles J. Tejada, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of burglary in the second degree (three counts), grand larceny in the third degree (two counts), and bail jumping in the second degree, and sentenced him, as a persistent violent felony offender, to concurrent terms of 16 years to life for the burglary convictions to be served consecutive to concurrent terms of 2 to 4 years for the grand larceny convictions and consecutive to a term of 2 to 4 years for the bail jumping conviction. The modification consisted of directing that the sentences for the larceny convictions be served concurrently with the sentences for the burglary convictions. The Appellate Division affirmed the judgment as modified.

People v Frazier, 58 AD3d 468, modified.

HEADNOTES

Crimes — Sentence — Concurrent and Consecutive Terms — Sentences for Burglary and Grand Larceny

1. In a criminal prosecution wherein defendant was convicted of burglary in the second degree and grand larceny in the third degree based on evidence that he had broken into two separate apartments and stole several thousand dollars worth of personal property from each, the Appellate Division erred in concluding that, since larceny was the only crime that satisfied the intent element of burglary, the sentences for the burglary and grand larceny convictions must be concurrent. Concurrent sentences are required under the provisions of Penal Law § 70.25 (2) when the actus reus, i.e., the wrongful deed that comprises the physical components of a crime, is a single inseparable act that violates more than one statute. A court must look to the statutory definitions of the crimes to determine whether the actus reus element is the same for both offenses or if the actus reus for one offense is a material element of the second offense. Consecutive sentences are authorized where there is some overlap in the elements of multiple offenses if it is established that the acts or omissions committed were separate and distinct. Here, the burglary and larceny offenses did not contain the same actus reus. Second-degree burglary

is defined as knowingly entering or remaining unlawfully in a dwelling with the intent to commit a crime therein (Penal Law § 140.25 [2]), which defendant completed when he entered each apartment with the intent to commit a crime. Defendant committed grand larceny in the third degree (Penal Law § 155.35 [1]) through his separate act of stealing property valued at over \$3,000.

Crimes — Fitness to Proceed to Trial

2. In a criminal prosecution, the record provided no basis for finding defendant incompetent to stand trial as a matter of law. At the competency hearing, four experts, including one doctor who had previously found defendant unfit, concluded that defendant was competent. Even the defense expert who found defendant unfit agreed that defendant understood the nature of the charges and the potential penalties. Though it appeared unusual that defendant, after initially being declared unfit to stand trial by two experts, was returned as competent after only two weeks of treatment at a secure psychiatric facility, that may have been the result of error in the initial determinations. Accordingly, there was no basis to disturb the affirmed findings that defendant's failure to communicate with his attorney was volitional and that his depression did not prevent him from participating in his defense (*see* CPL 730.10 [1]).

Crimes — Sentence — Persistent Violent Felony Offender — Constitutionality of Sentencing Scheme

3. Defendant's challenge to the constitutionality of the sentencing scheme under which he was sentenced as a persistent violent felony offender failed under the line of precedent following the United States Supreme Court decision in *Almendarez-Torres v United States* (523 US 224 [1998]).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Burglary §§ 26, 66; AM JUR 2d, Criminal Law §§ 88, 99–105, 835, 836, 899, 900; AM JUR 2d, Habitual Criminals and Subsequent Offenders §§ 11, 14; AM JUR 2d, Larceny §§ 13, 44, 153.
CARMODY-WAIT 2d, Arraignment, Preliminary Hearing, and Fitness to Proceed §§ 179:53–179:56; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:6, 203:152.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 26.1–26.3, 26.6.
MCKINNEY'S, CPL 730.10 (1); Penal Law § 70.25 (2); § 140.25 (2); § 155.35 (1).
NY JUR 2d, Criminal Law: Procedure §§ 1785–1787, 1792, 1797–1799, 3150, 3152, 3153, 3158, 3159, 3252, 3253; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 819, 935, 939.

ANNOTATION REFERENCE

See ALR Index under Burglary; Concurrent and Consecutive Sentences; Habitual Criminals and Subsequent Offenders; Incompetent or Insane Persons; Larceny or Theft; Sentence and Punishment.

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POINTS OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Eleanor J. Ostrow and Hilary Hassler of counsel), for appellant-respondent. The elements of burglary in the second degree and grand larceny in the third degree are distinct from one another. And, in each criminal transaction at issue here, the acts constituting the burglary and the larceny were separate from each other. Therefore, the sentencing court's imposition of consecutive sentences for those crimes was lawful. (*People v Laureano*, 87 NY2d 640; *People v Ramirez*, 89 NY2d 444; *People v Day*, 73 NY2d 208; *People v Snyder*, 241 NY 81; *People v Truesdell*, 70 NY2d 809; *People v Taveras*, 12 NY3d 21; *People v Yong Yun Lee*, 92 NY2d 987; *People v King*, 61 NY2d 550; *People v Okafore*, 72 NY2d 81; *People v Brown*, 80 NY2d 361.)

Center for Appellate Litigation, New York City (Jody Ratner and Robert S. Dean of counsel), for respondent-appellant. I. The People's appeal should be dismissed because the Appellate Division's modification of the judgment was predicated upon factual determinations that were dispositive. (*People v Albro*, 52 NY2d 619; *People v Johnson*, 47 NY2d 124; *People v D'Alessandro*, 13 NY3d 216; *People v Giles*, 73 NY2d 666; *People v Washington*, 71 NY2d 916; *People v Butler*, 58 NY2d 1056; *People v Dercole*, 52 NY2d 956; *People v Laureano*, 87 NY2d 640; *People v Ramirez*, 89 NY2d 444; *People v Underwood*, 52 NY2d 882.) II. The order of the Appellate Division modifying the sentences to run concurrently should be affirmed since the People failed to establish that the charged crimes could be considered separate and distinct acts. (*People v Albro*, 52 NY2d 619; *People v Ramirez*, 89 NY2d 444; *People v Laureano*, 87 NY2d 640; *People v Underwood*, 52 NY2d 882; *People v Rosas*, 8 NY3d 493; *People v Day*, 73 NY2d 208; *Morgan v Devine*, 237 US 632; *People v Cahill*, 2 NY3d 14; *People v Gaines*, 74 NY2d 358; *People v Henderson*, 41 NY2d 233.) III. The People, as a matter of law, failed to prove by a preponderance of evidence that Mr. Frazier was competent to stand trial where a finding of unfitness was followed by an exceedingly short commitment to a mental health facility and Mr. Frazier continued to lack the capacity to cooperate in his defense. (*Medina v California*, 505

US 437; *Drope v Missouri*, 420 US 162; *People v Mendez*, 1 NY3d 15; *Dusky v United States*, 362 US 402; *Brown v Warden, Great Meadow Correctional Facility*, 682 F2d 348; *People v Cossentino*, 38 NY2d 760; *People v Christopher*, 65 NY2d 417; *United States v Quintieri*, 306 F3d 1217; *People v Gelikkaya*, 84 NY2d 456; *People v Jordan*, 35 NY2d 577.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

The primary issue presented by these cross appeals is whether defendant is subject to consecutive sentences for the crimes of burglary in the second degree and grand larceny in the third degree. Since we find consecutive sentences are authorized, we modify and remit to the Appellate Division for further proceedings.

Defendant broke into two Upper East Side apartments—each located on the fifth floor of a five-story walk-up. The crimes occurred within weeks of each other, in June and July 2004, respectively. In each case, the door had been forced open, the apartment had been ransacked and several thousand dollars worth of personal property had been stolen. Defendant's fingerprints were found inside both apartments. After defendant was arrested, he failed to appear for a mandatory court date. He was taken into custody the following month in Pennsylvania and was returned to New York for trial.

In response to concerns raised by defense counsel about defendant's lack of communication and his competence to stand trial, the court ordered an emergency examination pursuant to CPL 730.10. Two experts examined defendant and issued reports finding him unfit to proceed based on his inability to assist in his defense. The court confirmed the finding of unfitness and defendant was committed to Mid-Hudson Psychiatric Center for treatment. He was returned as competent to stand trial after approximately two weeks.

Supreme Court conducted a competency hearing. The People introduced into evidence reports from four experts, including one of the doctors who had previously found defendant unfit, each concluding that defendant was now competent to proceed to trial. Two of the psychiatrists testified on behalf of the People that defendant understood the nature of the proceedings and the charges. The defense called their own expert psychologist who testified that defendant had a severe mental disorder and was unfit to stand trial due to his inability to communicate with

counsel. Supreme Court concluded that, although defendant suffered from depression, it did not prevent him from participating in his defense and that defendant was instead unwilling to communicate with his attorney. The court determined that the People had established defendant's competence by a preponderance of the evidence and found defendant fit to proceed.

After trial, defendant was convicted of three counts of burglary in the second degree, two counts of grand larceny in the third degree and one count of bail jumping. He was sentenced, as a persistent violent felony offender, to concurrent terms of 16 years to life for the burglary convictions to be served consecutive to concurrent terms of 2 to 4 years for the grand larceny convictions and consecutive to a term of 2 to 4 years on the bail jumping conviction.

The Appellate Division modified, on the law, by directing that the sentences for the larceny convictions be served concurrently with the sentences for the burglary convictions and, as so modified, affirmed. The Court determined that, since larceny was the only crime that satisfied the intent element of burglary, the acts making up each crime could not be viewed as separate and distinct (58 AD3d 468, 469 [1st Dept 2009]). The Court also found that the People had satisfied their burden to establish defendant's competence to stand trial by a preponderance of the evidence. Finally, the Court rejected defendant's claim that the sentencing procedure under which he was adjudicated a persistent violent felony offender was unconstitutional. A Judge of this Court granted the People leave to appeal and defendant leave to cross-appeal, and we now modify.

The Penal Law dictates that concurrent sentences are required "[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other" (Penal Law § 70.25 [2]). We have held that a court must first look to the statutory definitions of the crimes to "determine whether the *actus reus* element is, by definition, the same for both offenses . . . or if the *actus reus* for one offense is, by definition, a material element of the second offense" (*People v Laureano*, 87 NY2d 640, 643 [1996]). The *actus reus* of the crime is " '[t]he wrongful deed that comprises the physical components of a crime and that generally must be coupled with *mens rea* to establish criminal liability' " (*People v Rosas*, 8 NY3d 493, 496 n 2 [2007], quoting Black's Law Dictionary 39 [8th ed 2004]).

Consecutive sentences can still be imposed where there is some overlap in the elements of multiple statutory offenses if the People can demonstrate “that the ‘acts or omissions’ committed by defendant were separate and distinct acts” (*Laureano*, 87 NY2d at 643). However, when the actus reus is “ ‘a single inseparable act’ ” that violates more than one statute, single punishment must be imposed (see *People v Ramirez*, 89 NY2d 444, 453 [1996], quoting *People ex rel. Maurer v Jackson*, 2 NY2d 259, 264 [1957]).

Defendant was convicted of second-degree burglary, which is defined as knowingly entering or remaining unlawfully in a dwelling with the intent to commit a crime therein (see Penal Law § 140.25 [2]). He was also convicted of grand larceny in the third degree for stealing property valued at over \$3,000 (see Penal Law § 155.35 [1]). These statutes do not contain the same actus reus. The crime of burglary was completed when defendant entered each complainant’s apartment with the intent to commit a crime. The ensuing larceny was a separate crime, perpetrated through defendant’s separate act of stealing property (see *People v Yong Yun Lee*, 92 NY2d 987, 989 [1998]).

[1] Defendant emphasizes the finding below that larceny was the only crime that satisfied burglary’s intent requirement and posits that consecutive sentences would punish him twice for the same conduct. However, “[t]he test is not whether the criminal intent is one and the same and inspiring the whole transaction, but whether separate acts have been committed with the requisite criminal intent” (*People v Day*, 73 NY2d 208, 212 [1989] [internal quotation marks and citation omitted]). As noted above, the crimes at issue here are separate offenses that were committed through separate acts. Nor is one offense a material element of the other for sentencing purposes, as larceny is not a necessary component of burglary (see *Day*, 73 NY2d at 211). Concurrent sentences, therefore, are not required and the Appellate Division should exercise its discretion as to whether consecutive sentences are appropriate under the facts of this case.

Defendant, on his cross appeal, argues that the People failed to demonstrate by a preponderance of the evidence that he was competent to stand trial. In order to be found competent, a defendant must be capable of understanding the nature of the proceedings at issue and be able to assist in providing a defense (see CPL 730.10 [1]; *People v Mendez*, 1 NY3d 15, 19 [2003]). Where the trial court’s determination that defendant is mentally

fit to stand trial has been affirmed by the Appellate Division, our review is restricted to determining whether defendant was incompetent as a matter of law (*see Mendez*, 1 NY3d at 20).

[2] Here, four experts provided reports concluding that defendant was fit to proceed to trial. Although the defense expert found him unfit, even that expert agreed that defendant understood the nature of the charges against him and the potential penalties involved. Supreme Court concluded that defendant's lack of involvement and failure to communicate with his attorney was volitional because he preferred commitment to a secure psychiatric facility to incarceration. It appears somewhat unusual that defendant was returned as competent after spending only two weeks at Mid-Hudson Psychiatric Center following the prior finding of incompetence. However, that may have been the result of error in the initial determinations finding him unfit. This record affords no basis for finding defendant incompetent as a matter of law.

[3] Defendant's argument that the persistent violent felony offender sentencing scheme is unconstitutional fails under our line of precedent following *Almendarez-Torres v United States* (523 US 224 [1998]) (*see People v Bell*, 15 NY3d 935 [2010] [decided today]).

Accordingly, the order of the Appellate Division should be modified by remitting to that Court for further proceedings in accordance with this opinion and, as so modified, affirmed.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order modified, etc.

[942 NE2d 1019, 917 NYS2d 594]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ULY-
SESS MCKNIGHT, Appellant.

Argued November 15, 2010; decided December 14, 2010

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 13, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (L. Priscilla Hall, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and attempted murder in the second degree and sentenced defendant to consecutive prison terms of 25 years to life for murder and 20 years for attempted murder.

People v McKnight, 72 AD3d 846, affirmed.

HEADNOTE

Crimes — Sentence — Concurrent and Consecutive Terms — Separate Acts — Murder of Bystander and Attempted Murder of Surviving Victim through Successively Fired Gunshots

In a prosecution arising from defendant's participation in a shooting in which 10 shots were fired, two of which struck and killed a bystander, the trial court was authorized to impose sentences for second degree murder of the bystander and second degree attempted murder of a surviving victim to run consecutively. Under Penal Law § 70.25 (2), sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses, or where a single act constitutes one of the offenses and a material element of the other. The Penal Law defines an "act" as a "bodily movement" (Penal Law § 15.00 [1]), which has been interpreted to mean the actus reus of a crime. Here, the actus reus of the murder was the firing of the two shots that caused the death of the bystander, and the actus reus of the attempted murder was the firing of the eight other shots which "tend[ed] to effect" the death of the surviving victim (Penal Law § 125.25 [1]; § 110.00). Although all 10 shots were discharged with the intent to cause the surviving victim's death, the actus rei of the two offenses were not the same. Furthermore, the actus reus of the murder was not a material element of the actus reus of the attempted murder because more than the two shots that struck the bystander were fired at the surviving victim. Even assuming that the actus rei for the two crimes overlapped under the theory of transferred intent relied on by the People, the testimony of the ballistics expert and the medical examiner established that two shots struck and killed the bystander. Those shots were the result of separate and distinct acts of pulling a trigger to discharge a firearm, and these acts did not merge even though the same criminal intent inspired the whole transaction.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 833, 835.

CARMODY-WAIT 2d, Sentencing Procedures § 203:6.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 26.3.

McKINNEY's, Penal Law § 15.00 (1); § 70.25 (2).

NY JUR 2d, Criminal Law: Procedure § 3158; NY JUR 2d,
Criminal Law: Substantive Principles and Offenses § 20.

ANNOTATION REFERENCE

See ALR Index under Concurrent and Consecutive Sentences; Homicide.

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Query: consecutive /2 sentence /s separate /s act &
transferred /2 intent

POINTS OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Allen Fallek and Steven Banks of counsel), for appellant. I. Counsel's failure to object to the prosecutor's having disclosed in his opening the damaging expected testimony of two witnesses the prosecutor admittedly knew were unavailable, among other incomprehensible omissions, deprived defendant of his constitutional right to the effective assistance of counsel. (*People v Baldi*, 54 NY2d 137; *People v Benevento*, 91 NY2d 708; *People v Stultz*, 2 NY3d 277; *Strickland v Washington*, 466 US 668; *People v Turner*, 5 NY3d 476; *Rosario v Ercole*, 601 F3d 118; *People v Droz*, 39 NY2d 457; *Bruton v United States*, 391 US 123; *People v De Tore*, 34 NY2d 199; *People v Cruz*, 100 AD2d 882.) II. The sentences for the attempted murder and the simultaneously committed transferred intent murder had to run concurrently where the shots that constituted the attempt to kill one victim included the shots that killed the other victim and where the "separate and distinct acts" rationale for the imposition of consecutive sentences was inapplicable. (*People v Laureano*, 87 NY2d 640; *People v Parks*, 95 NY2d 811; *People v Rosas*, 8 NY3d 493; *United States v Pomranz*, 43 F3d 156; *People v Campbell*, 72 NY2d 602; *People v Naradzay*, 11 NY3d 460; *People v Dlugash*, 41 NY2d 725; *People v Ribowsky*, 77 NY2d 284; *People v Faulkner*, 36 AD3d 951; *People v Parton*, 26 AD3d 868.)

Charles J. Hynes, District Attorney, Brooklyn (Keith Dolan and Leonard Joblove of counsel), for respondent. I. Defendant received effective assistance of counsel. (*Strickland v*

Washington, 466 US 668; *People v Baldi*, 54 NY2d 137; *Bierenbaum v Graham*, 607 F3d 36; *Williams v Taylor*, 529 US 362; *People v Turner*, 5 NY3d 476; *People v Baker*, 14 NY3d 266; *People v Caban*, 5 NY3d 143; *Greiner v Wells*, 417 F3d 305, *cert denied sub nom. Wells v Ercole*, 546 US 1184; *People v Henry*, 95 NY2d 563; *Rosario v Ercole*, 601 F3d 118.) II. The imposition of consecutive sentences was lawful because separate and distinct acts underlay each of the two crimes, and the acts constituting each crime were not material elements of the other crime. (*People v Laureano*, 87 NY2d 640; *People v Azaz*, 10 NY3d 873; *People v Brown*, 80 NY2d 361; *People v Di Lapo*, 14 NY2d 170; *People v Ramirez*, 89 NY2d 444; *People v Rosas*, 8 NY3d 493; *People v Day*, 73 NY2d 208; *People v Brathwaite*, 63 NY2d 839; *People v Bonilla*, 57 AD3d 400; *People v Arroyo*, 93 NY2d 990.)

OPINION OF THE COURT

READ, J.

On the evening of Friday, September 16, 2005, at the end of his workweek, William Smith played cards with Eric Lamotte, his friend of 15 years, and other friends and neighbors until the early morning hours of September 17, 2005. The card game took place out-of-doors, near the middle of Gates Avenue between Throop and Tompkins Avenues in Brooklyn, where Smith resided with his mother in a second-floor apartment. Lamotte was staying with the Smiths at the time. At about 4:30 A.M., a half hour or so after Smith and Lamotte broke away from the card game, they were standing in front of the building where Smith lived when an acquaintance, Maurice Lingard, joined them. Seeing two men round the corner and advance on the three of them with guns in hand, Lamotte urged Smith, “Let’s move, let’s go upstairs.”

The two gunmen—Curtis Brown and defendant Ulysess McKnight—fired what the police later determined to be a total of five 9 millimeter and five .45 caliber rounds in the direction of Lingard, the object of their rage. Lamotte fled upstairs to the roof of the building and escaped injury; Lingard, shot three times, followed close behind Lamotte and survived; but Smith, struck in the chest and left calf by bullets that lodged in his body, collapsed in the street and died in the hospital a few hours later.¹ Police officers arrived within minutes and spotted Brown and McKnight leaving the area. After a short pursuit, Brown

1. At McKnight’s trial, the People’s ballistics expert testified that he could not determine, within a reasonable degree of scientific certainty, the caliber of

(n. cont’d)

was caught, while McKnight was not apprehended for several months. Neither of the guns used in the shooting was ever recovered.

McKnight was indicted and tried for various crimes as a result of this incident. A jury subsequently found him guilty of murder and attempted murder in the second degree (Penal Law § 125.25 [1]; § 110.00), based on allegations that, acting in concert with Brown,² he intended and engaged in conduct to cause Lingard's death, and he caused Smith's death. Supreme Court sentenced McKnight to 25 years to life for the murder, and 25 years to life for the attempted murder, subsequently reduced to 20 years plus five years of postrelease supervision; and ordered the sentences to run consecutively for an aggregate prison term of 45 years to life.

McKnight appealed, protesting that Penal Law § 70.25 (2) mandated concurrent sentences for his convictions for attempted murder and murder. The Appellate Division rejected this claim without discussion (72 AD3d 846, 847 [2d Dept 2010]), citing *People v Bonilla* (57 AD3d 400 [1st Dept 2008, Lippman, P.J., on the panel]) and *People v Brathwaite* (63 NY2d 839 [1984] [although defendant's two felony-murder convictions arose from a single transaction, an armed robbery, the separate acts of shooting each victim constituted the offenses and neither act was a material element of the other]).

In *Bonilla*, the defendant fired at least five shots during a neighborhood picnic on Labor Day in a New York City park, killing a 10-year-old girl standing near the intended victim, who survived. The defendant was convicted of both murder and attempted murder in the second degree, and the trial judge

either of the bullets that hit Smith because of their condition. He also testified that, based on his training and experience, the weight of the bullet that struck Smith in the chest was consistent with a 9 millimeter round, while the weight and "twists" of the bullet that struck him in the left calf were consistent with a .45 caliber round. The medical examiner who performed Smith's autopsy testified to a reasonable degree of scientific and medical certainty that the cause of his death was "gunshot wounds of the chest and leg with perforation of the lung and trachea."

2. Brown was tried jointly with McKnight, but before a separate jury. He was convicted of murder and attempted murder in the second degree and criminal possession of a weapon in the second degree (former Penal Law § 265.03 [2]), and sentenced to consecutive terms of imprisonment of 25 years to life for murder and 15 years for attempted murder, to run concurrently to a term of imprisonment of 10 years for weapon possession. The Appellate Division affirmed Brown's judgment of conviction (*People v Brown*, 60 AD3d 962 [2d Dept 2009], *lv denied* 12 NY3d 913 [2009]).

sentenced him to consecutive terms of 25 years to life imprisonment and 25 years, respectively, for an aggregate prison term of 50 years to life. The defendant—like McKnight—argued that the shot that caused the death was part of a multiple-shot actus reus underlying attempted murder and, as a result, he was not eligible to be sentenced consecutively for attempted murder and transferred-intent murder.

The Appellate Division disagreed on the ground that the shot that killed the child and the shots that wounded the intended victim were “separate and distinct acts” even though “defendant’s intent with respect to each act was to kill the surviving victim” (*id.* at 401). The court added that “[n]othing in the [trial judge’s] instructions on transferred intent required concurrent sentences” (*id.* at 401-402).³ The Appellate Division concluded likewise in this case. A Judge of this Court granted McKnight leave to appeal (15 NY3d 753 [2010]), and we now affirm.

Section 70.25 of the Penal Law sets out the rules governing when a judge may or must impose a sentence of imprisonment concurrently or consecutively to another sentence imposed at the same time. As a general rule, a judge is authorized to direct that multiple sentences “shall run either concurrently or consecutively with respect to each other” (Penal Law § 70.25 [1]), except that

“[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently” (Penal Law § 70.25 [2]).

“Thus, sentences imposed for two or more offenses may not run consecutively: (1) where a single act constitutes two offenses, or (2) where a single act constitutes one of the offenses and a material element of the other” (*People v Laureano*, 87 NY2d 640, 643 [1996]).

3. According to Bonilla’s attorneys, the trial judge included the standard “transferred intent” paragraph in his second-degree murder charge, instructing that “it is not required that the person who actually dies be the same person whose death was intended to be caused.” In this case, the trial judge tracked the CJI verbatim, telling the jury that “[u]nder our law it is not required that the person who dies be the same person whose death was intended to be caused” (*see* CJI2d[NY] Penal Law § 125.25 [1]).

In deciding whether section 70.25 (2) mandates concurrent sentences, “the sentencing court must first examine the statutory definitions of the crimes for which defendant has been convicted” (*id.*). Based on the statutory definitions, the judge must then focus on the “act or omission”—i.e., the *actus reus*—that makes up each crime. The Penal Law defines an “act” as a “bodily movement” (Penal Law § 15.00 [1]), which we have interpreted to mean the *actus reus* or “wrongful deed that comprises the physical components of a crime and that generally must be coupled with *mens rea* to establish criminal liability” (*People v Rosas*, 8 NY3d 493, 496 n 2 [2007] [citation omitted]; *see also Laureano*, 87 NY2d at 643).

If the act or omission is the same for both offenses (under the first prong of section 70.25 [2]), or if the act or omission that constitutes one offense is a material element of another offense (under the second prong of section 70.25 [2]), then consecutive sentences may not be imposed. Conversely, a judge possesses discretionary consecutive sentencing authority if neither circumstance exists. And even “[i]f the statutory elements *do overlap* under either prong of [section 70.25 (2)], the People may yet establish the legality of consecutive sentencing by showing that the ‘acts or omissions’ committed by defendant were separate and distinct acts” (*Laureano*, 87 NY2d at 643 [emphasis added]; *see also People v Azaz*, 10 NY3d 873, 875 [2008] [“(T)rial courts retain consecutive sentence discretion when separate offenses are committed through separate acts, though they are part of a single transaction” (quoting *People v Brown*, 80 NY2d 361, 364 [1992])]; *People v Ramirez*, 89 NY2d 444, 451 [1996] [“(C)onsecutive sentences may be imposed when either the elements of the crimes do not overlap(,) or if the facts demonstrate that the defendant’s acts underlying the crimes are separate and distinct”]).

As relevant here, a person is guilty of murder in the second degree when, “[w]ith intent to cause the death of another person, he causes the death of such person or of a third person” (Penal Law § 125.25 [1]). A person is guilty of attempted murder in the second degree when “with intent to commit” that crime “he engages in conduct which tends to effect the commission of such crime” (Penal Law §§ 110.00, 125.25 [1]). The *actus reus* of the murder of Smith was the firing of the two shots that “cause[d] the death of . . . a third person [i.e., Smith]”; and the *actus reus* of the attempted murder of Lingard was the firing of the eight other shots, which either hit no one or hit Lingard

and “tend[ed] to effect” his death. All 10 shots were discharged with the intent to cause Lingard’s death, but “ [t]he test is not whether the criminal intent is one and the same and inspiring the whole transaction, but whether separate acts have been committed with the requisite criminal intent’ ” (*People v Frazier*, 16 NY3d 36, 41 [2010] [decided today], quoting *People v Day*, 73 NY2d 208, 212 [1989]). Thus, the actus reus of Smith’s murder is not the same as the actus reus underlying Lingard’s attempted murder under the first prong; and, under the second prong, the actus reus of Smith’s murder is not a material element of the actus reus of Lingard’s attempted murder because more than the two shots that struck Smith were fired at Lingard. If it were otherwise—if the two shots that hit Smith were the only shots fired at Lingard—we would agree that concurrent sentencing was mandated (*see e.g. People v Battles*, 16 NY3d 54, 59 [2010] [decided today] [consecutive terms of imprisonment were permissible for crimes committed against three victims who were individually doused with gasoline by defendant, but sentence imposed with respect to fourth victim, who was sprayed as a result of dousing of others, must run concurrently]).

McKnight argues that “the *actus reus* of each offense was the same [because] . . . by relying on the transferred intent theory, the People implicitly conceded that all [10] shots were fired with the intent to kill Lingard.” Further, “based on the court’s charge, the prosecutor’s summation, and the absence of other evidence of [McKnight’s] intent, the jury likely concluded that the attempt was founded on all the fired shots,” citing *People v Parks* (95 NY2d 811, 814-815 [2000]). Thus, he reasons, “[t]he shots that killed Smith . . . were part of the *actus reus* of the attempt.” But even assuming that McKnight is correct and the actus rei for the two crimes overlapped, the People clearly established through the testimony of the ballistics expert and the medical examiner that two shots struck and killed Smith. These shots were the result of “separate and distinct acts” of pulling a trigger to discharge a firearm (*see Laureano*, 87 NY2d at 643). There is no authority to support the notion that where an actus reus consists of repetitive discrete acts, such as successive shots, that these acts somehow merge such that they lose their individual character where the same criminal intent (here, the intent to kill Lingard) “inspir[es] the whole transaction” (*see Frazier*, 16 NY3d at 41).

And this is not a case like *Parks*, which stands for the proposition that when more than one felony could be the predicate of a felony murder conviction, the jury's verdict must establish which felony, in fact, serves as the predicate because otherwise it would be "impossible to tell which [felony] is a separate and distinct act from the felony murder" so as to justify consecutive sentencing (95 NY2d at 815). There is no question here that the jury convicted McKnight of murder because of the two shots that hit Smith. Further, this case is also distinguishable from *Rosas*, where the statute itself defined the actus reus for the crime to encompass the death of two people.

Finally, the dissent likens the circumstances here to our case law on possessory offenses (dissenting op at 52-53). But possession with criminal intent is complete once the defendant has dominion and control of a weapon; there are no more acts he can take to advance that offense. Attempt, at least on these facts, is a continuing series of bodily movements or acts: each individual shot was sufficient in and of itself to constitute the attempted murder of Lingard, and defendant could (and did) take more and more shots to carry out that crime. Further, the dissent complains that "[e]ven though several shots were fired, defendant was charged with one count of attempted murder—not separate attempts for each individual shot. Rather, all 10 shots were treated as a single, unified attempt" (dissenting op at 52-53). But section 70.25 deals with sentencing, not charging. The trial judge's sentencing authority is not constrained by the People's decision to aggregate bodily movements for purposes of charging.

Essentially, the dissent would have us create a special rule of sentencing to govern attempt, or at least every case where an attempted murder carried out by multiple acts results in the death of someone other than the intended victim. The First Department in *Bonilla* and the Second Department in this case declined entreaties to place such a gloss on the statute. We likewise see no reason to interpret section 70.25 (2) to limit the trial judge's sentencing discretion in this fashion.

We have considered defendant's remaining contentions and consider them to be without merit. Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (dissenting in part). In this case, the actus reus of the attempted murder encompasses the entire actus reus of the murder. Since the two offenses were committed

through the same act within the meaning of Penal Law § 70.25 (2), concurrent sentences are required. Therefore, we respectfully dissent from the portion of the order affirming the imposition of consecutive sentences.

Defendant and codefendant each fired five shots in an attempt to murder Maurice Lingard. William Smith, an innocent bystander, was killed in the process and his murder was prosecuted on a theory of transferred intent—that bullets intended for Lingard actually struck and killed Smith. Under these circumstances, the two shots that caused Smith’s death were inseparable from the 10 shots constituting the attempt on Lingard’s life.

We do not minimize the seriousness of defendant’s conduct, which resulted in the death of Smith. However, the doctrine of transferred intent has effectively served to allow the State to impose a term of 25 years to life on defendant. We are here confronted with the different issue of the legality of a sentence consecutive to the life term.

Under the Penal Law, concurrent sentences are mandatory when two offenses are committed through a single act, or through an act which constitutes one offense and is also a material element of the second (*see* Penal Law § 70.25 [2]). The Penal Law further defines an “act” as “a bodily movement” (Penal Law § 15.00 [1]), which we have interpreted to mean the *actus reus* of the offense (*see People v Laureano*, 87 NY2d 640, 643 [1996]). As we have held, a single “act” within the meaning of section 70.25 (2) can be perpetrated by multiple bodily movements (*see People v Rosas*, 8 NY3d 493, 499 [2007]).

Where the statutory elements of the offenses overlap, consecutive sentences can still be imposed if the “offenses are committed through separate and distinct acts, though they are part of a single transaction” (*People v Ramirez*, 89 NY2d 444, 451 [1996]; *see also People v Frazier*, 16 NY3d 36 [2010] [decided today]). In other words, “consecutive sentences may be imposed when either the elements of the crimes do not overlap or if the facts demonstrate that the defendant’s acts underlying the crimes are separate and distinct” (*Ramirez*, 89 NY2d at 451). The burden of establishing that consecutive sentences are available is on the People (*see People v Taveras*, 12 NY3d 21, 25 [2009]).

There is more than mere overlap between these two offenses, as depicted by the majority; there is an element of identity.

Even though several shots were fired, defendant was charged with one count of attempted murder—not separate attempts for each individual shot. Rather, all 10 shots were treated as a single, unified attempt. And it is plain that they were correctly so treated. The majority suggests that this was merely a decision made by the People “for purposes of charging” (majority op at 50), but the implication that the People could have chosen otherwise—that defendant could have been charged with and convicted of 10 attempts, and given 10 consecutive sentences as a result—seems self-evidently wrong. There was only one attempt, and the actus reus of that attempt consisted of every shot fired in the effort to take Lingard’s life, including the two shots that struck Smith. Stated differently, no shot was fired that was not part of the attempted murder of Lingard.

To reach the conclusion that consecutive sentences are permissible here, the majority finds that the actus reus of the murder is separable from the acts, or bodily movements, that constituted the attempted murder. To that end, the majority asserts that the two shots that killed Smith “were the result of ‘separate and distinct acts’ of pulling a trigger to discharge a firearm” (majority op at 49, quoting *Laureano*, 87 NY2d at 643). But the majority’s separation of the shots—or the trigger-pulling acts—into groups of eight and two is arbitrary. The majority analyzes the case as if defendant had been convicted of the assault, rather than the attempted murder, of Lingard. Were that the case, it might be true that the actus reus of the assault against Lingard could be limited to the specific shots that hit the victim (see *People v Brathwaite*, 63 NY2d 839, 843 [1984]). Since assault is a crime defined by a result, there would be a basis for treating the acts that produced that result as a separate actus reus. But the crime of attempt is not defined by a result, and in such a case a series of bodily movements, accompanied by a single continuous intent, is one actus reus only. With regard to the actual convictions of murder and attempted murder, there were not separate actus rei, even though each offense consisted of several distinct bodily movements. Further, there is no indication that the attempt on Lingard’s life came to an end before Smith was shot. Thus, the People have not met their burden of establishing that the convictions were based on separate and distinct acts (see *Ramirez*, 89 NY2d at 453).

Our case law on possessory offenses is instructive. In *People v Salcedo* (92 NY2d 1019, 1022 [1998]), we determined that the crime of criminal possession of a weapon in the second degree was “complete” once the defendant possessed a loaded gun

intending to use it unlawfully against another. We observed that a “ ‘subsequently formed intent while possessing the weapon result[s] in the commission of a second offense’ ” (*Salcedo*, 92 NY2d at 1022, quoting *People v Okafore*, 72 NY2d 81, 83 [1988]). Similarly, we explained in *Okafore* that second-degree weapon possession “spans only the period during which defendant possesses the weapon and harbors the unlawful intent to use it against another” and, “[i]f either element lapses, the crime is complete” (72 NY2d at 87). Under the circumstances presented here, however, the actus reus of the attempted murder was continuous in nature, such that it can only be concluded that the offense was complete when the last shot was fired. Defendant intended to kill only one individual and the acts he committed in furtherance of that intent were all committed for the purpose of attaining that end. Although two of the bullets struck and killed Smith, that does not alter the fact that they were fired as part of an attempt to kill Lingard.

Finally, despite the similarities this case bears to *People v Battles* (16 NY3d 54 [2010] [decided today]), the majority here reaches a different result. In *Battles*, we found a concurrent sentence appropriate where one of the victims was sprayed with gasoline while the others were being doused individually. We held that “the risk-creating conduct [the actus reus of depraved indifference assault] . . . was the same act as that of the others and running his sentence concurrently is required” (16 NY3d at 59). Here, the shots that hit Smith were part of the attempted murder of Lingard, and concurrent sentences must also be imposed. The disparate result reached by the majority here can only cause analytic confusion amongst bench and bar.

JONES, J. (dissenting in part). I agree with Chief Judge Lippman that the two offenses were committed through the same act and that concurrent sentences must be imposed. I do not join Chief Judge Lippman’s discussion of *People v Battles* (16 NY3d 54 [2010] [decided today]).

Judges CIPARICK, GRAFFEO and PIGOTT concur with Judge READ; Chief Judge LIPPMAN dissents in part in a separate opinion in which Judge SMITH concurs; Judge JONES dissents in part in another opinion.

Order affirmed.

[942 NE2d 1026, 917 NYS2d 601]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN
BATTLES, Appellant.

Argued November 15, 2010; decided December 14, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 15, 2009. The Appellate Division modified, on the law, a judgment of the Supreme Court, Kings County (Abraham G. Gerges, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, manslaughter in the second degree, and assault in the first degree (three counts), and sentenced defendant as a persistent felony offender to concurrent terms of 25 years to life on the murder and manslaughter convictions, to be followed by consecutive terms of 25 years to life on two of the assault convictions, and a consecutive term of 20 years to life on the other assault conviction. The modification consisted of vacating the conviction for manslaughter in the second degree and the sentence imposed thereon, and dismissing that count of the indictment. The Appellate Division affirmed the judgment as modified.

People v Battles, 65 AD3d 1161, modified.

HEADNOTES

Crimes — Sentence — Concurrent and Consecutive Terms — Depraved Indifference Crimes

1. In a prosecution for murder and assault arising out of an incident in which defendant doused his victims with gasoline and a fire broke out, killing one person and severely injuring three others, the imposition of consecutive sentences was permissible with respect to the victim who died and two of the severely injured victims because separate acts constituted the actus reus of each depraved indifference crime against those victims. Defendant's acts of soaking each victim with gasoline in a room where other people were present, and where one of them was smoking a lit cigarette, were so inherently dangerous to each victim that defendant was properly found guilty of depraved indifference murder and depraved indifference assault based on those acts alone, irrespective of whether the jury found that defendant was the one who ignited the fire. Because defendant engaged in conduct which created a grave risk of death or serious physical injury to each of those victims, by separate and distinct acts of dousing them with gasoline, consecutive sentences were authorized under Penal Law § 70.25 (2).

Crimes — Sentence — Concurrent and Consecutive Terms — Actus Reus

2. In a prosecution arising out of an incident in which a fire broke out after defendant doused certain victims with gasoline, the sentence imposed for the

depraved indifference assault of one surviving victim must run concurrent to the sentences for the depraved indifference murder and assault imposed with respect to the other victims, since that victim was never doused with gasoline, but rather, was sprayed as a result of the dousing of the others. The risk-creating conduct for his conviction was the same act as that of the other victims, and his sentence must run concurrently (*see* Penal Law § 70.25 [2]).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 833, 835; AM JUR 2d, Homicide § 88.

CARMODY-WAIT 2d, Sentencing Procedures § 203:6.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 26.3.

McKINNEY's, Penal Law § 70.25 (2).

NY JUR 2d, Criminal Law: Procedure §§ 3152, 3153, 3158;

NY JUR 2d, Criminal Law: Substantive Principles and Offenses § 512.

ANNOTATION REFERENCE

See ALR Index under Concurrent and Consecutive Sentences; Homicide.

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Query: consecutive /2 sentence /s separate /2 act /p
depraved /2 indifference

POINTS OF COUNSEL

Calvin Battles, appellant pro se. I. Appellant was denied his due process right to a fair trial when nisi prius court failed to follow the mandate of CPL 310.50. (*People v Salemmo*, 38 NY2d 357; *People v Tucker*, 55 NY2d 1; *People v Worthy*, 178 AD2d 454.) II. Appellant was denied his due process right to a fair trial when the prosecutor allowed its witness to testify falsely about material issues in the case and failed to correct this false and misleading testimony. (*People v Pelchat*, 62 NY2d 97; *Mooney v Holohan*, 294 US 103; *People v Steadman*, 82 NY2d 1; *People v Savvides*, 1 NY2d 554.) III. Appellant was denied his constitutional right to effective assistance of counsel when counsel failed to make a timely objection to the court's faulty misstatement of a witness's testimony or otherwise object to the court's erroneous rulings. (*Strickland v Washington*, 466 US 668; *People v Paul*, 212 AD2d 1020; *People v Yut Wai Tom*, 53 NY2d 44; *People v Cooper*, 96 AD2d 866; *People v Johnson*, 79 Misc 2d 880; *People*

v Feingold, 7 NY3d 288; *People v Payne*, 3 NY3d 266; *People v Wall*, 29 NY2d 863; *People v Suarez*, 6 NY3d 202; *People v Gallagher*, 69 NY2d 525.)

Legal Aid Society, New York City (*Svetlana M. Kornfeind*, *Steven Banks* and *Andrew C. Fine* of counsel), for appellant. I. The trial court's imposition of consecutive sentences was illegal under Penal Law § 70.25 (2), where appellant committed multiple offenses through his "single act" of starting a fire. (*People v Rosas*, 8 NY3d 493; *People v Ramirez*, 89 NY2d 444; *People v Snyder*, 241 NY 81; *People v Day*, 73 NY2d 208; *People v Underwood*, 52 NY2d 882; *People v Laureano*, 87 NY2d 640; *People v Ruiz*, 291 AD2d 418; *People v Lopez*, 262 AD2d 659; *People v Feingold*, 7 NY3d 288; *People v Kirkwood*, 165 AD2d 881.) II. In sentencing appellant as a discretionary persistent felony offender to increased sentences on the assault counts, the court based its determination on facts other than recidivism by a mere preponderance of the evidence, thereby denying appellant his constitutional rights to due process and a jury trial. (*Apprendi v New Jersey*, 530 US 466; *Cunningham v California*, 549 US 270; *United States v Booker*, 543 US 220; *Blakely v Washington*, 542 US 296; *Ring v Arizona*, 536 US 584; *People v Quinones*, 12 NY3d 116; *People v Daniels*, 5 NY3d 738; *People v Rivera*, 5 NY3d 61; *People v Rosen*, 96 NY2d 329.)

Charles J. Hynes, *District Attorney*, Brooklyn (*Solomon Neubort* and *Leonard Joblove* of counsel), for respondent. I. The imposition of consecutive sentences was proper because separate and distinct acts underlay each of the crimes and the acts constituting each crime were not material elements of any of the other crimes. (*People v Laureano*, 87 NY2d 640; *People v Brown*, 80 NY2d 361; *People v Di Lapo*, 14 NY2d 170; *People v Ramirez*, 89 NY2d 444; *People v Rosas*, 8 NY3d 493; *People v Day*, 73 NY2d 208; *People v Ford*, 11 NY3d 875; *People v Sala*, 95 NY2d 254; *People v Dekle*, 56 NY2d 835; *People v Hernandez*, 82 NY2d 309.) II. Defendant's challenge to the constitutionality of his sentencing as a discretionary persistent felony offender is unpreserved and meritless. (*Apprendi v New Jersey*, 530 US 466; *People v Rosen*, 96 NY2d 329, 534 US 899; *People v Rivera*, 9 NY3d 904; *Brown v Greiner*, 409 F3d 523; *Brown v Miller*, 451 F3d 54, 549 US 1120; *Estelle v McGuire*, 502 US 62; *Almendarez-Torres v United States*, 523 US 224; *Cunningham v California*, 549 US 270; *Blakely v Washington*, 542 US 296; *People v Quinones*, 12 NY3d 116.)

OPINION OF THE COURT

PIGOTT, J.

One person was burned to death and three others severely burned as a result of defendant's pouring gasoline over several individuals and setting a fire. The primary issue before us is whether, under the facts of this case, following defendant's conviction, the court's sentencing of defendant to consecutive terms of imprisonment was proper. A review of the evidence presented at trial is necessary.

On July 8, 2004 and into the early next morning, several people, including Gregory Davis, Ronald Davis, and Stephen Wheeler, were at Arthur Elliott's apartment, a known crack cocaine den. Defendant Calvin Battles arrived, and at some point got into an argument with Ronald Davis. Defendant left, but later returned, threatening to burn the place. Then using a gasoline can that had been retrieved from his truck, defendant, lighter in hand, began splashing gasoline throughout the apartment. Defendant pushed Ronald Davis to the floor and doused him with gasoline. He then poured gasoline over Gregory Davis's head. After exchanging words with Elliott, defendant threw gasoline on him as well.

As defendant attempted to ignite the lighter, Elliott pushed defendant, who was in the doorway, out of the apartment. Defendant and Elliott scuffled and a fire broke out. The lower part of Elliott's body burst into flames as he fell back into the apartment, igniting the entire living room. As a result, Ronald Davis was burned to death and Gregory Davis, Stephen Wheeler and Arthur Elliott sustained severe burns.

After a jury trial, defendant was convicted of depraved indifference murder (Penal Law § 125.25 [2]), second-degree manslaughter (Penal Law § 125.15 [1]), and three counts of depraved indifference assault (Penal Law § 120.10 [3]). He was sentenced as a persistent felony offender to concurrent sentences of 25 years to life on the depraved indifference murder and manslaughter convictions, to be followed by consecutive terms of 25 years to life on the depraved indifference assault convictions related to Gregory Davis and Wheeler, and a consecutive term of 20 years to life on the depraved indifference assault conviction related to Elliott, for an aggregate sentence of 95 years to life.

Defendant appealed, asserting, among other claims, that the imposition of consecutive sentences was illegal because the victims were all burned in a fire that had a single source of

ignition, and that his sentencing as a persistent felony offender was unconstitutional under *Apprendi v New Jersey* (530 US 466 [2000]).

The Appellate Division modified the judgment by vacating the conviction of second-degree manslaughter (*see* Penal Law § 125.15 [1]) and the sentence imposed thereon, and otherwise affirmed (65 AD3d 1161 [2d Dept 2009]). As relevant to this appeal, the court held that defendant's *Apprendi* claim was unpreserved and without merit (*id.* at 1162). The court further rejected, without discussion, defendant's consecutive sentencing claim as without merit (*id.*).

A Judge of this Court granted leave to appeal (13 NY3d 905 [2009]) and we now modify.

Defendant contends that the consecutive sentences for the depraved indifference murder and depraved indifference assault counts are illegal under Penal Law § 70.25 (2) because those crimes shared a common actus reus—defendant's single act of starting the fire.

Penal Law § 70.25 requires that concurrent sentences be imposed “for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other” (Penal Law § 70.25 [2]). To determine whether consecutive sentences are permitted, a court must first look to the statutory definitions of the crimes at issue (*People v Frazier*, 16 NY3d 36 [2010] [decided today]).

Here, the inquiry begins with the depraved indifference murder statute, which requires proof that “under circumstances evincing a depraved indifference to human life, [the defendant] recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes the death of another person” (Penal Law § 125.25 [2]). The statutory definition of depraved indifference assault (Penal Law § 120.10 [3]) differs from that of depraved indifference murder only in the result created by defendant's conduct: serious physical injury to another.

[1] The imposition of consecutive sentences was permissible in this case with respect to Ronald Davis, Gregory Davis and Elliott because separate acts constituted the actus reus of each of the depraved indifference crimes against those victims. Specifically, the trial judge instructed the jurors that they could find defendant acted with depraved indifference to human life

irrespective of whether they were to find that defendant was the one who ignited the fire. Defendant's acts of soaking each victim with gasoline in a room where other people were present, and where one of them (Elliott) was smoking a lit cigarette, were so inherently dangerous to each victim that defendant was found guilty of depraved indifference murder and depraved indifference assault based on those acts alone. A determination of the cause of the ignition of the fire was unnecessary to the determination of defendant's guilt with respect to those depraved indifference counts, and thus, defendant's argument that the actus reus for all of those crimes was the ignition of the fire fails. Because defendant engaged in conduct which created a grave risk of death or serious physical injury to each of those victims, by separate and distinct acts of dousing them with gasoline, imposition of consecutive sentences was authorized under the Penal Law.

[2] We conclude, however, that the sentence imposed pertaining to Wheeler must run concurrent to the other sentences. Wheeler was never doused with gasoline, but rather, was sprayed as a result of the dousing of the others. Thus, the risk-creating conduct for his conviction was the same act as that of the others and running his sentence concurrently is required.

Defendant's challenge to the constitutionality of his sentencing as a persistent felony offender and other claims raised in his pro se brief are without merit (*see People v Quinones*, 12 NY3d 116 [2009]; *see also People v Bell*, 15 NY3d 935 [2010] [decided today]).

Accordingly, the order of the Appellate Division should be modified and the case remitted to Supreme Court for further proceedings in accordance with this opinion and, as so modified, affirmed.

Chief Judge LIPPMAN (dissenting in part). Although at common law the right to a jury determination of all facts essential to punishment was jealously guarded (*see e.g. People ex rel. Cosgriff v Craig*, 195 NY 190 [1909]), more recent history in this and many other states has witnessed judicial acquiescence in legislative initiatives that effectively resituate fact-finding power necessary to the justification of punishment from the jury to judges. This transfer has been effected most frequently by statutes permitting the enhancement of otherwise prescribed sentences based on judicial findings, often by a mere preponderance, respecting a defendant's criminal history, the circum-

stances of the offense before the court, and what the statutorily relevant findings collectively portend respecting the risk posed by the defendant's eventual reintroduction to society. It was widely believed that these kinds of findings fell comfortably within the discretionary power judges have traditionally exercised in sentencing criminal defendants and that they neither diminished the fact-finding prerogative of the jury nor compromised the Sixth Amendment right to a jury trial. This perception we now know was wrong, indeed dramatically so. In *Apprendi v New Jersey* (530 US 466 [2000]) the Supreme Court held that "[i]t is unconstitutional for a legislature to remove from the jury the assessment of facts that increase the prescribed range of penalties to which a criminal defendant is exposed. It is equally clear that such facts must be established by proof beyond a reasonable doubt" (*id.* at 490 [internal quotation marks and citation omitted]). And, subsequently, in *Ring v Arizona* (536 US 584 [2002]), *Blakely v Washington* (542 US 296 [2004]) and *Cunningham v California* (549 US 270 [2007]), the Court made it unambiguously clear that judicial authority to impose punishment was constitutionally tied to and limited by the jury verdict and any admissions by defendant. In *Blakely*, the Court, citing *Ring*, stated emphatically, "[o]ur precedents make clear . . . that the 'statutory maximum' for *Apprendi* purposes is the maximum sentence a judge may impose *solely on the basis of the facts reflected in the jury verdict or admitted by the defendant*" (542 US at 303), and in *Cunningham* it reiterated that "[i]f the jury's verdict alone does not authorize the sentence, if, instead, the judge must find an additional fact *to impose* the longer term, the Sixth Amendment requirement is not satisfied" (549 US at 290 [emphasis added]).

The rule of *Apprendi* is not so much a limitation on the power of judges, but a reassertion of the prerogative constitutionally reserved to the jury to determine facts necessary to the imposition of punishment at a prescribed level. Only a single exception to this rule of constitutional power allocation has been recognized and that is the "narrow" one carved out in *Almendarez-Torres v United States* (523 US 224 [1998]), where judicially effected sentence enhancements based solely on proof of prior convictions were permitted (*see Apprendi*, 530 US at 490).

At issue here is the constitutional validity of sentence enhancements imposed pursuant to New York's statutes governing the sentencing of persistent felony offenders (CPL 400.20; Penal Law § 70.10). Enhanced sentencing under these provi-

sions is conditioned upon a jury verdict convicting a defendant of a felony *and* two judicial findings described in CPL 400.20 (1):

“Such sentence *may not be imposed unless, based upon evidence in the record* of a hearing held pursuant to this section, *the court* (a) has found that the defendant is a persistent felony offender as defined in subdivision one of section 70.10 of the penal law, *and (b) is of the opinion that the history and character of the defendant and the nature and circumstances of his criminal conduct are such that extended incarceration and lifetime supervision of the defendant are warranted to best serve the public interest*” (emphasis added).

Finding “a” must be made on proof beyond a reasonable doubt. Finding “b,” however, may under the statute rest on a mere preponderance of the evidence (CPL 400.20 [5]).

On its face, this provision raises *Apprendi* issues, since it appears to afford a judge power to impose an enhanced sentence based upon facts not found by the jury or within the *Almendarez-Torres* carve-out, and to make the findings upon which the statutory enhancement is evidently conditioned on less than proof beyond a reasonable doubt. The constitutionality of sentences imposed under this sentencing scheme has, not surprisingly, been a practically constant subject of litigation since *Apprendi*.

In *People v Rosen* (96 NY2d 329 [2001], *cert denied* 534 US 899 [2001]), and subsequently in more extended form in *People v Rivera* (5 NY3d 61 [2005], *cert denied* 546 US 984 [2005]) and *People v Quinones* (12 NY3d 116 [2009], *cert denied* 558 US —, 130 S Ct 104 [2009]), we upheld judicially enhanced, persistent felony offender sentences upon the following reasoning: a defendant’s status as a persistent felony offender is determined solely on the basis of his or her prior convictions (*see* Penal Law § 70.10 [1] [a]), the fact of which, pursuant to *Almendarez-Torres*, may be proved in a non-jury proceeding; that status having been permissibly established by a judge, the defendant, without more, is “subject to” or “eligible for” enhanced sentencing, with the final determination as to whether he or she should be sentenced within the now available enhanced sentencing range depending upon the discretion of the sentencing judge exercised in accordance with the criteria set forth in subsection (b) of CPL 400.20 (1) (*supra*). We characterized this mandatory

exercise of discretion (*see* CPL 400.20 [9]) as nothing more remarkable than the setting of a sentence within a permissible range based on traditionally considered sentencing factors.

This rationale has, in turn, been the focus of extensive federal habeas litigation. In March of this year a unanimous panel of the Second Circuit found that its persistence was unreasonable subsequent to the Supreme Court's decision in *Blakely*, and, accordingly, that our decisions in *Rivera* and *Quinones* misapplied clearly established Supreme Court precedent (*Besser v Walsh*, 601 F3d 163 [2010]). *Besser*, however, was shortlived. After en banc reconsideration, it was vacated by the Second Circuit in a divided ruling (*Portalatin v Graham*, 624 F3d 69 [2010]). *Portalatin*, though, hardly places a federal imprimatur upon our *Apprendi* jurisprudence. It was decided under the extraordinarily deferential review standard applicable in federal habeas proceedings pursuant to the Antiterrorism and Effective Death Penalty Act (AEDPA) of 1996 (Pub L 104-132, 110 US Stat 1214) and, accordingly, was issued with the remarkable AEDPA caveat,

“ ‘we decide not whether the state court correctly interpreted the doctrine of federal law on which the claim is predicated, but rather whether the state court's interpretation was unreasonable in light of the holdings of the United States Supreme Court at the time.’ *Policano v. Herbert*, 507 F.3d 111, 115 (2d Cir.2007)” (*Portalatin*, 624 F3d at 79).

We agreed to hear the current round of appeals containing *Apprendi* issues subsequent to *Besser* but before *Portalatin*. And, while I think it safe to say that we would not have consented to revisit the *Apprendi* issues raised by New York's persistent felony offender sentencing scheme had we anticipated *Besser*'s vacatur, it seems to me that the question left undecided by *Portalatin*, namely, whether our interpretation of the controlling holdings of the United States Supreme Court has been correct, merits yet another close look. I do not believe that our persistent felony offender sentencing provisions can ultimately survive constitutional scrutiny and, practically, see nothing to be gained, and much to be lost, in clinging, during what will undoubtedly be further protracted litigation, to a legally flawed sentencing scheme whose entirely proper objectives are capable of being met without constitutional offense. Numerous states with similarly flawed sentencing provisions have taken the judicial and, presumably, the legislative measures necessary to

bring their sentencing statutes into agreement with *Apprendi* (see *State v Bell*, 283 Conn 748, 931 A2d 198 [2007]; *State v Lewis*, 590 A2d 149 [Me 1991]; *State v Foster*, 109 Ohio St 3d 1, 845 NE2d 470 [2006]; *State v Fairbanks*, 688 NW2d 333 [Minn Ct App 2004]; *State v Maugaotega*, 115 Haw 432, 168 P3d 562 [2007]; *State v Frawley*, 143 NM 7, 172 P3d 144 [2007]; *State v Gomez*, 239 SW3d 733 [Tenn 2007]; *State v Price*, 217 Ariz 182, 171 P3d 1223 [2007]). There is no reason why New York should not do so as well.

As Chief Judge Kaye and Judge Ciparick pointed out in their dissents in *Rivera*, *Rosen*'s attempt at harmonizing New York's persistent felony offender sentencing scheme with *Apprendi* was, at the time, at least arguably viable. *Walton v Arizona* (497 US 639 [1990]), although cast in doubt by *Apprendi*, had not yet been overruled, and *Walton* seemed to support the notion, essential to *Rosen*'s rationale, that a defendant's mere eligibility for an enhanced sentence was sufficient to vest a judge with authority to impose such a sentence, notwithstanding the need for a further judicial finding to actually permit the sentence. Once *Walton* was overruled by *Ring*, however, our ensuing cases, *Rivera* and *Quinones*, were deprived of essential support, for *Ring*, applying *Apprendi*, held that where a jury verdict was not itself sufficient to support the punishment—where the imposition of punishment could not go forward before some additional judicial finding was made—the punishment could not be constitutionally imposed (536 US at 602). This basic point—that the power of the judge to *impose* a particular sentence derives from and can be no greater than that afforded by the verdict (or the defendant's admissions)—was, as noted, forcefully reiterated in *Blakely* (542 US at 303) and *Cunningham* (549 US at 290) and, indeed, characterized in both decisions as a “bright line” rule.

Under the New York persistent felony offender sentencing scheme, it is obvious that, even after a defendant has been found a persistent felony offender by reason of a guilty verdict and *Almendarez-Torres*-sheltered judicial findings as to prior felony convictions, he or she still may not be given an enhanced, class A-I felony sentence. Regardless of whether the defendant is at that point theoretically eligible for or subject to enhanced sentencing, the actual power to impose such a sentence cannot be deemed to have accrued under *Apprendi* because the enhanced punishment is not statutorily authorized “solely on the basis of the facts reflected in the jury verdict or admitted

[or on the basis of prior convictions]”; it depends as well on the additional, not yet made discretionary findings as to the defendant’s history, character and the circumstances of the crime(s) expressly mandated by the statute (*see* CPL 400.20 [1], [9]). The statute is clear that, absent those findings, a defendant must be sentenced as a second felony offender (*see* CPL 400.20 [10]).

The task set the sentencing judge by the statute, then, is not, properly understood, one of exercising discretion to situate a sentence within an already permissible enhanced range; it is rather one of determining whether, after prior convictions have been taken into account, there exists a factual predicate to access the enhanced range and impose a sentence exceeding that which could be imposed based on the jury verdict and the defendant’s admissions alone. This judicial exercise, at once removing from the jury the power constitutionally reserved to it to assess facts that increase the prescribed range of penalties to which a defendant is exposed (*Apprendi*, 530 US at 490) and depriving the defendant of his right to a jury trial at which the prosecution must prove each and every element essential to justify the sentence beyond a reasonable doubt, lies squarely within *Apprendi*’s prohibition.

While this Court has characterized the discretionary findings described in CPL 400.20 (1) (b) as inessential to eligibility for enhanced sentencing (*Rivera*, 5 NY3d at 68), that is not a constitutionally significant gloss. It does not and cannot alter the essential constitutional defect in the statute, namely, that there is no reading of it under which the subsection (b) judicial determination—one clearly necessitating findings significantly more far-reaching than the recidivism findings already made pursuant to the statute’s subsection (a), and going well beyond the facts conceivably established by a verdict or admitted by the defendant—may be deemed dispensable to the actual *imposition* of an enhanced sentence.

Even if it were possible to imagine a case such as was hypothesized in *Rivera* (5 NY3d at 70-71), in which a persistent felony offender sentence was, in accordance with the statute, based solely on the verdict and *Almendarez-Torres*-sheltered findings—and, given the nature of the judicial “opinion” required by the statute this appears impossible—it would remain that the natural and nearly inevitable effect of this enactment is that judges, and not juries, are cast in the role of making factual findings upon which the imposition of a sentence in an enhanced range depends. It does not matter whether these

findings themselves require the sentence or whether, as the *Rivera* court seemed to find significant, they merely permit a sentence the basis for which has otherwise been established; in either case they are necessary to the enhancement's imposition and under *Apprendi* may not be constitutionally taken from the jury and committed to a judge (*Blakely*, 542 US at 305 n 8). Under *Apprendi*, "the relevant inquiry is not one of form, but of effect" (530 US at 494), and the effect of New York's persistent felony offender sentencing statutes, as distinguished from any abstract scenario of benign application, is that defendants are, in their ministration, regularly exposed to punishment greater than that which could be imposed upon the jury verdict, the defendant's admissions and prior convictions alone. It is to this real effect that our jurisprudence should respond.

This case provides a vivid example of impermissible judicial fact-finding in support of sentence enhancement. The jury acquitted defendant of two felony murder counts, evidently upon the finding that the underlying felony, arson, had not been established. And, indeed, the central issue at trial had been whether defendant actually set the fatal blaze or whether it started as an unintended consequence of a victim's cigarette coming into contact with a gasoline-doused surface. In the postverdict sentencing proceedings, however, the court, in the course of setting upon the record his findings in support of the enhanced sentences he was about to impose, stated: "The circumstances surrounding this case, I mean, let us think about this: Going in and pouring gasoline on a person, *lighting that gasoline*, killing and maiming these people, if that is not a heinous crime, I don't know what is" (emphasis added).

The judicial fact-finding in this case did not merely supplement the verdict, as ordinarily occurs in consequence of following the statute, it materially differed from, indeed conflicted with it. The court's crucial enhancement finding that defendant lit the gasoline was one that the jury specifically declined to make when it acquitted defendant on the arson-based counts. It is one thing for a court to make enhancement findings that add to the predicate supplied by the verdict, defendant admissions and prior convictions—that is objectionable enough under *Apprendi*—it is quite another when the court's findings essentially nullify a critical component of the verdict. Yet, under this statute that can happen because the judge is directed to form an "opinion" respecting "the nature and circumstances of [the defendant's] criminal conduct" and may, unlike the jury, do so

upon a mere preponderance of the evidence. Here, the transfer of essential fact-finding power from the jury to the judge has achieved undoubted perfection and is on numerous counts undoubtedly unconstitutional. It will suffice for present purposes to observe that this sort of fact-finding is absolutely antithetical to the Sixth Amendment guarantee of a jury trial and is, of course, quintessentially violative of *Apprendi*.

Inasmuch as it appears clear that defendant was unconstitutionally deprived of a jury determination of facts essential to justify his enhanced sentences, lack of preservation should not be deemed an impediment to our consideration of his *Apprendi*-based arguments. There can be no more pronounced a departure from the mode of proceedings prescribed by law than the denial of a criminal defendant's right to have each and every element necessary to imposition of the authorized punishment proved to a jury beyond a reasonable doubt. The rules of preservation are not legitimately interposed to avoid such a fundamental claim (see *People v Patterson*, 39 NY2d 288, 295 [1976], *affd* 432 US 197 [1977]), and our cases, fairly construed, have not so held. We have held that the challenged sentencing scheme does not involve an *Apprendi* violation, we have not held that a meritorious *Apprendi* claim would be unreviewable for lack of preservation.

The Supreme Court in *Cunningham* had occasion to describe the rationale offered by the California Supreme Court in *People v Black* (35 Cal 4th 1238, 113 P3d 534 [2005]) in justification of the fact-finding role assigned the judge by the California Legislature under the Determinate Sentencing Law (DSL):

“In that court's view, the DSL survived examination under our precedent intact. See 35 Cal. 4th, at 1254-1261, 113 P. 3d, at 543-548. The *Black* court acknowledged that California's system appears on surface inspection to be in tension with the rule of *Apprendi*. But in ‘operation and effect,’ the court said, the DSL ‘simply authorize[s] a sentencing court to engage in the type of factfinding that traditionally has been incident to the judge's selection of an appropriate sentence within a statutorily prescribed sentencing range.’ 35 Cal. 4th, at 1254, 113 P. 3d, at 543. Therefore, the court concluded, ‘the upper term is the “statutory maximum” and a trial court's imposition of an upper term sentence does not violate a defendant's right to a jury trial under the

principles set forth in Apprendi, Blakely, and Booker.
Ibid. . . .

“The Black court’s conclusion that the upper term, and not the middle term, qualifies as the relevant statutory maximum, rested on several considerations. First, *the court reasoned that, given the ample discretion afforded trial judges to identify aggravating facts warranting an upper term sentence, the DSL*

“ ‘does not represent a legislative effort to shift the proof of particular facts from elements of a crime (to be proved to a jury) to sentencing factors (to be decided by a judge). . . . Instead, it afforded the sentencing judge the discretion to decide, with the guidance of rules and statutes, whether the facts of the case and the history of the defendant justify the higher sentence. Such a system does not diminish the traditional power of the jury.’ *Id.*, at 1256, 113 P. 3d, at 544 (footnote omitted)” (549 US at 289-290 [emphasis added]).

To this now all too familiar account by a state high court of its justification for retaining, subsequent to *Apprendi*, a sentencing scheme reposing essential fact-finding power in a judge rather than a jury, the *Cunningham* court replied,

“We cautioned in *Blakely*, however, that broad discretion to decide what facts may support an enhanced sentence, or to determine whether an enhanced sentence is warranted in any particular case, does not shield a sentencing system from the force of our decisions. If the jury’s verdict alone does not authorize the sentence, if, instead, the judge must find an additional fact *to impose* the longer term, the Sixth Amendment requirement is not satisfied. 542 U.S., at 305, and n. 8” (549 US at 290 [emphasis added]).

There is for *Apprendi* purposes no material difference between the California DSL and our persistent felony offender sentencing statutes. Nor is there any significant difference in the reasoning in our cases and that offered by the California Supreme Court in *Black*. While perhaps through some jurisprudential fluke our sentencing scheme will ultimately be spared the fate of the California DSL, I do not think it prudent to count on it.

Accordingly, while I concur with the majority's modification, I dissent in part and would further modify the appealed order. Defendant is, in my view, entitled to the vacatur of his sentences on the first-degree assault counts and should be resentenced on those counts as a second felony offender.

JONES, J. (dissenting in part). Because I believe that defendant's sentences as to all four victims should be modified to run concurrently, I respectfully dissent.

In holding that consecutive sentences were authorized with respect to three of the victims "[b]ecause defendant engaged in conduct which created a grave risk of death or serious physical injury to each of those victims[] by separate and distinct acts of dousing them with gasoline" (majority op at 59), the majority focused on a small portion of the trial court's jury instruction applicable only to count 2 on the verdict sheet (i.e., the depraved indifference murder count). According to the majority, the trial court instructed the jurors that they could find defendant acted with depraved indifference to human life even if they did not find that defendant ignited the fire (*see id.*). Based on this instruction, the majority posited that

"[d]efendant's acts of soaking each victim with gasoline in a room where other people were present, and where one of them . . . was smoking a lit cigarette, were so inherently dangerous to each victim that defendant was found guilty of depraved indifference murder and depraved indifference assault based on those acts alone" (*id.* [emphasis added]).

I disagree. In my view, the majority's holding is contrary to our precedent interpreting the "act or omission" under Penal Law § 70.25 (2) as the actus reus of the particular criminal offense (*see People v Laureano*, 87 NY2d 640, 643 [1996]; *People v Rosas*, 8 NY3d 493, 496, 497 [2007]).¹ Specifically, the majority incorrectly upheld the imposition of consecutive sentences for depraved indifference murder and depraved indifference assault based on what amounts to separate acts of depraved indifference reckless endangerment.

Penal Law § 70.25 (2) provides that concurrent sentences must be imposed when two or more offenses are committed

1. Actus reus (Latin for "guilty act") is defined as "[t]he wrongful deed that comprises the physical components of a crime and that generally must be coupled with *mens rea* to establish criminal liability" (Black's Law Dictionary 41 [9th ed 2009]).

“through a single act or omission” or “through an act or omission which in itself constituted one of the offenses and also was a material element of the other.” In *People v Ramirez* (89 NY2d 444 [1996]), this Court explained that “[s]ection 70.25 (2) does not prohibit convictions of multiple offenses containing overlapping elements. Rather, the statute prohibits double punishment for an act or omission which violates more than one section of the law and is accordingly punishable in different ways” (89 NY2d at 451 n 5). To determine whether concurrent sentences are required, this Court instructed that

“[a] sentencing court must first examine the statutory definitions of the crimes for which defendant has been convicted. Because both prongs of Penal Law § 70.25 (2) refer to the ‘act or omission,’ that is, the ‘*actus reus*’ that constitutes the offense (see, Penal Law § 15.00 [1] [bodily movement]; Penal Law § 15.00 [3] [failure to act]), the court must determine whether the *actus reus* element is, by definition, the same for both offenses (under the first prong of the statute), or if the *actus reus* for one offense is, by definition, a material element of the second offense (under the second prong). If it is neither, then the People have satisfied their obligation of showing that concurrent sentences are not required. If the statutory elements do overlap under either prong of the statute, the People may yet establish the legality of consecutive sentencing by showing that the ‘acts or omissions’ committed by defendant were separate and distinct acts” (*Laureano*, 87 NY2d at 643 [case citations omitted]).

That is, when a defendant is convicted of multiple offenses, the sentencing court, in addition to reviewing the Penal Law provisions under which defendant was convicted, must review the relevant evidence adduced at trial and the trial court’s jury charge to determine whether any of the crimes for which defendant was convicted were single act offenses (for concurrent sentencing purposes).

Analysis must begin with the language of the depraved indifference murder and assault statutes. Under Penal Law § 125.25 (2),

“[a] person is guilty of murder in the second degree when . . . [u]nder circumstances evincing a depraved indifference to human life, he recklessly

engages in conduct which creates a grave risk of death to another person, and thereby [i.e., as a result of that conduct] causes the death of another person.”

The statutory definition of depraved indifference (first-degree) assault differs from depraved indifference murder only in the result caused by defendant’s conduct, i.e., “serious physical injury to another person” (Penal Law § 120.10 [3]). Examining these statutory definitions, the entire actus reus of depraved indifference murder is that defendant recklessly engaged in conduct which created a grave risk of death to Ronald Davis, *and as a result of that conduct caused the death of Ronald Davis*; while the entire actus reus of depraved indifference assault is that defendant recklessly engaged in conduct which created a grave risk of death to Elliott, Wheeler and Gregory Davis, *and as a result of that conduct caused serious physical injury to those three individuals*.

Although a consecutive sentence may be authorized “if the Legislature has seen fit to provide that up to a particular point the acts of the defendant constitute one crime and that the acts of the defendant, committed thereafter, constitute a second crime and that each series of acts constitut[e] a separate crime” (*Rosas*, 8 NY3d at 498 [citation and internal quotation marks omitted]), such a sentence is not permissible under these facts. Here, the same “single act” (i.e., the same actus reus) of causing the fire is the basis for defendant’s convictions of depraved indifference murder and depraved indifference assault.

In *People v Rosas*, this Court held that the sentences imposed on defendant, who was convicted of two counts of first-degree murder under Penal Law § 125.27 (1) (a) (vii) for causing the deaths of two individuals during the same criminal transaction, must be served concurrently. *Rosas* provides support for the proposition that the actus reus for a depraved indifference offense is the act in a series of risk-creating acts that is both necessary and sufficient to cause the result for which defendant will be held criminally liable (*see Rosas*, 8 NY3d at 499 [Regarding the statutory definition of “act” in Penal Law § 15.00 (1) (“a bodily movement”), the *Rosas* majority noted that the purpose of the statutory definition “draws a line between a prohibited ‘act’—‘a bodily movement,’ or actus reus—and a ‘(c)ulpable mental state’ (Penal Law § 15.00 [6])—a state of mind, or mens rea. The statute could not have been designed to require courts to distinguish between one and several bodily

movements, because the distinction will be difficult or impossible in many cases as the dissent recognizes”]; *Rosas*, 8 NY3d at 503 n 4 [The dissent noted, “for sentencing purposes, we need concern ourselves only with the particular act(s) that fulfill the act element(s) of the offense of which a defendant is charged. For example, to accomplish a second-degree intentional murder, a single act offense, a defendant necessarily engages in many bodily acts—but the only one the People must prove to support the conviction is the act that causes the victim’s death”]).

Here, causing the fire was the act defendant needed to perform in order to cause the criminal results of which he was convicted—the death of Ronald Davis and the serious burn injuries to Elliott, Wheeler and Gregory Davis. Accordingly, the only act the People had to prove to support the depraved indifference convictions was the act that caused Ronald Davis’ death and the other victims’ serious physical injuries—that is, defendant’s single act of igniting the fire. The acts that preceded defendant’s ignition of the fire—pouring, splashing, or throwing gasoline on the victims and around the room—while essential components of the risk-creating conduct, cannot be the basis of the sentencing determination under section 70.25 (2) because these acts were insufficient to complete the crimes of which he was convicted. In “actus reus” terms, these acts amount to conduct which created a grave risk of death; conduct which the People concede supports a conviction for depraved indifference reckless endangerment. Further, while the death and serious physical injuries sustained by the victims logically could have occurred in the absence of defendant’s separate acts of pouring, splashing, or throwing gasoline, they could not have occurred without defendant’s *single* act of causing the fire.

The fact that defendant was acquitted of two felony murder counts based on the jury’s finding that the underlying felony, arson in the second degree,² was not established by the People does not require a different conclusion. For purposes of determining whether concurrent or consecutive sentences were warranted for defendant’s convictions of the instant depraved

2. Penal Law § 150.15 provides:

“A person is guilty of arson in the second degree when he intentionally damages a building or motor vehicle by starting a fire, and when (a) another person who is not a participant in the crime is present in such building or motor vehicle at the time, and (b) the defendant knows that fact or the circumstances are such as to render the presence of such a person therein a reasonable possibility.”

indifference offenses, his *single* act of causing the fire need not have been an intentional act. The jury's finding that defendant was guilty of the depraved indifference counts was not dependent on whether defendant intentionally set the fire. Given the evidence that the fire ignited directly after defendant, with lighter in hand, pushed Elliott who fell back into the gasoline-soaked living room, it is reasonable to conclude the jury found that defendant recklessly caused the fire through an act of depraved indifference.³

The majority and People contend that consecutive sentencing was permissible because the jury, as charged, could have found that defendant's separate acts of dousing the victims with gasoline constituted the relevant "*acts*" for the depraved indifference crimes, regardless of whether the jury also found that defendant, through a single act, caused the fire. However, in order to justify consecutive sentencing based on separate and distinct acts, the People must identify "the facts which support their view" (see *Laureano*, 87 NY2d at 644 [citation omitted]). In establishing this claim, the People "may offer facts from the trial record" (*id.* [citation omitted]). Here, the People have not identified any such supporting facts. To the contrary, upon finding that defendant poured, splashed, or threw gasoline on Ronald Davis, Elliott, Wheeler and Gregory Davis, the jury also had to find that defendant's "act" *caused* Ronald Davis' burn-related death, and the serious burn injuries sustained by Elliott, Wheeler and Gregory Davis. Defendant's act which caused the fire—the pushing of Elliott to the floor—was the only causative "act" adduced at trial.

Further, the majority's and People's reliance on the stated jury instruction is problematic. First, this jury instruction should have been objected to by defendant's trial counsel because it allowed the jury to find defendant guilty of depraved indifference murder on proof of an act (i.e., the pouring or splashing of a flammable liquid) that only supports the crime of depraved indifference reckless endangerment. Second, this instruction, which only applied to the depraved indifference murder count, was not given for (and is therefore inapplicable to) the depraved indifference assault counts.

In addition, the jury was specifically instructed that in order to convict defendant of a charged offense, it must find that the

3. As we noted in *People v Feingold* (7 NY3d 288, 294 [2006]), "depraved indifference to human life[, like intent,] is a culpable mental state."

People proved each element of the particular criminal offense beyond a reasonable doubt. For example, the jury was instructed to find defendant not guilty of depraved indifference assault if the People failed to prove beyond a reasonable doubt that the defendant caused serious physical injury to Gregory Davis, Elliott and Wheeler. As stated, the only causative “act” adduced at trial was defendant’s single act of causing the fire. Thus, the trial court’s charge, when read as a whole, makes clear that defendant’s single act of causing the fire was not insignificant for purposes of holding defendant criminally liable (at least for the depraved indifference assault counts). Based on the foregoing, the argument put forth by the majority and People that each of the depraved indifference assault counts was complete as soon as defendant doused the respective victims with gas necessarily fails.

Under the majority’s theory, sentencing judges would be allowed to select and designate specific preliminary acts as the operative actus reus in depraved indifference crimes so as to thwart the requirement of concurrent sentencing for a “single act” and permit consecutive sentencing. Not only would this be contrary to this Court’s long-settled interpretation of section 70.25 (2) and violative of the legislative intent of the statute, it would create uncertainty in the law because application of section 70.25 (2) would depend on the depravity of defendant in committing certain preliminary acts.

Accordingly, the People failed to meet their burden of establishing the legality of the consecutive sentences imposed on defendant because defendant’s “single act” of causing the fire was the basis for his convictions of depraved indifference murder and depraved indifference assault. Penal Law § 70.25 (2) prohibits consecutive punishment for such a single act.

Judges CIPARICK, GRAFFEO, READ and SMITH concur with Judge PIGOTT; Chief Judge LIPPMAN dissents in part in a separate opinion; Judge JONES dissents in part in another opinion.

Order modified, etc.

[942 NE2d 277, 917 NYS2d 68]

MARVIN GIBBS, Respondent, v ST. BARNABAS HOSPITAL, Respondent, and FAUSTO VINCES, M.D., Appellant, et al., Defendants.

Argued November 16, 2010; decided December 16, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 30, 2009. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Alison Y. Tuitt, J.), which had granted defendant Vinces' motion to enforce a conditional order of preclusion to the extent of directing plaintiff to pay \$500 as costs for his delay in complying with discovery. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Gibbs v St. Barnabas Hosp., 61 AD3d 599, reversed.

HEADNOTE

Disclosure — Penalty for Failure to Disclose — Enforcement of Conditional Preclusion Order — Requirements for Excusing Noncompliance

In a medical malpractice action wherein plaintiff failed to serve a supplemental bill of particulars before the deadline set by a conditional order of preclusion, the trial court erred as a matter of law in excusing the default without requiring plaintiff to establish both a reasonable excuse for his noncompliance and a meritorious cause of action. In a situation where a party willfully fails to provide a properly demanded bill of particulars, the trial court has broad power to craft a conditional order that grants the motion and imposes the determined sanction unless the defaulting party submits to the disclosure within a specified time (CPLR 3042 [d]; 3126). To obtain relief from the dictates of a conditional order that will preclude a party from submitting evidence in support of a claim or defense, the defaulting party must demonstrate (1) a reasonable excuse for the failure to produce the requested items and (2) the existence of a meritorious claim or defense, which, in a medical malpractice action, requires expert medical opinion evidence. Plaintiff here failed to respond to defendant doctor's periodic requests for compliance with his authorized demand for a bill of particulars, disregarded the court order requiring him to serve a supplemental bill of particulars, and did not abide by the conditional preclusion order, all without efforts to obtain extensions of time or seek court relief. Furthermore, plaintiff's failure to submit an affidavit from a medical expert establishing the basis of the alleged malpractice claim was a fatal deficiency. Since as the preclusion order prevented plaintiff from offering evidence supporting his malpractice claim, summary judgment in favor of defendant should have been awarded. Regardless of whether plaintiff's failures were characterized as willful, the preclusion order became absolute upon his default, thus obligating him to satisfy the two-part test.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Depositions and Discovery §§ 200, 203, 207, 210–213, 218, 219; AM JUR 2d, Pleading §§ 688, 690.
CARMODY-WAIT 2d, Bills of Particulars and Copies of Accounts §§ 36:90–36:97, 36:101, 36:103–36:106.
McKINNEY's, CPLR 3042 (d); 3126.
NY JUR 2d, Disclosure §§ 405, 408, 410, 411, 414, 416; NY JUR 2d, Malpractice §§ 270, 275; NY JUR 2d, Pleading §§ 288, 293, 304, 321, 322.
SIEGEL, NY PRAC §§ 239, 241.

ANNOTATION REFERENCE

See ALR Index under Bills of Particulars; Malpractice By Medical or Health Professions.

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POINTS OF COUNSEL

Kaufman Borgeest & Ryan, LLP, Valhalla (*Jacqueline Mandell* of counsel), for appellant. I. It is error, as a matter of law, to relieve the default of a party who fails to demonstrate both a reasonable excuse for his neglect and the merits of his cause of action. (*Fiore v Galang*, 64 NY2d 999; *Flax v Standard Sec. Life Ins. Co. of N.Y.*, 150 AD2d 894; *Neveloff v Faxton Children's Hosp. & Rehabilitation Ctr.*, 227 AD2d 457; *Gilmore v Garvey*, 31 AD3d 381; *Wilson v Galicia Contr. & Restoration Corp.*, 10 NY3d 827; *Hesse Constr., LLC v Fisher*, 61 AD3d 1143; *Foster v Dealmaker, SLS, LLC*, 63 AD3d 1640; *Ensley v Snapper, Inc.*, 62 AD3d 403; *AWL Indus., Inc. v QBE Ins. Corp.*, 65 AD3d 904; *Fidelity & Deposit Co. of Md. v Andersen & Co.*, 60 NY2d 693.) II. The plaintiff's complaint should have been dismissed because a litigant cannot ignore court orders with impunity. (*Kihl v Pfeffer*, 94 NY2d 118; *Brill v City of New York*, 2 NY3d 648; *Miceli v State Farm Mut. Auto. Ins. Co.*, 3 NY3d 725; *Andrea v Arnone, Hedin, Casker, Kennedy & Drake, Architects & Landscape Architects, P.C. [Habiterria Assoc.]*, 5 NY3d 514; *Wilson v Galicia Contr. & Restoration Corp.*, 10 NY3d 827.)

Napoli Bern Ripka, LLP, New York City (*Denise A. Rubin* of counsel), for Marvin Gibbs, respondent. I. This Court's decision

in *Wilson v Galicia Contr. & Restoration Corp.* (10 NY3d 827 [2008]) is factually distinguishable from the matter at bar and thus inapposite; the Appellate Division properly declined to apply the rule cited therein to the matter at bar. II. The Appellate Division properly found no abuse of Supreme Court's discretion and correctly affirmed. (*Marks v Vigo*, 303 AD2d 306; *Cespedes v Mike & Jac Trucking Corp.*, 305 AD2d 222; *Wilson v Galicia Contr. & Restoration Corp.*, 10 NY3d 827; *Jaffe v Hubbard*, 299 AD2d 395; *Gross v Edmer Sanitary Supply Co.*, 201 AD2d 390; *Martin v City of New York*, 46 AD3d 635; *Novick v DeRosa*, 51 AD3d 885; *Strauss v Vladeck*, 173 AD2d 1063; *Sabatello v Frescatore*, 200 AD2d 939; *148 Magnolia, LLC v Merrimack Mut. Fire Ins. Co.*, 62 AD3d 486.) III. Supreme Court properly exercised its discretion by denying the motion for preclusion and dismissal upon a finding that there was no apparent willfulness or contumacious behavior on the record. (*Moran v Rynar*, 39 AD2d 718; *Dauria v City of New York*, 127 AD2d 459; *Reyes v Riverside Park Community [Stage I], Inc.*, 47 AD3d 599; *E & M Adv. West/Camelot Media, Inc. v Vertical Lend, Inc.*, 45 AD3d 502; *Jones v New York City Tr. Auth.*, 293 AD2d 322; *Sony Corp. of Am. v Savemart, Inc.*, 59 AD2d 676; *Cambry v Lincoln Gardens*, 50 AD3d 1081; *Pascarella v City of New York*, 16 AD3d 472; *Carella v Reilly & Assoc.*, 297 AD2d 326; *Cooper v Shepherd*, 280 AD2d 337.) IV. Absent a showing that Supreme Court improvidently abused its discretion, an order denying dismissal under CPLR 3126 should not be disturbed on appeal. (*Jaffe v Hubbard*, 299 AD2d 395; *Gross v Edmer Sanitary Supply Co.*, 201 AD2d 390; *Martin v City of New York*, 46 AD3d 635; *Novick v DeRosa*, 51 AD3d 885; *Strauss v Vladeck*, 173 AD2d 1063; *Sabatello v Frescatore*, 200 AD2d 939; *Cafaro v Emergency Servs. Holding, Inc.*, 11 AD3d 496; *Porreco v Selway*, 225 AD2d 752; *Recht v Teuscher*, 176 AD2d 863; *Wolfson v Nassau County Med. Ctr.*, 141 AD2d 815.)

Garbarini & Scher, P.C., New York City (William D. Buckley of counsel), for St. Barnabas Hospital, respondent. Although Dr. Vines and plaintiff did not settle their claims through a release or a covenant not to sue, equity nonetheless requires the trial court to apply General Obligations Law § 15-108 to provide St. Barnabas Hospital with a reduction of the claims against it in proportion to any liability the finder of fact might ascribe to Dr. Vines. (*Williams v Niske*, 81 NY2d 437; *Whalen v Kawasaki Motors Corp., U.S.A.*, 92 NY2d 288; *Killeen v Reinhardt*, 71 AD2d 851; *Garcea v Battista*, 53 AD3d 1068; *Bonnot v Fishman*, 88 AD2d 650, 57 NY2d 870.)

OPINION OF THE COURT

GRAFFEO, J.

In this medical malpractice action, plaintiff failed to serve a supplemental bill of particulars before the deadline set by a conditional order of preclusion. Consistent with our precedent, we conclude that the trial court erred as a matter of law in excusing the default without requiring plaintiff to establish both a reasonable excuse for his noncompliance and a meritorious cause of action.

In June 2005, plaintiff Marvin Gibbs commenced this medical malpractice action against a number of defendants, including Dr. Fausto Vines. The claim arose out of treatment plaintiff received for his right hip while a patient at defendant St. Barnabas Hospital. In August 2005, Dr. Vines served plaintiff with an answer, various disclosure demands and a demand for a bill of particulars within 30 days, as authorized by CPLR 3042.

When there was no response after 30 days, Dr. Vines' counsel sent plaintiff a letter on January 24, 2006 requesting that a bill of particulars be provided within 10 days "or we will have no alternative but to move to compel production of same." The following day, Dr. Vines' counsel notified plaintiff that he had not yet satisfied a number of the other discovery demands as well. Plaintiff failed to reply to either letter. Dr. Vines' attorney again issued a letter on March 21, 2006 seeking the bill of particulars and warning that court intervention would be necessary if plaintiff failed to comply. Again, no response was forthcoming from plaintiff. On May 24, 2006, Dr. Vines' attorney forwarded plaintiff yet another letter demanding a bill of particulars and the production of other disclosure items within 10 days. Plaintiff did not request an extension of time to respond or in any way reply to these multiple requests.

As a result, in June 2006, Dr. Vines moved to compel plaintiff to comply with the demand for a bill of particulars and the discovery demands, and requested that the court sanction plaintiff under CPLR 3042 and 3126 by dismissing the complaint or precluding plaintiff from offering evidence at trial regarding Dr. Vines' alleged negligence. Plaintiff finally served a bill of particulars in August 2006, one year after the doctor's initial demand. Dr. Vines agreed to withdraw his motion, even though a number of other discovery items remained outstanding.

At a preliminary conference conducted in November 2006, Supreme Court determined that plaintiff's bill of particulars was "unsatisfactory" and directed plaintiff to furnish a supplemental bill of particulars within 30 days clarifying, among other things, the specific allegations of negligence against Dr. Vines. Plaintiff did not supply the supplemental bill and, in January 2007, Dr. Vines moved pursuant to CPLR 3126 to strike the complaint or foreclose plaintiff from submitting evidence of negligence at trial based on plaintiff's willful noncompliance.

Supreme Court conditionally granted the motion and issued a conditional preclusion order on February 21, 2007, stating that plaintiff would be barred from offering evidence as to Dr. Vines' negligence if plaintiff did not serve the supplemental bill of particulars within 45 days. Although Dr. Vines sent a reminder letter to plaintiff on March 7, 2007, plaintiff did not submit a supplemental bill before the court-imposed deadline, nor did plaintiff request an extension of time to respond or otherwise seek relief prior to the expiration of plaintiff's time to comply under the terms of the order.

Consequently, in May 2007, Dr. Vines moved to enforce the conditional order of preclusion and for summary judgment dismissing the complaint as against him on the basis that plaintiff could no longer supply any evidence of negligence under the order, which became absolute when plaintiff failed to comply with its terms. Plaintiff served a supplemental bill of particulars in June 2007, approximately 75 days after the deadline specified in the preclusion order.

In opposition to the motion to enforce the conditional preclusion order, plaintiff asserted that Dr. Vines had received the supplemental bill of particulars and therefore could not demonstrate prejudice. Plaintiff further acknowledged that "a defaulting party can be relieved of preclusion on the showing of a meritorious claim and a reasonable excuse for the delay" and claimed that he had met those requirements. In particular, plaintiff's counsel submitted an affirmation explaining that the untimely supplemental bill of particulars was the result of "inadvertent law office failure" because a different attorney from the law firm had attended the prior court proceeding that resulted in the February 21, 2007 conditional preclusion order.

and the expiration date had not been diaried on her calendar.¹ Rather than providing an affidavit of merit to satisfy the second prong of the requisite showing—the meritorious claim—plaintiff claimed that Dr. Vincés’ “motion does not suggest that plaintiff does not have a meritorious claim.”

Supreme Court granted Dr. Vincés’ motion but only to the extent of directing plaintiff to pay \$500 as costs for his delay in complying with discovery.² The Appellate Division, with one Justice dissenting, affirmed (61 AD3d 599 [1st Dept 2009]). The majority concluded that the trial court did not abuse its discretion in declining to enforce the conditional preclusion order. The dissenter would have enforced the order and granted Dr. Vincés summary judgment, reasoning that the trial court erred in relieving plaintiff of his default without requiring him to demonstrate a reasonable excuse and a meritorious claim. The Appellate Division granted Dr. Vincés leave to appeal and certified the following question to this Court: “Was the order of this Court, which affirmed the order of the Supreme Court, properly made?” We answer this question in the negative.

Under CPLR 3042 (d), a court may invoke the relief set forth in CPLR 3126 when a “party served with a demand for a bill of particulars willfully fails to provide particulars which the court finds ought to have been provided pursuant to this rule.” CPLR 3126, in turn, governs discovery penalties and applies where a party “refuses to obey an order for disclosure or wilfully fails to disclose information which the court finds ought to have been disclosed.” The statute contains a list of nonexclusive sanctions and further permits courts to fashion orders “as are just.” CPLR 3126 therefore broadly empowers a trial court to craft a conditional order—an order “that grants the motion and imposes the sanction ‘unless’ within a specified time the resisting party submits to the disclosure” (Connors, Practice Commentaries, McKinney’s Cons Laws of NY, Book 7B, CPLR C3126:10 [“The conditional order is in fact the most popular disposition under CPLR 3126”]; *see also* CPLR 3042 [d]).

The situation that developed in this case is, unfortunately, a scenario that we have seen before. In *Fiore v Galang* (64 NY2d

1. Plaintiff’s counsel, for the first time, also claimed that plaintiff’s expert could not further amplify the allegations of negligence contained in the original bill of particulars.

2. Plaintiff suggests that Supreme Court in effect reconsidered its prior conditional preclusion order. Although the trial judge was entitled to reconsider the order, we will not assume she reconsidered it when there was no request to do so and no indication that she treated it as such.

999 [1985], *affg* 105 AD2d 970 [3d Dept 1984]), a medical malpractice action, the trial court granted a 30-day conditional order of preclusion directing plaintiffs to serve a bill of particulars on the defendant hospital. Following plaintiffs' lack of compliance with the order, the hospital moved for summary judgment dismissing the complaint. The trial court denied the motion on the condition that plaintiffs serve a bill of particulars and pay \$415 to the hospital's attorneys.³ On appeal, the Appellate Division reversed and dismissed the complaint, concluding that the trial court erred in excusing the default without requiring plaintiffs to offer both a reasonable excuse and an affidavit of merit. We affirmed, explaining that "absent a sufficient affidavit of merits it was error, *as a matter of law*, not to grant defendant Hospital's motion for summary judgment" (*id.* at 1000 [emphasis added]).

Hence, we have made clear that to obtain relief from the dictates of a conditional order that will preclude a party from submitting evidence in support of a claim or defense, the defaulting party must demonstrate (1) a reasonable excuse for the failure to produce the requested items and (2) the existence of a meritorious claim or defense (*see id.* at 1000-1001; *see also Smith v Lefrak Org.*, 96 AD2d 859 [2d Dept 1983], *affd for reasons stated* 60 NY2d 828 [1983]; *Amodeo v Radler*, 89 AD2d 594 [2d Dept 1982], *affd* 59 NY2d 1001 [1983]). In cases involving a medical malpractice cause of action, "expert medical opinion evidence is required to demonstrate merit" under the second requirement (*Fiore*, 64 NY2d at 1001).

Consistent with *Fiore*, all four departments of the Appellate Division have required plaintiffs to satisfy the two-prong test in cases involving conditional orders that were triggered by failures to submit a bill of particulars by court-imposed deadlines (*see Goldstein v Janecka*, 172 AD2d 463 [1st Dept 1991]; *Gilmore v Garvey*, 31 AD3d 381 [2d Dept 2006]; *Clanton v Vagianellis*, 192 AD2d 943 [3d Dept 1993]; *Foster v Dealmaker, SLS, LLC*, 63 AD3d 1640 [4th Dept 2009], *lv denied* 15 NY3d 702 [2010]).

In this case, the Appellate Division majority's analysis overlooked the two-part test in determining that Supreme Court's decision not to enforce the preclusion order was not an abuse of discretion warranting reversal. We certainly understand

3. It is interesting to note that in 1984, the trial court in *Fiore* ordered a monetary sanction of \$415 and, 25 years later, a \$500 sanction was determined to be sufficient in this case.

the Appellate Division's concern that courts be permitted to exercise discretion in the pretrial management of their case-loads, particularly when resolving disputes between parties involving the adequacy of pleadings and the use of discovery devices. But there is also a compelling need for courts to require compliance with enforcement orders if the authority of the courts is to be respected by the bar, litigants and the public. Here, approximately one year elapsed from the date of the initial demand for a bill of particulars to the service of the bill of particulars that was eventually found by Supreme Court to be inadequate. During that year, despite Dr. Vincens' written requests for compliance, plaintiff apparently ignored the applicable statutory time periods, without taking the simple step of contacting the opposing party to ask for an extension or seeking the assistance of Supreme Court to clarify or modify the requests. And, even after Supreme Court determined that a supplemental bill was necessary, another seven months passed before that document was forthcoming—and its service was 75 days after the due date specified in the order of preclusion. Again, no attempt was made to request an extension or seek some form of relief from the court prior to the expiration of the time period set forth in the order.

As this Court has repeatedly emphasized, our court system is dependent on all parties engaged in litigation abiding by the rules of proper practice (*see e.g. Brill v City of New York*, 2 NY3d 648 [2004]; *Kihl v Pfeffer*, 94 NY2d 118 [1999]). The failure to comply with deadlines not only impairs the efficient functioning of the courts and the adjudication of claims, but it places jurists unnecessarily in the position of having to order enforcement remedies to respond to the delinquent conduct of members of the bar, often to the detriment of the litigants they represent. Chronic noncompliance with deadlines breeds disrespect for the dictates of the Civil Practice Law and Rules and a culture in which cases can linger for years without resolution. Furthermore, those lawyers who engage their best efforts to comply with practice rules are also effectively penalized because they must somehow explain to their clients why they cannot secure timely responses from recalcitrant adversaries, which leads to the erosion of their attorney-client relationships as well. For these reasons, it is important to adhere to the position we declared a decade ago that “[i]f the credibility of court orders and the integrity of our judicial system are to be maintained, a litigant cannot ignore court orders with impunity” (*Kihl*, 94 NY2d at 123).

All of these concerns are implicated in this case, which is not difficult to resolve since our 1985 decision in *Fiore* is clearly controlling. When plaintiff failed to satisfy Supreme Court's November 2006 order directing him to supply a supplemental bill of particulars within 30 days, the court afforded plaintiff a final opportunity to comply by conditionally granting Dr. Vines' motion to preclude on February 21, 2007, giving plaintiff 45 days to serve the supplemental bill. Upon default, plaintiff was obligated to provide a reasonable excuse and an expert affidavit to avoid the consequences of the preclusion order. Even assuming for the sake of argument that plaintiff's excuse of law office failure was reasonable—a finding not made by Supreme Court or the Appellate Division majority—plaintiff failed to submit an affidavit from a medical expert establishing the basis of the alleged medical malpractice claim. This deficiency is fatal under *Fiore*. Given that the preclusion order prevents plaintiff from offering any evidence in support of his claim that Dr. Vines committed malpractice, summary judgment in Dr. Vines' favor, as a matter of law, should have been awarded.

Finally, we reject plaintiff's premise, accepted by the dissent, that the conditional preclusion order should not be enforced because plaintiff's conduct during the discovery process was not "willful." It is true that CPLR 3042 requires a finding of willfulness where a party fails to respond to or comply fully with a demand for a bill of particulars, and that CPLR 3126 prescribes a similar willfulness element where a party "fails to disclose information which the court finds ought to have been disclosed." But here plaintiff did not just fail to comply with a demand, he disregarded court orders. In such a situation:

"The courts usually prefer to determine whether the disclosure is required and, if it is, to make an order directing the party to make the disclosure whether the prior refusal was wilful or not. The order is usually a conditional one, applying a sanction unless the disclosure is made within a stated time. With this conditioning, the court relieves itself of the unrewarding inquiry into whether a party's resistance was wilful" (Siegel, NY Prac § 367, at 608 [4th ed]).

It is undisputed that plaintiff failed to respond to Dr. Vines' periodic demands for a bill of particulars and various discovery items between August 2005 and August 2006. Regardless of whether these failures are characterized as willful, plaintiff also

disregarded Supreme Court's November 2006 order obligating him to serve a supplemental bill of particulars within 30 days. More importantly, plaintiff did not abide the dictates of the February 21, 2007 conditional preclusion order. Upon plaintiff's default, the order became absolute, obligating him to satisfy the well-established two-part test embraced by this Court in *Fiore*. Plaintiff having failed to do so, Dr. Vinces was entitled to dismissal of the complaint.

In reaching this conclusion, we reiterate that "[l]itigation cannot be conducted efficiently if deadlines are not taken seriously, and we make clear again, as we have several times before, that disregard of deadlines should not and will not be tolerated" (*Andrea v Arnone, Hedin, Casker, Kennedy & Drake, Architects & Landscape Architects, P.C. [Habiterria Assoc.]*, 5 NY3d 514, 521 [2005]; see also *Wilson v Galicia Contr. & Restoration Corp.*, 10 NY3d 827, 830 [2008]; *Miceli v State Farm Mut. Auto. Ins. Co.*, 3 NY3d 725, 726-727 [2004]; *Brill*, 2 NY3d at 652-653; *Kihl*, 94 NY2d at 123).

Accordingly, the order of the Appellate Division should be reversed, with costs, the motion of defendant Vinces to enforce the conditional order of preclusion and for summary judgment dismissing the complaint against him granted, and the certified question answered in the negative.

CIPARICK, J. (dissenting). As the majority notes, CPLR 3042 and 3126 confer broad discretion on trial courts to craft discovery sanctions. A court "may" issue a final or conditional order "as is just" if a party "willfully fails to provide particulars which the court finds ought to have been provided" (CPLR 3042 [d]; see also CPLR 3126).

Neither Supreme Court nor the Appellate Division found that the behavior of plaintiff's counsel was sufficiently egregious to merit the harsh sanction of preclusion. To the contrary, Supreme Court stated that the conduct "was dilatory but not intentioned and . . . [did] not warrant the extreme measure of precluding" counsel from presenting plaintiff's case. The Appellate Division affirmed, finding "no evidence that plaintiff's inaction was willful, contumacious, or the result of bad faith" (*Gibbs v St. Barnabas Hosp.*, 61 AD3d 599, 600 [1st Dept 2009]). Thus, although the CPLR makes willfulness a prerequisite for preclusion, the majority here is imposing the sanction where there is an affirmed finding that Gibbs' behavior was not willful.

Because of this affirmed factual finding, this case is easily distinguishable from *Fiore v Galang* (64 NY2d 999 [1985]), *Smith*

v Lefrak Org. (60 NY2d 828 [1983]), *Amodeo v Radler* (59 NY2d 1001 [1983]), and other cases cited by the majority. These cases establish that, as the majority emphasizes, a defaulting party must establish reasonable excuse for the delay and provide an affidavit of merit (*see Fiore*, 64 NY2d at 1000, *affg* 105 AD2d 970 [3d Dept 1984]). They do not alter the CPLR's willfulness requirement, nor do they permit us to make a finding of willfulness and apply a sanction expressly rejected by the courts below.

I would therefore affirm the Appellate Division's order.

Judges READ, SMITH and PIGOTT concur with Judge GRAFFEO; Judge CIPARICK dissents and votes to affirm in a separate opinion in which Chief Judge LIPPMAN and Judge JONES concur.

Order reversed, etc.

[942 NE2d 291, 917 NYS2d 82]

In the Matter of the Arbitration between BARBARA KOWALESKI,
Appellant, and NEW YORK STATE DEPARTMENT OF COR-
RECTIONAL SERVICES, Respondent.

Argued November 16, 2010; decided December 21, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 2, 2009. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed a judgment of the Supreme Court, Albany County (Gerald W. Connolly, J.), which, among other things, had denied petitioner's application pursuant to CPLR 7511 seeking (1) vacatur of an arbitration award terminating petitioner's employment, and (2) dismissal of the underlying disciplinary charges or a remand for a new hearing before a different arbitrator.

Matter of Kowaleski (New York State Dept. of Correctional Servs.), 61 AD3d 1081, reversed.

HEADNOTE

Arbitration — Award in Excess of Arbitrator's Powers — Arbitrator Must Consider and Determine Merits of Retaliation Defense Raised under Civil Service Law § 75-b

The arbitrator's finding that he did not have authority under the parties' collective bargaining agreement (CBA) to consider petitioner correction officer's asserted retaliatory defense under Civil Service Law § 75-b in a disciplinary proceeding was in excess of an explicit limitation on the arbitrator's power, warranting vacatur of the arbitration award terminating petitioner's employment. Civil Service Law § 75-b requires an arbitrator to consider and determine the merits of an employee's retaliatory defense where such a defense is raised, regardless of the terms of the CBA, which here limited the arbitrator's authority "to determinations of guilt or innocence and the appropriateness of proposed penalties." It was not enough for the arbitrator to hear evidence of retaliation in the context of determining witness credibility and deciding guilt, since a disciplinary action may be retaliatory even where an employee is guilty of the alleged infraction. Under Civil Service Law § 75-b (3), an arbitrator is required to dismiss a disciplinary action based solely on retaliatory motive, regardless of the employee's guilt or innocence (*see* Civil Service Law § 75-b [2] [a]; [3] [a]). A separate determination regarding the employer's motivation in bringing the action is critical to ensure the effectiveness of the whistleblower protections embodied in Civil Service Law § 75-b.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Alternative Dispute Resolution §§ 177, 189,
206, 217, 218, 224; AM JUR 2d, Civil Service §§ 73, 88, 89.

CARMODY-WAIT 2d, Arbitration §§ 141:234, 141:256.

McKINNEY's, Civil Service Law § 75-b (2) (a); (3) (a).

NY JUR 2d, Arbitration and Award §§ 34, 85, 167, 217, 224;

NY JUR 2d, Civil Servants and Other Public Officers and
Employees §§ 527-529, 541, 542.

SIEGEL, NY PRAC §§ 597, 602.

ANNOTATION REFERENCE

Determination of validity of arbitration award under requirement that arbitrators shall pass on all matters submitted. 36 ALR3d 649.

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& vacat!

POINTS OF COUNSEL

Oliver Law Office, Albany (*Lewis B. Oliver, Jr.*, of counsel), for appellant. I. The arbitrator exceeded his power and ignored the strong public policy contained in Civil Service Law § 75-b to protect public employees from retaliation for disclosing improper governmental action to the Department of Correctional Services. (*Matter of Sprinzen [Nomberg]*, 46 NY2d 623; *Matter of Obot [New York State Dept. of Correctional Servs.]*, 89 NY2d 883; *Rosenblum v Steiner*, 43 NY2d 896; *Durst v Abrash*, 22 AD2d 39, 17 NY2d 445; *Garrity v Lyle Stuart, Inc.*, 40 NY2d 354; *Matter of Candor Cent. School Dist. [Candor Teachers Assn.]*, 42 NY2d 266; *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774; *Matter of Aimcee Wholesale Corp. [Tomar Prods.]*, 21 NY2d 621; *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321; *Hanley v New York State Exec. Dept., Div. for Youth*, 182 AD2d 317.) II. The award should be vacated on the grounds that the arbitrator exceeded his power pursuant to CPLR 7511 (b) (1) (iii) because the arbitrator ignored a specific limitation on his authority contained in Civil Service Law § 75-b to protect public employees from retaliation. (*Matter of New York City Tr. Auth. v Transport Workers' Union of Am., Local 100, AFL-CIO*, 6 NY3d 332; *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321; *Matter of Town of Callicoon [Civil Serv. Empls. Assn., Town of Callicoon Unit]*, 70 NY2d 907; *Matter of Obot [New York State Dept. of Correctional Servs.]*, 224 AD2d 1006;

Matter of Crossman-Battisti v Traficanti, 235 AD2d 566; *Shaw v Baldowski*, 192 Misc 2d 635; *Matter of Plante v Buono*, 172 AD2d 81.) III. The award with respect to charges one and three should be vacated pursuant to CPLR 7511 (b) (1) (iii) on the grounds that the arbitrator's determination that Officer Kowaleski's statement jeopardized the security of another officer and/or his family and the determination that she was insubordinate to a sergeant are totally irrational, there is no proof whatsoever to justify the finding, the finding is not supported by evidence or other basis in reason on the records, and it is arbitrary and capricious. (*Matter of New York City Tr. Auth. v Transport Workers' Union of Am., Local 100, AFL-CIO*, 6 NY3d 332; *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321; *Matter of Town of Callicoon [Civil Serv. Empls. Assn., Town of Callicoon Unit]*, 70 NY2d 907; *Matter of NFB Inv. Servs. Corp. v Fitzgerald*, 49 AD3d 747; *Matter of Murray v Murphy*, 24 NY2d 150; *Matter of Regional Tr. Serv. [Amalgamated Tr. Union, Local 282]*, 267 AD2d 941; *Matter of Gang v Guido*, 185 AD2d 272; *Matter of Griffin v Thompson*, 202 NY 104; *Herod v Board of Educ. of Hempstead Pub. School Dist.*, 90 AD2d 841.)

Andrew M. Cuomo, Attorney General, Albany (Frank K. Walsh, Barbara D. Underwood and Andrew D. Bing of counsel), for respondent. I. The arbitral award upholding petitioner's discharge does not violate strong and well-defined public policy. (*Matter of Professional, Clerical, Tech. Empls. Assn. [Buffalo Bd. of Educ.]*, 90 NY2d 364; *Matter of United Fedn. of Teachers, Local 2, AFT, AFL-CIO v Board of Educ. of City School Dist. of City of N.Y.*, 1 NY3d 72; *Matter of Sprinzen [Nomberg]*, 46 NY2d 623; *Matter of New York City Tr. Auth. v Transport Workers Union of Am., Local 100, AFL-CIO*, 99 NY2d 1; *Matter of New York City Tr. Auth. v Transport Workers Union of Am., AFL-CIO, Local 100*, 220 AD2d 749; *Matter of New York City Tr. Auth. v Transport Workers' Union of Am., Local 100, AFL-CIO*, 6 NY3d 332; *Wien & Malkin LLP v Helmsley-Spear, Inc.*, 6 NY3d 471, 548 US 940.) II. There is no other basis to vacate the arbitral award. (*Matter of Obot [New York State Dept. of Correctional Servs.]*, 89 NY2d 883; *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321; *Matter of Crossman-Battisti v Traficanti*, 235 AD2d 566; *Matter of Colao v Village of Ellenville*, 223 AD2d 792, 87 NY2d 1041; *Matter of Brey v Board of Educ. of Jeffersonville-Youngsville Cent. School Dist.*, 245 AD2d 613; *Matter of Plante v Buono*, 172 AD2d 81, 79 NY2d 756; *Caso v Coffey*, 41 NY2d 153; *Matter of NFB Inv.*

Servs. Corp. v Fitzgerald, 49 AD3d 747; *Matter of Peckerman v D & D Assoc.*, 165 AD2d 289; *Wien & Malkin LLP v Helmsley-Spear, Inc.*, 6 NY3d 471, 548 US 940.)

Amanda J. Velazquez, Albany, and *Nancy E. Hoffman* for Civil Service Employees Association, Inc., Local 1000, AFSCME, AFL-CIO, amicus curiae. I. The arbitrator's award should be vacated because it violated public policy by denying Ms. Kowaleski statutory protections against retaliation for whistleblower activity. (*Matter of Sprinzen [Nomberg]*, 46 NY2d 623; *Sabetay v Sterling Drug*, 69 NY2d 329; *Hanley v New York State Exec. Dept., Div. for Youth*, 182 AD2d 317; *Obot v New York State Dept. of Correctional Servs.*, 256 AD2d 1089; *Matter of Professional Staff Congress-City Univ. of N.Y. v New York State Pub. Empl. Relations Bd.*, 7 NY3d 458; *Matter of Civil Serv. Empls. Assn. v Newman*, 88 AD2d 685.) II. The arbitrator's award should be vacated because the arbitrator exceeded his power which was expressly limited by the statutory requirement to consider and determine the merits of Ms. Kowaleski's whistleblower defense. (*Matter of Silverman [Benmor Coats]*, 61 NY2d 299.) III. The award should be vacated because the arbitrator failed to determine whether the charges against Ms. Kowaleski were initiated and pursued in retaliation for whistleblower activity. (*Matter of Obot [New York State Dept. of Correctional Servs.]*, 89 NY2d 883; *Treglia v Town of Manlius*, 313 F3d 713; *Matter of Crossman-Battisti v Traficanti*, 235 AD2d 566.)

OPINION OF THE COURT

CIPARICK, J.

Petitioner Barbara Kowaleski began her employment with the State Department of Correctional Services (DOCS) as a correction officer in 1981, and was assigned to the Hale Creek Correctional Facility (Hale Creek) in 1995. In October 2004, she was served with a notice of discipline (Notice) charging her with violating provisions of the employees' manual on three separate occasions in September and October 2004:¹ (1) in September

1. In 2003, Kowaleski had received two notices of discipline, both with dismissal from service as the proposed penalty. In the resulting arbitration, she testified that she had reported a fellow correction officer's misconduct in 2002, and was frequently harassed at work. While noting that it was "not within [his] authority to make a determination of whether harassment occurred," the arbitrator observed that Kowaleski was "the object of animosity and/or harassment" by some of her fellow officers, and that the harassment "may have originated when CO Kowaleski informed her supervisor of the

(n. cont'd)

2004, she allegedly “made inappropriate comments of a personal nature about another staff member in the presence of staff and inmates”; (2) in October 2004, she allegedly argued with a fellow employee; and (3) also in October 2004, she allegedly was “disrespectful and insubordinate” when she ignored a superior’s order to stop interrupting another employee. The Notice called for her termination and the loss of any accrued leave. Kowaleski filed a grievance and, pursuant to a collective bargaining agreement (CBA), a hearing was held before an arbitrator.

At the start of the hearing, Kowaleski argued that the disciplinary action was only being brought to retaliate against her for reporting a fellow officer’s misconduct in 2002, and that she was entitled to raise this as an affirmative defense pursuant to Civil Service Law § 75-b, which prohibits public employers from retaliating against employees for reporting their coworkers’ improper conduct.² The arbitrator determined that because the CBA limited his authority “to determinations of guilt or innocence and the appropriateness of proposed penalties,” he lacked authority to consider Kowaleski’s retaliation defense. He noted, however, that he would consider evidence of retaliation when determining witness credibility and “in the larger context of guilt or innocence.”

In January 2007, the arbitrator found Kowaleski guilty of two of the three charges and determined that termination was appropriate. He found that Kowaleski had, in the presence of inmates, asked if a fellow officer’s son had been shot, potentially endangering the officer and his family, and that she had insubordinately ignored a superior’s instructions. The arbitrator noted that, under the CBA, an employee can only be disciplined for “just cause,” which requires, among other things, that the employer made a “fair and objective investigation,” that “the employer’s action was non-discriminatory,” and that “the penalty is reasonably related to the seriousness of the

[2002] incident.” He found her guilty of some of the disciplinary charges and imposed a 60-day suspension.

2. Kowaleski testified that, in 2002, she observed a fellow officer use excessive force on an inmate, and she refused to sign a report that she had witnessed the inmate assault the officer. The sergeant who was supposed to be supervising when the incident occurred told Kowaleski to “[k]eep [her] mouth shut or else [she] would be escorted off the premises.” A group of her coworkers began harassing her, and the harassment escalated after she reported the incident to the administration. A retired correction sergeant who had last worked at Hale Creek in 2005 testified that Kowaleski “couldn’t make a move without getting blamed for something.”

offense.” After finding Kowaleski guilty, the arbitrator concluded that there was “just cause” for the penalty of discharge, which was not “arbitrary, capricious, unreasonable, or excessive.”

Kowaleski filed this CPLR 7511 petition seeking a declaration (1) vacating the arbitrator’s opinion and award, and (2) directing that the charges in the Notice be dismissed or remanded for a new hearing before a different arbitrator. DOCS moved to dismiss the petition. Supreme Court found that the arbitrator exceeded his power by ignoring Civil Service Law § 75-b, but concluded that because this was an error of law, the award should not be vacated. The court further reasoned that section 75-b only precludes disciplinary action “taken *solely* in retaliation,” and here witness testimony provided a “separate and independent” basis for the action. Supreme Court found that the arbitrator’s findings and award were rational.

The Appellate Division affirmed, with two Justices dissenting. The majority found that although the arbitrator “incorrectly stated that it was beyond his jurisdiction to consider petitioner’s claim of retaliation, this error of law does not warrant vacating the award under the circumstances,” given the arbitrator’s rational and supported finding that Kowaleski was guilty of two of the charges (*Matter of Kowaleski [New York State Dept. of Correctional Servs.]*, 61 AD3d 1081, 1083 [3d Dept 2009]). Moreover, the majority reasoned, the arbitrator did consider “evidence of retaliation in weighing witness credibility and assessing petitioner’s guilt” (*id.*). Two Justices dissented on the grounds that Kowaleski was “deprived of her right to have the arbitrator determine . . . the specific factual issue of whether the disciplinary charges were, in the first instance, initiated and pursued to retaliate for the prior matters” (*id.* at 1085 [brackets and internal quotation marks omitted]). Kowaleski appealed as a matter of right pursuant to CPLR 5601 (a). We agree with the dissenting Justices and now reverse.

Under CPLR 7511 (b) an arbitration award must be vacated if, as relevant here, a party’s rights were impaired by an arbitrator who “exceeded his power or so imperfectly executed it that a final and definite award upon the subject matter submitted was not made” (CPLR 7511 [b] [1] [iii]). It is well-settled that an arbitrator “exceed[s] his power” under the meaning of the statute where his “award violates a strong public policy, is irrational or clearly exceeds a specifically enumerated limitation on the arbitrator’s power” (*Matter of New York City Tr. Auth. v Transport Workers’ Union of Am., Local 100, AFL-CIO*, 6 NY3d

332, 336 [2005]; see also *Matter of Falzone* [New York Cent. Mut. Fire Ins. Co.], 15 NY3d 530 [2010]). Outside of these narrowly circumscribed exceptions, courts lack authority to review arbitral decisions, even where “an arbitrator has made an error of law or fact” (*Falzone*, 15 NY3d at 534).

Here, the arbitrator clearly exceeded a “specifically enumerated limitation” on his power. As the courts below found, and DOCS concedes, the arbitrator not only had authority to consider Kowaleski’s retaliation defense, but was required to do so. Civil Service Law § 75-b prohibits a public employer from taking disciplinary action to retaliate against an employee for reporting “improper governmental action” (Civil Service Law § 75-b [2] [a]). If “the employee reasonably believes dismissal or other disciplinary action would not have been taken but for” the whistleblowing, the employee “may assert such as a defense before the designated arbitrator or hearing officer” (Civil Service Law § 75-b [3] [a]). Whatever the terms of the CBA, “[t]he merits of such defense *shall be considered and determined* as part of the arbitration award or hearing officer decision” (*id.* [emphasis added]). In short, the statute requires the arbitrator to consider and determine the merits of an employee’s retaliation defense where such a defense is raised (*cf. Matter of Obot* [New York State Dept. of Correctional Servs.], 89 NY2d 883, 885-886 [1996] [award not vacated where an employee failed to raise the retaliation defense in the arbitration and the arbitrator did not consider it]). If the arbitrator or hearing officer finds that “the dismissal or other disciplinary action is based solely” on the employer’s desire to retaliate, the disciplinary proceeding must be dismissed (Civil Service Law § 75-b [3] [a]). Therefore, the arbitrator’s finding here that he did not have authority under the CBA to consider Kowaleski’s retaliation defense was not only incorrect as a matter of law, but also in excess of an explicit limitation on his power. Because he failed to consider and determine the defense, the award must be vacated.

Contrary to DOCS’ position, it was not enough for the arbitrator to hear evidence of retaliation in the context of making determinations as to witness credibility and deciding Kowaleski’s guilt. A disciplinary action may be retaliatory even where an employee is guilty of the alleged infraction. Under Civil Service Law § 75-b (3), an arbitrator is required to dismiss a disciplinary action based solely on retaliatory motive, regardless of the employee’s guilt or innocence (*see* Civil Service Law § 75-b [2] [a]; [3] [a]). This separate retaliation inquiry is critical. In

order to be effective, whistleblower protections like those embodied in Civil Service Law § 75-b must shield employees from being retaliated against by an employer's selective application of theoretically neutral rules. Thus, a separate determination regarding the employer's motivation in bringing the action is necessary if section 75-b is to truly "establish[] a major right for employees—the right to speak out against dangerous or harmful employer practices" (Governor's Approval Mem, Bill Jacket, L 1984, ch 660, at 5).

Because we find that the arbitrator's failure to separately consider and determine Kowaleski's affirmative defense of retaliation on the merits requires the award to be vacated, we decline to reach Kowaleski's other arguments. We note, however, that she has requested that any rehearing be before a different arbitrator. That request should be ruled on by Supreme Court in the exercise of its discretion.

Therefore, the order of the Appellate Division, insofar as appealed from, should be reversed, with costs, petitioner's application to vacate the arbitration award granted, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and JONES concur.

Order, insofar as appealed from, reversed, etc.

[942 NE2d 283, 917 NYS2d 74]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM PORTO, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RODRIGUECE GARCIA, Also Known as CARLOS RODRIGUEZ, Appellant.

Argued November 16, 2010; decided December 21, 2010

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 6, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Robert M. Stolz, J.), which had convicted defendant, after a jury trial, of burglary in the second degree.

APPEAL, in the second above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 23, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Michael R. Sonberg, J.), which had convicted defendant, upon his plea of guilty, of attempted robbery in the first degree.

People v Porto, 66 AD3d 430, affirmed.

People v Garcia, 71 AD3d 555, affirmed.

HEADNOTES

Crimes — Right to Counsel — Substitution of Assigned Counsel

1. Supreme Court did not abuse its discretion in denying defendant's motion to substitute assigned counsel, made on the morning of jury selection, as defendant failed to proffer specific allegations in the form, pro se motion of a seemingly serious request that would have required the court to engage in a minimal inquiry. An indigent defendant's right to counsel does not encompass counsel of one's own choosing. Whether counsel is substituted is within the discretion and responsibility of the trial judge, and a court's duty to consider such a motion is invoked only where a defendant makes a seemingly serious request. If a defendant makes specific factual allegations of serious complaints about counsel, the court must make at least a minimal inquiry, and discern meritorious complaints from disingenuous applications by inquiring as to the nature of the disagreement or its potential for resolution. Here, defendant's form motion did not contain any specific factual allegations that would indicate a serious conflict with counsel, despite being provided the space to develop such a complaint. Moreover, Supreme Court did engage in a colloquy with defense counsel, who stated that he was not seeking to be replaced and

further explained his belief that defendant's motion was based on "frustration" regarding how fingerprint evidence had been addressed, and properly exercised its discretion by considering the timing of the motion and expressing its confidence in the abilities of defense counsel.

Crimes — Right to Counsel — Substitution of Assigned Counsel

2. Supreme Court did not abuse its discretion in denying defendant's motion to substitute assigned counsel, made on the morning of his sentencing after he learned that the court would enhance his sentence for failure to comply with plea offer conditions, as the court engaged in sufficient minimal inquiry by directing questions to both defendant and defense counsel and found no further facts to support defendant's allegation that he was coerced into accepting the plea offer. An indigent defendant's right to counsel does not encompass counsel of one's own choosing. Whether counsel is substituted is within the discretion and responsibility of the trial judge, and a court's duty to consider such a motion is invoked only where a defendant makes a seemingly serious request. If a defendant makes specific factual allegations of serious complaints about counsel, the court must make at least a minimal inquiry and upon such review counsel may be substituted only where "good cause" is shown, considering the timing of the defendant's request, its effect on the progress of the case and whether present counsel will likely provide the defendant with meaningful assistance. Here, defendant never indicated any dissatisfaction with counsel until the morning of sentencing. Supreme Court engaged in sufficient minimal inquiry by directing questions to both defendant and defense counsel, but counsel consistently evaded expounding upon the motion. Supreme Court also properly considered the progress of the case, referring to prior assurances by defendant that he would plead guilty and comply with conditions of the plea offer. Moreover, it could be inferred from the record that the motion was a possible delay tactic.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1102, 1135–1140.

CARMODY-WAIT 2d, Right to Counsel §§ 184:106, 184:107, 184:114, 184:118–184:120.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.4, 11.7.

NY JUR 2d, Criminal Law: Procedure §§ 745–749, 752–755, 757.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Jury Trials; Sentence and Punishment.

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POINTS OF COUNSEL

Center for Appellate Litigation, New York City (*Carl S. Kaplan* and *Robert S. Dean* of counsel), for appellant in the first

above-entitled action. I. Appellant was deprived of his constitutional right to counsel when the trial court summarily denied his request for reassignment of counsel without conducting any inquiry regarding the grounds for appellant's application, or giving appellant an opportunity to elaborate upon his standard-form pro se motion papers for the same relief, or giving him an opportunity to elaborate upon counsel's brief statement, which referred to appellant's "frustrat[ion]." (*People v Sides*, 75 NY2d 822; *Pointer v Texas*, 380 US 400; *Gideon v Wainwright*, 372 US 335; *People v Linares*, 2 NY3d 507; *People v Medina*, 44 NY2d 199; *Powell v Alabama*, 287 US 45; *People v Cunningham*, 49 NY2d 203; *People v Davis*, 75 NY2d 517; *People v Arroyave*, 49 NY2d 264; *People v Sawyer*, 57 NY2d 12.) II. Appellant's adjudication and sentence pursuant to New York's persistent violent felony offender statutes are unconstitutional under the principles announced in *Apprendi v New Jersey* (530 US 466 [2000]). (*Almendarez-Torres v United States*, 523 US 224; *People v Rivera*, 5 NY3d 61; *Shepard v United States*, 544 US 13; *People v Rosen*, 96 NY2d 329; *People v Leon*, 10 NY3d 122; *Blakely v Washington*, 542 US 296; *Cunningham v California*, 549 US 270; *People v Samms*, 95 NY2d 52; *People v Patterson*, 39 NY2d 288; *People v Crimmins*, 36 NY2d 230.)

Cyrus R. Vance, Jr., District Attorney, New York City (Sara M. Zausmer and Karen Schlossberg of counsel), for respondent in the first above-entitled action. I. The trial court's denial of defendant's eve-of-trial motion to replace his attorney was proper. (*People v Sides*, 75 NY2d 822; *People v Sawyer*, 57 NY2d 12, 459 US 1178; *People v Medina*, 44 NY2d 199; *People v Smith*, 192 AD2d 310, 82 NY2d 731; *People v Linares*, 2 NY3d 507; *People v Arroyave*, 49 NY2d 264; *People v Tineo*, 64 NY2d 531; *People v Beriguet*, 84 NY2d 978; *People v Stevenson*, 36 AD3d 634, 8 NY3d 927; *People v Moore*, 41 AD3d 1149.) II. Defendant's claim that his adjudication as a persistent violent felony offender violated his right to a jury trial under *Apprendi v New Jersey* (530 US 466 [2000]) is unpreserved and meritless. (*People v Leon*, 10 NY3d 122; *People v Thomas*, 50 NY2d 467; *People v Patterson*, 39 NY2d 288, 432 US 197; *People v Rosen*, 96 NY2d 329, 534 US 899; *People v Besser*, 96 NY2d 136; *People v Rivera*, 9 NY3d 904; *People v Oliver*, 63 NY2d 973; *People v Kelly*, 5 NY3d 116; *People v Arthur*, 22 NY2d 325; *People v Callahan*, 80 NY2d 273; *People v McLucas*, 15 NY2d 167.)

Office of the Appellate Defender, New York City (Matthew L. Mazur, Richard M. Greenberg and Eunice C. Lee of counsel), for

appellant in the second above-entitled action. In the absence of inquiry sufficient to establish that there was no actual conflict of interest, the Supreme Court's denial of defense counsel's motion for substitution of counsel deprived Carlos Rodriguez of his right to conflict-free counsel at the sentencing hearing. (*People v Ortiz*, 76 NY2d 652; *People v Sides*, 75 NY2d 822; *People v Medina*, 44 NY2d 199; *People v Rozzell*, 20 NY2d 712; *United States v Davis*, 239 F3d 283; *Holloway v Arkansas*, 435 US 475; *People v Linares*, 2 NY3d 507; *Lopez v Scully*, 58 F3d 38; *People v Williams*, 35 AD3d 1085; *People v Ulloa*, 300 AD2d 60.)

Robert T. Johnson, District Attorney, Bronx (Cynthia A. Carlson, Joseph N. Ferdenzi and Nancy Killian of counsel), for respondent in the second above-entitled action. The denial of defense counsel's eleventh-hour request for substitution was a proper exercise of the court's discretion. (*People v Sides*, 75 NY2d 822; *People v Sawyer*, 57 NY2d 12; *People v Medina*, 44 NY2d 199; *People v Cross*, 262 AD2d 223, 94 NY2d 902; *People v Linares*, 2 NY3d 507; *People v Arroyave*, 49 NY2d 264; *People v Carncross*, 14 NY3d 319; *People v Tineo*, 64 NY2d 531; *People v Senghor*, 248 AD2d 299, 92 NY2d 905; *People v Burgos*, 298 AD2d 190, 99 NY2d 580.)

OPINION OF THE COURT

JONES, J.

The common issue presented in these appeals is whether defendants' motions to substitute counsel were properly denied in light of the "minimal inquiry" standard of *People v Sides* (75 NY2d 822 [1990]). Finding no reversible error, we affirm both convictions.

People v Porto

On July 24, 2006, complainant Sai Hung Chui returned to his apartment to find that he had been the victim of a burglary. The police recovered a fingerprint from a metal cookie tin that had been displaced during the crime and determined that it belonged to defendant William Porto. Subsequently, defendant was arrested on September 27, 2006 and charged with second- and third-degree burglary.

On June 12, 2007, the first morning of jury selection, the trial court was informed that defendant had submitted a form, pro se motion seeking reassignment of counsel. The form motion

contained three preprinted grounds for the motion,¹ and a final, blank paragraph for the movant to further address the grounds of his application. Defendant circled the three grounds for the motion, but did not provide any information within the blank space to elaborate upon his motion for new counsel.

The court engaged in a colloquy with defense counsel, ascertaining whether he could effectively represent defendant. Defense counsel responded that he had been an attorney for the Legal Aid Society since 1989, had conducted 30 to 40 felony trials, and was not aware of any reason that would prevent him from providing defendant with effective representation. Counsel also stated that he was not seeking to be replaced and further explained his belief that defendant's motion was based on "frustration" regarding how fingerprint evidence had been addressed.² Defense counsel advised the court that he intended to move to preclude such evidence in order to remedy any of defendant's concerns. The trial court denied the motion for substitution of counsel, concluding that defense counsel was capable of providing effective assistance and that the matter was ready for trial.

Defendant's motion to preclude fingerprint evidence was denied. A jury convicted him of burglary in the second degree and he received an enhanced sentence, as a persistent violent felony offender, of 16 years to life.

The Appellate Division unanimously affirmed the conviction, concluding that defendant's day-of-trial motion lacked specific allegations of a serious complaint to obligate the trial court to inquire about the basis of the application (66 AD3d 430 [1st Dept 2009]). Although there was no basis requiring the trial court to engage in an inquiry, its colloquy with defense counsel did not uncover any specific ground for substitution of new

1. The preprinted form read:

"[Defense counsel failed to:]

"(a) visit defendant at his place of confinement or have him produced to the Court for a consultation;

"(b) provide copies and inform defendant of any Motions filed, Responses and Court's decisions thereto;

"(c) forward me copies of any bill of particulars and or discovery in his/her possession."

2. On May 29, 2007—approximately 13 days before trial—defense counsel first became aware that fingerprint evidence had been recovered from a metal cookie tin, and that the cookie tin had not been photographed or vouchered by the New York City Police Department for defense expert's review.

counsel. A Judge of this Court granted leave to appeal (14 NY3d 772 [2010]), and we now affirm.

People v Garcia, also known as Rodriguez

On August 23, 2006, complainant Wilson Crispin, a truck driver, discovered defendant Rodriguece Garcia inside the cab of his truck. Defendant displayed a knife, instructed complainant to not call the police, and fled. Complainant observed that the passenger window had been broken and that a CB radio and his identification card were missing. Defendant was later arrested, found carrying complainant's identification card.

On May 6, 2008, defendant accepted an offer to plead guilty to attempted robbery in the first degree in exchange for a sentence of seven years in prison with five years of postrelease supervision. Defendant assured the court that he had not been influenced in any way to accept the plea offer. As a condition of the plea agreement, defendant was required to speak with a New York City Department of Probation officer regarding the facts of the incident to help in the preparation of a presentence report. He acknowledged this obligation after being unequivocally warned by the court that failure to do so could result in the imposition of an enhanced sentence.

At the subsequent sentencing hearing, on May 28, 2008, the probation officer advised the court that defendant declined to speak about the facts, and instead informed the officer that he was considering withdrawing his plea. When the court inquired as to whether defendant wished to withdraw his guilty plea, defense counsel responded that defendant declined to do so. The court adjourned the hearing to provide defendant another opportunity to speak with probation.

At the final sentencing hearing on June 24, 2008, the probation officer apprised the court that defendant again declined to discuss the facts of the case, and consequently, failed to comply with the condition of the plea offer. When the court pronounced that it would enhance defendant's sentence for his violation of the court's prior directive, defendant moved to withdraw his plea and to substitute counsel. Defense counsel then indicated to the court that she was uncomfortable speaking on the matter because it appeared that defendant took issue with her performance as counsel, and she felt constrained by ethical considerations from fully explaining the issue to the court. However, defense counsel did proffer a general complaint that defendant believed he was coerced by counsel into accepting the plea offer.

The court found this motion to be based on “a vague, unspecified claim,” and appeared dubious of the application, referring to the prior hearings where defendant made assurances that he was pleading guilty and would comply with conditions of the plea offer.

The court also spoke directly with defendant, who alleged that he “was forced to take this plea[] bargain and . . . made a decision and plead[ed] guilty . . . without making the decision.” The court similarly questioned defendant about the prior hearings where he had responded that his plea was voluntary and that nothing affected his competency in accepting the plea offer. The court also referred to the probation officer’s presentence reports where defendant reported that he was pleading guilty on advice of counsel and did not intend to withdraw the plea. The court denied the motion to substitute counsel and sentenced defendant to a term of seven years and six months, with five years of postrelease supervision.³

The Appellate Division affirmed defendant’s conviction and found that the sentencing court engaged in a lengthy colloquy where defendant and his counsel were only able to proffer generalities as a basis of the motion to substitute counsel (71 AD3d 555 [1st Dept 2010]). The court rejected defendant’s contention that the alleged conflict of interest prevented further explanation of the complaint, concluding that his attorney could have revealed the allegations without admitting them. A Judge of this Court granted leave to appeal (15 NY3d 750 [2010]), and we now affirm.

“Minimal Inquiry” Standard

It is well settled that an indigent defendant is guaranteed the right to counsel by both the Federal and New York State Constitutions (*see* US Const 6th Amend; NY Const, art I, § 6), but this entitlement does not encompass the right to counsel of one’s own choosing (*see People v Sawyer*, 57 NY2d 12, 18-19 [1982]). While a court has a duty to investigate complaints concerning counsel, “this is far from suggesting that an indigent’s request that a court assign new counsel is to be granted casually” (*id.* at 19).

Whether counsel is substituted is within the “discretion and responsibility” of the trial judge (*People v Medina*, 44 NY2d 199, 207 [1978]), and a court’s duty to consider such a motion is

3. Defendant Garcia’s sentence was enhanced six months by the court.

invoked only where a defendant makes a “seemingly serious request[]” (*Sides*, 75 NY2d at 824). Therefore, it is incumbent upon a defendant to make specific factual allegations of “serious complaints about counsel” (*Medina*, 44 NY2d at 207). If such a showing is made, the court must make at least a “minimal inquiry,” and discern meritorious complaints from disingenuous applications by inquiring as to “the nature of the disagreement or its potential for resolution” (*Sides*, 75 NY2d at 825).

Upon such a review, counsel may be substituted only where “good cause” is shown. This Court has enumerated several factors that should be weighed by a court in reviewing a motion for new counsel. “In determining whether good cause exists, a trial court must consider the timing of the defendant’s request, its effect on the progress of the case and whether present counsel will likely provide the defendant with meaningful assistance” (*People v Linares*, 2 NY3d 507, 510 [2004]). We have previously recognized two instances of good cause mandating substitution of counsel: “first, when an attorney is assigned to represent two defendants between whom there is a conflict of interest and second, when the defense counsel has ‘not adequately investigated his client’s history of mental disorder’ ” (*Linares*, 2 NY3d at 511). Here, neither appeal presents these two situations, nor other factors meriting substitution of counsel.

[1] In *Porto*, defendant contends that the trial court failed to make a sufficient inquiry because it engaged in a colloquy solely with defense counsel without directing any questions towards defendant, and affording him a basis to explain his petition. We find defendant’s argument unavailing.

While defendant seeks a rule of law requiring a court to pose questions directly to every complaining defendant, “practical constraints on the administration of a program for providing legal assistance dictate that ‘as long as assigned counsel are men [and women] of ability and integrity, the discretion and responsibility for their selection rest with the court’ ” (*Medina*, 44 NY2d at 207, quoting *People v Brabson*, 9 NY2d 173, 181 [1961]). Here, there is no evidence in the record indicating an abuse of discretion by the court in denying the motion for substitution of counsel where defendant failed to proffer specific allegations of a “seemingly serious request” that would require the court to engage in a minimal inquiry. Defendant’s form motion did not contain any specific factual allegations that would

indicate a serious conflict with counsel, despite being provided the space to develop such a complaint (*see People v Thompson*, 32 AD3d 743 [1st Dept 2006] [“summary denial of defendant’s conclusory application for new counsel was proper, since defendant failed to make any serious complaint requiring further inquiry”]; *People v Stevenson*, 36 AD3d 634, 635 [2d Dept 2007] [“Further inquiry was not required because (defendant’s) conclusory assertions did not suggest the serious possibility of a genuine conflict of interest”]). Further, the trial court did engage in a colloquy with defense counsel and properly exercised its discretion by considering the timing of the motion—the morning of jury selection—and expressing its confidence in the abilities of defense counsel, who had conducted 30 to 40 felony trials. A vague, conclusory allegation of “frustration” was not sufficiently specific to require a minimal inquiry by the court, and certainly did not warrant a grant of his motion (*see Medina*, 44 NY2d at 208 [“tensions between client and counsel on the eve of trial” is not good cause]).

While defendant urges that this is a more compelling case than *Sides*, such an argument is not supported by the record. In *Sides*, the defendant’s motion for new counsel was acknowledged by the defense counsel who confirmed an apparent rift in the attorney-client relationship. This Court held that where potential conflict is acknowledged by counsel’s admission of a breakdown in trust and communication, the trial court is obligated to make a minimal inquiry, but here, no facts exist to mandate such a review. A blank form motion and defense counsel’s explanation of defendant’s “frustration” are not specific allegations obligating the trial court to conduct a minimal inquiry in light of the timing of the request on the morning of jury selection and counsel’s assurance of effective representation based on his felony trial experience. Rather, here, as in *People v Beriguet* (84 NY2d 978, 980 [1994]), “[w]e reject defendant’s contention that [the court] was obligated to inquire further, after reviewing his motion for reassignment of counsel, into the factual bases for his *pro se* submission, as defendant failed to show good cause for substitution.” As such, we find no basis to reverse the Appellate Division and overturn defendant’s conviction.

[2] In *Garcia*, the record is clear that throughout the series of court hearings, defendant never indicated any dissatisfaction with counsel until the morning of sentencing (*see Medina*, 44 NY2d at 205 [no dissatisfaction with counsel until the morning

of trial]; *Linares*, 2 NY3d at 511-512 [defendant had no discontent with counsel until the eve of trial]). It was not until the final hearing, where the court indicated that it would enhance defendant's sentence for failure to comply with plea offer conditions, that defendant sought new counsel. Here, the court engaged in sufficient minimal inquiry by directing questions to both defendant and defense counsel, but counsel consistently evaded expounding upon the motion. However, she did acknowledge that defendant had professed a belief that he was coerced by counsel into accepting the guilty plea, and defendant offered a similarly general allegation. The court also properly considered the progress of the case, referring to prior assurances by defendant that he would plead guilty and comply with conditions of the plea offer. It can also be inferred from the record that the motion for new counsel was a possible delay tactic in light of the timing of the request after defendant's persistent refusal to comply with the court's directive. Therefore, it was not an abuse of discretion by the court to conclude that defendant's vague claims were unavailing and to deny the motion, particularly where a lengthy inquiry could not find further facts to support the allegation (*Linares*, 2 NY3d at 511 ["The court . . . reasonably concluded that defendant's vague and generic objections had no merit or substance"]).

Defendant Porto's additional argument, raising an *Apprendi* challenge to New York's mandatory persistent violent felony offender statutes, is also meritless.

Accordingly, in each case, the order of the Appellate Division should be affirmed.

PIGOTT, J. (dissenting). I respectfully dissent. In my view, the trial court's failure to ask defendant William Porto about his motion for assignment of new counsel before denying it was reversible error.

I don't disagree with the majority's statement of basic principles, i.e., that the right to counsel is guaranteed by both the Federal and State Constitutions. However, the trial court's responsibility to protect a defendant's right to counsel does not end with the assignment of a lawyer (*People v Linares*, 2 NY3d 507, 510 [2004]). Because assigned counsel must be effective, we have repeatedly held that "trial courts must carefully evaluate serious complaints about counsel" (*id.*, quoting *People v Medina*, 44 NY2d 199, 207 [1978] [internal quotation marks omitted]), and "should substitute counsel when a defendant can

demonstrate ‘good cause’ ” for substitution (*Linares*, 2 NY3d at 510).

Where defendant’s request for new assigned counsel on its face suggests “a serious possibility” of good cause for substitution, the trial court must inquire into the nature of the problem and whether it may be resolved (*People v Sides*, 75 NY2d 822, 824-825 [1990]). Indeed, although we used the term “minimal inquiry” in *People v Sides* (75 NY2d at 825), implying that a lengthy or extensive inquiry is not necessarily required, we evaluate such an inquiry by considering whether or not it was “diligent and thorough” (*Linares*, 2 NY3d at 511).

Whether the trial court is always obliged to make inquiries of defendant himself is less clear; and this, in my view, is where the experience of the court is most important and where record support for the court’s ruling must be found. What is certain is that a defendant must be given the opportunity to demonstrate whether he has good cause for new assigned counsel, and it seems to me that—at least when the defense counsel whom defendant wants replaced does *not* state in any detail defendant’s reasons for seeking new counsel—a “diligent and thorough” evaluation of defendant’s complaint would necessarily require making an inquiry of defendant himself. One way or the other, “the defendant must at least be given an opportunity to state the basis for his application” (*People v Bryan*, 31 AD3d 295, 296 [1st Dept 2006]).

Here, defendant’s written pro se motion on its own suggests a “serious possibility” that he was in irreconcilable conflict with a lawyer who, according to defendant, would not visit him or keep him apprised of motion practice—until the eve of trial. And certainly defense counsel’s casual assertions about defendant’s frustration tend to support the conclusion of a breakdown of trust.* Significantly, these remarks do not explain away defendant’s complaint, or give the trial court a basis on which to make a careful evaluation of whether trusting communication between attorney and client had been irretrievably broken.

* Porto may reasonably have felt that his lawyer’s representation was flawed. Defense counsel admitted that it was only on May 29, 2007 that he became aware that defendant’s fingerprint had been taken from a cookie tin in complainant’s apartment and initiated the process of finding out whether the tin had been photographed or vouchered. Counsel must not have read the voluntary disclosure form and attachment that he received from the District Attorney, at the time of defendant’s indictment some eight months earlier, carefully enough to see that the cookie tin needed to be preserved.

Defendant's motion, in conjunction with assigned counsel's comments, warranted such an inquiry.

The People argue that the trial court was able, on the basis of counsel's remarks, to ascertain that the disagreement between defendant and his lawyer concerned the mishandling of the cookie tin issue and would be resolved by a motion to preclude the cookie tin evidence. It is far from clear that the cookie tin issue was defendant's only concern about counsel's representation, and I don't see how even that disagreement could reasonably be thought to have been resolved by defense counsel's (unsuccessful) eve-of-trial oral motion to preclude.

The majority rests its decision primarily on the failure of defendant to make "specific factual allegations that would indicate a serious conflict with counsel, despite being provided the space to develop such a complaint" (majority op at 100-101). In fact, defendant made three factual allegations in his pro se application and, if they lack specificity, it is only because they are negative in character, as one would expect from a complaint that a lawyer has failed to communicate.

Like the Appellate Division, the majority of this Court makes much of the fact that defendant's motion was a mere "form" motion (*see* majority op at 96, 100-101, 101). Leaving aside the fact that most motions are a form of one nature or another, the majority's conclusion seems to be that this type of pro se motion is to be frowned upon. To the contrary, I find the fact that a defendant went to the trouble to find such a form, fill it out and submit it to the court to be a strong indication of the seriousness of defendant's claim. Many, if not most, such motions are either made verbally at the time of appearance in court or through counsel—not, as here, in written form. Rather than being criticized, this practice should be encouraged and taken seriously.

I also believe that the majority unfairly highlights the "timing of the request on the morning of jury selection" (majority op at 101), when defendant's motion was apparently completed and signed 10 days earlier, defendant told the trial court that he had sent the application to the court, and the thrust of the application is that defense counsel failed to communicate effectively with defendant. Defense counsel's motion to preclude the fingerprint evidence, let it be noted, was oral and also made on the day of trial.

Defendant's motion and defense counsel's remarks taken together suggest a serious possibility of irreconcilable conflict

between defendant and counsel. Whether defendant actually had good cause for assignment of new counsel is a different matter, which should be carefully separated from whether defendant's request suggested a serious possibility that he had good cause.

Finally, I note that harmless error analysis is not applicable (*People v Arroyave*, 49 NY2d 264, 273 [1980] [“(W)e reject the People’s contention that defendant is entitled to a new trial only if he can demonstrate that he was prejudiced by the court’s denial of the request for substitution of retained counsel and an adjournment to prepare for trial. The constitutional guarantee to be represented by counsel of one’s own choosing is a fundamental right, and the doctrine of harmless error is inapplicable upon a showing that such right has been abridged”]).

In my view, reversal is mandated in light of our clear direction in *Sides* and *Linares*. A defendant is entitled to a new trial where the trial court asked him no questions concerning a serious pro se motion seeking substitution of counsel, but instead limited its inquiry to a cursory questioning of the very counsel with whom the defendant is alleging a conflict: in essence hearing only one side of the story.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and SMITH concur with Judge JONES; Judge PIGOTT dissents in a separate opinion.

In *People v Porto*: Order affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

In *People v Garcia*: Order affirmed.

[944 NE2d 204, 918 NYS2d 766]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HERBERT APONTE, Appellant.

Argued January 6, 2011; decided February 10, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, entered June 29, 2009. The Appellate Term affirmed so much of a judgment of the Criminal Court of the City of New York, Queens County (Deborah Stevens Modica, J.), as had convicted defendant, after a nonjury trial, of attempted stalking in the third degree and harassment in the first degree.

People v Aponte, 24 Misc 3d 118, affirmed.

HEADNOTE

Crimes — Stalking — Attempt

Attempted stalking in the third degree is a legally cognizable offense (Penal Law §§ 110.00, 120.50 [3]). The relevant portions of the penal statute for stalking penalize behavior that is likely to cause harm, and do not require proof of actual harm to establish guilt. Moreover, the statute strictly penalizes conduct—engaging in “a course of conduct . . . likely to cause” certain consequences (Penal Law § 120.50 [3])—and an attempt to engage in that conduct is not a legal impossibility. Thus, because stalking proscribes the performance of certain acts, the attempt to commit those acts is punishable as a criminal offense.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 154–156; AM JUR 2d, Extortion, Blackmail, and Threats §§ 49, 51, 52.

McKINNEY'S, Penal Law §§ 110.00, 120.50 (3).

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 295, 296, 335, 461.

ANNOTATION REFERENCE

Validity, construction, and application of stalking statutes.
29 ALR5th 487.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: attempted /2 stalking /4 third & impossib!

POINTS OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (*Jonathan Garelick* and *Steven Banks* of counsel), for appellant.

I. Attempted stalking in the third degree under subdivision (3) of Penal Law § 120.50 is not a legally cognizable offense. (*People v Campbell*, 72 NY2d 602; *People v Lynn*, 115 Misc 2d 76; *People v Coleman*, 74 NY2d 381; *People v Saunders*, 85 NY2d 339; *People v Miller*, 87 NY2d 211; *People v Prescott*, 95 NY2d 655; *People v Jelke*, 1 NY2d 321; *People v Stuart*, 100 NY2d 412; *People v Martinez*, 81 NY2d 810; *People v Flynn*, 79 NY2d 879.) II. The factual allegations in the information were insufficient as a matter of law to show a “course of conduct” as required for the count of stalking in the third degree, or to show that appellant repeatedly harassed the complainant as required for the count of first degree harassment. (*People v Kalin*, 12 NY3d 225; *People v Alejandro*, 70 NY2d 133; *People v Casey*, 95 NY2d 354; *People v Sedlock*, 8 NY3d 535; *People v Wood*, 59 NY2d 811; *People v Webers*, 9 Misc 3d 135[A], 2005 NY Slip Op 51673[U]; *People v Hogan*, 181 Misc 2d 748.)

Richard A. Brown, District Attorney, Kew Gardens (*Daniel Bresnahan* and *John M. Castellano* of counsel), for respondent.

I. Attempted stalking in the third degree is a legally cognizable crime because the underlying statute punishes conduct rather than unintended results and does not, in and of itself, encompass an attempt. (*People v Coleman*, 74 NY2d 381; *People v Saunders*, 85 NY2d 339; *People v Miller*, 87 NY2d 211; *People v Prescott*, 95 NY2d 655; *People v Dlugash*, 41 NY2d 725; *People v Bracey*, 41 NY2d 296; *People v Naradzay*, 11 NY3d 460; *People v Kassebaum*, 95 NY2d 611; *People v Fullan*, 92 NY2d 690; *People v Simmons*, 92 NY2d 829.) II. The accusatory instrument was facially sufficient, as the factual allegations established each element of the charged offenses. (*People v Miles*, 64 NY2d 731; *People v Dumas*, 68 NY2d 729; *People v Kalin*, 12 NY3d 225; *People v Jones*, 9 NY3d 259; *People v Henderson*, 92 NY2d 677; *People v Casey*, 95 NY2d 354; *People v Iannone*, 45 NY2d 589; *People v Jacoby*, 304 NY 33; *People v Allen*, 92 NY2d 378; *People v Konieczny*, 2 NY3d 569.)

OPINION OF THE COURT

PIGOTT, J.

We are asked on this appeal to decide whether attempted stalking in the third degree (Penal Law §§ 110.00, 120.50 [3]) is

a legally cognizable offense. Because stalking proscribes the performance of certain acts, we hold that the attempt to commit those acts is punishable as a criminal offense.

Defendant was charged by a misdemeanor complaint with the crimes of stalking in the third degree (Penal Law § 120.50 [3]), harassment in the first degree (Penal Law § 240.25) and harassment in the second degree (Penal Law § 240.26). The complaint alleged that defendant followed the complainant for approximately three blocks in his vehicle as she walked from her residence towards her church. After the complainant returned home to contact a friend for a ride to her church, defendant followed the complainant and her friend approximately five blocks, exited his vehicle and confronted the complainant while she was sitting in her friend's vehicle. Defendant then told the complainant: "I am going to kill you." The complaint further alleged that defendant had followed the complainant approximately 25 times over the past three years, at various locations.

Criminal Court granted the prosecutor's motion to reduce the charged count of stalking in the third degree to attempted stalking in the third degree and, as a result, defendant was tried without a jury. He was found guilty of all charges.

Defendant appealed arguing, as relevant here, that attempted stalking in the third degree is not a legally cognizable offense and the allegations in the complaint are too conclusory to provide prima facie evidence of either a course of conduct, as required for the stalking charge, or repeated acts of harassment, as required for one of the harassment counts.

The Appellate Term affirmed the judgment of conviction, finding that the factual allegations of the complaint adequately established every element of the charged offenses. On the issue of whether attempted stalking in the third degree is a legally cognizable offense, the court concluded that it is. (*People v Aponte*, 24 Misc 3d 118 [2009].)

A Judge of this Court granted defendant leave to appeal and we now affirm.

A person commits stalking in the third degree when he or she:

"3. With intent to harass, annoy or alarm a specific person, intentionally engages in a course of conduct directed at such person which is likely to cause such person to reasonably fear physical injury or serious physical injury, the commission of a sex offense

against, or the kidnapping, unlawful imprisonment or death of such person or a member of such person's immediate family" (Penal Law § 120.50 [3]).

Defendant argues that a person may not attempt to commit this crime because the statute already encompasses actions in the nature of an attempt. He points out that a defendant may be guilty of the offense even if, for whatever reason, the conduct in fact fails to result in any harm to the intended target.

Under the Penal Law, "[a] person is guilty of an attempt to commit a crime when, with intent to commit a crime, he engages in conduct which tends to effect the commission of such crime" (Penal Law § 110.00). An attempt exists as an identifiable, separate offense from the crime that is being attempted (see *People v Campbell*, 72 NY2d 602, 605 [1988]). To prove an attempt, the People must show that the defendant acted for a particular criminal purpose, i.e., with intent to commit a specific crime (*id.*).

We have previously held that "where a penal statute imposes strict liability for committing certain *conduct*, an attempt is legally cognizable, since one can attempt to engage in conduct" (*People v Prescott*, 95 NY2d 655, 659 [2001]). For example, in *People v Saunders* (85 NY2d 339 [1995]), the viability of attempted criminal possession of a weapon in the third degree was at issue (Penal Law § 265.02 [1]). This crime, we noted, contained no "result" component; rather, the underlying weapons possession crime proscribed particular conduct (85 NY2d at 343). We held that the defendant "may legally and logically attempt to act in the manner proscribed by this penal statute—namely, to attempt to possess a weapon" (*id.* at 341).

Similarly here, the relevant portions of the penal statute for stalking penalize behavior that is likely to cause harm, and do not require proof of actual harm to establish guilt. While the conduct penalized is defined as engaging in "a course of conduct . . . likely to cause" certain consequences, there is nothing impossible about attempting to engage in such a course of conduct. Thus, if a telephone call or e-mail were "likely to cause" the consequences referred to, an attempt to make such a phone call or send such an e-mail—even if the communication never reached its intended recipient—would be an attempt. In short, the statute strictly penalizes conduct and an attempt to engage in that conduct is not a legal impossibility.

We further agree with the appellate court that the factual allegations of the complaint established every element of stalking in the third degree (Penal Law § 120.50 [3]) and harassment in the first degree (Penal Law § 240.25).

Accordingly, the order of the Appellate Term should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur.

Order affirmed.

[944 NE2d 1098, 919 NYS2d 459]

DALE R. SAN MARCO et al., Appellants, v VILLAGE/TOWN OF
MOUNT KISCO, Respondent.

Argued November 16, 2010; decided December 16, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered December 23, 2008. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Westchester County (Mary H. Smith, J.), which had denied a motion by defendant for summary judgment dismissing the complaint, and (2) granted the motion. The following question was certified by the Appellate Division: “Was the decision and order of this court dated December 23, 2008, properly made?”

San Marco v Village/Town of Mount Kisco, 57 AD3d 874, reversed.

HEADNOTES

Municipal Corporations — Snow and Ice — Prior Notice of Defective Condition

1. Prior written notice statutes do not exempt a municipality from liability as a matter of law where a municipality's negligence in the maintenance of a municipally owned parking facility triggers the foreseeable development of black ice as soon as the temperature shifts. Generally, a prior written notice statute does not protect a municipality from liability if the locality creates the defect or hazard through an affirmative act of negligence that immediately results in the existence of the dangerous condition. The immediacy requirement, created in the context of “pothole cases,” recognizes the difficulty in determining, after the passage of time, whether the initial repair was negligent. The affirmative negligence exception addresses situations where a hazard was foreseeable, insofar as the municipality created it by, for example, digging an unmarked ditch in a road or neglecting to cover a street drain. In view of the public policy rationale for prior written notice statutes, as well as the factual distinctions between each category of case, the immediacy requirement for “pothole cases” should not be extended to cases involving hazards related to negligent snow removal. In the case of black ice that forms from plowing snow in a municipally owned parking facility, a municipality should require no additional notice of the possible danger arising from its method of snow clearance apart from widely available local temperature data.

Municipal Corporations — Snow and Ice — Prior Notice of Defective Condition — Negligent Snow Removal

2. In an action to recover damages for injuries sustained by plaintiff when she slipped and fell on black ice in a municipal parking lot as the result of defendant municipality's alleged negligent snow removal efforts on the preceding day, defendant's motion for summary judgment was denied, notwithstanding

that it had not received written notice of the black ice condition (Village Law § 6-628). Prior written notice statutes were never intended to and ought not exempt a municipality from liability as a matter of law where a municipality's negligence in the maintenance of a municipally owned parking facility triggers the foreseeable development of black ice as soon as the temperature shifts. Further, plaintiff raised triable issues of fact as to whether she fell on ice created by defendant's snow clearance operation and whether defendant exercised its duty of care to maintain the parking lot in a reasonably safe condition by plowing snow high alongside active parking spaces, and in failing to salt or sand the lot on weekends, despite the fact that it remained open seven days a week.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Highways, Streets, and Bridges §§ 518–520, 523, 527; AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 99, 245, 250, 252.

NY JUR 2d, Government Tort Liability §§ 129, 347, 351, 359, 363, 366.

PROSSER AND KEETON, TORTS (5th ed) §§ 62, 131.

ANNOTATION REFERENCE

Liability for injuries in connection with ice or snow on nonresidential premises. 95 ALR3d 15.

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Query: municipal! /s written /2 notice /s ice snow & creat!
/4 hazard!

POINTS OF COUNSEL

Michael Fuller Sirignano, Cross River, for appellants. I. The Village/Town of Mount Kisco failed to meet its duty of care to maintain the parking lot in a reasonably safe condition. (*City of Rochester v Campbell*, 123 NY 405; *Taylor v City of Yonkers*, 105 NY 202; *Preston v State of New York*, 59 NY2d 997; *Bass v City of New York*, 38 AD2d 407, 32 NY2d 894; *Duren v City of Binghamton*, 172 Misc 580, 258 App Div 694, 283 NY 467; *Tompkins v Hunter*, 149 NY 117; *Transit Commn. v Long Is. R.R. Co.*, 253 NY 345; *Doremus v Incorporated Vil. of Lynbrook*, 18 NY2d 362; *Calderon v New York City Hous. Auth.*, 37 AD2d 837; *Haney v First Natl. Stores*, 31 AD2d 547.) II. The Appellate Division incorrectly concluded that the Village/Town of Mount Kisco met its initial burden as the movant for summary judgment. (*Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Torres v*

Industrial Container, 305 AD2d 136; *Britto v Great Atl. & Pac. Tea Co., Inc.*, 21 AD3d 436; *Joachim v 1824 Church Ave., Inc.*, 12 AD3d 409; *Santoliquido v Roman Catholic Church of Holy Name of Jesus*, 37 AD3d 815; *Jablons v Peak Health Club, Inc.*, 19 AD3d 369; *Knee v Trump Vil. Constr. Corp.*, 15 AD3d 545; *Karalic v City of New York*, 307 AD2d 254; *Cody v DiLorenzo*, 304 AD2d 705; *Giamboi v Manor House Owners Corp.*, 277 AD2d 201.) III. The Appellate Division mistakenly applied the *Yarborough v City of New York* (10 NY3d 726 [2008]) causality test of “immediacy” to this slip and fall on ice case. (*Cruz v New York City Tr. Auth.*, 136 AD2d 196; *Roberts v Arrow Boat Club*, 46 AD2d 815; *Oboler v City of New York*, 8 NY3d 888; *Bi-elecki v City of New York*, 14 AD3d 301; *Smith v County of Orange*, 51 AD3d 1006; *Ricca v Ahmad*, 40 AD3d 728; *Knee v Trump Vil. Constr. Corp.*, 15 AD3d 545; *Baillet v Auerbach*, 277 AD2d 335; *Grizzaffi v Paparodero Holding Corp.*, 261 AD2d 437; *Roca v Gerardi*, 243 AD2d 616.) IV. Summary judgment was improperly granted because appellants came forward with proof raising triable issues of disputed fact. (*City Univ. of N.Y. v Finalco, Inc.*, 93 AD2d 792; *Robinson v Strong Mem. Hosp.*, 98 AD2d 976; *Glick v City of New York*, 139 AD2d 402; *Conte v Brill*, 111 AD2d 210; *Cunningham v General Elec. Credit Corp.*, 96 AD2d 502; *Krupp v Aetna Life & Cas. Co.*, 103 AD2d 252; *Rotuba Extruders v Ceppos*, 46 NY2d 223; *Olivieri v GM Realty Co., LLC*, 37 AD3d 569; *Vilorio v Suffolk Y Jewish Community Ctr., Inc.*, 33 AD3d 696; *Comstock v Bensky*, 275 NY 476.)

Congdon, Flaherty, O’Callaghan, Reid, Donlon, Travis & Fishlinger, Uniondale (Kathleen D. Foley of counsel), for respondent. I. The affirmative creation exception to the prior written notice laws properly requires proof that the work performed by the municipality immediately resulted in the creation of a dangerous condition. (*Yarborough v City of New York*, 10 NY3d 726; *Oboler v City of New York*, 8 NY3d 888; *Schleif v City of New York*, 60 AD3d 926; *Weiss v Fote*, 7 NY2d 579; *Amabile v City of Buffalo*, 93 NY2d 471; *Zahn v City of New York*, 299 NY 581; *Hirasawa v City of Long Beach*, 57 AD3d 846; *Diaz v City of New York*, 56 AD3d 599; *Smith v Village of Rockville Ctr.*, 57 AD3d 649; *Lugo v County of Essex*, 260 AD2d 711.) II. Once the Village/Town of Mount Kisco established that it did not receive prior written notice of the dangerous icy condition, the burden shifted to plaintiff to establish that the work performed by the municipality immediately resulted in the creation of the defective condition. (*Yarborough v City of New York*, 10 NY3d 726; *Babenzien v Town of Fenton*, 67 AD3d 1236;

Groninger v Village of Mamaroneck, 67 AD3d 733; *Lastowski v V.S. Virkler & Son, Inc.*, 64 AD3d 1159; *Boice v City of Kingston*, 60 AD3d 1140; *Cimino v City of White Plains*, 65 AD3d 1069; *Jason v Town of N. Hempstead*, 61 AD3d 936.) III. There is no merit to plaintiff's new contention that the parking lot at issue is not a "highway" within the meaning of the prior written notice laws, nor is that a proper legal question on this appeal. (*Misicki v Caradonna*, 12 NY3d 511; *Quain v Buzzetta Constr. Corp.*, 69 NY2d 376; *City of Mount Vernon v Mount Vernon Hous. Auth.*, 235 AD2d 516; *Walker v Incorporated Vil. of Freeport*, 52 AD3d 697; *Shannon v Village of Rockville Ctr.*, 39 AD3d 528; *Doherty v Town of Clarkstown*, 233 AD2d 477; *Peters v City of White Plains*, 58 AD3d 824; *Tuzzolo v Town of Hempstead*, 292 AD2d 446; *Bang v Town of Smithtown*, 291 AD2d 516; *Mendes v Whitney-Floral Realty Corp.*, 216 AD2d 540.) IV. Plaintiff's proof failed to establish that the ice patch on which she slipped was, in fact, directly traceable to the snow piles created by the Village/Town of Mount Kisco. (*Mahaney v Neuroscience Ctr.*, 28 AD3d 432; *Simmons v Metropolitan Life Ins. Co.*, 84 NY2d 972; *Scavuzzo v City of New York*, 47 AD3d 793; *Lopez v G&J Rudolph Inc.*, 20 AD3d 511; *McCord v Olympia & York Maiden Lane Co.*, 8 AD3d 634.)

Timothy J. Keane, New York City, *Brendan T. Fitzpatrick*, *David B. Hamm* and *Fiedelman & McGaw*, Jericho (*Andrew Zajac* and *Dawn C. DeSimone* of counsel), for Defense Association of New York, Inc., amicus curiae. The Village/Town of Mount Kisco neither created nor had written notice of black ice upon which plaintiff allegedly slipped. (*MacMullen v City of Middletown*, 187 NY 37; *Amabile v City of Buffalo*, 93 NY2d 471; *Yarborough v City of New York*, 10 NY3d 726; *Oboler v City of New York*, 8 NY3d 888; *Gorman v Town of Huntington*, 12 NY3d 275; *Bielecki v City of New York*, 14 AD3d 301; *Stallone v Long Is. R.R.*, 69 AD3d 705; *Rudden v Bernstein*, 61 AD3d 736; *Carlo v Town of Babylon*, 55 AD3d 769; *Lincourt v Village of W. Winfield*, 55 AD3d 1438.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

[1, 2] This appeal presents the question of whether a prior written notice statute acts as an absolute bar to recovery against a municipality where a plaintiff slipped and fell on black ice that formed on the municipality's property. Since the ice hazard at issue may have been created by the municipality's negligent

snow removal efforts, and, if so, the municipality may have known of the hazard, we conclude that Supreme Court properly denied defendant's motion for summary judgment.

Plaintiff Dale San Marco slipped and fell in a parking lot owned by defendant Village/Town of Mount Kisco (the Village) while on her way to work on Saturday, February 5, 2005 at approximately 8:15 A.M. At 4:45 A.M. on the previous morning, the Village had treated the parking lot for ice conditions. However, the Village did not employ a work crew on Saturdays and Sundays to monitor the parking lot for dangerous conditions. It is undisputed that in the interim between the Village's last inspection and salting of the lot early on Friday morning and San Marco's fall on Saturday morning, the air temperature had risen above freezing for approximately 19 hours and then dropped.

As a result of her fall, San Marco suffered a concussion, fractured her sacrum and herniated several cervical discs. Her injuries required a bone graft and surgical installation of a titanium plate affixed to her spine and secured by 13 screws. In May 2005, San Marco and her husband, suing derivatively, commenced this action, seeking to recover damages for her personal injuries. San Marco alleged that she fell on a patch of black ice that was caused by the melting and refreezing of a pile of snow that the Village had plowed into a row of meters adjacent to the parking spaces. San Marco further alleged both that the Village was negligent in plowing the snow so near the parking spaces and negligent in failing to take measures to remedy any dangerous ice conditions that developed.

In response, the Village asserted that Village Law § 6-628 and Village of Mount Kisco Code § 93-47 shielded it from liability in the absence of prior written notice. Pursuant to Village Law § 6-628, a municipality cannot be liable as a matter of law "unless written notice of the defective, unsafe, dangerous or obstructed condition or of the existence of the snow or ice, relating to the particular place, was actually given to the village clerk." The Village consequently established before the motion court that its clerk had not received written notice regarding a defective condition in the parking lot where San Marco fell.

Supreme Court, however, rejected the Village's argument that the action should be dismissed because no one had given written notice of a black ice condition. The court reasoned that the Village's snow removal procedure triggered an exception to the written notice statute, finding a question of fact as to whether

the Village might have created the hazardous ice condition. Under *Amabile v City of Buffalo* (93 NY2d 471 [1999]), a prior written notice statute does not protect a municipality from liability if it can be proven that the “locality created the defect or hazard through an affirmative act of negligence” (*id.* at 474).

The Appellate Division reversed and granted the Village summary judgment, concluding that this Court’s holdings in *Yarborough v City of New York* (10 NY3d 726 [2008]) and *Oboler v City of New York* (8 NY3d 888 [2007]) controlled in cases of melting and freezing snow. *Yarborough* and *Oboler*, which respectively dealt with hazards caused by a pothole and an uneven manhole cover, held that the “affirmative negligence” exception to prior written notice statutes applies only where the action of the municipality “immediately results in the existence of a dangerous condition” (*Yarborough*, 10 NY3d at 728, quoting *Oboler*, 8 NY3d at 889). Reasoning that this “immediacy test” extends to snow melting cases, the Second Department found that the Village’s action of snowplowing did not amount to “immediate creation” of the hazard that San Marco allegedly encountered (57 AD3d 874, 877 [2d Dept 2008]). Rather, the Court found, “the environmental factors of time and temperature fluctuations . . . caused the allegedly hazardous condition” (*id.*).

The Appellate Division granted plaintiffs leave to appeal. We reverse and deny summary judgment.

[1] Reviewing the public policy rationale for prior written notice statutes, as well as the factual distinctions between each category of case, we conclude that the immediacy requirement for “pothole cases” should not be extended to cases involving hazards related to negligent snow removal. In reaching the conclusion that the Village should not be shielded from liability as a matter of law in the present case, we uphold the general underlying purpose of prior written notice statutes. Although it can be harsh for plaintiffs in many cases, it is sensible that the municipality is exempt from liability for injuries on public property unless the municipality knew of the problem. Prior written notice statutes were designed precisely to release municipalities from the “vexing problem of municipal street and sidewalk liability” (*Barry v Niagara Frontier Tr. Sys.*, 35 NY2d 629, 633 [1974]) when they have no reasonable opportunity to remedy the problem (*see e.g. Jagoda v City of Dunkirk*, 43 AD2d 795, 796 [4th Dept 1973] [“Notice provisions . . . are intended to insure that a municipality be given reasonable opportunity to cure defective conditions, the existence of which it could not be expected to know absent some sort of positive appraisal”]).

We recognized the importance of actual notice in *Doremus v Incorporated Vil. of Lynbrook* (18 NY2d 362 [1966]), stating that prior written notice statutes represent “an effort to exempt . . . villages from liability for holes and breaks of a kind which do not immediately come to the attention of the village officers unless they are given actual notice thereof” (*id.* at 366). In keeping with this emphasis, we developed in *Amabile* the exception for the municipality’s affirmative creation of the hazardous condition that caused injury.

Then, in *Yarborough* and *Oboler*, we held that a municipality could only be liable for its actions that immediately produced a hazardous condition. These holdings merely reinforced the object of prior written notice statutes to protect municipalities from liability for a road construction or repair, recognizing the difficulty in determining, after the passage of time, whether the initial repair was negligent. At the same time, the affirmative negligence exception addressed situations where a hazard was foreseeable, insofar as the municipality created it by, for example, digging an unmarked ditch in a road or neglecting to cover a street drain.

Considering the present facts in light of the underlying purpose of prior written notice statutes, we find these statutes were never intended to and ought not exempt a municipality from liability as a matter of law where a municipality’s negligence in the maintenance of a municipally owned parking facility triggers the foreseeable development of black ice as soon as the temperature shifts. Unlike a pothole, which ordinarily is a product of wear and tear of traffic or long-term melting and freezing on pavement that at one time was safe and served an important purpose, a pile of plowed snow in a parking lot is a cost-saving, pragmatic solution to the problem of an accumulation of snow that presents the foreseeable, indeed known, risk of melting and refreezing.

Moreover, a patch of pavement may gradually and unpredictably deteriorate, making the point at which the efficacy of the initial repair ceases unknown to the municipality. It is therefore understandable that the hazard may escape detection until the municipality receives written notice of the problem. However, in the case of black ice that forms from plowing snow in a municipally owned parking facility, a municipality should require no additional notice of the possible danger arising from its method of snow clearance apart from widely available local temperature data. Indeed, there is evidence that in the case at

bar, the Village treated the same parking lot with salt and sand the day before the accident, in order to limit the hazards of black ice. Thus, the determinative factor in this case should be whether the Village's snow removal efforts created the ice condition on which San Marco fell.

We have recognized the problem of negligent snow removal going back to 1949 in *Zahn v City of New York* (299 NY 581 [1949]), where judgment for the injured plaintiff was affirmed upon similar facts—that a plaintiff fell on black ice that had accumulated as a result of melting and refreezing of snow that the property owner had shoveled on the sidewalk in front of her home. Although this case involved a private defendant, since that time there have been Appellate Division cases holding that a municipal defendant may be liable for a negligent ice condition without prior written notice. For example, on almost identical facts to the present case, in *Smith v County of Orange* (51 AD3d 1006 [2d Dept 2008]), the Second Department held that there was a triable issue of fact “regarding whether the ice upon which the plaintiff slipped was formed when snow piles created by the County’s snow removal efforts melted and refroze” (*id.* at 1006; *see also Brownell v City of New York*, 277 AD2d 31 [1st Dept 2000], *lv denied* 96 NY2d 712 [2001]; *Rector v City of New York*, 259 AD2d 319 [1st Dept 1999]; *Glick v City of New York*, 139 AD2d 402 [1st Dept 1988]).

[2] We do not hereby create a new burden on municipalities to remove all snow off-premises in order to avoid liability (*see e.g. Zwiulich v Incorporated Vil. of Freeport*, 208 AD2d 920 [2d Dept 1994]). Nor do we seek to render the municipality an insurer of pedestrians. However, at this juncture, plaintiff raises triable issues of fact that compel denial of summary judgment. Primarily, a jury must decide whether San Marco fell on ice created by the Village’s snow clearance operation. And relatedly, there are factual issues concerning whether the Village exercised its duty of care to maintain the parking lot in a reasonably safe condition by plowing snow high alongside active parking spaces, and in failing to salt or sand the lot on weekends, despite the fact that it remained open seven days a week.

Accordingly, the order of the Appellate Division should be reversed, with costs, and defendant’s motion for summary judgment denied. The certified question need not be answered upon the ground that it is unnecessary.

SMITH, J. (dissenting). The majority opinion seems to say that no written notice requirement applies in this case because the Village should have foreseen that its method of removing snow would create a hazard. This amounts to saying that no written notice is required because the municipality was negligent. But the whole point of written notice legislation is to protect municipalities from liability, even where they are negligent, unless they have received written notice of the hazard in question. The majority decision frustrates this legislative aim, contradicting both the text of the written notice requirements and our recent holdings in *Oboler v City of New York* (8 NY3d 888 [2007]) and *Yarborough v City of New York* (10 NY3d 726 [2008]). I therefore dissent.

Village Law § 6-628 says:

“No civil action shall be maintained against the village for damages or injuries to person or property sustained in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk being defective, out of repair, unsafe, dangerous or obstructed or for damages or injuries to person or property sustained solely in consequence of the existence of snow or ice upon any sidewalk, crosswalk, street, highway, bridge or culvert unless written notice of the defective, unsafe, dangerous or obstructed condition or of the existence of the snow or ice, relating to the particular place, was actually given to the village clerk and there was a failure or neglect within a reasonable time after the receipt of such notice to repair or remove the defect, danger or obstruction complained of, or to cause the snow or ice to be removed, or the place otherwise made reasonably safe.”

Village of Mount Kisco Code § 93-47 is very similar:

“No civil action shall be brought or maintained against the Village of Mount Kisco for damages or injuries to person or property sustained in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk being defective, out of repair, unsafe, dangerous or obstructed or in consequence of the existence or accumulation of snow or ice upon any street, highway, bridge, culvert, sidewalk or crosswalk, unless written notice of the existence of

such condition, relating to the particular place, had theretofore actually been given to the Board of Trustees of the Village of Mount Kisco and there had been a failure or neglect on the part of said village to cause such condition to be corrected or such snow or ice to be removed or the place otherwise made reasonably safe within a reasonable time after the receipt of such notice.”

Written notice requirements of this kind are common in New York. Ordinarily they do not, as these provisions do not, include in their text an exception for hazards the municipalities created. We have nevertheless recognized such an exception—not, as the majority implies, to nullify the requirement in every case in which a municipality negligently fails to foresee the consequence of its actions, but to take account of cases in which a prior written notice requirement would be anomalous. Thus, if a city construction crew digs a hole in the street, it would seem absurd to immunize the city from lawsuits by pedestrians who fall in the hole on the ground that no one gave the city written notice of the hole’s existence (*see Doremus v Incorporated Vil. of Lynbrook*, 18 NY2d 362, 366 [1966] [written notice requirements were designed to exempt municipalities from roadway defects “which do not immediately come to the attention of the village officers”]). *Kiernan v Thompson* (73 NY2d 840 [1988]) was a case of this type. Where the City of Ithaca, in removing a tree stump, had left a crack in the sidewalk, we held that “since the City created the crack in the pavement, plaintiff was not required to provide it with prior written notice of the unsafe condition” (*id.* at 842).

Our cases also recognize, however, that the rationale of the exception does not apply where a condition that the municipality creates is not immediately dangerous, but becomes so with the passage of time. In such cases the municipality may be at fault for not foreseeing the danger, but that is irrelevant; there is, by hypothesis, fault by the municipality in every case to which a prior written notice requirement applies. Where the danger is not the immediate result of the municipality’s negligent act, it cannot be said with certainty—as it can in the case of the hole the city itself dug—that the municipality actually knew of the danger. In such cases, therefore, the municipality is entitled to prior written notice.

As the Appellate Division explained in *Bielecki v City of New York* (14 AD3d 301, 301-302 [1st Dept 2005]):

“We understand the affirmative negligence exception to the notice requirement to be limited to work by the City that immediately results in the existence of a dangerous condition. . . . If we were to extend the affirmative negligence exception to cases like this one, where it is alleged that a dangerous condition developed over time from an allegedly negligent municipal repair, the exception to the notice requirement would swallow up the requirement itself, thereby defeating the purpose of the Pothole Law.”

We adopted the reasoning of *Bielecki* in two recent cases, *Oboler* (8 NY3d at 889-890 [case dismissed where plaintiff failed to show that a height differential between a manhole cover and the adjoining asphalt existed immediately after the city’s resurfacing of the roadway]) and *Yarborough* (10 NY3d at 728 [case dismissed where city was allegedly negligent in repairing a pothole, causing deterioration “over time with environmental wear and tear”]). These cases effectively overruled our affirmation several decades ago of the Appellate Division’s decision in *Muszynski v City of Buffalo* (33 AD2d 648 [4th Dept 1969], *affd on op below* 29 NY2d 810 [1971]). *Oboler* and *Yarborough* essentially adopt the view of Judge Scileppi, dissenting in *Muszynski*, that written notice is required where “the dangerous condition was not created immediately and consequently” upon a municipality’s action (29 NY2d at 813).

The majority here distinguishes *Oboler* and *Yarborough* on the ground that those cases involved defects in the pavement itself, not ice that formed on the pavement. The majority’s reasoning is that, while it is “understandable” that deterioration of the pavement resulting from negligent street repair “may escape detection” (majority op at 117), a negligently created pile of snow “presents the foreseeable, indeed known, risk of melting and refreezing” (*id.* at 117). But this confuses the issue of written notice with the issue of negligence. If a risk is neither foreseeable nor known, the municipality is not liable for it at all—the written notice statute is unnecessary. The premise of the plaintiff’s case, in a case like *Oboler* or *Yarborough*, is that the municipality should have foreseen, but negligently failed to foresee, that its way of repairing the streets would cause the pavement to deteriorate. There is, in other words, no logical distinction between pavement-defect cases like *Oboler* and *Yarborough* and snow-and-ice cases like this one. The written

notice requirements here apply by their terms to the “accumulation of snow or ice.”

Of course it can be said in a case like this—as it could be said in *Oboler*, *Yarborough*, *Bielecki* and similar cases—that it is unfair to leave plaintiffs uncompensated for an injury that a municipality negligently caused, but that is what prior written notice requirements do. Such requirements may be harsh, but they are “a valid exercise of legislative authority” (*Amabile v City of Buffalo*, 93 NY2d 471, 473 [1999]). The State, which has created municipalities and has, by abrogating the old rule of sovereign immunity, permitted citizens to bring actions against them, has chosen to limit those lawsuits to cases in which a municipality has received written notice of the hazard complained of. Because the Village here received no such notice, this case should be dismissed.

Judges CIPARICK, PIGOTT and JONES concur with Chief Judge LIPPMAN; Judge SMITH dissents in a separate opinion in which Judges GRAFFEO and READ concur.

Order reversed, etc.

[944 NE2d 634, 919 NYS2d 99]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TONY
WEAVER, Appellant.

Argued January 4, 2011; decided February 10, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 30, 2009. The Appellate Division affirmed a judgment of the Wayne County Court (Dennis M. Kehoe, J.), which had convicted defendant, upon a jury verdict, of resisting arrest and disorderly conduct (two counts).

People v Weaver, 68 AD3d 1781, affirmed.

HEADNOTE

Crimes — Disorderly Conduct — Sufficiency of Evidence

In a prosecution arising from an altercation involving defendant, his wife and two police officers, the evidence was legally sufficient to sustain defendant's convictions for disorderly conduct based on proof that his conduct recklessly created a risk of public inconvenience, annoyance or alarm within the meaning of Penal Law § 240.20. In assessing whether disruptive behavior proscribed by Penal Law § 240.20 reaches the point of a potential or immediate public problem, factors to be considered include the time and place of the episode, the nature and character of the conduct, the number of other people in the vicinity and whether they are drawn to the disturbance. There is no per se requirement that members of the public must be involved or react to the incident. Rather, the attention generated by a defendant's activities, or the lack thereof, is a relevant factor to be considered in the public dimension calculus. Here, the commotion, which began in a hotel parking lot and then extended into a public street, occurred during the early morning hours when peace and quiet would be expected, a number of people were in the immediate vicinity, and it could be inferred that guests were sleeping in the nearby hotel. Moreover, defendant's conduct quickly escalated into a very vocal and aggressive confrontation, and, despite three warnings from one of the police officers, he became increasingly agitated and belligerent, repeatedly shouting obscenities at his wife and the police officer.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Breach of Peace and Disorderly Conduct §§ 23–32.

McKINNEY's, Penal Law § 240.20.

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1817, 1819, 1822.

ANNOTATION REFERENCE

See ALR Index under Breach of Peace and Disorderly Conduct.

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POINTS OF COUNSEL

William G. Pixley, Rochester, and *Ronald C. Valentine*, *Public Defender*, Lyons, for appellant. I. Until a dispute reaches the point where it has potential or immediate public ramifications, it is not punishable as disorderly conduct. Whether a dispute has reached that defining moment depends upon the nature and number of people attracted by the commotion. Missing is evidence that Mr. Weaver's dispute attracted any public attention. Thus, there is legally insufficient evidence supporting the verdict convicting him of disorderly conduct. (*People v Munafo*, 50 NY2d 326; *People v Chesnick*, 302 NY 58; *People v Canner*, 88 Misc 2d 85, 40 NY2d 886; *People v Todaro*, 26 NY2d 325; *People v Perry*, 265 NY 362; *People v Pritchard*, 27 NY2d 246; *People v Tichenor*, 89 NY2d 769, 522 US 918; *People v Szepeansky*, 25 Misc 2d 239; *People v Monnier*, 280 NY 77; *People v Galpern*, 259 NY 279.) II. A jury charge fails in its purpose if it is misleading. The charge in this case on disorderly conduct was misleading to the extent it did not include requested language reflecting the holding of *People v Munafo* (50 NY2d 326 [1980]). A jury, upon hearing the entire charge, would not gather from its language that the required risk is measured not by the place of the disturbance but by the nature and number of the people attracted to the commotion. (*People v Samuels*, 99 NY2d 20; *People v Ladd*, 89 NY2d 893; *People v Mike*, 92 NY2d 996; *People v Odell*, 230 NY 481; *People v Owens*, 69 NY2d 585.) III. Absent proof of probable cause to arrest, a conviction for resisting arrest cannot stand. There is legally insufficient proof of probable cause to arrest Mr. Weaver for disorderly conduct. Thus, that count charging him with resisting arrest should be dismissed. (*People v Jensen*, 86 NY2d 248; *People v Maldonado*, 86 NY2d 631; *People v Carrasquillo*, 54 NY2d 248; *People v Robinson*, 97 NY2d 341; *People v Cooper*, 38 AD3d 678; *People v Peters*, 136 AD2d 750, 72 NY2d 864; *People v Mehdi*, 29 NY2d 824; *People v Welch*, 289 AD2d 936, 98 NY2d 641; *People v Ormsby*, 30 AD3d 757; *People v Early*, 85 AD2d 752.)

Richard M. Healy, District Attorney, Lyons (Wendy Evans Lehmann of counsel), for respondent. I. The evidence at trial was sufficient for a rational trier of fact to have found beyond a reasonable doubt that defendant used abusive language and engaged in violent, tumultuous or threatening behavior in a public place and recklessly created a risk of causing public inconvenience, annoyance or alarm. (*People v Munafo*, 50 NY2d 326; *People v Diaz*, 22 Misc 3d 624; *People v Todaro*, 26 NY2d 325; *People v Galpern*, 259 NY 279; *People v Most*, 171 NY 423; *People v Carter*, 163 Misc 2d 643; *People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *People v Gaimari*, 176 NY 84; *People v Bleakley*, 69 NY2d 490.) II. Defendant's claim concerning the legal sufficiency of the jury instruction on disorderly conduct is only partially preserved. In any event, both the charges concerning disorderly conduct were sufficient to convey the correct rules to be applied. Defendant was not entitled to the precise phraseology he wanted, and the charges as given were correct and sufficient. (*People v Gray*, 86 NY2d 10; *People v Munafo*, 50 NY2d 326; *People v Samuels*, 99 NY2d 20; *People v Most*, 171 NY 423; *People v Diaz*, 22 Misc 3d 624; *People v Ladd*, 89 NY2d 893; *People v Russell*, 266 NY 147.) III. There was legally sufficient proof at trial that the arresting officer had reasonable cause to believe an offense had been or was being committed in her presence. Other proof being uncontrovertedly sufficient, the evidence supporting the verdict of guilty of resisting arrest was legally sufficient. (*People v Early*, 85 AD2d 752; *People v Todaro*, 26 NY2d 325; *People v Galpern*, 259 NY 279; *Brinegar v United States*, 338 US 160; *People v McDermott*, 279 AD2d 361, 96 NY2d 803; *People v Laltoo*, 22 AD3d 230; *People v Putt*, 303 AD2d 992; *People v Thomas*, 239 AD2d 246, 90 NY2d 911; *People v Martin*, 222 AD2d 528, 88 NY2d 850; *People v Mayi*, 198 AD2d 444.)

OPINION OF THE COURT

GRAFFEO, J.

The issue raised by this appeal is whether defendant's convictions for disorderly conduct are supported by legally sufficient evidence. We conclude that they are and therefore affirm the order of the Appellate Division.

At around 1:25 A.M. on May 25, 2008, Sergeant House, while on routine patrol in the Village of Newark, came upon defendant Tony Weaver yelling and waving his arms at a woman in a parking lot outside of a hotel. Both were dressed in wedding attire. When the officer stopped her vehicle, defendant walked

across the street and entered a mini-mart gas station. The woman, who was sitting on the curb and in tears, explained to House that defendant and she had been married that day and had been fighting. The woman declined House's offer of help and assured the officer that she would stay the night at the hotel.

As House began to drive out of the lot, she observed defendant leave the mini-mart. When his wife approached him, defendant again became agitated and began yelling at her. He shouted at his wife to "get the f— away from me," among a stream of other obscenities. After observing this encounter, House pulled her vehicle near defendant and suggested that he calm down and that the couple needed to take their dispute somewhere else. Defendant responded by telling the officer to "shut the f— up" because she "wasn't his mother" and could not tell him what to do. House described defendant's tone as "[v]ery loud" and his demeanor as "very aggressive" and "very threatening." She also believed that he was intoxicated.

Sensing that the situation was escalating and that defendant was creating a disturbance, House radioed for backup. She then exited her vehicle and warned defendant that he needed to stop yelling and swearing or he would be arrested for disorderly conduct. Defendant again loudly used profanity and declared that "if you put your hands on me, bitch, you will be taking me to jail." At around this time, Sergeant Thomson arrived in response to House's radio call. House gave defendant a third warning to settle down. He refused to comply, instead continuing to hurl obscenities at his wife and House, causing House to conclude that defendant was not going to quiet down. House then advised defendant that he was under arrest for disorderly conduct. When House directed defendant to get into the back seat of the police vehicle, he refused and a struggle ensued, during which defendant punched Thomson in the face and injured House's arm. The officers eventually arrested defendant after Thomson used a taser to subdue him.

At the time of the incident, the hotel and mini-mart were both open for business. Two employees were inside the mini-mart and at least one customer was using a gas pump during the commotion. In addition, two vehicles accessed a nearby ATM while the disturbance progressed.

Following his arrest, defendant was indicted for assault in the second degree (Penal Law § 120.05 [3]), resisting arrest (Penal

Law § 205.30) and two counts of disorderly conduct (Penal Law § 240.20 [1], [3]). A jury acquitted defendant of second-degree assault but convicted him of resisting arrest and both counts of disorderly conduct. Defendant was sentenced to one year for resisting arrest and 15 days for each of the disorderly conduct convictions, all to be served concurrently. The Appellate Division affirmed (68 AD3d 1781 [4th Dept 2009]), and a Judge of this Court granted defendant leave to appeal (14 NY3d 807 [2010]).

Defendant argues that the evidence was legally insufficient to sustain the disorderly conduct convictions. He maintains that his behavior did not have the requisite potential or actual ramifications related to a public disturbance because there was no proof that the altercation with his wife and the police officers attracted attention from or annoyed any bystanders. The People respond that the evidence, viewed in the light most favorable to the prosecution, was legally sufficient to establish defendant's guilt beyond a reasonable doubt.

As relevant here, a person is guilty of disorderly conduct when

“with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

“1. He engages in fighting or in violent, tumultuous or threatening behavior; or . . .

“3. In a public place, he uses abusive or obscene language, or makes an obscene gesture” (Penal Law § 240.20 [1], [3]).

Defendant acknowledges that there was ample proof that he committed the conduct described in subdivisions (1) and (3), but claims that he did not recklessly create a risk of public inconvenience, annoyance or alarm because the confrontation was not public; instead it was merely a private encounter.

It is well established that “the disruptive behavior proscribed by our disorderly conduct statute be of public rather than individual dimension” (*People v Munafo*, 50 NY2d 326, 331 [1980]). As we have explained:

“[D]isorderly conduct is a statutory creation. Intended to include in the main various forms of misconduct which at common law would often be prosecuted as public nuisances . . . a common thread that ran through almost all of this legislation was a desire to deter breaches of the peace or,

more specifically, of the community's safety, health or morals. . . . And, although it has always been difficult to essay any precise definition of breach of the peace . . . , this court has equated that term with public inconvenience, annoyance or alarm, the governing phrase of our current disorderly conduct statute" (*People v Tichenor*, 89 NY2d 769, 773-774 [1997] [internal quotation marks, citation and emphasis omitted], *cert denied* 522 US 918 [1997]).

Consequently, a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes "a potential or immediate public problem" (*Munafò*, 50 NY2d at 331). In assessing whether an act carries public ramifications, relevant factors to consider are the time and place of the episode under scrutiny; the nature and character of the conduct; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances (*see id.*; *People v Pritchard*, 27 NY2d 246, 248-249 [1970]).

And, contrary to defendant's position, there is no per se requirement that members of the public must be involved or react to the incident. Rather, the attention generated by a defendant's activities, or the lack thereof, is a relevant factor to be considered in the public dimension calculus. We have made clear that a defendant may be guilty of disorderly conduct regardless of whether the action results in public inconvenience, annoyance or alarm if the conduct recklessly creates a risk of such public disruption (*see People v Todaro*, 26 NY2d 325, 329 [1970] [stating that the defendant's "emphasis on the contention that the fact of disorder was not established, to the exclusion of the risk that it might come to pass, ignores the very terms of the statute itself" (emphasis omitted)]; *People v Kennedy*, 19 NY2d 761, 762 [1967] ["It is enough that disorder was threatened by defendant's conduct"]).

Here, the commotion occurred during the early morning hours when peace and quiet would be expected in this small village. The incident began in a public parking lot adjacent to a hotel and extended into a public street near the hotel and mini-mart, both of which were open for business. Although there was no testimony at trial from onlookers, there was evidence that a number of people were in the immediate vicinity, whether pumping gas, using the ATM or working at the mini-mart. It can also

reasonably be inferred that guests were sleeping in the nearby hotel.

Moreover, over a short time period, defendant's conduct escalated into a very vocal and aggressive confrontation. House warned defendant on three separate occasions to cease his conduct and leave the area. Rather than heed these warnings, defendant became increasingly agitated and belligerent, repeatedly shouting obscenities at his wife and the officer. After the final warning, House determined that defendant was not going to cease creating a disturbance and effectuated his arrest with the help of Thomson. On these facts, we believe that the jury had sufficient evidence to "weigh the whole incident" (*Tichenor*, 89 NY2d at 776) and logically conclude beyond a reasonable doubt that defendant recklessly created a risk of public inconvenience, annoyance or alarm within the meaning of the statute. In other words, based on the events leading up to defendant's arrest, there is a valid line of reasoning and permissible inferences from which a jury could have found that his conduct reached the point of "a potential or immediate public problem" (*Munafò*, 50 NY2d at 331).

Defendant's remaining contentions are either without merit or academic.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, READ, SMITH, PIGOTT and JONES concur.

Order affirmed.

[944 NE2d 637, 919 NYS2d 102]

VIRGIL SMITH, Individually and as Parent and Natural Guardian of DEREK SMITH, Respondent, v HAZEL E. SHERWOOD et al., Defendants, and CENTRAL NEW YORK REGIONAL TRANSPORTATION AUTHORITY, Also Known as CENTRO, INC., et al., Appellants.

Argued January 11, 2011; decided February 15, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 30, 2009. The Appellate Division order, insofar as appealed from, with two Justices dissenting in part, modified, on the law, an order of the Supreme Court, Onondaga County (Deborah H. Karalunas, J.), which, among other things, had granted the motion of defendants Theodore Gray and Central New York Regional Transportation Authority for summary judgment dismissing the complaint against them. The modification consisted of denying in part the motion of those defendants and reinstating the common-law negligence claim against them. The following question was certified by the Appellate Division: “Was the order of this Court entered December 30, [2009] properly made?”

Smith v Sherwood, 68 AD3d 1785, reversed.

HEADNOTE

Schools — Students — Injury to Student

In an action seeking damages for injuries sustained by plaintiff’s 12-year-old son when he walked in front of the public bus that transported him to and from school into an adjoining lane of traffic and was struck by an automobile, defendant transportation authority, who contracted with the school district to provide students bus transportation, and defendant bus driver were entitled to summary judgment dismissing the complaint against them. A common carrier owes a duty to an alighting passenger to stop at a place where the passenger may safely disembark and leave the area, and once that occurs, no further duty exists, even if the disembarking passenger is a school child who attempts to cross a street by passing in front of a stopped bus. Here, the duty owed to plaintiff’s son by defendants terminated once he exited the bus at a safe location. Moreover, the special duty that applies to yellow school buses was not present inasmuch as the rules mandating the use of specific safety equipment (*see* Vehicle and Traffic Law § 375 [20]) and requiring specially-equipped school buses to stop “with red signal lights flashing” until a passenger needing to cross a street does so (*see* Vehicle and Traffic Law § 1174 [b]) did not apply to the public bus that plaintiff’s son rode and defendant bus driver therefore did not have the legal authority or necessary safety equipment to make other vehicles stop while plaintiff’s son crossed the street.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Automobiles and Highway Traffic §§ 491, 495, 511; AM JUR 2d, Carriers §§ 833, 838.
MCKINNEY'S, Vehicle and Traffic Law § 375 (20); § 1174 (b).
NY JUR 2d, Automobiles and Other Vehicles §§ 771, 772, 1111; NY JUR 2d, Carriers §§ 393, 415, 424, 426-428, 430.
PROSSER AND KEETON, TORTS (5th ed) § 53.

ANNOTATION REFERENCE

Liability of motorbus carrier or driver for death of, or injury to, discharged passenger struck by other vehicle. 16 ALR5th 1.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: bus carrier /5 duty & school /3 child student /p disembark! alight!

POINTS OF COUNSEL

Mackenzie Hughes LLP, Syracuse (W. Bradley Hunt and Stephen T. Helmer of counsel), for appellants. I. Plaintiff's negligence claim should be dismissed because the Centro, Inc. defendants had no duty to Derek Smith after he safely left the bus. (*Kramer v Lagnese*, 144 AD2d 648; *Sigmond v Liberty Lines Tr.*, 261 AD2d 385; *Wisoff v County of Westchester*, 296 AD2d 402; *Ortola v Bouvier*, 110 AD2d 1077; *Mooney v Niagara Frontier Tr. Metro Sys.*, 125 AD2d 997; *Rodriguez v Manhattan & Bronx Surface Tr. Operating Auth.*, 117 AD2d 541; *Georges v Rajnarine*, 277 AD2d 283; *Blye v Manhattan & Bronx Surface Tr. Operating Auth.*, 124 AD2d 106; *Sewar v Gagliardi Bros. Serv.*, 69 AD2d 281, 51 NY2d 752; *McDonald v Central School Dist. No. 3 of Towns of Romulus, Varick & Fayette, Seneca County*, 179 Misc 333, 264 App Div 943, 289 NY 800.) II. Plaintiff's negligence claim also should be dismissed because the Centro, Inc. defendants did not proximately cause Derek Smith's accident. (*Miller v Fernan*, 73 NY2d 844; *Sigmond v Liberty Lines Tr.*, 261 AD2d 385; *Mooney v Niagara Frontier Tr. Metro Sys.*, 125 AD2d 997; *Ortola v Bouvier*, 110 AD2d 1077.)

Kenny and Kenny, PLLC, Syracuse (*Michael P. Kenny* and *Erin K. Skuce* of counsel), for respondent. I. The Appellate Division, Fourth Department, appropriately modified the order of the Supreme Court, thereby reinstating the negligence claim against the Centro, Inc. defendants. (*Ugarriza v Schmieder*, 46 NY2d 471; *Andre v Pomeroy*, 35 NY2d 361; *Zuckerman v City of New York*, 49 NY2d 557; *Cammarere v Villanova*, 166 AD2d 760; *Sewar v Gagliardi Bros. Serv.*, 51 NY2d 752; *Pratt v Robinson*, 39 NY2d 554; *Chainani v Board of Educ. of City of N.Y.*, 87 NY2d 370; *Keiser v Elmer*, 225 AD2d 589; *McDonald v Central School Dist. No. 3 of Towns of Romulus, Varick & Fayette, Seneca County*, 289 NY 800; *Wolf v City of New York*, 39 NY2d 568.) II. The Centro, Inc. defendants failed to establish as a matter of law that their conduct was not a proximate cause of the incident. (*Lockhart v Adirondack Tr. Lines*, 289 AD2d 686; *Mirand v City of New York*, 84 NY2d 44; *Van Gaasbeck v Webatuck Cent. School Dist. No. 1*, 21 NY2d 239; *Ferrer v Harris*, 55 NY2d 285.)

Steven B. Weingarten, Albany, for New York Public Transit Association, amicus curiae. The Appellate Division's ruling adversely affects public transportation operators that transport students to and from school on public buses. (*Wisoff v County of Westchester*, 296 AD2d 402; *Sigmond v Liberty Lines Tr.*, 261 AD2d 385; *Kramer v Lagnese*, 144 AD2d 648.)

OPINION OF THE COURT

GRAFFEO, J.

Defendant Central New York Regional Transportation Authority, also known as Centro, contracted with the Syracuse City School District to provide students in the District with bus transportation to and from various schools. Centro buses were public buses, not yellow school buses that are generally associated with the transportation of school students and are outfitted with specially designed safety equipment. The contract did not prohibit members of the public from riding on Centro's buses when students were being transported, but there were exterior signs that read "Special" posted on these buses to inform potential nonstudent riders that the buses were not following normal routes.

In October 2002, Derek Smith was 12 years old and attended seventh grade at a private school in the Syracuse area. At the beginning of the school year, Derek and other students attended a presentation regarding proper bus safety. They were instructed

not to cross in front of buses and to wait until buses were at least a block away before attempting to cross streets. The purpose of this cautionary advice was to alert the students that stopped buses could block their ability to see traffic. Similar instructions were repeated in written materials that were distributed to the students and the warnings were reiterated on signs in Centro buses. Centro's rules also required its bus drivers to use the public address system on the buses twice a week to repeat these cautions to students.

After school on October 3, 2002, Derek got on a Centro bus being driven by defendant Theodore Gray. Derek usually disembarked at a designated stop on the west side of South Salina Street (a four-lane road) near West Cheltenham Road, the side of the street nearest to his home. That day, the bus driver went past Derek's stop, either because Derek did not pull the bus cord to inform the driver that he wanted to get off or because the driver did not hear or ignored the signal. After the bus turned around in a parking lot (pursuant to its scheduled route), it stopped on the east side of South Salina Street and Derek exited the bus. He immediately walked in front of the bus and into the adjoining lane of traffic, where he was struck by an automobile traveling in the same direction as the bus. Derek was seriously injured in the accident.

Derek's father commenced this action against Centro, Gray and others. As relevant to this appeal, the complaint asserted that Centro and Gray had breached their common-law duty to Derek and violated the statutory provisions that regulate school buses. Centro and Gray moved for summary judgment dismissing the complaint. Supreme Court granted their motion, but the Appellate Division, with two Justices dissenting, modified and reinstated the common-law negligence claim (68 AD3d 1785 [2009]). The Appellate Division then certified a question to us asking whether its order was proper.

We answer the certified question in the negative. It has long been the rule that "[a] common carrier owes a duty to an alighting passenger to stop at a place where the passenger may safely disembark and leave the area" (*Miller v Fernan*, 73 NY2d 844, 846 [1988], citing *Fagan v Atlantic Coast Line R.R. Co.*, 220 NY 301, 306-307 [1917]). Once that occurs, no further duty exists, even if the disembarking passenger is a schoolchild who attempts to cross a street by passing in front of a stopped bus (see e.g. *Wisoff v County of Westchester*, 296 AD2d 402 [2d Dept 2002]; *Sigmond v Liberty Lines Tr.*, 261 AD2d 385, 387 [2d Dept

1999]; *Kramer v Lagnese*, 144 AD2d 648, 649 [2d Dept 1988]; *Mooney v Niagara Frontier Tr. Metro Sys.*, 125 AD2d 997, 998 [4th Dept 1986]). Although plaintiff correctly notes that there is a question of fact regarding the reason why Derek was dropped off on the east side of South Salina Street instead of the west side, it is unnecessary to resolve that factual issue because Derek exited the bus at a safe location, terminating the duty owed to him by Centro and Gray.

In allowing the negligence claim to proceed, the Appellate Division relied, in part, on *Sewar v Gagliardi Bros. Serv.* (51 NY2d 752 [1980]). *Sewar*, however, involved a yellow school bus subject to the mandated use of specific safety equipment under Vehicle and Traffic Law § 375 (20). Such specially-equipped school buses are statutorily required to stop “with red signal lights flashing” until a passenger needing to cross a street does so (Vehicle and Traffic Law § 1174 [b]). Furthermore, a violation of Vehicle and Traffic Law § 1174 (b) may serve as the basis for a viable cause of action (see *Chainani v Board of Educ. of City of N.Y.*, 87 NY2d 370, 382-383 [1995]; *Van Gaasbeck v Webatuck Cent. School Dist. No. 1*, 21 NY2d 239, 244-245 [1967]). Concomitantly, the Vehicle and Traffic Law provides that all operators of motor vehicles must stop when approaching a school bus with red flashing lights (see Vehicle and Traffic Law § 1174 [a]). The public bus that Derek rode, however, was not subject to these rules (see Vehicle and Traffic Law § 375 [20]) and its driver therefore did not have the legal authority (or the necessary safety equipment) to make other vehicles stop while Derek crossed the street. In the absence of the special duty that applies to yellow school buses, Centro and Gray are entitled to summary judgment dismissing the complaint against them.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be reversed, with costs, the common-law negligence claim against defendants Centro and Theodore R. Gray dismissed and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges CIPARICK, READ, SMITH, PIGOTT and JONES concur.

Order, insofar as appealed from, reversed, etc.

[944 NE2d 1113, 919 NYS2d 474]

In the Matter of FRANCES BALZARINI, as Administrator of the Estate of JOHN BALZARINI, Deceased, Respondent, v SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES et al., Appellants.

Argued January 11, 2011; decided February 15, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from a judgment of that Court, entered September 2, 2008, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Suffolk County). The Appellate Division order, insofar as appealed from, (1) granted, on the law, a petition challenging a determination of respondent New York State Department of Health affirming a determination of respondent Suffolk County Department of Social Services, which had denied petitioner's application for an increase in the Medicaid minimum monthly maintenance needs allowance, to the extent of annulling so much of the determination as had affirmed the Department of Social Services determination denying that portion of petitioner's application to increase the minimum monthly maintenance needs allowance to include expenses for housing, utilities, automobile, Medicare, food, clothing, medical care, and home maintenance; (2) vacated so much of the Department of Social Services determination as denied that portion of the application; and (3) granted that portion of the application to the extent of remitting the matter to the New York State Department of Health for the calculation of the increase in the minimum monthly maintenance needs allowance. The following question was certified by the Appellate Division: "Was the opinion and judgment of this court dated September 2, 2008, properly made?"

Matter of Balzarini v Suffolk County Dept. of Social Servs., 55 AD3d 187, reversed.

HEADNOTE

Social Services — Medical Assistance — Community Spouse Income Allowance — "Exceptional Circumstances" Increase Not Available for Everyday Living Expenses

Substantial evidence supported respondent Department of Health's determination denying petitioner community spouse an increase in her Medicaid "minimum monthly maintenance needs allowance" (MMMNA) on the basis of

her everyday living expenses. Petitioner did not demonstrate that her “significant financial distress” was caused by “exceptional circumstances” within the meaning of the spousal impoverishment provisions of the Medicaid program. All petitioner attempted to show at the fair hearing was that she could not maintain her existing lifestyle if all of the husband’s income was applied toward his medical care. The Medicare Catastrophic Coverage Act of 1988 (42 USC § 1396r-5), and New York’s conforming legislation and implementing regulations, establish the MMMNA at an amount Congress has deemed a reasonable basic living allowance for an individual to live in the community after his or her spouse residing in a nursing home becomes eligible for Medicaid. If either spouse establishes “exceptional circumstances” resulting in “significant financial distress” then an amount adequate to provide such additional income as is necessary shall be substituted for the MMMNA (42 USC § 1396r-5 [e] [2] [B]; Social Services Law § 366-c [8] [b]; 18 NYCRR 360-4.10 [a] [10]). Since “exceptional” means “out of the ordinary” or “uncommon” or “rare,” an increase in the MMMNA is available only to alleviate true financial hardship that is thrust upon the community spouse by circumstances over which he or she has no control. Here, the everyday living expenses for which petitioner sought an increase in the MMMNA, were ordinary and therefore, by definition, nonexceptional. The spousal impoverishment provisions are not meant to enable the community spouse to maintain his or her prior lifestyle and have the public subsidize it, and do not guarantee a community spouse the same standard of living that he or she enjoyed before the institutionalized spouse entered a nursing home.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Welfare Laws §§ 34, 36, 92.
MCKINNEY’S, Social Services Law § 366-c (8) (b).
18 NYCRR 360-4.10 (a) (10).
NY JUR 2d, Public Welfare and Old Age Assistance §§ 147,
156.
18 USCA § 1396r-5.

ANNOTATION REFERENCE

Application of “spousal impoverishment provisions” of
Medicare Catastrophic Coverage Act (42 USCA § 1396r-5).

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: medicaid p monthly /5 allowance & exceptional /2
circumstance

POINTS OF COUNSEL

Andrew M. Cuomo, Attorney General, New York City (Steven C. Wu, Barbara D. Underwood, Richard Dearing and Karen Schoen of counsel), for New York State Department of Health, appellant. The Department of Health reasonably determined

that Frances Balzarini did not establish “exceptional circumstances” justifying an increase in the statutory allowance. (*Matter of Tomeck*, 8 NY3d 724; *511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144; *Graubard Mollen Dannett & Horowitz v Moskovitz*, 86 NY2d 112; *Hecht v City of New York*, 60 NY2d 57; *Matter of Transitional Servs. of N.Y. for Long Is., Inc. v New York State Off. of Mental Health*, 13 NY3d 801; *Rosner v Metropolitan Prop. & Liab. Ins. Co.*, 96 NY2d 475; *Matter of Schachner v Perales*, 85 NY2d 316; *Matter of Brown v Wing*, 93 NY2d 517; *Cricchio v Pennisi*, 90 NY2d 296; *Matter of White v White*, 229 AD2d 296.)

Christine Malafi, County Attorney, Central Islip (*Christopher A. Jeffreys* and *Karin A. Bohrer* of counsel), for Suffolk County Department of Social Services, appellant. I. The Department of Health’s determination that ordinary living expenses do not qualify as “exceptional circumstances” is rational and supported by the plain language of the statute and regulations. (*Matter of Berenhaus v Ward*, 70 NY2d 436; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Rainer N. Mittl, Ophthalmologist, PC. v New York State Div. of Human Rights*, 100 NY2d 326; *Matter of Kelly v Safir*, 96 NY2d 32; *Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227; *Matter of Albano v Board of Trustees of N.Y. City Fire Dept., Art. II Pension Fund*, 98 NY2d 548; *Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359; *Seenaraine v Securitas Sec. Servs. USA, Inc.*, 37 AD3d 700, 9 NY3d 813; *Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499; *Matter of Orens v Novello*, 99 NY2d 180.) II. The Medicare Catastrophic Coverage Act and related federal guidelines do not support the Second Department’s determination that ordinary living expenses can qualify as exceptional circumstances resulting in significant financial distress. (*Chevron U.S.A. Inc. v Natural Resources Defense Council, Inc.*, 467 US 837; *Morton v Ruiz*, 415 US 199; *Arkansas Dept. of Health & Human Servs. v Ahlborn*, 547 US 268; *Skidmore v Swift & Co.*, 323 US 134; *Wong v Doar*, 571 F3d 247; *Estate of Landers v Leavitt*, 545 F3d 98; *Community Health Ctr. v Wilson-Coker*, 311 F3d 132; *Morenz v Wilson-Coker*, 415 F3d 230; *Wisconsin Dept. of Health & Family Servs. v Blumer*, 534 US 473; *Rabin v Wilson-Coker*, 362 F3d 190.) III. The holdings of this Court support the interpretation of “exceptional circumstances” as being circumstances beyond the community spouse’s control. (*Matter of Gomprecht v Gomprecht*, 86 NY2d 47; *Matter of Schachner v Perales*, 85 NY2d 316; *Matter of Tomeck*, 8 NY3d 724.)

Lewis C. Edelstein, Garden City and *Gary S. Josephs*, Setauket, for respondent. I. The Appellate Division, Second Department's decision should be affirmed. (*Matter of Schachner v Perales*, 85 NY2d 316; *Matter of Golf v New York State Dept. of Social Servs.*, 91 NY2d 656; *Matter of White v White*, 229 AD2d 296; *Matter of Bertha M. v Pedro M.*, 4 Misc 3d 1017[A], 2004 NY Slip Op 50918[U]; *Matter of Gomprecht v Gomprecht*, 86 NY2d 47; *Calvanese v Calvanese*, 93 NY2d 111; *Wisconsin Dept. of Health & Family Servs. v Blumer*, 534 US 473; *Matter of Shah [Helen Hayes Hosp.]*, 257 AD2d 275; *Matter of Tomeck*, 8 NY3d 724; *Chevron U.S.A. Inc. v Natural Resources Defense Council, Inc.*, 467 US 837.) II. The Appellate Division, Second Department used the correct standard of judicial review in making its determination that the Department of Health's determination in the fair hearing lacked a rational basis and was not supported by substantial evidence. (*NLRB v Food & Commercial Workers*, 484 US 112; *United States v American Trucking Assns., Inc.*, 310 US 534; *Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359; *Seenaraine v Securitas Sec. Servs. USA, Inc.*, 37 AD3d 700, 9 NY3d 813; *Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of McCormack v National City Bank of N.Y.*, 303 NY 5; *Matter of Adams [Government Empls. Ins. Co.]*, 52 AD2d 118.) III. The Second Department should be affirmed in that a "sufficient—but not excessive—amount of income and resources" under Social Services Law § 366-c includes support to pay necessary and reasonable expenses of the community spouse. (*Matter of Gomprecht v Gomprecht*, 86 NY2d 47; *Matter of Albany County Dept. of Social Servs. v Englehardt*, 124 AD2d 140; *Matter of Lopez v Commissioner of N.Y. State Dept. of Health*, 42 AD3d 638; *Matter of Allen v Allen*, 236 AD2d 470.)

OPINION OF THE COURT

READ, J.

On this appeal, we hold that "exceptional circumstances" causing "significant financial distress" within the meaning of the joint federal-state Medicaid program do not encompass everyday living expenses in excess of the "minimum monthly

maintenance needs allowance” (MMMNA), an amount deemed sufficient by Congress for an individual to live in the community after his or her spouse residing in a nursing home becomes eligible for Medicaid.

I.

Upon entering a nursing home in March 2005, John Balzarini (the husband; in Medicaid parlance, the institutionalized spouse) applied to the Suffolk County Department of Social Services (DSS) for Medicaid benefits. The husband’s total monthly income was \$2,542.67, consisting of Social Security and a private pension; when making the Medicaid-eligibility determination, DSS calculated that \$2,414.47 of this monthly income was available to pay for the husband’s nursing home expenses, which were then \$227.37 per day at the Medicaid rate, or approximately \$6,800 per month. The husband’s wife, Frances (the wife; in Medicaid parlance, the community spouse) submitted a spousal refusal letter to DSS (*see Matter of Tomeck*, 8 NY3d 724, 729-730 [2007]); she had a monthly income of \$2,444.77, also from Social Security and a private pension. Since the wife’s income exceeded \$2,378, the MMMNA for 2005, DSS did not allocate any of the husband’s available monthly income for the wife’s support. Instead, as of May 1, 2005, the effective date of the husband’s Medicaid coverage, his entire available monthly income of \$2,414.47 was paid over to the nursing home, while Medicaid took care of the balance of his monthly nursing home costs of roughly \$4,400 ($\$6,800 - \$2,414.47 = \$4,385.53$).

The husband exercised his right to contest DSS’s determination in a fair hearing conducted by an administrative law judge on behalf of the New York State Department of Health (DOH) (*see* Social Services Law § 22; 18 NYCRR 358-2.30 [b]; 358-3.1 [g] [1]).¹ He argued that “exceptional circumstances” resulted in the wife’s “significant financial distress” at the level of the MMMNA, justifying an award increasing her monthly income allowance (*see* 42 USC § 1396r-5 [e] [2] [B]; Social Services Law § 366-c [8] [b]). At the hearing held on December 5, 2005, the

1. Effective October 1, 1996, DOH replaced the former New York State Department of Social Services as the agency responsible for administering the Medicaid program at the state level (*see* L 1996, ch 474, §§ 233-248; *see also* Social Services Law § 363-a [1]; Public Health Law § 201 [1] [v]).

husband's representatives² sought to prove that the wife incurred monthly living expenses totaling about \$4,800, including mortgage payments, common charges, homeowners' insurance and real property taxes for the condominium jointly owned by the husband and wife, where the wife still resided; transportation costs (car loan payments and bills for insurance and gasoline); food, clothing, prescription drugs and utility bills; and about \$1,500 for a minimum monthly payment on credit card debt of between \$25,000 and \$30,000, most of which was incurred before the husband entered the nursing home.

In a decision dated December 16, 2005, DOH affirmed DSS's determination to limit the wife's income to the MMMNA. The decision cited the legislative history of the Medicare Catastrophic Coverage Act of 1988 (MCCA) (42 USC § 1396r-5), which suggested that "'exceptional circumstances' are those which are not ordinary and which arise out of an emergency or unanticipated need" (emphasis omitted); and noted that pursuant to 18 NYCRR 360-4.10 (a) (10), "'financial distress' may result from recurring or extraordinary non-covered medical expenses, amounts to preserve, maintain, or make major repairs to the homestead, and amounts necessary to preserve an income producing asset." DOH concluded that the evidence presented at the fair hearing failed to fulfill these legal criteria because the wife merely established that her actual living expenses exceeded the MMMNA; "these costs constitute expenses that are to be absorbed by the MMMNA"; and "[b]y their very nature, exceptional circumstances do not include usual household monthly expenses." The decision also noted that the wife "conceded" that the credit card balances did not reflect expenses for major repairs to the homestead or catastrophic events, and presented "no bills or documentation of unpaid recurring bills" or "verification of any medical costs" that she had incurred.

In April 2006, the husband brought this CPLR article 78 proceeding (now pursued by the wife as administrator of the husband's estate)³ to contest DOH's decision upholding DSS's determination. He asked Supreme Court to "rais[e] the MMMNA . . . to include the unsecured debt of the [institutionalized spouse] and the community spouse"; specifically, the

2. The fair hearing took place without the husband's participation. Instead, he was represented by the wife and their son, an accountant, who both testified about the family's finances, as well as by counsel.

3. The husband apparently died in March 2009.

husband claimed that the MMMNA should be increased by \$2,536.67 a month. In July 2006, Supreme Court transferred the matter to the Appellate Division (*see* CPLR 7804 [g]).

In a decision issued in September 2008, the Appellate Division concluded that “[w]ith the exception of the credit card expenses,” where DOH’s determination was supported by substantial evidence, the wife’s “recurring monthly expenses” were “all necessities of daily living” (55 AD3d 187, 194 [2d Dept 2008]). The court further opined that because “reasonable, ordinary expenses can be a sufficient basis upon which additional income of the institutionalized spouse may be made available to the community spouse” (*id.* at 191), the husband had “established exceptional circumstances with respect to the [wife’s] expenses . . . for housing, utilities, automobile, Medicare, food, clothing, medical care, and home maintenance,” and so DOH’s determination was “not supported by substantial evidence and[] . . . must be annulled to that extent” (*id.* at 195). The Appellate Division accordingly granted the petition in part “since the expenses that are properly considered exceed [the wife’s] income”; and remitted the matter to DOH to calculate an increase in the MMMNA to take into account the wife’s expenses in the specified categories (*id.*). In January 2009, the court granted DSS and DOH leave to appeal, certifying to us the question of whether its opinion and judgment had been properly made.⁴

II.

The spousal impoverishment provisions of the MCCA form “a complex set of standards . . . designed to insure that the community spouse retains necessary, but not excessive, income and assets, which do not need to be depleted to make the institutionalized spouse eligible for Medicaid” (*Tomeck*, 8 NY3d at 728). In so doing, Congress corrected “a perceived flaw in the Medicaid program” by eliminating the risk that a community spouse would be reduced to penury (*Matter of Golf v New York State Dept. of Social Servs.*, 91 NY2d 656, 659 [1998]; *see also Matter of Schachner v Perales*, 85 NY2d 316, 319-320 [1995] [discussing prior law]). New York enacted conforming legislation (Social Services Law § 366-c), and the former New York State Department

4. The husband did not seek to cross-appeal; therefore, so much of the Appellate Division’s opinion and judgment as affirmed DOH’s decision regarding credit card debt is beyond our review (*see 511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144, 151 n 3 [2002]).

of Social Services issued implementing regulations (18 NYCRR 360-4.10).

The MCCA requires each state to establish the MMMNA for the community spouse at a level equal to or exceeding 150% of one-twelfth of the federal income official poverty line for a family of two plus an excess shelter allowance for unusually high housing expenses,⁵ subject to a cap of \$1,500 per month in 1988 dollars (*see* 42 USC § 1396r-5 [d] [3], [4]). The federal income official poverty line is revised each year, and the cap is indexed to the consumer price index for all urban consumers (*see* 42 USC § 1396r-5 [d] [3] [A] [i]; [g]). New York has set the MMMNA equal to the statutory cap (*see* Social Services Law § 366-c [2] [h]); therefore, the MMMNA in New York is the maximum permitted under federal law.

If the community spouse's income falls below the MMMNA, the institutionalized spouse makes up the difference, assuming he or she possesses sufficient income to do so (*see* 42 USC § 1396r-5 [d] [1] [B]; [2]; Social Services Law § 366-c [2] [g]; [4] [b] [providing for deduction for this purpose from institutionalized spouse's monthly income]). Further, if "either . . . spouse establishes that the community spouse needs income, above the level otherwise provided by the [MMMNA], due to exceptional circumstances resulting in significant financial duress," then "an amount adequate to provide such additional income as is necessary" shall be substituted for the MMMNA (42 USC 1396r-5 [e] [2] [B]). Concomitantly, Social Services Law § 366-c (8) (b) provides that

"[i]f either spouse establishes that the community spouse needs income above the level established by the social services district as the [MMMNA], based upon exceptional circumstances which result in significant financial distress (as defined by the commissioner in regulations), [DOH] shall substitute an amount adequate to provide additional necessary income from the income otherwise available to the institutionalized spouse."

5. The "excess shelter allowance" of a community spouse is equal to the community spouse's expenses for rent or mortgage payments, taxes and insurance and, in the case of a condominium or cooperative, required maintenance charges, as well as a utility allowance, to the extent that these housing-related expenses exceed 30% of 150% of one-twelfth of the federal income official poverty line for a family of two (*see* 42 USC § 1396r-5 [d] [4]; Social Services Law § 366-c [2] [k]).

The implementing regulations, in turn, define “significant financial distress” as

“exceptional expenses which the community spouse cannot be expected to meet from the [MMMNA] or from amounts held in resources. Such expenses may be of a recurring nature or may represent major one time costs, and may include but are not limited to: recurring or extraordinary noncovered medical expenses; amounts to preserve, maintain or make major repairs on the homestead; and amounts necessary to preserve an income-producing asset” (18 NYCRR 360-4.10 [a] [10]).

“Exceptional” means “out of the ordinary” or “uncommon” or “rare” (Webster’s Third New International Dictionary, Unabridged [Merriam-Webster 2002], available at <http://unabridged.merriam-webster.com>). As we explained in *Schachner*, section 366-c of the Social Services Law therefore “contemplates that an increase [in the MMMNA] is available only to alleviate true financial hardship that is *thrust upon the community spouse by circumstances over which he or she has no control*, as exemplified by the circumstances enumerated in 18 NYCRR 360-4.10 (a) (10)” (*Schachner*, 85 NY2d at 325 [emphasis added]).

Here, by contrast, the wife seeks an increased award to pay for everyday living expenses. But Congress created the MMMNA precisely to cover just such ordinary and therefore, by definition, *non-exceptional* items. Indeed, the Centers for Medicare and Medicaid Services, the federal office that oversees Medicaid, has suggested that a reasonable definition for “exceptional circumstances resulting in extreme financial duress” is “[c]ircumstances *other than* those taken into account in establishing maintenance standards for spouses” (see Centers for Medicare and Medicaid Services, State Medicaid Manual § 3710.1 [10-89] [Rev 39] [emphasis added], available at <http://www.cms.hhs.gov/Manuals/PBM/itemdetail.asp?itemID=CMS021927>).

Plainly stated, the spousal impoverishment provisions are not meant to enable the community spouse “to maintain [his or] her prior life-style and have the public subsidize it”—i.e., Medicaid dollars would have to make up for any monies diverted from the institutionalized spouse’s medical care to the community spouse (*Matter of Gomprecht v Gomprecht*, 86 NY2d 47, 52 [1995] [Family Court may not make an award in an amount greater than MMMNA to community spouse absent showing of

exceptional circumstances within meaning of Social Services Law § 366-c]). Instead, “the narrow purpose of the legislation providing for the [MMMNA was] to protect the community spouse from financial disaster when the primary income-providing spouse [became] institutionalized” (*Schachner*, 85 NY2d at 323). Congress established the MMMNA at an amount it deemed sufficient to achieve this narrow purpose. Thus, the spousal impoverishment provisions do not guarantee a community spouse the same standard of living—even if reasonable rather than lavish by some lights—that he or she enjoyed before the institutionalized spouse entered a nursing home. Congress itself has decided what is a reasonable basic living allowance for the community spouse: the MMMNA. The trade-off for a married couple, of course, is that the institutionalized spouse’s costly nursing home care is heavily subsidized by the taxpayer, as happened here (*see supra* at 139).

Consequently, substantial evidence supports DOH’s determination denying the wife an increase in the MMMNA. All the wife attempted to show at the fair hearing was that she could not maintain her existing lifestyle if all of the husband’s income was applied toward his medical care. She therefore did not demonstrate that her “significant financial distress” was caused by “exceptional circumstances” within the meaning of the spousal impoverishment provisions of federal and state law.

Accordingly, the order of the Appellate Division insofar as appealed from should be reversed, with costs; the petition dismissed; and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES concur.

Order, insofar as appealed from, reversed, etc.

[945 NE2d 447, 920 NYS2d 254]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
REGINALD RABB, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
MASON, Appellant.

Argued January 4, 2011; decided February 15, 2011

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 13, 2009. The Appellate Division affirmed judgments of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon his pleas of guilty, of enterprise corruption, grand larceny in the second degree (two counts), attempted grand larceny in the second degree, and criminal possession of a weapon in the fourth degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 13, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon his plea of guilty, of enterprise corruption, grand larceny in the second degree (two counts), and attempted grand larceny in the second degree.

People v Rabb, 66 AD3d 487, affirmed.

People v Mason, 66 AD3d 487, affirmed.

HEADNOTES

Crimes — Eavesdropping Warrants — Showing of Necessity — Wiretapping Not First Step of Investigation

1. In a prosecution involving labor racketeering, there was record support for the findings of the courts below that the People's application for an eavesdropping warrant complied with CPL 700.15 (4) and 700.20 (2) (d), and that the investigators did not resort to wiretapping as a routine, initial step in their investigation of defendants' activities. The application revealed that an investigation of another organization led the investigators to defendants; that an analysis of cell phone records revealed numerous calls from defendants to construction companies with ties to organized crime; and that there had been collusive efforts between defendants and the organization that had originally been targeted. It was reasonable for the investigators to surmise that the

originally targeted organization and defendants' organization, although rivals, joined forces when the opportunities presented themselves and that those organizations shared similar objectives. The investigators thereafter tried to identify one of the defendants by surveilling meetings that had been set up on intercepted calls but those efforts proved unsuccessful. Thus, there was plainly record support that the investigators did not resort to eavesdropping as a first step in its investigation of defendants, and the factual determinations by the lower courts were not further reviewable by the Court of Appeals.

Crimes — Eavesdropping Warrants — Showing of Necessity — Futility of Normal Investigative Procedures

2. In a prosecution involving labor racketeering, there was record support for the findings of the courts below that the People's application for an eavesdropping warrant complied with CPL 700.15 (4) and 700.20 (2) (d), and that normal investigative procedures were unlikely to succeed. An investigator explained that physical surveillance would rarely allow the investigators to hear the subjects' conversations without risk of discovery and the use of undercover officers would not have exposed the full scope of defendants' activities. The application explained the futility of conducting a grand jury investigation because many of the witnesses were participants in the criminal conduct who would be unlikely to testify out of fear of retaliation. Furthermore, the issuance of grand jury subpoenas would publicize the investigation, thereby foreclosing the use of other conventional investigatory techniques. In addition, the execution of search warrants would compromise the confidentiality of the investigation, increasing the likelihood that its targets would destroy inculpatory records. Having supported their application with reasons why normal investigative techniques would be ineffective, it was of no moment that the prosecution also utilized their experiences from another investigation to support their assertion that normal investigative techniques would be generally unproductive; it cannot be said the prosecution relied solely on past investigations. Defendants also were unable to demonstrate that, because normal investigatory measures had succeeded in another investigation, the warrant application here failed to establish that normal investigative measures were unlikely to succeed.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Searches and Seizures §§ 342, 373, 384–386, 391.

CARMODY-WAIT 2d, Search and Seizure §§ 173:195–173:198, 173:200–173:202.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 4.3–4.6.

McKINNEY's, CPL 700.15 (4); 700.20 (2) (d).

NY JUR 2d, Criminal Law: Procedure §§ 360, 368, 376, 377.

ANNOTATION REFERENCE

See ALR Index under Eavesdropping and Wiretapping.

FIND SIMILAR CASES ON WESTLAW®

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/p investigat!

POINTS OF COUNSEL

Office of the Appellate Defender, New York City (Kerry S. Jamieson and Richard M. Greenberg of counsel), for appellant in the first above-entitled action. Where the prosecution's eavesdropping warrant application for the "Divine" cell phone failed to make a particularized showing that normal investigative measures would be insufficient if employed against "Divine," the application was insufficient as a matter of law, and the intercepted communications and all other evidence obtained pursuant to the invalid warrant should have been suppressed and the indictments dismissed. (*People v Capolongo*, 85 NY2d 151; *United States v Carneiro*, 861 F2d 1171; *People v Fonville*, 247 AD2d 115; *Berger v New York*, 388 US 41; *United States v Giordano*, 416 US 505; *People v McGrath*, 46 NY2d 12; *People v Shapiro*, 50 NY2d 747; *United States v Gonzalez, Inc.*, 412 F3d 1102; *United States v Ippolito*, 774 F2d 1482; *United States v Lilla*, 699 F2d 99.)

Center for Appellate Litigation, New York City (Barbara Zolot and Robert S. Dean of counsel), for appellant in the second above-entitled action. The prosecution failed to satisfy CPL 700.15 (4)'s "necessity" requirement for obtaining an eavesdropping warrant, where its allegations that "normal investigative procedures" had been tried and had failed, or would not be likely to succeed if tried, were based on an investigation of different suspects and a different enterprise. (*Berger v New York*, 388 US 41; *Olmstead v United States*, 277 US 438; *People v Capolongo*, 85 NY2d 151; *People v Kramer*, 92 NY2d 529; *People v Gallina*, 66 NY2d 52; *People v Darling*, 95 NY2d 530; *People v Schulz*, 67 NY2d 144; *People v Sher*, 38 NY2d 600; *People v Winograd*, 68 NY2d 383; *People v Weaver*, 12 NY3d 433.)

Cyrus R. Vance, Jr., District Attorney, New York City (Susan Axelrod and Alan Gadlin of counsel), for respondent in the first and second above-entitled actions. Detective Novellino's March 31, 2005 application for authorization to eavesdrop over Reginald Rabb's cell phone sufficiently established that alternative techniques either had been tried and failed or were not likely to succeed, if tried. (*Berger v New York*, 388 US 41; *People v Shapiro*, 50 NY2d 747; *People v McGrath*, 46 NY2d 12; *People v Teicher*, 52 NY2d 638; *People v Darling*, 95 NY2d 530; *People*

v Capolongo, 85 NY2d 151; *People v Gallina*, 66 NY2d 52; *People v Schulz*, 67 NY2d 144; *People v Weaver*, 12 NY3d 433; *United States v Kahn*, 415 US 143.)

OPINION OF THE COURT

PIGOTT, J.

Defendants Reginald Rabb and Steven Mason—who ran P&D Construction Workers Coalition, a minority labor coalition¹—challenge the People’s March 31, 2005 eavesdropping warrant application on the ground that the People failed to establish that normal investigative measures had been exhausted, were reasonably unlikely to succeed if tried, or were too dangerous to employ (*see* CPL 700.15 [4]; 700.20 [2] [d]). Supreme Court denied defendants’ motions to suppress and defendants pleaded guilty. The Appellate Division affirmed the judgments upon their guilty pleas, holding that the People’s application adequately explained why normal investigative measures would be reasonably unlikely to succeed if tried (66 AD3d 487 [2009]). Because there is record support for that conclusion, we now affirm.

I.

In 2002, the Labor Racketeering Unit of the New York County District Attorney’s Office (LRU) began investigating the activities of a minority labor coalition called Akbar’s Community Services. Akbar was run by Derrick Walker and his associate Frederick Rasberry, who utilized the coalition to force construction companies, under the threat of vandalism or intimidation, to hire coalition workers and/or pay money for “security” from intimidation from other labor coalitions. During a three-year investigation into Akbar’s practices, the LRU’s investigatory techniques included, among other things, placing a senior LRU investigator undercover as a construction company owner whereby he paid Rasberry \$800 a month for “security” from other coalitions and conducting numerous interviews with construction company personnel about Akbar’s practices.

The Akbar investigation uncovered certain coercive techniques engaged in by P&D. During one interview with a construction company president in May 2004, an LRU investigator inquired as to whether he had been contacted by Walker or Rasberry. He responded that he had not, but that he had been

1. Such coalitions originated in the 1960s as a legitimate means of assisting minority workers to obtain work in the construction industry.

contacted by P&D. He produced a business card listing the name “Divine”² and a cellular phone number. Upon analyzing the billing records for Walker’s and Rasberry’s cell phones, investigators learned that the “Divine” cell phone number was registered to one Carol Rabb. LRU cross-referenced the number with a minority labor coalition list and discovered that the contact person for P&D went by the name of “Divine Organizer.” Moreover, according to billing records, between January and July 2004, over 70 calls were made between the “Divine” number and the numbers belonging to Walker and Rasberry.

On January 19, 2005, with the support of an affidavit from a senior LRU investigator, the People obtained eavesdropping warrants against the Akbar targets, Walker and Rasberry.³ Shortly after an extension of the Walker/Rasberry warrant was obtained on February 1, 2005, a representative of another construction company advised an LRU investigator that she had been approached by a P&D “business agent” who demanded that she put workers from the community on the job site, and left her his business card, which had the name “CEO Divine Allah” typed on the card and the same cellular phone number given to the other contractor.

After obtaining a second extension against Walker and Rasberry on March 1, 2005, the People obtained an eavesdropping warrant against Rabb on March 31, 2005, setting forth the same goals that they had relative to the Walker/Rasberry investigation: to determine the full scope of Rabb’s leadership position in P&D and gather sufficient evidence to prosecute the participants in that illegal conduct. The People later obtained an eavesdropping warrant against Mason’s cell phone on November 9, 2005 in furtherance of the same goals.

Defendants were indicted by the New York County grand jury for, among other crimes, enterprise corruption and grand larceny in the second degree. They moved pursuant to CPL 710.20 to suppress evidence obtained from the eavesdropping

2. Rabb has not contested that he went by the name of “Divine” and, unless otherwise noted, he will be referred to by his real name.

3. The application stated that, during the 30-month investigation into Akbar’s activities, physical surveillance had been ineffective in discerning the true nature of the relationships Walker and Rasberry had with the contractors, that a grand jury investigation would be futile since the witnesses were either participants in the crimes (who would receive full transactional immunity) or coalition victims wary of retaliation, and that the use of search warrants would be of little help in assisting law enforcement in determining Walker’s supervisory role in directing coalition members to violate the law.

warrants, claiming that the March 31, 2005 application for the eavesdropping warrant for Rabb's cell phone—the only application that defendants challenge on this appeal⁴—did not meet the dictates of CPL 700.15 (4). After Supreme Court denied defendants' respective motions, Rabb pleaded guilty to enterprise corruption, grand larceny in the second degree (two counts), attempted grand larceny in the second degree and criminal possession of a weapon in the fourth degree, and was sentenced as a second felony offender to an aggregate term of 8½ to 17 years' imprisonment. Mason pleaded guilty to the same crimes—save for the criminal possession of a weapon charge—and was sentenced as a second felony offender to an aggregate term of 7½ to 15 years' imprisonment. Each defendant appealed the judgment upon his guilty plea to obtain review of the denial of his suppression motion.

The Appellate Division affirmed (66 AD3d 487 [2009]) and a Judge of this Court granted defendants leave to appeal (*People v Mason*, 13 NY3d 940 [2010], 14 NY3d 759 [2010]; *People v Rabb*, 13 NY3d 941 [2010]).

II.

Criminal Procedure Law § 700.15 (4) provides that an eavesdropping warrant may issue only “[u]pon a showing that normal investigative procedures have been tried and have failed, or reasonably appear to be unlikely to succeed if tried, or to be too dangerous to employ.”

In addition, an application for an eavesdropping warrant must contain “[a] full and complete statement of facts” establishing that one of the requirements of section 700.15 (4) has been met (CPL 700.20 [2] [d]). It is not coincidental that the language of the aforementioned CPL provisions is substantively identical to federal standards set forth in 18 USC § 2518 (3) (c) and (1) (c), respectively, since it was the Legislature's intention to “conform ‘State standards for court-authorized eavesdropping warrants with federal standards’ ” (*People v McGrath*, 46 NY2d 12, 26 [1978], *cert denied* 440 US 972 [1979], quoting Governor's Approval Mem, Bill Jacket, L 1969, ch 1147, 1969 NY Legis Ann, at 586; see *United States v Lilla*, 699 F2d 99, 102 [2d Cir 1983]). These statutory requirements ensure that wiretaps are not routinely employed as an initial step in a criminal investigation

4. It is defendants' position that, should the March 31, 2005 application fall, so too should the subsequent applications.

and are used only after the applicant states, and the court finds, that the dictates of sections 700.15 (4) and 700.20 (2) (d) have been met (*see generally United States v Giordano*, 416 US 505, 515 [1974] [referencing the federal statutory counterparts to the state provisions]).

The Legislature sought, through its enactment of CPL article 700, to balance competing policies, namely, the protection of “[t]he right of privacy, to which unsupervised eavesdropping poses a great threat . . . against society’s interest in protecting itself against crime” (Report of New York State Joint Legislative Committee On Crime, Its Causes, Control & Effect on Society, 1968 NY Legis Doc No. 81, at 44). Significantly, the Legislature took special note of the importance of eavesdropping as it related to organized crime, observing that, “[d]ue to the tight structure of organized crime groups, their use of brutal force to discourage informants, and the high degree to which key members have insulated themselves from criminal liability, standard law enforcement techniques generally result in the conviction of only lower echelon rank and file members” of those groups (*id.*). Then-Governor Rockefeller likewise acknowledged that the eavesdropping law would afford law enforcement “greater flexibility in the employment of eavesdropping as an effective weapon against crime” and, in particular, organized crime, “where the obtaining of evidence for successful prosecutions is often extremely difficult” (Governor’s Approval Mem, Bill Jacket, L 1969, ch 1147, 1969 NY Legis Ann, at 586). With those objectives in mind, we now address the merits of defendants’ arguments.

III.

Defendants do not challenge Supreme Court’s conclusion that the eavesdropping warrant was issued based upon probable cause; it is evident from this record that the People established probable cause to believe that defendants were committing designated criminal offenses and that communications concerning those offenses would be obtained through eavesdropping (*see* CPL 700.15 [2], [3]). Rather, defendants assert, in essence, that the People improperly utilized eavesdropping as a first step in the Rabb/Mason investigation and failed to provide a particularized showing that normal investigative procedures were unlikely to succeed, relying instead on conclusory statements concerning their experience in the Walker/Raspberry investigation. Defendants further claim that the successful use

of physical surveillance, undercover operations, witness interviews and search warrants in the Walker/Rasberry investigation demonstrated that the warrant application here failed to establish that normal investigative procedures were unlikely to succeed against defendants.

[1] We disagree and conclude that there is record support for the findings by Supreme Court and the Appellate Division that the People's application complied with sections 700.15 (4) and 700.20 (2) (d) (*see People v Wheeler*, 2 NY3d 370, 373 [2004]). Contrary to defendants' contention, it is evident from the People's application that LRU did not resort to wiretapping as a routine, initial step in its investigation of P&D. The application refers to the May 2004 contact between a P&D representative and a construction contractor, explains that the phone number given to the contractor was registered to Carol Rabb, and states that the LRU's cross-referencing of that number with a list of minority coalitions indicated the name "Divine" and "Divine's" phone number as contact information for P&D. Moreover, LRU's undercover officer, who was posing as a construction contractor, asked Rasberry if there were any other coalitions that could cause trouble at his job site, and Rasberry identified P&D as one of them. Finally, analysis of billing records for the "Divine" cell phone unearthed numerous calls to Walker and Rasberry, calls to construction companies with known ties to organized crime, and calls to construction companies that were also contacted by Akbar.

The application also outlined collusive efforts between Akbar and P&D members. For instance, LRU uncovered evidence that between February 2, 2005 and March 25, 2005, there were 63 calls between Walker's and Rabb's cell phones, some having been intercepted as a result of the Walker eavesdropping warrant. LRU investigators heard Walker and Rabb discussing collusive efforts between Akbar and P&D, including sharing information about job sites and assisting each other's coalitions in coercing construction companies to hire their respective coalition members. At that point in the investigation, it was reasonable for LRU to surmise that Akbar and P&D, although rival coalitions, joined forces when the opportunities presented themselves and that these coalitions shared similar objectives. LRU thereafter tried to identify Rabb by surveilling meetings that had been set up on intercepted calls but these efforts proved unsuccessful. Thus, there is plainly record support that LRU did not resort to eavesdropping as a first step in its investigation

of defendants and, to the extent that defendants disagree with the lower courts' interpretation of the facts in the application, such factual determinations are not further reviewable by this Court (*see People v McRay*, 51 NY2d 594, 601 [1980]).

[2] There is likewise record evidence supporting the findings of the lower courts that LRU demonstrated that normal investigative procedures were unlikely to succeed. Although eavesdropping may not be used as a routine first step, law enforcement need not “exhaust all conceivable investigative techniques before resorting to electronic surveillance” (*United States v Concepcion*, 579 F3d 214, 218 [2d Cir 2009]). Indeed, “[a]n affidavit describing the standard techniques that have been tried and facts demonstrating why they are no longer effective is sufficient to support an eavesdropping order *even if every other possible means of investigation has not been exhausted*” (*United States v Terry*, 702 F2d 299, 310 [2d Cir 1983] [emphasis supplied], *cert denied sub nom. Williams v United States*, 461 US 931 [1983]). Nor is law enforcement “required to resort to measures that will clearly be unproductive” (*id.*).

CPL 700.20 (2) requires, among other things, that the applicant advise the authorizing judicial officer of the nature and progress of the investigation along with an explanation as to what investigative techniques have been tried and failed or why it would be difficult to employ normal law enforcement techniques. This language “is simply designed to assure that wiretapping is not resorted to in situations where traditional investigative techniques would suffice to expose the crime” (*United States v Kahn*, 415 US 143, 153 n 12 [1974] [discussing 18 USC § 2518 (1), the federal statutory counterpart to CPL 700.20 (2)]). Of course, the application must include more than “generalized and conclusory statements that other investigative procedures would prove unsuccessful” (*Lilla*, 699 F2d at 104).

Here, the People provided “some basis for concluding that less intrusive investigative procedures [were] not feasible” (*United States v Howard*, 350 Fed Appx 517, 519 [2d Cir 2009]). For instance, the LRU investigator explained that physical surveillance was of limited use because, although it might show subjects meeting with each other, it would rarely allow LRU to hear the conversations, and that any attempts by LRU investigators to get closer to the subjects to hear the conversations would render it more likely that the subjects would discover they were under investigation. He explained that, notwithstanding the undercover role he had assumed as a contractor—which was

limited to his paying Rasberry \$800 a month—other undercover efforts would not have enabled LRU to expose the full scope of Akbar’s activities, and were unlikely to be more successful with P&D. The application further explained the futility of conducting a grand jury investigation because many of the witnesses were participants in the criminal conduct, and victims of that conduct would be unlikely to testify out of fear of retaliation. Furthermore, the issuance of grand jury subpoenas to witnesses and custodians of business records would publicize the investigation, thereby foreclosing the use of other conventional investigatory techniques. Finally, the execution of search warrants would compromise the confidentiality of the investigation and assuredly apprise its targets, increasing the likelihood that they would destroy inculpatory records.

Because the People supported their application with reasons why normal investigative techniques would be ineffective as to Rabb, it is of no moment that they also utilized their experiences from the Walker/Rasberry investigation to inform their allegations against P&D. Contrary to defendants’ contentions, the People did not seek to eavesdrop based solely and primarily on how Akbar operated; the People had learned, through their interception of Walker/Rasberry conversations with P&D, the collusive nature of the relationship between Akbar and P&D, how P&D operated its business, and the similarity of their organizations and objectives. Therefore, it cannot be said that the People relied solely on past investigations into minority labor coalitions in general to support their assertion that normal investigative techniques would be generally unproductive in the P&D investigation (*see United States v DiMuro*, 540 F2d 503, 510-511 [1st Cir 1976], *cert denied* 429 US 1038 [1977]).

Equally unavailing is defendants’ argument that, because normal investigatory measures had succeeded in the Walker/Rasberry investigation—including the use of physical surveillance, undercover operations, witness interviews and search warrants—the warrant application failed to establish that normal investigative measures were unlikely to succeed. The People explained why normal law enforcement techniques would be unlikely to succeed as against these defendants and there was a factual basis for these assertions. “Merely because a normal investigative technique is theoretically possible, it does not follow that it is likely” (*Concepcion*, 579 F3d at 218 [citation and internal quotation marks omitted]).

IV.

Upon conducting our limited review, we are satisfied that there is record support for the conclusions reached by the lower courts that the People’s application demonstrated that normal investigative measures would reasonably have been unlikely to succeed if tried. Accordingly, in each case, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (dissenting). In 1967, the United States Supreme Court struck down New York State’s eavesdropping statute as unconstitutional (*Berger v New York*, 388 US 41 [1967]). More than adumbrating what it would do only months later when it issued its decision in *Katz v United States* (389 US 347 [1967]) overruling *Olmstead v United States* (277 US 438 [1928]), the *Berger* Court held that electronic eavesdropping constituted a search within the meaning of the Fourth Amendment (*Berger*, 388 US at 52-53) and, accordingly, that when the government sought to listen to the private conversations of its citizenry it was obliged first to obtain a warrant from a neutral magistrate issued upon probable cause supported by oath or affirmation, and particularly describing the object of the contemplated intrusion. It followed as well that fruits of unauthorized eavesdropping were subject to the exclusionary rule, which by the time of *Berger* had been applied to the states (*id.* at 53, citing *Mapp v Ohio*, 367 US 643, 655 [1961]).

The New York statute challenged in *Berger* was deemed facially deficient on numerous grounds, but principally for its failure to meet the Fourth Amendment’s requirement of particularity and for the open-ended authority it conferred upon a successful eavesdropping applicant (388 US at 58-59). These inadequacies were specially troubling given eavesdropping’s “inherent dangers” (*id.* at 60). The practice, the Court noted, had been historically disfavored and, indeed, universally outlawed, except for law enforcement purposes (*id.* at 45-49), in which context it remained highly problematic by reason of its unusually intrusive, indiscriminate and insidious capacities. While acknowledging the representations of numerous highly respected prosecutors as to the utility of electronic eavesdropping, particularly in the investigation of organized crime (*id.* at 60-62), the Court responded,

“we cannot forgive the requirements of the Fourth Amendment in the name of law enforcement. This is no formality that we require today but a fundamental

rule that has long been recognized as basic to the privacy of every home in America. While ‘(t)he requirements of the Fourth Amendment are not inflexible, or obtusely unyielding to the legitimate needs of law enforcement,’ *Lopez v. United States*, *supra*, at 464 (dissenting opinion of BRENNAN, J.), it is not asking too much that officers be required to comply with the basic command of the Fourth Amendment before the innermost secrets of one’s home or office are invaded. *Few threats to liberty exist which are greater than that posed by the use of eavesdropping devices. Some may claim that without the use of such devices crime detection in certain areas may suffer some delays since eavesdropping is quicker, easier, and more certain. However, techniques and practices may well be developed that will operate just as speedily and certainly and—what is more important—without attending illegality*” (*id.* at 62-63 [emphasis added]).

Responding to *Berger*’s constitutionally based concerns and holding, Congress in 1968 enacted title III of the Omnibus Crime Control and Safe Streets Act (codified at 18 USC § 2510 *et seq.*), setting forth baseline standards governing the issuance of eavesdropping warrants (18 USC § 2518) and making those standards applicable to the states (18 USC § 2516 [2]) while permitting them to enact still more restrictive provisions (*id.*). To the extent, then, that the New York Legislature one year later, in enacting New York’s conforming electronic eavesdropping statute (subsequently codified as CPL article 700) engaged in any balancing of the relevant competing interests, the exercise was largely academic; the essential balancing had already been performed by the Supreme Court and Congress. The State Legislature, as noted, had the option of being more protective of personal privacy than Congress had been, but it retained no power to alter the balance struck at the federal level in the opposite direction. It is suggested that New York’s eavesdropping statute was motivated by some policy to make eavesdropping more readily available in the investigation of organized crime. But the thrust of *Berger* was in precisely the opposite direction, and, in fact, the ensuing federal enactment, to the extent here relevant, contained no special dispensation for organized crime investigations. Rather, that enactment and its New York analogue, in undoubted recognition of the “inherent

dangers” of electronic eavesdropping (*see Berger*, 388 US at 60, 62) insufficiently appreciated in New York’s former eavesdropping statute, contain what to all appearances are uniformly applicable presumptions against resort to eavesdropping that can be overcome only when the proponent of electronic surveillance proffers “a full and complete statement” of facts establishing either that normal, less intrusive investigative techniques have been tried and have failed, or that they reasonably appear unlikely to succeed in uncovering the sought evidence (18 USC § 2518 [1] [c]; CPL 700.15 [4]; 700.20 [2] [d]).¹ The question now presented is whether the affidavit offered in support of the application for the subject eavesdropping warrant, issued March 31, 2005, met this condition with respect to defendant Rabb.²

Permission to tap the cell phone subsequently found to have been used by defendant Rabb was sought after a long pending and then still ongoing investigation of a minority labor coalition known as Akbar’s Community Services (Akbar) and its principals Derrick Walker and Frederick Rasberry, involving witness interviews, document review, visual surveillance, undercover work, search warrant execution and, finally, electronic eavesdropping, disclosed that a cell phone in the name of one Carol Rabb was being used by an individual then identified only as “Divine” to communicate respecting racketeering related activities in which the user was evidently involved. It was thought based on information obtained in the course of the Akbar investigation, most notably phone records and conversations intercepted under eavesdropping warrants pertaining to the cell phones used by Walker and Rasberry,³ that “Divine” was a leader of P&D Construction Workers (P&D). Although little was actually known about P&D, it appeared that it was a fledgling minority labor coalition in competition with the better established

1. The presumption may also be overcome by a showing that “normal” investigation would be too dangerous, but that ground is not here raised.

2. In the course of the electronic surveillance conducted pursuant to the March 31, 2005 warrant’s authority investigators became aware of the cell phone whose use was eventually traced to defendant Mason. Permission to eavesdrop on the Mason phone was sought in subsequent warrant applications. Inasmuch, however, as those subsequent warrants were premised upon information obtained pursuant to the March 2005 warrant authorizing the tap of the “Divine” cell phone, the crucial predicate for the disposition of each appellant’s suppression motion was that set forth in the supporting March 31, 2005 affidavit.

3. The validity of these warrants is not here at issue.

Akbar and that it was to some unascertained extent involved in corrupt practices.⁴

Authorization to eavesdrop on the “Divine” cell phone, used under an account in the name of Carol Rabb, was first sought in March 2005 in the context of an application seeking to extend the previously issued Walker and Rasberry eavesdropping warrants. The applicant’s supporting affidavit, dated March 31, 2005, contains extensive analysis of phone records and lengthy excerpts of conversations intercepted on the Walker and Rasberry cell phones purporting to demonstrate in accordance with the requirements of CPL 700.15 (2) and (3) that there was probable cause to believe that the investigation’s targets were committing specified crimes and that particular communications respecting the suspected crimes would be captured through the sought eavesdropping. The sufficiency of these probable cause allegations is not the issue before us; it is, rather, the adequacy of the immediately following allegations purporting to demonstrate the need for eavesdropping. Those allegations, under the heading “THE NEED FOR EAVESDROPPING,” occupying only 3½ of the affidavit’s 64 pages, are notably general and conclusory, and make virtually no attempt to differentiate between the long-standing Akbar investigation and its corporeal targets and the practically nascent investigation into P&D and its supposed leader “Divine.” They are, in fact, barely distinguishable from those comprising “THE NEED FOR EAVESDROPPING” section of the affidavit filed in support of the March 1, 2005 eavesdropping extension application, which targeted only the Walker and Rasberry cell phones; the relevant paragraphs of the March 31, 2005 application differ from those of the March 1 application only in their occasional, unelaborated references to “Divine” or “P&D.”

Apart from noting “a number” of attempts during the preceding month at identifying “Divine” through visual surveillance of meetings between Walker and Rasberry and their associates, the affidavit does not trouble to show in accordance with the first prong of CPL 700.15 (4) that, with respect to P&D and “Divine,” “normal investigative procedures [had]

4. The majority takes considerable liberty when it attributes to the People at the time of the warrant application knowledge of “how P&D operated its business” (majority op at 154). Virtually nothing was known about P&D’s structure or operations at that time.

been tried and [had] failed.”⁵ The affidavit instead appears to address itself to the statute’s alternative prong under which the requisite showing of need can be premised on a demonstration that “normal investigative procedures . . . reasonably appear to be unlikely to succeed if tried.” In this connection, the affiant alleges as he had previously, almost completely without particular reference, that although physical surveillance might establish “some useful facts” it would be inadequate to achieve the investigation’s goals and might risk the investigation’s secrecy as investigators attempted to draw near to the targets of their scrutiny; that eavesdropping is necessary because the targeted corrupt activities are widespread and involve numerous participants, and because victims of those activities would likely be afraid to testify; that, although the affiant in an undercover capacity had succeeded in transacting illicit business with Raspberry, additional undercover efforts would be impracticable because the members of “this group” had long time associations and family connections precluding the insertion of a government agent; that a grand jury investigation would be futile because witnesses would be afraid to testify and, if they did, would have to be granted immunity; that grand jury subpoenas would tip off the investigation’s targets, foreclosing other conventional avenues of inquiry; and, that the execution of search warrants would be “premature” and would likely result in the destruction of valuable evidence. The relevant portion of the affidavit concludes that evidence necessary for the successful investigation of “this case,” meeting the goals of “this investigation,” can only be obtained through electronic surveillance.

The sought warrant was granted by a Justice of the Appellate Division, Second Department, and thereafter upheld by Supreme Court and the Appellate Division, First Department, over claims by both appellants that the need for eavesdropping on their cell phones had not been made out in accordance with the requirements of CPL 700.15 (4) and 700.20 (2) (d) by the March 31, 2005 warrant applicant. This Court now affirms upon

5. While the majority finds relevant the additional circumstance that a “Divine” business card had, during the Akbar investigation, been obtained from a contractor who claimed that it had been left with her by a P&D agent who demanded that community workers be employed at her work site, the affiant apparently did not deem this transaction pertinent to his explanation of the need for eavesdropping. This is understandable since the receipt of the business card and its ensuing use in identifying P&D as an investigative target in no way showed that eavesdropping was necessary.

the ground that there is record support for the conclusions of those courts. Supreme Court, however, never found that there had been an individualized showing that ordinary investigative techniques would likely be unavailing with respect to “Divine” and P&D. In denying defendant Rabb’s suppression motion, it found instead that such a showing was unnecessary because the futility of ordinary investigative measures had been shown with respect to Walker and Rasberry, and “Divine” was allegedly engaged in the same type of criminal activity.⁶ The Appellate Division affirmed without making any additional factual findings. It refined the rationale of Supreme Court only to the extent of theorizing that “[t]he affiant’s reliance on experience obtained in a closely related investigation into similar activities by other suspects [Walker and Rasberry] was proper, because the affidavit was sufficiently specific in showing the connection between the two investigations” (66 AD3d 487, 488 [2009]). To the extent, then, that this Court now affirms upon the ground that there were findings specific to Rabb and P&D to support the conclusion that normal investigative methods would likely be futile as to them, it acts as a factfinder in excess of its jurisdiction; no court has to this point upheld the challenged warrant upon such grounds.

The reason for this is that the warrant application simply does not state, much less state “fully and completely,” why normal investigative techniques would not likely be useful in obtaining evidence implicating the “Divine” cell phone user and P&D in corrupt labor practices. What it does do is reiterate, practically verbatim, a summary explanation of why normal investigative methods would not be productive with respect to Akbar and its principals—an explanation whose sufficiency did not rest upon the affidavit’s assemblage of generic assertions

6. Supreme Court stated:

“The People did not have to conduct a preliminary investigation of defendant as a prerequisite to establishing that normal investigative procedures could not be utilized to investigate defendant’s alleged criminal conduct. The People had already shown that such measures had been tried and failed or that they reasonably appeared to be unlikely to succeed if employed against Walker and [Rasberry]. Defendant allegedly engaged in the same type of criminal enterprise and criminal activity as that allegedly engaged in by defendants Walker and [Rasberry]. Under those circumstances, the People were not required to make a more individualized showing that such measures would be unlikely to succeed against defendant or that such measures had been attempted and failed.”

respecting “THE NEED FOR EAVESDROPPING,” but upon the elsewhere documented 30-month history of the Akbar investigation, in which ordinary investigative methods had been extensively used. There, of course, was no remotely comparable history to recount with respect to the newly commenced investigation of “Divine” and P&D, and in its absence the affidavit’s pat recitation of difficulties endemic to organized crime probes was patently insufficient to explain why ordinary investigative means would likely be fruitless with respect to “Divine” and P&D.

In view of the circumstance that the baseline standard for a showing of necessity in justification of electronic eavesdropping is federal, it is clear that the decisions of the federal courts applying that standard are of special relevance to our inquiry, which, minimally, must be whether there is evidence to permit the inference that the federally compelled standard has been satisfied. The People agree that this is so and list in a decontextualized way numerous bromides to demonstrate that necessity is not a rigorous requirement, but merely one that may be met by a showing that electronic surveillance is not being “routinely employed as the initial step in criminal investigation” (*United States v Giordano*, 416 US 505, 515 [1974]). We are in this vein reminded that resort to traditional investigative methods need not be exhaustive (*see United States v Robledo*, 254 Fed Appx 850 [2d Cir 2007]), or entirely useless (*see United States v Maxwell*, 25 F3d 1389, 1394 [8th Cir 1994]), before a wiretap may be deemed necessary, and that an investigator’s prior experience may have relevance to a judgment that less intrusive investigative techniques would not be efficacious (*see United States v Ashley*, 876 F2d 1069, 1072 [1st Cir 1989]). It is in addition impressed upon us that the federal cases employ a “common sense approach” in evaluating the government’s assessment of the utility of alternative investigative methods (*see United States v Blackmon*, 273 F3d 1204, 1207 [2001]). But none of these maxims have actually been applied as the People essentially contend they should be here, effectively to relieve a warrant applicant of the burden of specifying why less intrusive alternatives to eavesdropping would be unavailing in advancing the investigation of a particular target. That electronic surveillance is not the very first step in an investigation is not license for it to be the second or third step; such a literal-minded

application of *Giordano*'s dictum to effectively supplant the statutory requirement was never intended.⁷

It is true that the applicant need not show that alternative methods have actually been tried and have failed, but in lieu of demonstrating necessity by that means, there must, if the necessity requirement is not to be rendered practically nugatory, be some equivalently "full and complete" explanation under the statutory second prong as to why the use of traditional methods would be ineffective to meet reasonably defined investigational objectives. What is required is a factually detailed statement "establishing" (CPL 700.20 [2] [d]) that the evidence sought through a particular wiretap, or its probative equivalent, is not reasonably likely to be acquired through "normal" means. This was never provided as to "Divine" and P&D, and until now was never found to have been. Rather, what was found was that necessity had been shown to justify the Walker and Rasberry wiretaps and that because Akbar and P&D were similar, or because their investigations were connected, the necessity predicate as to the Akbar principals could be transferred to justify the tapping of the cell phones of P&D principals. The legal issue before us is the propriety of that predicate transfer. This is not a mixed question of law and fact, but entirely one of law as to which federal cases have spoken with great clarity.

In *United States v Santora* (600 F2d 1317 [9th Cir 1979]), the court reviewed eavesdropping warrants issued in connection with an investigation into a numerously populated conspiracy to traffic in stolen airline tickets. Although upholding the electronic surveillance warrants initially issued in the investigation, the court found that the need for certain additional wiretaps subsequently authorized within the same investigation had not been sufficiently made out. It noted that the validity of the prior wiretap authorizations did not entitle the government

7. This is clear when the quotation is read in context:

"Congress legislated in considerable detail in providing for applications and orders authorizing wiretapping and evinced the clear intent to make doubly sure that the statutory authority be used with restraint and only where the circumstances warrant the surreptitious interception of wire and oral communications. These procedures were not to be routinely employed as the initial step in criminal investigation. *Rather, the applicant must state and the court must find that normal investigative procedures have been tried and failed or reasonably appear to be unlikely to succeed if tried or to be too dangerous*" (416 US at 515 [emphasis added]).

to “dispense with the required showing when applying to tap the telephones of other conspirators” and quoted *United States v Abascal* (564 F2d 821, 826 [9th Cir 1977]) for the proposition that “[i]t is not enough that the agents believe the telephone subscribers they wish to tap are all part of one conspiracy. Less intrusive investigative procedures may succeed with one putative participant while they may not succeed with another” (600 F2d at 1321). Similarly, in *United States v Gonzalez, Inc.* (412 F3d 1102 [9th Cir 2005]), the validity of prior eavesdropping warrants issued in connection with an investigation into an immigration smuggling ring, permitting the tapping of certain phones at a bus terminal, was held insufficient to demonstrate the necessity of subsequent wiretaps placed on phones at a different location:

“[the government] attempted to shoe-horn the significant investigatory work the government conducted before applying for the Terminal wiretap into its application for the Blake Avenue wiretap. *But the government is not free to transfer a statutory showing of necessity from one application to another—even within the same investigation. This court has held that an issuing judge may not examine various wiretap applications together when deciding whether a new application meets the statutory necessity requirement. Each wiretap application must separately satisfy the necessity requirement*” (*id.* at 1115 [emphasis added]).

Here, while we deal with what in the investigator’s eyes was one investigation into the corrupt practices of minority labor coalitions, the investigation, objectively, had numerous distinct targets. P&D and Akbar were separate, indeed by the People’s description, rival, entities. While they may have shared similar goals for their respective memberships and leaders, and there was some evidence that they occasionally colluded, there was no basis to suppose that they were part of a single overarching criminal conspiracy or enterprise. Moreover, even if there had been, it is clear from *Santora* and *Gonzalez* that the showing of necessity made in justification of the Akbar wiretaps was not transferrable to support the P&D wiretaps. Indeed, the showing of necessity made with respect to Walker and Rasberry would not even have been transferrable to justify eavesdropping on the phones of other Akbar principals.

That normal means had, after extensive and often useful application, reached a point of diminishing returns in the Akbar

investigation, did not “establish” that such means were unlikely to be productive in the relatively recently commenced investigation of P&D and its principals. If the two entities were comparable as the People contend, the early success of the Akbar investigation using ordinary means of inquiry, would seem to suggest that such means would have been similarly efficacious in the early stages of the P&D investigation. If, on the other hand, the entities were, as defendants contend, quite different, there would appear to be no ground to suppose that the experience in investigating Akbar had much predictive value in assessing the utility of “normal” techniques in the investigation of P&D. It is, in any case, not consistent with the constitutionally grounded statutory presumption against electronic eavesdropping that there should be a proliferation of wiretaps based upon necessity findings turning on the mere relatedness or similarity of investigations or their targets. If that were permitted, wiretapping would, in a broad range of situations defying judicial containment, routinely become among the first investigative means employed, rather than a necessary supplement to ordinary, less intrusive measures.

It does not seem to me wise to avoid this squarely presented problem, and particularly to do so by denominating the legal issue before us as a “mixed question.” Today’s decision, while perhaps narrowly intended, will, given its factual underpinning, be taken as granting broad permission to dispense with the necessity requirement in a wide range of circumstances based simply upon the supposed similarity of targets or the connectedness of investigations. These theories undeniably have their attraction; it may well seem a foregone conclusion borne out by an investigator’s experience in probing other apparently similar criminal enterprises that the entity with which he or she is now confronted will not be amenable to penetration by ordinary means and that the investigation’s ultimate objective—the complete extirpation of the criminal organism’s many roots and tendrils—will not be achievable except with the aid of electronic surveillance. But it is in this context a court’s obligation under the law to check the impulse toward the expedient use of wiretaps and remind those in the often competitive business of ferreting out crime that the

“fact ‘that traditional investigation methods do not reveal all [is a] generic problem[] of police investigation [and that its] generic nature does not dissipate

simply because the government claims a vast investigative purpose . . . The government may not cast its investigative net so far and wide as to manufacture necessity in all circumstances’ ” (*United States v Gonzalez, Inc.*, 412 F3d at 1114-1115, quoting *United States v Blackmon*, 273 F3d at 1211).

Because I believe that the tack now taken by this Court affords government a net far more capacious than the law permits, either in its federal or conforming state iteration, I would reverse, grant the motions for suppression of communications obtained by means of the wiretaps authorized in reliance upon the March 31, 2005 warrant, and remit the matters for further proceedings.

Judges GRAFFEO, READ and SMITH concur with Judge PIGOTT; Chief Judge LIPPMAN dissents and votes to reverse in a separate opinion in which Judges CIPARICK and JONES concur.

In each case: Order affirmed.

[944 NE2d 1120, 919 NYS2d 481]

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Attorney General of the State of New York, Appellant, v
WELLS FARGO INSURANCE SERVICES, INC., et al., Respon-
dents.

Argued January 5, 2011; decided February 17, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 5, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bernard J. Fried, J.; op 18 Misc 3d 1117[A], 2008 NY Slip Op 50114[U]), which had dismissed the complaint.

People v Wells Fargo Ins. Servs., Inc., 62 AD3d 404, affirmed.

HEADNOTE**Insurance — Agents and Brokers — Common-Law Fiduciary Duty — Nondisclosure of Incentive Program with Insurance Companies**

In an action brought by the Attorney General against defendant insurance brokerage firm, the complaint did not plead a viable claim for breach of fiduciary duty based upon the defendant's nondisclosure to its customers of incentive programs it had entered into with insurers, whereby the brokerage firm allegedly "steered" its customers to participating insurers in exchange for cash compensation from those insurers. The rule that one acting as a fiduciary in a particular transaction may not receive, in connection with that transaction, undisclosed compensation from persons with whom the principal's interests may be in conflict did not apply here. Although the brokerage firm was not exempt from the general rule that an agent owes a duty of loyalty to its principal, which prohibited it from giving advice in bad faith, the complaint did not allege that the brokerage firm made any affirmative misrepresentations or that any customer was persuaded to buy inferior, or overpriced, insurance in order to help the brokerage firm earn its incentives. Since a broker is the agent of the insured, but customarily looks for compensation to the insurer and is sometimes the insurer's agent also, the broker has a dual agency status. Given the complexity of an insurance broker's role, such broker is not normally required to disclose to its customers contractual arrangements it has made with insurance companies. An exception to that rule was not warranted here, where the complaint did not allege that the brokerage firm did anything contrary to industry custom.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Insurance §§ 132, 161, 162.

COUCH ON INSURANCE (3d ed) §§ 45:3, 45:4, 46:27.

NY JUR 2d, Insurance §§ 410, 416, 494, 499.

ANNOTATION REFERENCE

See ALR Index under Insurance Agents and Brokers.

FIND SIMILAR CASES ON WESTLAW®

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Query: breach! /4 fiduciary /p insurance /2 broker!

POINTS OF COUNSEL

Andrew M. Cuomo, Attorney General, New York City (Richard Dearing, Barbara D. Underwood and Steven Wu of counsel), for appellant. I. The complaint states a claim for breach of the fiduciary duty of loyalty. (*Arnav Indus., Inc. Retirement Trust v Brown, Raysman, Millstein, Felder & Steiner*, 96 NY2d 300; *People v Coventry First LLC*, 13 NY3d 108; *Fils-Aime v Ryder TRS, Inc.*, 40 AD3d 917; *Hoffend & Sons, Inc. v Rose & Kieran, Inc.*, 7 NY3d 152; *NWE Corp. v Atomic Risk Mgt. of N.Y., Inc.*, 25 AD3d 349; *Clinchy v Grandview Dairy, Inc.*, 283 NY 39; *Lusenskas v Axelrod*, 81 NY2d 300; *Security Mut. Ins. Co. of N.Y. v Acker-Fitzsimons Corp.*, 31 NY2d 436; *Precision Auto Accessories, Inc. v Utica First Ins. Co.*, 52 AD3d 1198; *Rendeiro v State-Wide Ins. Co.*, 8 AD3d 253.) II. The complaint states a claim under Executive Law § 63 (12). (*State of New York v Rachmani Corp.*, 71 NY2d 718; *People v Federated Radio Corp.*, 244 NY 33; *Guggenheimer v Ginzburg*, 43 NY2d 268; *Matter of Lefkowitz v Bull Inv. Group*, 46 AD2d 25; *People v General Elec. Co.*, 302 AD2d 314; *People v Concert Connection*, 211 AD2d 310; *State of New York v Sonifer Realty Corp.*, 212 AD2d 366; *People v Coventry First LLC*, 52 AD3d 345, 13 NY3d 108; *Joannou v Blue Ridge Ins. Co.*, 289 AD2d 531; *Petitt v Celebrity Cruises, Inc.*, 153 F Supp 2d 240.)

Alan L. Kildow, of the Minnesota bar, admitted pro hac vice, Skadden, Arps, Slate, Meagher & Flom, LLP, Washington, D.C. (Richard L. Brusca and Amanda M. Raines of counsel), and Skadden, Arps, Slate, Meagher & Flom, LLP, New York City (Steven R. Glaser of counsel), for respondents. I. The Appellate Division properly affirmed dismissal of the breach of fiduciary duty claim. (*Murphy v Kuhn*, 90 NY2d 266; *Hersch v DeWitt Stern Group, Inc.*, 43 AD3d 644; *Wender v Gilbert Agency*, 304 AD2d 311, 100 NY2d 507; *Verbert v Garcia*, 63 AD3d 1149; *Bruckmann, Rosser, Sherrill & Co., L.P. v Marsh USA, Inc.*, 65 AD3d 865; *Kimmell v Schaefer*, 89 NY2d 257; *People v Liberty*

Mut. Ins. Co., 52 AD3d 378; *GlobalNet Financial.com, Inc. v Frank Crystal & Co., Inc.*, 449 F3d 377; *Busker on Roof Ltd. Partnership Co. v Warrington*, 283 AD2d 376; *Hoffend & Sons, Inc. v Rose & Kiernan, Inc.*, 19 AD3d 1056, 7 NY3d 152.) II. The Appellate Division properly affirmed dismissal of the complaint for failure to state a claim under Executive Law § 63 (12). (*People v Condor Pontiac, Cadillac, Buick & GMC Trucks, Inc.*, 2003 NY Slip Op 51082[U]; *Matter of State of New York v Magley*, 105 AD2d 208; *People v 21st Century Leisure Spa Intl.*, 153 Misc 2d 938; *State of New York v Cortelle Corp.*, 38 NY2d 83; *People v H&R Block, Inc.*, 16 Misc 3d 1124[A], 2007 NY Slip Op 51562[U]; *People v Katz*, 84 AD2d 381; *Browning Ave. Realty Corp. v Rubin*, 207 AD2d 263; *People v Lipsitz*, 174 Misc 2d 571; *State of New York v Feldman*, 210 F Supp 2d 294; *People v Apple Health & Sports Clubs*, 206 AD2d 266.)

Vinson & Elkins L.L.P., New York City (Steven Paradise of counsel), for Liberty Mutual Insurance Company and others, amici curiae. I. The Attorney General's agency theory is inapplicable in an insurance context. (*Hersch v DeWitt Stern Group, Inc.*, 43 AD3d 644; *People v Liberty Mut. Ins. Co.*, 52 AD3d 378; *Murphy v Kuhn*, 90 NY2d 266; *Bohlinger v Zanger*, 306 NY 228; *Guardian Life Ins. Co. of Am. v Chemical Bank*, 94 NY2d 418; *Aeropulse, Inc. v Armstrong & Brooks, Ltd.*, 740 F Supp 938; *Core-Mark Intl. v Swett & Crawford Inc.*, 71 AD3d 1072; *Kimmell v Schaefer*, 89 NY2d 257; *People v Coventry First LLC*, 13 NY3d 108, 13 NY3d 758; *Rudolph E. Bucci, Inc. v Greater N.Y. Mut. Ins. Co.*, 69 Misc 2d 465.) II. Making a broker a fiduciary with respect to the insured it serves would open a Pandora's box that this Court warned against. (*People v Liberty Mut. Ins. Co.*, 52 AD3d 378; *Hersch v DeWitt Stern Group, Inc.*, 43 AD3d 644; *Meinhard v Salmon*, 249 NY 458; *Murphy v Kuhn*, 90 NY2d 266.)

Steptoe & Johnson LLP, New York City (Sandra E. Cavazos of counsel), and *Steptoe & Johnson LLP*, Washington, D.C. (Scott A. Sinder of counsel), for Council of Insurance Agents and Brokers, amicus curiae. I. The disclosure obligation that the Attorney General seeks to impose violates the well-established statutory canon of construction *expressio unius est exclusio alterius*. (*Aeropulse, Inc. v Armstrong & Brooks, Ltd.*, 740 F Supp 938; *Pajak v Pajak*, 56 NY2d 394; *National Railroad Passenger Corporation v National Assn. of Railroad Passengers*, 414 US 453; *Botany Worsted Mills v United States*, 278 US 282; *Barnhart v Peabody Coal Co.*, 537 US 149; *United States v Vonn*, 535

US 55; *Chevron US A. Inc. v Echazabal*, 536 US 73.) II. The recently-enacted regulation governing disclosure of producer compensation makes it unnecessary for this Court to reach the fiduciary duty issue. (*People v Coventry First LLC*, 13 NY3d 108.)

OPINION OF THE COURT

SMITH, J.

We hold that an insurance broker does not have a common-law fiduciary duty to disclose to its customers “incentive” arrangements that the broker has entered into with insurance companies.

I

The Attorney General brought this action against a large insurance brokerage firm now known as Wells Fargo Insurance Services, Inc. The complaint contains four causes of action, alleging that Wells Fargo engaged in “repeated fraudulent or illegal acts” in violation of Executive Law § 63 (12), was unjustly enriched, committed common-law fraud and breached its fiduciary duties.

The complaint alleges the following facts: Insurance brokers, including Wells Fargo, act as agents for organizations and individuals seeking to purchase insurance. Wells Fargo deals with insurance companies on those customers’ behalf, obtains quotes from the insurers, and presents them to the customers; and it also offers the customers recommendations about what coverage will best suit their needs. Wells Fargo “often has advised its customers in complex insurance placements where all things are rarely equal, and where subjective decisions must be made among competitors with varying coverages, financial stability, and price.” Customers rely on Wells Fargo “to make its recommendations strictly based on the customer’s best interest.”

The complaint also alleges that Wells Fargo entered into a number of “incentive” arrangements with insurance companies, in which the insurance companies rewarded Wells Fargo for bringing them business. The complaint focuses especially on Wells Fargo’s “Millennium Partners Program,” in which participating insurers agreed to pay cash compensation to Wells Fargo based on the volume of business that the broker brought to them. It alleges that, as a result of the incentive programs, Wells Fargo “steered” its customers to particular insurance

companies and away from others that did not participate in the programs.

The complaint alleges that the incentive payments were not disclosed to Wells Fargo's customers. It does not allege, however, that Wells Fargo made any affirmative misrepresentations or that any customer suffered demonstrable harm from the incentive arrangements. There is no allegation that any customer was persuaded to buy inferior, or overpriced, insurance in order to help Wells Fargo earn its incentives.

Supreme Court dismissed the complaint with leave to replead (18 Misc 3d 1117[A], 2008 NY Slip Op 50114[U]). The Attorney General chose not to replead, but appealed to the Appellate Division, which affirmed the dismissal (*People v Wells Fargo Ins. Servs., Inc.*, 62 AD3d 404 [2009]). We granted leave to appeal (13 NY3d 717 [2010]), and now affirm.

II

Though the complaint relies on various legal theories, they can all be boiled down to a claim for breach of fiduciary duty. In the absence of an allegation that Wells Fargo misrepresented any fact to its customers, or that it did anything to cause actual injury to the customers' interests, the case rests on the rule that one acting as a fiduciary in a particular transaction may not receive, in connection with that transaction, undisclosed compensation from persons with whom the principal's interests may be in conflict (*see generally EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19-22 [2005]). The rule is a sound one in general, but we conclude that it does not apply here.

Wells Fargo, relying on *Murphy v Kuhn* (90 NY2d 266 [1997]), asserts that we have already decided the fiduciary duty issue in its favor. We said in *Murphy*:

“Generally, the law is reasonably settled on initial principles that insurance agents have a common-law duty to obtain requested coverage for their clients within a reasonable time or inform the client of the inability to do so; however, they have no continuing duty to advise, guide or direct a client to obtain additional coverage” (*id.* at 270).

We agree with the Attorney General that Wells Fargo reads *Murphy* too broadly. *Murphy* did not imply that insurance brokers are exempt from the general rule that an agent owes a duty of loyalty to its principal. Even if it had no duty to give

advice, Wells Fargo clearly could not give advice in bad faith—it could not, for example, advise a customer to buy coverage that Wells Fargo knew to be inferior, in exchange for an under-the-table payment to Wells Fargo from the insurer. But this complaint does not allege that Wells Fargo did anything of that kind. Indeed, the complaint alleges nothing that breached Wells Fargo’s duty of loyalty, unless it was a breach of that duty to enter into undisclosed incentive arrangements with insurance companies.

In arguing that it was, the Attorney General relies on three propositions: that an insurance broker is the agent of the insured (*see Security Mut. Ins. Co. of N.Y. v Acker-Fitzsimons Corp.*, 31 NY2d 436, 442 n 3 [1972]); that a principal-agent relationship is, by nature, a fiduciary relationship (*see Sokoloff v Harriman Estates Dev. Corp.*, 96 NY2d 409, 416 [2001]; Restatement [Third] of Agency § 1.01); and that a fiduciary must disclose to its principal any interest in a particular transaction that causes the fiduciary’s loyalties to be divided (*Dubbs v Stribling & Assoc.*, 96 NY2d 337, 340-341 [2001]). There is truth in all these propositions, but the relationship between an insurance broker and a purchaser of insurance is not as simple as the Attorney General suggests. A broker is the agent of the insured, but it customarily looks for compensation to the insurer, not the insured, and it is sometimes the insurer’s agent also—for example, when collecting premiums. We have thus referred to the broker’s “dual agency status” (*Bohlinger v Zanger*, 306 NY 228, 230 [1954]). Indeed, the word “broker” suggests an intermediary—not someone with undivided loyalty to one or the other side of the transaction.

Recognizing the complexity of an insurance broker’s role, several Appellate Division cases hold that such a broker need not disclose to its customers contractual arrangements it has made with insurance companies (*People v Liberty Mut. Ins. Co.*, 52 AD3d 378 [1st Dept 2008]; *Hersch v DeWitt Stern Group, Inc.*, 43 AD3d 644, 645 [1st Dept 2007]; *Wender v Gilberg Agency*, 304 AD2d 311 [1st Dept 2003]). We agree that such disclosure is not normally required—and if there are exceptions to that rule, this case does not present one. The complaint does not allege that anything Wells Fargo did was contrary to industry custom; indeed, the parties seem to agree that arrangements like those the Attorney General complains of have been commonplace, and have not generally been disclosed.

This nondisclosure may be a bad practice. Indeed, it is prohibited by a recently adopted regulation of the Insurance

Department, but that regulation did not exist at the time of the conduct at issue here (*see* 11 NYCRR 30.3 [a] [2] [eff Jan. 1, 2011] [requiring disclosure to a purchaser of insurance if a broker “will receive compensation from the selling insurer . . . based in whole or in part on the insurance contract” that the broker sells]). A regulation, prospective in effect, is a much better way of ending a questionable but common practice than what the Attorney General asks us to do here: in substance to outlaw the practice retroactively by creating a new common-law rule.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge LIPPMAN and Judges CIPARICK, READ, PIGOTT and JONES concur; Judge GRAFFEO taking no part.

Order affirmed, with costs.

[944 NE2d 1104, 919 NYS2d 465]

MANDARIN TRADING LTD., Appellant, v GUY WILDENSTEIN et al.,
Respondents.

Argued January 5, 2011; decided February 10, 2011

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 18, 2009. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Emily Jane Goodman, J.; op 17 Misc 3d 1118[A], 2007 NY Slip Op 52059[U]), which had granted a motion by defendants to dismiss the complaint.

Mandarin Trading Ltd. v Wildenstein, 65 AD3d 448, affirmed.

HEADNOTES

Fraud — Factual Misrepresentation — Nonactionable Opinion

1. Plaintiff, the purchaser of a painting, failed to state a cause of action for fraud against defendant appraiser, since defendant's letter regarding the painting's value constituted nonactionable opinion providing no basis for a fraud claim. The letter, which made no mention of plaintiff, merely disclosed defendant's familiarity with the painting, his belief concerning its value, and an acknowledgment that the letter was addressed to a person whose role in the transaction and relationship to the parties was not stated in the pleadings. Although plaintiff alleged that defendant fraudulently omitted that he had an ownership interest in the painting, the complaint failed to allege that defendant owed a fiduciary duty to plaintiff. By failing to plead the role played by the addressee of the letter or how he was related to the parties, no inference could be drawn that defendant misrepresented his alleged ownership interest or the painting's value, knowing that the addressee would transfer that information to plaintiff. Moreover, rather than alleging that defendant misrepresented its ownership to plaintiff specifically, an insufficient, general allegation was proffered that defendant was required to disclose his interest because he should have known that a hypothetical purchaser would rely on the appraisal letter.

Negligence — Negligent Misrepresentation — Lack of Special Relationship

2. Plaintiff, the purchaser of a painting, failed to state a cause of action for negligent misrepresentation against defendant appraiser, who issued a letter providing an estimate of the painting's worth, where the pleadings lacked allegations showing a special relationship between the parties. A claim for negligent misrepresentation requires the demonstration of the existence of a special relationship between the parties imposing a duty on a defendant to impart correct information to a plaintiff. Although plaintiff generally pleaded that "a special relationship of trust or confidence" existed between the parties, the complaint did not allege whether defendant had any contact with plaintiff, whether plaintiff solicited the appraisal directly from defendant, whether defendant knew the purpose of the appraisal letter, or whether

defendant was even aware of plaintiff's existence. In addition, neither defendant's art expertise nor the alleged foreseeability that the appraisal was requested by a purchaser for the purpose of buying the painting could create a special relationship without further allegations establishing a relationship between the parties.

Contracts — Agreement for Benefit of Third Persons — Lack of Relationship between Parties

3. Plaintiff, the purchaser of a painting, failed to state a cause of action for breach of contract against defendant appraiser on the theory that it was an intended third-party beneficiary to an appraisal contract between defendant and the person to whom defendant presented an appraisal letter since plaintiff failed to allege a relationship between the parties. The complaint only offered conclusory allegations without pleading the pertinent terms of the purported agreement, leaving the court to speculate as to the parties involved and the conditions under which the alleged appraisal contract was formed. Consequently, by failing to plead the salient terms of a valid and binding contract, plaintiff could not show that the contract was intended for its immediate benefit.

Equity — Unjust Enrichment — Lack of Relationship between Parties

4. Plaintiff, the purchaser of a painting, failed to state a cause of action for unjust enrichment against defendant appraiser, who issued a letter giving an estimate of the painting's worth, where there was a lack of allegations to indicate a relationship between the parties or at least an awareness by defendant of plaintiff's existence. The essential inquiry in an action for unjust enrichment is whether it is against equity and good conscience to permit the defendant to retain what is sought to be recovered. While privity is not required for an unjust enrichment claim, a claim will not be supported if the connection between the parties is too attenuated. Moreover, there were no indicia of an enrichment that was unjust where the pleadings failed to indicate a relationship between the parties that could have caused reliance or inducement. Without further allegations, the mere existence of an appraisal letter that happened to find a path to a prospective purchaser did not render the transaction one of equitable injustice requiring a remedy to balance a wrong.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Contracts §§ 425, 430, 437, 439, 452; AM JUR 2d, Fraud and Deceit §§ 56, 59, 62, 63, 71-74, 128, 129, 242, 267-269, 292-294; AM JUR 2d, Restitution and Implied Contracts §§ 9, 20, 23, 32.

CALAMARI AND PERILLO, CONTRACTS (5th ed) § 17.3.

NY JUR 2d, Contracts §§ 313, 316-318, 523-526; NY JUR 2d, Equity § 69; NY JUR 2d, Fraud and Deceit §§ 12, 29-32, 36-38, 76, 77, 122, 130-133.

PROSSER AND KEETON, TORTS (5th ed) §§ 105-109.

WILLISTON ON CONTRACTS (4th ed) §§ 37:1, 37:8, 68:1, 68:5, 68:9.

ANNOTATION REFERENCE

See ALR Index under Appraisal or Appraisers; Art and

Artists; Fraud and Deceit; Privity; Third-Party Beneficiaries; Unjust Enrichment.

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POINTS OF COUNSEL

Crowell & Moring LLP, New York City (*Clifton S. Elgarten, Samaa Haridi, Birgit Kurtz* and *Daniel Ginzburg* of counsel), for appellant. I. The courts below addressed the claims in a manner inconsistent with the basic facts set forth in the complaint. (*Leon v Martinez*, 84 NY2d 83; *Faggionato v Lerner*, 500 F Supp 2d 237; *Eurycleia Partners, LP v Seward & Kissel, LLP*, 12 NY3d 553; *Ossining Union Free School Dist. v Anderson LaRocca Anderson*, 73 NY2d 417; *Buxton Mfg. Co. v Valiant Moving & Stor.*, 239 AD2d 452; *Credit Alliance Corp. v Arthur Andersen & Co.*, 65 NY2d 536; *Prudential Ins. Co. of Am. v Dewey, Ballantine, Bushby, Palmer & Wood*, 80 NY2d 377.) II. Each of the counts of the complaint has been properly pleaded. (*Tindle v Birkett*, 171 NY 520; *Eaton Cole & Burnham Co. v Avery*, 83 NY 31; *Kimmell v Schaefer*, 89 NY2d 257; *State of Cal. Pub. Employees' Retirement Sys. v Shearman & Sterling*, 95 NY2d 427; *Anesthesia Assoc. of Mount Kisco, LLP v Northern Westchester Hosp. Ctr.*, 59 AD3d 473; *State of New York v Daicel Chem. Indus., Ltd.*, 42 AD3d 301; *Simonds v Simonds*, 45 NY2d 233; *Banque Worms v BankAmerica Intl.*, 77 NY2d 362; *National Bank of Commerce in N.Y. v National Mechanics' Banking Assn. of N.Y.*, 55 NY 211.) III. That an appraisal is an "opinion" does not vitiate liability for either intentional or negligent wrongdoing. (*Rodin Props.-Shore Mall v Ullman*, 264 AD2d 367; *Jacobs v Lewis*, 261 AD2d 127; *DH Cattle Holdings Co. v Smith*, 195 AD2d 202; *Spitzer v Christie's Appraisals*, 235 AD2d 266; *Cristallina v Christie, Manson & Woods Intl.*, 117 AD2d 284.)

Schindler Cohen & Hochman LLP, New York City (*Steven R. Schindler* and *Daniel E. Shaw* of counsel), for respondents. I. The Appellate Division did not err in affirming the dismissal of Mandarin Trading Ltd.'s claims for fraudulent misrepresentation and concealment. (*Lama Holding Co. v Smith Barney*, 88 NY2d 413; *Cohen v Houseconnect Realty Corp.*, 289 AD2d 277; *Godfrey v Spano*, 13 NY3d 358; *SNS Bank v Citibank*, 7 AD3d 352; *Zanett Lombardier, Ltd. v Maslow*, 29 AD3d 495; *Tindle v*

Birkett, 171 NY 520; *Eaton Cole & Burnham Co. v Avery*, 83 NY 31; *Buxton Mfg. Co. v Valiant Moving & Stor.*, 239 AD2d 452; *Ravenna v Christie's Inc.*, 289 AD2d 15; *Rodin Props.-Shore Mall v Ullman*, 264 AD2d 367.) II. The Appellate Division did not err in holding that Guy Wildenstein's July 28, 2000 letter was a nonactionable opinion. (*Jacobs v Lewis*, 261 AD2d 127; *Chase Invs. v Kent*, 256 AD2d 298; *Greenberg v Chrust*, 282 F Supp 2d 112; *Cristallina v Christie, Manson & Woods Intl.*, 117 AD2d 284; *Struna v Wolf*, 126 Misc 2d 1031; *Spitzer v Christie's Appraisals*, 235 AD2d 266.) III. The Appellate Division did not err in affirming the dismissal of Mandarin Trading Ltd.'s negligent misrepresentation claims. (*Parrott v Coopers & Lybrand*, 95 NY2d 479; *Ravenna v Christie's Inc.*, 289 AD2d 15; *Kimmell v Schaefer*, 89 NY2d 257; *Credit Alliance Corp. v Arthur Andersen & Co.*, 65 NY2d 536.) IV. The Appellate Division did not err in affirming the dismissal of Mandarin Trading Ltd.'s contract claims. (*767 Third Ave. LLC v Greble & Finger, LLP*, 8 AD3d 75; *American-European Art Assoc. v Trend Galleries*, 227 AD2d 170; *Matter of Sud v Sud*, 211 AD2d 423; *Mendel v Henry Phipps Plaza W., Inc.*, 6 NY3d 783.) V. The Appellate Division did not err in affirming the dismissal of Mandarin Trading Ltd.'s unjust enrichment claim. (*Paramount Film Distrib. Corp. v State of New York*, 30 NY2d 415; *Banque Worms v BankAmerica Intl.*, 77 NY2d 362.)

OPINION OF THE COURT

JONES, J.

In a dispute arising from the purchase and sale of the painting *Paysage aux Trois Arbres* by Paul Gauguin, this Court is asked to determine whether claims sounding in fraud, negligent misrepresentation, breach of contract, and unjust enrichment were properly pleaded in the plaintiff's complaint.

In July 2000, J. Amir Cohen approached plaintiff Mandarin Trading Ltd.* to solicit interest in the purchase of the painting for investment purposes. Cohen explained that he could arrange a transaction for the sale and subsequent resale of the painting at an auction. Mandarin was interested in the opportunity, but sought (1) an appraisal of the painting, (2) a report of its condition, and (3) a report of its prior ownership. Cohen agreed to obtain the requested information and recommended defendant

* Phoenix Capital Reserve Fund is the parent corporation of Mandarin. Phoenix Capital's director, Patrick Blum, was approached by Cohen to determine interest in purchase of the painting.

Guy Wildenstein, an allegedly renowned expert on Gauguin, for the appraisal.

On July 28, 2000, Wildenstein presented a written appraisal letter to Michel Reymondin, which stated that the painting was worth \$15 million to \$17 million. Neither Reymondin's role in the transactions, nor his relationship to the parties is pleaded. Furthermore, the letter is addressed solely to Reymondin and neither indicates the purpose of the letter nor who requested the valuation of the painting. While the letter revealed that the painting was part of Mrs. Arthur Lehman's collection and was once sold by Wildenstein, it did not disclose any contemporaneous ownership interest. Mandarin received the letter, the complaint does not say from whom, on August 12, 2000.

On August 9, 2000, Cohen contacted and informed Mandarin that if the painting was purchased expeditiously, it could be sold at auction through Christie's at an optimum price. Christie's had outlined the logistics of the auction in a letter to Cohen in which Christie's proposed to hold an auction for the painting in New York with a reserve price of \$12 million—a price below which the painting would not sell. Christie's estimated that the painting could sell for \$12 million to \$16 million.

Mandarin purchased the painting through a series of transactions that occurred during the period of August 16, 2000 to August 30, 2000. First, Peintures Hermes S.A., a company allegedly owned by Wildenstein, forwarded an invoice to Calypso Fine Art Ltd., an intermediary, for the sale transaction. Mandarin then wired \$11.3 million for the purchase of the painting to Calypso's account. Finally, Calypso paid \$9.5 million to Peintures in exchange for the painting and then transferred the painting to Mandarin. It is further alleged that Peintures deposited \$8.8 million into a bank account owned by Wildenstein.

On November 8, 2000, Christie's held an auction for the painting, but the highest bid failed to exceed the reserve price and the painting was not sold. Mandarin has since retained ownership of the painting.

Before discovery, Supreme Court granted Wildenstein's CPLR 3211 (a) (1) and (7) motion to dismiss Mandarin's complaint (17 Misc 3d 1118[A], 2007 NY Slip Op 52059[U]). Supreme Court held that Mandarin's fraud claims failed because the complaint did not allege that Wildenstein intended to defraud Mandarin through a misstatement of fact upon which Mandarin could

justifiably rely. The negligent misrepresentation claim was dismissed for lack of a special relationship, privity, or a privity-like relationship between the parties. In addition, the breach of contract claims were dismissed for failure to plead the existence of a contract. Finally, the unjust enrichment claim was dismissed because Supreme Court concluded that Mandarin unjustifiably relied upon the appraisal.

In a 3-2 decision, the Appellate Division affirmed dismissal of Mandarin's complaint by holding that the pleadings did not sufficiently allege claims for fraud, negligent misrepresentation, breach of contract, and unjust enrichment (65 AD3d 448 [1st Dept 2009]). One dissenting Justice voted to affirm dismissal of the claims at law, but to reinstate the equity claim of unjust enrichment, while the other dissenting Justice sought to reinstate Mandarin's entire complaint. Mandarin appeals to this Court as of right, from the two-Justice dissent, pursuant to CPLR 5601 (a).

In the context of a CPLR 3211 motion to dismiss, the pleadings are "to be afforded a liberal construction. [The Court must] accept the facts as alleged in the complaint as true, [and] accord plaintiffs the benefit of every possible favorable inference" (*Leon v Martinez*, 84 NY2d 83, 87 [1994] [citation omitted]; see also *Morone v Morone*, 50 NY2d 481, 484 [1980]). Even affording Mandarin all favorable inferences, the complaint fails to sufficiently plead its claims, and we now affirm.

Fraud

Generally, in a claim for fraudulent misrepresentation, a plaintiff must allege "a misrepresentation or a material omission of fact which was false and known to be false by defendant, made for the purpose of inducing the other party to rely upon it, justifiable reliance of the other party on the misrepresentation or material omission, and injury" (*Lama Holding Co. v Smith Barney*, 88 NY2d 413, 421 [1996]; see also *Channel Master Corp. v Aluminium Ltd. Sales*, 4 NY2d 403, 406-407 [1958]). Furthermore, where a cause of action is based in fraud, "the circumstances constituting the wrong shall be stated in detail" (see CPLR 3016 [b]; see also *Lanzi v Brooks*, 43 NY2d 778, 780 [1977] ["(CPLR 3016 [b]) requires only that the misconduct complained of be set forth in sufficient detail to clearly inform a defendant with respect to the incidents complained of"]).

Mandarin argues that the complaint properly pleads that Wildestein's omission of his ownership interest in the painting

when providing the appraisal was a fraudulent, material misrepresentation intended to induce Mandarin's reliance. Wildenstein asserts that the complaint fails to plead that Wildenstein specifically intended to defraud Mandarin, and also owed a fiduciary duty to disclose an alleged ownership interest.

[1] Wildenstein's letter regarding the painting's value constituted nonactionable opinion that provided no basis for a fraud claim (*see Jacobs v Lewis*, 261 AD2d 127, 127-128 [1st Dept 1999] ["alleged misrepresentations amounted to no more than opinions and puffery or ultimately unfulfilled promises, and in either case were not actionable as fraud"]). The letter merely disclosed Wildenstein's familiarity with the painting, a belief that the painting was worth \$15 million to \$17 million, and an acknowledgement that the letter was addressed in response to Reymondin, with no mention of Mandarin.

Furthermore, with respect to a claim of fraudulent omission, the complaint fails to allege that Wildenstein owed a fiduciary duty to Mandarin (*see P.T. Bank Cent. Asia, N.Y. Branch v ABN AMRO Bank N.V.*, 301 AD2d 373, 376 [1st Dept 2003] ["A cause of action for fraudulent concealment requires, in addition to the four foregoing elements (of fraudulent misrepresentation), an allegation that the defendant had a duty to disclose material information and that it failed to do so"]).

The narrative within the complaint is devoid of facts indicating any connection between Mandarin and Wildenstein that would give rise to a fiduciary duty. Highlighting this deficiency are pleadings that require leaps of fact and logic such as the unknown role played by Reymondin—the man who allegedly received the appraisal from Wildenstein. By failing to plead the role played by Reymondin or how he was related to the parties, no inference can be drawn, for example, that Wildenstein misrepresented his alleged ownership interest or the painting's value, knowing that Reymondin would transfer the information to Mandarin. Moreover, the letter offers no assistance to Mandarin's claim, in light of the fact that the letter was addressed solely to Reymondin, and in the absence of allegations creating a bridge between Mandarin and Wildenstein. Rather than alleging that Wildenstein misrepresented his ownership to Mandarin specifically, an insufficient, general allegation is proffered that Wildenstein was required to disclose his interest because he should have known that a hypothetical purchaser would rely on the appraisal letter (*see Garelick v Carmel*, 141 AD2d 501, 502 [2d Dept 1988] ["Moreover, in order to plead a

valid cause of action sounding in fraud, the complaint must set forth all of the elements of fraud including the making of material representations by the defendant to the plaintiff’)).

As such, Mandarin’s fraud claims were properly dismissed.

Negligent Misrepresentation

It is well settled that “[a] claim for negligent misrepresentation requires the plaintiff to demonstrate (1) the existence of a special or privity-like relationship imposing a duty on the defendant to impart correct information to the plaintiff; (2) that the information was incorrect; and (3) reasonable reliance on the information” (*J.A.O. Acquisition Corp. v Stavitsky*, 8 NY3d 144, 148 [2007]; see also *Parrott v Coopers & Lybrand*, 95 NY2d 479, 483-484 [2000]).

Mandarin argues that the Appellate Division majority erred in affirming dismissal of this claim because, here, a buyer-seller relationship established privity. Wildenstein responds that no relationship existed between the parties.

[2] A special relationship may be established by “persons who possess unique or specialized expertise, or who are in a special position of confidence and trust with the injured party such that reliance on the negligent misrepresentation is justified” (*Kimmell v Schaefer*, 89 NY2d 257, 263 [1996]). Although Mandarin generally pleads that “a special relationship of trust or confidence” existed between the parties, the lack of allegations showing a relationship with Wildenstein mandates dismissal of this claim. The complaint does not allege whether Wildenstein had any contact with Mandarin, whether Mandarin solicited the appraisal directly from Wildenstein, whether Wildenstein knew the purpose of the appraisal letter, or whether Wildenstein was even aware of Mandarin’s existence.

In *Kimmell*, the defendant sought to induce plaintiffs to invest in a business venture by directly sending them a memo regarding business projections, meeting with them personally, and sending out correspondence to assure the safety of the investment. We held that the record supported a finding that the defendant established a special relationship with the plaintiffs because of the financial skill and expertise of the defendant, and his continued attempts to communicate directly with the plaintiffs to induce their investment (*id.* at 264).

Ravenna v Christie’s Inc. (289 AD2d 15 [2001]) involved a similar issue in the context of the sale of a painting where the

plaintiff alleged negligent misrepresentation after meeting with a Christie's representative and receiving advice on the value of a painting. The Appellate Division held that gratuitous advice given in a single meeting, "which did not even create a business relationship, cannot be said to have created a relationship of trust and confidence" (*id.* at 16).

Here, the pleadings fail to allege the existence of any relationship between Mandarin and Wildenstein that would support a negligent misrepresentation claim. Unlike the defendant in *Kim-mell*, there are no allegations here that Wildenstein ever met with Mandarin, was retained by Mandarin for an appraisal, or knew that the appraisal would be used by Mandarin for the purpose of purchasing the painting (*see Spitzer v Christie's Appraisals*, 235 AD2d 266 [1st Dept 1997]). And this case has an even more tenuous basis for finding privity, or a privity-like relationship, as it lacks even the bare, minimal contact of the parties in *Ravenna*. Wildenstein's art expertise alone cannot create a special relationship where otherwise the relationship between the parties is too attenuated.

Mandarin further argues that Wildenstein should have known or foreseen that the appraisal was requested by a purchaser for the purpose of buying the painting, but this Court has

"previously rejected a rule 'permitting recovery by any "foreseeable" plaintiff who relied on the negligently prepared report, and have rejected even a somewhat narrower rule that would permit recovery where the reliant party or class of parties was actually known or foreseen' but the individual defendant's conduct did not link it to that third party" (*Parrott*, 95 NY2d at 485).

Accordingly, without further allegations establishing a relationship between the parties, Mandarin's complaint fails and was properly dismissed.

Breach of Contract

[3] Mandarin alleges that it has sufficiently pleaded a breach of contract claim because it was an intended third-party beneficiary to an appraisal contract between Wildenstein and Raymondin. However, the failure to allege a relationship between the parties again proves fatal to this claim as well.

Generally, a party alleging a breach of contract must "demonstrate the existence of a . . . contract reflecting the terms and

conditions of their . . . purported agreement” (*American-European Art Assoc. v Trend Galleries*, 227 AD2d 170, 171 [1st Dept 1996]). In the context of a third-party beneficiary claim, the plaintiff must establish:

“(1) the existence of a valid and binding contract between other parties, (2) that the contract was intended for [its] benefit, and (3) that the benefit to [it] is sufficiently immediate . . . to indicate the assumption by the contracting parties of a duty to compensate [it] if the benefit is lost” (*Mendel v Henry Phipps Plaza W., Inc.*, 6 NY3d 783, 786 [2006]).

The complaint only offers conclusory allegations without pleading the pertinent terms of the purported agreement. We are left to speculate as to the parties involved and the conditions under which this alleged appraisal contract was formed. Consequently, by failing to plead the salient terms of a valid and binding contract, Mandarin cannot show that the contract was intended for its immediate benefit.

Unjust Enrichment

“The essential inquiry in any action for unjust enrichment . . . is whether it is against equity and good conscience to permit the defendant to retain what is sought to be recovered” (*Paramount Film Distrib. Corp. v State of New York*, 30 NY2d 415, 421 [1972]). A plaintiff must show “that (1) the other party was enriched, (2) at that party’s expense, and (3) that ‘it is against equity and good conscience to permit [the other party] to retain what is sought to be recovered’ ” (*Citibank, N.A. v Walker*, 12 AD3d 480, 481 [2d Dept 2004]; *Baron v Pfizer, Inc.*, 42 AD3d 627, 629-630 [3d Dept 2007]).

[4] Mandarin’s unjust enrichment claim fails for the same deficiency as its other claims—the lack of allegations that would indicate a relationship between the parties, or at least an awareness by Wildenstein of Mandarin’s existence. Although privity is not required for an unjust enrichment claim, a claim will not be supported if the connection between the parties is too attenuated (*see Sperry v Crompton Corp.*, 8 NY3d 204, 215 [2007]).

Moreover, under the facts alleged, there are no indicia of an enrichment that was unjust where the pleadings failed to indicate a relationship between the parties that could have caused reliance or inducement. Without further allegations, the

mere existence of a letter that happens to find a path to a prospective purchaser does not render this transaction one of equitable injustice requiring a remedy to balance a wrong. Without sufficient facts, conclusory allegations that fail to establish that a defendant was unjustly enriched at the expense of a plaintiff warrant dismissal (*see North Salem Psychiatric Servs., P.C. v Medco Health Solutions, Inc.*, 50 AD3d 986 [2d Dept 2008]; *Vassel v Vassel*, 40 AD2d 713 [2d Dept 1972], *affd* 33 NY2d 533 [1973]).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, with costs.

[945 NE2d 1010, 920 NYS2d 760]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MUJAHID MUHAMMAD, Appellant.

Argued January 12, 2011; decided February 17, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 6, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bruce Allen, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a forged instrument in the second degree (two counts).

People v Muhammad, 66 AD3d 424, affirmed.

HEADNOTES**Crimes — Possession of Forged Instrument — Sufficiency of Evidence**

1. The evidence at trial was legally sufficient to establish that defendant, who was arrested for driving with a suspended license after being stopped in a borrowed car, committed criminal possession of a forged instrument in the second degree (Penal Law § 170.25) by knowingly possessing two forged bank cards found in the course of inventorying the car, one in a jacket on the backseat and one in the side pocket of the driver's door. Knowing possession of tangible property may in the appropriate circumstances be inferred from evidence showing that defendant exercised dominion or control over the property by a sufficient level of control over the area in which the property is found. Here, a rational trier of fact could have inferred beyond a reasonable doubt from the evidence, including the fact that defendant had strewn his belongings through the car he was driving, that defendant must have known the cards were in the car.

Crimes — Instructions — Possession of Forged Instrument

2. In the prosecution of defendant for criminal possession of a forged instrument in the second degree arising from his arrest for driving with a suspended license and the subsequent inventory search of the borrowed car he was driving which revealed two forged bank cards, one located in a jacket on the backseat and one in the side pocket of the driver's door, Supreme Court's jury charge properly conveyed that knowing possession of the cards was required. Supreme Court accurately instructed the jury that "to possess," as that term is used in the definition of second-degree criminal possession of a forged instrument, means to have physical possession of or "to exert a knowing dominion or control over" the forged instrument. Moreover, the charge was not in error merely because it failed to append the word "knowing" each time the word "possession" was used. A reasonable juror, hearing the whole charge, would have understood that the Penal Law § 170.27 presumption, which provides that a person who possesses two or more forged instruments purporting to be credit or debit cards knows that they are forged and intends to

defraud, deceive or injure another, only applies if the person knowingly possesses the cards.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Forgery §§ 9, 33, 39, 56, 62.

CARMODY-WAIT 2d, Charge and Instruction to Jury § 200:14.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.8.

McKINNEY's, Penal Law §§ 170.25, 170.27.

NY JUR 2d, Criminal Law: Procedure § 2729; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1144–1150, 1155.

ANNOTATION REFERENCE

See ALR Index under Forgery; Instructions to Jury; Notice and Knowledge.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: possess! /4 forged /2 instrument /s know! & car automobile

POINTS OF COUNSEL

Center for Appellate Litigation, New York City (*Peter Theis* and *Robert S. Dean* of counsel), for appellant. I. The evidence was not legally sufficient to establish that defendant knowingly possessed the two forged credit cards found out of view in the borrowed car. (*People v Danielson*, 9 NY3d 342; *Jackson v Virginia*, 443 US 307; *People v Contes*, 60 NY2d 620; *People v Saunders*, 85 NY2d 339; *People v Ford*, 66 NY2d 428; *People v Crespo*, 198 AD2d 85; *People v Albright*, 59 AD3d 336; *People v Bailey*, 13 NY3d 67; *People v Fitzgerald*, 156 NY 253.) II. The court's refusal to charge the jury that Penal Law § 170.25 required the People to prove defendant's knowing possession of the two forged credit cards rendered the charge inadequate and removed the contested element from the jury's consideration. (*People v Ladd*, 89 NY2d 893; *People v Russell*, 266 NY 147; *People v Flynn*, 79 NY2d 879; *People v Ford*, 11 NY3d 875; *People v Saunders*, 85 NY2d 339; *People v Ford*, 66 NY2d 428; *People v Wood*, 58 AD3d 242; *People v Williams*, 10 AD3d 213; *People v Lewis*, 64 NY2d 1031; *People v Walker*, 198 NY 329.)

Cyrus R. Vance, Jr., District Attorney, New York City (Gina Mignola and Alan Gadlin of counsel), for respondent. I. Based on the totality of the circumstances, the jurors were entitled to conclude that defendant knew the two forged credit cards were in the car that he alone was driving, particularly since his other personal belongings were strewn about the car. (*Jackson v Virginia*, 443 US 307; *People v Contes*, 60 NY2d 620; *People v Carter*, 63 NY2d 530; *People v Kennedy*, 47 NY2d 196; *People v Barnes*, 50 NY2d 375; *People v Danielson*, 9 NY3d 342; *People v Bailey*, 13 NY3d 67; *People v Santi*, 3 NY3d 234; *People v Norman*, 85 NY2d 609; *People v Acosta*, 80 NY2d 665.) II. The court correctly instructed the jury that defendant had to know he possessed the credit cards. (*People v Saunders*, 85 NY2d 339; *People v Ford*, 66 NY2d 428; *People v Wood*, 58 AD3d 242; *People v Drake*, 7 NY3d 28; *People v Samuels*, 99 NY2d 20; *People v Ladd*, 89 NY2d 893; *People v Umali*, 10 NY3d 417; *People v Jeffries*, 56 AD3d 1166; *People v Williams*, 5 NY3d 732; *People v Lewis*, 64 NY2d 1031.)

OPINION OF THE COURT

PIGOTT, J.

Defendant was driving a borrowed car when he was stopped by a police officer for a nonoperational headlight. He could not produce a driver's license and gave inconsistent responses when asked his itinerary. The officer frisked defendant and found a wallet containing a North Carolina ID card, which he used to check defendant's driving history. Upon learning that defendant's New York driver's license had been suspended, the officer arrested defendant for driving with a suspended license, and took him to the police precinct.

At the precinct, the same police officer searched defendant and vouchered the belongings he was carrying. In the course of inventorying the automobile, the officer discovered two fake credit cards, as well as a number of documents belonging to the defendant "spread out all over the car." One credit card was found in a jacket on the backseat of the car, the other was found in the side pocket of the driver's door of the vehicle. Defendant was charged with two counts of criminal possession of a forged instrument in the second degree (Penal Law § 170.25).

At trial, representatives of the credit card companies testified that the bank cards were forgeries. At the end of the People's case, defendant moved for a trial order of dismissal on legal insufficiency grounds, arguing, in essence, that the People had

failed to prove beyond a reasonable doubt that defendant had knowing possession of the bank cards. Supreme Court denied defendant's motion.

At the conclusion of the trial, Supreme Court charged the jury with the statutory definition of second-degree criminal possession of a forged instrument, and also instructed the jury that to possess means "to have actual physical possession or to exert a knowing dominion or control over," explaining that "a person has tangible property in his constructive possession when that person exercises a level of control over the area in which the property is found . . . sufficient to give him the ability to use or dispose of the property."

Supreme Court further instructed the jury, in accordance with Penal Law § 170.27, that "if the People have proved beyond a reasonable doubt that the defendant possessed two or more forged instruments that purport to be credit cards, you may infer but are not required to infer from that fact that the defendant possessed them with knowledge that they were forged and with intent to defraud, deceive or injure another."

Defense counsel challenged the jury charge on the ground that it did not adequately convey to the jury that the People must prove *knowing* possession. Supreme Court declined to modify the jury charge, and the case was submitted to the jury.

The jury found defendant guilty of both counts. Defendant moved to set aside the verdict, arguing that the evidence was legally insufficient to establish that his possession was knowing and that Supreme Court's jury charge on possession amounted to reversible error. Supreme Court denied the motion.

The Appellate Division affirmed Supreme Court's judgment, holding that "the circumstances, including the proximity of the cards to items that can reasonably be inferred to be defendant's property, supported the conclusion that defendant was aware he possessed the cards" (66 AD3d 424 [2009]), and that "[t]aken as a whole, the court's charge properly conveyed to the jury that the People were required to prove defendant knew he possessed the credit cards" (*id.* [citation omitted]). A Judge of this Court granted defendant leave to appeal, and we now affirm.

"A person is guilty of criminal possession of a forged instrument in the second degree when, with knowledge that it is forged and with intent to defraud, deceive or injure another, he utters or possesses [a] forged instrument" (Penal Law § 170.25). Possession within the meaning of the second-degree criminal

possession of a forged instrument statute, must, like possession in the criminal possession of a weapon context, involve awareness of the possession (see *People v Saunders*, 85 NY2d 339, 341-342 [1995]). In short, “the mental culpability required for a crime of possession is, at the very least, awareness of the possession” (*People v Sanchez*, 110 AD2d 665, 665 [2d Dept 1985]).

Knowing possession of tangible property may in the appropriate circumstances be inferred from evidence showing that the defendant had the property in his physical possession, or that he “exercised ‘dominion or control’ over the property by a sufficient level of control over the area in which the [property] is found or over the person from whom the [property] is seized” (*People v Manini*, 79 NY2d 561, 573 [1992]). Dominion or control is necessarily knowing, and such “constructive possession” may qualify as knowing possession (see *Saunders*, 85 NY2d at 344).

[1] With respect to defendant’s sufficiency challenge, we view the evidence adduced at trial in the light most favorable to the People. A rational trier of fact could have inferred beyond a reasonable doubt from the evidence—including the fact that defendant had strewn his belongings through the car he was driving—that defendant must have known the cards were in the car.

[2] Defendant also challenges the jury charge as failing to convey that knowing possession of the cards was required. In fact, however, Supreme Court, when defining “to possess”—as that term is used in the definition of second-degree criminal possession of a forged instrument—accurately instructed the jury that “to possess” means to have physical possession of or “to exert a *knowing* dominion or control over [the forged instrument]” (emphasis added).^{*} Supreme Court’s jury charge, which in this manner expressly conveyed the requirement that possession be knowing, was not in error merely because it failed to append the word “knowing” each time the word “possession” was used, for example in the explanation of the Penal Law § 170.27 presumption. Indeed, such a charge might in this case have run the risk of confusing the jury, by suggesting that it could not

^{*} In adding the word “knowing” before “dominion or control over,” Supreme Court went further, by way of clarification, than the Criminal Jury Instructions (CJI) recommend. The CJI charge merely states that “POSSESS means to have physical possession or otherwise to exercise dominion [or] control over tangible property” (CJI2d[NY] Penal Law § 170.25), echoing the statutory definition (see Penal Law § 10.00 [8]).

infer the requisite knowing possession from constructive possession. A reasonable juror, hearing the whole charge, would have understood that the Penal Law § 170.27 presumption—that a person who possesses two or more forged instruments purporting to be credit or debit cards knows that they are forged and intends to defraud, deceive or injure another—only applies if the person knowingly possesses the cards.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur.

Order affirmed.

[944 NE2d 1127, 919 NYS2d 488]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISIDORE
FARKAS, Appellant.

Argued January 11, 2011; decided February 22, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 25, 2009. The Appellate Division (1) reversed, on the law and the facts, so much of an order of the Supreme Court, Kings County (Joseph K. McKay, J.), as had granted that branch of defendant's motion which was to dismiss, pursuant to CPL 30.30, counts one, two, three, four, seven, and eight of the indictment, (2) denied that branch of defendant's motion, (3) reinstated those counts of the indictment, and (4) remitted the matter to Supreme Court, Kings County, for further proceedings on the indictment.

People v Farkas, 65 AD3d 700, affirmed.

HEADNOTE

**Crimes — Right to Speedy Trial — Excludable Time — Relation
Back of Subsequent Indictment to Original Accusatory Instru-
ment**

In a criminal prosecution premised on allegations that defendant punched the complainant in the face several times and took his camera, theft-related charges based on that incident that were included in an indictment filed over a year after defendant first appeared in Criminal Court on a desk appearance ticket charging him with assault were not barred by the speedy trial provisions of CPL 30.30. CPL 30.30 (1) and (4) set forth the time frame, beginning with the commencement of the action, within which the People must answer ready for trial and specify certain time periods that must be excluded from the calculation of the People's readiness time. Where a defendant is served with an appearance ticket, the commencement date of the action is the date of defendant's first criminal court appearance in response to the ticket (*see* CPL 30.30 [5] [b]). Once the action has been commenced, it "includes the filing of all further accusatory instruments directly derived from the initial one" (CPL 1.20 [16] [b]). In determining whether the People have complied with the time limitations, the provisions of CPL 30.30 should be interpreted as a rational, integral whole. Here, defendant did not allege any speedy trial violation as to the assault-related counts. Consequently, since the parties agreed that the charges were sufficiently related to require the same commencement date for speedy trial purposes, they were likewise sufficiently related for purposes of applying excludable time.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 945, 948, 956, 957.

CARMODY-WAIT 2d, Timeliness of Prosecution; Speedy Trial
§§ 186:47, 186:78–186:80.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 18.1–
18.3.

McKINNEY's, CPL 1.20 (16) (b); 30.30 (1), (4), (5) (b).

NY JUR 2d, Criminal Law: Procedure §§ 3, 1837, 1864–1866,
1872, 1879, 1885, 1892.

ANNOTATION REFERENCE

See ALR Index under Indictments and Informations;
Speedy Trial.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: speedy /2 trial & subsequent /s relat! /2 back &
excludable

POINTS OF COUNSEL

Meissner Kleinberg & Finkel LLP, New York City (*Ronald M. Kleinberg, Richard A. Finkel* and *Adam Hurt* of counsel), for appellant. I. The Appellate Division erred in holding that, under CPL 30.30, time excludable from the assault-based charges of the complaint was also excludable from larceny-based charges first filed in an indictment more than 13 months later. (*People v Anderson*, 66 NY2d 529; *People v Osgood*, 52 NY2d 37; *People v Silas*, 1 Misc 3d 209; *People v Sinistaj*, 67 NY2d 236; *People v Cruz*, 111 AD2d 725, 66 NY2d 614, 67 NY2d 650; *People v Rodriguez*, 150 AD2d 265, 74 NY2d 818; *People v Colon*, 76 AD2d 805; *People v Cintron*, 161 Misc 2d 335.) II. Permitting the prosecution to apply excludable periods to the theft-related charges in the indictment would contravene the intent of CPL 30.30. (*People v Osgood*, 52 NY2d 37.)

Charles J. Hynes, District Attorney, Brooklyn (*Seth M. Lieberman* and *Leonard Joblove* of counsel), for respondent. The trial court erred in dismissing the theft-related counts of the indictment. (*People v Sinistaj*, 67 NY2d 236; *People v Lomax*, 50 NY2d 351; *People v Osgood*, 52 NY2d 37; *People v Hicks*, 55 AD3d 1138; *People v Rosario*, 176 AD2d 830; *People v Fehr*, 45 AD3d 920; *People v Brickley*, 306 AD2d 551; *People v Heller*, 120 AD2d 612; *People v Cooper*, 98 NY2d 541; *People v Kendzia*, 64 NY2d 331.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

The issue presented by this appeal is whether the theft-related charges in the indictment, filed over a year after the initial ac-

cusatory instrument, are barred by the speedy trial provisions of CPL 30.30. We find that they are not and therefore affirm.

Complainant was taking photographs of a construction site in the Borough Park section of Brooklyn on August 18, 2005, when he was approached by defendant. After complainant tried to walk away, defendant punched him in the face several times and took his camera. The police issued defendant a desk appearance ticket, charging him with assault in the third degree, and he appeared in Criminal Court on September 26, 2005 to answer that charge. Approximately one month later, the People filed a misdemeanor complaint charging defendant with assault in the third degree, menacing in the third degree and harassment in the second degree. A series of adjournments followed and, during that period, the People answered ready for trial. On November 8, 2006, the People filed an indictment, also based on the August 18, 2005 incident, charging defendant with robbery in the first, second and third degrees, petit larceny, assault in the second and third degrees, grand larceny in the fourth degree, criminal possession of stolen property in the fourth degree and menacing in the third degree. The People filed a statement of readiness for trial the same day.

Defendant moved to dismiss the theft-related counts in the indictment on CPL 30.30 speedy trial grounds, arguing that the time began accruing for speedy trial purposes when defendant appeared on the desk appearance ticket, but that all delay in pursuing the indictment was solely attributable to the People. Supreme Court found no speedy trial violation as to the assault-related counts, but dismissed the theft-related counts on the basis urged by defendant, finding that the new, more serious charges were too much of a departure from the original charges.

The Appellate Division reversed the Supreme Court order, insofar as appealed from, and reinstated the theft-related counts of the indictment (65 AD3d 700 [2d Dept 2009]). The Court found that the excludable time and the People's statement of readiness should also be applied to the theft-related charges, since those charges were based on the same incident, and some of the same acts, charged in the prior accusatory instrument. The Court therefore found the People were timely ready to proceed with all charges in the indictment. A Judge of this Court granted defendant leave to appeal (14 NY3d 770 [2010]) and we now affirm.

Criminal Procedure Law § 30.30, the speedy trial statute, sets forth the time frame, beginning with the commencement of the action, within which the People must answer ready for trial and specifies certain periods of time that must be excluded from the calculation of the People's readiness time (CPL 30.30 [1], [4]). A criminal action is typically commenced when an accusatory instrument is filed against a defendant in criminal court (*see* CPL 1.20 [16]). Once the action has been commenced, it "includes the filing of all further accusatory instruments directly derived from the initial one" (CPL 1.20 [16] [b]). Where, as here, the defendant has been served with an appearance ticket, the statute deems the commencement date of the action the date of defendant's first criminal court appearance in response to the ticket (*see* CPL 30.30 [5] [b]; *People v Stirrup*, 91 NY2d 434, 438 [1998]).

The criminal action commenced on September 26, 2005, when defendant appeared in Criminal Court on the desk appearance ticket. Defendant does not allege any speedy trial violation as to the assault-related counts. However, he argues that the time excludable from the assault-related charges is not excludable as to the theft-related charges.

As we have previously held,

"[w]e perceive no logical reason why, when a subsequent indictment is related back to the commencement of the proceeding for purposes of applying the six-month limitation prescribed by CPL 30.30 (1) (a), it should not also be related back for the purpose of computing the time to be excluded from that limitation" (*People v Sinistaj*, 67 NY2d 236, 239 [1986]).

We observed that the provisions of CPL 30.30 should be interpreted as an integrated whole and that applying only one part of the statute to a subsequent indictment would be contrary to that principle (*see Sinistaj*, 67 NY2d at 239-240). Since the parties agree that these charges are sufficiently related to require the same commencement date for speedy trial purposes, under the rationale of *Sinistaj*, they are sufficiently related to apply the same excludable time.

There is some question as to whether this indictment was "directly derived" from the initial accusatory instrument within the meaning of CPL 1.20 (16) (b). The term "directly derived" is not defined in the Criminal Procedure Law and we have

determined that it should be accorded its plain meaning—specifically, whether the indictment can be traced to or originates from the prior accusatory instrument (*see People v Osgood*, 52 NY2d 37, 44 [1980]). Here, the indictment appears to satisfy that test because the charges, including the theft-based charges, originate from the prior accusatory instrument, incorporating the same physical injury component. However, it is unnecessary to make that determination in this case because, as noted above, if the charges are sufficiently related to apply the same commencement date, they are likewise sufficiently related for purposes of applying excludable time.

Nor would it benefit defendant if we were to determine that the indictment was not directly derived from the initial accusatory instrument. In that situation, the indictment would not relate back for the purpose of any speedy trial calculation, including determination of a commencement date (*see Sinistaj*, 67 NY2d at 241 n 4).^{*} In short, the speedy trial statute should be applied as a rational, integral whole.

Accordingly, the order of the Appellate Division should be affirmed.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed.

^{*} The People concede that they have not preserved any argument that the theft-related charges would have a separate commencement date from the assault-related charges.

[944 NE2d 1137, 919 NYS2d 498]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES O.
BOOTHE, Respondent.

Argued January 5, 2011; decided February 24, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 1, 2009. The Appellate Division modified, on the law, so much of an order of the Supreme Court, New York County (Lewis Bart Stone, J.), as had dismissed those counts of the indictment alleging insurance fraud in the first degree, scheme to defraud in the first degree and falsifying business records in the first degree. The modification consisted of reinstating the scheme to defraud and falsifying business records counts. The Appellate Division affirmed the order as modified.

People v Boothe, 68 AD3d 402, affirmed.

HEADNOTE

Crimes — Insurance Fraud

In the prosecution of defendant chief operating officer and executive vice-president of a managed health care provider arising from his alleged submission of marketing plans to Medicaid that he knew contained materially false information, counts of the indictment charging insurance fraud in the first degree (Penal Law § 176.30) were properly dismissed since defendant did not commit a “fraudulent insurance act.” A “fraudulent insurance act,” as defined by Penal Law § 176.05 (1), is limited to certain defined commercial and personal insurance, and the marketing plans allegedly submitted by defendant did not fall under this definition. While the Legislature amended section 176.05 to include a new subdivision defining “fraudulent health care insurance act” (Penal Law § 176.05 [2]), it failed to amend the substantive offense provisions, including section 176.30, which all contain the core requirement that the defendant commit a “fraudulent insurance act.” Thus, the Legislature plainly failed to criminalize the conduct at issue, and the statutory infirmity cannot be overlooked, nor can it be remedied through statutory interpretation.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Insurance §§ 2069, 2070; AM JUR 2d, Welfare
Laws §§ 99, 100.

McKINNEY’s, Penal Law § 176.05 (1), (2); § 176.30.

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1203–1206; NY JUR 2d, Public Welfare and Old Age Assistance § 163.

ANNOTATION REFERENCE

See ALR Index under Fraud and Deceit; Medicaid.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: insurance /2 fraud /5 first /p fraudulent /2 insurance /2 act & medicaid

POINTS OF COUNSEL

Andrew M. Cuomo, Attorney General, New York City (Hannah Stith Long, Barbara D. Underwood and Roseann B. MacKechnie of counsel), for appellant. Penal Law § 176.05 (2) read in light of the unambiguous legislative intent, added a new type of fraudulent insurance act to the conduct previously punishable as insurance fraud. (*Carney v Philipponne*, 1 NY3d 333; *Consedine v Portville Cent. School Dist.*, 12 NY3d 286; *Matter of ATM One v Landaverde*, 2 NY3d 472; *Matter of Yolanda D.*, 88 NY2d 790; *People v Santi*, 3 NY3d 234; *Matter of Pirro v Angiolillo*, 89 NY2d 351; *People v Versaggi*, 83 NY2d 123; *Matter of M.B.*, 6 NY3d 437.)

Stillman, Friedman & Shechtman, P.C., New York City (Paul Shechtman and Daniel V. Shapiro of counsel), for respondent. James O. Boothe cannot be prosecuted for insurance fraud because he did not commit a “fraudulent insurance act.” (*People v Ferone*, 136 AD2d 282; *Gillespie v Zittlosen*, 60 NY 449; *People v Briggs*, 193 NY 457; *Pavelic & LeFlore v Marvel Entertainment Group, Div. of Cadence Industries Corp.*, 493 US 120; *People v Finnegan*, 85 NY2d 53; *Lamie v United States Trustee*, 540 US 526; *People v Versaggi*, 83 NY2d 123; *Sexauer & Lemke v Burke & Sons Co.*, 228 NY 341; *People v Sansanese*, 17 NY2d 302; *People v Green*, 68 NY2d 151.)

OPINION OF THE COURT

PIGOTT, J.

Defendant, the chief operating officer and executive vice-president of a managed health care provider, was indicted on charges that included two counts of insurance fraud in the first degree (Penal Law § 176.30). A person is guilty of that offense “when he commits a *fraudulent insurance act* and thereby

wrongfully takes, obtains or withholds, or attempts to wrongfully take, obtain or withhold property with a value in excess of one million dollars” (emphasis supplied). The indictment charges that defendant committed “fraudulent insurance act[s]” in 2003 when he submitted marketing plans to Medicaid that he knew contained materially false information.

As relevant here, Penal Law § 176.05 (1) provides that a person commits a “fraudulent insurance act” when he:

“knowingly and with intent to defraud presents . . . any written statement as part of, or in support of, an application for the issuance of, or the rating of a commercial insurance policy, . . . or a claim for payment or other benefit pursuant to an insurance policy . . . for commercial or personal insurance which he knows to: (i) contain materially false information concerning any fact material thereto.”

Prior to 1998, the above was the only definition contained in section 176.05, which is entitled “Insurance fraud; defined.” In 1998, however, the Legislature amended a number of state laws to expand health coverage and eligibility for children through the Child Health Plus program and Medicaid, and concomitantly amended the Penal Law to “strengthen[] the State’s ability to deter Medicaid fraud and abuse” (Budget Report on Bills, Bill Jacket, L 1998, ch 2, at 3). As part of these amendments, the Legislature added a new subdivision to section 176.05, namely, “fraudulent *health care* insurance act” which, as relevant here, a person commits when he:

“knowingly and with intent to defraud, presents . . . any written statement . . . as part of, or in support of, an application for the issuance of a health insurance policy, or a policy or contract or other authorization that provides or allows coverage for, membership or enrollment in, or other services of a *public or private health plan*, or a claim for payment, services or other benefit pursuant to *such policy, contract or plan*, which he knows to:

“(a) contain materially false information concerning any material fact thereto” (Penal Law § 176.05 [2] [emphasis supplied]).

While amending section 176.05 in this fashion, the Legislature failed to amend the substantive offense provisions to include a “fraudulent health care insurance act.” Specifically, Penal Law

§§ 176.10 through 176.35—which describe six degrees of insurance fraud—all contain the core requirement that the defendant “commit[] a fraudulent insurance act.” At the time, the State Division of Criminal Justice Services warned that the proposed amendments to section 176.05 “may not accomplish their apparent objective of including certain activities related to health care insurance within the scope of existing insurance fraud offenses” because the new legislation did not include “fraudulent health care insurance act” as an alternative means of committing the crimes spelled out in sections 176.10 through 176.35 (Letter from St of NY Div of Crim Justice Servs, July 9, 1998, Bill Jacket, L 1998, ch 2, at 32).

In the case before us, defendant, noting these deficiencies, moved to dismiss the insurance fraud counts, asserting that he did not commit a “fraudulent insurance act” as charged in the indictment and defined by the Penal Law. As relevant to this appeal, Supreme Court granted defendant’s motion and the Appellate Division affirmed (68 AD3d 402 [2009]). A Judge of this Court granted the People leave to appeal, and we now affirm.

A “fraudulent insurance act,” as defined by statute, is limited to certain defined commercial and personal insurance. In fact, the People concede that the marketing plans allegedly submitted by defendant do not fall under this definition. Rather, they argue that a “fraudulent *health care* insurance act” (emphasis supplied) is a “species” of “fraudulent insurance act,” and that section 176.05 (2) can be read as specifying an expanded set of “fraudulent insurance acts” relating to health care that are punishable under sections 176.10 through 176.35. We reject that contention.

Here, the Legislature plainly failed to criminalize the conduct at issue. This statutory infirmity cannot be overlooked, nor can it be remedied through statutory interpretation. It is well settled “that courts are not to legislate under the guise of interpretation” (*People v Finnegan*, 85 NY2d 53, 58 [1995], *cert denied* 516 US 919 [1995], citing *People v Heine*, 9 NY2d 925, 929 [1961]). If this deficiency is to be corrected, it must be done through legislative action, as the Legislature is better equipped to correct any deficiencies that might exist (see *Bright Homes v Wright*, 8 NY2d 157, 162 [1960]).

In fact, that is the precise action the Judicial Conference of the State of New York proposed in its 2003 Legislative Agenda

report, noting that the Chief Administrative Judge, in accordance with his responsibilities set forth in Judiciary Law § 212 (1) (g), should “at the recommendation of his Advisory Committee on Criminal Law and Procedure, . . . recommend repair of this [legislative] oversight so that a fraudulent health care insurance act is included as a fraudulent insurance act and thereby constitutes a crime of insurance fraud” (Judicial Conference of the State of New York, The Judiciary’s 2003 Legislative Agenda, at 63-64 [Jan. 2003]). Because there has been no such repair, a “fraudulent health care insurance act” is not included within the definition of “fraudulent insurance act” and therefore defendant did not violate Penal Law § 176.30. Therefore, the order of the Appellate Division should be affirmed.

Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur; Chief Judge LIPPMAN taking no part.

Order affirmed.

[945 NE2d 439, 920 NYS2d 246]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
M. HARNETT, Appellant.

Argued January 6, 2011; decided February 10, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered February 25, 2010. The Appellate Division affirmed a judgment of the Schenectady County Court (Polly A. Hoye, J.), which had convicted defendant, upon his plea of guilty, of sexual abuse in the first degree.

People v Harnett, 72 AD3d 232, affirmed.

HEADNOTES

Crimes — Plea of Guilty — Failure to Inform Defendant That Sex Offender Management and Treatment Act Applied to Conviction

1. Defendant's guilty plea to sexual abuse in the first degree was not automatically invalidated by the failure to warn him during plea allocation that he may be subject to the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*) since the SOMTA consequences of his conviction were collateral rather than direct consequences of his plea. Direct consequences, whose omission from a plea colloquy makes the plea per se invalid, have a definite, immediate and largely automatic effect on a defendant's punishment. SOMTA's consequences, which could potentially subject a defendant to further supervision or confinement after his prison term expires, are collateral consequences of a plea. Like the Sex Offender Registration Act, SOMTA is a remedial statute designed to prevent a future crime and requires administrative agencies outside of the court's control to make important decisions and recommendations. Furthermore, SOMTA consequences of a defendant's plea are far from automatic.

Crimes — Plea of Guilty — Failure to Inform Defendant That Sex Offender Management and Treatment Act Applied to Conviction

2. Defendant, who argued that his guilty plea to sexual abuse in the first degree should be invalidated because the failure to warn him during plea allocation that he may be subject to the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*) rendered the plea proceedings fundamentally unfair, did not make the factual showing that would justify plea withdrawal. Where collateral consequences of a plea are an issue, claims that nondisclosure rendered the plea involuntary are best evaluated on a case by case basis in the context of a motion to withdraw the plea. Since SOMTA consequences can include extended confinement, withdrawal of a plea may be warranted where the defendant can show that the prospect of SOMTA confinement was realistic enough that it would have caused him to reject an otherwise acceptable plea bargain and that he was not aware of SOMTA, i.e., through his attorney, prior to pleading guilty. Here, defendant did not move to withdraw his plea, did not assert that he had been made the

subject of a SOMTA proceeding and it was unclear whether SOMTA would have been a significant factor in the evaluation of a plea bargain. While it is recommended that trial courts explain the possible effects of SOMTA to anyone pleading guilty to an offense that may result in SOMTA proceedings, not every failure to make such an explanation entitles the defendant to take his plea back.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 619, 620, 687–690; AM JUR 2d, Mentally Impaired Persons §§ 125, 127, 128.

CARMODY-WAIT 2d, Pleas and Plea Bargaining §§ 182:62, 182:70, 182:87, 182:88.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 21.5.

McKINNEY's, Mental Hygiene Law § 10.01 *et seq.*; § 10.03 (g).

NY JUR 2d, Criminal Law: Procedure §§ 1513, 1517, 1521, 1527, 1529; NY JUR 2d, Infants and Other Persons Under Legal Disability §§ 74, 77.

ANNOTATION REFERENCE

See ALR Index under Guilty Plea; Incompetent or Insane Persons.

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Query: guilty /2 plea! /p fail! /s sex /2 offender /2 management & invalid! withdraw!

POINTS OF COUNSEL

Brian M. Callahan, Duanesburg, for appellant. I. The trial court's failure to advise appellant of the direct consequences of his plea, related to the Sex Offender Management and Treatment Act, resulted in a guilty plea which was not knowingly, intelligently and voluntarily entered. (*People v Ford*, 86 NY2d 397; *People v Seaberg*, 74 NY2d 1; *People v Francabandera*, 33 NY2d 429; *People v Catu*, 4 NY3d 242.) II. Fundamental fairness requires that a defendant be advised of consequences related to the Sex Offender Management and Treatment Act before entering a plea of guilty to a felony sex offense. (*People v Catu*, 4 NY3d 242.)

Robert M. Carney, District Attorney, Schenectady (*Gerald A. Dwyer* of counsel), for respondent. I. The potential for civil commitment under the Sex Offender Management and Treatment

Act is a collateral consequence of a guilty plea to a sex offense. (*People v Lopez*, 6 NY3d 248; *People v Seaberg*, 74 NY2d 1; *People v Ford*, 86 NY2d 397; *People v Catu*, 4 NY3d 242; *Matter of State of New York v Farnsworth*, 75 AD3d 14; *People v Gravino*, 14 NY3d 546; *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745; *People v Taylor*, 60 AD3d 444, 12 NY3d 860; *Steele v Murphy*, 365 F3d 14; *Cuthrell v Director, Patuxent Inst.*, 475 F2d 1364.) II. This Court should not adopt the “fundamental fairness” standard of *State v Bellamy* (178 NJ 127, 835 A2d 1231 [2003]). (*Johnson v Rosemeyer*, 117 F3d 104.) III. If fundamental fairness mandates reversal, the new rule should be applied prospectively. (*People v Pepper*, 53 NY2d 213; *People v Sayers*, 22 NY2d 571.)

Derek Champagne, District Attorney, White Plains (*Steven A. Bender*, *Morrie Kleinbart* and *Richard Longworth Hecht* of counsel), for District Attorneys Association of the State of New York, amicus curiae. Sex Offender Management and Treatment Act is a collateral, not direct, consequence of a conviction; thus, a trial court’s failure pre-plea to advise a defendant of the future possibility of civil confinement or supervision does not, alone, undermine an otherwise voluntary, knowing and intelligent guilty plea. (*People v Gravino*, 14 NY3d 546; *People v Ford*, 86 NY2d 397; *People v Harris*, 61 NY2d 9; *Boykin v Alabama*, 395 US 238; *Cuthrell v Director, Patuxent Inst.*, 475 F2d 1364, 414 US 1005; *Brady v United States*, 397 US 742; *People v Catu*, 4 NY3d 242; *Matter of State of New York v Farnsworth*, 75 AD3d 14; *Kansas v Hendricks*, 521 US 346; *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.)

New York Civil Liberties Union Foundation, New York City (*Andrew L. Kalloch*, *Katharine E.S. Bodde*, *Corey Stoughton*, *Christopher Dunn* and *Arthur Eisenberg* of counsel), for New York Civil Liberties Union, amicus curiae. I. The history of sex offender regulation shows a clear trend toward more onerous consequences. II. This Court’s decision in *People v Gravino* (14 NY3d 546 [2010]) and the Supreme Court’s decision in *Padilla v Kentucky* (559 US —, 130 S Ct 1473 [2010]) reject a formulaic application of the direct/collateral consequences doctrine, and instruct courts to scrutinize the practical effects of said consequences. (*People v Catu*, 4 NY3d 242; *People v Ford*, 86 NY2d 397; *Boykin v Alabama*, 395 US 238.) III. Because the threat of lifelong civil commitment is an extraordinarily severe consequence of a criminal conviction, the failure of a court to notify a defendant of that threat violates defendant’s right to due

process. (*People v Gravino*, 14 NY3d 546; *People v Catu*, 4 NY3d 242; *Foucha v Louisiana*, 504 US 71; *United States v Salerno*, 481 US 739; *DeShaney v Winnebago County Dept. of Social Servs.*, 489 US 189; *Kansas v Hendricks*, 521 US 346; *Addington v Texas*, 441 US 418; *Morrissey v Brewer*, 408 US 471; *United States v Gordon*, 156 F3d 376; *Shiwlochan v Portuondo*, 345 F Supp 2d 242.)

Alfred O'Connor, Albany, for New York State Defenders Association, amicus curiae. Because discretionary sentencing decisions affect or influence the likelihood of subsequent sex offender civil management, a severe ramification of a felony conviction and sentence, criminal court judges should be required to advise defendants about Mental Hygiene Law article 10 when accepting guilty pleas to qualifying offenses. (*People v Ford*, 86 NY2d 397; *People v Gravino*, 14 NY3d 546; *People v Hoti*, 12 NY3d 742; *Kansas v Crane*, 534 US 407; *People v Catu*, 4 NY3d 242; *Smith v Doe*, 538 US 84; *Kansas v Hendricks*, 521 US 346; *United States v Ursery*, 518 US 267; *Matter of State of New York v J.A.*, 21 Misc 3d 806; *Matter of George L.*, 85 NY2d 295.)

OPINION OF THE COURT

SMITH, J.

We hold that failing to warn a defendant who pleads guilty to a sex offense that he may be subject to the Sex Offender Management and Treatment Act (SOMTA) does not automatically invalidate the guilty plea.

I

Defendant pleaded guilty to sexual abuse in the first degree, consisting of sexual contact with a person under 11 years old (Penal Law § 130.65 [3]). During the plea allocution, defendant was told that he would be sentenced to seven years in prison, with a period of postrelease supervision to be set by the court between 3 years and 10 years; that he would be subject to an order of protection for 15 years; and that he would be required to register as a sex offender. No mention was made of SOMTA (Mental Hygiene Law § 10.01 *et seq.*).

Defendant did not move, either before or after sentence, to withdraw his plea. After being sentenced, however, he appealed to the Appellate Division, arguing that his plea was not knowing, voluntary and intelligent because he had not been warned of its possible consequences under SOMTA. The Appellate

Division affirmed, with two Justices dissenting (72 AD3d 232 [2010]). A Justice of the Appellate Division granted leave to appeal, and we now affirm.

II

We begin by describing the consequences under SOMTA that could result from defendant's plea.

Defendant's conviction and incarceration made him a "detained sex offender" subject to SOMTA (Mental Hygiene Law § 10.03 [g]). That status becomes significant as the end of an offender's prison term approaches. When a detained sex offender "is nearing an anticipated release," a notice to that effect is given to the Attorney General and the Commissioner of Mental Health (Mental Hygiene Law § 10.05 [b]). The offender's case is then reviewed by Office of Mental Health (OMH) staff and, if the staff finds further action appropriate, by a three member "case review team" including qualified professionals (Mental Hygiene Law § 10.05 [a], [d]). The case review team must "consider whether the respondent is a sex offender requiring civil management," and if it finds that he is it give notice both to the offender and to the Attorney General (Mental Hygiene Law § 10.05 [e], [g]).

The Attorney General then decides whether to file a "sex offender civil management petition" in court (Mental Hygiene Law § 10.06 [a]). If he does so, a series of proceedings follows, including a hearing without a jury on whether there is "probable cause to believe" that the person in question is "a sex offender requiring civil management" (Mental Hygiene Law § 10.06 [g]) and a jury trial at which the jury decides whether the offender "suffers from a mental abnormality" (Mental Hygiene Law § 10.07 [a]). A person found to be a detained sex offender who suffers from a mental abnormality must be classified by the court as either "a dangerous sex offender requiring confinement" or "a sex offender requiring strict and intensive supervision" (Mental Hygiene Law § 10.07 [f]). A detained sex offender in the former category "shall be committed to a secure treatment facility . . . until such time as he or she no longer requires confinement" (*id.*).

SOMTA was enacted in 2007. A 2010 report by the Attorney General provides some information on how it has worked in practice (New York State Office of the Attorney General, A Report on the 2007 Law that Established Civil Management for Sex Offenders in New York State [Apr. 13, 2010], available

at http://www.ag.ny.gov/bureaus/sexual_offender/pdfs/April%202010%20Yearly%20Report.pdf). The report says that, during SOMTA's first three years, OMH screened 4,399 new cases, of which 383 were ultimately referred for litigation. As of the date of the Attorney General's report, 123 people had been committed to a secure facility under SOMTA. In 79 cases, an outpatient regime of strict and intensive supervision and treatment was imposed, and litigation was continuing in a number of other cases. Making allowance for the cases still in the pipeline, it seems that, at most, about six percent of those detained sex offenders whose cases came up in the first three years were or were likely to be subjected to civil commitment.

III

Defendant argues that the failure to advise him of the SOMTA consequences of his conviction invalidated his plea because (1) they are direct consequences of the plea, and (2) whether direct or collateral, they are so important that their nondisclosure rendered the plea proceedings fundamentally unfair. Defendant's first argument is plainly without merit. The second raises a serious question, but does not justify the result—automatic invalidation of the plea—that defendant seeks.

Direct versus Collateral Consequences

Our cases have drawn a line between the direct and collateral consequences of a plea (see *People v Ford*, 86 NY2d 397 [1995]; *People v Catu*, 4 NY3d 242 [2005]; *People v Gravino*, 14 NY3d 546 [2010]). The importance of the distinction is that a trial court “*must* advise a defendant of the direct consequences” (*Catu*, 4 NY3d at 244 [emphasis added]). A court's failure to comply with that obligation “requires reversal” because harmless error analysis is inapposite (*id.* at 245). The possibility of supervision or confinement under SOMTA is clearly on the collateral side of the line.

[1] Direct consequences, as we explained in *Ford*, are those that have “a definite, immediate and largely automatic effect on defendant's punishment” (86 NY2d at 403). Consequences that are “peculiar to the individual's personal circumstances and . . . not within the control of the court system” have been held to be collateral (*id.*). The direct consequences of a plea—those whose omission from a plea colloquy makes the plea per se invalid—are essentially the core components of a defendant's sentence: a term of probation or imprisonment, a term of post-release supervision, a fine. Our cases have identified no others.

We held in *Ford* and *Gravino* that consequences that may be quite serious—possible deportation in *Ford*, Sex Offender Registration Act (SORA) requirements and onerous terms of probation in *Gravino*—are collateral.

These decisions compel a holding that SOMTA consequences are collateral also. Indeed, *Gravino* is indistinguishable here, for all the factors that led us to hold SORA registration a collateral consequence apply equally, or a fortiori, to SOMTA. SOMTA, like SORA, is not a penal statute designed to punish a past crime, but a remedial one designed to prevent a future crime (see *Gravino*, 14 NY3d at 556); with SOMTA, as with SORA, important decisions and recommendations must be made, after the time of the guilty plea, by administrative agencies not under the court's control (see *id.*); and with SOMTA, even more than with SORA, the consequences of a defendant's plea are far from automatic. Indeed, experience to date indicates that the large majority of people who are “detained sex offenders” as SOMTA defines the term will suffer no consequences from that designation at all.

Fairness

Defendant's stronger argument is that SOMTA consequences, whether collateral or not, are simply too important to be left out of a plea allocution. He relies primarily on a New Jersey case, *State v Bellamy* (178 NJ 127, 835 A2d 1231 [2003]).

The facts of *Bellamy* did indeed raise serious fairness questions. Bellamy pleaded guilty to a sex crime in exchange for the State's agreement to recommend an 18-month jail sentence. When he pleaded, he had already served a significant part of that time; when sentenced, he was scheduled to be released in a bit more than two months. But a week before his release date the New Jersey Attorney General began a proceeding under the New Jersey Sexually Violent Predator Act that resulted in Bellamy's commitment. At the time of the New Jersey Supreme Court's decision three years later, he was still incarcerated.

These facts form the background for the *Bellamy* court's holding “that fundamental fairness requires that prior to accepting a plea to a predicate offense, the trial court must inform a defendant of the possible consequences under the [Sexually Violent Predator] Act” (178 NJ at 131, 835 A2d at 1234). That holding, however, did not lead automatically to the nullification of Bellamy's plea. Rather, the court remanded the case to permit a motion for plea withdrawal, which it said should be granted

“[i]f the trial court is satisfied that defendant did not understand the consequences of his plea” (178 NJ at 140, 835 A2d at 1239).

Certainly, if facts like those of *Bellamy* were before us, the argument that the plea was involuntary would have to be taken seriously. And to avoid the possibility that such cases will arise, we recommend to trial courts that the possible effects of SOMTA be explained to anyone pleading guilty to an offense that may result in SOMTA proceedings. We are not prepared to hold, however, that every failure to make such an explanation entitles the defendant to take his plea back.

[2] There is no indication in this record that this defendant’s situation is like *Bellamy*’s. It is not asserted that this defendant has been made the subject of a SOMTA proceeding, and we cannot tell on this record whether there is or ever was any significant likelihood that that would occur. As we made clear in *Gravino*, where collateral consequences of a plea are an issue, claims that a nondisclosure rendered the plea involuntary are best evaluated on a case by case basis, in the context of a motion by a defendant to withdraw his plea.

We said in *Gravino* that “[t]here may be cases in which a defendant can show that he pleaded guilty in ignorance of a consequence that, although collateral for purposes of due process, was of such great importance to him that he would have made a different decision had that consequence been disclosed” (14 NY3d at 559). We observed that such cases would be “rare,” because “in the vast majority of plea bargains the overwhelming consideration for the defendant is whether he will be imprisoned and for how long” (*id.*). But since SOMTA consequences can include extended confinement, a plea made in ignorance of such consequences may sometimes be proved involuntary—if a defendant can show that the prospect of SOMTA confinement was realistic enough that it reasonably could have caused him, and in fact would have caused him, to reject an otherwise acceptable plea bargain. Of course, in such cases the defendant will have to prove that he did not know about SOMTA—i.e., that his lawyer did not tell him about it—before he pleaded guilty. Thus, the issue of whether the plea was voluntary may be closely linked to the question of whether a defendant received the effective assistance of counsel (*cf. Padilla v Kentucky*, 559 US —, 130 S Ct 1473 [2010]).

This defendant has not moved to withdraw his plea. On this record, we do not know either whether his lawyer told him about

SOMTA or whether, considering the facts of defendant's situation, SOMTA would have been a significant factor in the evaluation of a plea bargain. In short, defendant has not made the factual showing that would justify plea withdrawal. He is therefore not entitled to relief on this appeal.

Accordingly, the order of the Appellate Division should be affirmed.

CIPARICK, J. (dissenting). Because I believe that civil confinement under the Sex Offender Management and Treatment Act (SOMTA) is so grave a deprivation of liberty that a plea should not be considered knowing and voluntary unless the defendant is aware of it, I respectfully dissent.

Once again we are confronted with deciding whether a consequence of a plea should be considered direct or collateral. In *People v Gravino* (14 NY3d 546 [2010]), we held that Sex Offender Registration Act (SORA) registration is a collateral consequence of a sex offense conviction. It is well settled that a direct consequence is one with a "definite, immediate and largely automatic effect on a defendant's punishment" (*Gravino*, 14 NY3d at 554, quoting *People v Ford*, 86 NY2d 397, 403 [1995] [brackets omitted]). We determined in *Gravino* that SORA registration is collateral because it is nonpenal and its specific consequences will vary by defendant (*see id.* at 556-557). The same is true for SOMTA eligibility.

I dissented in *Gravino* on the ground that because imposition of SORA registration is mandatory and known at the time of the plea, it ought to be considered a direct consequence of that plea (*see id.* at 561 [Ciparick, J., dissenting]). This rationale likewise applies to defendant's automatic eligibility for SOMTA review. All defendants convicted of sexual abuse in the first degree and sentenced to a prison term are "detained sex offenders" under SOMTA (Mental Hygiene Law § 10.03 [g]). The statute requires that the Attorney General and Commissioner of Mental Health receive notice of a detained sex offender's scheduled release date and provides the authority to take further action towards civil management, if warranted (Mental Hygiene Law § 10.05 [b], [d], [e], [g]; § 10.06 [a]). Nevertheless, I acknowledge that following our holding in *Gravino*, SOMTA review must be considered a collateral consequence.

Under most circumstances, this would end our analysis, since a court's failure to warn a defendant of collateral consequences generally does not merit withdrawal of a plea (*see People v Catu*,

4 NY3d 242, 244 [2005]). Here, however, we are confronted with a consequence that, though technically nonpenal and not applied to every defendant, may result in a period of confinement lengthier than a defendant's prison sentence (see Mental Hygiene Law § 10.07 [f]; § 10.09 [a], [h]; § 10.10 [a]). In this sense, as the Appellate Division dissent noted, "it constitutes a potentially greater deprivation of liberty than the criminal sentence imposed," and is closer to a direct consequence than those traditionally considered collateral (*People v Harnett*, 72 AD3d 232, 236 [3d Dept 2010]).

A trial court has a constitutional obligation to ensure that a defendant has a "full understanding of what the plea connotes and its consequences" (*Ford*, 86 NY2d at 402-403). "[D]ue process requires that the record must be clear that the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant" (*id.* at 403 [internal quotation marks omitted]). While a trial court generally has no obligation to inform a defendant of collateral consequences, regardless of their severity (see *Gravino*, 14 NY3d at 556-557), I believe a defendant cannot be said to knowingly and voluntarily forgo his right to trial if he does not know the full extent of confinement that might result from his conviction. "Freedom from bodily restraint [is] at the core of the liberty protected by the Due Process Clause" (*Foucha v Louisiana*, 504 US 71, 80 [1992]). Moreover, "in the vast majority of plea bargains the overwhelming consideration for the defendant is whether he will be imprisoned and for how long" (*Gravino*, 14 NY3d at 559).

Although SOMTA confinement follows a separate administrative evaluation, probable cause hearing, and jury trial, it is the initial conviction that determines a defendant's eligibility for that evaluative process.* Even the majority here "recommend[s] to trial courts that the possible effects of SOMTA be explained to anyone pleading guilty to an offense that may result in SOMTA proceedings" (majority op at 207). The dissent below and the Supreme Court of New Jersey have aptly noted that where, as here, a potential consequence of a plea is confinement well beyond the penal sentence, fundamental fairness requires the defendant's knowledge of that consequence (see *State v*

* The majority's calculation that, at most, approximately six percent of sex offenders screened under SOMTA during its first three years were civilly committed is beside the point (majority op at 205); any chance that a defendant will face further confinement as a result of his plea should be made known to him at the time the plea is taken.

Bellamy, 178 NJ 127, 139, 835 A2d 1231, 1238 [2003]; *Harnett*, 72 AD3d at 237).

As the majority observes, a defendant who has pleaded guilty in ignorance of a collateral consequence may successfully move to withdraw his plea upon making an individualized showing that he would not have so pleaded had he been aware of the consequence (*Gravino*, 14 NY3d at 559). Treating SOMTA eligibility as a standard collateral consequence, the majority finds the record on this appeal insufficient to support defendant's claim, since he has failed to show that any SOMTA proceeding has been or is likely to be brought against him, his ignorance of SOMTA at the time of the plea, and that it would have impacted his decision to plead guilty (majority op at 207). In my view, defendant should be given an opportunity to put before County Court in a motion to withdraw his plea or other appropriate motion the specifics which are lacking in this record.

By pleading guilty, defendant exposed himself to the possibility that he would be confined after expiration of his prison sentence, perhaps indefinitely. County Court should have confirmed defendant's awareness of that fact before accepting his guilty plea. Thus, I would remit to County Court to allow defendant to move to withdraw his plea.

Chief Judge LIPPMAN and Judges GRAFFEO, READ and PIGOTT concur with Judge SMITH; Judge CIPARICK dissents and votes to reverse in a separate opinion in which Judge JONES concurs.

Order affirmed.

[944 NE2d 1111, 919 NYS2d 472]

KRISTI FOOTE et al., Respondents, v ALBANY MEDICAL CENTER
HOSPITAL et al., Appellants, et al., Defendant.

Argued January 4, 2011; decided February 15, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered December 3, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Albany County (Richard Platkin, J.; op 19 Misc 3d 1142[A], 2008 NY Slip Op 51138[U]), which had granted defendants' motions for summary judgment dismissing the complaint and dismissed the complaint, and (2) remitted the matter to Supreme Court, Albany County, for further proceedings not inconsistent with the Appellate Division's decision. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in reversing, on the law, the order of the Supreme Court which granted defendants' motions for summary judgment dismissing the complaint, and remitting the matter to the Supreme Court for further proceedings not inconsistent with this Court's decision?"

Foote v Albany Med. Ctr. Hosp., 71 AD3d 25, affirmed.

HEADNOTE

Physicians and Surgeons — Malpractice — Wrongful Birth — Legally Cognizable Injury Notwithstanding Provision of Services under Government Programs

In a medical malpractice "wrongful birth" action, wherein plaintiffs, the parents of a child born with a neurological disorder resulting in developmental and behavioral deficits, sought damages for the extraordinary expenses involved in his care based on the allegation that they would have taken steps to terminate the pregnancy had defendant medical providers informed them of the abnormal development of the fetus, defendants were not entitled to summary judgment dismissing the complaint, notwithstanding evidence that the child's medical and educational services had been and would continue to be completely covered under governmental programs. The legally cognizable injury in a "wrongful birth" action is the parents' increased financial obligation arising from the extraordinary medical treatment rendered to the child during minority. Here, plaintiffs' expert's life care plan, report and affirmation indicated that "optimal care" for the child required more services than those provided by government programs. Thus, a triable factual issue existed as to whether there was a difference between the resources provided by the government programs and the extraordinary medical and other treatment or services necessary for the child during minority.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Abortion and Birth Control § 103; AM JUR 2d, Damages § 250; AM JUR 2d, Physicians, Surgeons, and Other Healers § 342; AM JUR 2d, Prenatal Injuries; Wrongful Life, Birth, or Conception §§ 52, 64, 84, 117.
NY JUR 2d, Damages § 18; NY JUR 2d, Death § 205; NY JUR 2d, Malpractice § 349; NY JUR 2d, Negligence § 5.
PROSSER AND KEETON, TORTS (5th ed) §§ 53, 55.

ANNOTATION REFERENCE

See ALR Index under Malpractice By Medical or Health Professions; Wrongful Birth.

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Query: wrongful /2 birth & summary /2 judgment /p expense

POINTS OF COUNSEL

Heidell, Pittoni, Murphy & Bach, LLP, New York City (*Daniel S. Ratner* and *Daryl Paxson* of counsel), *Petrone & Petrone, P.C.*, Buffalo, for Birth & Beyond Midwifery Practice of Oneonta, PLLC and another, *Maynard, O'Connor, Smith & Catalinotto, LLP*, Albany (*Robert A. Rausch* of counsel), for Albany Medical Center Hospital and others and *Brown & Tarantino, LLC*, White Plains (*Katherine W. Dandy* of counsel), for Brian S. Evanczyk and another, appellants. I. Defendants were entitled to summary judgment because plaintiffs did not establish an increased financial obligation arising from the extraordinary medical treatment needed for their son. (*Becker v Schwartz*, 46 NY2d 401; *Park v Chessin*, 46 NY2d 401; *Johnson v Yeshiva Univ.*, 42 NY2d 818; *Alquijay v St. Luke's-Roosevelt Hosp. Ctr.*, 63 NY2d 978; *O'Toole v Greenberg*, 64 NY2d 427; *Deobold v Oppermann*, 111 NY 531; *Bani-Esraili v Lerman*, 69 NY2d 807; *Inchaustegui v 666 5th Ave. Ltd. Partnership*, 96 NY2d 111; *Oden v Chemung County Indus. Dev. Agency*, 87 NY2d 81; *Kihl v Pfeffer*, 47 AD3d 154.) II. Plaintiffs should be limited to recovering their reasonable and necessary expenses incurred in raising their disabled child, not for "optimal" care. Dr. Carfi's otherwise conclusory and speculative opinion did not establish a triable issue of fact. (*Martin v Dierck Equip. Co.*, 43 NY2d 583; *Becker v Schwartz*, 46 NY2d 401; *Askey v Occidental Chem. Corp.*, 102 AD2d 130;

DuPont v State of New York, 19 Misc 3d 1144[A], 2008 NY Slip Op 51160[U]; *Romano v Stanley*, 90 NY2d 444; *Di Sanza v City of New York*, 11 NY3d 766; *Franchini v Palmieri*, 1 NY3d 536; *Diaz v New York Downtown Hosp.*, 99 NY2d 542; *Frey v Chester E. Smith & Sons, Inc.*, 751 F Supp 1052; *Caruso v LeFrois Bldrs.*, 217 AD2d 256.)

Powers & Santola, LLP, Albany (*Michael J. Hutter* of counsel), for respondents. I. Plaintiffs have properly pleaded a wrongful birth cause of action and the existence of sources of compensation pursuant to applicable government programs for their damages recoverable for its successful prosecution does not, as a matter of law, require its dismissal. (*Becker v Schwartz*, 46 NY2d 401; *Park v Chessin*, 46 NY2d 401; *Bani-Esraili v Lerman*, 69 NY2d 807; *Miller v Rivard*, 180 AD2d 331; *Alquijay v St. Luke's-Roosevelt Hosp. Ctr.*, 63 NY2d 978; *Ciceron v Jamaica Hosp.*, 264 AD2d 497; *Sorkin v Lee*, 78 AD2d 180; *Inchaustegui v 666 5th Ave. Ltd. Partnership*, 96 NY2d 111; *Oden v Chemung County Indus. Dev. Agency*, 87 NY2d 81; *O'Toole v Greenberg*, 64 NY2d 427.) II. Plaintiffs may obtain as damages their increased financial obligations arising from the extraordinary medical care and treatment due their child that defendants necessitated even if governmental assistance programs will provide for that care and treatment. (*Becker v Schwartz*, 46 NY2d 401; *Kuppersmith v Dowling*, 93 NY2d 90; *Oxenhorn v Fleet Trust Co.*, 94 NY2d 110; *Cricchio v Pennisi*, 90 NY2d 296; *Calvanese v Calvanese*, 93 NY2d 111; *Matter of Cooke Ctr. for Learning & Dev. v Mills*, 19 AD3d 834; *Board of Ed. of Hendrick Hudson Central School Dist., Westchester Cty. v Rowley*, 458 US 176; *Matter of Fogel v Perales*, 135 AD2d 884, 71 NY2d 802; *Andree ex rel. Andree v County of Nassau*, 311 F Supp 2d 325; *Inchaustegui v 666 5th Ave. Ltd. Partnership*, 96 NY2d 111.) III. Assuming, arguendo, that plaintiffs' cause of action for their extraordinary expenses may be dismissed if the pertinent government programs available for their child's medically necessary extraordinary care and treatment will fund this care and treatment, defendants' summary judgment motions must be denied as defendants' proof failed to establish, as it must, that these programs will in fact completely fund such care and treatment; or, alternatively, plaintiffs' proof sufficed to raise a triable issue of fact that their child's medically necessary care and treatment would not be entirely funded by these programs. (*Alvarez v Prospect Hosp.*, 68 NY2d 320; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Wiwigac v Snedaker*, 282 AD2d 801; *Offman v Singh*, 27 AD3d 284; *South v K-Mart*

Corp., 24 AD3d 748; *Diaz v New York Downtown Hosp.*, 99 NY2d 542; *Hranek v United Methodist Homes of Wyo. Conference*, 27 AD3d 879.)

OPINION OF THE COURT

CIPARICK, J.

Plaintiffs Kristi Foote and Tim Sheridan are the parents of a child born in August 2003 with Joubert Syndrome, a neurological disorder causing abnormalities in brain development and function and resulting in developmental and behavioral deficits. After the child's birth, plaintiffs commenced this medical malpractice "wrongful birth" action (*see Becker v Schwartz*, 46 NY2d 401, 409 [1978]) against numerous medical providers who allegedly failed to detect and/or failed to inform them of the abnormal cerebellar development of the fetus. Plaintiffs allege that steps would have been taken to terminate the pregnancy had they been properly informed. They seek damages for the extraordinary expenses involved in caring for their severely disabled child, including medical treatment and supplies, surgical treatment, physical therapy, vision therapy, occupational therapy, a home health aide, and special educational services.

Defendants moved for summary judgment dismissing the complaint, submitting expert affidavits stating that the extraordinary expenses necessary for the child's care have been and will continue to be completely covered by certain enumerated governmental programs. In opposition to defendants' motion, plaintiffs submitted the affirmation of Dr. Joseph Carfi, M.D., who prepared a "life care plan" and report detailing the care required for the child. According to Dr. Carfi, the government programs referenced by defendants' experts provided only a "minimum level of services" so as to create a "basic floor of opportunity." Dr. Carfi also took the position that "optimal care" for the child required more services than those provided by government programs and, as a result, plaintiffs had or would be forced to bear out-of-pocket expenses related to the child's special medical and educational needs. Supreme Court granted defendants' motion for summary judgment, concluding that plaintiffs had failed to raise a triable issue of fact as to whether they had or would incur extraordinary expenses in providing for the medical and educational care of their son (19 Misc 3d 1142[A], 2008 NY Slip Op 51138[U]).

On plaintiffs' appeal, the Appellate Division unanimously reversed (*see Foote v Albany Med. Ctr. Hosp.*, 71 AD3d 25 [3d Dept

2009)). Although it agreed that most of plaintiffs' expenses in caring for the child had been and would continue to be covered under government programs, the Appellate Division concluded that the aid received by plaintiffs for such programs would, under the statutory collateral source rule, merely serve to offset any award of damages made after trial (*see id.* at 28). The Appellate Division also concluded that Dr. Carfi's "affirmation, report and life-care plan, which distinguish between the 'basic floor' of services provided by public education and the level necessary to meet all of the son's needs, [were] sufficient to raise a question of fact" for trial (*id.*). Because Supreme Court had not considered defendants' alternative basis for summary judgment—that plaintiffs could not establish a deviation from the applicable standard of medical care—the Appellate Division remitted for consideration of that issue.

The Appellate Division granted defendants leave to appeal and certified a question inquiring whether it erred, "as a matter of law, in reversing . . . the order of the Supreme Court . . . and remitting the matter to Supreme Court for further proceedings." We now affirm and answer the certified question in the negative.

In *Bani-Esraili v Lerman* (69 NY2d 807 [1987]), we explained that, in a "wrongful birth" action, the parents' "legally cognizable injury" is "the increased financial obligation arising from the extraordinary medical treatment rendered the child during minority" (*id.* at 808; *see also Alquijay v St. Luke's-Roosevelt Hosp. Ctr.*, 63 NY2d 978, 979 [1984]; *Becker*, 46 NY2d at 413). Here, the Appellate Division properly concluded that defendants' motion for summary judgment should have been denied. Dr. Carfi's life care plan, report and affirmation are sufficient to demonstrate the existence of a triable factual issue whether plaintiffs have or will incur extraordinary financial obligations relating to the care of their son. In particular, a question of fact exists whether there is a difference between the resources provided by government programs and the extraordinary medical and other treatment or services necessary for the child during minority. We thus agree with the Appellate Division that "[t]he existence of government programs . . . will not, as a matter of law, eliminate plaintiffs' financial obligation for their son's extraordinary medical and educational expenses" (*Foote*, 71 AD3d at 29 [citations omitted]).

In light of our conclusion, we need not reach and express no opinion about the additional ground for denial of the motion for

summary judgment, set forth by the Appellate Division, that, pursuant to the statutory collateral source rule (*see* CPLR 4545 [a]), “the availability of another source of compensation does not obviate” plaintiffs’ injury but, instead, can only offset any damages awarded after trial (*Foote*, 71 AD3d at 28). That issue, along with issues pertaining to liens, if any, and the underlying medical malpractice issues remain open for consideration by Supreme Court.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, etc.

[945 NE2d 461, 920 NYS2d 268]

YASMIN KABIR, Respondent, v COUNTY OF MONROE et al., Appellants.

Argued January 13, 2011; decided February 17, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 30, 2009. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, Monroe County (Thomas A. Stander, J.; op 21 Misc 3d 1107[A], 2008 NY Slip Op 52000[U]), as had granted those parts of defendants' motion seeking summary judgment dismissing the complaint as against defendant County of Monroe and dismissing the amended complaint, and denied plaintiff's cross motion seeking partial summary judgment with respect to liability, (2) denied those parts of the motion seeking summary judgment dismissing the complaint as against defendant County of Monroe and dismissing the amended complaint, (3) reinstated the complaint as against defendant County of Monroe and the amended complaint, and (4) granted plaintiff's cross motion. The following question was certified by the Appellate Division: "Was the order of this Court entered December 30, [2009] properly made?"

Kabir v County of Monroe, 68 AD3d 1628, affirmed.

HEADNOTE

Municipal Corporations — Tort Liability — Police

The reckless disregard standard of care in Vehicle and Traffic Law § 1104 (e) only applies when a driver of an authorized emergency vehicle involved in an emergency operation engages in the specific conduct exempted from the rules of the road by Vehicle and Traffic Law § 1104 (b); any other injury-causing conduct of such a driver is governed by the principles of ordinary negligence. Section 1104 empowers the driver of an "authorized emergency vehicle," when involved in an emergency operation, to exercise the rules-of-the-road privileges set forth in subdivision (b) subject to the conditions in subdivision (c). Subdivision (e) specifies that the "foregoing provisions" shall not relieve the driver of an authorized emergency vehicle from the duty to drive safely "nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others." Thus, subdivision (e) cautions those drivers to operate their vehicles as safely as possible in an emergency and makes them answerable in damages if their reckless exercise of a privilege granted in subdivision (b) causes personal injuries or property damage. If the conduct causing the accident resulting in injuries and damages is not privileged under Vehicle and Traffic Law § 1104 (b), the standard of

care for determining civil liability is ordinary negligence. Moreover, the legislative history supports the view that the reckless disregard standard of care of subdivision (e) is limited to accidents or incidents caused by exercise of a privilege identified in subdivision (b). That history confirms that those provisions are interrelated such that subdivision (e) does not create a reckless disregard standard of care independent of the privileges enumerated in subdivision (b).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Automobiles and Highway Traffic §§ 224, 296, 829, 945, 946, 1115; AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 194, 436.
McKINNEY'S, Vehicle and Traffic Law § 1104 (b), (c), (e).
NY JUR 2d, Automobiles and Other Vehicles §§ 711, 1029;
NY JUR 2d, Government Tort Liability § 148.
PROSSER AND KEETON, TORTS (5th ed) § 34.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic; Counties; Police and Law Enforcement Officers.

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Query: reckless /2 disregard /s authorized /2 emergency /2 vehicle & momentary /4 lapse

POINTS OF COUNSEL

William K. Taylor, County Attorney, Rochester (Howard A. Stark of counsel), for appellants. I. Deputy DiDomenico was engaged in an emergency operation of a police vehicle and an authorized emergency vehicle. (*Saarinen v Kerr*, 84 NY2d 494; *Szczerbiak v Pilat*, 90 NY2d 553; *O'Banner v County of Sullivan*, 16 AD3d 950; *Criscione v City of New York*, 97 NY2d 152; *Allen v Town of Amherst*, 8 AD3d 996.) II. The Vehicle and Traffic Law § 1104 (e) "reckless disregard" standard is applicable to driving in compliance with the rules of the road. (*Saarinen v Kerr*, 84 NY2d 494; *Szczerbiak v Pilat*, 90 NY2d 553; *Criscione v City of New York*, 97 NY2d 152; *Badalamenti v City of New York*, 30 AD3d 452; *Alvarado v Dillon*, 67 AD3d 1214; *Ham v City of Syracuse*, 37 AD3d 1050, 8 NY3d 976; *Campbell v City of Elmira*, 84 NY2d 505; *Lorber v Town of Hamburg*, 225 AD2d 1062; *O'Banner v County of Sullivan*, 16 AD3d 950; *Tutrani v County of Suffolk*, 64 AD3d 53.) III. Deputy DiDomenico's conduct was not in reckless disregard for the safety of

others. (*Szczerbiak v Pilat*, 90 NY2d 553; *Saarinen v Kerr*, 84 NY2d 494; *Hughes v Chiera*, 4 AD3d 872.)

Brenna, Brenna & Boyce, PLLC, Rochester (Robert L. Brenna, Jr., and Donald G. Rehkopf, Jr., of counsel), for respondent. I. The majority in the Appellate Division decision below, as a matter of law, correctly interpreted Vehicle and Traffic Law § 1104 (b) as creating a limited statutory privilege against ordinary negligence for the specifically enumerated exceptions in section 1104 (b). (*Riley v County of Broome*, 95 NY2d 455; *Sanders v Winship*, 57 NY2d 391; *Ayers v O'Brien*, 13 NY3d 456; *Saarinen v Kerr*, 84 NY2d 494; *Szczerbiak v Pilat*, 90 NY2d 553; *Criscione v City of New York*, 97 NY2d 152; *Tutrani v County of Suffolk*, 42 AD3d 496.) II. The majority below was correct as a matter of law in rejecting the argument that Vehicle and Traffic Law § 1104 (e) exempts any and all activity of a driver of an authorized emergency vehicle engaged in an emergency operation absent reckless conduct. (*Town of Massena v Niagara Mohawk Power Corp.*, 45 NY2d 482.)

Christine Malafi, County Attorney, Hauppauge (Christopher A. Jeffreys of counsel), for County of Suffolk, amicus curiae. I. The provisions of the Vehicle and Traffic Law demonstrate that the “reckless disregard” standard set forth in Vehicle and Traffic Law § 1104 (e) applies to all authorized emergency vehicles. (*Saarinen v Kerr*, 84 NY2d 494; *Rangolan v County of Nassau*, 96 NY2d 42; *Matter of Robert J.*, 2 NY3d 339.) II. This Court’s prior interpretations of Vehicle and Traffic Law § 1104 (e) demonstrate that the “reckless disregard” standard applies to all authorized emergency vehicles. (*Stanton v State of New York*, 29 AD2d 612, 26 NY2d 990; *Abood v Hospital Ambulance Serv.*, 30 NY2d 295; *Saarinen v Kerr*, 84 NY2d 494; *Williams v City of New York*, 2 NY3d 352; *Gonzalez v Iocovello*, 93 NY2d 539; *Campbell v City of Elmira*, 84 NY2d 505; *Gervasi v Peay*, 254 AD2d 172; *Daly v County of Westchester*, 63 AD3d 988; *Lupole v Romano*, 307 AD2d 697; *Palmer v City of Syracuse*, 13 AD3d 1229.) III. This Court’s interpretation of the “reckless disregard” provision of Vehicle and Traffic Law § 1103 is applicable to Vehicle and Traffic Law § 1104 (e). (*Riley v County of Broome*, 95 NY2d 455; *Bliss v State of New York*, 272 AD2d 567, 95 NY2d 911; *Saarinen v Kerr*, 84 NY2d 494; *Primeau v Town of Amherst*, 5 NY3d 844.)

Andrew M. Cuomo, Attorney General, Albany (Robert M. Goldfarb, Barbara D. Underwood and Andrew D. Bing of counsel),

for New York State Division of State Police, amicus curiae. Vehicle and Traffic Law § 1104 applies a reckless disregard standard of civil liability to all conduct of a driver of an emergency vehicle engaged in an emergency operation. (*Saarinen v Kerr*, 84 NY2d 494; *Campbell v City of Elmira*, 84 NY2d 505; *Criscione v City of New York*, 97 NY2d 152; *Riley v County of Broome*, 95 NY2d 455; *Szczerbiak v Pilat*, 90 NY2d 553.)

OPINION OF THE COURT

READ, J.

On this appeal, we hold that the reckless disregard standard of care in Vehicle and Traffic Law § 1104 (e) only applies when a driver of an authorized emergency vehicle involved in an emergency operation engages in the specific conduct exempted from the rules of the road by Vehicle and Traffic Law § 1104 (b). Any other injury-causing conduct of such a driver is governed by the principles of ordinary negligence.

I.

At 3:57 P.M. on September 20, 2004, defendant John DiDomenico, a road patrol deputy in the Monroe County Sheriff's Office, was on routine patrol in a marked police vehicle when he received a radio dispatch from the Office of Emergency Communications dispatch or "911 center" directing him to respond to a stolen vehicle report at an address in Henrietta, New York. At the time, he was heading south on West Henrietta Road, nearing a traffic light at the intersection of West Henrietta Road and Brighton Henrietta Town Line Road, which marks the border between the Towns of Brighton (on the north side) and Henrietta (on the south side).

DiDomenico soon received a second radio dispatch, which requested backup for another officer who was responding to a burglary alarm at a location in Henrietta. Because the 911 center categorized the burglary alarm as "classification one"—meaning "a serious call . . . that . . . needs immediate attention"—the deputy acknowledged the request, telling the dispatcher that he would assist with the burglary alarm before addressing the stolen vehicle report, which was assigned a higher classification and therefore a lower priority. At 4:02 P.M., the dispatcher transmitted information about the burglary call, including the address and the names of cross streets, to the mobile data terminal inside the deputy's vehicle.

DiDomenico did not activate the emergency lights or siren on his vehicle; he was traveling at a speed of 25 to 30 miles per

hour in a 40-mile-per-hour zone, and does not recall if he speeded up or slowed down after receiving the dispatch. The deputy explained that he was not familiar with the location of the burglary alarm, and “due to the amount of traffic during that time of day, [he] didn’t want to initiate any emergency equipment without knowing where [he] was positively going.” He therefore touched the terminal and “looked down for two to three seconds” at the display “to view [the names of] the cross streets.” When the deputy lifted his gaze, he realized that “traffic had slowed.” Although he immediately applied his brakes, he was unable to stop before rear-ending the vehicle in front of him, which was driven by plaintiff Yasmin Kabir.

There are three southbound lanes—two through lanes and a lefthand-turn lane—at the intersection of West Henrietta Road and Brighton Henrietta Town Line Road. Kabir testified that she was traveling in the left travel lane. She had stopped for a red traffic light, and was just beginning to move forward slowly toward the congested intersection when her car was hit.

In October 2005 and February 2006 Kabir brought actions, subsequently consolidated, against Monroe County, DiDomenico and others, alleging serious injury under New York’s No-Fault Law. In May 2008, defendants moved for summary judgment to dismiss the complaints, and in July 2008, Kabir cross-moved for partial summary judgment on liability. The parties disputed whether Vehicle and Traffic Law § 1104 applied, making DiDomenico liable for the accident only if he acted with “reckless disregard for the safety of others” (Vehicle and Traffic Law § 1104 [e]; *see also Saarinen v Kerr*, 84 NY2d 494 [1994] [holding that the standard of care under Vehicle and Traffic Law § 1104 is reckless disregard and addressing the conduct required to show recklessness]). On September 26, 2008, Supreme Court awarded summary judgment to defendants (21 Misc 3d 1107[A], 2008 NY Slip Op 52000[U] [Sup Ct, Monroe County 2008]).¹ The court concluded that DiDomenico’s conduct was covered by section 1104, and that Kabir had not raised a triable issue of fact as to whether he acted with reckless disregard.

On December 30, 2009, the Appellate Division reversed, with two Justices dissenting (68 AD3d 1628 [4th Dept 2009]). The majority held that the reckless disregard standard in section 1104 (e) is limited to accidents caused by conduct privileged

1. At that point, the defendants remaining in the action were the County, DiDomenico and Monroe County Sheriff Patrick M. O’Flynn.

under section 1104 (b). Because DiDomenico’s injury-causing conduct was not exempt under this provision, the majority concluded that “the applicable standard for determining liability [was] the standard of ordinary negligence” (*id.* at 1633). The court further observed that “a rear-end collision with a vehicle in stop-and-go traffic creates a prima facie case of negligence with respect to the operator of the rear vehicle”; therefore, “partial summary judgment on liability in favor of the person whose vehicle was rear-ended is appropriate in the absence of a nonnegligent explanation for the accident” (*id.*). Concluding that Kabir had met her burden on the cross motion and that defendants had not put forward a nonnegligent explanation, the court reinstated the complaint against defendants and granted Kabir’s cross motion for partial summary judgment on liability.² The dissent interpreted section 1104 differently, taking the position that the reckless disregard standard was applicable to any injury-causing conduct of a driver of an emergency vehicle involved in an emergency operation. On March 19, 2010, the Appellate Division granted defendants leave to appeal, and certified to us the question of whether its order was properly made (71 AD3d 1548 [4th Dept 2010]). We now affirm and therefore answer the certified question in the affirmative.

II.

Section 1104 was put in place in 1957 as part of what is now title VII of the Vehicle and Traffic Law, which was intended to “creat[e] a uniform set of traffic regulations, or the ‘rules of the road’ . . . to update and replace the former traffic regulations, and bring them into conformance with the Uniform Vehicle Code adopted in other states” (*Riley v County of Broome*, 95 NY2d 455, 462 [2000] [citations omitted]; *see also* L 1957, ch 698). Subdivision (a) of this provision empowers the driver of an

2. We note that Kabir must still prove that she sustained a “serious injury” within the meaning of New York’s No-Fault Law in order to recover damages from defendants for her alleged personal injuries (*see* Insurance Law § 5104 [a]). The dissent takes us to task for supposedly “transform[ing DiDomenico’s momentary glance] into a basis for driver liability as a matter of law” (dissenting op at 236 n 1). As explained in the text, after determining that section 1104 was inapplicable, the Appellate Division granted plaintiff’s cross motion because defendants did not offer a nonnegligent explanation to rebut the prima facie case of negligence made out by the happening of a rear-end collision. On appeal, defendants did not challenge the Appellate Division’s decision on that score.

“authorized emergency vehicle” (defined in Vehicle and Traffic Law § 101)³ when involved in an “emergency operation” (defined in Vehicle and Traffic Law § 114-b)⁴ to “exercise *the privileges set forth in this section [1104]*, but subject to *the conditions herein stated*” (emphases added)). The statute then lists these privileges in subdivision (b):

“1. Stop, stand or park irrespective of the provisions of this title [VII];

“2. Proceed past a steady red signal, a flashing red signal or a stop sign, but only after slowing down as may be necessary for safe operation;

“3. Exceed the maximum speed limits so long as he does not endanger life or property;

“4. Disregard regulations governing directions of movement or turning in specified directions” (Vehicle and Traffic Law § 1104 [b]).

The privileges correspond generally with articles in title VII of the Vehicle and Traffic Law, entitled “Rules of the Road” (*see* arts 32 [“Stopping, Standing, and Parking”], 29 [“Special Stops Required”], 24 [“Traffic Signs, Signals and Markings”], 30 [“Speed Restrictions”], 25 [“Driving on Right Side of Roadway, Overtaking and Passing, Etc.”], 26 [“Right of Way”], 28 [“Turning and Starting and Signals on Stopping and Turning”]).

Subdivision (c) of section 1104 sets out prerequisites or conditions upon the exercise of the privileges listed in subdivision (b): except in the case of police vehicles or bicycles “the exemptions herein granted” are available only when the authorized emergency vehicle is making use of prescribed audible and visual signals.

Finally, subdivision (e) of section 1104 specifies that “[*t*]he foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others” (emphasis added). Thus, subdivision (e)

3. Vehicle and Traffic Law § 101 defines an “Authorized emergency vehicle” to include “[e]very . . . police vehicle”; and for purposes of section 101, a “[p]olice vehicle” includes a vehicle “operated by . . . a sheriff, undersheriff or regular deputy sheriff” (Vehicle and Traffic Law § 132-a).

4. An “[e]mergency operation” includes “[t]he operation . . . of an authorized emergency vehicle, when such vehicle is engaged in . . . responding to . . . [a] police call” (Vehicle and Traffic Law § 114-b).

cautions these drivers to operate their vehicles as safely as possible in an emergency and makes them answerable in damages if their reckless exercise of a privilege granted by subdivision (b) causes personal injuries or property damage.

But defendants and the dissent do not see it that way. They understand subdivision (e) to apply the reckless disregard standard of care to *all* injury-causing conduct of drivers of authorized emergency vehicles involved in emergency operations, whether or not that conduct is exempt under subdivision (b). But subdivision (e) links the reckless disregard standard of care to “[t]he foregoing provisions,” which include the conditions in subdivision (c) and the privileges in subdivision (b).

The dissent complains that we have “interpret[ed] Vehicle and Traffic Law § 1104 (e) as if it read: ‘When the driver of an emergency vehicle engages in privileged conduct, that driver will be protected from liability unless he or she acts in reckless disregard of the safety of others’ ” (dissenting op at 236-237). The dissent, however, interprets subdivision (e) to mean “The driver of an authorized emergency vehicle involved in an emergency operation shall be protected from liability unless he or she acts in reckless disregard of the safety of others.” As the dissent acknowledges, though, subdivision (e) is written in the negative; it refers only to “[t]he foregoing provisions”; and the “foregoing provisions” only privilege the conduct identified in subdivision (b), not any and all conduct of a driver.

Further, the dissent opines that the “evident intent” of the reference to “foregoing provisions” in Vehicle and Traffic Law § 1104 (e) “was to ensure that the creation of the privileges earlier in the statute would not be misinterpreted as precluding an emergency responder from being held accountable when he or she caused an accident while engaged in privileged conduct” (dissenting op at 237). Thus, such emergency responder “cannot receive a traffic citation” for conduct enumerated under section 1104 (b) (*id.* at 232); and “the fact that a driver failed to conform to a traffic law” would not “constitute prima facie evidence of negligence,” or “be viewed as recklessness per se” (*id.* at 237-238). Assuming this interpretation of the interplay between subdivisions (b) and (e) is correct, it does not follow that section 1104 (e) creates a reckless disregard standard of care for unprivileged conduct. Indeed, the logical implication of the dissent’s reading of section 1104 is that the standard of care for *all*

emergency driving—even if privileged under subdivision (b)—is negligence.⁵

The Legislature certainly knew how to create the safe harbor from ordinary negligence envisioned by defendants and the dissent. For example, the Legislature might simply have structured section 1104 (a) and (b) along the lines of section 1103 (b). As originally adopted in 1957, this provision stated in relevant part that

“[u]nless specifically made applicable, the provisions of this title [VII] shall not apply to persons, teams, motor vehicles, and other equipment while actually engaged in work on a highway . . . but shall apply to such persons and vehicles when traveling to or from such work” (former Vehicle and Traffic Law § 1103 [b] [emphasis added]).

Thus, rather than taking the approach of section 1104 (a) and (b)—excusing the driver of an authorized emergency vehicle from complying with certain rules of the road when involved in an emergency operation—the Legislature in section 1103 (b) exempted “persons, teams, motor vehicles, and other equipment while actually engaged in work on a highway” from *all* the rules of the road, subject to any statutory exceptions. Subsequently, the Legislature “soften[ed] the outright exemption” in section 1103 (b) by adding the due regard/reckless disregard language of section 1104 (e) (*Riley*, 95 NY2d at 465; *see also* L 1974, ch 223). In addition, in 1987 the Legislature created a statutory exception, making “specifically . . . applicable” those

5. This is exactly what the majority of states have decided, contrary to our decision in *Saarinen* (*see e.g. Tetro v Town of Stratford*, 189 Conn 601, 609, 458 A2d 5, 9 [1983] [“(E)mergency vehicle legislation provides only limited shelter from liability for negligence. The effect of the statute is *merely to displace the conclusive presumption of negligence* that ordinarily arises from the violation of traffic rules. The statute does not relieve operators of emergency vehicles from their general duty to exercise due care for the safety of others” (emphasis added)]; *City of Little Rock v Weber*, 298 Ark 382, 389, 767 SW2d 529, 533 [1989] [the “driver of an emergency vehicle is held to a standard of ordinary care in the exercise of (the) statutory privileges”]; *Barnes v Toppin*, 482 A2d 749, 755 [Del 1984] [if police officer “was found to be excused from obeying the speed limit” under the statute, he was still required “to drive with due regard for the safety of all persons” and thus was “governed by the usual rules of negligence” (internal quotation marks omitted)]; *Lee v City of Omaha*, 209 Neb 345, 307 NW2d 800 [1981]; *Rutherford v State*, 605 P2d 16 [Alaska 1979]; *Doran v City of Madison*, 519 So 2d 1308 [Ala 1988]).

provisions in title VII regarding driving under the influence of drugs or alcohol (L 1987, ch 528).⁶

Legislative history further supports the view that the reckless disregard standard of care in Vehicle and Traffic Law § 1104 (e) is limited to accidents or incidents caused by exercise of a privilege identified in Vehicle and Traffic Law § 1104 (b). In its 1954 report, the New York State Joint Legislative Committee on Motor Vehicle Problems described section 114 of its proposed text—adopted by the Legislature in 1957 as Vehicle and Traffic Law § 1104 with minor, nonsubstantive changes (*see* L 1957, ch 698), and current Vehicle and Traffic Law § 1104 (a), (b), (c) and (e)⁷—as follows:

“Section 114 lists certain privileges accorded drivers of authorized emergency vehicles *when responding to an emergency call or when in pursuit of an actual or suspected violator of the law*. They may park in prohibited places, pass stop signs or signals, exceed speed limits and disregard turning restrictions, but in all cases only with due regard for the safety of others. The special privileges are granted, except in the case of police vehicles, only when the driver . . . is giving such audible signal as may be reasonably necessary and when his vehicle is displaying the proper warning lights” (1954 NY Legis Doc No. 36, at 35 [emphases added]).

Further,

6. This exception to the exemption granted by section 1103 (b) was intended to allow highway workers to be prosecuted if they operated vehicles while in an intoxicated or impaired condition (*see* Mem in Support, Bill Jacket, L 1987, ch 528, at 6 [(a)lthough present (s)ection 1103 (b) does not relieve (highway workers exempted) from the provisions of (t)itle VII . . . from the duty to proceed with due regard for the safety of all persons and from the consequences of their reckless disregard of the safety of others, this provision is applicable only with respect to civil actions against the operators or their employers and not to the accountability of the operator under the Vehicle and Traffic Law”]; *see also* Letter of Michael Colodner, Unified Court System, to Evan A. Davis, Counsel to the Governor, July 9, 1987, Bill Jacket, L 1987, ch 528, at 20 [noting that “(u)nder current law, highway work crews are exempt from prosecution for reckless driving or for driving while intoxicated”]). Under our view of section 1104, intoxicated or impaired emergency vehicle operators involved in an accident when engaged in an emergency operation would be subject to prosecution and to civil liability for ordinary negligence.

7. Section 1104 (d) was identical to the Committee’s proposed section 114 (d). The wording of subdivision (d) has never changed, although it was relettered subdivision (e) in 1968 when a new subdivision (d) was added to the statute (L 1968, ch 336).

“Section 114 [i.e., section 1104] is divided into four subsections. Subsection (a) [i.e., section 1104 (a)] states *when, and under what circumstances, the driver of an authorized emergency vehicle may exercise the special privileges conferred by subdivision (b)* . . .

“Subsection (b) [i.e., section 1104 (b)] sets forth *four immunities which are granted to emergency vehicles* when they satisfy all the other prerequisites of section 114 . . .

“[T]hese privileges are conditioned [in subsection (c); i.e., section 1104 (c)] upon proper identification of the emergency vehicle so that motorists will have sufficient warning of their approach. The exemption given to police vehicles is required because they may need to approach suspected criminals without giving advance notice. . . .

“Finally, subsection (d) [i.e., section 1104 (e)] again repeats the caveat of paragraph (b) of section 224⁽⁸⁾ by requiring safe driving from the drivers of emergency vehicles under all circumstances. It makes it clear that *the exemptions shall not be construed* to relieve a driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall *the grant of these privileges* protect the driver from the consequences of his reckless disregard for the safety of others” (*id.* at 36-37 [emphases added]).

This discussion confirms that these provisions are interrelated such that subdivision (e) does not create a reckless disregard standard of care independent of the privileges enumerated in subdivision (b).

Additionally, we note that this is the first time we have been asked to decide the question presented by this appeal. This is

8. Section 224 set out the rules governing ordinary vehicles when an authorized emergency vehicle approaches in performance of emergency duties. Paragraph (b) provided that “[t]his section [224 would] not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.” Vehicle and Traffic Law § 1144, entitled “Operation of vehicles on approach of authorized emergency vehicles,” originally included the same language (*see* L 1957, ch 698). In 1960, section 1144 (b) was amended slightly to substitute “reasonable care for” for “due regard for the safety of” (*see* L 1960, ch 300, § 48).

not entirely surprising: subdivision (b) exempts the conduct most likely to lead to a motor vehicle accident severe enough to prompt a lawsuit; for example, speeding or running a red light. Defendants and amici curiae insist, however, that in our prior decisions, particularly *Saarinen* and *Szczerbiak v Pilat* (90 NY2d 553 [1997]), we have held that the reckless disregard standard of care applies when the conduct of an emergency vehicle driver involved in an emergency operation causes personal injuries or property damage, regardless of whether that conduct is privileged under Vehicle and Traffic Law § 1104 (b).⁹ Amicus curiae New York State Division of State Police, for example, argues that “[w]hile the facts of [*Saarinen*] involved a police officer who exceeded the speed limit during a chase . . . [the] Court’s holding was broad and unambiguous,” quoting the following passage:

“Faced squarely with this question of statutory interpretation for the first time, we hold that a police officer’s conduct in pursuing a suspected lawbreaker may not form the basis of civil liability to an injured bystander unless the officer acted in reckless disregard for the safety of others” (*Saarinen*, 84 NY2d at 501 [emphasis added]).

Whether the police officer in *Saarinen* was entitled to have his actions judged by the standard of care in section 1104 (e) was not at issue, as the Division acknowledges. The dispute was over what that standard entailed. Thus, in the paragraph preceding the quoted language, we explained that “[b]ecause the

9. The dissent likewise suggests that since our decision in *Saarinen*, section 1104 (e) has been universally understood in this way. The fact is, though, that in the majority of cases implicating section 1104, the conduct allegedly causing the accident is, in fact, listed in subdivision (b). For example, the dissent cites *Herod v Mele* (62 AD3d 1269, 1270 [4th Dept 2009]), decided by the Fourth Department seven months before its decision in *Kabir*, to support the thesis that our interpretation (and the Fourth Department’s) in this case is novel. The issue on this appeal did not arise in *Herod*, however, because there the deputy was “exceeding the posted speed limit at the time of the collision” (*id.* at 1270). The same is true of *Gonyea v County of Saratoga* (23 AD3d 790 [3d Dept 2005]), also cited by the dissent. In *Gonyea*, a deputy responding to a two-car accident parked her vehicle such that it protruded into the travel lane of the roadway by about 18 inches, allegedly causing a motorist to swerve and hit a motorcyclist traveling in the opposite lane. The third case mentioned by the dissent—*Rodriguez v Incorporated Vil. of Freeport* (21 AD3d 1024 [2d Dept 2005])—is a memorandum decision with few facts where the parties evidently focused on whether the police officer was engaged in an “emergency operation” at the time of the accident, which occurred while she was parking her patrol car.

statute makes reference to both ‘due regard’ and ‘reckless disregard’ for the safety of others, the courts of this State have had some difficulty articulating the precise test for determining a driver’s liability for injuries resulting from the operation of an emergency vehicle” (*id.* at 500). We observed that some New York courts had settled on “recklessness” as the standard, while others adopted “‘unreasonable under the circumstances’ . . . and ‘negligen[ce]’ . . . , either alone or interchangeably with ‘recklessness,’ to describe the level of culpability that will support liability under Vehicle and Traffic Law § 1104 (e)” (*id.* [citations omitted]). The “question of statutory interpretation” that we referred to in the language cited by the State Police was therefore the nature of the standard of care established by section 1104 (e) in a situation where the police officer was clearly entitled to its benefit.

And notwithstanding arguments made to the contrary, dicta in *Saarinen* undercut, rather than support, defendants’ view of section 1104. For example, the very first paragraph of the opinion includes the following language:

“Vehicle and Traffic Law § 1104 . . . qualifiedly exempts [drivers of authorized emergency vehicles] from *certain traffic laws* when they are ‘involved in an emergency operation.’ At issue in this appeal are the meaning and effect of the statute’s provisions for civil liability in the event of an accident. Consistent with its language and purpose, we hold that Vehicle and Traffic Law § 1104 (e) precludes the imposition of liability for *otherwise privileged conduct* except where the conduct rises to the level of recklessness” (*id.* at 497 [citation omitted and emphases added]).¹⁰

Importantly, we later noted that “[t]he touchstone of our analysis” in *Saarinen* was Vehicle and Traffic Law § 1104

10. Similar descriptions of section 1104 appear in dicta in other cases (see e.g. *Gonzalez v Iocovello*, 93 NY2d 539, 551 [1999] [“Vehicle and Traffic Law § 1104 excuses the violation of *certain traffic laws* by authorized vehicles involved in an emergency operation” (emphasis added)]; *Criscione v City of New York*, 97 NY2d 152, 156 [2001] [“(T)he driver of an ‘authorized emergency vehicle’ engaged in an ‘emergency operation’ is *exempt from certain ‘rules of the road’* under Vehicle and Traffic Law § 1104” (citing *Riley*, 95 NY2d at 462 [emphasis added])]; *Williams v City of New York*, 2 NY3d 352, 364 [2004] [section 1104 “creates a *privilege exempting drivers* of authorized emergency vehicles *from certain provisions* in the Vehicle and Traffic Law” (emphases added)]; *Ayers v O’Brien*, 13 NY3d 456, 457 [2009] [“Operators of

(n. cont’d)

“which permits the driver of an ‘authorized emergency vehicle’ to proceed past red traffic lights and stop signs, exceed the speed limit and disregard regulations regarding the direction of traffic, as long as certain safety precautions are observed. *The privileges afforded by the statute are circumscribed by section 1104 (e) . . . [which] establishes the standard for determining an officer’s civil liability for damages resulting from the privileged operation of an emergency vehicle*” (84 NY2d at 499-500 [citations and internal quotation marks omitted; emphases added]).

In *Szczerbiak*, a case that went to trial about six weeks after we handed down our decision in *Saarinen*, the sole question on appeal was “whether [the police officer’s] conduct in driving the automobile rose to the level of ‘reckless disregard’ for the safety of others required by Vehicle and Traffic Law § 1104 (e)” (*Szczerbiak*, 90 NY2d at 555). The accident at issue was arguably caused by the police officer’s failure to keep a proper lookout: just as he took his eyes off the road to activate his emergency lights and siren, the officer hit and killed a 16-year-old pedestrian/bicyclist. As a result, the plaintiffs in *Szczerbiak* might have contended that the officer’s conduct was not to be evaluated under the reckless disregard standard of care in Vehicle and Traffic Law § 1104 (e) because the fatality did not result from his exercise of a privilege granted by section 1104 (b). But they never made this argument and we therefore did not decide this issue; we merely remarked that even if the officer “were negligent in glancing down, this ‘momentary judgment lapse’ does not alone rise to the level of recklessness required of the driver of an emergency vehicle in order for liability to attach” (90 NY2d at 557).

Finally, the dissent devotes several pages to a discussion of the many supposed “practical problems” presented by our interpretation of the statute (dissenting op at 240-242). Simply put, section 1104 (e) establishes a reckless disregard standard of care “for determining . . . civil liability for damages resulting from the privileged operation of an emergency vehicle” (*Saarinen*, 84 NY2d at 500); if the conduct causing the accident resulting in injuries and damages is not privileged under Vehicle and

authorized emergency vehicles are *protected from liability for conduct privileged under Vehicle and Traffic Law § 1104*, unless their conduct rises to the level of reckless disregard” (emphasis added)).

Traffic Law § 1104 (b), the standard of care for determining civil liability is ordinary negligence.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question should be answered in the affirmative.

GRAFFEO, J. (dissenting). By concluding that the conduct of a driver of an emergency vehicle involved in an emergency operation should be assessed under the reckless disregard standard of care under Vehicle and Traffic Law § 1104 (e) only when the driver is engaged in one of the activities privileged in section 1104 (b), the majority reads a limitation into section 1104 (e) that I believe is unworkable, incompatible with our precedent and unwarranted given the language in the statute. The majority's new rule is also inconsistent with the public policy underlying section 1104 because it creates an unjustifiable distinction that extends the protection of qualified immunity only to police, fire or ambulance personnel who speed, run a red light or violate a handful of other traffic laws while responding to emergency calls. Thus, the majority holding has the perverse effect of encouraging conduct directly adverse to the public policy of requiring emergency responders to exercise the utmost care during emergency operations. As we observed in *Saarinen v Kerr* (84 NY2d 494 [1994]), section 1104 (e) provides emergency responders with the benefit of the heightened "reckless disregard" standard of liability in recognition of the fact that these responders must make split-second decisions (that sometimes may include violating traffic laws) in service of a greater good. Because the majority undermines this proposition, I respectfully dissent.

I.

While driving a marked police vehicle, and in the course of responding to a radio call of a possible burglary in progress, Monroe County Deputy Sheriff John DiDomenico collided with a vehicle operated by plaintiff Yasmin Kabir after he momentarily took his eyes off the road to consult a data terminal in his vehicle. Because DiDomenico was operating an "authorized emergency vehicle" as defined in Vehicle and Traffic Law § 101 while engaged in an "emergency operation" as defined in Vehicle and Traffic Law § 114-b, any liability arising from his conduct must be assessed under the standard set forth in Vehicle and Traffic Law § 1104. That statute contains two provisions that are at the heart of this controversy. The first—

section 1104 (b)—creates four categories of “privileged” conduct, specifically permitting an emergency responder to disregard a variety of traffic laws, including proceeding through red lights and exceeding maximum speed limits. In other words, section 1104 (b) exempts emergency responders from compliance with certain rules of the road. As a result, the operator of a fire truck who, for example, drives through a red light while responding to a call cannot receive a traffic citation since that conduct is permitted under section 1104 (b).

But section 1104 (b) says nothing about the standard of liability that applies when an emergency responder is involved in an accident giving rise to a lawsuit seeking civil damages. That issue is addressed in section 1104 (e), which provides:

“The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.”

Although we have previously recognized that this provision is not a model of clarity, in *Saarinen* (84 NY2d 494) we determined that it imposes a heightened “reckless disregard” standard of care applicable to police officers and other responders engaged in emergency operations. We held that

“a police officer’s conduct in pursuing a suspected lawbreaker may not form the basis of civil liability to an injured bystander unless the officer acted in reckless disregard for the safety of others. This standard demands more than a showing of a lack of ‘due care under the circumstances’—the showing typically associated with ordinary negligence claims. It requires evidence that ‘the actor has intentionally done an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow’ and has done so with conscious indifference to the outcome” (*id.* at 501 [citations omitted]).

This statement of the relevant standard was unconditional and encompassed every aspect of a police officer’s “conduct”—we did not suggest that an emergency responder’s actions are to be assessed under the reckless disregard standard only if, at the time of the accident, he or she was engaged in conduct privileged under section 1104 (b). Prior to the Appellate Division decision

in this case, no court had imposed such a limitation on the scope of section 1104 (e).

Since *Saarinen*, Vehicle and Traffic Law § 1104 has been understood to impose a two-part test: if the driver was operating an “authorized emergency vehicle” and was involved in an “emergency operation” as those terms are defined in the statutory scheme, the driver was entitled to the qualified immunity afforded by the reckless disregard standard (see e.g. *Herod v Mele*, 62 AD3d 1269 [4th Dept 2009], *lv denied* 13 NY3d 717 [2010]; *Gonyea v County of Saratoga*, 23 AD3d 790 [3d Dept 2005]; *Rodriguez v Incorporated Vil. of Freeport*, 21 AD3d 1024 [2d Dept 2005]). The majority now adds a third component to the equation, precluding emergency responders from obtaining the benefit of the reckless disregard standard unless—ironically—they violated one of the traffic rules listed in section 1104 (b). Police officers, firefighters or ambulance drivers who manage to obey traffic signals or travel within the speed limit are out of luck if they are involved in an accident. Their conduct will be assessed under the ordinary negligence standard, making it much easier for these “law abiding” emergency responders to be held liable for damages. Does this make sense?

The precise issue presented in this case was not raised by the parties in *Saarinen* and the police officer whose conduct was under review in that case had apparently exceeded the speed limit, thereby engaging in privileged conduct. But our explanation of the legislative policy underlying the statute—as well as our analysis in that case and others—is antithetical to the approach now taken by the majority. We explained that Vehicle and Traffic Law § 1104

“represents a recognition that the duties of police officers and other emergency personnel often bring them into conflict with the rules and laws that are intended to regulate citizens’ daily conduct and that, consequently, they should be afforded a qualified privilege to disregard those laws where necessary to carry out their important responsibilities. Where the laws in question involve the regulation of vehicular traffic, the exercise of this privilege will inevitably increase the risk of harm to innocent motorists and pedestrians. Indeed, emergency personnel must routinely make conscious choices that will necessarily escalate the over-all risk to the public at large in the service of an immediate, specific law enforcement or public safety goal.

“Measuring the ‘reasonableness’ of these choices against the yardstick of the traditional ‘due care under the circumstances’ standard would undermine the evident legislative purpose of Vehicle and Traffic Law § 1104, i.e., affording operators of emergency vehicles the freedom to perform their duties unhampered by the normal rules of the road . . . [T]he possibility of incurring civil liability for what amounts to a mere failure of judgment could deter emergency personnel from acting decisively and taking calculated risks in order to save life or property or to apprehend miscreants” (84 NY2d at 502).

Saarinen’s public policy analysis is inconsistent with the majority’s holding here which apparently requires parsing the specific conduct that a police officer was engaged in during an emergency operation to distinguish privileged acts from non-privileged acts for the purpose of altering the standard of liability depending on which immediate conduct caused the accident. This approach is incompatible with *Saarinen*’s concern that emergency responders be given appropriate latitude to make the quick decisions that are necessary when responding to police calls and other emergency situations. Under the rule the majority now adopts, police officers are free to make such decisions without fear of reprisal only when the judgment involves running a red light or exceeding the speed limit; if drivers choose instead to adhere to the rules of the road, any accompanying lapse in judgment may give rise to civil liability.

We have never applied different standards of liability to an officer’s conduct depending on whether it did or did not fit within one of the privileges articulated in Vehicle and Traffic Law § 1104 (b). In *Saarinen*, when the police officer observed a car being driven recklessly, he began to follow the vehicle, activating his siren and emergency lights. When the vehicle failed to pull over, instead speeding away, the officer gave chase, driving above the speed limit in pursuit. During the chase, the suspect’s car crashed into a vehicle operated by a civilian bystander, causing injury. The civilian sued both the suspect and the officer’s municipal employer. After finding that section 1104 (e) imposed a reckless disregard standard, the Court held that the municipality was entitled to summary judgment dismissing the complaint. As is common in section 1104 cases, resolution of whether the officer’s conduct met the reckless disregard standard (i.e., whether there was a question of fact on that score) turned not

on the so-called privileged conduct—there, speeding—but on other actions taken by the driver. We explained:

“[A]s a matter of law, Officer McGown’s pursuit of [the suspect] did not overstep the limits of the statutory qualified privilege. It is true that McGown exceeded the posted speed limit, but that conduct certainly cannot alone constitute a predicate for liability, since it is expressly privileged under Vehicle and Traffic Law § 1104 (b) (3). The other circumstances on which plaintiff and defendant [suspect] rely—the wet condition of the road, the possibility of other vehicular traffic in the vicinity, the over-all speed of McGown’s vehicle and McGown’s purported delay in calling his headquarters—are similarly unpersuasive, particularly in the context of an inquiry based on the ‘reckless disregard’ standard” (*Saari-nen*, 84 NY2d at 503).

We thus applied the reckless disregard standard to *all* of the officer’s conduct, including claims that he failed to properly consider the fact that other traffic might be in the area and failed to promptly report the chase to his supervisors (who might have ordered him to desist). We did not analyze the privileged conduct under the heightened standard and then apply another, less stringent standard to conduct not addressed in section 1104 (b).

We followed the same approach in *Szczerbiak v Pilat* (90 NY2d 553 [1997]), a case similar to this case because it involved an allegation that an accident was caused by an officer momentarily removing his eyes from the roadway. There, while driving his police vehicle in response to a radio call of a fight in progress at a nearby location, a police officer struck and killed a teenager riding a bicycle. Just prior to the collision, the officer had

“accelerated past the drivers in the passing lane, and then pulled into the passing lane himself with the intention of activating his emergency lights and siren. Officer Pilat testified that he did not have his siren on at the time of the impact, and he appears to have struck [the decedent] while glancing down from the road momentarily to turn on his emergency lights and headlights” (*id.* at 555).

The decedent’s estate sued and, at trial, the trial court issued a directed verdict in favor of the defense at the close of plaintiff’s

case, finding that plaintiff's evidence did not meet the reckless disregard standard as a matter of law. This Court agreed, reasoning:

"It can by no means be said that the risk which Officer Pilat took in accelerating down Dick Road was unreasonable, especially in light of his duty to respond to the report of five males engaged in a melee, or that he had created a great risk of probable harm by driving 800 feet before attempting to engage his emergency lights and siren. When Officer Pilat did glance down from the road to activate his emergency lights, there was no pedestrian traffic in sight and he was several blocks from the next intersection . . . *At any rate, even if Officer Pilat were negligent in glancing down, this 'momentary judgement lapse' does not alone rise to the level of recklessness required of the driver of an emergency vehicle in order for liability to attach*" (*id.* at 557 [citation omitted and emphasis added]).

Although the officer's act of "glancing down" was not conduct enumerated in Vehicle and Traffic Law § 1104 (b), we nonetheless applied the reckless disregard standard to that conduct in determining whether that act could give rise to liability, concluding that it did not meet the heightened standard of liability as a matter of law. Consistent with the analysis in *Szczerbiak*, I would hold that Deputy DiDomenico's similar conduct of glancing down to check the data terminal in his vehicle does not rise to the level of reckless disregard as a matter of law.¹ In my view, the majority's treatment of DiDomenico's conduct is difficult to square with our analysis in *Saarinen* and *Szczerbiak*.

II.

I might be able to overlook these concerns if the majority's conclusion was compelled by the plain language of the statute. But I find its construction of the statutory language unpersuasive. The majority interprets Vehicle and Traffic Law § 1104 (e) as if it read: "When the driver of an emergency vehicle engages

1. Indeed, in this case, not only does the majority conclude that reversal of the judgment dismissing the complaint was warranted but it also upholds the grant of partial summary judgment in favor of plaintiff. But DiDomenico's momentary glance down at his data terminal—an action that, at worst, would amount to nothing more than a lapse in judgment under *Saarinen* and *Szczerbiak* insufficient to withstand a motion for summary judgment—has been transformed into a basis for driver liability as a matter of law.

in privileged conduct, that driver will be protected from liability unless he or she acts in reckless disregard of the safety of others.” But that is not what section 1104 (e) says. Rather than identifying a set of circumstances when an emergency responder *is* protected by the reckless disregard standard, the provision does just the opposite. Written in the negative, the subdivision carves out the single situation when an emergency responder *is not* protected from liability. As we explained in *Saarinén*, that circumstance is when the driver is operating the vehicle with “reckless disregard for the safety of others.”

I agree with the majority that it is significant that the Legislature began section 1104 (e) with a reference to the “foregoing provisions,” a phrase that clearly refers to the privileges and conditions listed in other subdivisions such as section 1104 (b). The evident intent in beginning section 1104 (e) with a reference to the “foregoing provisions” was to ensure that the creation of the privileges earlier in the statute would not be misinterpreted as precluding an emergency responder from being held accountable when he or she caused an accident while engaged in privileged conduct. If the Legislature had not cross-referenced the other statutory privileges and conditions in section 1104 (e), a case could be made that the privileges were absolute and that a driver was immune from suit whenever engaged in such exempt conduct. In other words, by referencing the “foregoing provisions” in section 1104 (e), the Legislature clarified that, notwithstanding its decision to exempt emergency responders from compliance with certain traffic laws, a driver could be liable for any “consequences” flowing from his or her reckless disregard for the safety of others regardless of whether the driver was or was not engaged in privileged conduct.

Plaintiff argues that an interpretation of section 1104 (e) that permits an emergency responder to receive the benefit of the reckless disregard standard regardless of the nature of his or her conduct renders the privileges articulated in section 1104 (b) superfluous. But this is not true. The privileges prevent police officers, firefighters and ambulance drivers from being prosecuted when they find it necessary to violate certain vehicle and traffic laws during emergency operations. Moreover, the privileges provide a significant benefit for drivers (and the state and municipal entities that are vicariously liable for their conduct) in civil actions. In the typical motor vehicle accident case, the fact that a driver failed to conform to a traffic law—particularly a driver’s disregard of a traffic signal or the speed limit—would

constitute prima facie evidence of negligence, ensuring that the case would go to the jury and providing strong evidence in plaintiff's favor. Absent the section 1104 (b) privileges, conduct such as running through a red light—frequently found to be reckless when it occurs in other contexts—might be viewed as recklessness per se.

By creating the privileges, the Legislature has precluded a plaintiff from relying solely on the fact that an emergency responder drove through a red light or exceeded the speed limit to establish a prima facie case. Because the statute expressly permits this conduct, a plaintiff must offer additional evidence demonstrating why the emergency responder's actions rose to the "reckless disregard" standard under the circumstances presented. As noted above, our previous cases reflect that it is often the driver's "nonprivileged" conduct that is cited to prove the requisite heightened recklessness. There can be no doubt that the section 1104 (b) privileges are an important part of the statutory scheme—but there is no basis to conclude, as the majority has, that an emergency responder's participation in exempt conduct is a condition precedent to the application of section 1104 (e)'s reckless disregard standard.

III.

Also unpersuasive is the majority's reliance on legislative history. None of the legislative history cited in the opinion reflects an intent to restrict the applicability of Vehicle and Traffic Law § 1104 (e)'s reckless disregard standard to the conduct specified in the section 1104 (b) privileges. The quoted passages express points about the statute that are not in dispute.² The legislative history confirms that section 1104 (b) "lists certain privileges

2. The same is true of the quotations from *Saarinen* cited in the majority opinion (see majority op at 229). In *Saarinen*, the Court observed that section 1104 "qualifiedly exempts [drivers of emergency vehicles] from certain traffic laws when they are 'involved in an emergency operation'" (84 NY2d at 497). This is an accurate observation about section 1104 (b) over which there is no controversy. The *Saarinen* Court further noted that section 1104 (e) "precludes the imposition of liability for otherwise privileged conduct except where the conduct rises to the level of recklessness" (*id.*). Again, we all agree that an emergency responder can be held liable under the reckless disregard standard even when he or she engages in privileged conduct. As the majority explains, the issue raised here was not presented in *Saarinen* so the Court never had the opportunity to address the crux of our disagreement—whether an emergency responder must engage in privileged conduct in order to gain the benefit of the heightened "reckless disregard" standard. But nothing in our *Saarinen* decision undermines my conclusion that qualified immunity is

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accorded drivers of authorized emergency vehicles when responding to an emergency call or when in pursuit of an actual or suspected violator of the law” (see 1954 NY Legis Doc No. 36, at 35). And it clarifies

“that the exemptions shall not be construed to relieve a driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall the grant of these privileges protect the driver from the consequences of his reckless disregard for the safety of others” (*id.* at 36-37).

This latter point is precisely why it was necessary for the Legislature to cross-reference the section 1104 (b) privileges in the “reckless disregard” provision. What the legislative history does not say is that the reckless disregard standard was intended to be applicable *only* when an emergency responder is engaged in privileged conduct.

Nor does the majority’s reference to Vehicle and Traffic Law § 1103 (b), applicable to road workers, lend support to its conclusion. That provision was adopted in 1957 at the same time as section 1104, although the two provisions were originally very different (see L 1957, ch 698). Section 1103 (b) generally exempted vehicles engaged in road work from all rules of the road and it did not include a reckless disregard provision but instead was silent on the standard of care applicable to road workers. In contrast, in its original form, section 1104 permitted emergency responders to violate only specified vehicle and traffic laws, but it adopted a “reckless disregard” standard that provided some measure of protection against civil liability—just as it does today. The legislative history does not reveal why the drafters of these statutes initially took such different approaches to these classes of drivers.

The Legislature later concluded that the liability of road workers should be assessed in the same manner as emergency responders and, in 1974, it added “reckless disregard” language to section 1103 (b) (see L 1974, ch 223).³ We held in *Riley v County of Broome* (95 NY2d 455 [2000]) that, in the wake of

not contingent on exercise of one of the section 1104 (b) privileges—and much of the analysis in that case supports it.

3. As the majority notes, section 1103 (b) was also amended in 1987 to clarify that road workers are not exempt from compliance with DWI and DWAI laws and may be prosecuted criminally for such violations (see L 1987, ch 528). It was obviously unnecessary to similarly amend section 1104 since

(n. cont’d)

this amendment, road workers and emergency responders would now enjoy the same qualified immunity under the heightened “reckless disregard” standard. Reiterating the rationale behind limiting the liability of emergency responders that we had established in *Saarinen*, we noted that it was “unclear” whether the extension of the reckless disregard standard was “similarly justified” for road workers (*id.* at 467). Nonetheless, the Court concluded that “the Legislature ha[d] spoken clearly, giving vehicles engaged in road work the benefit of the same lesser standard of care as emergency vehicles” (*id.* at 468).

Given this observation, it is ironic that, relying in part on the language in Vehicle and Traffic Law § 1103 (b), the majority accepts a view of section 1104 (e) that grants road workers substantially broader protection from civil liability than is enjoyed by emergency responders. Since the majority keys the applicability of the reckless disregard standard to the exercise of privileged conduct, it has now excluded a category of emergency responder conduct from the qualified immunity umbrella. Because road workers are exempt from all of the provisions of the Vehicle and Traffic Law (except DWI and DWAI laws), the end result is that the “reckless disregard” standard will be applied to virtually all accidents involving vehicles engaged in road work but only a subset of accidents involving emergency responders. Nothing in the legislative history of either statute supports such a result.

IV.

Finally, I am also troubled by the fact that the majority imposes its new limitation on the scope of the reckless disregard

that statute never exempted emergency responders from compliance with this category of laws. Based on the amendment to section 1103 (b), the majority extrapolates that emergency responders who engaged in such conduct would be subject to civil liability under an ordinary negligence standard (*see* majority op at 226 n 6). It is clear from the legislative history, however, that the amendment to section 1103 (b) was intended to facilitate criminal prosecution of road workers that violated DWI laws; there’s no indication that it was meant to address the civil liability of intoxicated road workers—much less the civil liability of emergency responders. This amendment to another statute lends no support to the majority’s claim that emergency responders should be subject to an ordinary negligence standard unless they are engaged in privileged conduct. Moreover, I think it likely that a plaintiff who proved that an emergency responder violated DWI or DWAI laws would have little difficulty establishing liability under the section 1104 (e) reckless disregard standard as few courses of conduct more clearly evince a conscious disregard for the safety of others than operating an emergency vehicle in an impaired or intoxicated condition.

standard without explaining how the standard is to be applied or responding in any way to the practical problems presented by its new rule, which are highlighted in the Appellate Division dissent and the briefs submitted by the amici. The questions the majority has chosen not to answer demonstrate the unworkable nature of the new rule. Does the liability standard fluctuate within the course of an emergency route depending on whether, at a particular moment, an officer is speeding or running a red light? Or is the reckless disregard standard triggered with respect to the entire emergency operation once the officer initiates that standard by violating one of the laws cited in section 1104 (b)? Is the jury to parse through the different acts of a driver that might have contributed to the accident, applying the reckless disregard standard to the conduct privileged under section 1104 (b) and the ordinary negligence standard to the remainder? How will the standard be applied when the accident is attributed to multiple causes, some involving privileged acts and some not? The majority doesn't say.

In this case, for example, the majority finds that Deputy DiDomenico's conduct must be assessed under the ordinary negligence standard since he took his eyes off the roadway when approaching the intersection and was not speeding or running a red light at the time. But what if DiDomenico had testified at his deposition that the light had been red when he and the plaintiff approached the intersection? Would he then be entitled to have his conduct assessed under the reckless disregard standard on the theory that he was attempting to run a red light when he caused the accident? What if DiDomenico had been driving one mile above the speed limit when he looked up and saw plaintiff's car? Would the jury apply the reckless disregard standard to all of his conduct or only to the speeding component, judging his momentary glance away from the roadway under the ordinary negligence standard?

One thing is certain—the majority's new rule will engender much confusion as litigants attempt to sort out these issues. It will also lead to an unusual shifting of positions: plaintiffs will now argue that the emergency responder that caused the accident scrupulously adhered to the rules of the road (meaning that liability should be determined under the ordinary negligence standard) while emergency responders will emphasize all the traffic laws they violated on the way to the accident (in an effort to gain the benefit of the reckless disregard standard). Indeed, one could say that the majority's rule encourages police

officers, firefighters and ambulance drivers to violate the rules of the road, thus ensuring that their actions will be assessed under the qualified immunity standard in Vehicle and Traffic Law § 1104 (e) in the event they are in an accident (we are all fortunate that the people attracted to jobs of this nature are not likely to be motivated by such self-interest). And it has created a situation where traffic violators are rewarded with greater protection than is available to those who conform to the rules of the road. I am confident that this was not what the Legislature had in mind when it adopted a statute meant to cloak emergency responders with qualified immunity. To this end, perhaps this case will provide the Legislature an opportunity to review the statute to assess whether revision is necessary to clarify its intent.

For all of these reasons, I would reverse the order of the Appellate Division and reinstate Supreme Court's judgment dismissing plaintiff's complaint.

Chief Judge LIPPMAN and Judges PIGOTT and JONES concur with Judge READ; Judge GRAFFEO dissents and votes to reverse in a separate opinion in which Judges CIPARICK and SMITH concur.

Order affirmed, etc.

[944 NE2d 1123, 919 NYS2d 484]

In the Matter of LEROY M., a Person Alleged to be a Juvenile
Delinquent, Respondent. PRESENTMENT AGENCY, Appellant.

Argued January 12, 2011; decided February 17, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 25, 2009. The Appellate Division (1) reversed, on the law and the facts, an order of disposition of the Family Court, Bronx County (Sidney Gribetz, J.), which had adjudicated respondent a juvenile delinquent upon a fact-finding determination that he had committed an act which, if committed by an adult, would constitute the crime of criminal possession of stolen property in the fifth degree, (2) granted respondent's motion to suppress evidence, and (3) dismissed the petition.

Matter of Leroy M., 65 AD3d 500, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Attenuation of Initial Improper Police Conduct

In a juvenile delinquency proceeding, the evidence established, as a matter of law, that the illegal police entry into the vestibule of respondent's home was attenuated by the voluntary, unsolicited consent of respondent's sister to the entry of the police into the rest of the dwelling. In determining whether voluntary consent attenuated the taint of illegal police action, consideration must be given to a variety of factors, including the temporal proximity of the consent to the illegal police action, the presence or absence of intervening circumstances, whether the police purpose underlying the illegality was to obtain the consent or the fruits of the search, whether the consent was volunteered or requested, whether the defendant was aware he could decline to consent, and particularly, the purpose and flagrancy of the official misconduct. Here the sister welcomed the officers into the home, indicating that she was glad to see them. The fact that her consent came quickly after the unlawful entry was not dispositive of attenuation, particularly where the sister was not the subject of the police action. In addition, the immediacy and spontaneity of the sister's consent showed that it was truly volunteered and not coerced in any way. There was no evidence that the illegal entry was for the purpose of obtaining the consent or seizing the fruits of the search. Moreover, the alleged police misconduct—walking through an unlocked front door into a vestibule before knocking on an interior door—was not so flagrantly intrusive that its taint could not be dissipated.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Juvenile Delinquents and Delinquent and Dependent Children § 101; AM JUR 2d, Searches and Seizures §§ 67, 145, 169, 270, 271.

CARMODY-WAIT 2d, Proceedings Involving Abused and Neglected Children, Juvenile Delinquents, and Persons in Need of Supervision § 119A:331; CARMODY-WAIT 2d, Search and Seizures §§ 173:282, 173:284, 173:289, 173:365; CARMODY-WAIT 2d, Pretrial Motions §§ 189:241, 189:243, 189:287.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.1, 3.6, 3.10.

6 LAW AND THE FAMILY NEW YORK (2d ed) § 11:66.

NY JUR 2d, Criminal Law: Procedure §§ 265, 270, 430, 438–440, 445, 527, 1610; NY JUR 2d, Domestic Relations §§ 1372, 1459.

ANNOTATION REFERENCE

See ALR Index under Exclusion and Suppression of Evidence; Juvenile Courts and Delinquent Children; Search and Seizure.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: consent /4 enter /s police & attenuat!

POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Norman Corenthal* and *Kristin M. Helmers* of counsel), for appellant. The investigating officers did not violate respondent's right to privacy. A valid consent to enter the living area of the home was given by respondent's adult sister. (*Payton v New York*, 445 US 573; *People v Jones*, 2 NY3d 235; *United States v Titemore*, 437 F3d 251; *United States v Daoust*, 728 F Supp 41, 916 F2d 757; *United States v Hammett*, 236 F3d 1054; *United States v Jones*, 239 F3d 716, 534 US 861; *Estate of Smith v Marasco*, 430 F3d 140; *United States v Weston*, 443 F3d 661; *United States v Taylor*, 458 F3d 1201; *Hardesty v Hamburg Twp.*, 461 F3d 646.)

Legal Aid Society, New York City (*Judith Harris*, *Steven Banks*, *Tamara A. Steckler* and *Anna Boksenbaum* of counsel), for respondent. The Appellate Division correctly ruled that police officers unlawfully entered respondent's home through the front door without a warrant, exigent circumstances, or consent, and any subsequent consent to the police presence did not cure the taint of the initial illegal entry. (*Welsh v Wisconsin*, 466 US 740; *Payton v New York*, 445 US 573; *Minnesota v Olson*, 495 US 91; *Kyllo v United States*, 533 US 27; *People v Knapp*, 52

NY2d 689; *People v Hodge*, 44 NY2d 553; *People v Jones*, 2 NY3d 235; *People v Adam*, 50 AD3d 1153, 10 NY3d 931; *People v Prince*, 51 AD3d 1052, 10 NY3d 938; *People v Rivera*, 301 AD2d 787.)

OPINION OF THE COURT

PIGOTT, J.

In January 2008, officials at a school in the Bronx discovered that a laptop computer, valued at almost \$1,500, was missing. Fortunately, the computer was equipped with tracking software designed to facilitate its recovery. Using that software, the police were able to trace the computer to an address in the Bronx.

Police officers went to the address, a single-family dwelling, in the middle of the afternoon. Once there, they entered the vestibule of the house without ringing the doorbell or otherwise announcing their presence.

Inside the vestibule, one of the officers knocked on an inner door separating the vestibule from the rest of the home. Respondent's sister, who had heard the officers enter the vestibule, welcomed the officers inside, saying "Thank God you're all here." When asked whether respondent was at home, she answered affirmatively, explaining that her brother had been "acting up" and cursing at her mother, and that she "was going to call [the police] anyway, if [her brother] kept it up."

The sister then directed the officers up the stairs, to a bedroom where they encountered a young man, not the respondent, with a laptop. When asked whether it was his laptop, the young man answered that it was not. At this point, respondent entered the room and, according to one of the officers, said, "That's my laptop. My friend stole it." Respondent, who was 15 years old at the time, was arrested and charged with committing an act that, if committed by an adult, would constitute the crimes of fourth-degree and fifth-degree criminal possession of stolen property.

Respondent moved to suppress all evidence obtained by the police at his residence on the ground that they had entered without a warrant, permission to enter, or exigent circumstances. The Presentment Agency maintained that respondent's sister had consented to the entry.

Following a suppression hearing, Family Court denied respondent's motion, concluding that the Presentment Agency had met its burden of proving that the police had consent to

enter the premises. In particular, Family Court found that the sister's consent had not been coerced or otherwise invalidated. After a fact-finding hearing, Family Court found that respondent had committed an act that, if committed by an adult, would constitute fifth-degree criminal possession of stolen property, adjudicated him a juvenile delinquent, and placed him with the Office of Children and Family Services for 12 months.

The Appellate Division reversed Family Court's order of disposition. It held that the officers' "intrusion over the threshold of the home was unlawful" (65 AD3d 500, 501 [2009]), and that the Presentment Agency had not met its burden of showing that the sister's consent was both voluntary and "sufficiently distinguishable" from the entry to be purged of any illegality (*id.* at 501-502). The court did not pass on the question whether the sister's consent was voluntary, instead resting its decision on a lack of attenuation of the illegal entry. We granted leave to appeal (13 NY3d 717 [2010]) and now reverse.

For purposes of this appeal, the Presentment Agency concedes that the entry into the vestibule was illegal, and respondent concedes that his sister's consent was voluntary. The Presentment Agency argues attenuation, asserting that respondent's sister's consent was "sufficiently distinguishable" from the concededly illegal entry so as to be purged of the taint of the illegality (*Brown v Illinois*, 422 US 590, 599 [1975]).

In deciding whether voluntary consent attenuated the taint of illegal police action, a court must give consideration to a variety of factors, including

"the temporal proximity of the consent to the [illegal police action], the presence or absence of intervening circumstances, whether the police purpose underlying the illegality was to obtain the consent or the fruits of the search, whether the consent was volunteered or requested, whether the defendant was aware he could decline to consent, and particularly, the purpose and flagrancy of the official misconduct" (*People v Borges*, 69 NY2d 1031, 1033 [1987]; see *Brown*, 422 US at 603-604).

Such factors enable the court to decide "whether, granting establishment of the primary illegality, the evidence to which instant objection is made has been come at by exploitation of that illegality or instead by means sufficiently distinguishable to be purged of the primary taint" (*Brown*, 422 US at 599).

Here, under *Borges*, the sister's consent attenuated the taint of the initial unlawful entry into the vestibule as a matter of law.

This is so because of, among other things, the sister's unsolicited welcoming of the officers into her home. Upon seeing the officers, the sister exclaimed, "Thank God you're all here"—not the response of someone intimidated into allowing the police into her home. Indeed, the sister testified that she would have summoned the police anyway, had her brother continued to act disrespectfully to their mother. The testimony of both the officers and the sister established that her consent was volunteered and not given upon request.

Further, the fact that the consent came close on the heels of the initial illegality—the factor heavily relied upon by the Appellate Division—is not dispositive of attenuation here, particularly where the person giving the consent is not the subject of the police action. In reaching its conclusion, the Appellate Division considered only the temporal relationship between the illegality and the consent, and ignored the fact that the sister's consent was volunteered, rather than requested, and that she was not the subject of the police investigation. The mere fact that, in other situations, the passage of time has supported a finding of attenuation does not mean that the absence of that factor precludes attenuation. Indeed, the immediacy—the spontaneity—of the sister's consent shows that it was truly volunteered and not, in any way, coerced.

There was no evidence that the illegal entry was undertaken for the purpose of obtaining the consent or seizing the fruits of the search. Moreover, the alleged police misconduct here—walking through an unlocked front door into a vestibule, before knocking on an interior door—is not so flagrantly intrusive on personal privacy that its taint cannot be dissipated.

In sum, the hearing testimony established, as a matter of law, that "the evidence to which . . . objection [was] made [was not] come at by exploitation of th[e initial] illegality" (*Brown*, 422 US at 599). Rather, the computer was recovered "by means sufficiently distinguishable to be purged of the primary taint" (*id.*).

Accordingly, the order of the Appellate Division should be reversed, without costs, and the order of Family Court, Bronx County, reinstated.

CIPARICK, J. (dissenting). Attenuation is generally a mixed question of law and fact in juvenile delinquency adjudications,

as in criminal cases (*see Matter of Daniel H.*, 15 NY3d 883, 884 [2010]). However, the majority holds that the consent to search in this case was so obviously untainted by the improper police entry into the home as to be “attenuated . . . as a matter of law” (*see* majority op at 247). I disagree and respectfully dissent.

As the majority observes, in determining whether consent to search is attenuated from the illegal police entry, “consideration must be given to a variety of factors” (*People v Borges*, 69 NY2d 1031, 1033 [1987]; majority op at 246). In its analysis, the majority heavily emphasizes a single factor, voluntariness, which may militate towards a finding of attenuation here. As we took pains to emphasize in *Borges*, however, “voluntariness of the consent is an important factor in the court’s determination of attenuation, [but] it is not dispositive” (69 NY2d at 1033). Giving due consideration to all of the *Borges* factors, I believe the Appellate Division correctly applied our attenuation standard. Its determination that the sister’s consent “was not acquired by means sufficiently distinguishable from the unlawful entry to be purged of the illegality” has support in the record (*Matter of Leroy M.*, 65 AD3d 500, 502 [1st Dept 2009]).

Contrary to the majority’s assertion that the “immediacy” and “spontaneity” of the sister’s consent to search “shows that it was truly volunteered” (majority op at 247), the close temporal proximity of the consent to the illegality weighs heavily against a finding of attenuation (*cf. People v Bradford*, 15 NY3d 329, 334 [2010] [noting that the 2½ hours that transpired between the illegal arrest and inculpatory statement supported a finding of attenuation]). The majority inexplicably assumes that the sister’s frame of mind was unaffected by the sudden presence of several police officers in her living room. In my view, the temporal proximity undermines any finding that her statements were distinguishable from the entry, and certainly is not further evidence of their voluntariness. Needless to say, given the quick pace of events, there were no intervening circumstances destroying the link between the illegal entry and the sister’s consent.

Further, the Presentment Agency, which has the burden of demonstrating attenuation (*see Borges*, 69 NY2d at 1033), proffered no evidence that the sister was aware she could decline consent to search and exclude the police officers from her home. Had the officers knocked and requested entry, the sister or another resident might have considered whether letting them in was in the family’s best interest. Instead, the officers’ presence inside may well have suggested that they had entered legally.

Finally, as the Appellate Division emphasized, the police misconduct here was flagrant. Numerous officers, some in uniform, illegally entered what was obviously a private home without any semblance of a warrant or exigent circumstances. Neither of the officers who testified at the hearing could explain how this happened and the failure of their recollection in this context is disturbing.

Since there is record support for the Appellate Division's finding that the sister's consent was not attenuated from the unlawful entry, I would affirm the Appellate Division's order granting suppression of the illegally obtained evidence.

Judges GRAFFEO, READ and SMITH concur with Judge PIGOTT; Judge CIPARICK dissents and votes to affirm in a separate opinion in which Chief Judge LIPPMAN and Judge JONES concur.

Order reversed, etc.

[945 NE2d 1006, 920 NYS2d 756]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR
MONTES, Appellant.

Argued January 12, 2011; decided February 17, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 24, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edwin Torres, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree.

People v Montes, 67 AD3d 586, affirmed.

HEADNOTE**Crimes — Right of Confrontation — Inability to Recall Unavailable Witness**

The inability to recall the prosecution's key witness, who made certain out-of-court statements after the completion of her cross examination at defendant's trial regarding events she had omitted from her prior interviews and trial testimony, did not violate defendant's rights under the Confrontation Clause (US Const 6th Amend; NY Const, art I, § 6). Pursuant to the Confrontation Clause, an accused has the right "to be confronted with the witnesses against him," including the right to cross-examine those witnesses, and this involves the admission of out-of-court statements and restrictions imposed by law or by the trial court on the scope of cross-examination. However, the right of confrontation does not include a right to recall a witness and confront the witness about things he or she did or said after the witness's cross-examination, conducted without any restriction of which the defendant complains, was already completed. Here, the witness's unavailability was neither imposed by law nor restricted by the trial court. Defendant exercised his right to cross-examine the witness regarding her direct testimony. The witness became unavailable—due to mental illness—only after the conclusion of her testimony. Moreover, the testimony of another witness and the parties' stipulation revealed the key witness's out-of-court statements concerning defendant's friend, who had been implicated with defendant in the shooting of the victim, giving the key witness a "gun or guns" as he ran past her after the shooting. Those statements alerted defendant to the new information that afforded defendant the opportunity to attack the key witness's credibility, but he did not challenge the statements because they tended to help him. Accordingly, there was no violation of defendant's right to confront his accuser, and the trial court did not abuse its discretion in denying defendant's motion for a mistrial or to strike the key witness's testimony.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1072–1074, 1085, 1096.

CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:95, 195:99, 195:104, 195:178.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.

McKINNEY's, NY Const, art I, § 6.

NY JUR 2d, Criminal Law: Procedure §§ 2298, 2306, 2379.

US Const 6th Amend.

ANNOTATION REFERENCE

See ALR Index under Confrontation of Witnesses; Cross-Examination.

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Database: NY-ORCS

Query: recall /s unavailab! /s witness /p confrontation /5
right

POINTS OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Allen Fallek and Steven Banks of counsel), for appellant. Appellant was deprived of his right to confront his accuser where the court refused to strike her testimony despite her unavailability for cross-examination about facts disclosed after she left the stand that not only related to the events of the crime, but also implicated her in the crimes of which she accused appellant. (*People v Chin*, 67 NY2d 22; *Davis v Alaska*, 415 US 308; *Klein v Harris*, 667 F2d 274; *People v Vargas*, 88 NY2d 363; *Delaware v Van Arsdall*, 475 US 673; *United States v Cardillo*, 316 F2d 606; *People v Corby*, 6 NY3d 231; *People v Siegel*, 87 NY2d 536; *People v Cona*, 49 NY2d 26; *People v Goldstein*, 6 NY3d 119.)

Cyrus R. Vance, Jr., *District Attorney*, New York City (Matthew C. Williams and David M. Cohn of counsel), for respondent. The trial court did not abuse its discretion by declining to strike Loraine Ceballo's entire testimony and instead ordering a more narrowly-tailored remedy. (*Delaware v Fensterer*, 474 US 15; *Delaware v Van Arsdall*, 475 US 673; *People v Burns*, 6 NY3d 793; *Brady v Maryland*, 373 US 83; *Giglio v United States*, 405 US 150; *People v Baxley*, 84 NY2d 208; *Imbler v Pachtman*, 424 US 409; *Leka v Portuondo*, 257 F3d 89; *Napue v Illinois*, 360 US 264; *People v Zimmerman*, 10 NY2d 430.)

OPINION OF THE COURT

JONES, J.

We are called upon to determine whether the inability to recall an unavailable witness violated defendant's rights under the Confrontation Clause. We find it did not.

In June 2004, defendant and his friend, Carlos Gonzalez, were implicated in the shooting of Robinson Lopez. The victim died from multiple gunshot wounds. Defendant was charged with murder in the second degree and criminal possession of a weapon in the second and third degrees.

At trial the prosecution had relied upon the testimonies of Loraine Ceballo and Tamika Taylor, two witnesses to the shooting. Ceballo, the prosecution's key witness, had close relationships to the victim, Gonzalez and Taylor.

According to Ceballo's testimony, Gonzalez arrived at her apartment building with defendant. She testified that she watched the men approach the victim, saw them both raise their hands and then heard gunshots. She indicated that both men appeared to have objects in their hands, though she could not see what the objects were. After Ceballo heard the shots, she ran towards her building, and Gonzalez and defendant ran past her through the building's lobby.

After Ceballo's testimony, but before Taylor's, Ceballo and Taylor were brought to the District Attorney's Office for an interview. At the interview, Taylor initially denied being present during the shooting. She subsequently admitted to being present but only after being confronted with Ceballo's account. She also informed the interviewers that Gonzalez had given Ceballo a gun. At first, Ceballo denied receiving any gun, but she eventually admitted to the subsequent events which she had omitted from her prior interviews and testimony. These facts were later stipulated to by the parties.*

The next day, Taylor testified that she only saw Gonzalez with a gun, but she could not describe where defendant was positioned. She saw the two men run to the building door, wait for Ceballo to open the door and run into the lobby. Taylor

* "The parties . . . stipulate that Loraine Ceballo was not honest when she testified in that she failed to state that Carlos Gonzalez . . . gave her the gun or guns when he ran past her after the shooting occurred. When first confronted at the District Attorney's office that Carlos Gonzalez placed weapons in her purse, Loraine Ceballo had denied that this had occurred. When confronted by Tamika Taylor about this matter, Loraine Ceballo immediately stated that Carlos Gonzalez shoved a weapon or weapons into her purse and that she took the purse containing the weapon or weapons up to her apartment. Loraine Ceballo is unavailable to be recalled by either side."

further stated that Gonzalez put “something” in Ceballo’s purse. The two women went into the building’s elevator, and Ceballo stated: “What am I going to do with the guns . . . I don’t want this in my house.” Taylor stated that she saw one gun, but was unsure if there was more than one.

After Taylor’s testimony, it was revealed that Ceballo had a breakdown and twice attempted suicide. It was concluded that she would be unable to be recalled to testify again.

Since Ceballo couldn’t be recalled, defendant moved for a mistrial or to strike her testimony. Defendant argued that Ceballo’s material omissions and Taylor’s subsequent testimony, which brought to light Ceballo’s omissions, resulted in the denial of his right to confront his accuser. The court denied defendant’s motion. Montes was convicted, after a jury trial, of criminal possession of a weapon in the third degree, but acquitted of murder in the second degree and criminal possession of a weapon in the second degree.

The Appellate Division affirmed, with one Justice dissenting (67 AD3d 586 [2009]). We too affirm. The trial court did not abuse its discretion in denying defendant’s motion for a mistrial or to strike Ceballo’s testimony because the inability to recall Ceballo did not violate defendant’s rights under the Confrontation Clause.

Pursuant to both the Federal and State Constitutions, an accused has the right “to be confronted with the witnesses against him” at trial (US Const 6th Amend; NY Const, art I, § 6; see *Pointer v Texas*, 380 US 400 [1965]). The Confrontation Clause “has been held to include the right to cross-examine those witnesses” (*Pointer*, 380 US at 401). In *Delaware v Fensterer* (474 US 15 [1985]), the United States Supreme Court explained the two categories within which Confrontation Clause cases fall. Specifically, those “cases involv[e] the admission of out-of-court statements and . . . restrictions imposed by law or by the trial court on the scope of cross-examination” (*Delaware v Fensterer*, 474 US 15, 18 [1985]). We agree with the concurrence that the *Fensterer* categories do not encompass all possible Confrontation Clause violations. But no authority holds, and we see no reason to hold, that the right of confrontation includes a right to recall a witness and confront her about things she did or said after her cross-examination, conducted without any restriction of which defendant complains, was already completed.

Here, Ceballo’s unavailability was neither imposed by law nor restricted by the trial court. Defendant exercised his right to

cross-examine Ceballo regarding her direct testimony. Ceballo became unavailable—due to mental illness—only after the conclusion of her testimony. Thus, these facts do not result in a violation of defendant’s right to cross-examine the witness. Additionally, Taylor’s testimony and the parties’ stipulation revealed Ceballo’s out-of-court statements concerning Gonzalez giving her a “gun or guns.” Those statements, however, alerted defendant to the new information that afforded defendant the opportunity to attack Ceballo’s credibility. Because those out-of-court statements tended to help defendant, he did not challenge them. For those reasons, there is no violation of defendant’s right to confront his accuser.

Accordingly, the Appellate Division order should be affirmed.

Chief Judge LIPPMAN (concurring). Although I agree that there should be an affirmance, I do not agree with the majority that the affirmance should rest upon rejection of defendant’s claim that his right of confrontation was infringed.

Within hours of her departure from the witness stand, the People’s witness, Loraine Ceballo, who had in her testimony implicated defendant in the fatal shooting in connection with which he had been charged with murder and gun possession, disclosed to the prosecutor that her testimony had in a crucial respect not been truthful. She had testified that in the immediate aftermath of the shooting defendant and his codefendant, Gonzalez, ran from the courtyard where they had confronted the victim, through the lobby of the building where Ceballo was, and that, as they passed by her, she did not observe that they possessed guns. Later on the day of her testimony, however, she admitted to the prosecutor in an out-of-court interview that she not only saw a gun as defendants fled the scene but received at least one weapon from Gonzalez. Plainly, her statements to the prosecutor bearing directly on the subject matter of her direct testimony were required to be, and were, disclosed to defendant.¹ And, equally plainly, had Ceballo been available, defendant would have been entitled to recall her to explore the inconsistency between her in-court and out-of-court statements and the significance of her newly admitted involvement in the

1. Indeed, the People, citing *Brady v Maryland* (373 US 83, 87 [1963]), *Giglio v United States* (405 US 150, 154 [1972]), and *People v Baxley* (84 NY2d 208, 213 [1994]), concede that they were required to disclose these statements and that their duty to make such disclosure was coterminous with the trial (citing *Imbler v Pachtman*, 424 US 409, 427 n 25 [1976] and *Leka v Portuondo*, 257 F3d 89, 100 [2d Cir 2001]).

criminal sequence. Defendant's right of confrontation was clearly implicated. Its range was properly defined by Ms. Ceballo's direct testimony and, at a minimum, by the information required to be disclosed to defendant during trial, not by the circumstance that the witness, through no fault of the trial court, became unavailable. It does not matter why a witness becomes unavailable. If adverse testimony has been placed before the jury that a defendant has not been afforded a full and fair opportunity to test by means of cross-examination, the interests protected by the right of confrontation are fully entailed.

The dictum from the summary disposition per curiam in *Delaware v Fensterer* (474 US 15 [1985])—a decision addressing facts utterly dissimilar to those at bar²—cannot be properly read to define and thus limit the universe of Confrontation Clause claims to those “involving the admission of out-of-court statements and . . . restrictions imposed by law or by the trial court on the scope of cross-examination” (*id.* at 18). The Supreme Court has repeatedly counseled that this language was not intended to be exclusive—that “claims arising under the Confrontation Clause may not always fall neatly into one of these two categories” (*Kentucky v Stincer*, 482 US 730, 739 [1987]; see also *Coy v Iowa*, 487 US 1012, 1016 [1988]).

The present claim is undoubtedly atypically eventuated; witnesses do not ordinarily become unavailable so precipitously and in the wake of a nontestimonial disclosure crucial to full and fair cross-examination. But it does not follow from the fact that the claim does not “fall neatly into one of the[] two [*Fensterer*] categories” that it is not cognizable. We have in fact recognized that denial-of-confrontation claims may arise from a witness's midtrial unavailability for cross-examination upon a noncollateral matter (see *People v Vargas*, 88 NY2d 363, 380 [1996]; *People v Chin*, 67 NY2d 22 [1986]), and if there is some reason why unavailability by reason of the assertion of privilege should be treated differently from unavailability by reason of a medical problem, it is not explained by the majority. If testimony adverse to the defendant upon a noncollateral matter has been placed before the jury and the defendant has not been afforded an opportunity fully and fairly to test that testimony by

2. The claim disallowed in *Fensterer* was that an expert witness's inability to recall the basis for his testimony amounted to a denial of confrontation even though he was available to be cross-examined.

cross-examination, the right of confrontation has been infringed. Until today, there has never been a rule that the assertion of that right was somehow dependent upon the precipitant of a witness's unavailability.

Inasmuch as Ceballo was the only witness who claimed to have seen defendant engage in conduct likely incident to the actual use of a gun against the victim, the circumstance that her account of the relevant events was not in crucial respects fully explored and tested before the jury constituted a denial of the right of confrontation. Nor does it seem questionable that this denial raised a substantial danger of prejudice. It appeared at the time of defendant's motion to strike that Ceballo's testimony would, if credited, in combination with the forensic evidence strongly militate in favor of a verdict convicting defendant of murder. In this context, any evidence that Ceballo had not been truthful about her role in the events directly at issue was, from defendant's perspective, absolutely to be brought to the jury's attention through cross-examination; a stipulation was not a substitute for vigorous confrontation of the witness in open court (*see Mattox v United States*, 156 US 237, 242-243 [1895]; *Chin*, 67 NY2d at 30 n 3), and, in any event, at the time of defendant's motion to strike no stipulation had yet been entered into. The trial court's bare denial of the motion upon the ground that Ceballo's unavailability did not "in any way, shape or form discomfit[] the defense" was, on this record, error, even if the extreme relief sought by defendant would not, after careful consideration of the available remedial options, have been appropriate (*see Vargas*, 88 NY2d at 380).

I join in the affirmance only because it seems clear that, in acquitting defendant of the two top counts, the jury decisively rejected Ceballo's account and, accordingly, it does not appear that defendant ultimately was prejudiced by the jury's consideration of her incompletely vetted testimony.

Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur with Judge JONES; Chief Judge LIPPMAN concurs in result in a separate opinion.

Order affirmed.

[945 NE2d 1013, 920 NYS2d 763]

FIELDSTON PROPERTY OWNERS ASSOCIATION, INC., Plaintiff, v
HERMITAGE INSURANCE COMPANY, INC., Respondent, and
FEDERAL INSURANCE COMPANY, Sued Herein as CHUBB
GROUP OF INSURANCE COMPANIES, Appellant. (Action No. 1.)

HERMITAGE INSURANCE COMPANY, INC., Respondent, v FIELD-
STON PROPERTY OWNERS ASSOCIATION, INC., et al., Defend-
ants, and FEDERAL INSURANCE COMPANY, Appellant. (Action
No. 2.)

Argued January 11, 2011; decided February 24, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 26, 2009. The Appellate Division, in the first above-entitled action, (1) reversed, on the law, an order of the Supreme Court, New York County (Herman Cahn, J.; op 2006 NY Slip Op 30541[U]), which had (a) granted a motion of defendant Federal Insurance Company (Federal) for summary judgment dismissing the amended cross claims against it, and (b) denied the cross motion of defendant Hermitage Insurance Company, Inc. (Hermitage) for summary judgment, (2) denied the motion, (3) granted the cross motion, and (4) declared that Federal is required to reimburse Hermitage for Federal's equitable share of the reasonable costs incurred by Hermitage in defending the Chapel Farm Estates, Inc. action, except for the costs Hermitage incurred in defending against the injurious falsehood claims if those claims are covered by both policies or are covered solely by the Commercial General Liability policy. The Appellate Division, in the second above-entitled action, modified, on the law, an order of that court (op 2007 NY Slip Op 34405[U]), which had denied defendant Federal's motion for summary judgment, and denied plaintiff Hermitage's cross motion for summary judgment. The modification consisted of granting the cross motion, and declaring that Federal is obligated to reimburse Hermitage for Federal's equitable share of the reasonable costs incurred by Hermitage in defending the Chapel Farm action, except for the costs Hermitage incurred in defending against the injurious falsehood claims if those claims are covered by both policies or are covered solely by the Commercial General Liability policy. The Appellate Division affirmed the order as modified. The following question was certified by

the Appellate Division: “Was the order of this Court, which reversed the order of Supreme Court entered August 10, 2006, and modified the order of said Court entered January 25, 2007, properly made?”

Fieldston Prop. Owners Assn., Inc. v Hermitage Ins. Co., Inc., 61 AD3d 185, reversed.

HEADNOTE

Insurance — Duty to Defend and Indemnify — Allocation of Defense Costs — Effect of “Other Insurance” Clause

In declaratory judgment actions relating to a dispute between the Commercial General Liability (CGL) policy insurer and the Association Directors and Officers Liability (D&O) policy insurer over their respective responsibility for the cost of defending their mutual insured against two underlying actions, the CGL policy insurer had the primary duty to defend the insured to the exclusion of any duty owed by the D&O policy insurer based on the language of the “other insurance” clauses in the policies and notwithstanding that the D&O policy insurer appeared to have an obligation to indemnify the insured for a greater proportion of the causes of action in the underlying actions. An insurer’s duty to defend its insured arises whenever the allegations in a complaint state a cause of action that gives rise to the reasonable possibility of recovery under the policy regardless of whether the complaint asserts additional claims that fall outside the policy’s coverage. In the context of primary and excess insurance, a primary insurer has the primary duty to defend and generally is not entitled to contribution from an excess insurer. Here, where the possibility that the CGL policy covered at least one cause of action in each of the two underlying complaints was conceded, the plain language of the “other insurance” clauses of the policies was determinative. The CGL policy provided that it was primary insurance, except in regard to types of insurance not relevant here. The D&O policy provided that its coverage was excess where any loss, including defense costs, arising from any claim against the insured was insured under any other valid policy. Thus, under the terms of the D&O policy, the CGL policy constituted “other insurance” which would cover the loss arising from the defense of the two underlying actions.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Insurance §§ 1396, 1747, 1755, 1765–1767.

COUCH ON INSURANCE (3d ed) §§ 200:38, 200:41, 219:33.

NY JUR 2d, Insurance §§ 2080, 2335–2337, 2339, 2343–2346.

ANNOTATION REFERENCE

See ALR Index under Excess Insurance; Insurance and Insurance Companies; Other Insurance.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: “other insurance clause” & duty /3 defend /s primary /2 insurer

POINTS OF COUNSEL

Hogan & Hartson LLP (Jonathan A. Constine, of the District of Columbia bar, admitted pro hac vice, of counsel), and *Hogan & Hartson LLP*, New York City (Katherine M. Bolger and Rachel F. Strom of counsel), for appellant. The Appellate Division’s decision is contrary to this Court’s precedent concerning the scope of the duty to defend and the application of policy language. (*Raymond Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 5 NY3d 157; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Caporino v Travelers Ins. Co.*, 62 NY2d 234; *Government Empls. Ins. Co. v Kligler*, 42 NY2d 863; *Nationwide Mut. Ins. Co. v Travelers Ins. Co.*, 8 AD3d 861; *Frontier Insulation Contrs. v Merchants Mut. Ins. Co.*, 91 NY2d 169; *Town of Massena v Healthcare Underwriters Mut. Ins. Co.*, 281 AD2d 107, 98 NY2d 435; *Hirschhorn v Town of Harrison*, 210 AD2d 587; *Marshall v Tower Ins. Co. of N.Y.*, 44 AD3d 1014; *B&W Heat Treating Co., Inc. v Hartford Fire Ins. Co.*, 23 AD3d 1102.)

Gold, Stewart, Kravatz, Benes & Stone, LLP, Westbury (Jeffrey B. Gold, James F. Stewart and Max W. Gershweir of counsel), for respondent. I. The “same risk” rule dictates that the policies’ “other insurance” clauses do not apply to the claims against Fieldston Property Owners Association, Inc., with one possible exception, and thus to that extent, Federal Insurance Company must reimburse Hermitage Insurance Company, Inc., for its equitable share of Fieldston’s defense costs. (*Sport Rock Intl., Inc. v American Cas. Co. of Reading, Pa.*, 65 AD3d 12, 14 NY3d 796; *Great N. Ins. Co. v Mount Vernon Fire Ins. Co.*, 92 NY2d 682; *NL Indus., Inc. v Commercial Union Ins. Co.*, 935 F Supp 513; *Pennsylvania Manufacturers’ Assn. Ins. Co. v Liberty Mut. Ins. Co.*, 39 AD3d 1161; *HRH Constr. Corp. v Commercial Underwriters Ins. Co.*, 11 AD3d 321; *State of New York v Blank*, 27 F3d 783; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *State Farm Fire & Cas. Co. v LiMauro*, 65 NY2d 369; *Cheektowaga Cent. School Dist. v Burlington Ins. Co.*, 32 AD3d 1265; *Soho Plaza Corp. v Nationwide Mut. Ins. Co.*, 244 AD2d 184.) II. This Court should reject Federal Insurance Company’s improper attempt to argue for the first time that the Hermitage Insurance Company, Inc. policy covers the injurious falsehood claims. (*Snyder v Wetzler*, 84 NY2d 941; *Bingham v New York City Tr. Auth.*, 99 NY2d 355.)

OPINION OF THE COURT

CIPARICK, J.

This appeal involves two declaratory judgment actions relating to a dispute between two insurers—Hermitage Insurance Company, Inc. (Hermitage) and Federal Insurance Company (Federal)*—over their respective responsibility for the cost of defending Fieldston Property Owners Association, Inc. (Fieldston), the insurers’ mutual insured, against two underlying actions. Specifically, we are asked to determine whether the “other insurance” clauses in the two applicable insurance policies require Hermitage to bear the entire defense costs in the two underlying actions against Fieldston. Based on the language of the policies, we conclude that Hermitage had the primary duty to defend Fieldston, to the exclusion of any duty owed by Federal.

I.

Hermitage issued a Commercial General Liability (CGL) policy to Fieldston for the period July 5, 2000 to July 5, 2001. The “per occurrence” CGL policy provides coverage for “bodily injury,” “property damage,” and “personal and advertising injury” as defined in the policy, among other things. The “other insurance” clause of Hermitage’s CGL policy provides, as relevant here:

“If other valid and collectible insurance is available to the insured for a loss we cover . . . our obligations are limited as follows:

“a. Primary Insurance.

“This insurance is primary except when b. below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described [herein].

“b. Excess Insurance.

“This insurance is excess over [certain types of insurance not relevant here].”

Federal issued an “Association Directors and Officers Liability” (D&O) policy covering the policy period from February 13, 1999 to February 13, 2002. The D&O policy is a “claims

* Federal was apparently improperly originally named as “Chubb Group of Insurance Companies” in the first declaratory judgment action.

made” policy providing coverage for “wrongful acts,” as that term is broadly defined in the policy, committed by the directors and officers of Fieldston. The D&O policy also covers certain enumerated “offenses” committed before or during the policy period. The “other insurance” clause of Federal’s D&O policy provides:

“If any Loss arising from any claim made against the Insured(s) is insured under any other valid policy(ies) prior or current, then this policy shall cover such Loss, subject to its limitations, conditions, provisions, and other terms, only to the extent that the amount of such Loss is in excess of the amount of such other insurance whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written only as specific excess insurance over the limits provided in this policy.”

“Loss” is defined in Federal’s D&O policy to mean “the total amount which the Insured(s) becomes legally obligated to pay on account of all claims made against it for Wrongful Acts with respect to which coverage hereunder applies, including . . . Defense Costs.”

By letter dated April 20, 2001, nonparty Chapel Farm Estates (Chapel Farm) informed Fieldston that Fieldston’s officers had been making “false statements and fraudulent claims” with respect to Chapel Farm’s “right to access its property from” adjacent public streets. Specifically, Chapel Farm claimed that, in statements “given broad publication to a number of . . . community groups and elected officials,” including statements made at a meeting of the Community Board’s Land Use Committee, Fieldston made false claims as to Chapel Farm’s ability to access certain property over “private streets” purportedly owned by Fieldston for the purpose of a construction project. Chapel Farm thereafter commenced an action against Fieldston and its officers in federal district court asserting several causes of action, including “injurious falsehood,” and seeking damages, among other remedies. Some of the facts and events described in the complaint apparently related to events that occurred during the D&O policy period, but not during the CGL policy period.

By letter dated October 30, 2001, Hermitage demanded that Federal acknowledge its coverage obligations to Fieldston for defense of the Chapel Farm’s federal action. Specifically, Hermitage stated:

“The complaint makes reference to a variety of alleged wrongful acts which are not covered under [the CGL] policy. Seven out of the eight causes of action in the complaint involve allegations that are clearly related to D&O issues and we feel that [Federal] has a primary defense obligation under [its] policy.”

The letter also stated that “it appears that only the cause [of action] for injurious falsehood might trigger a defense obligation under” the CGL policy. Relying on its “other insurance” clause, Federal refused to provide coverage for defense costs. Thereafter, Hermitage agreed to defend Fieldston in the Chapel Farm federal action under a full reservation of its rights.

Shortly after the federal action was dismissed in August 2003, Chapel Farm—by then known as Villanova Estates, Inc. (Villanova)—filed an action in Supreme Court. Although the state action included more causes of action, the operative facts stated therein were nearly identical to the federal action, except that the new complaint included additional, later-occurring events. The eighteenth cause of action set forth an injurious falsehood claim; the remaining causes of action sought declaratory and injunctive relief and damages related to Fieldston’s purported interference with Villanova’s (formerly known as Chapel Farm) property rights, among other things. As with the federal complaint, some of the operative events allegedly occurred when the D&O policy, but not the CGL policy, was in effect.

By letter dated October 24, 2003, Hermitage reserved its right to deny coverage for the Villanova action, specifically advising Fieldston that only the injurious falsehood cause of action was potentially covered. However, Hermitage, once again, agreed to defend Fieldston, subject to a full reservation of its rights, including the right to seek reimbursement from Federal for the cost of the defense. Again relying on its “other insurance” clause, Federal disclaimed coverage, asserting that its coverage for the defense costs of the Villanova action was excess to Hermitage’s policy.

In the state action, Fieldston successfully moved to dismiss certain causes of action, including the injurious falsehood claim. After the partial dismissal of the state action was affirmed on appeal (23 AD3d 160 [1st Dept 2005]), Hermitage demanded that Federal provide a defense as to the remaining causes of action. Federal conceded and assumed the defense of the state action.

These two declaratory judgment actions ensued, seeking to establish the respective defense cost responsibilities of Hermitage and Federal. Fieldston commenced the first action against both insurers to establish their obligation to cover the defense costs of the underlying Chapel Farm federal action. Supreme Court granted Federal's motion for summary judgment dismissing Hermitage's cross claims against it and denied Hermitage's cross motion for summary judgment (2006 NY Slip Op 30541[U]). Supreme Court concluded, in relevant part, that the "other insurance" clauses in the respective policies rendered Hermitage the primary and Federal the excess insurer as to the defense costs of the federal action. Hermitage appealed.

The second declaratory judgment action was brought by Hermitage against Federal seeking reimbursement—in full or on an equitable basis—for the costs incurred in defending the underlying Villanova action. In a separate order, Supreme Court denied Federal's motion and Hermitage's cross motion for summary judgment (2007 NY Slip Op 34405[U]). In relevant part, Supreme Court concluded that neither Hermitage nor Federal had demonstrated their respective positions as a matter of law. Hermitage appealed, and Federal cross-appealed, from the second Supreme Court order.

The Appellate Division in the first action reversed, on the law, denied Federal's motion for summary judgment, granted Hermitage's cross motion for summary judgment, and declared that Federal is required to reimburse Hermitage for its equitable share of defending the federal Chapel Farm action. In the second action, it modified, on the law, to the extent of granting Hermitage's cross motion for summary judgment and declaring that Hermitage is entitled to recover from Federal its equitable share of defending the Villanova state action, except to the extent that those costs related to the injurious falsehood claims (*Fieldston Prop. Owners Assn., Inc. v Hermitage Ins. Co., Inc.*, 61 AD3d 185 [1st Dept 2009]). The Appellate Division rejected Federal's argument, reasoning:

“With the possible exception of the injurious falsehood claims, all the other losses (including defense costs) that could result from the other causes of action are not insured under the CGL policy but at least some of them are insured under the D&O policy. Accordingly, the ‘other insurance’ clause [in the D&O policy] is inapplicable to the risks of all

other such losses, and the D&O policy thus provides primary coverage with respect to some of those risks. In other words, putting aside that possible exception, the CGL and D&O policies do not provide concurrent coverage as they do not insure against the same risks” (*id.* at 191).

The Appellate Division granted Federal leave to appeal to this Court, certifying the following question: “Was the order of this Court . . . properly made?” We now reverse and answer the certified question in the negative.

II.

In resolving insurance disputes, we first look to the language of the applicable policies (*see Raymond Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 5 NY3d 157, 162 [2005]). If the plain language of the policy is determinative, we cannot rewrite the agreement by disregarding that language (*see id.*). Here, the parties have conceded at least the possibility that both Hermitage’s CGL and Federal’s D&O policies cover the injurious falsehood claims in the two underlying actions. Thus, based on the “other insurance” clauses, Hermitage’s CGL policy is primary to Federal’s D&O policy as they relate to defense costs. The question presented distills to whether the Hermitage policy’s primacy on the injurious falsehood claim triggers a primary duty to defend against the remaining causes of action in the two complaints, thus preempting any obligation by Federal. We say it does.

An insurer’s duty to defend is liberally construed and is broader than the duty to indemnify, “in order to ensure [an] adequate . . . defense of [the] insured,” without regard to the insured’s ultimate likelihood of prevailing on the merits of a claim (*General Motors Acceptance Corp. v Nationwide Ins. Co.*, 4 NY3d 451, 456 [2005]; *see also Automobile Ins. Co. of Hartford v Cook*, 7 NY3d 131, 137 [2006]). As we have explained on multiple occasions, the insurer’s duty to defend its insured “arises whenever the allegations in a complaint state a cause of action that gives rise to the reasonable possibility of recovery under the policy” (*Fitzpatrick v American Honda Motor Co.*, 78 NY2d 61, 65 [1991]; *see also BP A.C. Corp. v One Beacon Ins. Group*, 8 NY3d 708, 714 [2007]). Moreover, if “‘any of the claims against an insured arguably arise from covered events, the insurer is required to defend the entire action’ ” (*Town of Massena v Healthcare Underwriters Mut. Ins. Co.*, 98 NY2d 435,

443 [2002], quoting *Frontier Insulation Contrs. v Merchants Mut. Ins. Co.*, 91 NY2d 169, 175 [1997] [emphasis added and brackets omitted]). It is “immaterial that the complaint against the insured asserts additional claims which fall outside the policy’s general coverage” (*id.* at 444 [citation, internal quotation marks and brackets omitted]).

In the context of primary and excess insurance, we have explained that a “primary insurer ‘has the primary duty to defend on behalf of its insureds’ ” (*General Motors*, 4 NY3d at 455, quoting *General Acc. Fire & Life Assur. Corp. v Piazza*, 4 NY2d 659, 669 [1958] [brackets omitted]), and it generally has no “‘entitlement to contribution from an excess insurer’ ” (*id.* at 456, quoting *Firemen’s Ins. Co. of Washington, D.C. v Federal Ins. Co.*, 233 AD2d 193 [1st Dept 1996], *lv denied* 90 NY2d 803 [1997]). Although an excess insurance carrier may elect to participate in an insured’s defense to protect its interest, it has “no obligation to do so” (*id.*).

As relevant here, Federal’s D&O policy provides that its coverage is excess where “any Loss arising from any claim made against the Insured(s) is insured under any other valid policy(ies).” “Loss” as defined in the D&O policy includes “Defense Costs.” Based on the broad duty to defend, and upon the conceded possibility that Hermitage’s CGL policy covers at least one cause of action in each of the two underlying complaints, Hermitage has a duty to provide a defense to the entirety of both complaints (*see e.g. Town of Massena*, 98 NY2d at 443-444). Thus, under the terms of Federal’s D&O policy, there does exist “other insurance” which would cover the “loss” arising from the defense of the two underlying actions. Accordingly, Hermitage had an obligation to defend both of the underlying actions without contribution from Federal (*see Firemen’s Ins. Co.*, 233 AD2d at 193; *Sport Rock Intl., Inc. v American Cas. Co. of Reading, Pa.*, 65 AD3d 12, 21 [1st Dept 2009], citing *State Farm Fire & Cas. Co. v LiMauro*, 65 NY2d 369, 373 [1985]), notwithstanding the fact that Federal would appear to have an obligation to indemnify Fieldston for a greater proportion of the causes of action, if successfully prosecuted.

We acknowledge that the result reached by the Appellate Division has much equitable appeal. If the policies were drafted using different language, we might hold differently, but we may not judicially rewrite the language of the policies at issue here to reach a more equitable result (*see e.g. Raymond Corp.*, 5 NY3d at 162).

Accordingly, the order of the Appellate Division should be reversed, with costs; in action No. 1, the judgment of Supreme Court should be reinstated, in action No. 2, defendant Federal Insurance Company's motion for summary judgment should be granted, and the certified question should be answered in the negative.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order reversed, etc.

[945 NE2d 495, 920 NYS2d 302]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JOSE CASIANO ALONZO, Respondent.

Argued January 13, 2011; decided February 24, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 5, 2009. The Appellate Division affirmed an order of the Westchester County Court (Jeffrey A. Cohen, J.), which had granted that branch of defendant's omnibus motion which was to dismiss counts two and five of the indictment.

People v Alonzo, 62 AD3d 720, affirmed.

HEADNOTE

Crimes — Indictment — Multiplicitous Counts — Sexual Abuse

Where the evidence before a grand jury shows a single, uninterrupted attack in which the attacker gropes several parts of a victim's body, the attacker may be charged with only one count of sexual abuse. An indictment is multiplicitous when a single offense is charged in more than one count, and while there is no infallible formula for deciding how many crimes are committed in a particular sequence of events, as a general rule, where a defendant violates a single provision of the Penal Law, in an uninterrupted course of conduct directed at a single victim, he or she commits a single crime. Here, although there may have been multiple occurrences of "[s]exual contact" (Penal Law § 130.00 [3]) based on alleged groping of the breasts and buttocks of the two victims, there was but a single, uninterrupted occurrence of forcible compulsion committed against each victim under Penal Law § 130.65 (1), which provides that "[a] person is guilty of sexual abuse in the first degree when he or she subjects another person to sexual contact . . . [b]y forcible compulsion." Thus, the indictment charging two counts of sexual abuse for each victim, the first alleging forcible hand-to-breast contact, the second hand-to-buttocks, was multiplicitous as the record clearly showed a single crime of sexual abuse against each victim.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Indictments and Informations §§ 205, 206; AM JUR 2d, Rape § 27.

CARMODY-WAIT 2d, Commencing the Prosecution; Grand Jury § 178:300.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 19.3.

McKINNEY's, Penal Law § 130.00 (3); § 130.65 (1).

NY JUR 2d, Criminal Law: Procedure § 1245; NY JUR 2d,

Criminal Law: Substantive Principles and Offenses
§§ 624, 662–668.

ANNOTATION REFERENCE

See ALR Index under Indictments and Informations.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: indictment /5 multiplicit! & sexual /2 abuse

POINTS OF COUNSEL

Janet DiFiore, District Attorney, White Plains (*Raffaelina Gi-anfrancesco*, *Lois Cullen Valerio* and *Anthony J. Servino* of counsel), for appellant. Counts two and five of the indictment charging separate and distinct acts of sexual abuse were improperly dismissed as multiplicitous. (*People v Keindl*, 68 NY2d 410; *People v Bauman*, 12 NY3d 152; *People v Senisi*, 196 AD2d 376; *People v Brandel*, 306 AD2d 860; *People v Kindlon*, 217 AD2d 793; *Blockburger v United States*, 284 US 299; *People v Watson*, 281 AD2d 691; *People v Garcia*, 13 AD3d 818; *People v Moffitt*, 20 AD3d 687; *People v George*, 255 AD2d 881.)

Legal Aid Society, White Plains (*Joana Otaiza* and *Stephen J. Pittari* of counsel), for respondent. Counts two and five of the indictment were properly dismissed as multiplicitous because the unit of prosecution for sexual abuse is any touching of the sexual or intimate parts of a person. (*People v Senisi*, 196 AD2d 376; *Missouri v Hunter*, 459 US 359; *People v Barnes*, 64 AD3d 890; *People v Aarons*, 296 AD2d 508; *People v Moffitt*, 20 AD3d 687; *People v Cruz*, 41 AD3d 893; *Ball v United States*, 470 US 856.)

OPINION OF THE COURT

SMITH, J.

We hold that, where the evidence before a grand jury shows a single, uninterrupted attack in which the attacker gropes several parts of a victim's body, the attacker may be charged with only one count of sexual abuse.

I

According to the evidence presented to a grand jury, defendant persuaded two women to visit him in the middle of the night at the apartment of a friend of his. After a short stay, the women decided they wanted to leave, but found that the door was locked and defendant had concealed the key. An argument

on this subject woke another person in the apartment, who persuaded defendant to open the door.

Defendant followed the women out of the building, grabbed one of them from behind and knocked her to the ground. He pinned her down with his body and groped her breasts and buttocks, while the second woman tried to protect her friend by hitting defendant, pulling his hair and screaming. Defendant responded by throwing the second woman down and getting on top of her in turn, groping her breasts and buttocks also. The first victim then came to the aid of the second, hitting and biting defendant and finally ending the encounter with a kick to the stomach that gave the women a chance to run away.

The grand jury indicted defendant on two counts of unlawful imprisonment and four of sexual abuse. Only the sexual abuse counts concern us here. There are two for each victim, the first alleging forcible hand-to-breast contact, the second hand-to-buttocks. (The second count relating to the second victim uses the word “breast” rather than “buttocks,” but the grand jury transcript shows this to be an error.) Defendant moved to dismiss two of the four counts as multiplicitous. County Court granted his motion, and the Appellate Division affirmed (*People v Alonzo*, 62 AD3d 720 [2009]). A Judge of this Court granted the People leave to appeal (13 NY3d 936 [2010]), and we now affirm.

II

Prosecutors and grand juries must steer between the evils known as “duplicitous” and “multiplicitous.” An indictment is duplicitous when a single count charges more than one offense (*e.g. People v Bauman*, 12 NY3d 152 [2009]; *People v Keindl*, 68 NY2d 410 [1986]). It is multiplicitous when a single offense is charged in more than one count (*e.g. People v Senisi*, 196 AD2d 376 [2d Dept 1994]). A duplicitous indictment may fail to give a defendant adequate notice and opportunity to defend; it may impair his ability to assert the protection against double jeopardy in a future case; and it may undermine the requirement of jury unanimity, for if jurors are considering separate crimes in a single count, some may find the defendant guilty of one, and some of the other. If an indictment is multiplicitous it creates the risk that a defendant will be punished for, or stigmatized with a conviction of, more crimes than he actually committed.

There is no infallible formula for deciding how many crimes are committed in a particular sequence of events. In each case,

the ultimate question is which result is more consistent with the Legislature's intention. As a general rule, however, it may be said that where a defendant, in an uninterrupted course of conduct directed at a single victim, violates a single provision of the Penal Law, he commits but a single crime. Thus, a physical attack by one person upon another is normally but one assault, though the attacker may hit the victim several times. A contrary rule would offer a temptation to abuse: Where there were 10 swings of a fist, a prosecutor might obtain 10 convictions growing out of a single incident—and could even seek 10 consecutive sentences, for Penal Law § 70.25 (2) does not require concurrent sentencing for crimes committed through separate acts.

Penal Law § 130.65 (1) says that “[a] person is guilty of sexual abuse in the first degree when he or she subjects another person to sexual contact . . . [b]y forcible compulsion.” “Sexual contact” is defined as “any touching of the sexual or other intimate parts of a person for the purpose of gratifying sexual desire” (Penal Law § 130.00 [3]). Here, to use the words of the Appellate Division in *People v Moffitt* (20 AD3d 687, 690 [3d Dept 2005]) (quoted by County Court below), there was “but a single, uninterrupted occurrence of forcible compulsion.” It is true, as the People point out, that there were at least two—indeed probably more—occurrences of “sexual contact.” Unsurprisingly, neither victim claimed to remember exactly how often defendant removed his hand and touched her again in the course of groping her, or how often he moved a hand from one body part to another, but it is clear that this happened repeatedly. To hold that each such movement of the hand may be prosecuted as a separate crime would be contrary to common sense.

Thus, the indictment as returned by the grand jury was multiplicitous (accord *Woellhaf v People*, 105 P3d 209 [Colo 2005]). The People err in suggesting that it would have been duplicitous to include the groping of each victim's breasts and buttocks in a single count. Neither of our leading cases on duplicity, *Keindl* and *Bauman*, involves a single, uninterrupted criminal act. In *Keindl*, several counts of an indictment were held duplicitous when they alleged separate acts of sodomy or sexual abuse occurring on various occasions over a period of weeks or months (68 NY2d at 419). In *Bauman*, we held an assault count duplicitous where it alleged 11 incidents over an eight-month period (12 NY3d at 155).

The evidence in this case clearly shows a single crime of sexual abuse against each victim. Other cases may not be so clear.

Where the evidence reasonably permits a grand jury to find that either one or two crimes occurred, an indictment charging two should not be dismissed: When the case is tried, the court can reevaluate the evidence and decide how many crimes the trial jury should consider. Here, however, a single count as to each victim is all the grand jury evidence will support.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, FIGOTT and JONES concur.

Order affirmed.

[945 NE2d 484, 920 NYS2d 291]

BLEECKER STREET TENANTS CORP., Respondent, v BLEECKER
JONES LLC et al., Appellants, et al., Defendants.

Argued January 6, 2011; decided February 24, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 23, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Carol Robinson Edmead, J.; op 2008 NY Slip Op 32263[U]), which had granted a motion by defendants Bleeker Jones LLC and Bleeker Jones Leasing Company for summary judgment dismissing the complaint and denied a cross motion by plaintiff for summary judgment, (2) denied those defendants' motion for summary judgment, and (3) granted plaintiff's cross motion to the extent of declaring that the renewal option clause of the parties' lease was void under EPTL 9-1.1 (b) and that Bleeker Jones LLC and Bleeker Jones Leasing Company and their subtenants and/or assignees were month-to-month tenants.

Bleeker St. Tenants Corp. v Bleeker Jones LLC, 65 AD3d 240, reversed.

HEADNOTE

Perpetuities — Rule against Perpetuities — Renewal Option Clause in Commercial Lease

The rule against perpetuities (EPTL 9-1.1 [b]) does not apply to options to renew leases. Because the rule against perpetuities has not applied to options to renew leases under the American common law, and EPTL 9-1.1 (b) codifies the American common law, it follows that options to renew leases also fall outside of the scope of EPTL 9-1.1 (b). An option to renew, like a purchase option appurtenant to a lease, furthers the policy goal of the rule against remote vesting: to protect the alienability of property. Here, plaintiff landlord sought to void commercial lease renewal options of defendant tenant where it was clear from the lease that so long as the renewal options existed, the tenant would remain a tenant, lawfully in possession of the property, at least on a month-to-month basis. The parties expressly agreed upon nine consecutive renewal options following the initial lease term, exercisable according to particular notice requirements. Those options were not inconsistent with the purpose of the rule against perpetuities because they continued the tenant's possession of the property without interruption, thus encouraging the efficient use of the property. Therefore, there was no sound policy reason to invalidate the tenant's option to renew.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant §§ 141–145; AM JUR 2d, Perpetuities and Restraints on Alienation §§ 49, 56.
MCKINNEY'S, EPTL 9–1.1 (b).
NY JUR 2d, Estates, Powers, and Restraints on Alienation § 429; NY JUR 2d, Landlord and Tenant §§ 841, 843, 857.
NEW YORK REAL PROPERTY SERVICE §§ 1:154, 66:101.

ANNOTATION REFERENCE

Sufficiency of provision of lease to effect second or perpetual right of renewal. 29 ALR4th 172.

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Database: NY-ORCS

Query: rule /3 perp! /p option /3 renew /4 lease

POINTS OF COUNSEL

Kramer Levin Naftalis & Frankel LLP, New York City (*Jeffrey L. Braun* and *Julie M. Weiswasser* of counsel), for appellants. I. The rule against perpetuities does not apply to options to renew a lease. (*Symphony Space v Pergola Props.*, 88 NY2d 466; *Deer Cross Shopping v Stop & Shop Supermarket Co.*, 2 Misc 3d 401; *Warren St. Assoc. v City Hall Tower Corp.*, 202 AD2d 200; *Omath Holding Co. v City of New York*, 149 AD2d 179; *Burns v City of New York*, 213 NY 516; *Hoff v Royal Metal Furniture Co.*, 117 App Div 884, 189 NY 555; *DeSantis v Kessler*, 83 AD2d 766; *Metropolitan Transp. Auth. v Bruken Realty Corp.*, 67 NY2d 156; *Morrison v Piper*, 77 NY2d 165.) II. Even if the rule against perpetuities applies to options to renew a lease, it does not apply to the options in this case. (*Symphony Space v Pergola Props.*, 88 NY2d 466; *Kennedy v City of New York*, 196 NY 19; *120 Bay St. Realty Corp. v City of New York*, 44 NY2d 907; *430 Broome St. Realty Corp. v Bonnouvrier*, 17 Misc 3d 1128[A], 2007 NY Slip Op 52182[U]; *Morrison v Piper*, 77 NY2d 165; *Wildenstein & Co. v Wallis*, 79 NY2d 641; *Hechter v New York Life Ins. Co.*, 46 NY2d 34.)

Genoa & Associates, P.C., Old Brookville (*Marilyn K. Genoa* of counsel), for respondent. I. The Appellate Division correctly held that the renewal option contained in the lease violates EPTL 9-1.1 (b). (*Symphony Space v Pergola Props.*, 88 NY2d 466; *Recovery Consultants v Shih-Hsieh*, 141 AD2d 272; *Buffalo*

Seminary v McCarthy, 86 AD2d 435; *Warren St. Assoc. v City Hall Tower Corp.*, 202 AD2d 200; *Omath Holding Co. v City of New York*, 149 AD2d 179; *Metropolitan Transp. Auth. v Bruken Realty Corp.*, 67 NY2d 156; *Wildenstein & Co. v Wallis*, 79 NY2d 641; *Bright Homes v Wright*, 8 NY2d 157; *Matter of Martin v School Bd. of Union Free Dist. No. 28, Long Beach*, 301 NY 233; *Burns v City of New York*, 213 NY 516.) II. The Appellate Division correctly held that the options, which could be exercised after the lease expired, were neither appendant nor appurtenant to the lease. (*Symphony Space v Pergola Props.*, 214 AD2d 66; *Warren St. Assoc. v City Hall Tower Corp.*, 202 AD2d 200; *Double C Realty Corp. v Craps, LLC*, 58 AD3d 480; *Deer Cross Shopping v Stop & Shop Supermarket Co.*, 2 Misc 3d 401; *Inwood Park Apts., Inc. v Coinmach Indus. Co.*, 6 Misc 3d 246; *Kennedy v City of New York*, 196 NY 19; *120 Bay St. Realty Corp. v City of New York*, 44 NY2d 907; *430 Broome St. Realty Corp. v Bon-nouvrier*, 17 Misc 3d 1128[A], 2007 NY Slip Op 52182[U]; *Morrison v Piper*, 77 NY2d 165; *Matter of Kellogg*, 35 AD2d 145, 28 NY2d 481.)

OPINION OF THE COURT

JONES, J.

The appeal before this Court presents the novel question whether options to renew a commercial lease are subject to EPTL 9-1.1 (b), New York's rule against perpetuities. We hold that the rule against perpetuities does not apply to options to renew leases.

Plaintiff Bleecker Street Tenants Corp. is owner of a six-story walkup on Bleecker Street, which was converted to cooperative ownership in September 1983. Plaintiff leased the building's first-floor commercial space to defendant Bleecker Jones Leasing Company, defendant Bleecker Jones LLC's predecessor in interest. The lease agreement was contemporaneous with the co-op conversion.

The lease, in relevant parts, provided for an initial lease term of 14 years, with nine consecutive options to renew for a 10-year-period. Each renewal option term was to "commence on the first day of the calendar month immediately following the expiration of the immediate preceding term of this lease." The lessee could exercise the renewal options together or successively and by giving written notice to the lessor at least six "months prior to the expiration date of each immediately preceding term." If the lessee did not timely exercise a renewal

option and the lessor did not provide notice of the existence of an option within seven months prior to the date of each expiring term, then each renewal option remained in effect until the lessor notified the lessee in writing of its right to exercise each option. The lessee then had 60 days to exercise such renewal option. Lastly, “[i]f the term shall have expired, [l]essee shall remain in possession as a month-to-month tenant until” lessor complied with the notice requirements. The parties agree that, under these provisions, a renewal option could be exercised even after the original lease term had expired, during the month-to-month tenancies resulting from the absence of written notice.

In August 1997, the initial 14-year lease term expired. Defendant Bleeker Jones did not exercise any lease option thereafter. It remained in possession as a month-to-month tenant until plaintiff commenced this action in December 2007, seeking to void the lease renewal options under EPTL 9-1.1 (b) and the common-law rule against unreasonable restraints on alienation. Defendants moved and plaintiff cross-moved for summary judgment.

Supreme Court granted defendants’ motion for summary judgment dismissing the complaint while denying that of plaintiff (2008 NY Slip Op 32263[U]). The court concluded that the renewal options were appurtenant to the lease, exercisable during the lease term and, therefore, valid. The Appellate Division reversed (65 AD3d 240 [2009]), declaring the renewal options clause void under EPTL 9-1.1 (b). The court determined that the lease term had expired prior to any renewal option having been exercised and, thus, concluded that the option could not be appurtenant to the lease. We now reverse.

“No estate in property shall be valid unless it must vest, if at all, not later than twenty-one years after one or more lives in being at the creation of the estate and any period of gestation involved” (EPTL 9-1.1 [b]). This rule—a “prohibition against remote vesting”—codified the American common-law rule (*Symphony Space v Pergola Props.*, 88 NY2d 466, 471, 475 [1996]).¹ Traditionally, the rule sought to limit an owner’s right to control title of property indefinitely, commonly known as a landowner’s dead-hand control (see 88 NY2d at 475; *Metropolitan Transp.*

1. The Legislature “intended to make clear that the American common law rule against perpetuities has been and now is in force in New York” (Mem of Temporary Commission on the Law of Estates, 1965 NY Legis Ann, at 206).

Auth. v Bruken Realty Corp., 67 NY2d 156, 160 [1986]). Both in their early and modern forms, rules restricting future dispositions of property were founded on the “principle that it is socially undesirable for property to be inalienable for an unreasonable period of time” (*Symphony Space*, 88 NY2d at 475). The underlying objective of the rule remains: to protect the alienability of property (see 1965 NY Legis Ann, at 206-207; see also Berg, *Long-Term Options and the Rule Against Perpetuities*, 37 Cal L Rev 1, 2 [1949]).

“Under the common law, options to purchase land are subject to the rule against remote vesting” (*Symphony Space*, 88 NY2d at 476; see also Leach, *Perpetuities in a Nutshell*, 51 Harv L Rev, 638, 660 [1938]). Though scholars proposed that commercial transactions be exempted from the rule against perpetuities, in *Symphony Space*, the Court held that EPTL 9-1.1 (b) applies to all options to purchase (88 NY2d at 477). An option to purchase land “grants to the holder the power to compel the owner of property to sell it whether the owner is willing to part with ownership or not” (*Bruken*, 67 NY2d at 163). If the option to purchase does not comply with the rule against perpetuities, that interest could be exercised, or vest, at a time remote to the acquisition of such right. As the *Bruken* Court noted, the option to purchase in *Buffalo Seminary v McCarthy* (86 AD2d 435 [4th Dept 1982], *affd* 58 NY2d 867 [1983]) “granted the holder an unlimited right to buy the owner’s land at any time” (67 NY2d at 163). It is that uncertainty of title which renders the property “inalienable for an unreasonable period of time” (*Symphony Space*, 88 NY2d at 475). The *Symphony Space* Court reasoned: “Inasmuch as the common-law prohibition against remote vesting applies to both commercial and noncommercial options, it likewise follows that the Legislature intended EPTL 9-1.1 (b) to apply to commercial purchase options as well” (*id.* at 478).

The *Symphony Space* Court also recognized that certain options to purchase land, options appurtenant or appendant to a lease, are not invalid under the rule against perpetuities if the option “originates in one of the lease provisions, is not exercisable after lease expiration, and is incapable of separation from the lease” (*id.* at 480; see also *Metropolitan Transp. Auth. v Bruken Realty Corp.*, 67 NY2d 156, 165 [1986]; 3 Simes and Smith, *The Law of Future Interests* § 1244 [3d ed]). The Court reasoned that such options “encourage the possessory holder to

invest in maintaining and developing the property by guaranteeing the option holder the ultimate benefit of any such investment. Options appurtenant thus further the policy objectives underlying the rule against remote vesting and are not contemplated by EPTL 9-1.1 (b)” (*Symphony Space*, 88 NY2d at 480).

We now turn to whether EPTL 9-1.1 (b) applies to options to renew leases.

Under the common law, “it [was] well settled that perpetual options to *renew* leases have always been held valid” (Leach, *Perpetuities in a Nutshell*, 51 Harv L Rev at 662; *accord* Abbot, *Leases and the Rule Against Perpetuities*, 27 Yale LJ 878, 883 [1918] [“There seems to be no question . . . that such an option is good”]; *Burns v City of New York*, 213 NY 516, 520 [1915] [expressly-stated continual lease renewal covenants are valid; it “was the law in England and has been frequently stated by writers and in opinions by the courts both in England and in this country”]; *Hoff v Royal Metal Furniture Co.*, 117 App Div 884, 885 [2d Dept 1907] [concluded that covenants for perpetual renewals “are lawful and in general use”]; *see also Perpetual lease or covenant to renew lease perpetually as violation of rule against perpetuities or the suspension of the power of alienation*, 3 ALR 498 [1919]; Berg, 37 Cal L Rev at 22).² Thus, because the rule against perpetuities has not applied to options to renew leases under the American common law and EPTL 9-1.1 (b) codifies the American common law, it follows that options to renew leases also fall outside of the scope of EPTL 9-1.1 (b).

Moreover, an option to renew, like a purchase option appurtenant to a lease, furthers the policy goals of the rule against remote vesting. At the same time, lease renewal options or covenants for perpetual lease renewals are wholly distinguishable

2. Although scholars have questioned whether the validity of such renewal options is excepted or exempted from the rule against perpetuities, they have agreed that those interests are valid, without reservations or limitations (*see* Abbot, 27 Yale LJ at 884; *see also* Berg, 37 Cal L Rev at 22). The option to renew “has been consistently sustained for over 200 years in England,” in most cases with “no discussion of the rule . . . Moreover several of the American cases do expressly consider the validity of such covenants under the rule and uphold them none the less. But whether the rule be actually discussed or not, the mere weight of decision seems sufficient to establish the result” (Abbot, 27 Yale LJ at 883-884). Additionally, the concurring and dissenting opinions dispute our reading of the authorities; but neither cites any authority of any kind from any jurisdiction that either says or holds that lease renewal options are subject to the rule against perpetuities.

from purchase options in two respects: an option to renew a lease (1) is exercisable pursuant to the lease agreement and, thus, inherently appurtenant to the lease and (2) lacks the power to divest title of that property to the option holder. It also has been noted that these “covenants” are often part of commercial leases, rendering the lease more attractive and readily alienable than less so (3 Simes and Smith, *The Law of Future Interests* § 1243 [3d ed]; Berg, 37 Cal L Rev at 23). Thus, lease renewal options appropriately remain valid.

Here, the parties expressly agreed upon nine consecutive renewal options to the 14-year lease term, exercisable according to particular notice requirements. They are not inconsistent with the purpose of the rule against perpetuities because they continue the tenant’s possession of the property without interruption, thus encouraging the efficient use of the property. The dissent argues that excluding renewal options from the rule’s coverage will undermine the purposes of the rule, suggesting the possibility of a former tenant “retaking possession of the . . . property” after its lease has expired (dissenting op at 287). But our holding does not leave open this possibility, for an option exercisable by a former tenant no longer in possession is not a renewal option: it is an option to enter into a new lease. In the present case, it is clear from the lease that, so long as the renewal options existed, the tenant would remain a tenant, lawfully in possession of the property, at least on a month-to-month basis. There is no sound reason of policy to invalidate such a tenant’s option to renew.

Accordingly, the order of the Appellate Division should be reversed, with costs, the motion of defendants Bleeker Jones LLC and Bleeker Jones Leasing Company for summary judgment granted and judgment granted declaring in accordance with the opinion.

READ, J. (concurring). The majority holds that “the rule against perpetuities does not apply to options to renew leases” (majority op at 274) in New York because “the rule against perpetuities [did] not appl[y] to options to renew leases under the American common law” (*id.* at 277). But the authorities cited by the majority do not demonstrate that options to renew leases enjoyed a blanket exemption from or were outside the purview of the rule against perpetuities under American common law. Instead, these authorities show that an option to renew did not run afoul of the historic prohibition against remote vesting,

subsequently codified in New York as EPTL 9-1.1 (b), if “appurtenant” or “appendant” to the lease, and, in particular, if continuous (a so-called “perpetual” option or covenant to renew). Because the option to renew at issue in this case was appurtenant to the lease (*see Symphony Space v Pergola Props.*, 88 NY2d 466, 478 [1996]), I agree with the result reached by my colleagues in the majority, but I cannot subscribe to their reasoning.

I.

The majority correctly states that the common law enforced “*perpetual* options to *renew* leases” (majority op at 277 [first emphasis added; second emphasis in original]). As Professor William Berg, Jr. explains,

“[i]n the early years of the eighteenth century, when the modern Rule against Perpetuities was in its formative stage, the highest court of England rendered a decision in which it held that a lessor’s covenant to renew a twenty-one year lease perpetually was not in violation of the Rule. Thereafter, an almost unbroken line of cases in England and America upheld *covenants of that type*” (Berg, *Long-Term Options and the Rule Against Perpetuities*, 37 Cal L Rev 1, 22 [1949] [emphasis added]).

In his view, a perpetual renewal covenant was not properly classified as an exception to the rule, as many experts claimed; rather it was simply “outside [its] province” (*id.* at 23) because

“under the view that the Rule is designed to destroy indirect restraints upon the practical alienability of property which are brought about by remote non-vested future interests, *covenants to renew leases, without time limit, do not suspend the practical power to alienate land*. So long as the value of the land does not drop to the point where the rental becomes prohibitive, the lessee always has in himself the legal as well as the practical power to convey that which is substantially a fee simple. On the other hand, when the lease becomes unprofitable, the lessee will give up his right to renew and the lessor will resume complete ownership” (*id.* [emphasis added]; *see also* Gray, *The Rule against Perpetuities* § 230 [4th ed 1942] [regarding perpetual leases

as valid because they give lessees estates akin to fees simple defeasible upon conditions subsequent]).

Professor Berg also noted that, for the lessor, a “desire to retain ownership of the land as a good business investment might influence” the granting of a lease with a perpetual covenant; further “[o]n some occasions [the lessor] might be motivated by a sentimental unwillingness to part with the land, but in any event it is difficult to twist the transaction so as to impute . . . the desire to create an inalienable interest” (37 Cal L Rev at 24).

The seminal eighteenth century English case referred to by Professor Berg—*Bridges v Hitchcock* (5 Bro PC 6, 2 ER 498 [House of Lords 1715])—illustrates what a perpetual option to renew a lease looks like and how such a covenant comports with the policy underlying the rule against perpetuities. In 1693, Stapleton leased a property owned by Bridges known as “Ember Mill,” which had fallen “greatly out of repair” (5 Bro PC at 6, 2 ER at 498). The lease was for 21 years, but provided

“ ‘that if the lessee, his executors, administrators, or assigns, or any of them, should, at any time thereafter, before the expiration of the term thereby demised, be minded to renew and take a further lease of the said premises; that then, upon application made, at any time before the last six months of the said term, the appellant, his heirs or assigns, should grant such further lease as should by the lessee, his executors, administrators, or assigns, be desired, without any fine to be demanded therefore, and *under the same rents and covenants only* as in this lease’ ” (5 Bro PC at 7, 2 ER at 498).

Upon taking possession, Stapleton and his partners set to work rebuilding and improving the property: they tore down the old corn millhouse and erected a brick millhouse in its stead, as well as a millhouse and mills for manufacturing brass and iron and several other buildings. Hitchcock, who by 1714 had acquired the whole interest in the premises from Stapleton and his partners, “reasonably expected to obtain a new lease” (5 Bro PC at 8, 2 ER at 499), but Bridges resisted on various grounds. Defending the investments made in the property, Hitchcock argued that the covenant for perpetual renewal should be enforced by the courts because it was “the only foundation and encouragement which the parties had[] for expending so much money upon the premises as they had done” (5 Bro PC at 9, 2 ER at 499). The House of Lords agreed.

Next, the majority also relies on law review articles by Edwin H. Abbot, Jr. and Professor W. Barton Leach to support the proposition that the rule against perpetuities never applied to leases to renew at common law. Abbot hypothesizes “a lease for over 21 years [which] contains a covenant for renewal at the option of the lessee[] [o]r . . . such a lease contains a covenant for a perpetual series of such renewals” (Abbot, *Leases and the Rule Against Perpetuities*, 27 Yale LJ 878, 883 [1918]). Contrary to Professor Berg, he then states that “there seems no escape from the conclusion that such an option if sustained . . . form[s] an exception to” the rule against perpetuities; however, he declares, “[t]here seems to be no question . . . that such an option is good. It has been consistently sustained over 200 years in England. The great weight of authority in this country is to the same effect” (*id.* at 883-884 [emphasis added]). For English common-law authority, Abbot cites *Bridges*, which, as previously discussed, involved a perpetual covenant to renew.

For American common-law authority, Abbot adverts to several cases, including three from New York: *Robinson v Beard* (140 NY 107 [1893]), *Gomez v Gomez* (147 NY 195 [1895]) and *Hoff v Royal Metal Furniture Co.* (117 App Div 884 [2d Dept 1907], *affd* 189 NY 555 [1907]). As Judge Graffeo points out in her dissent, however, at the time these three cases were decided, New York had a *statutory* rather than a common-law rule against perpetuities. This statutory rule was “narrowly” applied and excluded options (dissenting op at 284; *see also Symphony Space*, 88 NY2d at 478 [“(P)rior to 1965, New York’s narrow statutory rule against remote vesting did not encompass options”], citing *Buffalo Seminary v McCarthy*, 86 AD2d 435, 443 [4th Dept 1982], *affd* 58 NY2d 867 [1983]). As a result, New York courts were not called upon to decide whether the rule against perpetuities was an obstacle to enforcing the options to renew in *Robinson*, *Gomez* and *Hoff*. In any event, the options were appurtenant to the leases in each of these cases: *Gomez* and *Robinson* involved options for successive terms of a period of years; *Hoff*, like *Bridges*, involved a perpetual option to renew.*

Similarly, Professor Leach comments that in the United States it was “well settled that *perpetual* options to *renew* leases have

* All of the cases cited by Abbot from states other than New York involved construction of leases with covenants for perpetual renewal (*see Banks v Haskie*, 45 Md 207 [1876]; *Boyle v Peabody Hgts. Co.*, 46 Md 623 [1877]; *Blackmore v Boardman*, 28 Mo 420 [1859]; *Diffenderfer v Board of President, etc., of St. Louis Pub. Schools*, 120 Mo 447, 25 SW 542 [1894]; *Drake v Board*

(n. cont’d)

always been held valid” (Leach, *Perpetuities in a Nutshell*, 51 Harv L Rev 638, 662 [1938] [first emphasis added; second emphasis in original]; see also Note, *Options and the Rule against Perpetuities*, 13 U Fla L Rev 214, 220 [1960] [“American jurisdictions today will uniformly protect the option appendant to purchase and the option appendant to renew from the Rule against Perpetuities”]; *Camerlo v Howard Johnson Co.*, 710 F2d 987, 991 [3d Cir 1983] [holding that a perpetual lease option was valid under Pennsylvania law and noting that “(t)he weight of authority elsewhere holds that, absent a statutory prohibition, a perpetual lease or a right to perpetual renewal of a lease does not violate the (rule against perpetuities) or create a restraint on alienation,” citing Abbot, *Leases and the Rule Against Perpetuities* (27 Yale LJ 878, 883)]). The two cases adduced by the majority—*Hoff* and *Burns v City of New York* (213 NY 516 [1915])—both deal with perpetual options to renew a lease.

Finally, the majority opines that “an option to renew a lease . . . is exercisable pursuant to the lease agreement and, thus, *inherently appurtenant*” (majority op at 278 [emphasis added]). But there is no reason why an option to renew might not originate in an instrument other than the lease (as was the case with the option to purchase in *Symphony Space*); or be exercisable after the lease has expired (as was apparently the case in *Warren St. Assoc. v City Hall Tower Corp.* [202 AD2d 200 (1st Dept 1992), *appeal discontinued* 84 NY2d 865 (1994)]), or by a former tenant no longer in possession (as hypothesized by Judge Graffeo in her dissent). We have consistently held that “options in real estate are subject to the statutory” rule against perpetuities (*Symphony Space*, 88 NY2d at 477, citing *Wildenstein & Co. v Wallis*, 79 NY2d 641, 648 [1992]); and have applied the three-part test in *Symphony Space* to assess the enforceability of a lease where the holder’s interest may vest beyond the perpetuities period. The reason put forward by the majority to depart from this precedent and create a blanket exception from the rule against perpetuities for *all* options to renew leases—that they were historically considered to be exempt from or outside the scope of the rule—is simply not supported by the authorities cited.

of *Educ. of St. Louis*, 208 Mo 540, 106 SW 650 [1907]; *Thaw v Gaffney*, 75 WVa 229, 83 SE 983 [1914]; see also *Garner v Gerrish*, 63 NY2d 575, 581 [1984] [remarking that *Hoff* illustrates that perpetual leases “will not be enforced unless the lease clearly grants to the tenant or his successors the right to extend beyond the initial term by renewing indefinitely”]).

II.

In *Symphony Space*, we held that an option is appurtenant to a lease and therefore does not violate the rule against perpetuities when it (1) “originates in one of the lease provisions,” (2) “is not exercisable after lease expiration,” and (3) “is incapable of separation from the lease” (88 NY2d at 480). The only issue that the parties dispute in this case is whether the tenant’s renewal options were exercisable after lease expiration.

The parties agree that, absent notice, the lease provides for month-to-month possession following the initial 14-year term. During this possession, the lease creates asymmetric barriers to terminating the landlord-tenant relationship. The tenant only needs to give a one-month notice before vacating. But the landlord is limited to triggering a 60-day notice period, during which the tenant must choose between exercising a 10-year renewal option or terminating the tenancy. The lease also specifies many other rights and responsibilities during any month-to-month tenancy under the lease. For example, the tenant must maintain insurance covering at least \$500,000 in property damage, at the tenant’s expense.

Notably, *Symphony Space* interprets the rule against perpetuities to prohibit renewal options exercisable after a “lease” expires, not after a “term” in a lease expires. Here, “term” has the meaning ascribed by the lease—i.e., “‘term of this lease’ or words of similar import” means “the initial term and any renewal term in respect to which Lessee has exercised its right of renewal”—and makes no mention of monthly terms. Thus, “term” refers to the initial 14-year period and exercised 10-year options.

This definition plays a useful role in the lease. For example, in section 1.3, the lease states that “each renewal option term shall commence on the first day of the calender month immediately following the expiration of the immediate preceding *term* of this lease” (emphasis added). Because 10-year renewal periods do not begin each month, it is clear that “immediate preceding term” refers only to the initial term and renewal terms—just as the lease defines the word “term.” The parties needed a word or phrase to represent the 14-year and exercised 10-year periods in order to lay their agreement out in a readable contract. There are many examples of this throughout the lease. The drafters did the sensible thing when creating a shorthand phrase for use in a contract: they offered a definition within that same instrument.

The Appellate Division read the relevant language to mean “*This Lease* only includes the initial 14-year period and exercised 10-year options.” As a result, that court concluded that the option was not appurtenant to the lease because the parties did not expressly state that the lease encompassed the rights and responsibilities that the lease itself obliges after expiration of the initial 14-year term. This was error. Accordingly, like Supreme Court, I would hold the renewal option to be appurtenant to the lease, and would reverse the Appellate Division on that basis.

GRAFFEO, J. (dissenting). I write separately because I believe that the majority’s broad rule exempting all options to renew leases from the statutory rule against perpetuities cannot be reconciled with the text of EPTL 9-1.1 (b) and is inconsistent with the analytical framework that we adopted in *Symphony Space v Pergola Props.* (88 NY2d 466 [1996]).

The rule against perpetuities has been codified in New York since the early 1800s (*see id.* at 475). It is premised on the belief that “it is socially undesirable for property to be inalienable for an unreasonable period of time” (*id.*). As a result, the rule’s purpose is “ ‘to ensure the productive use and development of property by its current beneficial owners by simplifying ownership, facilitating exchange and freeing property from unknown or embarrassing impediments to alienability’ ” (*id.*, quoting *Metropolitan Transp. Auth. v Bruken Realty Corp.*, 67 NY2d 156, 161 [1986]).

The majority correctly observes that, in the early twentieth century, we held that an option to renew a lease was outside the scope of New York’s rule against perpetuities if the lease clearly manifested an intent to create a right to renew in perpetuity (*see e.g. Burns v City of New York*, 213 NY 516, 520 [1915]; *Hoff v Royal Metal Furniture Co.*, 117 App Div 884 [2d Dept 1907], *affd* 189 NY 555 [1907]; *see generally* Leach, *Perpetuities in a Nutshell*, 51 Harv L Rev 638, 662 [1938]). By the early 1900s, New York had a statutory rule against perpetuities, but it was drafted so narrowly that it covered “only contingent remainders on terms of years and fees limited upon prior fees upon contingencies” (*Buffalo Seminary v McCarthy*, 86 AD2d 435, 440 [4th Dept 1982], *affd* 58 NY2d 867 [1983], citing, *inter alia*, Real Property Law §§ 46, 50, formerly 1 Rev Stat of NY, part II, ch I, tit II, §§ 20, 24 [1st ed]; *Matter of Wilcox*, 194 NY 288, 298

[1909]).¹ Because an option to renew a lease was not encompassed within these two categories of property interests, the decisions in *Burns* and *Hoff* were consistent with the statutes then in effect.

The more widely accepted American common law at that time, in contrast, utilized a broader definition of the rule against perpetuities: “No interest is good unless it must vest, if at all, not later than twenty-one years after some life in being at the creation of the interest” (*Buffalo Seminary*, 86 AD2d at 441 n 4 [internal quotation marks omitted]). On its face, the American rule covered all interests in real property, including options and leases. In 1965, the Legislature recognized this principle when it enacted Real Property Law former § 43 with the specific intent “to incorporate the American common-law rules governing perpetuities” and thereby expanded the rule beyond the restrictive reach previously applied (*Symphony Space*, 88 NY2d at 478).

EPTL 9-1.1 (b) is the current version of New York’s rule against perpetuities. It was enacted in 1966 and similar to its predecessor, the statute provides that “[n]o estate in property shall be valid unless it must vest, if at all, not later than twenty-one years after one or more lives in being at the creation of the estate and any period of gestation involved.” We have determined on several occasions that section 9-1.1 (b) applies to options in real estate (*see e.g. Symphony Space*, 88 NY2d at 477 [“It is now settled in New York that, generally, EPTL 9-1.1 (b) applies to options”]; *Wildenstein & Co. v Wallis*, 79 NY2d 641, 648 [1992] [“the rule (is) applicable to options in real estate transactions”]; *Buffalo Seminary*, 86 AD2d at 442 [“options are within the New York rule”]).

Based on this history, I do not believe that options to renew leases should be categorically exempt from EPTL 9-1.1 (b). The majority reasons that “because the rule against perpetuities has not applied to options to renew leases under the American

1. Both section 20 of the cited provision of the first Revised Statutes and former section 46 of the Real Property Law stated that

“[a] contingent remainder shall not be created on a term of years, unless the nature of the contingency on which it is limited, be such that the remainder must vest in interest, during the continuance of not more than two lives in being at the creation of such remainder, or upon the termination thereof.”

Section 24 of the cited provision of the first Revised Statutes and former section 50 of the Real Property Law applied this standard to the other type of property interest described in *Buffalo Seminary*.

common law . . . it follows that options to renew leases also fall outside of the scope of EPTL 9-1.1 (b)” (majority op at 277). To the contrary, there was no common-law principle in New York—the early twentieth century decisions that the majority relies on were grounded on the absence of a statutory prohibition that applied to perpetual leases (*see generally Buffalo Seminary*, 86 AD2d at 443). *Buffalo Seminary* made this very point (*see id.*).

This Court’s pre-1965 authorities were superceded when the Legislature adopted the American rule that covered all interests in real property and did not contain an exception for an option to renew a lease. *Symphony Space*, *Wildenstein* and *Buffalo Seminary* emphasized that the current statute—EPTL 9-1.1 (b)—applies to all real estate options. As Judge Read observes in her concurrence, the authorities relied on by the majority discuss perpetual lease renewals, which are not at issue in this case. I therefore defer to the language of the statute and this Court’s prior discussions on the applicability of the rule against perpetuities to options on real estate in holding that an option to renew a lease is subject to EPTL 9-1.1 (b).

In *Symphony Space*, however, we recognized a limited exception to the strict application of the statutory rule against perpetuities for certain “options appurtenant” to a lease. We described an option appurtenant as one that (1) “originates in one of the lease provisions,” (2) “is not exercisable after lease expiration” and (3) “is incapable of separation from the lease” (88 NY2d at 480). An option appurtenant “is valid even though the holder’s interest may vest beyond the perpetuities period” because it “encourage[s] the possessory holder to invest in maintaining and developing the property by guaranteeing the option holder the ultimate benefit of any such investment” and “thus further[s] the policy objectives underlying the rule against remote vesting” (*id.*). Both courts below correctly employed the option appurtenant exception as the applicable legal principle in this case and other courts that have dealt with options to renew leases have used similar reasoning (*see e.g. Double C Realty Corp. v Craps, LLC*, 58 AD3d 480 [1st Dept 2009]; *Warren St. Assoc. v City Hall Tower Corp.*, 202 AD2d 200 [1st Dept 1994], *appeal withdrawn* 84 NY2d 865 [1994]).

There are important reasons why our Court should adhere to this limited exception to EPTL 9-1.1 (b) instead of creating a new category of interests in real property immunized from the rule against perpetuities. First, an option to renew a lease, whether for successive periods of time or in perpetuity, does not

have to be contained in the lease itself and may instead be created in a separate written document executed by the parties, perhaps after the lease has commenced or prior to expiration of the lease. If so, it could be drafted so that the ability to exercise the option is independent from the lease and unaffected by the tenant's nonperformance (*see Symphony Space*, 88 NY2d at 480). Since this arrangement would not qualify as an option appurtenant under *Symphony Space*, the majority is incorrect when it states that an option to renew a lease is always "exercisable pursuant to the lease agreement and, thus, inherently appurtenant to the lease" (majority op at 278).

Second, even if an option is set forth in a lease, it could be worded to allow the option to be exercised after the initial term of the lease has expired. This, of course, would provide a disincentive to the property owner to expend money for improvements to the leased space after the expiration of a tenancy since the option holder could wait until improvements were completed before exercising the option and retaking possession of the improved property at the price that was predetermined in the former lease. It would also impose a significant impediment to the owner's ability to sell the property at a fair market price because the tenant would have the power to resurrect the expired lease (if the required renewal notifications are not issued by the owner), thereby impeding a potential purchaser's ability to use and develop the property. The rule against perpetuities was designed to deter such barriers to transferability (*see Symphony Space*, 88 NY2d at 480-481).

These are just examples of the reasons why I believe *Symphony Space* presciently articulated the limited, three-prong "options appurtenant" exception to EPTL 9-1.1 (b). Applying that test to the facts of this case, the option to renew in the lease at issue violates the statutory rule against perpetuities for the reasons stated by the Appellate Division: the lease expressly provided that it would expire and the tenancy would become month-to-month if the renewal provisions were not exercised before the end of the lease's term; once that occurred, each month-to-month tenancy did not extend the period of the lease terms (*see 120 Bay St. Realty Corp. v City of New York*, 44 NY2d 907, 909 [1978]; *Kennedy v City of New York*, 196 NY 19, 23-24 [1909]); and the option nevertheless permitted the tenant to renew the lease after it had expired. The majority acknowledges this fact, noting the parties' agreement that the "renewal option could be exercised even after the original lease term had

expired” (majority op at 275). Under the *Symphony Space* test, I conclude that the option is void.²

Consequently, I would affirm the order of the Appellate Division.

Chief Judge LIPPMAN and Judges CIPARICK, SMITH and PIGOTT concur with Judge JONES; Judge READ concurs in result in a separate opinion; Judge GRAFFEO dissents and votes to affirm in another opinion.

Order reversed, etc.

2. I would also hold that the tenant’s argument premised on EPTL 9-1.3 is meritless.

[946 NE2d 166, 921 NYS2d 178]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAMONT BEASLEY, Appellant.

Argued February 16, 2011; decided March 24, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 12, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Neil Jon Firetog, J., on CPL 30.30 motion; Robert Kenneth Holdman, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the second degree.

People v Beasley, 69 AD3d 741, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Right to Speedy Trial

On a speedy trial motion pursuant to CPL 30.30, defendant failed to preserve his argument, made for the first time on appeal, that the People should be charged with the 13-day period between August 17, 2005, when the grand jury minutes were ordered to be produced for inspection, and August 30, 2005, when the People provided the grand jury minutes to the trial court. Defendant argued before Supreme Court that the 42-day period between August 17, 2005 and September 28, 2005, when the court decided the motion, was chargeable to the People. However, once the People set forth the statutory exclusions on which they intended to rely by responding that the entire 42-day period was excludable pursuant to CPL 30.30 (4) (a), defendant failed to identify the specific legal and factual impediments to those exclusions, specifically the argument that the 13-day period should be charged to the People for their failure to timely provide the grand jury minutes. It was defendant's duty to draw the court's attention to the discrete periods he later claimed on appeal were chargeable to the People pursuant to CPL 30.30 and to explain why. Defendant's failure to preserve his legal argument in Supreme Court precluded any further discussion or consideration of the merits of his claims.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review § 618; AM JUR 2d, Criminal Law §§ 948, 956.

CARMODY-WAIT 2d, Timeliness of Prosecution; Speedy Trial §§ 186:79, 186:86; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:149, 207:169.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 18.2, 27.5.

NY JUR 2d, Criminal Law: Procedure §§ 1915, 1927, 1929, 3456, 3459.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Speedy Trial.

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POINTS OF COUNSEL

Jeremy Gutman, New York City, for appellant. Lamont Beasley's conviction and sentence should be vacated, and the indictment dismissed, because the People were not ready for trial within the period mandated by CPL 30.30. (*People v Berkowitz*, 50 NY2d 333; *People v Cortes*, 80 NY2d 201; *People v Stirrup*, 91 NY2d 434; *People v McKenna*, 76 NY2d 59; *People v England*, 84 NY2d 1; *People v Brewer*, 63 AD3d 402; *People v Liotta*, 79 NY2d 841; *People v Daniels*, 217 AD2d 448; *People v Meierdiercks*, 68 NY2d 613; *People v Anderson*, 66 NY2d 529.)

Charles J. Hynes, District Attorney, Brooklyn (*Ann Bordley* and *Leonard Joblove* of counsel), for respondent. Defendant's claim concerning the CPL 30.30 ruling is unpreserved and meritless. (*People v Goode*, 87 NY2d 1045; *People v Luperon*, 85 NY2d 71; *People v Hawkins*, 11 NY3d 484; *People v Sinistaj*, 67 NY2d 236; *People v Osgood*, 52 NY2d 37; *People v Cortes*, 80 NY2d 201; *People v Kendzia*, 64 NY2d 331; *People v Carter*, 91 NY2d 795; *People v Vaughn*, 36 AD3d 434, 552 US 1284; *People v Goss*, 87 NY2d 792.)

OPINION OF THE COURT

CIPARICK, J.

On May 5, 2005, defendant Lamont Beasley was arraigned on a felony complaint charging him with criminal possession of a controlled substance in the second degree and lesser offenses. The matter was presented to a grand jury and, on May 27, 2005, an indictment was filed and the People announced their readiness for trial. On June 15, 2005, defendant was arraigned on the indictment and Supreme Court adjourned the matter to August 17, 2005, ordering open file discovery and production of the grand jury minutes for inspection pursuant to defendant's motion to dismiss the indictment. On August 17, 2005, the People failed to produce the grand jury minutes and informed

the court that they would produce the minutes “off calendar.” Supreme Court adjourned the proceedings to September 28, 2005. The People provided the grand jury minutes to chambers on August 30, 2005. Supreme Court decided the motion on September 28, 2005.

Subsequent adjournments ensued not relevant to this appeal and, on September 12, 2006, defendant moved pursuant to CPL 30.30 (1) (a) to dismiss the charges on the basis that the People had exceeded the statutory limit of six months (in this case, 184 days) in bringing the matter to trial. The affirmation filed in support of the motion argued inter alia that, “[o]n August 17, 2005, the People represented the grand jury minutes will be provided off calendar and the matter was adjourned to September 28, 2005. The period of August 17, 2005 to September 28, 2005, a total of 42 days, are chargeable to the People.” The People in response argued that, pursuant to CPL 30.30 (4) (a), the 42-day period between August 17, 2005 and September 28, 2005, during which the decision on the sufficiency of the grand jury minutes was still pending, was excludable. Defendant did not file a reply, nor was there oral argument on the motion.

Defendant never argued that the 42-day period should be broken down into smaller periods reflecting the pre and post production of the grand jury minutes. In fact, defendant made no argument at all refuting the People’s contention that the entire period was excludable. Supreme Court denied the motion, charging the People with 173 days of delay, and the matter proceeded to trial. Defendant was convicted of criminal possession of a controlled substance in the second degree and sentenced as a second felony drug offender to 12 years in prison and five years of postrelease supervision.

A divided Appellate Division affirmed the judgment of conviction, finding that the entire 42-day period between August 17, 2005 and September 28, 2005 was excludable (*People v Beasley*, 69 AD3d 741 [2d Dept 2010]). The dissenting Justices concluded that the 13-day period from August 17, 2005, the date set for open file discovery and production of the grand jury minutes, to August 30, 2005, the date the minutes were actually produced, should be chargeable to the People. The dissent noted that failure to provide grand jury minutes “[is] a direct, and virtually insurmountable, impediment to the trial’s very commencement” (*Beasley*, 69 AD3d at 747, quoting *People v McKenna*, 76 NY2d 59, 64 [1990]). Thus the dissenting Justices would have added

13 days to the 173 found by Supreme Court for a total of 186 days, a clear speedy trial violation mandating dismissal of the indictment. A Justice of the Appellate Division granted defendant leave to appeal (14 NY3d 895 [2010]) and we now affirm, on different grounds.

On this appeal, defendant argues, for the very first time, that the People should be charged with the discrete 13-day period between August 17th and August 30th. This argument was not properly preserved at Supreme Court and therefore we cannot review it (*see* CPL 470.05 [2]).

The procedure for preserving an argument in a CPL 30.30 motion is well established.

“A defendant seeking a speedy trial dismissal pursuant to CPL 30.30 meets his or her initial burden on the motion simply by alleging only that the prosecution failed to declare readiness within the statutorily prescribed time period. However, once the People identify the statutory exclusions on which they intend to rely, the defendant preserves challenges to the People’s reliance on those exclusions for appellate review by identifying any legal or factual impediments to the use of those exclusions” (*People v Goode*, 87 NY2d 1045, 1047 [1996] [citations, internal quotation marks and brackets omitted]).

Here, defendant met his initial burden. However, once the People set forth the statutory exclusions on which they intended to rely, defendant failed to identify the specific legal and factual impediments to those exclusions, specifically the argument that the People should be charged with the 13 days between August 17th and August 30th for failing to timely provide the grand jury minutes. Because defendant failed to raise this argument before the Supreme Court, he has preserved no question of law for our review (*see People v Luperon*, 85 NY2d 71, 77 [1995]).

Defendant argues that all the information the trial court required was contained in the People’s affirmation, which stated that the grand jury minutes were not produced until August 30, 2005, and therefore, the trial court had all the information it needed to “remedy the problem and thereby avert reversible error” (*id.* at 78). This argument is unavailing. Nothing in the People’s affirmation would have alerted the trial court that

defendant was claiming that the People should be charged with 13 days of postreadiness delay due to the untimely production of the grand jury minutes. It was defendant's duty, either in his initial submission or in a reply, to draw the court's attention to the discrete periods that he now claims should have been chargeable to the People pursuant to CPL 30.30 and to explain why. Not only did defendant fail to highlight the 13-day period, he failed to offer any legal basis for his claim that the entire 42-day period was chargeable as postreadiness delay, or rebut in any way the People's contention that the 42-day period fell within one of the exemptions.

Defense counsel's obligation to point out the legal or factual impediments to the People's arguments is a rule to be "adher[ed] to strict[ly]" (*Goode*, 87 NY2d at 1047). That the trial court has all the factual information before it is immaterial. "[I]t is defense counsel who is charged with the single-minded, zealous representation of the client and thus, of all the trial participants, it is defense counsel who best knows the argument to be advanced on the client's behalf" (*People v Hawkins*, 11 NY3d 484, 492 [2008] [reviewing claim of legal insufficiency]). Defendant's failure to preserve his legal argument in Supreme Court precludes any further discussion or consideration of the merits of his claims.

Accordingly, the order of the Appellate Division should be affirmed.

SMITH, J. (concurring). I think the preservation here was adequate. Defendant argued that 42 days of time were chargeable to the People because of their failure to furnish the grand jury minutes promptly; that should be read as encompassing an argument that the first 13 days of that time were so chargeable for the exact same reason. It is not fair or realistic to insist that a defense lawyer follow arguments of this kind with a diminuendo sequence ("all three weeks are chargeable to the People, but if not the first two weeks are, and if not that the first week, and if not that the first three days . . ."). This affirmance on preservation grounds will only encourage prosecutors in their already well-established tendency to pounce on every arguable imperfection in a defense lawyer's argument as a barrier to deciding a case on the merits.

I would reach the merits and would affirm the Appellate Division's order, essentially for the reasons stated by the Appellate Division majority.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, PIGOTT and JONES concur with Judge CIPARICK; Judge SMITH concurs in result in a separate opinion.

Order affirmed.

[946 NE2d 159, 921 NYS2d 171]

PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,
Respondent.

Argued February 9, 2011; decided March 24, 2011

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “In copyright infringement cases, is the situs of injury for purposes of determining long-arm jurisdiction under N.Y. C.P.L.R. § 302 (a) (3) (ii) the location of the infringing action or the residence or location of the principal place of business of the copyright holder?”

HEADNOTE

Courts — Jurisdiction — Long-Arm Jurisdiction — Copyright Infringement

Under the circumstances of a copyright infringement case involving the uploading of copyrighted printed literary works onto the Internet, the situs of injury for purposes of determining long-arm jurisdiction under CPLR 302 (a) (3) (ii) was the location of the principal place of business of the plaintiff copyright holder. A plaintiff relying on CPLR 302 (a) (3) (ii) to establish personal jurisdiction over an out-of-state defendant must show, among other things, that the tortious act caused injury in New York. A New York copyright owner alleging infringement sustains an in-state injury pursuant to the statute when its printed literary work is uploaded without permission onto the Internet for public access. The Internet’s digital environment poses a unique threat to the rights of copyright owners, and the crux of an infringement claim is not merely the unlawful uploading, but the instantaneous availability of the copyrighted works to anyone in the world. Moreover, given the multifaceted nature of rights granted to copyright owners, including the right to reproduce, distribute, perform, display or prepare derivative works, infringement of a copyright may result in more than an indirect financial loss, such as diminishment of the incentive to create, and produce harm irreparable in light of possible market confusion. The location of the infringement in online cases is of little import inasmuch as the primary aim of the infringer is to make the works available to anyone with access to the Internet. In addition, the absence of any evidence of actual downloading of copyrighted material by New York users is not fatal to a finding that the alleged injury occurred in New York.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Copyright and Literary Property § 209; AM
JUR 2d, Process §§ 159, 165, 170.

CARMODY-WAIT 2d, Jurisdiction in Personam and in Rem §§ 25:49, 25:50, 25:54.

McKINNEY's, CPLR 302 (a) (3) (ii).

NY JUR 2d, Courts and Judges §§ 662, 663, 669; NY JUR 2d, Literary and Artistic Property §§ 20, 24.

SIEGEL, NY PRAC § 87.

ANNOTATION REFERENCE

Web site activities of nonresident person or corporation as conferring personal jurisdiction under long-arm statutes and due process clause. 81 ALR5th 41.

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POINTS OF COUNSEL

Cowan Liebowitz & Latman, P.C., New York City (Richard Dannay and Thomas Kjellberg of counsel), for appellant. I. The dominant role of the Internet in commerce and culture illustrates the justification for the rule that out-of-state copyright infringement injures New York authors and publishers and their copyrights in New York. (*Farkas v Farkas*, 36 AD3d 852; *McGraw-Hill Cos., Inc. v Ingenium Techs. Corp.*, 375 F Supp 2d 252; *Mario Valente Collezioni, Ltd. v Confezioni Semeraro Paolo, S.R.L.*, 115 F Supp 2d 367; *Cello Holdings, L.L.C. v Lawrence-Dahl Cos.*, 89 F Supp 2d 464; *Brandt v Toraby*, 273 AD2d 429; *Peterson v Spartan Indus.*, 33 NY2d 463; *Exclaim Assoc. Ltd. v Nygate*, 10 Misc 3d 1063[A], 2005 NY Slip Op 52106[U].) II. The legislative history and the remedial purpose of CPLR 302 (a) (3), and New York case law, compel recognition that copyright infringement injures New York authors and publishers and their copyrights in New York. (*Feathers v McLucas*, 15 NY2d 443; *Reyes v Sanchez-Pena*, 191 Misc 2d 600.) III. "Injury" under CPLR 302 (a) (3) does not occur only where the initial tort is committed. (*Kramer v Hotel Los Monteros S. A.*, 57 AD2d 756; *Carte v Parkoff*, 152 AD2d 615; *Hermann v Sharon Hosp.*, 135 AD2d 682; *McGowan v Smith*, 52 NY2d 268; *Ingraham v Carroll*, 90 NY2d 592; *Iconoclast Advisers LLC v Petro-Suisse Ltd.*, 17 Misc 3d 1101[A], 2007 NY Slip Op 51784[U].) IV. The statute itself anticipates and obviates a "Pandora's box." (*Kramer v Hotel Los Monteros S. A.*, 57 AD2d 756; *Reyes v Sanchez-Pena*, 191 Misc 2d 600; *Ingraham v Carroll*, 90 NY2d 592; *Royalty*

Network Inc. v Dishant.com, LLC, 638 F Supp 2d 410; *McGraw-Hill Cos., Inc. v Ingenium Techs. Corp.*, 375 F Supp 2d 252; *McGowan v Smith*, 52 NY2d 268; *Allen v Auto Specialties Mfg. Co.*, 45 AD2d 331.) V. This Court has already applied CPLR 302 (a) (3) (ii) in the intellectual property context. (*Sybron Corp. v Wetzel*, 46 NY2d 197; *Friedr. Zoellner [New York] Corp. v Tex Metals Co.*, 396 F2d 300; *Sung Hwan Co., Ltd. v Rite Aid Corp.*, 7 NY3d 78.) VI. Injury to a New York copyright owner comprises more than derivative economic injury in New York. (*Taylor Corp. v Four Seasons Greetings, LLC*, 403 F3d 958; *Capitol Records Inc. v Thomas-Rasset*, 680 F Supp 2d 1045; *Christopher Phelps & Assoc., LLC v Galloway*, 492 F3d 532; *Sardi's Rest. Corp. v Sardie*, 755 F2d 719; *Warner Bros. Entertainment Inc. v RDR Books*, 575 F Supp 2d 513; *Universal City Studios, Inc. v Reimerdes*, 111 F Supp 2d 294, *affd sub nom. Universal City Studios, Inc. v Corley*, 273 F3d 429; *Fantis Foods v Standard Importing Co.*, 49 NY2d 317.) VII. New York has a substantial interest in providing its authors and publishers with convenient and effective redress for injuries arising from copyright infringement. (*In re Charter Communications, Inc.*, 393 F3d 771; *World-Wide Volkswagen Corp. v Woodson*, 444 US 286; *McGee v International Life Ins. Co.*, 355 US 220; *Calder v Jones*, 465 US 783; *Kulko v Superior Court of Cal., City & County of San Francisco*, 436 US 84; *Shaffer v Heitner*, 433 US 186.) VIII. American Buddha's activities are far beyond merely local in character. (*LaMarca v Pak-Mor Mfg. Co.*, 95 NY2d 210; *Grimaldi v Guinn*, 72 AD3d 37; *Farkas v Farkas*, 36 AD3d 852; *Allen v Canadian Gen. Elec. Co.*, 65 AD2d 39; *Energy Brands Inc. v Spiritual Brands, Inc.*, 571 F Supp 2d 458; *Ingraham v Carroll*, 90 NY2d 592; *McGowan v Smith*, 52 NY2d 268.)

Online Media Law, PLLC (Charles H. Carreon, of the Arizona bar, admitted pro hac vice, of counsel), for respondent. I. Congress expressly preempted the field of copyright law; thus, an affirmative answer to the certified question would impermissibly intrude upon the exclusive jurisdiction of the federal courts. (*Durham Indus., Inc. v Tomy Corp.*, 630 F2d 905; *Cipollone v Liggett Group, Inc.*, 505 US 504; *United States v Price*, 361 US 304.) II. The District Court decision was correct under New York law. (*Ruhrgas AG v Marathon Oil Co.*, 526 US 574; *Insurance Corp. of Ireland v Compagnie des Bauxites de Guinee*, 456 US 694; *DiStefano v Carozzi N. Am., Inc.*, 286 F3d 81; *Bank Brussels Lambert v Fiddler Gonzalez & Rodriguez*, 171 F3d 779; *Best Van Lines, Inc. v Walker*, 490 F3d 239; *Fantis Foods v Standard Importing Co.*, 49 NY2d 317; *University Sports Publs.*

Co., Inc. v Rizzo, 14 Misc 3d 1211[A], 2006 NY Slip Op 52488[U].) III. The certifying panel has invited this Court into error by proposing a course of action that would certainly result in an erroneous decision. (*Sybron Corp. v Wetzel*, 46 NY2d 197; *Goldstein v California*, 412 US 546; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Metropolitan Life Ins. Co. v Massachusetts*, 471 US 724; *Teamsters v Lucas Flour Co.*, 369 US 95; *Bates v Dow Agrosciences LLC*, 544 US 431; *Shaw v Delta Air Lines, Inc.*, 463 US 85; *Felder v Casey*, 487 US 131; *Free v Bland*, 369 US 663.) IV. The law of personal jurisdiction would be rendered ridiculous if this Court were to attempt to prescribe the situs of injury based on the type of rights that plaintiff alleged were injured. V. Answering the certified question in the affirmative would not resolve the instant case and in fact would result in another dismissal for lack of jurisdiction by the District Court after remand. VI. The District Court properly held that Digital Millennium Copyright Act procedures, the merits, and the literary efforts of opposing counsel were irrelevant. (*Sterling Natl. Bank & Trust Co. of N.Y. v Fidelity Mtge. Invs.*, 510 F2d 870; *Galgay v Bulletin Co., Inc.*, 504 F2d 1062; *Arlio v Lively*, 474 F3d 46.)

Public Citizen Litigation Group (Michael H. Page, of the District of Columbia bar, admitted pro hac vice, of counsel), for Public Citizen, amicus curiae. I. This Court's decisions involving the situs of injury in commercial tort cases are controlling here. (*Sybron Corp. v Wetzel*, 46 NY2d 197; *Zippo Mfg. Co. v Zippo Dot Com, Inc.*, 952 F Supp 1119.) II. Under *Sybron Corp. v Wetzel* (46 NY2d 197 [1978]) and its progeny, the situs of injury under CPLR 302 (a) (3) is generally where the critical events associated with the dispute took place, which might include where major customers are actively solicited away. (*Feathers v McLucas*, 15 NY2d 443; *Spectacular Promotions, Inc. v Radio Sta. WING*, 272 F Supp 734; *American Eutectic Welding Alloys Sales Co. Inc. v Dytron Alloys Corp.*, 439 F2d 428; *Friedr. Zoellner [New York] Corp. v Tex Metals Co.*, 396 F2d 300; *Fantis Foods v Standard Importing Co.*, 49 NY2d 317; *Davidson Extrusions v Touche Ross & Co.*, 131 AD2d 421; *Interface Biomedical Labs. Corp. v Axiom Med., Inc.*, 600 F Supp 731; *Benifits by Design Corp. v Contractor Mgt. Servs., LLC*, 75 AD3d 826; *Polansky v Gelrod*, 20 AD3d 663.) III. Penguin Group (USA) Inc.'s interpretation of CPLR 302 (a) (3) is inconsistent with New York Legislature's desire to avoid chilling speech. (*American Eutectic Welding Alloys Sales Co., Inc. v Dytron Alloys Corp.*, 439 F2d 428; *Spectacular Promotions, Inc. v Radio Sta. WING*, 272 F Supp 734; *Ehrenfeld v Bin Mahfouz*, 9 NY3d 501; *Legros*

v Irving, 38 AD2d 53; *Montgomery v Minarcin*, 263 AD2d 665; *New York Times Co. v Sullivan*, 376 US 254.)

Kilpatrick Stockton LLP, New York City (*Marc Lieberstein* of counsel), for International Trademark Association, amicus curiae. The Court of Appeals should answer only the Second Circuit's certified question as it relates to copyrights. (*Los Angeles v Lyons*, 461 US 95; *Long Is. Light. Co. v County of Suffolk, N.Y.*, 604 F Supp 759; *Chloé v Queen Bee of Beverly Hills, LLC*, 616 F3d 158; *Dastar Corp. v Twentieth Century Fox Film Corp.*, 539 US 23; *Energy Brands Inc. v Spiritual Brands, Inc.*, 571 F Supp 2d 458; *PDK Labs., Inc. v Proactive Labs., Inc.*, 325 F Supp 2d 176; *Citigroup Inc. v City Holding Co.*, 97 F Supp 2d 549.)

Davis Wright Tremaine LLP, New York City (*Elizabeth A. McNamara* of counsel), for American Association of Publishers and others, amici curiae. I. Digital piracy causes direct injury to publishers in New York. (*Sybron Corp. v Wetzel*, 46 NY2d 197; *Sung Hwan Co., Ltd. v Rite Aid Corp.*, 7 NY3d 78; *Fantis Foods v Standard Importing Co.*, 49 NY2d 317; *Kramer v Hotel Los Monteros S. A.*, 57 AD2d 756; *Weiss v Greenberg, Traurig, Askew, Hoffman, Lipoff, Quentel & Wolff*, 85 AD2d 861; *McGraw-Hill Cos., Inc. v Ingenium Techs. Corp.*, 375 F Supp 2d 252; *Cello Holdings, L.L.C. v Lawrence-Dahl Cos.*, 89 F Supp 2d 464; *Mario Valente Collezioni, Ltd. v Confezioni Semeraro Paola, S.R.L.*, 115 F Supp 2d 367.) II. An understanding of copyright law informs the nature of the injury experienced by publishers whose works are pirated and makes plain that such publishers have been injured within the state under CPLR 302 (a) (3). (*Sybron Corp. v Wetzel*, 46 NY2d 197; *DiStefano v Carozzi N. Am., Inc.*, 286 F3d 81; *Salinger v Colting*, 607 F3d 68; *Sung Hwan Co., Ltd. v Rite Aid Corp.*, 7 NY3d 78; *eBay Inc. v Merc-Exchange, L. L. C.*, 547 US 388; *Twentieth Century Music Corp. v Aiken*, 422 US 151; *Princeton Univ. Press v Michigan Document Servs., Inc.*, 99 F3d 1381; *Basic Books, Inc. v Kinko's Graphics Corp.*, 758 F Supp 1522; *Fox Film Corp. v Doyal*, 286 US 123; *Merkos L'Inyonei Chinuch, Inc. v Otsar Sifrei Lubavitch, Inc.*, 312 F3d 94.) III. New York law recognizes the importance of publishing to the state. (*Immuno AG. v Moor-Jankowski*, 77 NY2d 235; *Matter of Beach v Shanley*, 62 NY2d 241; *Davis v Costa-Gavras*, 580 F Supp 1082.)

OPINION OF THE COURT

GRAFFEO, J.

The United States Court of Appeals for the Second Circuit has asked us a question regarding the scope of long-arm

jurisdiction under CPLR 302 (a) (3) (ii) in the context of a federal copyright infringement action.

Plaintiff Penguin Group (USA) is a large trade book publisher with its principal place of business in New York City. Defendant American Buddha is an Oregon not-for-profit corporation whose principal place of business is in Arizona. It operates two Web sites—the American Buddha Online Library and the Ralph Nader Library¹—that are hosted on servers located in Oregon and Arizona.

Penguin commenced this copyright infringement action against American Buddha in the United States District Court for the Southern District of New York, alleging that American Buddha infringed on Penguin's copyrights to four books: "Oil!" by Upton Sinclair; "It Can't Happen Here" by Sinclair Lewis; "The Golden Ass" by Apuleius, as translated by E.J. Kenney; and "On the Nature of the Universe" by Lucretius, as translated by R.E. Latham. The complaint alleges that American Buddha published complete copies of these works on its two Web sites, making them available free of charge to its 50,000 members and anyone with an Internet connection. The electronic copying and uploading of the works was apparently undertaken in Oregon or Arizona.

American Buddha's Web sites assure its users that its uploading of these works and the users' downloading of them do not constitute copyright infringement because they are protected under sections 107 and 108 of the Copyright Act (17 USC § 101 *et seq.*), which govern fair use and reproduction by libraries and archives. Penguin disputes that any exception to the Copyright Act applies to American Buddha's activities.

American Buddha moved to dismiss the complaint for lack of personal jurisdiction, arguing that its ties to New York were too insubstantial. In response, Penguin asserted that it had secured long-arm jurisdiction over American Buddha by virtue of CPLR 302 (a) (3) (ii), which provides jurisdiction over nondomiciliaries who commit tortious acts outside the state that result in injuries within New York. American Buddha countered that CPLR 302 (a) (3) (ii) was inapplicable because Penguin did not suffer an in-state injury.

The District Court granted American Buddha's motion and dismissed the complaint, holding that Penguin was injured in

1. The Ralph Nader Library is not affiliated with Ralph Nader.

Oregon or Arizona, where the copying and uploading of the books took place (2009 WL 1069158, 2009 US Dist LEXIS 34032 [SD NY]). The court determined that Penguin suffered only a “purely derivative economic injury” in New York based on its domicile here, which was insufficient to trigger CPLR 302 (a) (3) (ii). (2009 WL 1069158 at *4, 2009 US Dist LEXIS 34032 at *11.) Although the court acknowledged that the Internet could be a complicating factor in analyzing personal jurisdiction, it concluded that the Internet played “no role in determining the situs of [Penguin’s] alleged injury” since the claimed infringement occurred in Oregon or Arizona. (2009 WL 1069158 at *4, 2009 US Dist LEXIS 34032 at *12.)

Recognizing a split of authority in the New York district courts regarding the application of CPLR 302 (a) (3) (ii) to copyright infringement cases against out-of-state defendants, the Second Circuit certified the following question to us:

“In copyright infringement cases, is the situs of injury for purposes of determining long-arm jurisdiction under N.Y. C.P.L.R. § 302 (a) (3) (ii) the location of the infringing action or the residence or location of the principal place of business of the copyright holder?” (609 F3d 30, 32 [2d Cir 2010].)

The Second Circuit invited this Court to “alter this question as it should deem appropriate” (*id.* at 42) and noted that, “in the context of certifying a question to the New York Court of Appeals[,] . . . the allegation of distribution over the Internet may be a factor in the Court’s interpretation of the statute in question” (*id.* at 39).²

Because the Internet plays a significant role in this case, we narrow and reformulate the certified question to read:

“In copyright infringement cases involving the uploading of a copyrighted printed literary work onto the Internet, is the situs of injury for purposes of determining long-arm jurisdiction under N.Y.

2. The Second Circuit also stated that “[t]here is a possible question at the threshold that neither the district court nor the parties have addressed and which we do not here decide: whether a copyright—in and of itself an intangible thing—has a physical location for jurisdictional purposes and, if so, what that location is” (609 F3d at 36 n 4). The Second Circuit resolved to “accept for the purposes of this appeal the district court’s implicit conclusion that copyrights have a location and that their location in this case is in New York State” (*id.*). We, too, accept this characterization in answering the certified question.

C.P.L.R. § 302 (a) (3) (ii) the location of the infringing action or the residence or location of the principal place of business of the copyright holder?”

In answer to this reformulated question and under the circumstances of this case, we conclude it is the location of the copyright holder.

CPLR 302 (a) (3) (ii) allows a court in New York to exercise personal jurisdiction over an out-of-state defendant when the nondomiciliary:

“3. commits a tortious act without the state causing injury to person or property within the state, except as to a cause of action for defamation of character arising from the act, if he . . .

“(ii) expects or should reasonably expect the act to have consequences in the state and derives substantial revenue from interstate or international commerce.”

Consequently, a plaintiff relying on this statute must show that (1) the defendant committed a tortious act outside New York; (2) the cause of action arose from that act; (3) the tortious act caused an injury to a person or property in New York; (4) the defendant expected or should reasonably have expected the act to have consequences in New York; and (5) the defendant derived substantial revenue from interstate or international commerce (*see LaMarca v Pak-Mor Mfg. Co.*, 95 NY2d 210, 214 [2000]). If these five elements are met, a court must then assess whether a finding of personal jurisdiction satisfies federal due process (*see id.* at 216). The only issue before us concerns the third requirement—whether an out-of-state act of copyright infringement has caused injury in New York.

Penguin, supported by amici curiae American Association of Publishers and other national publishing organizations, argues that a New York-based copyright holder sustains an injury in New York for purposes of CPLR 302 (a) (3) (ii) when its copyright is infringed through the out-of-state uploading of its protected work onto the Internet. American Buddha and amicus curiae Public Citizen respond that this case is controlled by *Fantis Foods v Standard Importing Co.* (49 NY2d 317 [1980]), where we held that a derivative economic injury felt in New York based solely on the domicile of the plaintiff is insufficient to establish an in-state injury within the meaning of the statute. Both parties raise compelling arguments.

Our analysis begins with *Fantis Foods*, where we found personal jurisdiction to be lacking in the absence of a “direct injury” within New York. In that case, Standard, a New York wholesaler of feta cheese, asserted a claim for conversion against a Greek entity that had diverted a cheese shipment—meant to be shipped to Standard in Chicago—to a competitor while the shipment was in Greece or on the high seas. We concluded that personal jurisdiction over the Greek defendant did not lie under CPLR 302 (a) (3) (ii) because:

“In final analysis the only possible connection between the claimed conversion and any injury or foreseeable consequence in New York is the fact that Standard is incorporated and maintains offices there. It has, however, long been held that the residence or domicile of the injured party within a State is not a sufficient predicate for jurisdiction, which must be based upon a more direct injury within the State and a closer expectation of consequences within the State than the indirect financial loss resulting from the fact that the injured person resides or is domiciled there” (*id.* at 326).

In a different commercial tort context, in *Sybron Corp. v Wetzel* (46 NY2d 197 [1978]), we held that an injury had occurred in New York under CPLR 302 (a) (3) (ii). The defendant in *Sybron*, a nondomiciliary corporation, hired a former employee of Sybron—a competitor engaged in manufacturing in New York—allegedly to obtain Sybron’s protected trade secrets. Recognizing that the locus of injury in commercial cases “is not as readily identifiable as it is in torts causing physical harm” (*id.* at 205), we determined that Sybron sustained a sufficiently direct injury in New York to support jurisdiction under CPLR 302 (a) (3) (ii) since its claim was based on more than just its in-state domicile. Rather, Sybron had alleged that it acquired the trade secrets at issue in New York and, further, that the defendant’s unfair competition threatened to pilfer Sybron’s significant New York customers.

Fantis Foods and *Sybron* both cited favorably to *American Eutectic Welding Alloys Sales Co. v Dytron Alloys Corp.* (439 F2d 428 [2d Cir 1971]). There, the plaintiffs, two related New York corporations, brought an action against an out-of-state competitor alleging that it induced their employees to work for the competitor and to use confidential information to lure away plaintiffs’ customers in Kentucky and Pennsylvania. The Second

Circuit identified three options for determining the situs of injury under CPLR 302 (a) (3) (ii) in a commercial tort case: “(1) any place where plaintiff does business; (2) the principal place of business of the plaintiff; and (3) the place where plaintiff lost business” (*id.* at 433, quoting *Spectacular Promotions, Inc. v Radio Sta. WING*, 272 F Supp 734, 737 [ED NY 1967, Weinstein, J.]). The court determined that the third choice “seem[ed] most apt,” observing that “[t]he place where the plaintiff lost business would normally be a forum reasonably foreseeable by a tortfeasor” (*id.*). Because plaintiffs alleged a loss of business only in Kentucky and Pennsylvania, the claim against the competitor was dismissed for lack of personal jurisdiction in New York. The court rejected plaintiffs’ reliance on their New York domicile, reasoning that any “derivative commercial injury” predicated on a loss of sales in other states was too remote to establish an in-state injury within the meaning of the statute (*id.*).

The injury in the case before us is more difficult to identify and quantify because the alleged infringement involves the Internet, which by its nature is intangible and ubiquitous. But the convergence of two factors persuades us that a New York copyright owner alleging infringement sustains an in-state injury pursuant to CPLR 302 (a) (3) (ii) when its printed literary work is uploaded without permission onto the Internet for public access. First, it is clear that the Internet itself plays an important role in the jurisdictional analysis in the specific context of this case. It is widely recognized that “the digital environment poses a unique threat to the rights of copyright owners” and that “digital technology enables pirates to reproduce and distribute perfect copies of works—at virtually no cost at all to the pirate” (House Commerce Comm Rep on Digital Millennium Copyright Act of 1998, HR Rep 551, 105th Cong, 2d Sess, at 25, reprinted in 10 Nimmer on Copyright, Appendix 53, at 37). Indeed, the rate of e-book piracy has risen in conjunction with the increasing popularity of electronic book devices (*see* Trivedi, *Writing the Wrong: What the E-Book Industry Can Learn from Digital Music’s Mistakes with DRM*, 18 JL & Pol’y 925, 928 [2010]).

The crux of Penguin’s copyright infringement claim is not merely the unlawful electronic copying or uploading of the four copyrighted books. Rather, it is the intended consequence of those activities—the instantaneous availability of those copyrighted works on American Buddha’s Web sites for anyone, in New York or elsewhere, with an Internet connection to read

and download the books free of charge.³ Unlike *American Eutectic*, where the locus of injury was clearly circumscribed to two other states, the alleged injury in this case involves online infringement that is dispersed throughout the country and perhaps the world. In cases of this nature, identifying the situs of injury is not as simple as turning to “the place where plaintiff lost business” (*American Eutectic*, 439 F2d at 433) because there is no singular location that fits that description.

As a result, although it may make sense in traditional commercial tort cases to equate a plaintiff’s injury with the place where its business is lost or threatened, it is illogical to extend that concept to online copyright infringement cases where the place of uploading is inconsequential and it is difficult, if not impossible, to correlate lost sales to a particular geographic area. In short, the out-of-state location of the infringing conduct carries less weight in the jurisdictional inquiry in circumstances alleging digital piracy and is therefore not dispositive.

The second critical factor that tips the balance in favor of identifying New York as the situs of injury derives from the unique bundle of rights granted to copyright owners. The Copyright Act gives owners of copyrighted literary works five “exclusive rights,” which include the right of reproduction; the right to prepare derivative works; the right to distribute copies by sale, rental, lease or lending; the right to perform the work publicly; and the right to display the work publicly (*see* 17 USC § 106). Hence, a copyright holder possesses an overarching “right to exclude others from using his property” (*eBay Inc. v MercExchange, L. L. C.*, 547 US 388, 392 [2006] [internal quotation marks and citation omitted]).

Based on the multifaceted nature of these rights, a New York copyright holder whose copyright is infringed suffers something more than the indirect financial loss we deemed inadequate in *Fantis Foods*. For instance, one of the harms arising from copyright infringement is the loss or diminishment of the incentive to publish or write (*see Twentieth Century Music Corp. v Aiken*, 422 US 151, 156 [1975]; *see also Princeton Univ. Press v Michigan Document Servs., Inc.*, 99 F3d 1381, 1391 [6th Cir 1996], *cert denied* 520 US 1156 [1997] [“(P)ublishers obviously need economic incentives to publish scholarly works . . . If publishers cannot look forward to receiving permission fees, why should

3. Of course, we take no position on the merits of Penguin’s claims.

they continue publishing marginally profitable books at all? And how will artistic creativity be stimulated if the diminution of economic incentives for publishers to publish academic works means that fewer academic works will be published?”)]. And, the harm to a plaintiff’s property interest in copyright infringement cases “has often been characterized as irreparable in light of possible market confusion” (*Salinger v Colting*, 607 F3d 68, 81 [2d Cir 2010]).

Moreover, the absence of any evidence of the actual downloading of Penguin’s four works by users in New York is not fatal to a finding that the alleged injury occurred in New York.⁴ In *Sybron*, we made clear that a tort committed outside the state that was likely to cause harm through the loss of business inside the state was sufficient to establish personal jurisdiction regardless of whether damages were likely recoverable or even ascertainable (see 46 NY2d at 204; see also *Sung Hwan Co., Ltd. v Rite Aid Corp.*, 7 NY3d 78, 85 [2006]). Courts often issue injunctive relief in copyright infringement cases to halt impermissible uses because “to prove the loss of sales due to infringement is . . . notoriously difficult” (*Salinger*, 607 F3d at 81 [internal quotation marks and citation omitted]). In any event, it is undisputed that American Buddha’s Web sites are accessible by any New Yorker with an Internet connection and, as discussed, an injury allegedly inflicted by digital piracy is felt throughout the United States, which necessarily includes New York.

In sum, the role of the Internet in cases alleging the uploading of copyrighted books distinguishes them from traditional commercial tort cases where courts have generally linked the injury to the place where sales or customers are lost. The location of the infringement in online cases is of little import inasmuch as the primary aim of the infringer is to make the works available to anyone with access to an Internet connection, including computer users in New York. In addition, the injury to a New York copyright holder, while difficult to quantify, is not as remote as a purely indirect financial loss due to the broad spectrum of rights accorded by copyright law. The concurrence of these two elements—the function and nature of the Internet and the diverse ownership rights enjoyed by copyright

4. In its brief, Penguin asserts that its claim is solely against American Buddha and that it is “loath to sue its readers,” particularly where they are assured by American Buddha’s Web sites that downloading the works contained therein would not constitute copyright infringement.

holders situated in New York—leads us to view this case as closer to *Sybron* than *Fantis Foods*. Thus, we conclude that the alleged injury in this case occurred in New York for purposes of CPLR 302 (a) (3) (ii).⁵

Finally, contrary to American Buddha’s assertion, our decision today does not open a Pandora’s box allowing any nondomiciliary accused of digital copyright infringement to be haled into a New York court when the plaintiff is a New York copyright owner of a printed literary work. Rather, CPLR 302 (a) (3) (ii) incorporates built-in safeguards against such exposure by requiring a plaintiff to show that the nondomiciliary both “expects or should reasonably expect the act to have consequences in the state” and, importantly, “derives substantial revenue from interstate or international commerce.” There must also be proof that the out-of-state defendant has the requisite “minimum contacts” with the forum state and that the prospect of defending a suit here comports with “traditional notions of fair play and substantial justice,” as required by the Federal Due Process Clause (*International Shoe Co. v Washington*, 326 US 310, 316 [1945] [internal quotation marks and citation omitted]; see also *World-Wide Volkswagen Corp. v Woodson*, 444 US 286, 291-292 [1980]). These issues are beyond the scope of this certified question and their resolution awaits further briefing before the federal courts.

Accordingly, as reformulated, the certified question should be answered in accordance with this opinion.

Chief Judge LIPPMAN and Judges CIPARICK, READ, SMITH, PIGOTT and JONES concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of the Court of Appeals (22 NYCRR 500.27), and after hearing

5. We do not find it necessary to address whether a New York copyright holder sustains an in-state injury pursuant to CPLR 302 (a) (3) (ii) in a copyright infringement case that does not allege digital piracy and, therefore, express no opinion on that question (compare *McGraw-Hill Cos., Inc. v Ingenium Tech. Corp.*, 375 F Supp 2d 252, 256 [SD NY 2005] [“The torts of copyright and trademark infringement cause injury in the state where the allegedly infringed intellectual property is held”] with *Freeplay Music, Inc. v Cox Radio, Inc.*, 2005 WL 1500896, 2005 US Dist LEXIS 12397 [SD NY 2005] [holding that personal jurisdiction over a nondomiciliary in a copyright infringement case did not exist because the injury occurred where the alleged out-of-state infringement took place]).

argument by counsel for the parties and consideration of the briefs and the record submitted, certified question answered in accordance with the opinion herein.

[946 NE2d 731, 921 NYS2d 633]

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK
CITY DEPARTMENT OF EDUCATION et al., Appellants.

Argued February 9, 2011; decided March 24, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 7, 2009. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Edward H. Lehner, J.), entered in a proceeding pursuant to CPLR article 78, which had denied the petition and dismissed the proceeding seeking to annul a determination of respondent New York City Department of Education denying petitioner's application for employment at respondent Cooke Center for Learning and Development and to reinstate petitioner to her position with respondent Center with back pay, and (2) granted the petition to the extent of annulling the determination and remanding the matter to Supreme Court to fashion an appropriate remedy. The following question was certified by the Appellate Division: "Was the order of this Court, which, *inter alia*, reversed the order of the Supreme Court, properly made?"

Matter of Acosta v New York City Dept. of Educ., 62 AD3d 455, modified.

HEADNOTE

Schools — Administrative Personnel — Security Clearance — Prior Criminal Conviction

Respondent New York City Department of Education (DOE) failed to comply with the requirements of the Correction Law and thus acted arbitrarily in denying petitioner's application for a security clearance on the ground that she presented an "unreasonable risk" to the safety and welfare of the school community. While Correction Law § 752 prohibits the adverse treatment of an application for a license or employment based on an applicant's prior criminal conviction, an exception arises when the licensing or employment "would involve an unreasonable risk to property or to the safety or welfare of specific individuals or the general public" (Correction Law § 752 [2]). In making a determination as to whether the "unreasonable risk" exception applies, the public agency is required to consider eight factors (Correction Law § 753 [1]). Here, following an interview and an investigation into petitioner's prior criminal conviction for first degree robbery when she was 17 years old, it was plain that the DOE failed to consider all of the factors in making its determination as to whether the "unreasonable risk" exception applied to petitioner's application. One of the considerations noted by the DOE was that petitioner had failed to provide references from previous employers; however, respondent had

not requested such references and had it reviewed a letter from her current employer it would have discovered that petitioner had submitted highly favorable employment references when applying for her current position. Furthermore, despite respondent's policy of more closely reviewing first-time applicants, it was plain that, other than her personal statement, the DOE did not consider the documentation that petitioner submitted which evidenced her education, rehabilitation and volunteer work over the 13 years since her conviction. It was difficult to conclude, given the record before the court, that respondent's "closer review" was anything more than a pro forma denial of petitioner's application on the basis of her prior criminal conviction. Such a denial, without consideration of each of the factors listed in Correction Law § 753, was prohibited.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Administrative Law §§ 497–499; AM JUR 2d, Schools § 153.

McKINNEY's, Correction Law § 752 (2); § 753.

NY JUR 2d, Businesses and Occupations §§ 41, 42; NY JUR 2d, Schools, Universities, and Colleges § 267.

ANNOTATION REFERENCE

See ALR Index under Administrative Law; Prior Offenses and Convictions; Schools and Education.

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POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (Jane L. Gordon and Edward F.X. Hart of counsel), for New York City Department of Education and others, appellants. I. As the Supreme Court and the Appellate Division dissent correctly determined, the decision to deny Madeline Acosta's application for security clearance was neither arbitrary nor capricious nor an abuse of administrative discretion. (Matter of Arrocha v Board of Educ. of City of N.Y., 93 NY2d 361; Matter of Boatman v New York State Dept. of Educ., 72 AD3d 1467; Matter of Peckham v Calogero, 12 NY3d 424; Matter of Bonacorsa v Van Lindt, 71 NY2d 605; Matter of Malverty v Waterfront Commn. of N.Y. Harbor, 133 AD2d 558, 71 NY2d 977; Soto-Lopez v New York City Civ. Serv. Commn., 713 F Supp 677; Schultz v Waterfront Commn. of N.Y. Harbor, 35 AD2d 373; Matter of Polednak v Levitt, 167 AD2d 274, 78 NY2d 852; Matter of Sinkler [Sweeney], 89

NY2d 485.) II. Even if the Appellate Division majority was correct, Madeline Acosta's only remedy should be the annulment of the New York City Department of Education's determination. (*Matter of Formica Constr. Inc. v Mintz*, 65 AD3d 686; *Matter of Gallo v State of N.Y., Off. of Mental Retardation & Dev. Disabilities*, 37 AD3d 984; *Matter of Meth v Manhattan & Bronx Surface Tr. Operating Auth.*, 134 AD2d 431; *Matter of Marra v City of White Plains*, 96 AD2d 17; *Matter of El v New York City Dept. of Educ.*, 23 Misc 3d 1121[A], 2009 NY Slip Op 50883[U]; *Black v New York State Off. of Mental Retardation & Dev. Disabilities*, 20 Misc 3d 581.)

Kaufman, Dolowich, Voluck & Gonzo, LLP, Woodbury (*Matthew J. Minero* of counsel), for Cooke Center for Learning and Development, appellant. I. The undisputed facts establish no basis for any independent claim against Cooke Center for Learning and Development for terminating respondent's employment. (*Maas v Cornell Univ.*, 94 NY2d 87; *Ozdemir v Caithness Corp.*, 285 AD2d 961; *Leon v Martinez*, 84 NY2d 83; *Biondi v Beekman Hill House Apt. Corp.*, 257 AD2d 76; *Silvester v Time Warner*, 1 Misc 3d 250; *Matter of Goldstein v Lewis*, 90 AD2d 748, 59 NY2d 706; *Matter of Campo Corp. v Feinberg*, 279 App Div 302, 303 NY 995; *Matter of Laverack & Haines v New York State Div. of Human Rights*, 88 NY2d 734; *Matter of CUNY-Hostos Community Coll. v State Human Rights Appeal Bd.*, 59 NY2d 69; *Matter of Balban v State Div. of Human Rights*, 104 AD2d 709.) II. Respondent is not entitled to reinstatement or monetary relief from Cooke Center for Learning and Development under any circumstances. (*Matter of Gallo v State of N.Y., Off. of Mental Retardation & Dev. Disabilities*, 37 AD3d 984; *Black v New York State Off. of Mental Retardation & Dev. Disabilities*, 20 Misc 3d 581.)

MFY Legal Services, Inc., New York City (*Carolyn E. Coffey*, *Christopher Lamb* and *Andrew Goldberg* of counsel), for respondent. I. The Appellate Division decision should be affirmed because the New York City Department of Education's determination was without sound basis in reason and was made without regard to the facts. (*Matter of Arrocha v Board of Educ. of City of N.Y.*, 93 NY2d 361; *Matter of Boatman v New York State Dept. of Educ.*, 72 AD3d 1467; *Matter of Gallo v State of N.Y., Off. of Mental Retardation & Dev. Disabilities*, 37 AD3d 984; *Matter of Bonacorsa v Van Lindt*, 71 NY2d 605; *Matter of El v New York City Dept. of Educ.*, 23 Misc 3d 1121[A], 2009 NY Slip Op 50883[U]; *Matter of Pell v Board of Educ. of Union Free School*

Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County, 34 NY2d 222; *Matter of Sled Hill Cafe v Hostetter*, 22 NY2d 607; *Matter of Marra v City of White Plains*, 96 AD2d 17; *Matter of Cantor v New York State Racing & Wagering Bd.*, 73 AD2d 544.) II. The Appellate Division's decision should be affirmed because the New York City Department of Education's determination was infected by errors of law. (*Leatherman v Tarrant County Narcotics Intelligence & Coordination Unit*, 507 US 163; *Matter of Marra v City of White Plains*, 96 AD2d 17; *Black v New York State Off. of Mental Retardation & Dev. Disabilities*, 20 Misc 3d 581.) III. The Court should disregard the New York City Department of Education's attacks on Ms. Acosta's credibility and its improper references to confidential settlement negotiations. (*Matter of Featherstone v Franco*, 95 NY2d 550.) IV. Under CPLR 7806, the Appellate Division is authorized to remand this proceeding to the Supreme Court to fashion appropriate relief. (*Matter of Police Benevolent Assn. of N.Y. State Troopers v Vacco*, 253 AD2d 920; *Matter of Hartje v Coughlin*, 70 NY2d 866; *England v Sanford*, 78 NY2d 928.) V. The Court should not decide questions raised by Cooke Center for Learning and Development that were not certified by the Appellate Division. (*Patrician Plastic Corp. v Bernadel Realty Corp.*, 25 NY2d 599; *Gise v Brooklyn Socy. for Prevention of Cruelty to Children*, 262 NY 114; *Telaro v Telaro*, 25 NY2d 433.)

Juan Cartagena, General Counsel, Community Service Society, New York City (*Paul Keefe* of counsel), and *Judith M. Whiting* for Community Service Society and others, amici curiae. I. The New York City Department of Education's decision was arbitrary and capricious because the agency ignored favorable information it was legally required to consider under Correction Law article 23-A. (*Matter of Bonacorsa v Van Lindt*, 71 NY2d 605; *Matter of El v New York City Dept. of Educ.*, 23 Misc 3d 1121[A], 2009 NY Slip Op 50883[U]; *Matter of Arrocha v Board of Educ. of City of N.Y.*, 93 NY2d 361.) II. The First Department's finding that Ms. Acosta posed no risk to persons or property is supported by case law, public policy and sociological research. (*Matter of City of New York v City Civ. Serv. Commn.*, 141 Misc 2d 276; *Ford v Gildin*, 200 AD2d 224; *Matter of Burnham v State of N.Y. Ins. Dept.*, 63 AD2d 627; *Matter of Marra v City of White Plains*, 96 AD2d 17; *Matter of Sled Hill Cafe v Hostetter*, 22 NY2d 607; *Matter of Circus Disco v New York State Liq. Auth.*, 51 NY2d 24; *Matter of G. J. & S. Pizza v McLaughlin*, 78 AD2d 653; *Matter of Cojer Rest. v New York State Liq. Auth.*, 47

AD2d 612; *Matter of Hayes v New York State Liq. Auth.*, 39 AD2d 482; *Matter of Arrocha v Board of Educ. of City of N.Y.*, 93 NY2d 361.)

Davis Polk & Wardwell LLP, New York City (Nancy B. Ludmerer, Christopher Lynch, Justin Sommers and Steven N. Feldman of counsel), for New York City Bar Association, amicus curiae. I. This Court has set out standards governing both administrative decisions generally and Correction Law article 23-A determinations in particular. (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Peckham v Calogero*, 12 NY3d 424; *Matter of Farina v State Liq. Auth.*, 20 NY2d 484; *Matter of Sled Hill Cafe v Hostetter*, 22 NY2d 607; *Matter of King v New York State Div. of Parole*, 83 NY2d 788; *Matter of Perpente v Moss*, 293 NY 325; *Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753; *Matter of Central NY Coach Lines v Larocca*, 120 AD2d 149; *Matter of Scudder v O'Connell*, 272 App Div 251; *Matter of Formica Constr. Inc. v Mintz*, 65 AD3d 686.) II. By dispensing with Correction Law article 23-A's requirements, the New York City Department of Education's denial of respondent's security clearance was arbitrary and capricious. (*Matter of Mary M. v Clark*, 118 Misc 2d 98; *Matter of Rodriguez v Ward*, 64 AD2d 792; *Matter of Natural Resources Defense Council v New York City Dept. of Sanitation*, 83 NY2d 215; *Galapo v City of New York*, 95 NY2d 568; *Black v New York State Off. of Mental Retardation & Dev. Disabilities*, 20 Misc 3d 581; *Matter of King v New York State Div. of Parole*, 83 NY2d 788.) III. In light of the conduct of the New York City Department of Education and other agencies in this and other cases, this Court should clarify agency obligations under Correction Law article 23-A. (*Matter of Arrocha v Board of Educ. of City of N.Y.*, 93 NY2d 361; *Matter of Bonacorsa v Van Lindt*, 71 NY2d 605; *Matter of Formica Constr. Inc. v Mintz*, 65 AD3d 686; *Matter of Gallo v State of N.Y., Off. of Mental Retardation & Dev. Disabilities*, 37 AD3d 984; *Matter of Davis-Elliott v New York City Dept. of Educ.*, 31 AD3d 266; *Matter of El v New York City Dept. of Educ.*, 23 Misc 3d 1121[A], 2009 NY Slip Op 50883[U].)

Kelley Drye & Warren LLP, New York City (Robert E. Crotty and Marie E. Choi of counsel), for Senator Bill Perkins and others, amici curiae. The New York City Department of Education's denial of Ms. Acosta's application for employment violated the public policy of the State of New York and the plain language of

the statute which states that the public policy of the State of New York is to “encourage the licensure and employment of persons previously convicted of one or more criminal offenses” (Correction Law § 753 [1] [a]). (*Carney v Philipppone*, 1 NY3d 333; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653.) II. The New York City Department of Education’s denial ignores the legislative history of Correction Law article 23-A, which clearly demonstrates that the Legislature intended to protect individuals such as Ms. Acosta from precisely the type of discrimination in which appellants engaged. (*Riley v County of Broome*, 95 NY2d 455; *Rankin v Shanker*, 23 NY2d 111; *People v Finnegan*, 85 NY2d 53; *People v Mower*, 97 NY2d 239; *Matter of Scotto v Dinkins*, 85 NY2d 209; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Albano v Kirby*, 36 NY2d 526.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

We conclude that the New York City Department of Education (DOE) failed to comply with the requirements of the Correction Law and thus acted arbitrarily in denying petitioner’s application for security clearance.

I.

As a general matter, it is unlawful in this state for any public or private employer to deny any license or employment application “by reason of the individual’s having been previously convicted of one or more criminal offenses” (Correction Law § 752; see Executive Law § 296 [15]). This general bar was enacted to further certain goals that the Legislature has identified as among the “general purposes” of the Penal Law, namely, “the rehabilitation of those convicted” and “the promotion of their successful and productive reentry and reintegration into society” (Penal Law § 1.05 [6]). As Governor Hugh L. Carey’s memorandum approving the legislation that codified this general prohibition noted, “the key to reducing crime is a reduction in recidivism,” and “[t]he great expense and time involved in successfully prosecuting and incarcerating the criminal offender is largely wasted if upon the individual’s return to society his willingness to assume a law-abiding and productive role is frustrated by senseless discrimination” (Governor’s Approval

Mem, Bill Jacket, L 1976, ch 931, 1976 McKinney's Session Laws of NY, at 2459 ["Providing a former offender a fair opportunity for a job is a matter of basic human fairness, as well as one of the surest ways to reduce crime"]).

There are, however, two significant exceptions to this general prohibition. The first exception arises where "there is a direct relationship between one or more of the previous criminal offenses and the specific license or employment sought or held by the individual" (Correction Law § 752 [1]). The Legislature has clarified that a "[d]irect relationship" means that the nature of criminal conduct for which the person was convicted has a direct bearing on his fitness or ability to perform one or more of the duties or responsibilities necessarily related to the license, opportunity, or job in question" (Correction Law § 750 [3]). This "direct relationship" exception is not at issue on this appeal.

It is the Correction Law's second exception to the general rule barring the adverse treatment of an application for a license or employment based on an applicant's prior criminal conviction that concerns us here. The second exception allows for the adverse treatment of such applications where "the issuance or continuation of the license or the granting or continuation of the employment would involve an unreasonable risk to property or to the safety or welfare of specific individuals or the general public" (Correction Law § 752 [2]). We have previously noted that the Legislature has not provided a statutory definition of the phrase "unreasonable risk" in this context "for the obvious reason that a finding of unreasonable risk depends upon a subjective analysis of a variety of considerations relating to the nature of the license or employment sought and the prior misconduct" (*Matter of Bonacorsa v Van Lindt*, 71 NY2d 605, 612 [1988]).

Although the "unreasonable risk" analysis under the second exception is a subjective one, section 753 (1) of the Correction Law provides that, "[i]n making a determination" as to whether either the "direct relationship" exception or the "unreasonable risk" exception applies, "the public agency or private employer shall consider" the following eight factors:

"(a) The public policy of this state, as expressed in this act, to encourage the licensure and employment of persons previously convicted of one or more criminal offenses.

“(b) The specific duties and responsibilities necessarily related to the license or employment sought or held by the person.

“(c) The bearing, if any, the criminal offense or offenses for which the person was previously convicted will have on his fitness or ability to perform one or more such duties or responsibilities.

“(d) The time which has elapsed since the occurrence of the criminal offense or offenses.

“(e) The age of the person at the time of occurrence of the criminal offense or offenses.

“(f) The seriousness of the offense or offenses.

“(g) Any information produced by the person, or produced on his behalf, in regard to his rehabilitation and good conduct.

“(h) The legitimate interest of the public agency or private employer in protecting property, and the safety and welfare of specific individuals or the general public.”

A failure to take into consideration each of these factors results in a failure to comply with the Correction Law’s mandatory directive (*see Matter of Arrocha v Board of Educ. of City of N.Y.*, 93 NY2d 361, 364 [1999] [“the Board *must* consider” (emphasis added) the Correction Law § 753 (1) factors]).

II.

When petitioner was 17 years old, she was convicted of the serious crime of first degree robbery. After serving over three years in prison she was granted parole in December 1996. The record reflects that, since then, she has become a productive and law-abiding member of society. She earned a Bachelor’s degree in 2001 from the City University of New York (CUNY), and, while working and attending classes at CUNY, volunteered with an organization that provides assistance to inmates in developing skills that will help them reintegrate into society upon being released. After earning her college degree, in addition to starting a family, she worked in positions of responsibility at two law firms.

Desiring employment that would allow her to spend more time with her family, in 2006 petitioner left her law firm position and took a part-time position at the Cooke Center for

Learning and Development (the Cooke Center). The Cooke Center is a not-for-profit private corporation that provides, among other things, preschool special education services in New York City through a contract with the DOE. The record reflects that petitioner worked four days per week and was engaged primarily in clerical activities with no responsibility for providing any instruction to the Cooke Center's preschool students.

In August 2006, three months after she started working for the Cooke Center, petitioner's supervisor asked her to be fingerprinted for DOE security clearance purposes (she had previously disclosed her 1993 conviction to the Cooke Center). The DOE subsequently notified petitioner that, in light of her prior criminal conviction, she would be interviewed at the DOE's offices on September 28, 2006. At the bottom of the notice petitioner received, in underlined and bold typeface, she was advised that she could "submit a written personal statement explaining the events and circumstances surrounding your conviction(s) record," and, "[i]n addition, you may also submit the following: current employment verification (on company letterhead) verifying title/dates of service, references from friends/neighbors/church and any achievements you have made either before or after your conviction(s)."

At the interview with the DOE's investigator, petitioner provided the DOE with two letters of reference from the Cooke Center. She also provided a number of other documents evidencing her education, rehabilitation and volunteer work over the 13 years since her conviction, including her diploma, various certificates of achievement, and various letters of appreciation. Of particular relevance on this appeal, one of the letters of reference from the Cooke Center specified that petitioner was hired, in part, on the basis of "her model references from past employers and colleagues."

At the September 28, 2006 interview, petitioner was advised that three people at the DOE would be reviewing her file, but the investigator she was meeting with that day would be the only one meeting with her in person. He stated that the two other reviewers "do not have time to review the stack of documents" petitioner submitted because "they have numerous other files to look at"; thus, he suggested she revise her "personal statement to include more information summarizing the documents" she submitted "since they will not be looking at all the documents," only her personal statement. The interviewer asked no questions concerning the details

surrounding her conviction, no questions concerning her former employment at the two law firms, and no questions concerning her job duties at the Cooke Center. Petitioner states that “[t]he whole interview lasted no more than five minutes.” The record contains an affidavit from the investigator who interviewed petitioner, but the only aspect of her description of the interview that he specifically challenges is its length, estimating, in part on the basis of the relevant sign-in sheet, that he met with petitioner for approximately 30 minutes.

By letter dated October 12, 2006, the DOE notified petitioner that her application was denied. The DOE’s letter acknowledged that New York law generally prohibits the denial of employment on the basis of prior criminal convictions, but then referenced the “unreasonable risk” exception to that general prohibition. The letter explained that petitioner’s “application is denied due to the serious nature of your convictions” because, “[i]n light of these convictions, granting employment will pose an unreasonable risk to the safety and welfare of the school community.” The Cooke Center subsequently terminated petitioner’s employment because, as petitioner acknowledges on this appeal, the Cooke Center’s contractual relationship with the DOE necessitated her termination in the event the DOE denied her application for security clearance.

This petition against the DOE and the Cooke Center, among others, followed. Supreme Court dismissed the petition. The Appellate Division, with two Justices dissenting, reversed, concluded that the DOE acted arbitrarily in denying petitioner’s application, granted the petition and remanded the matter to Supreme Court to fashion an appropriate remedy (62 AD3d 455 [1st Dept 2009]). The Appellate Division subsequently certified a question to this Court concerning the propriety of its order. We agree with the Appellate Division that the DOE acted arbitrarily in this matter.

III.

It is, of course, improper for courts to “engag[e] in essentially a re-weighing” of the Correction Law § 753 factors (*Arrocha*, 93 NY2d at 367), but, on this record, it is plain that the DOE failed to consider all of the factors in making its determination as to whether the “unreasonable risk” exception applied to petitioner’s application, rendering its denial of that application arbitrary and capricious.

We first note that this conclusion is not mandated by the fact that the DOE did not state with specificity its detailed analysis

with respect to each of the eight factors in its denial letter to petitioner, as it was not required to do so in the letter notifying her of its decision (*but see* Correction Law § 754 [providing that, if requested, a public agency or private employer that denies a person's application for a license or employment on the basis of that person's prior criminal conviction "shall provide, within thirty days of a request, a written statement setting forth the reasons for such denial"])). Nor does the DOE's apparent inability to point to any contemporaneously created record that demonstrates that it considered each of the eight factors in reviewing petitioner's application necessarily require a finding that the DOE acted arbitrarily, though, of course, such documentation, if it existed, might tend to show that the DOE had fulfilled its obligation under the Correction Law.

Rather, on this record, the DOE's own statements demonstrate that it failed to comply with the statute and acted in an arbitrary manner. An affidavit from the DOE's Director for Employee Relations for the Division of Human Resources, prepared by the DOE in connection with this proceeding, provides "considerations and observations" relevant to the DOE's decision to deny petitioner's application. Among the considerations listed in this affidavit is that petitioner "did not provide references from any previous employers." However, the interview notice petitioner received from the DOE did not state that she should provide references from previous employers, and her interviewer did not ask her to provide those references. Moreover, one of the Cooke Center references that she did provide to the DOE mentioned the "model references from past employers" that the Cooke Center had reviewed and relied upon in hiring her. Thus, had the DOE reviewed this reference letter, it would have known that the letters from past employers it now says were missing were not only available but were highly favorable to petitioner.

This illuminates a larger, more serious issue regarding the DOE's consideration of petitioner's application. The Correction Law requires the DOE to "consider" "[a]ny information produced by the person, or produced on his [or her] behalf, in regard to his [or her] rehabilitation and good conduct" in determining whether the "unreasonable risk" exception applies to an application (Correction Law § 753 [1] [g]). Yet, on this record, it is plain that, other than her personal statement, the DOE did not consider the documentation that petitioner submitted in support of her application.

The arbitrary nature of the DOE's action here becomes even more evident given the "general policy" the DOE Director's affidavit states that the DOE follows with respect to first-time applicants. The Director's affidavit notes that this application was petitioner's "first application for security clearance from the DOE," and, as a matter of "general policy, the DOE takes a closer review of first-time applicants with criminal histories who have not worked with children in order to emphasize to the applicant that the DOE takes the safety and welfare of its students very seriously." We have no doubt that the DOE takes the safety and welfare of the entire school community very seriously, and its efforts in that regard are laudable. However, in light of the DOE's failure to comply with the statutorily mandated minimum requirement of reviewing all of the documentation petitioner submitted (*see e.g.* Correction Law § 753 [1] [g]), it is difficult to conclude on this record that the "closer review" purportedly applied here amounted to anything more than a pro forma denial of petitioner's application on the basis of her prior criminal conviction. Such a denial, without consideration of each of the Correction Law § 753 factors, is precisely what the statute prohibits.

The Legislature has determined that, as a general rule, it is unlawful for a public or private employer to deny an application for a license or employment on the ground that the applicant was previously convicted of a crime. This general prohibition advances the rehabilitation and reintegration goals of the Penal Law. Furthermore, barring discrimination against those who have paid their debt to society and facilitating their efforts to obtain gainful employment benefits the community as a whole. The "direct relationship" exception and the "unreasonable risk" exception to this general rule may be resorted to only upon a consideration of each of the eight factors enumerated in Correction Law § 753 (*see Arrocha*, 93 NY2d at 364).

IV.

Finally, we note that petitioner does not dispute that, in light of the Cooke Center's contract with the DOE, the DOE's denial of petitioner's application for security clearance obligated the Cooke Center to terminate her employment. The Cooke Center's motion to dismiss the petition as against it, therefore, should have been granted.

Accordingly, the order of the Appellate Division should be modified, without costs, by granting the motion of Cooke Center

for Learning and Development to dismiss the petition against it, and, as so modified, affirmed. The certified question should be answered in the negative.

SMITH, J. (dissenting). It is easy to sympathize with this petitioner, and to be dismayed by the decision of the Department of Education (DOE) to deny her security clearance. From what we know, petitioner's achievement in overcoming her very troubled youth is impressive, and could be inspiring to others. But I would not give in to the temptation to second-guess the DOE, which has the duty to protect not only the public's money and property, but also the children committed to its charge.

The question for the DOE—not the courts—to decide was whether granting petitioner a security clearance “would involve an unreasonable risk to property or to the safety or welfare of specific individuals or the general public” (Correction Law § 752 [2]). Considering the interests at stake, the DOE could reasonably believe that anything more than a very small risk would be “unreasonable,” and that there might be more than a very small risk here. In 1993, petitioner was arrested on two separate occasions, and charged with crimes including two first degree robberies involving the use or threatened immediate use of a dangerous instrument (Penal Law § 160.15 [3]). She pleaded guilty and received a sentence of 4 to 12 years. She was paroled in 1997 and discharged from parole in 2000. These events were history, but not ancient history, when she applied for a security clearance in 2006. The DOE could have reasonably wanted to know more about them.

Petitioner chose to tell them very little. Invited to “submit a written personal statement explaining the events and circumstances surrounding your conviction(s) record,” she responded, and later expanded her response. This is all that her expanded statement says about the crimes:

“I was 17 years old at the time of my incarceration. Before my incarceration I attended school full time. I was a senior at John Jay High School when I became involved in an abusive relationship. He was physically abusive and he forced me to participate in the robberies he wanted to commit and at the time I thought for my own safety I would go along with it. We were not arrested committing a crime. I was on my way home from school when I attempted to board the train with train pass that had someone

else's name on it. The officer at the station requested for me to produce identification to match the train pass. I didn't have identification. The officer ran a check on the name and found out it was reported stolen. We were both arrested. I soon severed all ties with him. I take responsibility for my part and honestly feel remorseful for allowing for those things to happen in my presence. I was sentenced to 4-12 years. He was sentenced to 6-18 years because he was accused of having a weapon."

Among the facts petitioner did not disclose is how many robberies there were; what weapon was used; what was done to intimidate the victims; and what petitioner did to help. Reading petitioner's statement, one cannot learn why a judge thought that she deserved a 4-to-12-year sentence. I can hardly blame petitioner for not wanting to dwell on these very unpleasant details; but I also cannot blame the DOE for deciding that it should not give petitioner clearance without knowing more than it did.

It seems to me that, despite its disclaimer, the majority has done what it acknowledges courts should not do: It has reweighed the relevant factors, and decided that it disagrees with the DOE's evaluation of them. The majority quibbles with the DOE over a minor point—whether the absence of references from previous employers is significant, where petitioner was apparently able to provide such references at an earlier time (majority op at 319). Stretching to find a "larger, more serious issue," the majority asserts that the DOE's procedure was flawed because it failed to "consider the documentation that petitioner submitted in support of her application" (majority op at 319). I find it extremely hard to believe that either the DOE's decision or the majority's here would be different if a DOE employee had turned over every page of the considerable stack of certificates of recognition that petitioner submitted.

It seems obvious that the majority's real difference with the DOE is substantive, and not procedural—the majority thinks the DOE made a mistake. Perhaps it did, but it did not act so arbitrarily that we are justified in annulling its ruling.

Judges CIPARICK, GRAFFEO, PIGOTT and JONES concur with Chief Judge LIPPMAN; Judge SMITH dissents and votes to reverse in a separate opinion in which Judge READ concurs.

Order modified, etc.

[946 NE2d 717, 921 NYS2d 619]

ARTHUR GOLDENBERG, Appellant, v WESTCHESTER COUNTY
HEALTH CARE CORPORATION, Also Known as WESTCHESTER
COUNTY MEDICAL CENTER, et al., Respondents.

Argued February 15, 2011; decided March 24, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 22, 2009. The Appellate Division affirmed an order of the Supreme Court, Westchester County (Nicholas Colabella, J.), which had (1) granted defendants' motion to dismiss the complaint as untimely, (2) denied plaintiff's cross motion for leave to file the summons and complaint nunc pro tunc and for permission to reimburse defendants for purchase of the index number, and (3) dismissed the action.

Goldenberg v Westchester County Health Care Corp., 68 AD3d 1056, affirmed.

HEADNOTES

Motions and Orders — Motion to Dismiss — No Waiver of Objection to Filing Error

1. In a medical malpractice lawsuit where plaintiff failed to purchase an index number and file a summons and complaint with the County Clerk, defendant timely interposed affirmative defenses of lack of personal jurisdiction and expiration of the statute of limitations in its amended answer and consequently did not waive its objection to plaintiff's filing error. Pursuant to CPLR 3211 (e), these affirmative defenses are properly raised either in an answer or in a pre-answer motion to dismiss. And, because defendant's jurisdictional objection was not to improper service, defendant was not required to move to dismiss within 60 days of service of its answer.

Actions — Commencement — Failure to File Summons and Complaint within Limitations Period — No Discretion to Excuse Error

2. In determining defendant health care center's motion to dismiss a medical malpractice action in which plaintiff served on defendant a summons and complaint without an index number, Supreme Court did not have discretion pursuant to CPLR 2001 to disregard plaintiff's error in failing to purchase an index number and file a summons and complaint with the County Clerk to commence the lawsuit (*see* CPLR 304) within the applicable statute of limitations. The purpose of the 2007 amendments to section 2001 was to allow trial courts to fix or, where nonprejudicial, overlook defects in the filing process, including the failure to acquire or purchase an index number, so long as the applicable fees were eventually paid. However, as the legislative history emphasized, the amendments were not meant to excuse a complete failure to

file within the statute of limitations. Thus, a mistake in the method of filing is subject to correction in the court's discretion, while a mistake in what is filed is not. Here, the closest plaintiff came to proper commencement within the limitations period was including a proposed complaint as part of his petition to file a late notice of claim. However, in the absence of a summons, there was a complete failure to file within the statute of limitations.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Pleading §§ 274, 275; AM JUR 2d, Process § 10.
CARMODY-WAIT 2d, Relief Against Mistakes, Omissions, Defects, and Irregularities §§ 23:3-23:5, 23:13; CARMODY-WAIT 2d, Commencement of Actions; Summons and Service of Process § 24:10; CARMODY-WAIT 2d, Pretrial Motions to Dismiss §§ 38:117, 38:118, 38:152, 38:163, 38:164.
McKINNEY's, CPLR 304, 2001, 3211 (e).
NY JUR 2d, Pleading §§ 63, 151, 232, 238; NY JUR 2d, Process and Papers §§ 6, 10, 12; NY JUR 2d, Summary Judgment and Pretrial Motions to Dismiss §§ 178, 182, 183, 188-190, 194, 198.
SIEGEL, NY PRAC §§ 6, 45, 63, 78, 111, 272.

ANNOTATION REFERENCE

See ALR Index under Pleadings; Process and Service of Process and Papers.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: fail! /3 file /s limitation & index /2 number & object! /5 waiv!

POINTS OF COUNSEL

La Sorsa & Beneventano, White Plains (Gregory M. La Sorsa of counsel), for appellant. I. The lower court erred in finding that there was a complete failure to file a summons and complaint. (*Page v Marusich*, 30 AD3d 871; *Louden v Rockefeller Ctr. N.*, 249 AD2d 25; *Shivers v International Serv. Sys.*, 220 AD2d 357; *Benton v Kreitzer*, 7 AD3d 554; *Republic Ins. Co. v Northern Aire Dev.*, 94 AD2d 764; *Piffath v Esposito*, 58 AD2d 577; *Rochester Poster Adv. Co. v Town of Penfield*, 51 AD2d 870; *Rybka v New York City Health & Hosps. Corp.*, 263 AD2d 403; *Daly v 26-28 Mkt. St., Inc.*, 21 AD3d 853.) II. Plaintiff's reliance on the 2007 amendment to CPLR 2001 was appropriate. Therefore, the court erred in denying plaintiff's application to file the summons and complain nunc pro tunc. (*Sangiaco v*

County of Albany, 302 AD2d 769; *Matter of Mendon Ponds Neighborhood Assn. v Dehm*, 98 NY2d 745; *Matter of Miller v Waters*, 51 AD3d 113.) III. Defendants waived the commencement defect defense by not specifically raising it in either of their answers and in failing to move within 60 days. (*John M. Horvath, D.C., P.C. v Progressive Cas. Ins. Co.*, 24 Misc 3d 194; *Federici v Metropolis Night Club, Inc.*, 48 AD3d 741; *Page v Marusich*, 30 AD3d 871; *Sirkis v Cohen*, 23 AD3d 369; *Dimond v Verdon*, 5 AD3d 718; *Matter of United Servs. Auto. Assn. v Kungel*, 72 AD3d 517.)

Wilson Elser Moskowitz Edelman & Dicker LLP, White Plains (Richard E. Lerner and Faisal A. Kahn of counsel), for respondents. I. The Second Department did not misconstrue CPLR 2001 or the case law interpreting the provision. (*Matter of Miller v Waters*, 51 AD3d 113; *Sangiacomo v County of Albany*, 302 AD2d 769; *Parker v Mack*, 61 NY2d 114; *Matter of Mendon Ponds Neighborhood Assn. v Dehm*, 98 NY2d 745.) II. The Second Department did not misconstrue the filing statutes or the case law interpreting those provisions. (*Matter of Mendon Ponds Neighborhood Assn. v Dehm*, 98 NY2d 745; *Rybka v New York City Health & Hosps. Corp.*, 263 AD2d 403; *Page v Marusich*, 30 AD3d 871; *Louden v Rockefeller Ctr. N.*, 249 AD2d 25; *Mohammed v Ellassal*, 226 AD2d 509; *Bradley v St. Clare's Hosp.*, 232 AD2d 814; *Cinquemani v County of Nassau*, 28 AD3d 699; *Giblin v Nassau County Med. Ctr.*, 61 NY2d 67.) III. The Second Department appropriately concluded that defendant raised timely objections to plaintiff's commencement errors and the untimeliness of the attempted action. (*John M. Horvath, D.C., P.C. v Progressive Cas. Ins. Co.*, 24 Misc 3d 194.)

OPINION OF THE COURT

READ, J.

On May 25, 2007, plaintiff Arthur Goldenberg commenced a special proceeding to file a late notice of claim for medical malpractice against defendant Westchester County Health Care Corporation (WCHCC). Goldenberg attached a copy of a proposed complaint to the petition as an exhibit. On September 25, 2007, Supreme Court granted the petition and directed Goldenberg to serve a notice of claim within 20 days.

On October 9, 2007, Goldenberg served WCHCC with a notice of claim as well as a summons and complaint, both without an index number. On October 11, 2007, Goldenberg filed affidavits of service with the Chief Clerk of the Westchester Supreme and

County Courts; these affidavits displayed the index number for the special proceeding. The served complaint differed in two respects from the proposed complaint: a cause of action for lack of informed consent was added, and continuous treatment from January 2006 through July 5, 2006 was alleged.¹ In short, Goldenberg did not purchase an index number and file a summons and complaint with the County Clerk to commence the lawsuit before serving WCHCC, as he should have (*see* CPLR 304, 305, 306-a, 306-b; *see also* *Matter of Mendon Ponds Neighborhood Assn. v Dehm*, 98 NY2d 745 [2002]).²

WCHCC responded with an answer and amended answer dated October 24 and November 1, 2007, respectively. The statute of limitations was raised as an affirmative defense in both pleadings; failure to obtain personal jurisdiction was included as an additional affirmative defense in the amended answer. The parties do not dispute that the one-year-and-90-day statute of limitations applicable to this malpractice action expired at the latest on February 5, 2008, after tolling for the period Goldenberg's petition to file a late notice of claim was pending (*see* Public Authorities Law § 3316 [1]; *Giblin v Nassau County Med. Ctr.*, 61 NY2d 67 [1984]).

On February 26, 2008, three weeks after the statute of limitations lapsed, WCHCC moved to dismiss Goldenberg's lawsuit as untimely, using an index number secured for purposes of making the motion. Goldenberg cross-moved for an order permitting him to file a summons and complaint nunc pro tunc and adopting the index number affixed to the motion, for which he pledged to reimburse WCHCC.

On September 29, 2008, Supreme Court granted WCHCC's motion, and denied Goldenberg's cross motion. The judge opined that the proposed complaint proffered in the special proceeding was not "the functional equivalent of a filing" as urged by Goldenberg. First, the proposed complaint did not "materially conform" to the complaint served on WCHCC in light of the differences between the two; second, under CPLR 304 a "filing" that commences an action requires a summons. Supreme Court further concluded that CPLR 2001 did not relieve Goldenberg's

1. The proposed complaint did not specify the date on which Goldenberg's treatment ended.

2. After our decision in *Mendon Ponds*, the Legislature amended the CPLR to make it more obvious that the "clerk" with whom civil papers commencing an action or special proceeding must be filed is the County Clerk in the county where the matter is to be tried (*see* L 2007, ch 125).

plight. Quoting the Practice Commentaries, the judge noted that the 2007 revision of CPLR 2001 did “not excuse a complete failure to file within the statute of limitations,” and was meant to address mistakes in the “method” of filing, not mistakes in “what” was filed (*see* Alexander, Practice Commentaries, McKinney’s Cons Laws of NY, Book 7B, CPLR C304:3, at 25). Goldenberg appealed.

On December 22, 2009, the Appellate Division affirmed, principally on the ground that the complaint actually served in the action “dramatically differed, substantively and materially, from the proposed complaint which the plaintiff filed in the prior proceeding” (68 AD3d 1056, 1057 [2d Dept 2009]). On May 4, 2010, we granted Goldenberg leave to appeal (14 NY3d 709 [2010]). We now affirm.

[1, 2] As an initial matter, WCHCC did not waive its objection to Goldenberg’s filing error. WCHCC timely interposed affirmative defenses of lack of personal jurisdiction and expiration of the statute of limitations in its amended answer (*see Harris v Niagara Falls Bd. of Educ.*, 6 NY3d 155 [2006] [commencement infirmity not waived where defendant timely protested in pre-answer motion to dismiss]; *see also* Siegel, NY Prac § 63, at 94 [4th ed 2005]). These affirmative defenses are properly raised in either an answer or a pre-answer motion to dismiss (*see* CPLR 3211 [e]). And because its jurisdictional objection was not to improper service, WCHCC was not, as Goldenberg also argues, required to move to dismiss within 60 days of service of its answer (*see id.*; *see also* Siegel, NY Prac § 111, at 201). As a result, the outcome in this appeal turns on whether CPLR 2001, as amended in 2007, vests Supreme Court with discretion to forgive the particular kind of mistake made by Goldenberg. We conclude that it does not.

The bill that amended CPLR 2001 was introduced at the request of the Chief Administrative Judge upon the recommendation of the Advisory Committee on Civil Practice. Its purpose was to allow trial courts to fix or, where nonprejudicial, overlook defects in the filing process, including the failure to acquire or purchase an index number, so long as the applicable fees were eventually paid (*see* L 2007, ch 529). The introducer’s memorandum states that the bill was offered in response to our decisions in *Matter of Fry v Village of Tarrytown* (89 NY2d 714 [1997]) and *Matter of Gershel v Porr* (89 NY2d 327 [1996]) (*see* Senate Introducer’s Mem in Support, Bill Jacket, L 2007, ch 529, at 5). *Gershel* and *Harris* both involved failure to pay the

proper filing fee; in *Fry*, the petitioner did not file a signed copy of an order to show cause along with his petition.³ In each of these cases the correct initiatory papers were filed. As the introducer's memorandum emphasizes, the amendments to section 2001 were not meant to

“excuse a complete failure to file within the statute of limitations. Moreover, in order to properly commence an action, a plaintiff or petitioner would still have to *actually file a summons and complaint or a petition*. A bare summons, for example, would not constitute a filing. The purpose of this measure is to clarify that a mistake in the method of filing, AS OPPOSED TO A MISTAKE IN WHAT IS FILED, is a mistake subject to correction in the court's discretion” (*id.* at 5-6 [capitalization in original; emphasis added]).

Here, plaintiff never filed a summons and complaint. The closest he came was the proposed complaint attached to the petition he filed when seeking permission to file a late notice of claim, itself a prerequisite to the commencement of this action. Given the absence of a summons, there was “a complete failure to file within the statute of limitations,” which CPLR 2001 does not allow a trial judge to disregard.⁴

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES concur.

Order affirmed with costs.

3. When the commencement-by-filing system was first adopted, the filing of a petition in a special proceeding had to be accompanied by a notice of petition or an order to show cause. Because notices of petition and orders to show cause must include return dates (CPLR 403), which were not readily acquired before the petition was filed, this created a logistical problem. As a result, the Legislature amended the CPLR to provide for commencement of a special proceeding by the filing of a petition alone (*see* L 2001, ch 473).

4. Because of our disposition of this appeal, we do not address whether the trial judge would have possessed discretion under CPLR 2001 to make allowances for or ignore the differences between the proposed and served complaints if a summons had, in fact, been filed.

[946 NE2d 720, 921 NYS2d 622]

In the Matter of MERCEDES CASADO et al., Respondents, v MARVIN MARKUS, as Chair of the New York City Rent Guidelines Board, et al., Appellants.

Argued February 8, 2011; decided March 24, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 22, 2010. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Emily Jane Goodman, J.; op 27 Misc 3d 340), entered in two consolidated proceedings pursuant to CPLR article 78, which had vacated New York City Rent Guidelines Board 2008 Apartment and Loft Order No. 40 and 2009 Apartment and Loft Order No. 41 insofar as they provided for minimum dollar rent increases for rent-stabilized apartments renting for less than \$1,000 where the most recent vacancy lease was executed six years or more prior to the date of the renewal lease under the relevant order.

Matter of Casado v Markus, 74 AD3d 632, reversed.

HEADNOTES

Landlord and Tenant — Rent Regulation — Power of New York City Rent Guidelines Board to Make Distinctions in Rent Increases Allowed within Class of Accommodation

1. Respondent New York City Rent Guidelines Board (RGB) had the power to permit minimum dollar rent increases in renewal leases for rent-stabilized apartments that rented for less than \$1,000 a month and had no vacancy for six years or more prior to the date of the renewal lease. In permitting the minimum dollar rent increases the RGB made a distinction between low-rent apartments in which there had been no recent vacancy and other apartments, allowing larger rent increases, in percentage terms, for apartments in the former category. The RGB's purpose in making the percentage increases subject to a dollar floor was to remedy the perceived inequity of having tenants who paid higher rents subsidizing those who paid lower rents even though RGB analysis showed that the median rent-to-income ratio for tenants living in their apartments six years or more was lower than the same ratio for all tenants. The RGB is not forbidden from drawing any distinctions within the apartment "class" of housing accommodations by either Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-510 (b) or Emergency Tenant Protection Act of 1974 (L 1974, ch 576, § 4) § 3 (a) (McKinney's Uncons Laws of NY § 8623 [a], as amended). In fact, the RGB has always made some distinctions between apartments, even though apartments are generally considered one "class" of housing accommodation. Moreover, there was no conflict between the RGB's minimum dollar increases, which give some

benefit to landlords of low-rent, slow-turnover apartments while their tenants remain in possession, and the state legislation governing the rent increases permitted after an apartment becomes vacant (*see* Administrative Code § 26-511 [c] [5-a]), which gives relief regardless of rent level after a slow-turnover apartment has finally become vacant. The two benefits, even where cumulative, are not logically inconsistent; nor is the state legislation so detailed and comprehensive as to imply that the Legislature has preempted the field.

Landlord and Tenant — Rent Regulation — Power of New York City Rent Guidelines Board to Make Distinctions in Rent Increases Allowed within Class of Accommodation

2. In *Matter of New York State Tenants & Neighbors Coalition, Inc. v Nassau County Rent Guidelines Bd.* (53 AD3d 550 [2d Dept 2008]) the Second Department invalidated an order of the Nassau County Rent Guidelines Board permitting rent increases that would vary with tenants' income. To the extent that the Second Department accepted the argument in that case that there can be no distinction in the rent increases allowed within a "class of accommodation," it was mistaken.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant §§ 906, 913.

NY JUR 2d, Landlord and Tenant §§ 444, 453.

NEW YORK REAL PROPERTY SERVICE §§ 74:71–74:73.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Rent.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: rent /2 guideline /2 board /s permit! /5 increase

POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (Fay Ng, Pamela Seider Dolgow, Spencer Fisher and Virginia Waters of counsel), for appellants. In establishing guidelines for rent adjustments, the Rent Guidelines Board has the authority to consider distinctions among housing accommodations determined by the Legislature to be subject to the Rent Stabilization Law (RSL) and the Emergency Tenant Protection Act (ETPA). For decades, the Board has been making distinctions among accommodations when it has adopted guidelines and the ETPA and the RSL do not prohibit this long-standing practice. The Legislature has acquiesced to the Board's construction of its authority under the ETPA and the RSL by its failure to amend the statutes. (*State of New York v Patricia II.*, 6 NY3d 160; *Stein v Rent Guidelines Bd. for City of N.Y.*, 127 AD2d 189;

Matter of Catholic Med. Ctr. of Brooklyn & Queens v Department of Health of State of N.Y., 48 NY2d 967; *Matter of Mercy Hosp. of Watertown v New York State Dept. of Social Servs.*, 79 NY2d 197; *Matter of Apartment House Council of Nassau County, Inc. v Nassau County Rent Guidelines Bd.*, 52 AD3d 702; *Incorporated Vil. of Great Neck Plaza v Nassau County Rent Guidelines Bd.*, 60 AD2d 593; *Presbyterian Hosp. in City of N.Y. v Maryland Cas. Co.*, 90 NY2d 274; *People v Ortega*, 69 NY2d 763; *Matter of Consolidated Edison Co. of N.Y. v Department of Envtl. Conservation*, 71 NY2d 186; *Kuppersmith v Dowling*, 93 NY2d 90.)

Legal Aid Society, New York City (Ellen B. Davidson, Steven Banks, Scott Rosenberg and Judith Goldiner of counsel), and *South Brooklyn Legal Services Inc.*, Brooklyn (John C. Grey, Edward Josephson and Rachel Hannaford of counsel), for respondents. I. The Rent Guidelines Board exceeded its authority when it issued supplemental longevity increases in orders 40 and 41 and thus those orders are void. (*People v Mobil Oil Corp.*, 48 NY2d 192; *Strauch v Town of Oyster Bay*, 263 App Div 833; *Matter of KSLM-Columbus Apts. v New York State Div. of Hous. & Community Renewal*, 6 AD3d 28, 5 NY3d 303; *La Guardia v Cavanaugh*, 53 NY2d 67; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *Matter of Tze Chun Liao v New York State Banking Dept.*, 74 NY2d 505; *Matter of Shankman v Axelrod*, 73 NY2d 203; *Matter of City of New York v State of N.Y. Commn. on Cable Tel.*, 47 NY2d 89; *Vink v New York State Div. of Hous. & Community Renewal*, 285 AD2d 203; *Matter of Foy v Schechter*, 1 NY2d 604.) II. The Rent Guidelines Board's reliance on legislative inaction and past practices does not allow it to avoid the plain meaning of its authorizing statute. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Clark v Cuomo*, 66 NY2d 185; *United States v Price*, 361 US 304; *Flanagan v Mount Eden Gen. Hosp.*, 24 NY2d 427; *Matter of Fanelli v New York City Conciliation & Appeals Bd.*, 90 AD2d 756, 58 NY2d 952; *Matter of 2084-2086 BPE Assoc. v State of N.Y. Div. of Hous. & Community Renewal*, 15 AD3d 288; *Matter of Ansonia Residents Assn. v New York State Div. of Hous. & Community Renewal*, 75 NY2d 206; *Rent Stabilization Assn. of N.Y. City v Higgins*, 83 NY2d 156; *Festa v Leshen*, 145 AD2d 49; *Stein v Rent Guidelines Bd. for City of N.Y.*, 127 AD2d 189.)

Rosenberg & Estis, P.C., New York City (Jeffrey Turkel and Alexander Lycoyannis of counsel), for Rent Stabilization Association of New York City, Inc. and another, amici curiae. Rent

Guidelines Board (RGB) Order Nos. 40 and 41 should be reinstated as a valid exercise of RGB's authority under Rent Stabilization Law (Administrative Code of City of NY) § 26-510 (b). (*Matter of Community Hous. Improvement Program v New York State Div. of Hous. & Community Renewal*, 230 AD2d 66; *City of New York v New York State Div. of Hous. & Community Renewal*, 97 NY2d 216; *Stein v Rent Guidelines Bd. for City of N.Y.*, 127 AD2d 189; *Matter of Chessin v New York City Conciliation & Appeals Bd.*, 100 AD2d 297, 62 NY2d 977; *Coalition Against Rent Increase Passalongs v Rent Guidelines Bd. for City of N.Y.*, 104 Misc 2d 101; *Department of Fin. of City of N.Y. v New York Tel. Co.*, 262 AD2d 96, 94 NY2d 755; *Matter of Kolb v Holling*, 285 NY 104; *Matter of Lockport Union-Sun & Journal v Preisch*, 8 NY2d 54; *Household Fin. Corp. v Goldring*, 263 App Div 524, 289 NY 574.)

Elizabeth R. Fine, General Counsel, the Council of the City of New York, New York City (Jeffrey P. Metzler and Lauren G. Axelrod of counsel), for the Council of the City of New York, amicus curiae. I. The Rent Guidelines Board exceeded its statutory authority by setting a different rate of rent increase for long-term tenants. (*Abiele Contr. v New York City School Constr. Auth.*, 91 NY2d 1; *Matter of Flynn v State Ethics Commn., Dept. of State, State of N.Y.*, 87 NY2d 199; *Saltser & Weinsier, Inc. v McGoldrick*, 295 NY 499; *People ex rel. City of Olean v Western N.Y. & Pa. Traction Co.*, 214 NY 526; *Matter of Quinby v Public Serv. Commn.*, 223 NY 244; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Lindh v Murphy*, 521 US 320; *Field v Mans*, 516 US 59; *Two Guys from Harrison-N.Y. v S.F.R. Realty Assoc.*, 63 NY2d 396.) II. The Rent Guidelines Board cannot substitute its own policy preferences for those of the Legislature. (*Weiss v City of New York*, 95 NY2d 1; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382; *Manocherian v Lenox Hill Hosp.*, 84 NY2d 385; *Shapiro v Dwelling Mgrs.*, 92 AD2d 52, 60 NY2d 612; *Boreali v Axelrod*, 71 NY2d 1; *Ragsdale v Wolverine World Wide, Inc.*, 535 US 81; *FDA v Brown & Williamson Tobacco Corp.*, 529 US 120; *Kerwick v New York State Bd. of Equalization & Assessment*, 117 AD2d 65.) III. The Rent Guidelines Board's remaining arguments have no merit. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Clark v Cuomo*, 66 NY2d 185; *United States v Price*, 361 US 304; *Stein v Rent Guidelines Bd. for City of N.Y.*, 127 AD2d 189; *Matter of Muriel Towers Co. v City of N.Y. Rent Guidelines Bd.*, 117 Misc 2d 837, 94 AD2d 982, 60 NY2d 643; *Matter of Chessin v New York City Conciliation & Appeals Bd.*, 100 AD2d 297, 62 NY2d 977;

Coalition Against Rent Increase Passalongs v Rent Guidelines Bd. for City of N.Y., 104 Misc 2d 101; *Matter of Cintron v Calogero*, 15 NY3d 347; *Matter of Crucible Materials Corp. v New York Power Auth.*, 13 NY3d 223; *People v Gilmour*, 98 NY2d 126.)

OPINION OF THE COURT

SMITH, J.

Petitioners challenge the validity of two orders of the New York City Rent Guidelines Board (RGB) that make a distinction between low-rent apartments in which there has been no recent vacancy and other apartments, allowing larger rent increases, in percentage terms, for apartments in the former category. We hold that the RGB has the power to make this distinction.

I

The RGB orders in issue here govern rent levels for the years ended September 30, 2009 and September 30, 2010. The two orders are identical in all relevant ways except for the amounts of the increases allowed. The parties focus on the first of the two, as will we.

The part of that order that concerns us sets out the rent increases permitted in renewal leases of apartments. It makes separate provision for apartments in which heat is provided by the landlord at no charge to the tenant, and those in which it is not; and it also distinguishes between one-year and two-year renewal leases. In each category, the order authorizes a percentage rent increase: for apartments where heat is provided, 4.5% for a one-year lease and 8.5% for a two-year lease; where heat is not provided, 4% for a one-year lease and 8% for a two-year lease.

However, “where the most recent vacancy lease was executed **six** years or more prior to the date of the renewal lease under this Order,” the order makes the percentage increases subject to a dollar floor, calculated to affect apartments in which the old rent was less than \$1,000 a month. For example, where heat is provided, the authorized increase in a one-year renewal lease is 4.5% or \$45, whichever is greater; for a two-year lease it is 8.5% or \$85, whichever is greater; and so forth. Thus, if the old rent on an apartment that had had no vacancy for six years or more was, say, \$450, a landlord who provided heat and offered a one-year renewal lease could charge an additional \$45—a 10% increase.

The RGB's purpose in taking this approach was to remedy what it saw as an inequity. Ordinarily, the permissible rent for a rent-stabilized apartment depends on the rent charged in the past, with relatively modest increases authorized annually by the RGB, and larger increases (or, at higher rent levels, decontrol) when the apartment becomes vacant. But the costs of maintaining an apartment and providing services to its occupant are often not in proportion to historical rents. Where the rent is relatively small and there is no vacancy for many years, the disproportion can become acute, with small annually-authorized increases that do not come close to covering increased costs. Those costs have to be paid somehow, so if percentage increases are uniform, the increases must be set at a level that allows landlords to make larger profits on the apartments that get larger increases, and to use those profits to pay the costs for the lower-rent apartments. In other words, tenants paying higher rents must subsidize those paying lower rents.

Perhaps that subsidy could be justified on the ground that tenants paying higher rents are generally wealthier. An analysis by the RGB staff, however, showed that the subsidy appears to be unfair even when tenant income is taken into account. The analysis (which excluded senior citizens receiving rent increase exemptions) showed that the median rent-to-income ratio for tenants living in their apartments six years or more was lower than the same ratio for all tenants—and would continue to be lower even if minimum increases in the range of those at issue here were imposed. The RGB therefore decided to adopt the minimums.

This case began as two CPLR article 78 proceedings, one relating to each of the RGB's orders; the proceedings have been consolidated. Petitioners are two rent-stabilized tenants, both of whom have lived in their apartments for more than six years and pay less than \$1,000 a month in rent, and a tenants' rights organization. They seek to annul the orders to the extent they allow minimum dollar increases. Petitioners make no claim that the minimum increases are unreasonable or unfair, but assert that the RGB lacks the power to permit them.

Supreme Court granted the relief petitioners sought (27 Misc 3d 340 [2010]), and the Appellate Division affirmed (*Matter of Casado v Markus*, 74 AD3d 632 [1st Dept 2010]). We granted leave to appeal (15 NY3d 712 [2010]), and now reverse.

II

Petitioners' primary argument is that the RGB has no power to create classes of housing accommodations—meaning, petitioners say, that the RGB is forbidden to draw any distinctions within any of the three “classes” of housing accommodations—apartments, hotel units and lofts—established by the New York City Council. Petitioners base this argument on two provisions of law: New York City Administrative Code § 26-510 (b), which is part of the Rent Stabilization Law (RSL), originally enacted in 1969 by the New York City Council (Local Law No. 16 [1969] of City of NY, codified as amended at Administrative Code § 26-501 *et seq.*); and section 3 (a) of the Emergency Tenant Protection Act (ETPA), enacted by the State Legislature in 1974 (L 1974, ch 576, § 4, codified as amended at McKinney's Uncons Laws of NY § 8621 *et seq.*). At the same time it enacted the ETPA, the Legislature repealed and reenacted the parts of the RSL relating to the RGB, making no relevant change in the language of section 26-510 (b) (L 1974, ch 576, § 9).

[1] In its current form, section 26-510 (b) authorizes the RGB to “establish annually guidelines for rent adjustments,” and to file with the City Clerk annually “a statement of the maximum rate or rates of rent adjustment, if any, for one or more classes of accommodations” (Administrative Code § 26-510 [b]). ETPA § 3 (a) (Uncons Laws § 8623 [a]) says that in New York City “[t]he existence of [a] public emergency requiring the regulation of residential rents for all or any class or classes of housing accommodations . . . shall be a matter for local determination . . . by the local legislative body.” (The power given the New York City Council by this section of the ETPA was largely revoked by the State Legislature in 2003 [*see* L 2003, ch 82, § 1, codified at Uncons Laws § 8605].) Petitioners claim that these enactments, read together, reserve the power to create “classes of housing accommodations” to the City Council exclusively, and that the City Council has not delegated and could not delegate to the RGB any power to draw distinctions between accommodations of the same class. Petitioners' argument does not persuade us.

On its face, the RSL does not prohibit the RGB from distinguishing some kinds of apartments from others. The language that empowers the RGB to establish “the maximum rate or rates of rent adjustment . . . for one or more classes of accommodations” (Administrative Code § 26-510 [b]) does not, as a simple matter of grammar, say or imply that there must be

only one “maximum rate . . . of rent adjustment” for each class. And the ETPA language that petitioners rely on (which has been in any event largely nullified by later legislation) has nothing to do with the issue before us. To say that a “local legislative body” may determine when a “public emergency” exists requiring rent regulation for “all or any class or classes of housing accommodations” (Uncons Laws § 8623 [a]) is to say nothing at all about whether, or by whom, multiple levels of rent increases may be permitted within each class.

In fact, the RGB has always made some distinctions between apartments, even though apartments are generally considered one “class” of housing accommodation. Most obviously, the RGB prescribes different rental rates for one-year and two-year leases. Petitioners say that this is an exception to the general rule against the making of distinctions within a “class,” and assert that the exception is authorized by Administrative Code § 26-511 (c) (4) (reenacted by the State Legislature, L 1985, ch 907, § 1). That code provision, however, says nothing about the RGB’s power to make distinctions: it says that landlords shall be required “to grant a one or two year . . . lease at the option of the tenant.” It is true that this requirement would make little sense if rent increases for one- and two-year leases had to be the same, because almost all tenants would elect two-year leases; but this reinforces our point—the Legislature must have assumed that the RGB would make common-sense distinctions when it fixed the increases allowed for apartments.

The RGB has made a number of other distinctions within the apartment “class.” It has allowed landlords to charge extra when electricity is included in the rent, and to collect “fuel adjustment surcharges” (see *Stein v Rent Guidelines Bd. for City of N.Y.*, 127 AD2d 189, 190, 196 [1st Dept 1987]; *Matter of Chessin v New York City Conciliation & Appeals Bd.*, 100 AD2d 297, 304 [1st Dept 1984]). Indeed, the order challenged in this case distinguishes between apartments in which heat is provided by the landlord and those in which it is not. Petitioners say that all these distinctions are invalid, and have survived only because the power to create them has never been challenged; they assert that they could, but chose not to, attack the heat-based distinction contained in the order now at issue. To us, however, the fact that such distinctions have long been accepted without question is further confirmation that nothing in the governing legislation can fairly be read to prohibit them.

We therefore reject petitioners’ argument that the RGB may not permit any increases that are larger, in percentage terms,

for some apartments than for others. But petitioners also attack the dollar minimum increases now at issue on a narrower ground. They point out that the problem addressed by these minimums—the plight of landlords who are unable for a long time to obtain vacancy increases—has been dealt with to some degree by state legislation. New York City Administrative Code § 26-511 (c) (5-a), adopted by the Legislature in 1997 (L 1997, ch 116, § 19), governs the rent increases permitted after an apartment becomes vacant. In general, the permissible vacancy increase is 20%, but where there has been no previous such increase within eight years “the legal regulated rent may be further increased” according to a formula stated in the legislation. Petitioners argue, in substance, that by giving landlords this form of relief, the Legislature implicitly prohibited the RGB from giving another form of relief for the same evil.

Again, petitioners’ argument does not persuade us. There is no conflict between the RGB’s dollar minimum increases, which give some benefit to landlords of low-rent, slow-turnover apartments while their tenants remain in possession, and the state legislation, which gives relief regardless of rent level after a slow-turnover apartment has finally become vacant. It is true that some landlords may, eventually, benefit from both provisions, but the two benefits, even where cumulative, are not logically inconsistent. Nor is the state legislation so detailed and comprehensive as to imply that the Legislature has preempted the field.

[2] Petitioners rely on *Matter of New York State Tenants & Neighbors Coalition, Inc. v Nassau County Rent Guidelines Bd.* (53 AD3d 550 [2d Dept 2008]), which invalidated an order of the Nassau County Rent Guidelines Board permitting rent increases that would vary with tenants’ income. The *New York State Tenants* Court held that “the Board exceeded its statutory authority in establishing a separate class of accommodation based on tenant income” (*id.* at 552). To the extent that the Second Department in *New York State Tenants*—like the First Department here—accepted the argument that there can be no distinction in the rent increases allowed within a “class of accommodation” it was mistaken, for the reasons we have explained.

This does not mean that the result in *New York State Tenants* was necessarily wrong. It could be argued that, in making distinctions based on tenant income, the Nassau County Rent Guidelines Board trespassed on a sensitive policy area that is

within the Legislature's special province (see *Boreali v Axelrod*, 71 NY2d 1 [1987]). We do not pass on the merit of that argument as it applies to the *New York State Tenants* case. But we find the argument inapplicable here, where the RGB has dealt with a narrower, more technical and less sensitive issue.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the petitions dismissed.

CIPARICK, J. (dissenting). Because I believe that the New York City Rent Guidelines Board (RGB or Board) lacks authority to promulgate orders imposing dollar minimum increases solely on tenants who have been living in their apartments for six years or more and paying less than \$1,000 per month in rent, I respectfully dissent.

I find it unnecessary to reach the question of whether the RGB has authority to create any distinctions whatsoever within the extant classes of accommodation, since it patently lacks power to draw the particular distinction at issue here. As the majority explains, the Board's authority is derived from Administrative Code of the City of NY (Rent Stabilization Law of 1969) § 26-510 (b), under which it may "establish annually guidelines for rent adjustments." Even assuming that the Board, pursuant to this delegation, can set multiple rates for each class of housing, its ability to do so is limited by well-settled principles of administrative law.

Under the two orders at issue on this appeal, a tenant who has been living in an apartment for six years or more is subject to a minimum increase, whereas a more recent tenant in an identical apartment paying identical rent is not so subject. The rationale behind these orders is apparently, as Supreme Court explained, "to attempt to equalize the rental amounts that long-term and short-term tenants pay, because the operating expenses for those apartments are the same" (27 Misc 3d 340, 346 [2010]), yet long-term tenants generally pay less than more recent tenants for the same apartments.

Of course, it is no coincidence that long-term tenants are the greatest beneficiaries of rent stabilization, or that, in the majority's words, "tenants paying higher rents must subsidize those paying lower rents" (majority op at 334). This inequality is due, in large part, to the Rent Regulation Reform Act of 1997 (L 1997, ch 116, § 19), which amended the Rent Stabilization Law to provide that a vacancy lease can increase a unit's rent by up to 20%, and even more where there has been no vacancy

increase in the prior eight years or the rent is particularly low (Administrative Code of City of NY § 26-511 [c] [5-a]). The evident purpose of these changes was to bring apartments closer to market rent as they become vacated (*see* Governor's Approval Mem, Bill Jacket, L 1997, ch 116, at 38-39). Critically, the Legislature did not couple the large rent increases it was authorizing for new tenants with any alteration in how rent increases were calculated for current tenants. Under this scheme, by design, there is a large rent gap between new tenants and those whose tenancies predate the amendment, and it will increase as many apartments experience repeated vacancies.

"It is a fundamental principle of administrative law that an agency cannot promulgate rules or regulations that contravene the will of the Legislature" or are "'out of harmony' with an applicable statute" (*Weiss v City of New York*, 95 NY2d 1, 4-5 [2000]), yet the RGB did exactly that. By creating varied rates with the intended effect of minimizing the degree to which landlord costs are disproportionately covered by higher-paying apartments, the Board sought to mitigate a rent disparity the Legislature created.

More broadly, it is axiomatic that, "[a]s an arm of the executive branch of government, an administrative agency may not, in the exercise of rule-making authority, engage in broad-based public policy determinations" (*Rent Stabilization Assn. of N.Y. City v Higgins*, 83 NY2d 156, 169 [1993], citing *Boreali v Axelrod*, 71 NY2d 1, 9 [1987]). It strikes me as a great usurpation of power for the RGB to create separate increases based on what it perceives as a structural inequity in the rent laws. The Board found it problematic that long-term tenants shoulder such a small percentage of landlord costs, and this determination, in our view, crosses "the difficult-to-define line between administrative rule-making and legislative policy-making" (*Boreali*, 71 NY2d at 11).

Indeed, the RGB has conceded throughout this litigation that any distinctions in rate increases must be based on factors sufficiently connected to the housing accommodations themselves.* It seems to have accepted the reasoning of *Matter of New York State Tenants & Neighbors Coalition, Inc. v Nassau County*

* In Supreme Court, "the RGB concede[d] that it may not create classes of accommodations based on factors, such as the income of the tenants, that are not sufficiently connected to the housing accommodations themselves." (27 Misc 3d at 349.) Far from repudiating this view on appeal, the Board reiter-

(n. cont'd)

Rent Guidelines Bd. (53 AD3d 550, 552 [2d Dept 2008]), which relied on *Boreali* and *Weiss* in striking down a rent increase contingent on tenants' income. We see no relevant distinction between creating varied rates of increase based on income, which the Board concedes would be ultra vires, and varied rates based on duration of tenancy.

Finally, I note that under the majority's reasoning there is no limit to the amount that the Board can increase rents at the lowest end of the rent-stabilized spectrum for the purpose of evenly distributing maintenance costs that in many buildings are shared by long-term, newer, and market-rate tenants. To me, it is obvious that such equalization is anathema to the purpose of the Rent Stabilization Law, and therefore beyond the Board's authority.

Accordingly, I would affirm the order of the Appellate Division.

Chief Judge LIPPMAN and Judges GRAFFEO, READ and PIGOTT concur with Judge SMITH; Judge CIPARICK dissents and votes to affirm in a separate opinion in which Judge JONES concurs.

Order reversed, etc.

ated during oral argument before us that a rate distinction based on income would be inappropriate.

[946 NE2d 726, 921 NYS2d 628]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v FREDDY
RODRIGUEZ, Respondent.

Argued February 10, 2011; decided March 24, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 16, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Robert E. Torres, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the second degree, assault in the second degree (two counts), vehicular manslaughter in the second degree, vehicular assault in the second degree (two counts), and operating a motor vehicle while under the influence of alcohol (two counts), and (2) remanded the matter for a new trial.

People v Rodriguez, 72 AD3d 238, reversed.

HEADNOTES

Crimes — Justification — Defense Requires Two “Evils”

1. In a prosecution for various crimes arising from a series of events in which the intoxicated defendant entered an acquaintance’s turned-off, double-parked and overloaded box truck that was facing downhill with its keys in the ignition, and the truck descended the hill, striking cars and three pedestrians, there was no reasonable view of the evidence that would have supported a justification charge relative to the crimes of manslaughter in the second degree and assault in the second degree. To be entitled to the “choice-of-evils” defense under Penal Law § 35.05 (2), which provides that, under certain circumstances, conduct that would otherwise constitute an offense is justified when it is necessary as an emergency measure to avoid imminent injury about to occur through no fault of the actor, there must be two “evils.” Here, while the People claimed that defendant entered the truck in order to play a trick on the driver by moving the truck to the bottom of the hill, defendant testified that he entered the truck as it was already descending the hill and attempted to steer and stop the truck. Even under the defendant’s scenario, there was no “evil” on his part. According to defendant, he was not committing any offense when he jumped into a runaway vehicle to prevent it doing harm to others.

Crimes — Justification — Failure to Give Justification Charge — Harmless Error

2. In a prosecution for various crimes arising from a series of events in which the intoxicated defendant entered an acquaintance’s turned-off, double-parked and overloaded box truck that was facing downhill with its keys in the ignition, and the truck descended the hill, striking cars and three pedestrians, the trial court’s error in denying defendant’s request for a justification charge under Penal Law § 35.05 (2) relative to the counts of operating a motor

vehicle while intoxicated was harmless. Penal Law § 35.05 (2), often referred to as the “choice-of-evils” defense, provides that, under certain circumstances, conduct that would otherwise constitute an offense is justified when it is necessary as an emergency measure to avoid imminent injury about to occur through no fault of the actor. Here, defendant testified that he jumped into a runaway vehicle to prevent it doing harm to others. If defendant elected to operate the truck while under the influence of alcohol, in an attempt to prevent injury, he faced the choice of two evils: drive while intoxicated or risk a runaway truck causing injury. However, the trial court’s error in failing to grant a justification charge with respect to the operating a motor vehicle while intoxicated counts was harmless as evidenced by the jury’s conviction of defendant of second-degree manslaughter and second-degree assault, which required the jury to conclude that the truck was not moving before defendant entered it. Because the jury concluded that defendant caused the truck to move, the jury never would have considered his “choice-of-evils” defense on the charge of driving while intoxicated. As a result, the error of not giving the justification charge with respect to the vehicular manslaughter and vehicular assault counts, which included as an element the operation of a motor vehicle while intoxicated, was also harmless.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Criminal Law §§ 142, 415; AM JUR 2d, Trial § 1064.
CARMODY-WAIT 2d, Charge and Instruction to Jury §§ 200:64, 200:66.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.8.
MCKINNEY’S, Penal Law § 35.05 (2).
NY JUR 2d, Criminal Law: Procedure § 2769; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 147–150, 152, 153, 155, 444, 562.

ANNOTATION REFERENCE

See ALR Index under Instructions to Jury; Justification or Excuse.

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Database: NY-ORCS

Query: justification /4 charge instruct! /p choice /3 evil

POINTS OF COUNSEL

Robert T. Johnson, District Attorney, Bronx (Stanley R. Kaplan and Joseph N. Ferdenzi of counsel), for appellant. The majority opinion of the Appellate Division, First Department, erroneously required a “choice-of-evils” instruction pursuant to Penal Law § 35.05 (2), where defendant failed to offer evidence that he had engaged in any conduct that could constitute a

“lesser evil” warranting justification of his conduct. (*People v Craig*, 78 NY2d 616; *People v O’Neal*, 172 AD2d 217; *People v Cox*, 92 NY2d 1002; *People v Butts*, 72 NY2d 746; *People v Scarborough*, 49 NY2d 364; *People v Maher*, 79 NY2d 978; *People v Newman*, 3 Misc 3d 361, 26 AD3d 589; *People v Padgett*, 60 NY2d 142; *People v Huntley*, 87 AD2d 488, 59 NY2d 868; *People v Zona*, 14 NY3d 488.)

Yalkut & Israel, Bronx (Arlen S. Yalkut of counsel), for respondent. The Appellate Division’s majority opinion should be affirmed. The trial court’s failure to charge justification under Penal Law § 35.05 deprived defendant of a fair trial. The jury was prevented from considering this defense which would have constituted a complete defense to the major felony counts. (*People v Newman*, 3 Misc 3d 361; *People v Rivera*, 138 AD2d 169; *People v Huntley*, 87 AD2d 488; *People v Torre*, 42 NY2d 1036; *People v Burnell*, 84 AD2d 566; *People v Petty*, 7 NY3d 277; *People v McManus*, 67 NY2d 541; *People v Watts*, 57 NY2d 299; *People v Maher*, 79 NY2d 978; *People v Musto*, 243 AD2d 508.)

OPINION OF THE COURT

FIGOTT, J.

The issue in this case is whether defendant was entitled to a charge of justification with respect to his conduct during a bizarre series of events that ended with the tragic death of one person and serious injury to two others. That defense, found in Penal Law § 35.05 (2), often referred to as the “choice-of-evils” defense, provides that conduct that would otherwise constitute an offense is justified when it:

“is necessary as an emergency measure to avoid an imminent public or private injury which is about to occur by reason of a situation occasioned or developed through no fault of the actor, and which is of such gravity that, according to ordinary standards of intelligence and morality, the desirability and urgency of avoiding such injury clearly outweigh the desirability of avoiding the injury sought to be prevented by the statute defining the offense in issue.”

Certain facts in this case are not in dispute. On August 1, 2005, one Francisco Rios double-parked his overloaded box truck, facing downhill, at 103-105 Mt. Eden Avenue in the Bronx. Rios placed the truck in reverse and turned the engine

off, leaving the keys in the ignition before going into a store. Defendant, who was walking by, entered the truck. While defendant was inside, the truck descended Mt. Eden Avenue and struck several cars and three pedestrians, seriously injuring two and killing one. At trial, the People and defendant offered the jury markedly different stories as to how all of this occurred.

The People claimed that an intoxicated defendant, who admittedly knew Rios, wanted to play a trick on him by moving his truck to the bottom of the hill. This theory was supported by the testimony of an eyewitness, Carlos Montilla, who had known defendant for 10 years and witnessed the accident. Montilla testified that defendant exited the truck after the incident and asked him, "How many people did I kill?" Montilla, seeing three people laying in the road, responded, "[Y]ou killed three people," to which defendant replied, "Oh, I was joking around with the truck. I was making a joke and look at what I've done." A police officer, called to the scene, testified that defendant had "glassy" eyes and "slurred" speech. Evidence established that defendant had a blood alcohol content of .09% nearly four hours after the incident which, according to an expert called by the People, meant that his blood alcohol content at the time of the incident was between .13% and .17%, substantially above the "legal limit" of .08%.

Defendant had a different version of events. He testified that he had previously owned a supermarket on Mt. Eden Avenue and was familiar with Rios's truck because Rios had delivered produce to his store. On this day as he was walking past the truck, he "saw a movement of the truck." He ran between parked cars to get to the truck which, by this time, was descending the hill and approaching an intersection. Defendant opened the passenger side door, jumped inside, slid over behind the steering wheel and pumped the brakes, to no avail. He tried steering, but the wheel was hard to move. Despite his best efforts, the truck struck several pedestrians crossing the street. He exited the truck on the passenger's side, and went to a nearby bodega. Defendant denied knowing Montilla or making any statement to him after the incident.

At the charge conference following the close of proof, defense counsel sought the justification charge in accordance with Penal Law § 35.05 (2). The court denied the request, stating that based upon its reading of the statute and case law, it failed to "see how a [j]ustification [c]harge would be warranted under these particular facts and circumstances."

The jury found defendant guilty of manslaughter in the second degree (Penal Law § 125.15 [1]), two counts of assault in the second degree (Penal Law § 120.05 [4]), vehicular manslaughter in the second degree (Penal Law § 125.12), two counts of vehicular assault in the second degree (Penal Law § 120.03 [1]), and two counts of operating a motor vehicle while under the influence of alcohol (Vehicle and Traffic Law § 1192 [2], [3]).

The Appellate Division, in a 3-2 decision, reversed, holding that because there was “a reasonable view of the evidence that defendant unlawfully entered and operated the [truck] while intoxicated in an attempt to avoid injury while confronting a situation not of his making, he was entitled to a justification charge,” further stating that Supreme Court’s “unexplained omission” of the charge constituted reversible error (72 AD3d 238, 239 [1st Dept 2010]). The dissenting Justices would have affirmed the trial court. A Justice of that Court granted the People leave to appeal, and we now reverse.

[1] Addressing the most serious felonies of which defendant was convicted—manslaughter in the second degree and assault in the second degree—we conclude that there was no reasonable view of the evidence that would have supported a justification charge relative to either of those crimes (*see People v Cox*, 92 NY2d 1002, 1004-1005 [1998]). Penal Law § 35.05 (2) is often referred to as the “choice-of-evils” defense, and properly so. To be entitled to such a charge there must be two “evils.” And here, even under defendant’s scenario, there was no “evil” on his part. According to defendant, he was not committing any offense when he jumped into a runaway vehicle to prevent it doing harm to others. So, as to the most serious charges, a justification charge was clearly unwarranted.

[2] Supreme Court erred, however, in refusing to give a justification charge relative to the counts of operating a motor vehicle while intoxicated. If defendant elected to operate a motor vehicle, here the truck, while under the influence of alcohol, in an attempt to prevent injury, he faced the choice of two evils: drive while intoxicated or risk a runaway truck causing injury. Therefore, Supreme Court should have granted defendant’s request for a justification charge with respect to the operating a motor vehicle while intoxicated counts. However, any error was harmless as evidenced by the jury’s conviction of defendant of the second-degree manslaughter and assault counts. To find defendant guilty of those charges, the jury was required to conclude, beyond a reasonable doubt, that defendant caused the

truck's movement, i.e., that it was not moving before he entered it. Because the jury concluded that it was defendant who caused the truck to move, and not, as defendant contended, that the truck was already moving, the jury never would have considered his "choice-of-evils" defense on the charge of driving while intoxicated. As a result, the error of not giving the justification charge with respect to the vehicular manslaughter and vehicular assault counts, which include as an element the operation of a motor vehicle while intoxicated, was harmless, and defendant is not entitled to a new trial to correct the error.

Accordingly, the order of the Appellate Division should be reversed and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on the appeal to that court.

Chief Judge LIPPMAN (dissenting in part). I agree with the majority that defendant was not entitled to a justification charge with respect to the crimes of manslaughter in the second degree and assault in the second degree. However, as to the remaining counts, viewing the evidence in the light most favorable to defendant, he was entitled to the benefit of a choice-of-evils defense. Since the error in failing to give the requested instruction was not harmless, I dissent in part.

"Justification is a defense—as opposed to an affirmative defense—and the [P]eople have the burden of disproving such defense beyond a reasonable doubt" (*People v Steele*, 26 NY2d 526, 528 [1970] [internal quotation marks and citation omitted]). "When evidence at trial viewed in the light most favorable to the accused, sufficiently supports a claimed defense, the court should instruct the jury as to the defense, and must when so requested. A failure by the court to charge the jury constitutes reversible error" (*People v Watts*, 57 NY2d 299, 301 [1982]).

Viewing the evidence in the light most favorable to defendant, he engaged in criminal conduct—driving while intoxicated—in an attempt to avoid the potentially greater harm that could result from an unattended truck rolling down a busy street in a densely populated area. There is no support for the conclusion that defendant recklessly caused death and serious physical injury to the victims in order to avoid greater harm. In other words, as the majority concludes as to the top two counts against him, defendant was not forced to choose between two evils (*see* majority op at 345). Defendant's version of events does, however,

clearly support the requested justification charge as to the counts of driving while intoxicated and the alcohol-related assault and manslaughter charges. It was therefore error for the court to refuse to charge the jury with the justification defense as to those counts.

This type of error will be considered harmless when there is overwhelming evidence refuting the justification defense and no reasonable possibility that the requested charge would have led to a different verdict (*see People v Petty*, 7 NY3d 277, 286 [2006]; *People v Jones*, 3 NY3d 491, 497 [2004]). It cannot be said that the People produced overwhelming proof disproving defendant's claim of justification. One version of events may seem more likely than the other, but this presented a question of credibility for the jury to resolve. The absence of the charge certainly hurt the defense, depriving it of the judicial imprimatur of its perspective of the matter and the benefit of a favorable burden of proof. The majority's reliance on the convictions obtained without the warranted charge hardly shows the lack of impact of the error. I would, therefore, modify to reinstate the convictions of manslaughter in the second degree and assault in the second degree, and otherwise affirm.

CIPARICK, J. (dissenting). Because I believe that Supreme Court erred in refusing to give a choice-of-evils justification instruction to the jury (Penal Law § 35.05 [2]), as requested by defendant, I respectfully dissent and would affirm the order of the Appellate Division.

It is well-settled that “a defendant is entitled to an instruction as to any recognized defense for which there exists evidence sufficient for a reasonable jury to find in his favor” (*Mathews v United States*, 485 US 58, 63 [1988]). In determining whether the evidence is sufficient, “[a] court must view the evidence adduced at trial in the light most favorable to the defendant” (*People v Zona*, 14 NY3d 488, 493 [2010]; *see also People v Butts*, 72 NY2d 746, 750 [1988]). A court's failure to instruct a jury on an entitled defense, when requested, “constitutes reversible error” (*Zona*, 14 NY3d at 493, citing *People v Watts*, 57 NY2d 299, 301 [1982]).

Here, the evidence adduced at trial warranted a justification instruction. As the Appellate Division majority correctly concluded, “the jury could have inferred that defendant took the otherwise reckless risk of driving the truck while in an intoxicated condition in order to prevent the vehicle from

causing imminent injury to others, there being no time to take any other action” (*People v Rodriguez*, 72 AD3d 238, 244 [1st Dept 2010]). The majority’s assertion that the jury must have concluded that “defendant caused the truck’s movement” (majority op at 345-346) to find him guilty of the second-degree manslaughter and assault charges has no bearing on whether defendant was entitled to his request to charge prior to the court’s submission of the case to the jury. Had the jurors been properly charged on justification, we do not know what they would have concluded (*People v Tucker*, 55 NY2d 1, 7 [1981] [it is not the function of this Court to “speculat(e) on how the jury (would have) perceived and weighed the evidence”]).

In sum, because a reasonable view of the evidence supports the theory that defendant unlawfully entered and operated the vehicle while intoxicated in an attempt to avoid injury—confronting a situation not of his own making—the refusal of Supreme Court to give a justification charge relative to all the counts in the indictment was error.

Judges GRAFFEO, READ, SMITH and JONES concur with Judge FIGOTT; Chief Judge LIPPMAN dissents in part and votes to modify in a separate opinion; Judge CIPARICK dissents and votes to affirm in another opinion.

Order reversed, etc.

[947 NE2d 124, 922 NYS2d 233]

STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY,
Respondent-Appellant, v JOHN ROBERT LANGAN, as Admin-
istrator of the Estate of NEIL CONRAD SPICEHANDLER,
Deceased, Appellant-Respondent.

Argued February 8, 2011; decided March 29, 2011

SUMMARY

CROSS APPEALS, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered September 16, 2008. The Appellate Division modified, on the law, so much of an order of the Supreme Court, Nassau County (Anthony L. Parga, J.; op 2006 NY Slip Op 30400[U]), as granted, upon renewal, plaintiff insurer's motion for summary judgment declaring that it was not obligated to provide insurance coverage for the injuries sustained by decedent Neil Conrad Spicehandler as a result of a hit-and-run incident, and denied defendant's cross motion for summary judgment declaring that plaintiff was obligated to provide insurance coverage for the injuries sustained by decedent as a result of the incident. The modification consisted of (1) deleting the provision of the order, upon renewal, granting that branch of plaintiff's motion which was for summary judgment declaring that plaintiff was not obligated to provide coverage pursuant to the mandatory personal injury protection endorsement and death, dismemberment, and loss of sight provisions of its insurance contract for the injuries sustained by decedent, and substituting therefor a provision, upon renewal, denying that branch of the motion, and (2) deleting the provision of the order, upon renewal, denying that branch of defendant's cross motion which was for summary judgment declaring that plaintiff was obligated to provide coverage pursuant to the mandatory personal injury protection endorsement and death, dismemberment, and loss of sight provisions of its insurance contract for the injuries sustained by decedent, and substituting therefor a provision, upon renewal, granting that branch of the cross motion. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the opinion and order of this court dated September 16, 2008, properly made?"

State Farm Mut. Auto. Ins. Co. v Langan, 55 AD3d 281, modified.

HEADNOTE**Insurance — Automobile Insurance — Intentional Assault of Innocent Insured was “Accident” within Meaning of Policy**

The insured decedent, a victim of an intentional crime when he was struck by a vehicle intentionally driven into him, was injured as the result of “an accident” within the meaning of the uninsured/underinsured motorist (UM) endorsement and other provisions of the insured’s automobile liability policy, and decedent’s estate was therefore entitled to benefits under those policy provisions. In order to determine whether a particular event was accidental for the purposes of an automobile insurance policy, the occurrence must be viewed from the insured’s perspective to see whether or not it was unexpected, unusual and unforeseen. In addition, consistent with the reasonable expectation of the insured under the policy and the stated purpose of the policy’s UM endorsement to provide coverage against damage caused by uninsured motorists, the intentional assault of an innocent insured is an accident within the meaning of his or her own policy. Here, even though the driver admittedly intended to strike decedent with the vehicle, the occurrence, viewed from the insured’s point of view, was clearly an unexpected or unintended event, and therefore an “accident.” The insured was also entitled to coverage under the policy’s mandatory personal injury protection endorsement and death, dismemberment and loss of sight endorsement; the average insured’s understanding of the term “accident” is unlikely to vary from endorsement to endorsement within the same policy. The occurrence at issue was certainly unexpected and unforeseen from the insured’s perspective, and should be considered an accident subject to coverage.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Automobile Insurance §§ 36, 314, 319.

COUCH ON INSURANCE (3d ed) § 123:33.

NY JUR 2d, Insurance §§ 1813, 1821, 1834.

ANNOTATION REFERENCE

Coverage under uninsured motorist clause of injury inflicted intentionally. 72 ALR3d 1161.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: intent! /6 crim! /s accident & uninsured /2 motorist

POINTS OF COUNSEL

Saiber, LLC, New York City (*Jennine DiSomma* of counsel), for appellant-respondent. I. Appellant is entitled to coverage and benefits under the subject insurance policy as Mr. Spicehandler’s injuries were “caused by an accident.” (*Roche v United States Fid. & Guar. Co.*, 273 NY 473; *Matter of Daniel*

[*Motor Veh. Acc. Indem. Corp.*], 181 Misc 2d 941; *De Forte v Allstate Ins. Co.*, 81 AD2d 465; *Michaels v City of Buffalo*, 85 NY2d 754; *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 7 NY2d 222; *Miller v Continental Ins. Co.*, 40 NY2d 675; *Agoado Realty Corp. v United Intl. Ins. Co.*, 95 NY2d 141; *Siagha v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 306 AD2d 60; *ACE Fire Underwriters Ins. Co. v Orange-Ulster Bd. of Coop. Educ. Servs.*, 8 AD3d 593.) II. Public policy dictates that the term “accident” within the subject insurance policy be determined from the perspective of the insured and that Mr. Spicehandler’s injuries were therefore caused by an “accident” within the meaning of the subject policy. (*McCarthy v Motor Veh. Acc. Indem. Corp.*, 12 NY2d 922; *Milwaukee Mut. Ins. Co. v Butler*, 615 F Supp 491.) III. Ronald Popadich’s guilty plea and subsequent criminal conviction are not determinative of the issue of appellant’s entitlement to coverage under his insurance policy. (*Westchester Med. Ctr. v Travelers Prop. Cas. Ins. Co.*, 309 AD2d 927; *Matter of Allstate Ins. Co. v Massre*, 14 AD3d 610; *Matter of Willer v New York State Bd. of Regents*, 101 AD2d 937; *Capital Tel. Co. v Pattersonville Tel. Co.*, 56 NY2d 11; *D’Arata v New York Cent. Mut. Fire Ins. Co.*, 76 NY2d 659; *Jeffreys v Griffin*, 301 AD2d 232; *New York Cent. Mut. Fire Ins. Co. v Wood*, 36 AD3d 1048; *People v Slaughter*, 189 AD2d 157.) IV. Appellant is entitled to attorneys’ fees because an insured is allowed to recover attorneys’ fees if he successfully defends his insurance company’s action to disclaim coverage. (*Mighty Midgets v Centennial Ins. Co.*, 47 NY2d 12.)

Rivkin Radler LLP, Uniondale (*Evan H. Krinick*, *Cheryl F. Korman* and *Harris J. Zakarin* of counsel), for respondent-appellant. I. John Robert Langan was not entitled to uninsured motorist benefits where Neil Conrad Spicehandler was the victim of a criminal assault and coverage for these benefits is only available for injuries sustained in an accident. (*Matter of Metropolitan Prop. & Cas. Ins. Co. v Mancuso*, 93 NY2d 487; *Buckner v Motor Veh. Acc. Indem. Corp.*, 66 NY2d 211; *City of Albany v Standard Acc. Ins. Co.*, 7 NY2d 422; *Morgan v Greater N.Y. Taxpayers Mut. Ins. Assn.*, 305 NY 243; *McGroarty v Great Am. Ins. Co.*, 36 NY2d 358; *Messersmith v American Fid. Co.*, 232 NY 161; *Miller v Continental Ins. Co.*, 40 NY2d 675; *Michaels v City of Buffalo*, 85 NY2d 754; *Beach Haven Apts., No. 6 v Allcity Ins. Co.*, 182 AD2d 658, 80 NY2d 761; *Olin v Moore*, 178 AD2d 517.) II. The Appellate Division erroneously concluded that State Farm Mutual Automobile Insurance Company was obligated to provide benefits pursuant to the

policy's mandatory personal injury protection endorsement and its death, dismemberment and loss of sight provisions. (*McCarthy v Motor Veh. Acc. Indem. Corp.*, 16 AD2d 35, 12 NY2d 922; *Matter of Knickerbocker Ins. Co. [Faison]*, 22 NY2d 554; *Utica Mut. Ins. Co. v Timms*, 293 AD2d 669; *Eveready Ins. Co. v Asante*, 153 AD2d 874; *Matter of Michigan Millers Mut. Ins. Co. v Cullington*, 59 AD2d 784; *Nallan v Union Labor Life Ins. Co.*, 42 NY2d 884; *Aetna Life & Cas. Co. v Nelson*, 67 NY2d 169; *Raffellini v State Farm Mut. Auto. Ins. Co.*, 9 NY3d 196; *Oberly v Bangs Ambulance*, 96 NY2d 295; *Matter of Medical Socy. of State of N.Y. v Serio*, 100 NY2d 854.) III. John Robert Langan's remaining miscellaneous arguments are without merit. (*Fundamental Portfolio Advisors, Inc. v Tocqueville Asset Mgt., L.P.*, 7 NY3d 96; *Nassau Trust Co. v Montrose Concrete Prods. Corp.*, 56 NY2d 175; *Matter of Walls v Levin*, 150 AD2d 873; *Matter of E.F.S. Ventures Corp. v Foster*, 71 NY2d 359; *Triple Cities Constr. Co. v Maryland Cas. Co.*, 4 NY2d 443; *Metropolitan Life Ins. Co. v Childs Co.*, 230 NY 285; *Lynn v Lynn*, 302 NY 193; *City of New York v Welsbach Elec. Corp.*, 9 NY3d 124; *Liss v Trans Auto Sys.*, 68 NY2d 15; *Matter of Balcerak v County of Nassau*, 94 NY2d 253.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

At issue in this appeal is whether the insured decedent, the victim of an intentional crime, was injured as the result of an accident within the meaning of the uninsured motorist endorsement and certain other provisions of the insured's policy. Since the occurrence must be viewed from the insured's perspective, we conclude that it was indeed an accident and that the insured is entitled to benefits under the policy provisions at issue.

Decedent, Neil Conrad Spicehandler, was struck by a vehicle at 7th Avenue and 32nd Street in Manhattan on February 12, 2002. He sustained a compound fracture of his left lower leg, requiring surgery, and died from complications shortly after the operation. Decedent was one of many who were injured when the driver, Ronald Popadich, intentionally drove his vehicle into pedestrians. Popadich later pleaded guilty to second degree murder and admitted that he intended to cause Spicehandler's death.

Decedent was an insured under an automobile liability policy purchased by defendant Langan through plaintiff State Farm. As the administrator of decedent's estate, Langan made a claim

seeking to recover benefits under the policy's uninsured/underinsured motorist (UM) endorsement, mandatory personal injury protection endorsement (PIP endorsement) and death, dismemberment and loss of sight endorsement (Coverage S).^{*} The policy's UM endorsement provides that it

“will pay all sums that the insured or the insured's legal representative shall be legally entitled to recover as damages from the owner or operator of an uninsured motor vehicle because of bodily injury sustained by the insured, caused by an accident arising out of such uninsured motor vehicle's ownership, maintenance or use”

subject to relevant policy exclusions. The PIP endorsement and Coverage S likewise state that they will pay benefits for injuries sustained as the result of “an accident.” These endorsements exclude coverage on several bases, but none specifically excludes coverage for an injury that results from intentional conduct. State Farm denied and disclaimed liability because it determined, as relevant here, that decedent's death was caused not by an accident, but by the intentional conduct of the operator of the vehicle.

State Farm commenced this declaratory judgment action seeking a declaration that it was not obligated to provide benefits in connection with decedent's death. Defendant answered and counterclaimed, requesting a declaration that State Farm was required to provide coverage under the policy. Plaintiff's motion and defendant's cross motion for summary judgment were denied because the parties had not, at that point, provided the court with information regarding the outcome of the criminal action against Popadich, which the court deemed “essential” to determining whether decedent's injuries were caused by an intentional act (2004 NY Slip Op 30243[U]). The Appellate Division upheld the portion of the Supreme Court order that denied summary judgment on the issue of whether the incident was covered by the policy, finding that there was insufficient proof to determine whether decedent had been the victim of an intentional crime, but that, if he had, the incident would not be covered (18 AD3d 860, 862 [2d Dept 2005]).

After Popadich was convicted of second degree murder, State Farm renewed its motion for summary judgment, again seeking

^{*} This action solely concerns claims made under Langan's own policy—not the policy of either the driver or the vehicle.

a declaration that it was not required to provide benefits under the policy. Langan opposed the motion and cross-moved for summary judgment, urging that whether the incident was an accident within the meaning of the policy must be determined from the perspective of the insured. Supreme Court granted State Farm's motion and denied Langan's cross motion on the basis of Popadich's conviction (2006 NY Slip Op 30400[U]).

On appeal, a majority of the Appellate Division modified to declare that State Farm was required to provide benefits under the mandatory PIP and Coverage S endorsements and, as so modified, affirmed (55 AD3d 281 [2d Dept 2008]). The Court determined that State Farm was not required to provide UM benefits because the purpose of statutorily required uninsured motorist coverage is to provide an individual with the same level of coverage he or she would be entitled to if injured in an accident with an insured motorist covered by an applicable policy. Since a standard liability policy would not have covered Popadich for his intentional criminal conduct, the Court found that Langan's UM coverage was not applicable under the circumstances presented here. However, the Court determined that in other contexts it was appropriate to determine whether a particular event was an accident from the insured's point of view, that the incident was clearly unexpected from decedent's perspective and that, as a result, State Farm was required to provide coverage under the PIP and Coverage S endorsements.

Two Justices dissented in part and would have affirmed Supreme Court's order declaring that State Farm was not required to provide coverage. The dissent agreed that Langan was not entitled to UM benefits under current law based on Popadich's intentional conduct, but observed that there had been a recent national trend to allow for coverage in similar circumstances and that strong public policy considerations weighed in favor of coverage. The dissent would have denied PIP and Coverage S benefits based on the law of the case and, in any event, disagreed that the same term should be interpreted differently within the same policy. Both parties appeal pursuant to leave granted by the Appellate Division, which certified for our review the question of whether its order was properly made. We modify and answer the certified question in the negative.

This appeal turns on whether decedent's injuries were caused by an accident within the meaning of the policy. Although the endorsements at issue do not define the term "accident," we have previously held that it is not to be "given a narrow,

technical definition,” but should be interpreted according to how it would be understood by the average person (*Miller v Continental Ins. Co.*, 40 NY2d 675, 676 [1976]). We have determined that, for purposes of automobile insurance policies, the term “accident” means an event typically involving violence or the application of external force (see *Michaels v City of Buffalo*, 85 NY2d 754, 758 [1995]). In order to determine whether a particular event was “‘accidental, it is customary to look at the casualty from the point of view of the insured, to see whether or not . . . it was unexpected, unusual and unforeseen’ ” (*Miller*, 40 NY2d at 677 [citation omitted]). Although we have noted that the perspective of the injured victim should not be used to determine whether an accident has occurred, “‘[b]ecause an injury is always fortuitous to a non-consenting victim’ ” (*Michaels*, 85 NY2d at 759 [citation omitted]), here we have the situation where the victim is also the insured.

It is clear that, viewed from the insured’s perspective, the occurrence was an unexpected or unintended event—and therefore an “accident”—even though Popadich admittedly intended to strike decedent with the vehicle. The language of the policy also suggests that this type of situation would be covered as it was an accident caused by the use of a motor vehicle that did not have an applicable insurance policy. Significantly, Insurance Department regulations require that an automobile owner’s liability insurance policy contain a provision specifying “that assault and battery shall be deemed an accident unless committed by or at the direction of the insured” (11 NYCRR 60-1.1 [f]). Although the provisions at issue here do not involve liability coverage, the regulation is relevant to the understanding of the extent of coverage provided by the endorsements.

The argument against requiring coverage, advanced by State Farm and relied upon by the Appellate Division, is based on the general principle that mandatory uninsured motorist benefits are meant to provide coverage that is coextensive with, and not greater than, that afforded by a standard liability policy. They rely on our statement that the purpose of mandatory UM benefits is “‘to provide the insured with the same level of protection he or she would provide to others were the insured a tortfeasor in a bodily injury accident’ ” (*Raffellini v State Farm Mut. Auto. Ins. Co.*, 9 NY3d 196, 204 [2007], quoting *Matter of Prudential Prop. & Cas. Co. v Szeli*, 83 NY2d 681, 687 [1994]).

In support of its position, State Farm relies on *McCarthy v Motor Veh. Acc. Indem. Corp.* (16 AD2d 35 [4th Dept 1962], *affd*

12 NY2d 922 [1963]), a case where the plaintiff victim was injured when the insured motorist committed an intentional assault against her using his vehicle. After the insurer denied coverage because the occurrence was not an accident within the meaning of the policy, plaintiff sought to recover under the policy's MVAIC endorsement—a statutorily required endorsement intended to afford coverage to a person injured by an uninsured or unidentified motorist, equal to that available to one injured by a motorist covered by an applicable liability policy (see *McCarthy*, 16 AD2d at 38). MVAIC is funded by assessments levied against all of the insurance companies licensed to conduct business in the state (see *McCarthy*, 16 AD2d at 39). *McCarthy* held that since an intentional assault committed by an insured motorist was not an accident subject to coverage under the standard liability policy, such an occurrence would likewise be excluded from coverage under the MVAIC endorsement (see 16 AD2d at 43). The Court also determined that allowing recovery under MVAIC would be inconsistent with the purpose for which the special fund had been established (see *McCarthy*, 16 AD2d at 44).

This case differs from *McCarthy* in two important respects. First, UM coverage, although required by statute, is part of the insured's own policy—a policy that the insured selected and for which he pays premiums. Benefits received through coverage under the UM endorsement do not come out of a state fund. Second, the insured is the victim in this case, not the tortfeasor, and the public policy against providing coverage for an insured's criminal acts is not implicated.

We hold that, consistent with the reasonable expectation of the insured under the policy and the stated purpose of the UM endorsement (to provide coverage against damage caused by uninsured motorists), the intentional assault of an innocent insured is an accident within the meaning of his or her own policy. The occurrence at issue was clearly an accident from the insured's point of view and Langan is entitled to benefits under the UM endorsement.

This result is also in keeping with the national trend toward allowing innocent insureds to recover uninsured motorist benefits under their own policies when they have been injured through the intentional conduct of another (see e.g. *American Family Mut. Ins. Co. v Petersen*, 679 NW2d 571 [Iowa 2004]; *Shaw v City of Jersey City*, 174 NJ 567, 811 A2d 404 [2002]; *Wendell v State Farm Mut. Auto. Ins. Co.*, 293 Mont 140, 974

P2d 623 [1999]). Although the above decisions are not binding on this Court, we are persuaded that the view that has been adopted by these jurisdictions is the better one.

For many of the same reasons, Langan is entitled to coverage under the PIP endorsement and Coverage S. The average insured's understanding of the term "accident" is unlikely to vary from endorsement to endorsement within the same policy. The occurrence, from the insured's perspective, was certainly unexpected and unforeseen and should be considered an accident subject to coverage. Contrary to State Farm's argument, we perceive no danger that this result will frustrate efforts to fight fraud in the no-fault insurance system. Significantly, there is no allegation whatsoever of fraud in this case and it is patent that benefits should continue to be denied to those who intentionally cause their own injuries.

The argument that Langan is entitled to attorneys' fees was not addressed by the courts below and should be remitted to Supreme Court for its determination in the first instance.

Accordingly, the order of the Appellate Division should be modified, without costs, by granting defendant judgment declaring in accordance with this opinion and remitting to Supreme Court for further proceedings in accordance with this opinion, and, as so modified, affirmed. The certified question should be answered in the negative.

SMITH, J. (dissenting). I would affirm the order of the Appellate Division.

As a general matter, it is true that whether a particular event is an "accident" should be viewed from the point of view of the insured. The insured here was Spicehandler, the event was an accident from his point of view, and his estate was therefore properly allowed to recover under the so-called PIP and Coverage S endorsements.

But uninsured/underinsured motorists (UM) coverage is different. Its purpose is to protect an insured who is injured by a tortfeasor without liability insurance—a purpose accomplished by putting the insured in the position that he would have been in if the tortfeasor had been insured. This requires a determination of whether the tortfeasor could have made a claim under a hypothetical policy of liability insurance—and the tortfeasor should thus be treated as the "insured" for purposes of analysis. Since Popadich drove his car into Spicehandler on purpose, the event was not an accident from Popadich's point of view;

Popadich could not have obtained indemnification from a liability insurer; and Spicehandler's estate should not be permitted to recover under the UM endorsement.

This is essentially what we held when we affirmed the Appellate Division's decision in *McCarthy v Motor Veh. Acc. Indem. Corp.* (16 AD2d 35 [4th Dept 1962], *affd* 12 NY2d 922 [1963]). The majority tries to distinguish *McCarthy* on what it calls two grounds, which seem really to be one—that UM coverage is “part of the insured's own policy” and that “the insured is the victim in this case, not the tortfeasor” (majority op at 356). The distinction will not withstand analysis. The purpose of UM coverage is the same as the purpose of the MVAIC endorsement at issue in *McCarthy*: “to afford coverage,” as the majority puts it, “to a person injured by an uninsured or unidentified motorist, equal to that available to one injured by a motorist covered by an applicable liability policy” (majority op at 356). The essential rationale for *McCarthy* is that the victim of an uninsured motorist should not be in a *better* position than the victim of an insured one. That rationale was sound in *McCarthy*, and is sound here.

I see no justification for departing from *McCarthy*. A more serious argument might be made—though it is not made here—for a more significant change in the law: modifying, in cases involving automobile liability policies required by statute, the general rule that liability insurance cannot cover intentional torts. As *McCarthy* mentions, a standard automobile liability policy provides coverage only for accidents, and thus would not cover “an assault and battery committed by the insured” (16 AD2d at 41; *see also e.g. Matter of Travelers Indem. Co. v Richards-Campbell*, 73 AD3d 1076 [2d Dept 2010]; *Matter of Aetna Cas. & Sur. Co. v Perry*, 220 AD2d 497 [2d Dept 1995]). This limitation seems to be derived from the long-established rule, based on public policy, that insurance may not indemnify a tortfeasor for intentional wrongdoing (*Messersmith v American Fid. Co.*, 232 NY 161, 165 [1921]; *Town of Massena v Healthcare Underwriters Mut. Ins. Co.*, 98 NY2d 435, 445 [2002]). Courts in some jurisdictions have made compulsory liability insurance an exception to this rule, reasoning that the purpose of liability insurance, to the extent that it is required by law, is to protect injured victims, not tortfeasors, and that victims should be protected no less against intentional than against negligent torts (*e.g. Speros v Fricke*, 98 P3d 28, 36-38 [Utah 2004]; *Dotts v Taressa J.A.*, 182 W Va 586, 390 SE2d 568 [1990]; *Wheeler v*

O'Connell, 297 Mass 549, 9 NE2d 544 [1937])). Whether such an exception is justified, and if so whether it should be created by judges or by legislators, are questions that we should not address until we have a case that presents them.

Judges CIPARICK, GRAFFEO, PIGOTT and JONES concur with Chief Judge LIPPMAN; Judge SMITH dissents and votes to affirm in a separate opinion in which Judge READ concurs.

Order modified, etc.

[947 NE2d 115, 922 NYS2d 224]

In the Matter of NATIONAL FUEL GAS DISTRIBUTION CORPORATION, Respondent, v PUBLIC SERVICE COMMISSION OF THE STATE OF NEW YORK, Appellant.

Argued February 8, 2011; decided March 29, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 31, 2009, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division (1) modified a determination of respondent Public Service Commission of the State of New York, which had modified a recommendation of an administrative law judge granting an increase in petitioner's delivery rates based, in part, on environmental remediation costs, by reducing the amount of that increase, and (2) remitted the matter to respondent for further proceedings not inconsistent with the Court's decision. The modification consisted of annulling so much of the determination as imputed additional settlement proceeds to petitioner and granting the petition to that extent. The Appellate Division confirmed the determination as modified.

Matter of National Fuel Gas Distrib. Corp. v Public Serv. Commn. of State of N.Y., 71 AD3d 62, affirmed.

HEADNOTES

Public Utilities — Public Service Commission — Review of Utility Rate Request

1. In reviewing the prudence of a management decision of a utility company seeking permission from the Public Service Commission (PSC) to recoup from ratepayers certain environmental remediation costs it had incurred, the utility's decision is prudent if it acted reasonably based on the information that it had and the circumstances that existed at the time. A decision may be viewed as prudent even though a different course of action would ultimately have been more advantageous to the utility or its ratepayers. Hindsight is irrelevant to a prudence analysis because the utility must make a determination that addresses its business prospectively. Thus, if more than one course of action was reasonable at the time of decision making, the utility may choose among them, and the PSC cannot overturn a prudent decision by a utility because it believes that another course of action would have been preferable.

Public Utilities — Rate Making — Burden of Proof — Department of Public Service

2. A utility company seeking a rate change has the burden of proving that the requested regulatory action is "just and reasonable"; however, a utility's

decision to expend monetary resources is presumed to have been made in the exercise of reasonable managerial judgment. Accordingly, the Department of Public Service bears the initial burden of providing a rational basis to infer that the utility may have acted imprudently before the burden shifts to the utility to demonstrate that its decision was prudent when made.

Public Utilities — Public Service Commission — Review of Utility Rate Request — Prudence of Utility's Decision

3. In a proceeding to review a determination of respondent Public Service Commission (PSC) involving petitioner utility company's request for a rate increase based on certain environmental remediation costs it incurred, the Department of Public Service (DPS) failed to meet its initial burden of rebutting the presumption that the utility's parent company acted prudently when it allocated the proceeds of insurance settlements among its subsidiaries on the basis of the premiums paid by the subsidiaries. The only DPS employee to testify opined that the premiums paid formula was unreasonable because the settlements were not procured in relation to the amount of premiums paid. However, that testimony did not provide a rational basis to infer that the parent acted imprudently or sought to maximize future recovery from utility rates where the record did not reveal what factors prompted the insurers to settle, nor did it definitively exclude as a relevant factor the amount of premiums collected from each subsidiary. In light of the uncertainty of coverage under the policies and the lack of definitive information pertaining to all potential remediation claims, the testimony of the DPS employee was too conclusory to call into question the prudence of the parent's allocation decision or to shift the burden of proof to the utility. In addition, while the parent could have used an environmental report's estimate of its subsidiary's remediation liabilities in allocating settlement proceeds, there are often multiple ways to reasonably address an issue that arises in a business setting and the fact that it may have been prudent to have used the estimated liabilities method did not, standing alone, make the use of the premiums paid approach imprudent. Inasmuch as there was no evidentiary foundation to infer that the parent may have acted imprudently when it decided to use the premiums paid formula, the PSC's finding of imprudence was erroneous as a matter of law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Energy and Power Sources § 152; AM JUR 2d, Public Utilities §§ 67, 88, 89, 94–96, 146, 166, 191, 200.

NY JUR 2d, Energy §§ 227, 232, 235, 237; NY JUR 2d, Public Utilities §§ 75, 87.

ANNOTATION REFERENCE

See ALR Index under Public Service Commissions; Utilities.

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POINTS OF COUNSEL

Peter McGowan, General Counsel, Public Service Commission of the State of New York, Albany (Jonathan D. Feinberg, Anthony

Belsito, Sean Mullany and John C. Graham of counsel), for appellant. I. The Appellate Division's own weighing of the evidence does not comport with this Court's precedent on the standard for review of a Public Service Commission decision. (*Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 95 NY2d 40; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 201 AD2d 31, 87 NY2d 17; *Frontier Insulation Contrs. v Merchants Mut. Ins. Co.*, 91 NY2d 169; *Servidone Constr. Corp. v Security Ins. Co. of Hartford*, 64 NY2d 419; *Matter of General Tel. Co. of Upstate N.Y. v Lundy*, 17 NY2d 373; *Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 190 AD2d 217; *Altsheler v Board of Educ. of Great Neck Union Free School Dist.*, 62 NY2d 656; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382.) II. The Appellate Division made a key factual error and failed to follow this Court's precedent with respect to Public Service Commission review of intercorporate allocations. (*Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 95 NY2d 40; *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 72 NY2d 419; *Matter of Consolidated Edison Co. of N.Y. v Public Serv. Commn. of State of N.Y.*, 66 NY2d 369; *Matter of Crescent Estates Water Co. v Public Serv. Commn. of State of N.Y.*, 77 NY2d 611; *Matter of Niagara Mohawk Power Corp. v Public Serv. Commn. of State of N.Y.*, 69 NY2d 365; *Matter of General Tel. Co. of Upstate N.Y. v Lundy*, 17 NY2d 373; *Matter of AT&T Communications of N.Y. v Public Serv. Commn. of State of N.Y.*, 231 AD2d 155, 91 NY2d 803.) III. The Appellate Division incorrectly rejected the Public Service Commission's reliance on estimated liabilities. (*Matter of New York State Council of Retail Merchants v Public Serv. Commn. of State of N.Y.*, 45 NY2d 661; *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17; *Matter of Niagara Mohawk Power Corp. v Public Serv. Commn. of State of N.Y.*, 66 NY2d 83; *Matter of Abrams v Public Serv. Commn. of State of N.Y.*, 67 NY2d 205; *Matter of St. Lawrence Gas Co. v Public Serv. Commn. of State of N.Y.*, 42 NY2d 461; *Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 72 NY2d 419; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 190 AD2d 217.)

Whiteman Osterman & Hanna LLP, Albany (Neil L. Levine, Alan J. Goldberg and Christopher M. McDonald of counsel), and *Cullen & Dykman, LLP*, Garden City (Bruce V. Miller of counsel), for respondent. I. National Fuel Gas Company's 1999 allocation of insurance settlement proceeds cannot be nullified by the Public Service Commission absent a determination, supported by substantial evidence, that the allocation methodology employed by National Fuel Gas Company was imprudent. (*Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135; *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 190 AD2d 217; *Matter of New York City Hous. Auth. v Public Serv. Commn. of State of N.Y.*, 23 AD2d 277, 17 NY2d 246; *Missouri ex rel. Southwestern Bell Telephone Co. v Public Serv. Comm'n of Mo.*, 262 US 276; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Matter of Abrams v Public Serv. Commn. of State of N.Y.*, 104 AD2d 135, 67 NY2d 205; *Matter of Consumer Protection Bd. of State of N.Y. v Public Serv. Commn.*, 97 AD2d 320; *Matter of Rochester Gas & Elec. Corp. v Maltbie*, 258 App Div 682, 284 NY 626; *People ex rel. Delaware & Hudson Co. v Stevens*, 197 NY 1.) II. The Public Service Commission's imprudence determination must be supported by substantial evidence, a standard which requires meaningful judicial review and consideration of the evidence cited by the Public Service Commission as the basis for the challenged determination. (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227; *Matter of Silberfarb v Board of Coop. Educ. Servs., Third Supervisory Dist., Suffolk County*, 60 NY2d 979; *Matter of Multiple Intervenors v Public Serv. Commn. of State of N.Y.*, 166 AD2d 140; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *People ex rel. Vega v Smith*, 66 NY2d 130; *Matter of Jason B. v Novello*, 12 NY3d 107; *Matter of Montauk Improvement v Proccacino*, 41 NY2d 913; *Matter of Barry v O'Connell*, 303 NY 46; *SEC v Chenery Corp.*, 332 US 194.) III. The Appellate Division judgment should be affirmed because the Public Service Commission's conclusory finding of imprudence with respect to National Fuel Gas Company's insurance settlement allocation was not supported by substantial evidence. (*Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135; *H. P. Hood & Sons, Inc. v Du Mond*, 336 US 525; *Matter of Barry v O'Connell*, 303 NY 46; *West Ohio Gas*

Co. v Public Util. Comm'n of Ohio, 294 US 63; *Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753; *Matter of Montauk Improvement v Proccacino*, 41 NY2d 913; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 95 NY2d 40; *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17.)

OPINION OF THE COURT

GRAFFEO, J.

In this appeal, we consider the legal standards that apply when a utility company seeks permission from the Public Service Commission (PSC) to recoup from ratepayers certain environmental remediation costs it has incurred. We hold that when the PSC reviews a management decision of a utility to assess its prudence, the Department of Public Service (DPS) bears the initial burden of showing that the utility may have acted imprudently based on what was known at the time the challenged decision was made. Furthermore, there must be a rational basis in the record evidence to support the grounds cited in a PSC order for a finding of imprudence.

I

Petitioner National Fuel Gas Distribution Corp. (NFG Distribution) is a natural gas delivery utility that operates in western New York and is regulated by the PSC under article 4 of the Public Service Law. NFG Distribution is a subsidiary of National Fuel Gas Company (National Fuel) and has a number of corporate affiliates.

In the 1990s, National Fuel (the parent company) began pursuing insurance coverage for potential environmental cleanup costs at its former manufactured natural gas plants. National Fuel had commissioned an environmental report (the IES report), issued in 1996, which estimated that site investigation and remediation (SIR) expenses at the former plants would be approximately \$300 million. The IES report further attributed 64% of the potential SIR liabilities to NFG Distribution. To determine the extent of its insurance coverage for these estimated remediation expenses, National Fuel filed notices of potential claims with its general liability insurance companies and provided copies of the IES report to its insurers. All of the insurance carriers initially denied coverage.

Eventually, the insurers and National Fuel reached two separate settlements in 1999, totaling approximately \$37 million. All

but one of the insurers settled with National Fuel for about \$16 million. Additionally, AEGIS insurance agreed to issue a replacement policy providing \$20.8 million in future SIR coverage. Since the estimated SIR liability of just one of National Fuel's subsidiaries (such as NFG Supply) could have exceeded the total amount of the settlements, it was conceivable at the time the parties entered into the agreements that one environmental remediation claim by a single subsidiary could exhaust the entire settlement fund to the detriment of the other subsidiaries and their ratepayers.¹

National Fuel therefore decided to allocate the proceeds of the settlements among its subsidiaries that had been covered by the insurance policies through the use of a "premiums paid" formula of allocation. Under this approach, each subsidiary received an amount from the settlements proportionate to its share of the insurance premiums paid and its contribution to the costs incurred in obtaining the settlements. As a result, NFG Distribution received almost 46% of the settlement proceeds—approximately \$8.3 million (about 52% of the cash settlement) and approximately \$8.5 million in future coverage under the AEGIS policy (about 41% of the new SIR insurance). A similar percentage of the total recovery was allotted to two other regulated National Fuel subsidiaries (NFG Supply and Pennsylvania NFG Distribution). The unregulated subsidiaries received approximately 7% of the total settlement, but their share apparently did not consist of cash proceeds, just future SIR coverage under the AEGIS policy.

Between 1998 and 2006, NFG Distribution incurred actual SIR expenses of almost \$27 million—85% of National Fuel's aggregate environmental remediation costs during that period—which depleted the company's proceeds of the monetary settlement and its share of coverage under the AEGIS policy. As a result, in 2007, NFG Distribution petitioned the PSC for tariff amendments to increase its rates in order to pass its uninsured SIR costs to its customer base. At that time, NFG Distribution was collecting \$600,000 per year for SIR expenses from ratepayers. The tariff request sought to increase that amount to \$1.7 million.

1. In New York, utility rates are set by the PSC so that a company may earn a reasonable return on its investment (*see e.g. Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17, 29 [1995]). Normal operating costs that are incurred by a utility are usually passed along in the rates charged to the utility's customers.

DPS challenged the requested increase, arguing that it had been unreasonable for National Fuel to use the premiums paid methodology to allocate the settlements because the percentage of premiums paid by each subsidiary bore no relation to the amount of the settlement funds. According to DPS, the settlements should have been distributed to the subsidiaries based on the actual SIR expenses incurred. DPS requested that the PSC impute approximately 85% of the total settlement to NFG Distribution, thereby reducing the proposed tariff request accordingly. NFG Distribution countered that National Fuel chose the premiums paid methodology in 1999 because the IES report provided only preliminary estimates of potential SIR expenses as of 1996; that not all of National Fuel's former manufactured natural gas sites were included in the report; and it would have been too speculative to attempt to determine the actual SIR costs that each subsidiary would ultimately incur. Consequently, NFG Distribution urged that it was reasonable for its corporate parent to utilize the premiums paid formula at the time the settlements were disbursed in 1999.

The administrative law judge (ALJ) ruled in NFG Distribution's favor, concluding that the premiums paid formula was "not unreasonable on its face" since DPS had failed to demonstrate that some other settlement distribution method would have been reasonable at the time the corporate decision was made.² The recommended decision determined that no additional portion of the settlements beyond the 46% that NFG Distribution actually received should be imputed to the company. The ALJ recommended that NFG Distribution be permitted to increase its rates to collect \$1.7 million annually for environmental remediation expenses, the amount requested by NFG Distribution.

Exceptions were filed to the ALJ's decision and the matter was brought before the PSC. DPS continued to assert that it was unreasonable for National Fuel to have employed the premiums paid method and asked the PSC to impute 85% of the settlements to NFG Distribution. In the alternative, DPS argued that the settlements should have been distributed to the subsidiaries based on the percentage of SIR costs that were attributable to them in the IES report, which method would have

2. The settlement distribution issue was only one of many issues that were before the administrative law judge. Because those other issues are not raised in this appeal, we do not address them.

resulted in 64% of the settlement proceeds directed to NFG Distribution. During the evidentiary hearing, a DPS employee testified that it had been unreasonable to allocate the settlements based on premiums paid because the claims that were presented to the insurance carriers were premised on costs associated with specific sites and the amount of settlement proceeds “was not related in anyway [*sic*] to the insurance premiums paid.” According to the DPS employee, the settlements were “based on the estimated remediation costs, and presumably other litigation factors, which had no relation to the amount of insurance premiums paid.”

The PSC concluded that National Fuel had acted imprudently, finding that “the 46% allocation of the insurance proceeds was unjust and unreasonable at the time it was made” because National Fuel “should have taken into account the estimates that were available at the time of the liabilities that each subsidiary company was facing.” The PSC determined that the proper allocation to NFG Distribution in 1999 should have been 64% of the settlements and ordered that the company be imputed with an additional 18% of the settlements in developing the proper rate structure.³

NFG Distribution then commenced this CPLR article 78 proceeding to contest the PSC’s determination. The case was transferred to the Appellate Division, which annulled the PSC’s imputation of additional settlement proceeds to NFG Distribution (71 AD3d 62 [3d Dept 2009]). The court held that it was reasonable for National Fuel to use the premiums paid formula in 1999, reasoning that the IES report contained only preliminary estimates of SIR costs, it did not address every potential claim of former manufactured gas sites and there was no evidence in the record to demonstrate that the report was intended to reflect all accurate SIR claims when it was drafted in 1996 or when the settlements were allocated in 1999. The Appellate Division also observed that the premiums paid formula allowed National Fuel to reasonably compute each subsidiary’s share of the insurance premiums and the methodology assured that each subsidiary and its ratepayers would receive the benefit of the settlements in proportion to what each subsidiary had paid for insurance coverage. Although the court agreed with the PSC that it would have been a reasonable alternative for National

3. As with the ALJ’s decision, this was one component of the PSC’s determination, which addressed a host of other issues that are not before us.

Fuel to have allocated the settlements in 1999 using the potential claims that were listed in the IES report, the Appellate Division determined that the record did not support the PSC's finding that the premiums paid formula was unreasonable. The Appellate Division therefore concluded that the PSC erred by imputing additional settlement proceeds to NFG Distribution beyond the 46% that it actually received.

We granted leave to appeal (14 NY3d 709 [2010]) and now affirm.

II

Generally, a deferential standard of review applies to PSC orders because establishing utility rates is a "highly technical" matter (*Matter of Abrams v Public Serv. Commn. of State of N.Y.*, 67 NY2d 205, 211-212 [1986]) and the PSC possesses specialized knowledge and expertise in ratesetting matters (see *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 95 NY2d 40, 48 [2000]). Judicial review is therefore limited to determining whether record evidence provides a rational basis for a PSC order (see *Matter of Rochester Tel. Corp.*, 87 NY2d at 28-29).

But it is also a bedrock principle of administrative law that a " 'court, in dealing with a determination . . . which an administrative agency alone is authorized to make, must judge the propriety of such action solely by the grounds invoked by the agency' " (*Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753, 758 [1991], quoting *Matter of Montauk Improvement v Proccacino*, 41 NY2d 913, 913 [1977]; see e.g. *Matter of Consolidated Edison Co. of N.Y. v Public Serv. Commn.*, 63 NY2d 424, 441 [1984]). If the reasons an agency relies on do not reasonably support its determination, the administrative order must be overturned and it cannot be affirmed on an alternative ground that would have been adequate if cited by the agency (see *Matter of Scherbyn*, 77 NY2d at 758).

[1] Although both of these principles are relevant here, this case is not the typical appeal of a PSC order. In assessing the requested tariff amendments to increase NFG Distribution's rates, the PSC first had to consider whether National Fuel's settlement distribution formula was "prudent" when it was devised in 1999 (see *Matter of Crescent Estates Water Co. v Public Serv. Commn. of State of N.Y.*, 77 NY2d 611, 617 [1991]). A utility's decision is prudent if it acted reasonably based on the information that it had and the circumstances that existed at

the time (see *Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135, 143-144 [3d Dept 1987]). A decision may be viewed as prudent even though a different course of action would ultimately have been more advantageous to the utility or its ratepayers. In this regard, hindsight is irrelevant to a prudence analysis because the utility must make a determination that addresses its business prospectively. Thus, if more than one course of action was reasonable at the time of decision making, the utility may choose among them. The PSC cannot overturn a prudent decision by a utility because it believes that another course of action would have been preferable.

[2] The usual burdens of proof are also slightly different in this case. A utility company seeking a rate change has the burden of proving that the requested regulatory action is “just and reasonable” (Public Service Law § 66 [12] [i]; see *id.* § 72; 16 NYCRR 61.1; *Matter of St. Lawrence Gas Co. v Public Serv. Commn. of State of N.Y.*, 42 NY2d 461, 464 [1977]). However, a utility’s decision to expend monetary resources is presumed to have been made in the exercise of reasonable managerial judgment (see *Matter of Long Is. Light Co.*, 134 AD2d at 144). DPS carries the initial burden of providing a rational basis to infer that the utility may have acted imprudently before the burden shifts to the utility to demonstrate that its decision was prudent when made (see *Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 190 AD2d 217, 221 [3d Dept 1993]; *Matter of Long Is. Light Co.*, 134 AD2d at 144).

Based on these principles, the issue before us distills to whether DPS adequately raised a reasonable inference of imprudence and, if so, whether there is a rational basis in the record to support the grounds cited by the PSC for its conclusion that National Fuel acted imprudently when it used the premiums paid formula for the distribution of the settlement proceeds in 1999.

[3] We conclude that DPS failed to meet its initial burden of rebutting the presumption of prudence. The only DPS employee to testify—a public utility accountant—opined that the premiums paid formula was unreasonable because the settlements were not procured in relation to the amount of premiums paid. In our view, this testimony did not provide a rational basis to infer that National Fuel acted imprudently or sought to maximize future recovery from utility rates. The record does not reveal what factors prompted the insurers to settle, nor does it definitively exclude as a relevant factor the amount of

premiums collected from each subsidiary. In deciding to settle, the insurers may have factored in the total amount of premiums that they had been paid in conjunction with their maximum financial exposure, along with the likelihood that a court might have concluded that the terms of the policies extended coverage to environmental remediation costs.⁴ The DPS employee also did not explain why the factors that led the insurers to settle should have dictated National Fuel's allocation method. In light of the uncertainty of coverage under the policies and the lack of definitive information pertaining to all potential SIR claims, we view the testimony of the DPS employee as too conclusory to call into question the prudence of National Fuel's allocation decision or to shift the burden of proof to the utility.

We also note that the only ground cited by the PSC was that the premiums paid methodology was unjust and unreasonable because National Fuel could have used the IES report's estimate of SIR subsidiary liabilities. But there are often multiple ways to reasonably address an issue that arises in a business setting and the fact that it may have been prudent for National Fuel to use the estimated liabilities method did not, standing alone, make the use of the premiums paid approach imprudent.⁵

In addition, the 1996 IES report supplied only preliminary estimates of potential SIR liabilities and was prepared as part of the effort to convince the various insurers to settle and

4. At the time of the settlements, the coverage issue was an open question of law. After the settlements were reached, the availability of SIR coverage under general liability insurance policies was restricted in New York by our holding in *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.* (98 NY2d 208 [2002]), where we ruled that the insured bears the burden of proving that environmental pollution was caused by a "fortuitous" event. National Fuel's decision to settle its claims, rather than litigate, therefore provided its rate-payers with a benefit—almost \$37 million in SIR resources that otherwise might have been unavailable.

5. Our dissenting colleagues attempt to justify the PSC's finding of imprudence on the alternative ground that the amount of premiums paid was irrelevant because the insurance provided general liability, rather than environmental, coverage (*see* dissenting op at 373). Because the PSC did not rely on this distinction, the order cannot be upheld on this basis (*see Matter of Scherbyn*, 77 NY2d at 758). Thus, the dissent overlooks the fundamental principle of administrative law that the propriety of an agency's action is judged solely by the grounds that were invoked by it (*see e.g. Matter of Consolidated Edison Co. of N.Y. v Public Serv. Commn.*, 63 NY2d at 441). In any event, we question the dissent's underlying premise that the premiums paid were "completely unrelated" to the settlement proceeds (dissenting op at 373) since the premiums were used to secure coverage that ultimately funded the settlements.

maximize National Fuel's recovery. Simply put, its purpose was to persuade the insurers to avoid litigation, not to determine the extent of environmental contamination with scientific certitude. Nor does the record reveal that the IES report addressed every potential SIR site and, for the sites that were reviewed, the report was not designed to definitively assess the costs of individual SIR claims. Hence, the figures included in the IES report were estimations, whereas each subsidiary's share of the premium payments could be accurately tallied. As a result, the IES report was not the sole rational means for reasonably allocating the proceeds of the settlements.

In sum, there was no evidentiary foundation to infer that National Fuel may have acted imprudently in 1999 when it decided to use the premiums paid formula. We therefore conclude that the PSC's finding of imprudence was erroneous as a matter of law.

Accordingly, the judgment of the Appellate Division should be affirmed, with costs.

Chief Judge LIPPMAN (dissenting). The Public Service Commission (PSC) found that National Fuel's allocation of the insurance settlement proceeds based on the premiums paid by each of its subsidiaries "was unjust and unreasonable at the time it was made" and that the proceeds should have been apportioned, instead, based upon the potential liabilities each subsidiary faced for certain environmental remediation expenses. Since there is substantial evidence to support the PSC's conclusion, I would reverse.

Among the general powers accorded to the PSC by statute is the authority to evaluate proposed utility rate changes and to set just and reasonable rates (*see* Public Service Law § 66 [12] [f]; § 72). "Indeed, it has been recognized that when it comes to setting rates for [gas and electric] service the Commission has been granted 'the very broadest of powers,' the Legislature mandating only that the rates fixed be 'just and reasonable' " (*Matter of Niagara Mohawk Power Corp. v Public Serv. Commn. of State of N.Y.*, 69 NY2d 365, 369 [1987] [citations omitted]). The burden of proving that any proposed rate change is just and reasonable rests with the utility (*see* Public Service Law § 66 [12] [i]).

Our review of PSC determinations involving ratesetting has always been deferential. We have emphasized that the standard of review is meant to be flexible and that the determinations

“ ‘may not be set aside unless they are without rational basis or without reasonable support in the record’ ” (*Matter of New York Tel. Co. v Public Serv. Commn. of State of N.Y.*, 95 NY2d 40, 48 [2000], quoting *Matter of Rochester Tel. Corp. v Public Serv. Commn. of State of N.Y.*, 87 NY2d 17, 29 [1995]). It is well settled that “substantial evidence consists of proof within the whole record of such quality and quantity as to generate conviction in and persuade a fair and detached fact finder that, from that proof as a premise, a conclusion or ultimate fact may be extracted reasonably—probatively and logically” (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 181 [1978]). Such deference is appropriate since ratesetting “presents ‘problems of a highly technical nature,’ ” which are well within the particular expertise of the PSC (see *New York Tel. Co.*, 95 NY2d at 48, quoting *Matter of Abrams v Public Serv. Commn. of State of N.Y.*, 67 NY2d 205, 211-212 [1986]).

The determination of whether a utility acted prudently is made by assessing whether its actions were reasonable under the circumstances existing at the time they were made, without the benefit of hindsight (see *Matter of Long Is. Light Co. v Public Serv. Commn. of State of N.Y.*, 134 AD2d 135, 143-144 [3d Dept 1987]). Significantly, “the PSC’s broad rate-making powers . . . are sufficient to allow it generally to assess the prudence of a utility’s actions as those actions impact upon the ratepayers. Indeed, a specific function of the rate-making power is to protect the utility’s ratepayers” (*Matter of Crescent Estates Water Co. v Public Serv. Commn. of State of N.Y.*, 77 NY2d 611, 617 [1991]). Through this power, the Commission ensures that unreasonable or excessive rates are not inflicted upon the utility’s customers (see e.g. *Matter of General Tel. Co. of Upstate N.Y. v Lundy*, 17 NY2d 373, 381 n 3 [1966]).

Even assuming that our traditional deference to the PSC is skewed toward the utility for the purpose of prudence determinations (see majority op at 368-369), the PSC has provided a rational basis for its determination that National Fuel acted imprudently.

The PSC order notes that, at the time the insurance proceeds were distributed, National Fuel was aware of the projected liability for environmental remediation faced by its subsidiaries, including that NFG Distribution’s potential liability accounted for 64% of the total estimated liability. Instead, only 46% of the proceeds were allocated to NFG Distribution based on its proportionate share of the premiums paid for the subject general liability insurance policies. By use of this allocation method,

a portion of the settlement proceeds was distributed to National Fuel's nonregulated affiliated companies. The PSC concluded that National Fuel should have taken into account the available estimates of potential environmental liability for each subsidiary that were available at the time the proceeds were allocated and that the appropriate distribution should have been made in proportion to that prospective liability. The PSC therefore determined that the 46% allocation to NFG Distribution was "unjust and unreasonable."

A review of the record as a whole provides ample basis for the PSC's conclusion. PSC's expert testified that the allocation of proceeds on the basis of insurance premiums paid was "not accurate and [made] no sense." He concluded that the settlements were reached on the basis of projected environmental liabilities and "had no relation to the amount of insurance premiums paid." PSC's expert relied, in part, on the answers to interrogatories that were provided by National Fuel. It was clear from this evidence that National Fuel sought coverage for its environmental liabilities under its general liability insurance policies. After those carriers initially denied the claims, National Fuel retained environmental consultants to estimate the potential environmental site investigation and remediation costs. The attorney who represented National Fuel in the settlement negotiations submitted an affidavit, affirming that the environmental report was prepared "explicitly for insurance settlement negotiation purposes only, in order to identify actual and potential environmental risks" and that counsel used the report "to present settlement demands" to the insurance companies. Although the insurers asserted that the policies did not apply to environmental liability, they ultimately settled.

The evidence in the record therefore establishes that the insurance proceeds were pursued and obtained for the specific purpose of dealing with potential environmental liability. Given that the policies at issue were general, and not environmental, liability policies, the proportion of premiums paid by the various entities was completely unrelated to the settlement proceeds. The IES report was at least related to the subject of the settlement—environmental liability. The methodology the majority embraces as beyond the reach of the PSC has no demonstrated relationship to that issue, the settlement negotiations or the settlement proceeds. We simply are not confronted with a choice of two prudent methodologies.

The idea of dividing insurance proceeds among insureds in proportion to premiums is strange at best. The reason for

buying insurance is to protect against unforeseen losses, not to get a return on premiums paid. The “premiums paid” methodology, as applied in this case, gives “protection” against environmental liabilities to companies that suffered no environmental loss, including some that may never have had any environmental risk. If a utility had negotiated such an allocation at arm’s length with independent coinsureds, the agreement would raise a serious question of prudence. Here, where the allocation of insurance proceeds was among affiliated companies, whose management had an obvious interest in maximizing the burden on the ratepayers in order to minimize cost to the shareholders, the PSC was all the more justified in looking at that allocation with a skeptical eye.

In these circumstances, the PSC clearly had a rational basis to conclude that the allocation of proceeds to National Fuel’s subsidiaries based on premiums paid was imprudent. There is substantial evidence to support the PSC’s determination and therefore the Appellate Division judgment should be reversed.

Judges CIPARICK, READ and JONES concur with Judge GRAFFEO; Chief Judge LIPPMAN dissents and votes to reverse in a separate opinion in which Judges SMITH and PIGOTT concur.

Judgment affirmed, with costs.

[947 NE2d 1155, 923 NYS2d 377]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OLL-
MAN LOPEZ, Appellant.

Argued January 6, 2011; decided February 22, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 15, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Richmond County (Stephen Rooney, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree (two counts: one count each of intentional murder and felony murder), attempted robbery in the first degree, and criminal possession of a weapon in the second degree.

People v Lopez, 65 AD3d 1166, affirmed.

HEADNOTES

Crimes — Right to Counsel — Representation on Unrelated Matter

1. A police officer who wishes to question a person in police custody about an unrelated matter must make a reasonable inquiry concerning the defendant's representational status when the circumstances indicate that there is a probable likelihood that an attorney has entered the custodial matter, and the accused is actually represented on the custodial charge. The rule established by *People v Rogers* (48 NY2d 167 [1979]) states that when an attorney undertakes representation in a matter for which the defendant is in custody, all questioning is barred unless the police obtain a counseled waiver. Either actual or constructive knowledge of that representation by interrogating police officers suffices to perpetuate the indelible right to counsel once attached. Society's interest in protecting individual constitutional rights would be devalued if the police were allowed to question an incarcerated individual under circumstances where it would be reasonable for the interrogating officer to expect that it is highly likely that the accused has an attorney on the custodial matter. Here, where defendant was in custody in another state on a drug charge after he had been arraigned and was unable to post bail, his indelible right to counsel was violated when a police officer from New York questioned him about an unrelated New York murder, because the officer was chargeable with knowledge that an attorney had entered the case to represent defendant on the drug charge and a valid waiver was not secured before questioning commenced. The fact that bail had been set indicated that defendant had been arraigned and arraignment undoubtedly signified that defendant's right to counsel had attached, making it probable that defendant had been assigned or retained counsel. Rather than avoiding the topic, the officer should have inquired into defendant's representational status.

Crimes — Harmless and Prejudicial Error — Introduction of Defendant's Improperly Obtained Statement

2. In a prosecution for murder and other crimes arising out of the fatal shooting of a store owner during an attempted robbery, the introduction of a

statement made by defendant that had been improperly obtained in violation of defendant's right to counsel constituted harmless error since there was no reasonable possibility that the introduction of that statement affected defendant's conviction in light of the other evidence that overwhelmingly established his guilt. The People's proof demonstrated that defendant had spontaneously and unequivocally told at least three acquaintances that he shot the store owner during the failed robbery, and none of those individuals had any apparent motive to lie about defendant's admissions. Defendant's admissions to his friends were confirmed by forensic evidence at trial. In addition, while defendant was incarcerated in another state for an unrelated crime, he confessed to another inmate that he had killed the store owner and had lied to the police when he told them that his accomplice was the shooter. Moreover, defendant's improperly obtained statement was partially exculpatory, and inasmuch as the jury found defendant guilty of shooting the store owner, it necessarily disbelieved the contents of the improperly obtained statement, thereby diminishing the statement's importance in the overall context of the case.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 654, 662, 668, 703; AM JUR 2d, Criminal Law §§ 916, 921, 1118.

CARMODY-WAIT 2d, Confessions; Privilege Against Self-Incrimination § 176:75; Right to Counsel § 184:21; Appeals in Criminal Cases § 207:117.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 6.4.

NY JUR 2d, Criminal Law: Procedure §§ 580, 600, 739, 808, 2059, 3569-3573.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Custodial Interrogation; Harmless and Prejudicial Error.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: right /3 counsel & custody /s unrelated /2 matter /p represented

POINTS OF COUNSEL

Legal Aid Society, New York City (*Svetlana M. Kornfeind* and *Steven Banks* of counsel), for appellant. Appellant's statement was introduced at trial in violation of his right to counsel, where appellant was in continuous custody on a pending drug case on which he had an attorney, but the detective who was investigating an unrelated homicide deliberately avoided asking appellant about his possible representation in the custodial case before eliciting a waiver of his rights. (*People v Hobson*, 39 NY2d 479;

People v Rogers, 48 NY2d 167; *People v Burdo*, 91 NY2d 146; *People v Steward*, 88 NY2d 496; *People v Bing*, 76 NY2d 331; *People v Kazmarick*, 52 NY2d 322; *People v Cunningham*, 49 NY2d 203; *People v Carranza*, 3 NY3d 729; *People v Garofolo*, 46 NY2d 592; *People v Pinzon*, 44 NY2d 458.)

Daniel M. Donovan, Jr., District Attorney, Staten Island (Morie I. Kleinbart of counsel), for respondent. Defendant's state constitutional right to counsel was fully respected. (*People v Burdo*, 91 NY2d 146; *People v Arthur*, 22 NY2d 325; *People v Samuels*, 49 NY2d 218; *People v West*, 81 NY2d 370; *People v Cunningham*, 49 NY2d 203; *People v Hobson*, 39 NY2d 479; *People v Cohen*, 90 NY2d 632; *People v Rogers*, 48 NY2d 167; *People v Robles*, 72 NY2d 689; *People v Kazmarick*, 52 NY2d 322.)

OPINION OF THE COURT

GRAFFEO, J.

Under New York's indelible right to counsel rule, a defendant in custody in connection with a criminal matter for which he is represented by counsel may not be interrogated in the absence of his attorney with respect to that matter or an unrelated matter unless he waives the right to counsel in the presence of his attorney (see *People v Rogers*, 48 NY2d 167 [1979]). In this case, we must determine whether the rule applies even if the interrogator is unaware that an incarcerated defendant is represented by an attorney. We conclude that if it is reasonable for an interrogator to suspect that an attorney may have entered the custodial matter, there must be an inquiry regarding the defendant's representational status and the interrogator will be charged with the knowledge that such an inquiry likely would have revealed.

I

In early 2002, Hamoud Thabeat was murdered in his Staten Island bodega. The case remained unsolved for some time until an individual came forward and informed the police that defendant Ollman Lopez had shot Thabeat. The informant explained that, shortly after the shooting, he was talking to a group of young men in the neighborhood about this incident. He claimed that, during the conversation, defendant had laughed and stated that he had shot the store owner. The informant further identified defendant (whom he had known for years) from a photo array.

After receiving this information, the investigating officer, Detective Mattei, interviewed one of the young men who had been present during the conversation reported by the informant. This individual recalled that, on the day of the killing, either defendant or Jonah Alston had suggested that they rob a store. Later that day, defendant admitted to his friends that he had shot the store owner. Another acquaintance of defendant who had been with him that day told Mattei that Alston claimed defendant had killed Thabeat and that defendant confirmed that he was the shooter. Based on these interviews, Mattei spoke to Alston, who confessed in a videotaped interview that he had accompanied defendant to the bodega to commit a robbery and that defendant had shot Thabeat. The other young men who cooperated with the police were not involved in the underlying crime.

Detective Mattei eventually learned that defendant was incarcerated in Pennsylvania on a drug charge. The Pennsylvania authorities told Mattei that defendant was in custody because he was unable to post his \$10,000 bail. Mattei traveled to the correctional facility where defendant was jailed to speak to him about the Staten Island homicide. Mattei was not informed about the details of the Pennsylvania crime and he did not inquire about them. Unbeknownst to the detective, defendant was represented by an attorney in connection with the Pennsylvania offense.

When allowed to meet with defendant, Detective Mattei issued *Miranda* warnings to him, advised defendant that he did not want to discuss the Pennsylvania matter and indicated that he was investigating the Staten Island murder. Mattei inquired if defendant wanted to speak to an attorney about the New York case and defendant responded that he did not. In the course of the interview, Mattei played a portion of Alston's taped confession, after which defendant acknowledged that he had been involved in the robbery but claimed that Alston was the shooter. Defendant signed a written statement to that effect.

After Mattei's interview and while defendant remained incarcerated, he discussed his role in the Staten Island murder with another inmate. Defendant disclosed to that inmate that he had shot the deli owner during the botched robbery. Defendant further stated that he told Detective Mattei that his accomplice was the shooter because he planned to use his sister as an alibi witness, intending to claim that he was at her house when Thabeat was shot. The inmate related this conversation to his

lawyer and this information was eventually provided to the New York prosecutor handling the Staten Island matter.

For his role in the killing of Thabeat, defendant was indicted for felony murder in the second degree, intentional murder in the second degree, three counts of attempted robbery in the first degree and criminal possession of a weapon in the second and third degrees.¹ Defendant moved to suppress his confession to Detective Mattei, asserting that his right to counsel had been violated when Mattei questioned him about the Staten Island murder without first obtaining a waiver of his right to counsel in the presence of his Pennsylvania attorney. During the suppression hearing, Mattei testified that he did not know that a lawyer was representing defendant on the Pennsylvania charge, nor did he ask about it. Supreme Court denied defendant's motion, concluding that the right to counsel did not attach because Mattei lacked actual knowledge of the attorney's involvement in the Pennsylvania matter. Following a jury trial, defendant was convicted of intentional murder, felony murder, attempted robbery in the first degree and criminal possession of a weapon in the second degree.² He was sentenced to a prison term of 25 years to life.

The Appellate Division affirmed the conviction (65 AD3d 1166 [2d Dept 2009]), holding that, although defendant was represented by a lawyer on the charge for which he was in custody in Pennsylvania, the indelible right to counsel was not implicated because the interviewing detective was not aware that defendant had a lawyer in Pennsylvania. A Judge of this Court granted leave to appeal (13 NY3d 908 [2009]) and we now affirm on different grounds.

II

Relying on *People v Burdo* (91 NY2d 146 [1997]), defendant contends that his confession should have been suppressed because he was in police custody when Detective Mattei interviewed him, his indelible right to counsel had attached upon assignment of a lawyer on the Pennsylvania charge and Mattei did not secure a valid waiver of that right before questioning him. The People disagree and maintain that the right to counsel did not attach because Mattei did not have

1. Alston was named as a codefendant in the felony murder and attempted robbery counts.

2. Alston was tried separately and convicted of felony murder and related offenses.

actual knowledge that defendant was represented on the Pennsylvania matter. The People also assert that recognition of a right to counsel under these circumstances will resurrect the discredited “derivative right to counsel” rule of *People v Bartolomeo* (53 NY2d 225 [1981]).

New York has long viewed the right to counsel as a cherished and valuable protection that must be guarded with the utmost vigilance (see e.g. *People v Harris*, 77 NY2d 434, 439 [1991]). Arising from the due process guarantee in our State Constitution, the entitlement to effective assistance of counsel and the privilege against compulsory self-incrimination, the right to counsel is referred to as “indelible” because, once it “attaches,” interrogation is prohibited unless the right is waived in the presence of counsel (see *People v Bing*, 76 NY2d 331, 338-339 [1990]). We have explained that attachment occurs when (1) a person in custody requests the assistance of an attorney or a lawyer enters the case or (2) a criminal proceeding is commenced against the defendant by the filing of an accusatory instrument (see *People v West*, 81 NY2d 370, 373-374 [1993]). We are concerned only with actual representation for the purposes of this appeal.

When an attorney enters a case to represent the accused, the police may not question the accused about that matter regardless of whether the person is in police custody (see *People v West*, 81 NY2d at 375). If, however, the police seek to question the suspect about a matter that is not related to the case that the attorney is handling, different rules apply (*People v West*, 81 NY2d at 377). In the seminal case of *People v Rogers* (48 NY2d 167 [1979]), we established that an individual who is in custody for an offense and is represented by counsel on that case may not be questioned about any matter—related or unrelated to the crime for which there is legal representation—unless the accused validly waives the right to counsel (see *People v Rogers*, 48 NY2d at 169). Simply put, the *Rogers* rule states that the indelible right to counsel activates the moment that an attorney becomes involved (see *id.* [“once an attorney has entered the proceeding . . . a defendant in custody may not be further interrogated in the absence of counsel”]; *People v Steward*, 88 NY2d 496, 501 [1996] [“*Rogers* establishes and still stands for the important protection and principle that once a defendant in custody on a particular matter is represented by or requests counsel, custodial interrogation about any subject, whether related or unrelated to the charge upon which representation is

sought or obtained, must cease’’)). The issue of the extent of police knowledge was not addressed in *Rogers* because the interrogating officers in that case had been directly informed by Rogers’ lawyer that they could not question him after he was taken into custody (see 48 NY2d at 170).

In *People v Burdo* (91 NY2d 146 [1997]), we applied the *Rogers* rule to a situation where the defendant was incarcerated for rape, had been assigned an attorney for that charge and the police were aware of counsel’s involvement. The police sought to question the defendant about a missing person—a matter unrelated to the rape—and, outside the presence of his attorney, he declined to consult a lawyer about the new matter. We held that *Rogers* prohibited the police from inquiring about the missing person, specifically noting that, as in *Rogers*, the police were “fully aware” that the defendant was represented on the matter for which he was in custody (*id.* at 150). The case now before us is distinguishable from these precedents because Detective Mattei testified that he was not aware that defendant was represented by an attorney on the Pennsylvania drug charge.³

In deciding whether *Rogers* and *Burdo* should direct the outcome here, we are mindful of several overarching principles that have guided the development of New York’s indelible right to counsel rules. Our jurisprudence in this area “has continuously evolved with the ultimate goal of ‘achieving a balance between the competing interests of society in the protection of cherished individual rights, on the one hand, and in effective law enforcement and investigation of crime, on the other’ ” (*People v Grice*, 100 NY2d 318, 322-323 [2003], quoting *People v Waterman*, 9 NY2d 561, 564 [1961]). Consequently, the parameters of the indelible right to counsel are defined “through the adoption of ‘pragmatic and . . . simple[] test[s]’ (*People v Failla*, 14 NY2d 178, 181 [1964]) grounded on ‘common sense and fairness’ (*People v Bing*, 76 NY2d at 339)” (*People v Grice*, 100 NY2d at 323) in order to “provid[e] an objective measure to guide law enforcement officials and the courts” (*People v Robles*, 72 NY2d 689, 699 [1988]).

3. This case also differs from *Burdo* because defendant was not incarcerated in New York when he was questioned and Pennsylvania does not recognize an indelible right to counsel to the extent that we do in New York (see generally *Commonwealth v Yarris*, 519 Pa 571, 593-594, 549 A2d 513, 524-525 [1988]). We have previously held that the interrogation of a defendant by a New York law enforcement agent outside of this state is subject to our right to counsel jurisprudence (see *People v Bing*, 76 NY2d at 344-345).

For over three decades, “*Rogers* has stood as a workable, comprehensible, bright line rule, providing effective guidance to law enforcement while ensuring that it is defendant’s attorney, not the police, who determines which matters are related and unrelated to the subject of the representation” (*People v Burdo*, 91 NY2d at 151). The *Rogers* rule is eminently straightforward: when an attorney undertakes representation in a matter for which the defendant is in custody, all questioning is barred unless the police obtain a counseled waiver. *Rogers* therefore requires inquiry on three objectively verifiable elements—custody, representation and entry (see e.g. *People v Burdo*, 91 NY2d at 149; *People v Steward*, 88 NY2d at 502; *People v West*, 81 NY2d at 377; *People v Bing*, 76 NY2d at 350).

In this case, defendant was in custody pending prosecution on Pennsylvania charges and he was represented by a Pennsylvania attorney who had entered that case. The only remaining question is whether Detective Mattei should have been deemed chargeable with knowledge of that representation and entry. In *People v Kazmarick* (52 NY2d 322, 328 [1981]), we recognized that there may be circumstances in which “law enforcement officials may . . . be chargeable with knowledge that [a] defendant is in fact represented by counsel . . . on an unrelated charge, in such a way as to cut off their rights to interrogate.” More recently, we explained that “either actual or constructive knowledge by interrogating police officers suffices to perpetuate the indelible right to counsel once attached” (*People v Bongarzone-Suarrcy*, 6 NY3d 787, 789 [2006]). We have also applied a constructive knowledge rationale in a situation where an attorney communicated with the police agency that has custody of a suspect, but the interrogating officer was not aware of that communication (see *People v Pinzon*, 44 NY2d 458, 463-464 [1978]; see generally *People v Carranza*, 3 NY3d 729, 730 [2004]).

[1] We believe that imputation of constructive knowledge is appropriate under the facts of this case as well. In our view, society’s interest in protecting individual constitutional rights would be devalued if the police were allowed to question an incarcerated individual under circumstances where it would be reasonable for the interrogating officer to expect that it is highly likely that the accused has an attorney on the custodial matter. Permitting a police officer to remain deliberately indifferent—avoiding any inquiry on the subject notwithstanding the nature of the custodial charges and the likelihood that a lawyer has entered the matter—in order to circumvent the protection

afforded by *Rogers* is not only fundamentally unfair to the rights of the accused, it further undermines the preexisting attorney-client relationship that serves as the foundation of the *Rogers* rule. A contrary holding would allow a police officer who is fairly certain that an attorney is involved in the custodial matter to flout *Rogers* by claiming that he was not fully confident about a lawyer's involvement. For these reasons, we hold that an officer who wishes to question a person in police custody about an unrelated matter must make a reasonable inquiry concerning the defendant's representational status when the circumstances indicate that there is a probable likelihood that an attorney has entered the custodial matter, and the accused is actually represented on the custodial charge.

The circumstances of this case readily demonstrate the necessity of this principle. Detective Mattei was aware of several facts that would have led a police officer to reasonably conclude that it was highly likely that defendant had legal representation on the Pennsylvania charge. Specifically, defendant was incarcerated on a drug charge for transporting narcotics into that state and was being held in lieu of \$10,000 bail. The fact that bail had been set indicated that defendant had been arraigned in court on the charge. Arraignment undoubtedly signified that defendant's right to counsel had attached—whether under the Sixth Amendment to the United States Constitution (see e.g. *Fellers v United States*, 540 US 519, 523 [2004]), Pennsylvania law (see e.g. *Commonwealth v Gwynn*, 596 Pa 398, 410, 943 A2d 940, 948 [2008]) or the New York Constitution (see *Hurrell-Harring v State of New York*, 15 NY3d 8, 20 [2010])—and made it probable that defendant had been assigned or had retained an attorney, which was true in this case. Under these circumstances, Mattei should have resolved any doubt that may have remained by inquiring about defendant's representational status, rather than avoiding the topic, before commencing interrogation about the Staten Island murder and eliciting the incriminating statements.⁴ Since it is likely that a reasonable inquiry would have revealed counsel's involvement, the detective is chargeable with that knowledge and defendant's indelible right to counsel was violated because the questioning was not preceded by a valid waiver.

4. Had the detective asked defendant directly and he denied having an attorney for the Pennsylvania case, we have no doubt that Mattei could have accepted that assertion at face value if it would have been reasonable to do so (see generally *People v Lucarano*, 61 NY2d 138, 148 [1984]).

Our holding does not, as the People claim, resurrect *People v Bartolomeo* (53 NY2d 225 [1981]). That decision expanded the prohibition on interrogation regarding unrelated matters by creating a “derivative right to counsel” that attached to a new criminal offense whenever a suspect was represented by counsel in connection with unrelated pending charges and regardless of whether the suspect was in custody on the pending charges. The derivative right was fictional because it presumed the existence of an attorney-client relationship in connection with the new, unrelated matter even though the accused was not actually represented by an attorney in the new case. Because *Bartolomeo* proved to be unworkable, it was overruled by *People v Bing* (76 NY2d at 350) and the derivative right no longer exists (see *People v Steward*, 88 NY2d at 500). In contrast, here, defendant was in custody for an offense for which he had representation and, as such, his right to counsel on that crime had “attached indelibly” (*People v West*, 81 NY2d at 379). Thus, in the absence of a valid waiver, *Rogers* precluded questioning about the unrelated homicide while defendant remained in custody on the Pennsylvania charge.

Accordingly, we conclude that defendant’s indelible right to counsel was violated because the discussion about the Staten Island murder occurred while he was in custody for the Pennsylvania offense, the interrogating detective is chargeable with knowledge that an attorney had entered the case to represent him on the Pennsylvania matter and a valid waiver was not secured from defendant before questioning commenced.

III

The concurrence expresses the view that this Court’s right to counsel jurisprudence is too complicated and that we should limit *Rogers* to its facts. It recommends that the better course would be to overrule *Bing*, *West*, *Steward*, *Burdo* and the many cases that have relied on those decisions—and return to the more restrictive rule articulated in *People v Taylor* (27 NY2d 327 [1971]).⁵ Under *Taylor*, the police were allowed to interrogate a person who was in custody and represented by an attorney who had entered the case about any matter unrelated to the custodial charge.

5. The parties in this appeal have neither questioned the continuing viability of *Rogers* and its progeny nor suggested that we should retreat to the *Taylor* rule. Furthermore, stare decisis dictates that prior decisions are entitled to significant deference and may be overruled only when there is a compelling justification for doing so.

We disagree with our concurring colleagues because *Rogers* offered several persuasive reasons for recognizing a right to counsel that extended beyond *Taylor*. The *Rogers* rule provides an extra measure of protection to the attorney-client relationship when a defendant is in custody on a represented charge in recognition of the fact that the right to counsel is “a shield against the awesome and sometimes coercive force of the State” (48 NY2d at 173). Moreover, *Rogers* explained that “it is the role of [the] defendant’s attorney, not the State, to determine whether a particular matter will or will not touch upon the extant charge” and “the attorney’s function cannot be negated by the simple expedient of questioning in his absence” (*id.*). The concurrence does not question the validity of this reasoning.

The path we have taken in right to counsel cases may have been bumpy at times and the concurrence understandably questions the continuing validity of some of the rationales used by this Court in *Rogers*, *Bartolomeo* and *Bing*. But the conclusion we reach today is consistent with the holdings in those decisions and our other undisturbed precedent.

Rogers was correctly decided because the defendant was in custody for an offense for which he was actually represented by a lawyer who had entered the case and communicated his representation to the police. In contrast, in *Bartolomeo* the defendant was in custody for an offense but he did not have counsel on that charge. He did, however, have legal representation in connection with a prior, unrelated criminal case. We erred in *Bartolomeo* by inferring a fictional attorney-client relationship on the matter for which he was in custody. The feature that distinguishes the two cases is whether the defendant was in custody for an offense with actual representation on that charge and notification to the police.

The issue of police custody was also a pivotal concern in *Bing* and *Cawley* (a companion case to *Bing*). Neither defendant was in custody for the offense for which an attorney had entered. *Bing* and *Cawley* were under arrest for being fugitives from justice but they were not represented by counsel on that matter when the incriminating statements were elicited.⁶ Both cases are distinguishable from this appeal because defendant Lopez

6. The concurrence states that *Bing* and *Cawley* “were in custody on charges for which they had lawyers” (concurring op at 393). This is not so. The record in *Bing* reveals that *Bing* had been arrested in Ohio for burglary, arraigned, assigned counsel and released on bail. He then fled from that state,

(n. cont’d)

was in custody for the Pennsylvania offense and an attorney had entered that proceeding before Detective Mattei began the interrogation. If defendant had made bail on the Pennsylvania charge and been released, or if he had been released and was arrested on a fugitive warrant for failure to appear, he could have been questioned about an unrelated matter, just as Bing and Cawley were.

As we have explained, both *Rogers* and today's decision are premised on the fact that the right to counsel was violated on the particular matter for which the defendant was in custody. In *Rogers*, the defendant was in custody for a robbery and his right to counsel on that charge was violated when the police continued to question him and elicited the incriminating statement. So too, in *Burdo*, the defendant was in custody for rape when he was questioned about a missing person and we held that his right to counsel on the rape (not the murder) had been violated. Similarly, defendant in this case was in custody for the Pennsylvania drug charge and his right to counsel on that offense (not the murder) was violated when Detective Mattei questioned him about the Staten Island homicide.

In sum, the holding here is consistent with *Bing* and *Cawley*, and we see no compelling basis to overrule *Rogers* and its progeny.

IV

A violation of the indelible right to counsel does not automatically constitute reversible error. Instead, it is reviewed under the harmless error doctrine for constitutional violations (see e.g. *People v West*, 81 NY2d at 373; *People v Krom*, 61 NY2d 187, 201 [1984]; *People v Flecha*, 60 NY2d 766, 767 [1983]; *People v Sanders*, 56 NY2d 51, 66-67 [1982]; *People v Rogers*, 48 NY2d at 174). Errors of this type “are considered harmless when, in light of the totality of the evidence, there is no reasonable possibility that the error affected the jury’s verdict” (*People v*

for which an arrest warrant was issued. Bing therefore knew that he was wanted in Ohio when he was apprehended by the police in New York. He was under arrest in this state for violating the terms of his bail in Ohio, not for committing the burglary. Similarly, Cawley had been arrested for robbery, released on his own recognizance and later absconded. This resulted in the issuance of a bench warrant for his arrest, which served as the predicate for his incarceration at the time he was questioned by the police. The *Bing* Court viewed these arrests in New York as separate from the prior charges for which the defendants had legal representation, placing them beyond the reach of the *Rogers* rule.

Douglas, 4 NY3d 777, 779 [2005]; see *People v Crimmins*, 36 NY2d 230, 240-241 [1975]). If no such possibility exists, the error is deemed to be harmless beyond a reasonable doubt (see *People v Goldstein*, 6 NY3d 119, 129 [2005]).

[2] Here, there is no reasonable possibility that the introduction of defendant's improperly obtained statement to Detective Mattei affected the conviction in light of the other evidence that overwhelmingly established that defendant murdered Hamoud Thabeat. The People's proof demonstrated that defendant had spontaneously and unequivocally told at least three acquaintances that he shot Thabeat during the failed robbery. None of these individuals had any apparent motive to lie about defendant's admissions. The information these individuals conveyed to law enforcement was independently obtained and their testimony was strongly corroborative.

Particularly, three of the young men who had been with defendant on the day the shooting occurred provided the jury with consistent and specific details about their activities that day (e.g., drinking alcohol, smoking marijuana and playing video games, as well as information regarding who had entered and exited the house). Two of them testified that defendant had confessed to shooting two bullets at Thabeat and remarked that nothing was stolen from the store. One of the men further testified that defendant said he had used a revolver to shoot Thabeat in the chest. None of these companions had been with defendant at the scene of the shooting.

Defendant's admissions to his friends were confirmed by other evidence at trial. A medical examiner testified that Thabeat had been hit by two bullets and that the fatal shot was to the chest. Police officers who responded to the crime scene testified that nothing had been disturbed in the store and money remained in the cash register. A ballistics expert concluded that the recovered bullet was a .38 caliber and "definitely" had been fired from a revolver. Expert testimony explained that the lack of bullet casings at the scene of the killing was because revolvers, unlike semi-automatic handguns, do not automatically eject shell casings when fired. All of this forensic evidence supported the testimony of defendant's companions.

In addition, while defendant was incarcerated in Pennsylvania, he confessed to another inmate that he had killed the store owner and had lied to the police when he told them that Alston was the shooter. He also described to the inmate how he planned

to use his sister to establish a false alibi. The only conceivable source of this information had to be defendant himself.⁷

Considered in its totality, this evidence was overwhelming and it effectively narrowed the scope of the central question that was before the jury: whether defendant or Jonah Alston was the shooter. In this regard, defendant's jailhouse statement to Detective Mattei was, in a sense, partially exculpatory since he claimed that Alston murdered Thabeat and that he was merely a passive participant in the robbery gone awry. Since the jury found defendant guilty of shooting Thabeat, it necessarily disbelieved what he told Mattei and thereby diminished the importance of the improperly obtained statement in the overall context of the case. Moreover, defendant did not present to the jury any theory that cast significant doubt upon his guilt. For all of these reasons, we find that the violation of defendant's indelible right to counsel was harmless beyond a reasonable doubt.

Accordingly, the order of the Appellate Division should be affirmed.

SMITH, J. (concurring). Over the last several decades, we have described the New York right to counsel that we have created as "pragmatic," "simple," "grounded on 'common sense and fairness'," "workable" and "comprehensible." The majority quotes all these descriptions today and adds that the law is "eminently straightforward" (*see* majority *op* at 381, 382, 383 [and the authorities there cited]).

I think we protest too much. In reality, our right to counsel jurisprudence is so complicated that it is almost incomprehensible, and it regularly produces unjust results. This case is an example. The majority, struggling to harmonize our cases—an attempt which, as I will try to show, does not succeed—is led to the conclusion that Detective Mattei infringed defendant's right to a lawyer. But it is hard to imagine any case in which a prisoner's waiver of that right could be more free of coercion, deception or any other form of unfairness. The majority finds the waiver bad because Mattei should have realized that a Pennsylvania lawyer was representing defendant on a drug charge completely unrelated to the murder Mattei was investigating; in common sense, the Pennsylvania case should have no bearing at all on the validity of defendant's waiver.

7. The Pennsylvania informant received no tangible reward for his testimony aside from the New York prosecutor's offer to write a letter to Pennsylvania authorities acknowledging his assistance in this case.

The majority's attempt to reconcile the cases fails because no satisfactory reconciliation is possible. I therefore propose that we simplify our law by limiting *People v Rogers* (48 NY2d 167 [1979]) to its facts, and returning to the old-time religion of *People v Taylor* (27 NY2d 327 [1971]). *Taylor*, unlike *Rogers* and more recent cases, did establish a simple, workable rule: that a suspect's relationship with a lawyer in one case does not bar police questioning of him about another, unrelated case.

The facts of *Rogers*, the case in which we abandoned the *Taylor* rule, were these: Defendant was arrested as a suspect in a robbery. After he had been questioned about that robbery for two hours, a lawyer entered the case on his behalf and asked the police to stop questioning him. They did not stop, but changed the subject: They questioned him—for four more hours, in which he was manacled to a chair—about “unrelated activities in which he had not participated” (48 NY2d at 170). After this, the defendant, for reasons unclear in the *Rogers* opinion, “uttered an inculpatory statement” *about the original crime* (*id.*).

It is easy to see why we did not like what happened in *Rogers*, and I would have no quarrel with a rule excluding a defendant's statement on facts like those; perhaps a rule providing that, where a defendant is represented by counsel on a particular matter, any statement *about that matter* that is elicited by police questioning in counsel's absence is inadmissible. But in *Rogers*, unfortunately, we went much further, saying that “once a defendant is represented by an attorney, the police may not elicit from him any statements, except those necessary for processing or his physical needs” (48 NY2d at 173). Under this rule, statements about a new case in which defendant never had a lawyer can be excluded.

This has led—and is still leading, more than 30 years later—to much trouble and confusion. In *People v Bartolomeo* (53 NY2d 225, 229 [1981]) we held that

“[w]here to the knowledge of the interrogating officer a suspect being questioned had been arrested by the same law enforcement agency nine days previously on an unrelated charge, statements obtained in consequence of the interrogation must be suppressed if in fact the suspect is represented by an attorney with respect to the unrelated charge even though the fact of such representation is unknown to the officer.”

Nine years later, we decided that we had gone too far, and overruled *Bartolomeo* in *People v Bing* (76 NY2d 331 [1990]). We explained in *Bing*:

“The right to assistance of counsel is one of the important means of protection against police harassment afforded individuals. But the right recognized must rest on some principled basis which justifies its social cost. *Bartolomeo* has no such basis. It rests on a fictional attorney-client relationship derived from a prior charge and premised on the belief that a lawyer would not refuse to aid his newly charged client. The decision to retain counsel rests with the client, however, not the lawyer and by hypothesis *Bartolomeo* defendants have waived their right to counsel and chosen not to hire a lawyer to represent them on the new unrelated charges. Indeed, they have done so after receiving the benefit of legal advice and after at least one prior experience dealing with the authorities.” (*Id.* at 348-349 [citation omitted].)

The above language (and much else in the *Bing* opinion) reads like an argument for overruling not only *Bartolomeo* but the broad rule of *Rogers*. In the typical case to which the *Rogers* rule applies—this one, for example—the suspect’s assumed representation by counsel on a second, unrelated case is “a fictional attorney-client relationship derived from a prior charge.” In this and similar cases, it is no less true than in *Bartolomeo* that “defendants have waived their right to counsel and chosen not to hire a lawyer to represent them on the new unrelated charges”—and, indeed, that they “have done so after receiving the benefit of legal advice and after at least one prior experience dealing with the authorities.”

Despite this, *Bing* did not reject the rule of *Rogers*—the *Bing* majority opinion ends, surprisingly, with a declaration that *Rogers* is still good law:

“We emphasize in closing that although *Rogers* and *Bartolomeo* are frequently linked in legal literature and *Rogers* was the only case cited to support the new rule adopted in *Bartolomeo*, the two holdings are quite different. In *People v Rogers*, the right to counsel had been invoked on the charges on which defendant was taken into custody and he and his

counsel clearly asserted it. To protect his rights, we established a bright-line rule preventing the police from questioning defendant about those charges or any other charges. In *People v Bartolomeo*, however, defendant was taken into custody for questioning on a new, unrelated charge. He was not represented on that charge and freely waived his right to counsel. Since the right to counsel is personal and may be waived by a defendant, the court had to create an indelible right, a right that defendant could not waive in the absence of counsel, to justify suppression of the voluntary statement. It did so by implying a derivative right arising from the prior pending charges. We find the *Bartolomeo* rule unworkable, and therefore overrule it, but our decision today should not be understood as retreating from the stated holding of *Rogers*.” (*Id.* at 350 [citations omitted].)

It has never been entirely clear what the *Bing* court thought distinguished *Rogers* and *Bartolomeo*: What made *Rogers* right and *Bartolomeo* wrong? A possible distinction is that *Bartolomeo* went beyond *Rogers* by prohibiting questioning not only where the police actually knew of a prior representation, but where they could readily have discovered it. In *Bartolomeo* itself, both the majority and the dissent emphasized that point. The words “even though the fact of such representation is unknown to the officer” are part of the *Bartolomeo* majority’s statement of its holding (quoted above), while the dissent stressed “that the police knew only that defendant had been previously arrested and did not know defendant had counsel on those earlier charges” (53 NY2d at 236 [Wachtler, J., dissenting]). Three years after the *Bing* decision, in *People v West* (81 NY2d 370 [1993]), we said that this was indeed what distinguished *Rogers* and *Bartolomeo*. According to *West*, the “*Bartolomeo* right was problematic” because “[u]nlike *Rogers*, the *Bartolomeo* right could attach without police awareness of the unrelated representation” (*id.* at 378).

The majority today criticizes the idea of giving dispositive weight to the distinction between a police officer’s actual knowledge and that which a reasonable officer would think “highly likely” (majority op at 383). The criticism is cogent. I agree that in this case, Detective Mattei, if he thought about the question at all, would probably have assumed that defendant had counsel

on the pending Pennsylvania charge, and it seems arbitrary to make the case turn on whether that assumption ripened into actual knowledge. But for me, the point of greater importance is that there is no reason why either the assumption or the knowledge should have prevented Mattei from asking questions about a matter having nothing to do with the Pennsylvania case.

If actual knowledge does not suffice to distinguish *Rogers* and *Bartolomeo* (and thus to justify *Bing*'s overruling of one case but not the other), what is the distinguishing feature? Today's majority suggests that it is the occasion for the suspect's custody. *Rogers*, when questioned by the police, was in custody on the charge on which a lawyer represented him; *Bartolomeo* was in custody on a later charge, on which he was unrepresented. Indeed, the language I have already quoted from *Bing* points out that in *Rogers* "the right to counsel had been invoked on the charges on which defendant was taken into custody." And in *People v Steward* (88 NY2d 496, 499 [1996]) we seemed to embrace the "custody" rationale, saying that the distinguishing feature of the *Bartolomeo* right was that "it did not hinge on or relate to the matter for which a defendant was then in custody and being questioned."

But the "custody" explanation of *Bing*'s distinction between *Rogers* and *Bartolomeo* cannot be the correct one, for a simple reason: It fails to account for the result in *Bing* itself, and in *People v Cawley*, decided with *Bing*. *Bing* was arrested in New York on an Ohio warrant, at a time when he had counsel on the Ohio charge. While in custody on that charge in New York, he was questioned about and admitted involvement in an unrelated burglary. *Cawley* was arrested for robbery, jumped bail and was rearrested on a bench warrant. Thus, he was in custody on the original robbery charge when he "gave inculpatory statements about new, unrelated criminal conduct" (76 NY2d at 336). If custody was the basis for the line that *Bing* drew between *Rogers* and *Bartolomeo*, why were *Bing*'s and *Cawley*'s statements not suppressed? My predecessor on this Court asked essentially this question 14 years ago, and received no answer (see *People v Burdo*, 91 NY2d 146, 154-155 [1997, Wesley, J., dissenting]).

Today's majority attempts to answer the question, but its answer does not work. It says that *Bing* and *Cawley* were not "in custody for the offense for which an attorney had entered" but "were under arrest for being fugitives from justice" and "were not represented by counsel on that matter" (majority op

at 385). But being a fugitive from justice is not a separate “matter” from the offense that caused the fugitive to flee. Bing and Cawley fled to avoid facing, were arrested on, and when questioned were in custody on charges for which they had lawyers. The majority offers no reason why their status as former fugitives should have impaired their right to counsel. Indeed, the *Bing* court rejected the argument that “a defendant who absconds and never contacts his lawyer . . . has terminated the attorney-client relationship” (76 NY2d at 346).

The facts of *Bing* are relevant to our case in another way: In *Bing*, as here, the only existing attorney-client relationship was in a case from another state. It does not make sense to suppress a confession in a New York case solely because of a relationship that is governed by the laws of Ohio or Pennsylvania; those states can decide for themselves how the relationship can best be protected. It was this that persuaded then-Judge Kaye, who was opposed to overruling *Bartolomeo*, to concur in the result in *Bing*. She acknowledged “the absurdity of extending *Bartolomeo* to [the *Bing*] facts” (76 NY2d at 356 [concurring in *Bing* and dissenting in *Cawley*]).

Bing was identical to this case in all material respects: a defendant in custody on an out-of-state charge, interrogated by New York officers about an unrelated New York crime. Though the *Bing* court was divided 4-3 on the question of overruling *Bartolomeo*, all seven Judges agreed that Bing’s right to counsel had not been violated. Since the majority here accepts *Bing* as good law, it is hard to understand how it reaches the opposite conclusion.

I conclude that the effort to find consistency in our cases in this area is a fruitless one. I therefore return to a more basic point: In common sense, Detective Mattei did nothing wrong and this defendant’s right to a lawyer was not interfered with in any way. He did not have a lawyer in the case Detective Mattei was talking to him about, and he validly waived his right to counsel in that case. The fact that he had a lawyer in an unrelated Pennsylvania case should be of no significance.

We said in *People v Steward*: “*Bing* unequivocally eliminates any right to counsel derived solely from a defendant’s representation in a prior unrelated proceeding” (88 NY2d at 500). Today’s majority echoes this comment—“the derivative right no longer exists” (majority op at 384). *Steward* said, and today’s majority repeats, that the right recognized in *Rogers* is not

“derivative,” but I do not see how this can be so if the word derivative has any intelligible meaning (see *West*, 81 NY2d at 378 [“(l)ike *Rogers*, (the *Bartolomeo*) right was derivative”]). If this defendant’s right in this New York case did not derive from his Pennsylvania representation, where did it come from?

For these reasons, I think we should accept, at long last, the logical implication of *Bing*: The rule of *Rogers*, as well as that of *Bartolomeo*, is unjustifiable. We should return to the *Taylor* rule. I would therefore hold that the courts below committed no error in admitting defendant’s statements to Detective Mattei into evidence. I would not reach the question of harmless error.

Chief Judge LIPPMAN and Judges CIPARICK and JONES concur with Judge GRAFFEO; Judge SMITH concurs in result in a separate opinion in which Judges READ and PIGOTT concur.

Order affirmed.

[948 NE2d 425, 924 NYS2d 1]

In the Matter of ROBERT P. MEEGAN, JR., Individually and as President of the Buffalo Police Benevolent Association, et al., Respondents, v BYRON W. BROWN, Mayor of the City of Buffalo, et al., Appellants.

In the Matter of JOSEPH E. FOLEY, Individually and as President of the Buffalo Professional Firefighters Assoc., Inc., Local 282, IAFF, AFL-CIO-CLC, et al., Respondents, v BYRON W. BROWN, Mayor of the City of Buffalo, et al., Appellants.

BUFFALO TEACHERS FEDERATION, INC., NYSUT, et al., Respondents, v BUFFALO BOARD OF EDUCATION FOR CITY SCHOOL DISTRICT OF CITY OF BUFFALO et al., Appellants.

Argued February 9, 2011; decided March 29, 2011

SUMMARY

APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 12, 2009. The Appellate Division affirmed a judgment (denominated order) of the Supreme Court, Erie County (John A. Michalek, J.; op 2007 NY Slip Op 33683[U]), entered in consolidated CPLR article 78 proceedings and a declaratory judgment action, which, among other things, had (1) granted the amended petitions in the two proceedings, and (2) granted plaintiffs' motion for summary judgment in the action.

Matter of Meegan v Brown, 63 AD3d 1673, reversed.

HEADNOTE

Civil Service — Compensation and Benefits — Wage Freeze Legislation — Effect upon Contractual Step Increases

Upon the lifting of a wage freeze imposed for more than three years by the Buffalo Fiscal Stability Authority (BFSA), a public benefit corporation created to assist in achieving fiscal stability in the City of Buffalo, city employees and the members of petitioner unions were only entitled to a one-step salary increase and not entitled to advance the four salary steps that they would have received under collective bargaining agreements had the wage freeze not been imposed. The legislation which created the BFSA and empowered it to impose a wage freeze on city employees plainly permits the BFSA to suspend all salary and wage increases, including any "step-ups" and "increments" (Public Authorities Law § 3858 [2] [c] [i]). It further provides that "no retroactive pay adjustments of any kind shall accrue or be deemed to accrue during the period of wage freeze" (Public Authorities Law § 3858 [2] [c] [iii]). The

term “retroactive pay adjustments of any kind” must be read broadly and section 3858 (2) (c) (iii) refers back to section 3858 (2) (c) (i), which defines the type of adjustments, including differentials, step-ups and increments, that the BFSA is empowered to suspend. The use of the term “accrue” in section 3858 (2) (c) (iii) provides further evidence of the Legislature’s intent under section 3858 (2) (c) (i) that step increases and increments were suspended and did not accrue during the wage freeze. In addition to the specific language of the statutory provisions, the intent of the Legislature, set forth in Public Authorities Law § 3850-a, supported the City’s position. The entire purpose of the statute was to place the City of Buffalo on sound financial ground over the long term by empowering the BFSA to freeze wages and salary increments until the City’s growth and stability were renewed.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Labor and Labor Relations § 2396; AM JUR 2d, Municipal Corporations, Counties, and Other Political Subdivisions § 513; AM JUR 2d, Public Officers and Employees § 285.

McKINNEY’s, Public Authorities Law §§ 3850-a, 3858 (2) (c) (i), (iii).

NY JUR 2d, Civil Servants and Other Public Officers and Employees § 412; NY JUR 2d, Counties, Towns, and Municipal Corporations §§ 378, 1544; NY JUR 2d, Public Authorities §§ 1, 3.

ANNOTATION REFERENCE

See ALR Index under Municipal Corporations; Public Officers and Employees.

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POINTS OF COUNSEL

Goldberg Segalla LLP, Buffalo (*Matthew C. Van Vessel* of counsel), and *Jaeckle Fleischmann & Mugel, LLP* (*Scott P. Horton* of counsel) for Byron W. Brown and another, appellants. I. The plain language of the Buffalo Fiscal Stability Authority Act requires reversal of the decision of the Appellate Division. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Gletzer v Harris*, 12 NY3d 468; *Matter of Niagara Wheatfield Adm’rs Assn. [Niagara Wheatfield Cent. School Dist.]*, 44 NY2d 68; *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513; *Matter of Tonis v*

Board of Regents of Univ. of State of N.Y., 295 NY 286; *Zion v Kurtz*, 50 NY2d 92, 1060; *Mangam v City of Brooklyn*, 98 NY 585; *Association of Surrogates & Supreme Ct. Reporters Within City of N.Y. v State of New York*, 79 NY2d 39; *Matter of Board of Coop. Educ. Servs. of Rockland County v New York State Pub. Empl. Relations Bd.*, 41 NY2d 753; *Board of Educ. of Yonkers City School Dist. v Cassidy*, 59 AD2d 180.) II. The public purposes and remedial nature of the Buffalo Fiscal Stability Authority Act compel reversal of the decision of the Appellate Division. (*Matter of Hogan v Culkin*, 18 NY2d 330; *Ferres v City of New Rochelle*, 68 NY2d 446; *People v Ryan*, 274 NY 149; *Matter of River Brand Rice Mills, Inc. v Latrobe Brewing Co.*, 305 NY 36; *Matter of Capital Newspapers, Div. of Hearst Corp. v Whalen*, 69 NY2d 246; *Matter of Chase Natl. Bank v Guardian Realities, Inc.*, 283 NY 350.) III. The decision of the Appellate Division, if affirmed, imposes a financial obligation on the City of Buffalo that compels re-examination of Buffalo Fiscal Stability Authority Resolution No. 07-21.

Harris Beach PLLC, Pittsford (A. Vincent Buzard and Laura W. Smalley of counsel), for Buffalo Fiscal Stability Authority, appellant. The language of the Buffalo Fiscal Stability Authority Act, which provides that wage increases, steps and increments are “suspended” during the wage freeze and that such “retroactive pay adjustments” do not “accrue” during the freeze, makes clear that multiple increases are not to be reinstated immediately after the freeze is lifted. (*Robbins v County of Broome*, 87 NY2d 831; *DiMaio v Pozefsky*, 35 AD3d 1136; *Jones v Bill*, 10 NY3d 550; *Weingarten v Board of Trustees of N.Y. City Teachers’ Retirement Sys.*, 98 NY2d 575; *Roth v Michelson*, 55 NY2d 278; *People v Boston*, 75 NY2d 585; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Riley v County of Broome*, 95 NY2d 455; *Gletzer v Harris*, 12 NY3d 468; *Matter of Ramroop v Flexo-Craft Print., Inc.*, 11 NY3d 160.)

Damon & Morey LLP, Buffalo (James N. Schmit and Michael J. Willett of counsel), and Michael J. Looby, General Counsel, Buffalo Public Schools, for Buffalo Board of Education for City School District of the City of Buffalo and another, appellants. The clear language of the Buffalo Fiscal Stability Authority Act establishes, as a matter of law, that step increases and increments did not accrue during the wage freeze. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Riley v County of Broome*, 95 NY2d 455; *Gletzer v Harris*, 12 NY3d 468; *Matter of Tonis v Board of Regents of Univ. of State of N.Y.*, 295 NY 286;

Matter of Rodriguez v Perales, 86 NY2d 361; *Matter of Albano v Kirby*, 36 NY2d 526; *White Plains Parking Auth. v State of New York*, 180 AD2d 729; *Acme Bldrs. v County of Nassau*, 36 AD2d 317, 31 NY2d 924; *Matter of SIN, Inc. v Department of Fin. of City of N.Y.*, 71 NY2d 616; *Board of Educ. of Yonkers City School Dist. v Cassidy*, 59 AD2d 180.)

W. James Schwan, II, Buffalo, for Robert P. Meegan, Jr., and another, respondents. I. The decisions of the courts below are compelled by the language of statute. II. Appellants' interpretation of the statute is contrary to its plain meaning. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Bertoldi v State of New York*, 275 AD2d 227; *Matter of David Assoc. [Bevona]*, 109 AD2d 623; *Board of Educ., Farmingdale Union Free School Dist. v Farmingdale Fedn. of Teachers*, 92 AD2d 599; *Mark v Board of Higher Educ. of City of N.Y.*, 303 NY 154; *Samiento v World Yacht Inc.*, 10 NY3d 70; *Friedman v Connecticut Gen. Life Ins. Co.*, 9 NY3d 105; *Commonwealth of Pa. v Brown*, 260 F Supp 323.) III. Appellants' interpretation of the statute results in an unconditional impairment of the Buffalo Police Benevolent Association's contract. (*Association of Surrogates & Supreme Ct. Reporters Within City of N.Y. v State of New York*, 79 NY2d 39, 940 F2d 766; *Condell v Bress*, 983 F2d 415.) IV. The lifting of the wage freeze as implemented by the City resulted in absurd results.

Creighton, Johnsen & Giroux, Buffalo (E. Joseph Giroux, Jr., and Jonathan G. Johnsen of counsel), for Joseph Foley and another, respondents. I. The plain language of Public Authorities Law § 3858 (2) (c) provides that, during a control period, the Buffalo Fiscal Stability Authority is empowered only to suspend but not to eliminate increases to wages. (*Matter of Astoria Fin. Corp. v Tax Appeals Trib. of State of N.Y.*, 63 AD3d 1316; *Buffalo Teachers Fedn. v Tobe*, 464 F3d 362.) II. The plain language of Public Authorities Law § 3858 (2) (c) (iii) prohibits only "retroactive pay adjustments" to "accrue or be deemed to accrue during the period of wage freeze" and does not affect the implementation of the suspended wage increases. (*Kahmann v Reno*, 967 F Supp 731; *Annacchino v Annacchino*, 61 Misc 2d 636.)

Bredhoff & Kaiser, P.L.L.C. (Andrew D. Roth, of the District of Columbia bar, admitted pro hac vice, of counsel), Office of General Counsel, New York State United Teachers, Buffalo (Robert W. Klingensmith, Jr., of counsel), James R. Sandner, Latham,

Kevin H. Haren and Alice M. O'Brien, Washington, D.C., for Buffalo Teachers Federation, Inc., and others, respondents. I. The courts below were correct in adopting the union's interpretation of the Buffalo Fiscal Stability Authority (BFSA) Act's wage freeze provisions and in rejecting the BFSA's current, contrary interpretation. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Matter of New York State Correctional Officer & Police Benevolent Assn., Inc. v New York State Dept. of Correctional Servs.*, 66 AD3d 1291; *Bertoldi v State of New York*, 275 AD2d 227; *Matter of David Assoc. [Bevona]*, 109 AD2d 623; *Board of Educ., Farmingdale Union Free School Dist. v Farmingdale Fedn. of Teachers*, 92 AD2d 599; *Mark v Board of Higher Educ. of City of N.Y.*, 303 NY 154; *Samiento v World Yacht Inc.*, 10 NY3d 70; *Friedman v Connecticut Gen. Life Ins. Co.*, 9 NY3d 105; *Commonwealth of Pa. v Brown*, 260 F Supp 323; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451.) II. This Court should reject the Buffalo Fiscal Stability Authority's (BFSA) new argument based on section 3872 of the BFSA Act. (*Bingham v New York City Tr. Auth.*, 99 NY2d 355.) III. Contrary to the City of Buffalo's argument, this matter need not, under any circumstances, be "remanded to the Buffalo Fiscal Stability Authority for reconsideration."

Jay Worona, Latham, and *Kimberly A. Fanniff* for New York State School Boards Association, Inc., amicus curiae. The lower court's interpretation of Public Authorities Law § 3858 (2) (c) improperly ignores both the plain language of the statute and its stated purpose. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Finnegan*, 85 NY2d 53; *Matter of Anderson v Board of Educ. of City of Yonkers*, 46 AD2d 360, 38 NY2d 897; *People v Munoz*, 207 AD2d 418, 84 NY2d 938; *Matter of Gibson v Board of Educ. of Watkins Glen Cent. School Dist.*, 68 AD2d 967, 52 NY2d 1053; *Matter of Terino v Levitt*, 44 AD2d 167; *Matter of Tonis v Board of Regents of Univ. of State of N.Y.*, 295 NY 286; *Matter of Albano v Kirby*, 36 NY2d 526.)

Harter Secrest & Emery LLP, Buffalo (*Carol E. Heckman* and *A. Paul Britton* of counsel), for Buffalo Niagara Partnership, amicus curiae. I. The language of the Buffalo Fiscal Stability Authority Act requires a determination that no step increases, percentage wage increases, or increments can be deemed to have accrued during the period of the wage freeze. (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Matter of Daimler-*

Chrysler Corp. v Spitzer, 7 NY3d 653; *Matter of Bath & Hammondsport R.R. Co. v New York State Dept. of Envtl. Conservation*, 73 NY2d 434; *Friedman v Connecticut Gen. Life Ins. Co.*, 9 NY3d 105; *New York State Correctional Officer & Police Benevolent Assn., Inc. v New York State Dept. of Correctional Servs.*, 66 AD3d 1291; *Bertoldi v State of New York*, 275 AD2d 227; *Matter of David Assoc. [Bevona]*, 109 AD2d 623; *Board of Educ., Farmingdale Union Free School Dist. v Farmingdale Fedn. of Teachers*, 92 AD2d 599; *Mark v Board of Higher Educ. of City of N.Y.*, 303 NY 154; *Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95.) II. The Buffalo Fiscal Stability Authority Act should be construed consistently with the patent intent of the Legislature. (*Buffalo Teachers Fedn. v Tobe*, 464 F3d 362; *Blanco v American Tel. & Tel. Co.*, 90 NY2d 757; *Lesser v Park 65 Realty Corp.*, 140 AD2d 169; *Matter of Industrial Commr. of State of N.Y. v Five Corners Tavern*, 47 NY2d 639; *Matter of New York Life Ins. Co. v State Tax Commn.*, 80 AD2d 675, 55 NY2d 758.)

OPINION OF THE COURT

PIGOTT, J.

In 2003, because of concern for the City of Buffalo's financial problems, the Office of the State Comptroller conducted a review of the City's finances and issued a report, concluding that the City had been operating with a deficit for many years and was only able to fund its operations because of increasing state aid and by using its reserves. Based on these and other findings, the Comptroller proposed legislation to establish a City of Buffalo Oversight and Recovery Board whose mission was to ensure effective long-term restructuring of the City's fiscal condition.

In response, the State Legislature created the Buffalo Fiscal Stability Authority (BFSA), a public benefit corporation, to assist in achieving fiscal stability in the City by the 2006-2007 fiscal year (see Public Authorities Law § 3857 [1]). The Legislature stated,

“It is hereby found and declared that the city [of Buffalo] is in a state of fiscal crisis, and that the welfare of the inhabitants of the city is seriously threatened. The city budget must be balanced and economic recovery enhanced. Actions should be undertaken which preserve essential services to city residents, while also ensuring that taxes remain affordable. Actions contrary to these two essential goals jeopardize the city's long-term fiscal health

and impede economic growth for the city, the region, and the state” (L 2003, ch 122, § 1).

Among other powers, the BFSa was authorized to impose a wage freeze upon finding that such a freeze was essential to the adoption or maintenance of a city budget or financial plan (*see* Public Authorities Law § 3858 [2] [c] [i]). In April 2004 it did just that, determining “that a wage freeze, with respect to the City and all Covered Organizations, is essential to the maintenance of the Revised Financial Plan and to the adoption and maintenance of future budgets and financial plans that are in compliance with the Act.” (Buffalo Fiscal Stability Authority Resolution No. 04-35 [Apr. 21, 2004], available at <http://www.bfsa.state.ny.us/meetings2004/resolutions/res0435.pdf>.) The freeze, effective April 2004, prevented any increase in wages, including increased payments for salary adjustments according to “plan and step-ups or increments” (*id.*).

The freeze was lifted in July 2007, whereupon the BFSa and the City indicated that city employees would immediately be entitled to a one-step increase in salary and wages. The Unions objected, however, contending that the employees were entitled to advance the four salary steps that they would have received had the freeze not been imposed.

I.

In 2007, petitioners and plaintiffs (hereinafter the Unions) commenced these CPLR article 78 and declaratory judgment proceedings and action against respondents (hereinafter the City) challenging, among other things, the suspension of step-up plan wage increases. Supreme Court granted the petitions, finding that Public Authorities Law § 3858 (2) (c) (iii) applies only to wages lost during the freeze and not to longevity and promotional steps provided in the various contracts between the City and its unions and therefore petitioners were “entitled to their previously negotiated wage increase benefits going forward immediately.” (2007 NY Slip Op 33683[U], *5 [2007].)

The City appealed. The Appellate Division affirmed for essentially the same reasons as Supreme Court (63 AD3d 1673 [4th Dept 2009]). This Court granted leave and we now reverse.

II.

Public Authorities Law § 3858 (2) provides, in relevant part:

“In carrying out the purposes of this title during any control period, the [BFSa]: . . .

“(c) may impose a wage and/or hiring freeze: (i) During a control period, upon a finding by the [BFSA] that a wage and/or hiring freeze is essential to the adoption or maintenance of a city budget or a financial plan that is in compliance with this title, the [BFSA] shall be empowered to order that all increases in salary or wages of employees of the city and employees of covered organizations which will take effect after the date of the order pursuant to collective bargaining agreements . . . now in existence or hereafter entered into, requiring such salary or wage increases as of any date thereafter are *suspended*. Such order may also provide that all increased payments for . . . *salary adjustments according to plan and step-ups or increments for employees of the city and employees of covered organizations which will take effect after the date of the order pursuant to collective bargaining agreements* . . . requiring such increased payments as of any date thereafter are, in the same manner, suspended. . . .

“(iii) Notwithstanding the provisions of subparagraphs (i) and (ii) of this paragraph, *no retroactive pay adjustments of any kind shall accrue or be deemed to accrue during the period of wage freeze*, and no such additional amounts shall be paid at the time a wage freeze is lifted, or at any time thereafter” (emphasis added).

The City argues that under section 3858 (2) (c) (i) and (iii), contractual salary increases, step increases, and other pay adjustments were suspended and did not accrue during the wage freeze period and that, therefore, the union members were only entitled to a one-step increase—rather than four step increases—once the wage freeze ended. The Unions, on the other hand, acknowledge that the act prohibits the accrual of retroactive pay, but argue that their members accrued service credit in the step-salary plan and, upon the lifting of the wage freeze, should receive those salary step increases.

Both parties argue that the plain language of the statute supports their position. In our view, neither interpretation is unreasonable. Ultimately, however, the interpretation proffered by the City most comports with the meaning and purpose of the statute.

The legislation plainly permits the BFSA to suspend all salary and wage increases, including any “step-ups” and “increments”

(Public Authorities Law § 3858 [2] [c] [i]). It further provides that “no retroactive pay adjustments *of any kind* shall accrue or be deemed to accrue during the period of wage freeze” (§ 3858 [2] [c] [iii] [emphasis added]). The term “retroactive pay adjustments of any kind” must be read broadly. Subdivision (2) (c) (iii) refers back to (2) (c) (i), which defines the type of adjustments, including differentials, step-ups and increments, that the BFSa is empowered to suspend. Thus, the Legislature’s use of the term “accrue” in subparagraph (iii) provides further evidence of its intent under subparagraph (i) that step increases and increments were suspended and did not accrue during the wage freeze.

III.

While examining the specific language of statutory provisions is part of our inquiry, we must also look to the underlying purpose and the statute’s history as “[w]e are mindful that in ‘the interpretation of statutes, the spirit and purpose of the act and the objects to be accomplished must be considered. The legislative intent is the great and controlling principle’ ” (*Ferres v City of New Rochelle*, 68 NY2d 446, 451 [1986] [emphasis omitted], quoting *People v Ryan*, 274 NY 149, 152 [1937]).

Public Authorities Law § 3850-a sets forth the Legislature’s intent. In that provision, the Legislature declared that the “maintenance of a balanced budget by the city of Buffalo is a matter of overriding state concern.” This remedial legislation was enacted to provide the City of Buffalo with “long-term fiscal stability,” ensuring confidence of investors in the City’s bonds and notes and to protect the economy of the region (*id.*). The act further provides that “[t]he provisions of this title shall be liberally construed to assist the effectuation of the public purposes furthered hereby” (*id.* § 3873). Thus, the entire purpose of the statute was to place the City of Buffalo on sound financial ground over the long term. In order to accomplish such purpose, BFSa was empowered to freeze wages and salary increments until the City’s growth and stability were renewed. The intent of the statute supports the City’s position.

Accordingly, the order of the Appellate Division should be reversed, with costs, the amended petitions in *Matter of Meegan v Brown* and *Matter of Foley v Brown* dismissed, and judgment granted to defendants in *Buffalo Teachers Federation, Inc. v Buffalo Board of Education for City School District of City of Buffalo* declaring in accordance with this opinion.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ,
SMITH and JONES concur.

Order reversed, etc.

[947 NE2d 617, 922 NYS2d 843]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MICHAEL DUHS, Appellant.

Argued February 17, 2011; decided March 29, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 25, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Richmond County (Stephen J. Rooney, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree and endangering the welfare of a child.

People v Duhs, 65 AD3d 699, affirmed.

HEADNOTES

Crimes — Evidence — Hearsay Evidence — Statement Germane to Medical Diagnosis and Treatment

1. In the prosecution of defendant arising from allegations that he placed the legs and feet of a three-year-old boy into a tub filled with scalding hot water, causing second and third degree burns, Supreme Court properly allowed the treating emergency room pediatrician to testify concerning the child's statement to her that defendant would not let him out of the tub, notwithstanding that the statement was not included in the child's medical records and the child did not testify at trial. An exception to the hearsay rule exists for statements expressive of a patient's present condition made to a physician for the purpose of treatment. Here, the pediatrician, after observing the burns, asked the child how he was injured to determine the time and mechanism of the injury so as to administer the appropriate type of treatment. She then posed the question as to why he did not get out of the tub to try to ascertain whether he had a predisposing condition that may have prevented him from doing so. Thus, the child's statement in response to the question was germane to his medical diagnosis and treatment.

Crimes — Right of Confrontation — Testimonial Statements — Primary Purpose Test

2. In the prosecution of defendant arising from allegations that he placed the legs and feet of a three-year-old boy into a tub filled with scalding hot water, causing second and third degree burns, the admission at trial of the treating emergency room pediatrician's testimony concerning the child's statement to her that defendant would not let him out of the tub did not violate defendant's constitutional right to confront the witnesses against him where the child did not testify. The Confrontation Clause prohibits the admission of testimonial statements of a witness who does not appear at trial unless the witness was unavailable to testify and defendant had a prior opportunity for cross-examination. It is the testimonial character of a statement that separates it from other hearsay that is not subject to the Confrontation Clause. Statements are testimonial where the circumstances indicate that there is no

ongoing emergency and the primary purpose of the interrogation is to establish or prove past events potentially relevant to later criminal prosecution, i.e., to create an out-of-court substitute for trial testimony. In contrast, statements made in the course of interrogation under circumstances objectively indicating that the primary purpose of the interrogation is to meet an ongoing emergency are nontestimonial. Applying the “primary purpose” test here, the child’s statement was not of a testimonial character, since the primary purpose of the pediatrician’s inquiry as to how he was injured and why he did not get out of the tub was to determine the time and mechanism of the injury and potential predisposing conditions for appropriate treatment. That the pediatrician may have also inquired to fulfill her legal and ethical duty to report child abuse was of no moment as her paramount duty was to render medical assistance to the child.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Criminal Law §§ 1072–1074; AM JUR 2d, Evidence §§ 669, 881, 882.

CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:78, 194:79, 194:88, 194:96, 194:116; CARMODY-WAIT 2d, Testimony of Witnesses § 195:95.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.

NY JUR 2d, Criminal Law: Procedure §§ 2094, 2133, 2146, 2230, 2298.

ANNOTATION REFERENCE

Admissibility of statements made for purposes of medical diagnosis or treatment as hearsay exception under Rule 803 (4) of the Uniform Rules of Evidence. 38 ALR5th 433.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: hearsay /s diagnos! treat! & primary /2 purpose

POINTS OF COUNSEL

Appellate Advocates, New York City (*Erin R. Collins* and *Lynn W.L. Fahey* of counsel), for appellant. I. The court denied appellant his constitutional right to confrontation by letting the People decline to call the child complainant, and instead present his accusation through the testimony of a physician and “mandated child abuse reporter,” who reported it to the police, but never recorded it in the medical record. (*People v Pacer*, 6 NY3d 504; *Crawford v Washington*, 541 US 36; *Davis v Washington*, 547 US 813; *People v Goldstein*, 6 NY3d 119; *California v Green*, 399 US 149; *Coy v Iowa*, 487 US 1012; *People v Cintron*, 75 NY2d 249; *Davis v Alaska*, 415 US 308; *Pointer v Texas*, 380

US 400; *People v Arroyo*, 54 NY2d 567.) II. Since the three-year-old complainant would not have understood his response to a doctor's question, posed almost an hour into treatment, to be medically significant, it was inadmissible under New York's "medical treatment" hearsay exception. (*Davidson v Cornell*, 132 NY 228; *People v Huertas*, 75 NY2d 487; *People v Nieves*, 67 NY2d 125; *People v Settles*, 46 NY2d 154; *People v Brown*, 80 NY2d 729; *People v Caviness*, 38 NY2d 227; *White v Illinois*, 502 US 346; *Scott v Mason*, 155 AD2d 655; *People v Thomas*, 282 AD2d 827; *People v Torres*, 175 AD2d 635.)

Daniel M. Donovan, Jr., District Attorney, Staten Island (*Anne Grady* and *Morrie I. Kleinbart* of counsel), for respondent. Because the infant complainant's statements were necessary to treat his injuries, they were nontestimonial and their admission did not violate defendant's Sixth Amendment confrontation right. (*Davis v Washington*, 547 US 813; *Crawford v Washington*, 541 US 36; *People v James*, 19 AD3d 616; *People v Caccese*, 211 AD2d 976; *People v Dennee*, 291 AD2d 888; *Williams v Alexander*, 309 NY 283; *People v Cratsley*, 86 NY2d 81; *People v Scott*, 294 AD2d 661; *Scott v Mason*, 155 AD2d 655; *People v Townsley*, 240 AD2d 955.)

OPINION OF THE COURT

FIGOTT, J.

Defendant, who was babysitting his girlfriend's three-year-old son, allegedly placed the child's feet and lower legs into a tub filled with scalding hot water, resulting in second and third degree burns. When the child's mother returned home approximately five hours later, defendant and the mother took the child to the hospital, where he was examined and treated by an emergency room pediatrician.

At trial, the court permitted the pediatrician to testify about a statement the child made outside the presence of his mother and defendant. Specifically, when the pediatrician asked the child why he did not get out of the tub, he responded, "he wouldn't let me out." The pediatrician did not include this statement in the child's medical records, nor did the child testify at trial. Defendant was convicted of assault in the first degree and endangering the welfare of a child, and, on appeal, the Appellate Division affirmed (65 AD3d 699 [2009]). A Judge of this Court granted leave (14 NY3d 887 [2010]).

The only issues before us are whether the trial court erred in allowing the pediatrician's testimony concerning the child's

statement in evidence as germane to the child's medical diagnosis and treatment, and whether its admission violated defendant's constitutional right to confront the witnesses against him.

[1] Supreme Court properly concluded that the child's statement was germane to his medical diagnosis and treatment and therefore was properly admitted under that exception to the hearsay rule. When seeking treatment for injuries, there is a "strong inducement for the patient to speak truly of his pains and sufferings" and therefore "statements expressive of [a patient's] present condition are permitted to be given as evidence only when made to a physician for the purposes of treatment" (*Davidson v Cornell*, 132 NY 228, 237-238 [1892]).

Here, the pediatrician testified that, during her initial assessment, she observed that the child had sustained second and third degree burns to his feet and legs. The pediatrician testified that she asked the child how he had been injured to determine the time and mechanism of the injury so she could properly administer treatment, the type of treatment being dependent on when and how the child was injured. Moreover, the pediatrician testified that by asking the question, she was trying to ascertain whether the child had a predisposing condition, such as a neurological disorder (e.g., was prone to seizures or developmental delays) that may have prevented him from getting out of the bathtub.

Defendant nevertheless contends that, by allowing the pediatrician to testify as to what the child told her, he was deprived of his Sixth Amendment right to confront the witness against him in violation of *Crawford v Washington* (541 US 36 [2004]) and *Davis v Washington* (547 US 813 [2006]). The United States Supreme Court held in those cases that the Confrontation Clause prohibits the "admission of testimonial statements of a witness who [does] not appear at trial unless [the witness] was unavailable to testify, and the defendant had had a prior opportunity for cross-examination" (*Davis*, 547 US at 821, quoting *Crawford*, 541 US at 53-54).

At issue here is whether the child's statement to the pediatrician was testimonial, as defendant claims, or nontestimonial, as the People assert. In *Davis*, the Supreme Court held that only "testimonial statements" can "cause the declarant to be a 'witness' within the meaning of the Confrontation Clause," and "[i]t is the testimonial character of the statement that separates it from other hearsay that, while subject to traditional

limitations upon hearsay evidence, is not subject to the Confrontation Clause” (547 US at 821). “Statements are non-testimonial when made in the course of . . . interrogation under circumstances objectively indicating that the primary purpose of the interrogation is to . . . meet an ongoing emergency” and “are testimonial when the circumstances objectively indicate that there is no such ongoing emergency, and that the primary purpose of the interrogation is to establish or prove past events potentially relevant to later criminal prosecution” (*Michigan v Bryant*, 562 US —, —, 131 S Ct 1143, 1154 [2011], quoting *Davis*, 547 US at 822).

The “primary purpose” test reflects an “important distinction between a statement (generated through police interrogation or otherwise) that ‘accuses’ a perpetrator of a crime . . . versus one that serves some other nontestimonial purpose” (*People v Rawlins*, 10 NY3d 136, 148 [2008], *cert denied sub nom. Meekins v New York*, 557 US —, 129 S Ct 2856 [2009]). Significantly, “[t]he lodestar . . . that emerges from *Davis* is the *purpose* that the statement was intended to serve” (*id.*). Indeed, the Supreme Court recently explained that

“[w]hen, as in *Davis*, the primary purpose of an interrogation is to respond to an ‘ongoing emergency,’ its purpose is not to create a record for trial and thus is not within the scope of the Clause. But there may be *other* circumstances, aside from ongoing emergencies, when a statement is not procured with a primary purpose of creating an out-of-court substitute for trial testimony. In making the primary purpose determination, standard rules of hearsay, designed to identify some statements as reliable, will be relevant. Where no such primary purpose exists, the admissibility of a statement is the concern of state and federal rules of evidence, not the Confrontation Clause” (*Bryant*, 562 US at —, 131 S Ct at 1155).

[2] Applying the primary purpose test here, it is evident that the statement “he wouldn’t let me out” was not of a testimonial character, since the primary purpose of the pediatrician’s inquiry was to determine the mechanism of injury so she could render a diagnosis and administer medical treatment. Moreover, the Supreme Court has noted that “statements to physicians in the course of receiving treatment would be excluded, if at all, only by hearsay rules” and not the Confrontation Clause (*Giles*

v California, 554 US 353, 376 [2008]; *see Bryant*, 562 US at — n 9, 131 S Ct at 1157 n 9).

Finally, it is of no moment that the pediatrician may have had a secondary motive for her inquiry, namely, to fulfill her ethical and legal duty, as a mandatory reporter of child abuse, to investigate whether the child was potentially a victim of abuse. Her first and paramount duty was to render medical assistance to an injured child. Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur.

Order affirmed.

[947 NE2d 1169, 923 NYS2d 391]

RYAN P. ST. LOUIS, Respondent, v TOWN OF NORTH ELBA et al.,
Appellants.

Argued February 10, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered February 18, 2010. The Appellate Division affirmed an order of the Supreme Court, Essex County (Richard B. Meyer, J.), which had denied defendants' motion for summary judgment dismissing plaintiff's Labor Law § 241 (6) claim. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in affirming, on the law, the order of the Supreme Court which denied defendants' motions for summary judgment dismissing the claim?"

St. Louis v Town of N. Elba, 70 AD3d 1250, affirmed.

HEADNOTE

Labor — Safe Place to Work — Hoisting of Load by Power-Operated Heavy Equipment — Safety Requirements

Plaintiff maintenance worker, who was injured while assisting a work crew in the construction of a drainage pipeline when a section of pipe fell on him from the jaws of a hydraulic-operated clamshell bucket attached to the bucket arm of a front-end loader, stated a claim against defendant property owners under Labor Law § 241 (6) predicated on a violation of 12 NYCRR 23-9.4 (e). Although 12 NYCRR 23-9.4, a provision of the Industrial Code which requires loads to be fastened with sturdy wire, proportionate to the weight of the load (12 NYCRR 23-9.4 [e]), only mentions "power shovels and backhoes," the safety requirements of that section extend to a front-end loader enlisted to do the material handling that is otherwise performed by power shovels and backhoes. 12 NYCRR 23-9.4 (e) was drafted to reduce the threat posed by heavy materials falling from buckets, and the same danger that exists for a worker using a power shovel or backhoe with an unsecured load exists for a worker using a front-end loader with an unsecured load. Here, the members of the work crew testified that they normally secured materials in the clamshell bucket by use of a metal chain, and the accident report stated that the injury could have been prevented by using "chain on pipe." Thus, it was apparent that material hoisting with a front-end loader was associated in the trade with the same known risks as other power-operated machinery used in the same manner. The Industrial Code should be interpreted and applied to effectuate its purpose of protecting construction laborers against hazards in the workplace and the preferred rule is to consider the function of a piece of equipment, and not merely the name, when determining the applicability of a regulation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Employment Relationship §§ 266–268.
McKINNEY's, Labor Law § 241 (6).
12 NYCRR 23–9.4 (e).
NY JUR 2d, Employment Relations §§ 282, 283, 285, 308–
311, 317, 380, 382.
PROSSER AND KEETON, TORTS (5th ed) §§ 36, 80.

ANNOTATION REFERENCE

See ALR Index under Loading and Unloading; Occupational Safety and Health.

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Database: NY-ORCS

Query: worker /s injur! & owner /p safety & violat! /4
regulation & loader

POINTS OF COUNSEL

Roemer Wallens Gold & Mineaux, LLP, Albany (Matthew J. Kelly of counsel), for appellants. Plaintiff cannot rely on 12 NYCRR 23-9.4 as the basis for his Labor Law § 241 (6) claim because the provisions of that regulation do not apply to a front-end loader being used as a material hoist. (*Morris v Pavarini Constr.*, 9 NY3d 47; *Zimmer v Chemung County Performing Arts*, 65 NY2d 513; *Long v Forest-Fehlhaber*, 55 NY2d 154; *Nagel v D & R Realty Corp.*, 99 NY2d 98; *Morton v State of New York*, 15 NY3d 50; *Rivera v Santos*, 35 AD3d 700; *Fitzgerald v New York City School Constr. Auth.*, 18 AD3d 807; *Dzieran v 1800 Boston Rd., LLC*, 25 AD3d 336; *Ryder v Mount Loretto Nursing Home*, 290 AD2d 892; *Giordano v Forest City Ratner Cos.*, 43 AD3d 1106.)

Pennock, Breedlove & Noll, LLP, Clifton Park (Sarah I. Goldman of counsel), for respondent. I. 12 NYCRR subpart 23-9 is the proper regulation in the instant action as the front-end loader used to suspend the pipe was power-operated heavy equipment and machinery used in construction. (*Smith v Hovnanian Co.*, 218 AD2d 68; *Borowicz v International Paper Co.*, 245 AD2d 682; *Copp v City of Elmira*, 31 AD3d 899.) II. Defendant's contention that there is a split of authority between the appellate departments is not accurate. III. 12 NYCRR 23-6.1 is inapplicable as the regulation specifically excludes excavating

machines used as material hoists. (*Adams v Glass Fab*, 212 AD2d 972; *Cardenas v American Ref-Fuel Co. of Hempstead*, 244 AD2d 377; *Giordano v Forest City Ratner Cos.*, 43 AD3d 1106; *Ryder v Mount Loretto Nursing Home*, 290 AD2d 892; *Rivera v Santos*, 35 AD3d 700; *Locicero v Princeton Restoration, Inc.*, 25 AD3d 664.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

Plaintiff Ryan St. Louis was injured while employed as a maintenance worker at the MacKenzie-Intervale Olympic Jumping Complex in Lake Placid. At the time of his injury, St. Louis was assisting a work crew that was constructing a drainage pipeline by welding together and laying 20-foot sections of snow-making pipe. The crew utilized a hydraulic-operated clamshell bucket attached to the bucket arm of a front-end loader to lift sections of the pipe approximately four feet above the ground and then hold the pipe in place in the jaws of the clamshell. Suspending one end of the pipe section in the air during the welding enabled the crew to reach the underside of the jointed sections.

After a crew member finished welding two pipe sections, St. Louis began hitting the welded seam with a hammer to remove excess metal, when suddenly the jaws of the clamshell bucket opened and released the pipe. The pipe pinned St. Louis to the ground, causing serious injury to his legs and feet. Although the members of the work crew later testified that they ordinarily used chains to secure loads in the clamshell bucket, at the time of the injury, there was no chain, rope or any other safety device to prevent the pipe from falling in the event of machine malfunction.

St. Louis commenced this action for damages, alleging, among other things, that defendant Town of North Elba, the owner of the Olympic Complex, had violated Labor Law § 241 (6), which “requires owners and contractors to provide reasonable and adequate protection and safety for workers and to comply with the specific safety rules and regulations promulgated by the Commissioner of the Department of Labor” (*Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494, 501-502 [1993] [internal quotation marks omitted]). Since section 241 (6) imposes a nondelegable duty on property owners, plaintiff need not show that defendants exercised supervision or control over the work site in order to establish a right of recovery under section 241 (6) (*see*

Allen v Cloutier Constr. Corp., 44 NY2d 290, 300 [1978]). Nonetheless, comparative negligence remains a cognizable affirmative defense to a section 241 (6) cause of action (see *Long v Forest-Fehlhaber*, 55 NY2d 154, 160-161 [1982]).

In order to state a claim under section 241 (6), a plaintiff must allege that the property owners violated a regulation that sets forth a specific standard of conduct and not simply a recitation of common-law safety principles (see e.g. *Ross*, 81 NY2d at 501-502). Here, plaintiff rests his section 241 (6) claim on a violation of 12 NYCRR 23-9.4 (e).

Section 23-9.4 falls within subpart 23-9 of the Industrial Code, which is entitled “Power-Operated Equipment.” Section 23-9.1 (“Application of this Subpart”) specifies that “[t]he provisions of [subpart 23-9] shall apply to power-operated heavy equipment or machinery used in construction, demolition and excavation operations.” Following this statement of applicability are nine sections covering specific kinds of power-operated heavy equipment or machinery, which do not mention “loaders” or “front-end loaders.” Section 23-9.4 itself provides:

“Where power shovels and backhoes are used for material handling, such equipment and the use thereof shall be in accordance with the following provisions: . . .

“(e) Attachment of load.

“(1) Any load handled by such equipment shall be suspended from the bucket or bucket arm by means of wire rope having a safety factor of four.

“(2) Such wire rope shall be connected by means of either a closed shackle or a safety hook capable of holding at least four times the intended load.”

In its motion papers, defendants challenged the use of section 23-9.4 as a predicate for a section 241 (6) claim, arguing, among other things, that section 23-9.4 only mentions “power shovels and backhoes” and therefore cannot be extended to include “front-end loaders.”

Supreme Court denied defendants’ motion for summary judgment, concluding that the provisions of section 23-9.4 (e) cover front-end loaders when used in the manner and circumstances presented. The court relied on *Copp v City of Elmira* (31 AD3d 899 [3d Dept 2006]), which held that section 23-9.4 applies to a “payloader” used to elevate construction material:

“The regulation clearly addresses situations in which construction equipment is used to lift materials and sets forth pertinent safety standards. The term power shovel is not separately defined and *where, as here, construction equipment is used to attempt to accomplish the same task as a power shovel, it would be inconsistent with the purpose of the regulation and cause an objectionable result to find the safety precautions regarding lifting materials inapplicable* (see *Matter of ATM One v Landaverde*, 2 NY3d 472, 476-477 [2004])” (31 AD3d at 900 [emphasis added]).

The Appellate Division affirmed, rejecting defendants’ argument that section 23-9.4 cannot apply to a front-end loader. The court found “the manner in which the equipment is used rather than its name or label” to be the touchstone in assessing the applicability of a particular Code section (see 70 AD3d 1250, 1251 [2010], citing *Copp*, 31 AD3d at 900, *Borowicz v International Paper Co.*, 245 AD2d 682, 684 [3d Dept 1997], and *Smith v Hovnanian Co.*, 218 AD2d 68, 71 [3d Dept 1995]).

The Appellate Division subsequently granted permission to appeal to the Court of Appeals upon the certified question of whether the court had erred in affirming the motion court.

We now answer the certified question in the negative and affirm the Appellate Division order upholding the denial of summary judgment.

As an initial matter, we agree that subpart 23-9 of the Code, which applies to “power-operated heavy equipment or machinery used in construction,” extends to a front-end loader being used to construct a drainage pipeline. A front-end loader is undeniably “power-operated heavy equipment.” Moreover, the Code’s definition of “construction work” expressly includes “pipe and conduit laying” (12 NYCRR 23-1.4 [b] [13]).

Further, we agree that the safety requirements of this section appropriately extend to the case of a front-end loader that is enlisted to do the material handling that is otherwise performed by power shovels and backhoes. Although the Code does not enumerate each piece of heavy equipment that can be operated to suspend materials from its bucket or bucket arm, section 23-9.4 (e) was clearly drafted to reduce the threat posed by heavy materials falling from buckets by requiring loads to be fastened with sturdy wire, proportionate to the weight of the load. The same danger that exists for a worker using a power shovel or

backhoe with an unsecured load exists for a worker using a front-end loader with an unsecured load. We furthermore note the record indicates testimony that the workers normally secured materials in the bucket by use of metal chain, and the accident report stated that the injury could have been prevented by “us[ing] chain on pipe.” Thus, it is apparent that material hoisting with a front-end loader is associated in the trade with the same known risks as other power-operated machinery used in this manner.

The Industrial Code should be sensibly interpreted and applied to effectuate its purpose of protecting construction laborers against hazards in the workplace (*see e.g. Allen v Cloutier Constr. Corp.*, 44 NY2d at 300 [“Doubtless this duty (imposed by Labor Law § 241) is onerous; yet, it is one the Legislature quite reasonably deemed necessary by reason of the exceptional dangers inherent in connection with ‘constructing or demolishing buildings or doing any excavating in connection therewith’ ”]). Accordingly, the preferred rule both as a matter of statutory interpretation and as a reinforcement of the objectives of the Industrial Code is to take into consideration the function of a piece of equipment, and not merely the name, when determining the applicability of a regulation. This approach accounts for those circumstances where a slightly different machine is utilized for the same risky objective that is perhaps more frequently or more efficiently achieved by the machine designated by name in the Code.

We therefore hold that the Appellate Division did not err in its conclusion that a front-end loader used to suspend dangerous construction materials from its bucket arm should demand the same safety precautions as required for other power-operated heavy equipment performing the same function. It now remains for a jury to determine the remaining factual issues, including proximate cause and comparative negligence.

Accordingly, the order should be affirmed, with costs, and the certified question answered in the negative.

SMITH, J. (dissenting). The majority’s decision can only confuse what until now has been our consistent, if rather complicated, approach to actions brought under Labor Law § 241 (6). That statute says:

“All areas in which construction, excavation or demolition work is being performed shall be so

constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate protection and safety to the persons employed therein or lawfully frequenting such places. The commissioner [of the Department of Labor] may make rules to carry into effect the provisions of this subdivision, and the owners and contractors and their agents for such work, except owners of one and two-family dwellings who contract for but do not direct or control the work, shall comply therewith.”

I call our approach to interpreting the statute complicated because, as we explained in *Ross v Curtis-Palmer Hydro-Elec. Co.* (81 NY2d 494, 501-505 [1993]), we have in essence subdivided section 241 (6). *Ross* says: “Labor Law § 241 (6) is, in a sense, a hybrid, since it reiterates the general common-law standard of care and then contemplates the establishment of specific detailed rules through the Labor Commissioner’s rule-making authority” (*id.* at 503).

Responding to the dual nature of the statute, we have separated the first sentence from the second, holding that the second sentence, but not the first, may “create duties that are nondelegable” in the sense that liability for breach of those duties may be imposed even on owners and contractors who exercise no supervision or control over the activity in question (*id.*). In other words, a worker injured through a breach of the generalized standard of care stated in the first sentence does not have a cause of action against entities that do not supervise or control the work, but if the injury results from a violation of the “specific detailed rules” contemplated by the second sentence, no barrier to such a suit exists.

To complicate matters further, a cause of action will exist only where the Commissioner has indeed promulgated “specific detailed rules”—not where she has merely broadly restated a duty of care, using such words as “reasonable and adequate protection and safety” (*id.* [internal quotation marks and citation omitted]). The bottom line is that a plaintiff may sue a nonsupervising owner or contractor under Labor Law § 241 (6) only where the Commissioner’s regulation “sets forth a specific requirement or standard of conduct” (*id.*) or mandates “compliance with concrete specifications” (*id.* at 505).

Of course, deciding whether the requirements of a particular regulation are “specific” or “concrete” enough can be tricky (see e.g. *Misicki v Caradonna*, 12 NY3d 511 [2009]). But until

today, we at least knew the starting point for the inquiry: the words of the regulation. Now the majority holds that we may disregard the words if doing so will effectuate the regulation's "purpose of protecting construction laborers against hazards in the workplace" (majority op at 416). It is therefore unimportant that the regulation in issue here is, by its plain language, applicable only to "power shovels and backhoes"; it can also be applied to a different kind of equipment, a front-end loader, because the majority does not think the difference between the kinds of equipment justifies different treatment.

Whatever the merits of this kind of "purpose-based" interpretation generally, it makes no sense at all in the context of a statute whose whole point, as we have interpreted it, is to give a remedy only for violations of a regulation's specific commands. The virtue of this approach is that it assures that all have clear notice of what the law requires; but how could the defendants in this case possibly have known, from reading 12 NYCRR 23-9.4 (e), that its requirements applied to front-end loaders? If courts can freely rewrite the regulations to give whatever protection a court thinks should be given, why not forget about the general-specific distinction explained in *Ross* and allow plaintiffs to sue owners and contractors under Labor Law § 241 (6) for any violation of the common-law standard of care?

For these reasons, I would dissent from the majority's legal conclusion even if I agreed with its factual premise—that there is no difference between a power shovel or backhoe and a front-end loader that warrants different treatment. For me, it is enough that the regulation does treat them differently. But I am also skeptical of the majority's premise. The Commissioner may well have good reasons for believing that power shovels and backhoes—which have, at least sometimes, longer arms than front-end loaders, and thus may lift their loads to a greater height—present more danger and should be regulated more strictly. Neither the record in this case nor our expertise as judges equips us to decide that question, and we should not usurp the Commissioner's authority by doing so.

Judges CIPARICK, PIGOTT and JONES concur with Chief Judge LIPPMAN; Judge SMITH dissents and votes to reverse in a separate opinion in which Judges GRAFFEO and READ concur.

Order affirmed, etc.

[947 NE2d 111, 922 NYS2d 220]

UNION CARBIDE CORPORATION, Appellant, v AFFILIATED FM
INSURANCE COMPANY et al., Defendants, and CONTINENTAL
CASUALTY COMPANY et al., Respondents.

Argued January 11, 2011; decided February 22, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 15, 2009. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Charles E. Ramos, J.), which had denied defendant insurers' motions for partial summary judgment, granted plaintiff's motion for partial summary judgment, and adjudged that the aggregate limits of liability for the policies that defendants issued to plaintiff applied on an annual basis. The modification consisted of denying plaintiff's motion. The Appellate Division affirmed the order as modified. The Appellate Division also (1) reversed, on the law, an order of that Supreme Court which had granted plaintiff's motion for partial summary judgment and adjudged that a two-month extension of a policy issued by defendant Continental Casualty Company to plaintiff carried with it a full \$5 million aggregate limit, and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court entered on or about May 9, 2007 (Appeal No. 4461) and reversed the order of Supreme Court entered on or about November 8, 2007 (Appeal No. 4462), respectively, properly made?"

Union Carbide Corp. v Affiliated FM Ins. Co., 68 AD3d 534, modified.

HEADNOTES

Insurance — Excess Coverage — Construction of Policy — "Follow-the-Form" Clause

1. The aggregate limit of an excess liability insurance policy issued by defendant insurers was renewed annually during the three-year life of the policy where the policy incorporated by reference, through a "follow-the-form" clause, the terms and conditions of an underlying primary policy that provided an annualized aggregate limit. Although the follow-the-form clause was expressly made subject to declarations in the excess policy that established a limit of liability of "\$30,000,000. each occurrence and in the aggregate," the follow-the-form clause prevailed here. Follow-the-form clauses serve the important purpose of allowing an insured that deals with many insurers for

the same risk to obtain uniform coverage. It was implausible that an insured with as large and complicated an insurance program as plaintiff would have bargained for policies that differed, as between primary and excess layers, in the time over which policy limits were spread. Further, defendants were unable to answer why, if \$30 million was the most that could be paid on the entire policy, the parties specified a per occurrence limit in an equal amount. Even assuming that there was ambiguity in the text of the excess policy, necessitating consideration of extrinsic evidence, such evidence showed that annualization of limits was the universal custom of the industry and that at least some participants in the transactions at issue assumed that the limits under the excess policy would be annualized.

Judgments — Summary Judgment — Scope of Insurance Policy

2. In an insurance coverage dispute arising out of an excess liability insurance policy issued by defendant insurers to plaintiff which had an aggregate limit of liability that renewed annually over each year of the three-year life of the policy, plaintiff failed to meet its burden on summary judgment of establishing that a two-month extension of coverage provided by one of the insurers entitled it to an additional year's policy limits.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Insurance §§ 297, 302, 1755; AM JUR 2d, Summary Judgment §§ 37, 38, 45.

CARMODY-WAIT 2d, Summary Judgment § 39:130.

COUCH ON INSURANCE (3d ed) §§ 22:38, 172:3, 219:33.

NY JUR 2d, Insurance §§ 1626, 2335, 2337; NY JUR 2d, Summary Judgment and Pretrial Motions to Dismiss §§ 12, 16–18, 22.

SIEGEL, NY PRAC § 278.

ANNOTATION REFERENCE

See ALR Index under Excess Insurance; Insurance and Insurance Companies; Summary Judgment.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: excess /2 liability /2 insurance & aggregate /s limit!
/4 liability /p annul!

POINTS OF COUNSEL

Proskauer Rose LLP (Steven R. Gilford, of the Illinois bar, admitted pro hac vice, and John Sloat of counsel), *Proskauer Rose LLP*, New York City (Bruce E. Fader and Matthew J. Morris of counsel), and *Kirkland & Ellis LLP*, Chicago, Illinois (Michael P. Foradas of counsel), for appellant. I. The plain language of the excess policy provides for annual aggregate

products (and other) limits. (*A. Meyers & Sons Corp. v Zurich Am. Ins. Group*, 74 NY2d 298; *Travelers Cas. & Sur. Co. v Ace Am. Reins. Co.*, 392 F Supp 2d 659; *Jones v Cunard Steam Ship Co., Ltd.*, 238 App Div 172; *County of Columbia v Continental Ins. Co.*, 83 NY2d 618; *William Floyd School Dist. v Maxner*, 68 AD3d 982; *Vigilant Ins. Co. v Bear Stearns Cos., Inc.*, 10 NY3d 170; *Jefferson Ins. Co. of N.Y. v Travelers Indem. Co.*, 92 NY2d 363; *Metropolitan Transp. Auth. v Zurich Am. Ins. Co.*, 68 AD3d 610; *Juntunen v Sea-Con Servs., Inc.*, 879 F2d 154; *Ford Motor Co. v Northbrook Ins. Co.*, 838 F2d 829.) II. The undisputed contextual evidence further supports the plain reading of the excess policy as providing annual aggregate limits limited to specific types of claims. (*Welsbach Elec. Corp. v MasTec N. Am., Inc.*, 7 NY3d 624; *Jefferson Ins. Co. of N.Y. v Travelers Indem. Co.*, 92 NY2d 363; *Graphic Arts Mut. Ins. Co. v Bakers Mut. Ins. Co. of N.Y.*, 45 NY2d 551; *Rickerson v Hartford Fire Ins. Co.*, 149 NY 307; *Atwater & Co. v Panama R.R. Co.*, 246 NY 519; *Kass v Kass*, 91 NY2d 554; *Employers Commercial Union Ins. Co. of N.Y. v Firemen's Fund Ins. Co.*, 45 NY2d 608; 407 E. 61st Garage v Savoy Fifth Ave. Corp., 23 NY2d 275; *Eighth Ave. Coach Corp. v City of New York*, 286 NY 84; *Alvarez v Prospect Hosp.*, 68 NY2d 320.) III. The two-month extension of the excess policy did not change the definition of aggregate to apply to a 14-month period. (*County of Columbia v Continental Ins. Co.*, 83 NY2d 618; *William Floyd School Dist. v Maxner*, 68 AD3d 982; *Stonewall Ins. Co. v Asbestos Claims Mgt. Corp.*, 73 F3d 1178; *Cadet Mfg. Co. v American Ins. Co.*, 391 F Supp 2d 884; *Kleyshvav v GAN Ins. Co.*, 21 AD3d 999; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Alvarez v Prospect Hosp.*, 68 NY2d 320.)

Carroll, Burdick & McDonough LLP (G. David Godwin, of the California bar, admitted pro hac vice, and Laurie J. Hepler of counsel) and *Ford Marrin Esposito Witmeyer & Gleser, L.L.P.*, New York City (Charles A. Booth and Patrick J. Bernal of counsel), for Continental Casualty Company and *Litchfield Cavo LLP* (Edward Fogarty, Jr., of counsel) for Argonaut Insurance Company, respondents. I. This excess policy established its own single limit of liability “in the aggregate” and did not follow form to the underlying insurer’s annualized limit. (*Teichman v Community Hosp. of W. Suffolk*, 87 NY2d 514; *Hirald v Allstate Ins. Co.*, 8 AD3d 230, 5 NY3d 508; *Alharb v Liberty Mut. Ins. Co.*, 199 AD2d 227; *Matter of Encompass Indem. Co. v USAA Cas. Ins. Co.*, 61 AD3d 974; *Suffolk County Water Auth. v Village of Greenport*, 21 AD3d 947; *Vigilant Ins. Co. v Bear*

Stearns Cos., Inc., 10 NY3d 170; *Jefferson Ins. Co. of N.Y. v Travelers Indem. Co.*, 92 NY2d 363; *Metropolitan Transp. Auth. v Zurich Am. Ins. Co.*, 68 AD3d 610; *Springer v Allstate Life Ins. Co. of N.Y.*, 94 NY2d 645; *National State Bank v American Home Assur. Co.*, 492 F Supp 393.) II. There is no extra aggregate limit for the two-month extension period. (*Stonewall Ins. Co. v Asbestos Claims Mgt. Corp.*, 73 F3d 1178; *OneBeacon Ins. Co. v Georgia-Pacific Corp.*, 474 F3d 6; *UNR Indus., Inc. v Continental Ins. Co.*, 682 F Supp 1434; *Cadet Mfg. Co. v American Ins. Co.*, 391 F Supp 2d 884; *Board of Trustees of Univ. of Ill. v Insurance Corp. of Ireland, Ltd.*, 969 F2d 329; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851.)

OPINION OF THE COURT

SMITH, J.

This appeal calls on us to interpret an excess liability insurance policy covering asbestos claims made against Union Carbide Corporation (UCC). UCC and its insurers dispute: (1) whether the policy's aggregate limit was renewed annually or continued over the three-year life of the policy; and (2) whether a two-month extension of coverage by one of the insurers triggered a new limit. We decide the first issue in UCC's favor: The limit was renewed each year. On the second issue, however, we agree with the Appellate Division that UCC's motion for summary judgment should be denied.

I

In the mid 1970s, UCC sought—wisely, as it turned out—to obtain as much liability insurance coverage as it reasonably could. To accomplish this, it acquired coverage in layers.

In the bottom layer, a policy issued by Appalachian Insurance Company covered UCC for the first \$5 million of loss, except for a “retained” amount for which UCC was self-insured. The Appalachian policy had a three-year duration, but it is clear, and not disputed, that the limit of that policy, as it applied to the claims in issue here, was renewed annually, or “annualized.” The limit is identified in the policy declarations as an “annual aggregate,” and one of the conditions of the policy provides: “[T]he limit of liability . . . set forth as ‘aggregate’ shall be the total limit of the company’s liability under this policy for ultimate net loss . . . during each consecutive twelve months of the policy period.”

Losses above the \$5 million were covered by successive layers of excess insurance. Our concern here is with the so-called fifth excess layer, which covered losses exceeding \$70 million, up to \$100 million. This \$30 million of coverage was divided equally—\$5 million each—among six insurers, two of which, Continental Casualty Company and Argonaut Insurance Company, are involved in this appeal.

The policy issued by the fifth-layer excess insurers was a brief “subscription form policy” prepared by UCC’s insurance broker. It incorporated by reference the terms of the Appalachian policy, in what is known as a “follow-the-form” clause:

“subject to the declarations set forth below, the Companies signatory hereon agree with the Insured named below that the Insurance afforded by this agreement shall follow all the terms, insuring agreements, definitions, conditions and exclusions of [the] underlying . . . Policy . . . issued by Appalachian Insurance Company.”

The “declarations set forth below” included the following: “LIMIT OF LIABILITY: \$30,000,000. each occurrence and in the aggregate excess of \$70,000,000. Umbrella Liability.” The fifth-layer excess policy had a policy period beginning December 1, 1973 and ending December 1, 1976.

UCC was a seller of asbestos, with the result that enormous claims were made against it for the years in question. It says that it has paid over \$1.5 billion in defense costs, settlements and judgments. It asserts that Continental and Argonaut are each liable under the subscription form policy for \$5 million for each year in which they provided coverage. Continental and Argonaut say that their liability for the entire period is capped at \$5 million per company.

As to Continental, UCC claims an additional \$5 million because the policy was extended beyond the three years. A supplement to the subscription form policy issued by Continental in December 1976 says: “In consideration of an additional premium of \$1,530, it is agreed that the policy is hereby extended to read: 2/1/77 Exp. Date.” According to UCC, a new \$5 million policy limit became available to it by virtue of this two-month extension.

On UCC’s motions for partial summary judgment, Supreme Court ruled in its favor on both issues. The Appellate Division, with one Justice dissenting, disagreed and denied UCC’s

motions as to both issues (*Union Carbide Corp. v Affiliated FM Ins. Co.*, 68 AD3d 534 [2009]). The Appellate Division granted leave to appeal to us on a certified question. We now modify its order, and hold that UCC should be granted summary judgment on the annualization issue, but not on the extension issue.

II

[1] On the annualization issue, Continental and Argonaut argue in substance that the words of the declarations in the subscription form policy, “\$30,000,000 . . . in the aggregate,” can mean only that \$30 million is the maximum that may be paid under the policy, and thus that the maximum share for each of the six signatories, including Continental and Argonaut, is \$5 million. They stress that the follow-the-form clause, which incorporates the Appalachian policy by reference, is expressly made “subject to the declarations set forth below” and that those declarations, unlike the Appalachian policy, speak of an “aggregate,” not an “annual aggregate,” limit of liability. UCC argues that, under the follow-the-form clause, the conditions in the Appalachian policy are part of the subscription form policy, and that one of those conditions is that the “aggregate” limit shall be annualized. Each side cites precedent interpreting arguably similar, though not identical, language in other policies (*compare Maryland Cas. Co. v W. R. Grace & Co.*, 1996 WL 169326, 1996 US Dist LEXIS 4500 [SD NY 1996] [annualization rejected], *with Travelers Cas. & Sur. Co. v ACE Am. Reins. Co.*, 392 F Supp 2d 659 [SD NY 2005], *affd* 201 Fed Appx 40 [2d Cir 2006] [annualization accepted] and *Commercial Union Ins. Co. v Swiss Reins. Am. Corp.*, 413 F3d 121 [1st Cir 2005] [same]).

UCC has the better of the argument. While the reading Continental and Argonaut give to the word “aggregate” might be plausible in many contexts, here the follow-the-form clause should prevail. Such clauses serve the important purpose of allowing an insured, like UCC, that deals with many insurers for the same risk to obtain uniform coverage, and to know, without a minute policy-by-policy analysis, the nature and extent of that coverage. It is implausible that an insured with as large and complicated an insurance program as UCC would have bargained for policies that differed, as between primary and excess layers, in the time over which policy limits were spread. Under Continental’s and Argonaut’s reading, UCC could (and in fact did) reach the second and third years of its excess policies with the full limit of its primary coverage in place, but with its fifth-

layer excess coverage exhausted. It is unlikely that the parties intended this result.

This conclusion is reinforced by the part of the declarations in the subscription form policy that Continental and Argonaut rely on. The fifth-layer subscription form policy says that the limit of liability shall be “\$30,000,000. *each occurrence* and in the aggregate” (emphasis added). If \$30 million was the most that could be paid on the entire policy why, UCC asks, did the parties bother to specify a per occurrence limit in an equal amount? Continental and Argonaut offer no answer.

Though extrinsic evidence of the policy’s meaning has been proffered, our analysis thus far has considered only the text of the subscription form policy, and the underlying policy that it incorporates by reference. Both sides here endorse this approach, and all of the judges who considered the case below adopted it also. This is an approach strongly favored in our precedents, which hold that, where the meaning of a writing is clear from its text, extrinsic evidence will not be considered (*e.g. Vintage, LLC v Laws Constr. Corp.*, 13 NY3d 847, 849 [2009]; *Innophos, Inc. v Rhodia, S.A.*, 10 NY3d 25, 29 [2008]; *Greenfield v Philles Records*, 98 NY2d 562, 569 [2002]). Nevertheless, there inevitably will be cases in which the parties have not expressed themselves clearly in writing, and in which resort to extrinsic evidence will be necessary.

We need not decide whether this is such a case, because, even assuming that there is an ambiguity, the extrinsic evidence—all of it submitted by UCC—overwhelmingly supports UCC’s position. UCC has submitted expert testimony that annualization of limits was the universal custom of the industry. It has also submitted contemporaneous evidence showing the existence of that custom, and other evidence showing that at least some participants in the transactions at issue assumed that the limits under the fifth-layer excess policy would be annualized. Continental’s and Argonaut’s only response is to insist that the language of the policy unambiguously forbids annualization, an assertion with which we do not agree.

III

[2] The question of whether the two-month extension of the Continental policy created a new “year” for policy limit purposes is a vexing one. Under Continental’s view (assuming that the annualization issue is resolved as we have resolved it), UCC had a \$5 million policy limit—the limit normally

applicable to a year—for the period December 1, 1975 to February 1, 1977; in other words, UCC essentially had to squeeze 14 months of losses into a 12-month limit. On UCC's view, it had the luxury of \$10 million of coverage—24 months of limits—to cover 14 months of losses. Neither result seems wholly fair, but it is not clear that there is a wholly fair result that is possible under the policy's language.

A number of courts have considered similar questions and, perhaps unsurprisingly, reached divergent results (*compare Stonewall Ins. Co. v Asbestos Claims Mgt. Corp.*, 73 F3d 1178, 1216-1217 [2d Cir 1995], *United States Min. Prods. Co. v American Ins. Co.*, 348 NJ Super 526, 792 A2d 500 [App Div 2002], *Cadet Mfg. Co. v American Ins. Co.*, 391 F Supp 2d 884, 890 [WD Wash 2005], and *Independent Petrochemical Corp. v Aetna Cas. & Sur. Co.*, 1988 WL 877629, *52-54, 1988 US Dist LEXIS 15839, *155-159 [D DC 1988] [all ruling in favor of the insured], *with UNR Indus., Inc. v Continental Ins. Co.*, 1988 WL 121574, *2-3, 1988 US Dist LEXIS 12561, *4-9 [ND Ill 1988], *General Refractories Co. v Insurance Co. of N. Am.*, 906 A2d 610, 2006 PA Super 224 [2006], and *Uniroyal Inc. v American Re-Ins. Co.*, 2005 WL 4934215, *19-22, 2005 NJ Super Unpub LEXIS 794, *52-61 [App Div 2005] [all ruling in favor of the insurer]). The parties discuss at some length which of these cases are and are not distinguishable. Since none of them is binding on us, we do not pursue the question.

Facts peculiar to this case may shed light on the problem, but do not solve it. The record suggests that, in late 1976, Continental wanted to withdraw entirely from insuring UCC's liabilities, and was persuaded to remain on the risk for two more months as an accommodation. It may be argued that the parties would not reasonably have expected that accommodation to give UCC a fresh set of policy limits. On the other hand, extrinsic evidence submitted by UCC shows that a representative of UCC's insurance broker tried to negotiate an "extension period to be treated as a separate annual period for aggregate reckoning purposes," and that he was optimistic about succeeding. But the record does not clearly show whether he did succeed; the document that Continental actually issued says only "that the policy period is hereby extended"—it does not mention policy limits.

We conclude, as the Appellate Division majority did, that UCC has not met its burden on summary judgment of establishing coverage for an additional year's policy limits (*see Consolidated*

Edison Co. of N.Y. v Allstate Ins. Co., 98 NY2d 208, 218 [2002]). We cannot say, based on what is before us, that UCC's proposed resolution of the extension issue is the only possible one. The issue thus remains open to be determined on another motion, or at trial.

Accordingly, the order of the Appellate Division should be modified to grant UCC's motion for summary judgment on the annualization issue, and otherwise affirmed, without costs, and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, FIGOTT and JONES concur.

Order modified, etc.

[947 NE2d 639, 922 NYS2d 865]

DOUGLAS WARNEY, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 114826.)

Argued February 8, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 11, 2010. The Appellate Division affirmed an order of the Court of Claims (Renée Forgens Minarik, J.), which had granted defendant's motion to dismiss the claim and dismissed the claim.

Warney v State of New York, 70 AD3d 1475, reversed.

HEADNOTES

State — Unjust Conviction and Imprisonment Act — Motion to Dismiss — Evidentiary Support

1. On a motion to dismiss a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b), which provides a mechanism for innocent persons who were unjustly convicted and imprisoned to recover damages, no evidentiary support is necessary to support the allegations of claimant's pleading, except where expressly indicated by the statute. Although a claimant must submit documentary evidence supporting certain facts pursuant to subdivision (3) of section 8-b, the pleading standard articulated in subdivision (4) thereof, requiring that facts be stated in sufficient detail to permit the court to find that claimant is likely to succeed at trial, lacks any analogous requirement. Because the State, in waiving its sovereign immunity from suit, has consented to have its liability determined in accordance with the same rules of law as applied to actions in the Supreme Court, except where superseded by the Court of Claims Act or Uniform Rules of the Court of Claims, the familiar standard governing motions to dismiss in Supreme Court is presumed appropriate. Therefore, the Court of Claims, like other trial courts, should accept the facts as alleged in the claim as true and in evaluating the likelihood of success at trial it should avoid making credibility and factual determinations. Accordingly, a claimant who meets the evidentiary burdens described in subdivision (3) and makes detailed allegations with respect to the elements described in subdivision (4) is entitled to an opportunity to prove the allegations at trial (Court of Claims Act § 8-b [5]).

State — Unjust Conviction and Imprisonment Act — Motion to Dismiss — Factual and Credibility Determinations

2. The Court of Claims prematurely dismissed a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b) at the pleading stage based in large part on factual and credibility determinations that were inappropriate at that stage of the litigation. Although the claimant alleged that his confession was coerced, the court concluded that the evidence did not "indicate" that it was, even though the proper inquiry was whether claimant's allegations, if true, demonstrated a likelihood of success at trial,

and not whether they were supported by convincing evidence. Assuming the truth of claimant's allegations, as must be done, the police used "coercive tactics" and threats to induce his confession and claimant thus adequately pleaded that he was coerced into adopting the false confession. The Court of Claims also found that claimant made an incriminating statement that constituted conduct contributing to his conviction under the act although he never admitted to making that statement. Accepting claimant's allegations as true, it is presumed that he never made the statement in question.

State — Unjust Conviction and Imprisonment Act — Conduct Contributing to Conviction

3. In a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b), claimant's early conversations with the police did not "cause or bring about his own conviction" (Court of Claims Act § 8-b [4] [b]) and thereby bar recovery under the act. A claimant's conduct bars recovery under the statute only if it was the proximate cause of conviction. Here, while claimant acknowledged that he initiated contact with the police, triggering the questioning that ultimately led to his false confession and conviction, he also alleged that he was "severely mentally impaired," and that the police knew of his mental illness. Moreover, it was the police department's alleged mishandling of the ensuing investigation that ultimately resulted in claimant's conviction.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 6, 428; AM JUR 2d, Penal and Correctional Institutions §§ 208, 209.

CARMODY-WAIT 2d, Actions in the Court of Claims §§ 120:22, 120:24, 120:44, 120:45.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 6.2.

McKINNEY's, Court of Claims Act § 8-b.

NY JUR 2d, Criminal Law: Procedure §§ 610-612, 616; NY JUR 2d, Government Tort Liability §§ 7, 156, 157, 335, 341.

PROSSER AND KEETON, TORTS (5th ed) § 131.

ANNOTATION REFERENCE

Construction and application of state statutes providing compensation for wrongful conviction and incarceration. 53 ALR6th 305.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: unjust /2 conviction & detailed /s allegation & motion /3 dismiss

POINTS OF COUNSEL

Neufeld Scheck & Brustin, LLP, New York City (*Peter J. Neufeld, Deborah L. Cornwall, Anna Benvenuto Hoffmann* and

Sarah A. Crowley of counsel), and *Easton Thompson Kasperek, LLP*, Rochester (*Donald Thompson* of counsel), for appellant. I. Nothing Mr. Warney did bars him from compensation under Court of Claims Act § 8-b. (*Ivey v State of New York*, 80 NY2d 474; *Rivers v State of New York*, 152 Misc 2d 332; *Williams v State of New York*, 87 NY2d 857; *Stevenson v State of New York*, 137 Misc 2d 313; *Mike v State of New York*, 11 Misc 3d 384; *Britt v State of New York*, 260 AD2d 6; *Smith v State of New York*, 24 Misc 3d 1234[A], 2009 NY Slip Op 51744[U]; *Dillon v Dean*, 158 AD2d 579; *Benaquista v Municipal Hous. Auth. of City of Schenectady*, 212 AD2d 860; *Bisceglia v International Bus. Machs.*, 287 AD2d 674.) II. The claims court may not consider evidence outside a Court of Claims Act § 8-b claim or make credibility findings on a motion to dismiss pursuant to CPLR 3211. (*Vigliotti v State of New York*, 24 AD3d 1217; *Webb v State of New York*, 18 AD3d 648; *Barnes v State of New York*, 153 AD2d 968; *Leon v Martinez*, 84 NY2d 83; *Solomon v State of New York*, 146 AD2d 439; *Dozier v State of New York*, 134 AD2d 759; *Klemm v State of New York*, 170 AD2d 438; *Grimaldi v State of New York*, 133 AD2d 97; *Fudger v State of New York*, 131 AD2d 136; *Moses v State of New York*, 137 Misc 2d 1081.)

Eric T. Schneiderman, Attorney General, New York City (*Alison J. Nathan*, *Frank K. Walsh*, *Barbara D. Underwood*, *Andrew D. Bing* and *Andrea Oser* of counsel), for respondent. The claim was properly dismissed because claimant's own conduct caused or brought about his conviction. (*People v Wiggins*, 16 Misc 3d 1136[A], 2007 NY Slip Op 51715[U]; *People v Crews*, 74 AD3d 983; *People v Green*, 250 AD2d 143; *People v Lea*, 144 AD2d 863; *Lepkowski v State of New York*, 1 NY3d 201; *Long v State of New York*, 7 NY3d 269; *Fudger v State of New York*, 131 AD2d 136, 70 NY2d 616; *Berger v City of New York*, 260 App Div 402, 285 NY 723; *Reed v State of New York*, 78 NY2d 1; *David W. v State of New York*, 27 AD3d 111, 7 NY3d 709.)

Emery Celli Brinckerhoff & Abady LLP, New York City (*Andrew G. Celli, Jr.*, and *Debra Greenberger* of counsel), and *Nathalie Gilfoyle* for American Psychological Association, amicus curiae. I. Confessions that are voluntary as a matter of law can be unreliable in fact. II. Certain factors predictably increase the risk of false confessions. (*Atkins v Virginia*, 536 US 304.)

Patterson Belknap Webb & Tyler LLP, New York City (*Joshua A. Goldberg*, *Elizabeth H. Shofner* and *Anna Skiba-Crafts* of counsel), *Keith A. Findley*, *University of Wisconsin Law School*,

Madison, Wisconsin, *Steven A. Drizin*, *Northwestern University School of Law*, Chicago, Illinois, and *Daniel S. Medwed*, *S.J. Quinney College of Law at the University of Utah*, Salt Lake City, Utah, for The Innocence Network, amicus curiae. The mere fact that a confession was deemed “voluntary” for purposes of admitting it at a criminal trial does not mean that it was “uncoerced” so as to bar Court of Claims Act § 8-b relief. (*People v Green*, 73 AD3d 805; *People v Camacho*, 70 AD3d 1393; *Dickerson v United States*, 530 US 428.)

OPINION OF THE COURT

CIPARICK, J.

Claimant Douglas Warney spent over nine years incarcerated for a murder he did not commit. The primary evidence against him was a confession that contained non-public details about the crime. Warney now seeks damages under Court of Claims Act § 8-b, the Unjust Conviction and Imprisonment Act. We conclude that Warney’s confession and other statements and actions the State attributes to him do not, on the facts as alleged here, warrant dismissal of his claim on the ground that he caused or brought about his conviction.

The facts as stated in the claim and record below are as follows. On January 3, 1996, Rochester Police Department (RPD) officers found William Beason dead in his home, stabbed 19 times in the neck and chest. The following day, Warney called the RPD to provide information about the murder, and was interviewed in his home by an officer. According to the officer’s trial testimony, Warney told her that he had been shoveling snow outside “William’s” house when he saw his cousin go inside, and that the cousin later admitted to Warney that he had killed Beason.

Warney alleges that he has an IQ of 68, was in special education until he dropped out of school in eighth grade, and was suffering at the time of the Beason investigation from AIDS-related dementia. Additionally, the RPD was aware of his mental condition when it began questioning him about the Beason murder, as officers had transported Warney to a psychiatric facility two weeks earlier for pulling fire alarms and reporting false incidents to the police.

On January 6, 1996, two RPD officers brought Warney to the police station for questioning. The claim alleges that they used “escalating coercive tactics to force . . . Warney to make statements or admissions concerning the murder,” and one of them

verbally abused and threatened him. It further alleges that the officers denied Warney's request for an attorney.

Warney gave a series of increasingly inculpatory statements, initially blaming his cousin, but eventually confessing to murdering Beason on his own. He signed a detailed written confession stating that, acting alone, he had stabbed Beason repeatedly. The confession contained numerous details that allegedly corroborate crime scene evidence that the RPD had intentionally held back from the public.¹ The claim alleges that the officers fed these details to Warney, creating "a false sense of the confession's reliability," and coerced him into adopting the detailed confession as his own.

At central booking, an officer not involved in the investigation asked Warney how he was doing. According to the officer's testimony, he responded, "[n]ot good. I've got a body," slang for having killed someone. In contrast, Warney testified that he said, "I'm being charged with a body."

On February 13, 1996, a grand jury indicted Warney on two counts of second degree murder. Before trial, Supreme Court denied Warney's motion to suppress his statements to police, finding that he "initiated most contacts with the police and then freely volunteered information to them," that he never requested an attorney, and that "no threats or promises were ever made to [him] and no fraud or tricks were used to solicit statements." At trial, Warney's signed confession was the primary evidence against him, although he testified that it was coerced and manufactured by the police. The prosecutor emphasized that the confession contained details that, in his words during closing, "only the killer would have known about."

Warney was convicted of both second degree murder counts on February 12, 1997. Supreme Court sentenced him on February 27, 1997 to imprisonment for 25 years to life on each count, to run concurrently. The Appellate Division affirmed (*People v*

1. These corroborating details include: (1) that Beason was cooking chicken and mashed potatoes at the time of his murder; (2) that Beason was wearing a red-striped nightshirt; (3) that Beason was stabbed "about 15 or more" times with a 12-inch serrated knife; (4) that Beason's throat was slit; (5) that Beason's body was left on his bed, face up and eyes open; (6) that the perpetrator was wounded; (7) that the perpetrator cleaned his wound with "a paper towel," which he discarded in the toilet; (8) that the perpetrator put intensive care lotion on his wound; and (9) that the back door and basement door were locked. Additionally, evidence was introduced at trial that Warney orally "confessed" that, prior to the murder, he and Beason had been watching a pornographic tape featuring two men.

Warney, 299 AD2d 956 [4th Dept 2002]) and leave to this Court was denied (99 NY2d 633 [2003]).

Warney consistently maintained his innocence and sought to conduct DNA testing on biological crime scene evidence. Although his application to access this evidence was denied, the People submitted the material for testing, which resulted in a DNA profile that did not match Warney. In March 2006, nine years after Warney's conviction, the Combined DNA Index System (CODIS) database yielded a match, a man named Eldred Johnson. The RPD discovered that fingerprints from the crime scene matched Johnson's and, on May 11, 2006, Johnson confessed that, acting alone, he had murdered Beason.² As a result, on May 16, 2006, Supreme Court vacated Warney's conviction and set aside his sentence pursuant to CPL 440.10 (1) (g) on the grounds of newly discovered evidence.

Warney now seeks damages under Court of Claims Act § 8-b for the years he spent wrongly incarcerated. His claim alleges that he "did not cause or contribute to his own wrongful arrest, conviction, or incarceration," but rather his conviction "was the direct result of the intentional and malicious actions of members of the [RPD] who fabricated and coerced a false confession from . . . a man whom they knew had a history of serious mental health problems." The State moved to dismiss the claim for failing to state facts in sufficient detail to demonstrate that Warney is likely to succeed at trial in proving that he did not bring about his own conviction.

Court of Claims granted the State's motion and dismissed the claim. It was "not convinced" that only the perpetrator and police could have known many of the details contained in the confession, and noted that Warney "does not indicate how he was coerced by police to give a false confession." Moreover, the court held that Warney, "by his own actions, which included calling the police to tell them he had information about the murder, trying to frame an innocent man for the crime, and . . . volunteering that he had 'a body' . . . did cause or bring about his own conviction." Warney appealed.

The Appellate Division affirmed, reasoning that a criminal defendant who gave an uncoerced false confession that was presented to the jury at trial could not subsequently bring an action under section 8-b, and that Warney failed to adequately allege that his confession was coerced (*see Warney v State of New*

2. Johnson pleaded guilty to second degree murder in March 2007.

York, 70 AD3d 1475, 1476 [4th Dept 2010]). The Appellate Division also found that Warney brought about his own conviction by making other incriminating statements, and by approaching the police falsely claiming to have information about the murder (*see id.*). We granted Warney leave to appeal (14 NY3d 883 [2010]) and now reverse.

Court of Claims Act § 8-b, the Unjust Conviction and Imprisonment Act, provides a mechanism for “innocent persons who can demonstrate by clear and convincing evidence that they were unjustly convicted and imprisoned . . . to recover damages against the state” (Court of Claims Act § 8-b [1]; *see also Ivey v State of New York*, 80 NY2d 474, 479 [1992]). It offers claimants who meet its strict pleading and evidentiary burdens “an available avenue of redress over and above the existing tort remedies” (Court of Claims Act § 8-b [1]).

To present a claim under the statute, a claimant must “establish by documentary evidence” that (a) the claimant was convicted of a crime, sentenced to a term of imprisonment, and served at least part of the sentence; (b) the claimant was pardoned on the ground of innocence or, alternatively, the conviction was reversed or vacated and the accusatory instrument was dismissed; and (c) the claim is not time-barred (Court of Claims Act § 8-b [3]). Here, the State does not dispute that Warney met this initial burden.

The statute further requires that the claim “state facts in sufficient detail to permit the court to find that claimant is likely to succeed” in meeting his or her burden at trial of proving by clear and convincing evidence that, as relevant here, (a) “he did not commit any of the acts charged in the accusatory instrument” and (b) “he did not by his own conduct cause or bring about his conviction” (Court of Claims Act § 8-b [4]). “If the court finds after reading the claim that claimant is not likely to succeed at trial, it shall dismiss the claim” (Court of Claims Act § 8-b [4]).

[1] The parties here debate whether, in addition to being sufficiently detailed, the allegations in the pleading must have evidentiary support. We now clarify that no such support is necessary, except where expressly indicated by the statute. Although a claimant must submit documentary evidence supporting certain facts pursuant to Court of Claims Act § 8-b (3), the pleading standard articulated in Court of Claims Act § 8-b (4) lacks any analogous requirement. Because the State, in waiving

its sovereign immunity from suit, has consented to have its liability “determined in accordance with the same rules of law as applied to actions in the supreme court,” except where superseded by the Court of Claims Act or Uniform Rules for the Court of Claims (Court of Claims Act § 8; *see also* 22 NYCRR 206.1 [c] [matters not covered by the Court of Claims Act or Uniform Rules for the Court of Claims are governed by the CPLR]), we presume that the familiar standard governing motions to dismiss in Supreme Court is appropriate here (*see* CPLR 3211). Therefore, Court of Claims, like other trial courts, should “accept the facts as alleged in the [claim] as true” (*Leon v Martinez*, 84 NY2d 83, 87 [1994]).

Of course, section 8-b still imposes a higher pleading standard than the CPLR. Court of Claims must consider whether the allegations are sufficiently detailed to demonstrate a likelihood of success at trial (*see* Court of Claims Act § 8-b [4]). “[T]he allegations in the claim must be of such character that, if believed, they would clearly and convincingly establish the elements of the claim, so as to set forth a cause of action” (*Solomon v State of New York*, 146 AD2d 439, 442 [1st Dept 1989]). In evaluating the likelihood of success at trial, Court of Claims should avoid making credibility and factual determinations (*see Klemm v State of New York*, 170 AD2d 438, 439 [2d Dept 1991] [“In the absence of serious flaws in a . . . statement of facts, the weighing of the evidence is more appropriately a function to be exercised at the actual trial” (quoting *Dozier v State of New York*, 134 AD2d 759, 761 [3d Dept 1987])]; *Solomon*, 146 AD2d at 445 [Court of Claims erred in “assess(ing) . . . the credibility of the evidence . . . (and) weighing . . . the evidence (which) is more appropriately a function to be exercised at the actual trial”]). In short, a claimant who meets the evidentiary burdens described in Court of Claims Act § 8-b (3) and makes detailed allegations with respect to the elements described in section 8-b (4) is entitled to an opportunity to prove the allegations at trial (Court of Claims Act § 8-b [5]). With these principles in mind, we turn to the claim at issue here.

[2] Court of Claims’ dismissal was based in large part on factual determinations that were inappropriate at this stage of the litigation. First, although Warney alleges in detail that his confession was coerced, the court concluded that “the evidence presented” did not “indicate” that it was. The court was “not convinced” that, as Warney alleges, “only the police and the true perpetrator could have known many of the factual details”

in the confession. These findings were premature; the proper inquiry was whether Warney's allegations, if true, demonstrate a likelihood of success at trial, not whether they were supported by convincing evidence. As the State concedes, a coerced false confession does not bar recovery under section 8-b because it is not the claimant's "own conduct" within the meaning of the statute.³ Assuming the truth of Warney's allegations, as we must, the police used "coercive tactics" and threats to induce his confession. The allegations describe how no member of the public other than the perpetrator could have known all the details contained in the confession—whether negligently or through intentional manipulation, police misconduct led to the inclusion of these details in Warney's statement. Thus, Warney has adequately pleaded that he was coerced into adopting the false confession.⁴

Second, Court of Claims determined that Warney's statement to an RPD officer, "I've got a body," which was introduced against him at trial, was conduct contributing to his conviction. Warney has never admitted to making that statement, however, and his claim alleges that, as he maintained at trial, he actually said "I'm being charged with a body." Accepting Warney's allegations as true, we presume that he never made this inculpatory statement. Determining what Warney said is purely a credibility determination, pitting his account against the officer's. The officer's testimony is no more or less convincing, at this pleading stage, than Warney's account of the conversation.

[3] The State further argues that Warney's initial interactions with the RPD ought to bar him from recovery. We disagree. A claimant's statutory obligation to prove that "he did

3. Warney argues that the word "conduct" in the statute should be read as "misconduct," as this reading is in line with clear legislative intent (*see* 1984 Report of the Law Revision Commission to the Governor on Redress for Innocent Persons Unjustly Convicted and Subsequently Imprisoned, reprinted in 1984 McKinney's Session Laws of NY, at 2899, 2932 [claimant should "have to establish that he did not cause or bring about his prosecution by reason of his own misconduct"]). Because he alleges that no conduct of his brought about his conviction, however, we find it unnecessary to consider whether such conduct must rise to the level of misconduct.

4. The State contends that since Supreme Court ruled at a suppression hearing prior to the criminal trial that the confession was voluntarily given, it cannot be found in this action to have been coerced. We reject that contention and conclude that although the statement was admissible at the criminal trial, the judge there lacked many of the facts now stated in Warney's claim. Most importantly, the question of coercion must now be viewed in light of Warney's innocence.

not . . . cause or bring about his own conviction” (Court of Claims Act § 8-b [4] [b]) could conceivably be read as barring recovery when *any* action by the claimant caused or brought about the underlying conviction, no matter how indirectly. This reading, however, would bar recovery by every innocent claimant who inadvertently and unforeseeably played some small role in the chain of events leading to his or her conviction. Instead, as we have previously suggested, a claimant’s conduct bars recovery under the statute only if it was the “proximate cause of conviction” (*Ivey*, 80 NY2d at 482). Warney’s early conversations with the RPD, as the events are described in his claim, did not cause or bring about his conviction within the meaning of the statute. While Warney acknowledges that he initiated contact with the RPD, triggering the questioning that ultimately led to his false confession and conviction, he alleges that he was “severely mentally impaired,” and that the RPD knew of his mental illness. Moreover, it was the RPD’s alleged mishandling of the ensuing investigation that ultimately resulted in Warney’s conviction.

In sum, the courts below inappropriately made credibility and factual findings, dismissing Warney’s claim without giving him the opportunity to prove his detailed allegations that he did not cause or bring about his conviction. Because these allegations, taken as true, demonstrate a likelihood of success at trial, Warney is entitled to proceed with his claim, secure discovery, and obtain a disposition on the merits.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the defendant’s motion to dismiss the claim denied.

SMITH, J. (concurring). I agree with the result the majority reaches, and have no major quarrel with the general principles it states. I write separately to emphasize that the application of those principles in this case is easy, because this claimant appears, on the present record, to have an exceptionally strong case. Our decision today should not be read as implying that any claimant can, by skillful pleading, get a significantly weaker case past a motion to dismiss.

I

It may not be obvious from the majority opinion how compelling a case Warney’s statement of claim presents. His confession, now known to be false, included a number of facts—many

of them recited in the majority's footnote 1 (at 432)—known only to the police and to the real murderer. It seems highly likely that the inclusion of these facts is the reason Warney was convicted. How, the prosecutor at Warney's trial asked rhetorically, could Warney have known these facts if he were innocent?

“How would he have known about a tissue wrapped in the form of a bandage if he hadn't had been in Mr. Beason's bathroom? Only the killer would have known about that and about the knife and about the towel with the blood on it and about the video tapes. . . .

“[H]e knew how Mr. Beason was dressed, and he described a nightshirt . . . The Defendant says he's cooking dinner, and he's particular about it, cooking chicken . . . Now, who could possibly know these things if you hadn't been inside that house, inside the kitchen? . . .

“The Defendant described the knife as being twelve inches, with ridges. I think [forensic testimony] said it was thirteen inches with the serrated blade.”

Now that his innocence has been established, Warney echoes the prosecutor's question: How indeed could he have known all these facts? It is hard to imagine an answer other than that he learned them from the police. In short, the details set forth in Warney's 41-page statement of his claim, with 58 pages of annexed exhibits, point strongly to the conclusion that the police took advantage of Warney's mental frailties to manipulate him into giving a confession that contained seemingly powerful evidence corroborating its truthfulness—when in fact, the police knew, the corroboration was worthless.

The majority correctly holds that this sort of police conduct, if proved at trial, would be sufficient to show that Warney “did not by his own conduct cause or bring about his conviction” (Court of Claims Act § 8-b [4] [b]). In general, a claimant who gives an uncoerced confession to a crime he did not commit should be found to have caused his own conviction (*see* Report of the Law Revision Commission to the Governor on Redress for Innocent Persons Unjustly Convicted and Subsequently Imprisoned [hereafter Commission Report], reprinted in 1984 McKinney's Session Laws of NY, at 2899, 2932 [listing “falsely giving an uncoerced confession of guilt” as among the acts of misconduct that justify rejecting a claim]). But a confession can-

not fairly be called “uncoerced” that results from the sort of calculated manipulation that appears to be present here—even if the police did not actually beat or torture the confessor, or threaten to do so. Thus, while Warney’s claim does include the general allegation that the police threatened him “both physically and otherwise,” I view this allegation as unnecessary—and, if it stood alone, obviously insufficient—to prevent dismissal of Warney’s claim. The majority opinion, as I interpret it, does not disagree.

Of course it would be wrong to assume that the State cannot refute Warney’s assertions. Claims that appear strong at the pleading stage do not always win. But I have no hesitation in concluding that Warney’s claim states facts “in sufficient detail to permit the court to find that claimant is likely to succeed at trial” (Court of Claims Act § 8-b [4]). The contrary decisions of the courts below seem to me not just “premature,” as the majority says (majority op at 436), but simply wrong.

II

I have emphasized the strength of Warney’s claim because I am concerned that some of the majority’s generalizations, made in the context of this very strong claim, will be misunderstood as requiring courts to uphold much weaker ones. I agree that, as a general matter, a claimant need not actually present his evidence as part of his claim; detailed allegations are enough. And I also agree that CPLR 3211 applies in actions under Court of Claims Act § 8-b, except to the extent that section 8-b imposes a more stringent pleading standard; thus, where there is a bona fide factual dispute, the claimant’s allegations should be taken as true. That does not mean, however, that allegations implausible or unconvincing on their face are sufficient to prevent dismissal of a claim for unjust conviction and imprisonment. So to hold would be to read out of the statute provisions that the Legislature wrote in, in an attempt to balance two important, and competing, goals: to compensate people who have been unjustly convicted, but also to protect the State against the administrative burden, and the cost of nuisance settlements, that could result from having to litigate a large number of false claims.

In pursuit of the latter goal, the Legislature strengthened the tests normally applied to gauge the sufficiency of pleadings, requiring not only that a claim be stated in “detail”—itself a significant departure from the normal rule—but “in sufficient

detail to permit the court to find that claimant is likely to succeed at trial” (Court of Claims Act § 8-b [4]). Lest anyone miss the point, the Legislature added this sentence: “If the court finds after reading the claim that claimant is not likely to succeed at trial, it shall dismiss the claim, either on its own motion or on the motion of the state” (*id.*). The Report of the Law Revision Commission accompanying the proposed legislation that became Court of Claims Act § 8-b makes quite clear that this provision should have real teeth. The legislation is based, the Commission said, on:

“a careful balancing between the goal of compensating one who has been unjustly convicted and imprisoned, and society’s dual interest of ensuring that only the innocent recover and of preventing the filing of frivolous claims. With respect to the latter, the Commission is most sensitive to the needs of the criminal justice system in that it does not want to overburden the staffs of the Attorney General and the District Attorneys with the defense of frivolous claims.” (Commission Report, 1984 McKinney’s Session Laws of NY, at 2926.)

The Commission added: “Consequently . . . most cases will not survive a motion to dismiss. The few exceptions will be the ones appropriate for a full hearing on the claim of innocence” (*id.* at 2930). No one should conclude from today’s decision that we have opened a loophole that will defeat this legislative goal.

Chief Judge LIPPMAN and Judges PIGOTT and JONES concur with Judge CIPARICK; Judge SMITH concurs in result in a separate opinion in which Judges GRAFFEO and READ concur.

Order reversed, etc.

[947 NE2d 620, 922 NYS2d 846]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MICHAEL SPICOLA, Appellant.

Argued February 17, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 24, 2009. The Appellate Division affirmed a judgment of the Erie County Court (Michael L. D'Amico, J.), which had convicted defendant, upon a jury verdict, of sodomy in the first degree (six counts), sexual abuse in the first degree (three counts) and endangering the welfare of a child.

People v Spicola, 61 AD3d 1434, affirmed.

HEADNOTES

Crimes — Evidence — Hearsay — Statements Relevant to Diagnosis and Treatment

1. In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the abuse, the testimony of the pediatric nurse-practitioner who examined the complainant the day after he had reported the abuse fell within the exception to the hearsay rule for statements relevant to diagnosis and treatment and did not improperly bolster the complainant's credibility. To the extent that the complainant's responses to the nurse-practitioner's inquiries about why he was at the child advocacy center where she was employed were germane to diagnosis and treatment—and she testified that they were—those responses were properly admitted as an exception to the hearsay rule. Without the complainant's explanation of what he claimed to have happened and when, the nurse-practitioner would hardly have known where to begin her examination. Moreover, the nurse-practitioner did not identify who the complainant said touched him; she acknowledged that she did not know whether the complainant was being truthful; the testimony about the nature of the alleged abuse consisted of a single question and a brief answer; and her observations of the complainant's demeanor and manner were relevant to her medical decisions about the necessity for counseling or psychological therapy or other treatment. The nurse-practitioner's testimony rounded out the narrative of the immediate aftermath of the complainant's disclosure to his mother and, more importantly, addressed the negative inference that jurors might have drawn from the absence of medical evidence of abuse. Assuming that the jury believed that the nurse-practitioner accurately perceived the complainant's state of mind, there were any number of different explanations for why he was nervous and uncomfortable, none conclusively bearing on credibility.

Crimes — Witnesses — Expert Witness — Child Sexual Abuse Accommodation Syndrome

2. In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the

abuse, the trial judge did not abuse his discretion when he allowed a licensed clinical social worker to testify about child sexual abuse accommodation syndrome (CSAAS) to rehabilitate the complainant's credibility. Defendant had attacked the complainant's credibility, principally on the basis that he neglected to report the alleged abuse promptly and continued to associate with defendant after the abuse was claimed to have taken place. The legitimate purpose of the expert's testimony was to counter defendant's inference that the complainant's behavior was inconsistent with having been molested. The expert stressed that CSAAS was not a diagnosis; rather, it describes a range of behaviors observed in cases of validated child sexual abuse, some of which seem counterintuitive to a layperson. He confirmed that the presence or absence of any particular behavior was not substantive evidence that sexual abuse had, or had not, occurred. Moreover, he made it clear that he knew nothing about the facts of the case before taking the witness stand; that he was not venturing an opinion as to whether sexual abuse took place in this case; and that it was up to the jury to decide whether the complainant was being truthful. Although, as a whole, the expert's testimony certainly supported the complainant's credibility by supplying explanations other than fabrication for his post-molestation behavior, the expert did not express an opinion on the complainant's credibility.

Crimes — Witnesses — Expert Witness — Child Sexual Abuse Accommodation Syndrome — Scientific Reliability

3. In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the abuse, where the trial judge allowed a licensed clinical social worker to testify about child sexual abuse accommodation syndrome (CSAAS), which includes delayed disclosure of abuse, the record did not support defendant's contention that CSAAS lacked scientific validity for the purpose for which it was offered. The evidence offered by defense counsel in disputing the scientific reliability of CSAAS did not question the empirical basis for delayed reporting. Rather, the criticism of CSAAS dealt with the prevalence of denial and recantation, aspects of CSAAS not at issue here.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d, Evidence §§ 669, 881, 882; AM JUR 2d, Expert and Opinion Evidence §§ 22-29, 185, 186.
CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:116, 194:191-194:193, 194:195, 194:197.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.
NY JUR 2d, Criminal Law: Procedure §§ 2093, 2146, 2199, 2207, 2211.

ANNOTATION REFERENCES

Admissibility of statements made for purposes of medical diagnosis or treatment as hearsay exception under Rule 803 (4) of the Uniform Rules of Evidence. 38 ALR5th 433.

Admissibility of expert testimony on child sex abuse accommodation syndrome (CSAAS) in criminal case. 85 ALR5th 595.

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Query: hearsay & nurse /s examin! & bolster!

POINTS OF COUNSEL

Lipsitz Green Scime Cambria, LLP, Buffalo (Paul J. Cambria, Jr., Roger W. Wilcox, Jr., and Timothy P. Murphy of counsel), for appellant. I. The introduction of improper child sexual abuse accommodation syndrome (CSAAS) testimony denied appellant his state and federal constitutional rights to a fair trial. (*Gersten v Senkowski*, 426 F3d 588; *People v Ciaccio*, 47 NY2d 431; *People v Taylor*, 75 NY2d 277; *People v Mercado*, 188 AD2d 941; *People v Carroll*, 95 NY2d 375; *People v Miles*, 294 AD2d 930, 98 NY2d 678; *People v Bassett*, 55 AD3d 1434.) II. Appellant's rights to a fair trial under the Fifth and Fourteenth Amendments of the United States Constitution and article I, § 6 of the New York State Constitution were violated by the trial court's order precluding testimony of four character witnesses regarding his reputation in the community for truthfulness and honesty. (*People v Fanning*, 209 AD2d 978, 85 NY2d 908; *People v Bouton*, 50 NY2d 130; *People v Malinowski*, 43 AD2d 189; *People v Kuss*, 32 NY2d 436; *People v West*, 271 AD2d 806; *People v Howie*, 210 AD2d 255; *People v D'Alessandro*, 184 AD2d 114; *People v Burkhardt*, 143 AD2d 104; *People v Richardson*, 114 AD2d 980; *People v Pryor*, 70 AD2d 805.) III. The People's introduction of prejudicial nurse-practitioner testimony improperly bolstered the credibility of the complainant. (*People v Major*, 154 AD2d 225.) IV. The time frames charged in the indictment and bill of particulars are impermissibly broad; consequently, the indictment lacked the specificity required by CPL 200.50, the Constitution of the State of New York, and the United States Constitution. (*People v Morris*, 61 NY2d 290; *People v Iannone*, 45 NY2d 589; *United States v Cruikshank*, 92 US 542; *People v Sedlock*, 8 NY3d 535; *People v Watt*, 81 NY2d 772; *People v Feliciano*, 196 AD2d 774, 82 NY2d 894; *People v Johnson*, 233 AD2d 887, 89 NY2d 1095; *People v Beauchamp*, 74 NY2d 639.) V. The trial court erred in its preliminary instructions when it advised the jurors not to come to any conclusions involving innocence prior to deliberations. (*United States v Peters*, 3 US 121; *People v Giddens*, 202 AD2d 976, 83 NY2d 871; *People v Ahmed*, 66 NY2d 307; *People v Mehmedi*, 69 NY2d 759.) VI. Appellant was denied effective assistance of counsel. (*People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US

668; *Gersten v Senkowski*, 426 F3d 588.) VII. The evidence supporting appellant's conviction is legally insufficient. (*People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *In re Winship*, 397 US 358.)

Frank A. Sedita, III, District Attorney, Buffalo (*Shawn P. Hennessy* and *Donna A. Milling* of counsel), for respondent. I. Defendant's argument that child sexual abuse accommodation syndrome testimony was used to bolster the credibility of the child victim is unpreserved and meritless. (*People v Martin*, 50 NY2d 1029; *People v Rodriguez*, 56 NY2d 557; *People v West*, 56 NY2d 662; *People v Vidal*, 26 NY2d 249; *People v Cronin*, 60 NY2d 430; *People v Williams*, 6 NY2d 18; *People v Carroll*, 95 NY2d 375; *People v Taylor*, 75 NY2d 277; *People v Keindl*, 68 NY2d 410, 69 NY2d 823; *People v Ciaccio*, 47 NY2d 431.) II. The trial court properly denied the introduction of four character witnesses who would have testified to defendant's reputation for truth and honesty in the community because the subject matter of their testimony did not relate to the charges of sodomy or sexual abuse. (*People v Van Gaasbeck*, 189 NY 408; *People v Miller*, 35 NY2d 65; *People v Sulkey*, 195 AD2d 1026; *People v Fanning*, 209 AD2d 978; *People v Renner*, 269 AD2d 843; *People v Minucci*, 68 AD3d 1017; *People v Chisolm*, 7 AD3d 728; *People v Lopez*, 258 AD2d 388; *People v Scarola*, 71 NY2d 769.) III. The claim that the admission of the victim's statements to medical personnel deprived defendant of his right to a fair trial is meritless. (*People v Harris*, 151 AD2d 981, 74 NY2d 810; *People v Dennee*, 291 AD2d 888, 98 NY2d 650.) IV. The indictment gave defendant fair notice of the charges. (*People v Morris*, 61 NY2d 290; *People v Watt*, 81 NY2d 772, 84 NY2d 948; *People v Beauchamp*, 74 NY2d 639; *People v Keindl*, 68 NY2d 410; *People v Sedlock*, 8 NY3d 535; *People v Eisemann*, 248 AD2d 484.) V. Defendant's argument that the trial court's preliminary instruction was improper is unpreserved. (*People v Robinson*, 36 NY2d 224; *People v Reynolds*, 25 NY2d 489; *People v Schwartzman*, 24 NY2d 241; *People v Simons*, 22 NY2d 533; *People v Belge*, 41 NY2d 60.) VI. Defendant was afforded effective representation by his trial counsel. (*People v Rivera*, 71 NY2d 705; *Strickland v Washington*, 466 US 668; *People v Benvenuto*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Satterfield*, 66 NY2d 796; *People v Flores*, 84 NY2d 184; *People v Ford*, 86 NY2d 397; *People v Aiken*, 45 NY2d 394; *People v Modica*, 64 NY2d 828; *People v Brown*, 7 NY2d 359.) VII. Defendant's claim that the conviction was procured with insufficient evidence is unpreserved. (*People v Belge*, 41 NY2d 60;

People v Hawkins, 11 NY3d 484; *People v Gray*, 86 NY2d 10; *People v Hines*, 97 NY2d 56; *People v Finger*, 95 NY2d 894; *People v Bynum*, 70 NY2d 858; *People v Stahl*, 53 NY2d 1048; *People v Cona*, 49 NY2d 26.)

OPINION OF THE COURT

READ, J.

On November 16, 2006, defendant Michael Spicola was charged in a 10-count indictment with six counts of first-degree sodomy (Penal Law § 130.50 [3]), three counts of first-degree sexual abuse (Penal Law § 130.65), and one count of endangering the welfare of a child (Penal Law § 260.10) stemming from three occasions when he was accused of engaging in reciprocal oral to genital contact with a young boy. These sexual encounters were alleged to have occurred between March 1, 1999 and April 30, 1999, a 61-day period when the boy was a six-year-old first grader; June 15, 2000 and August 31, 2000, a 77-day period during which the boy turned from seven to eight years old; and September 1, 2000 to November 30, 2000, a 91-day period when the boy was an eight-year-old third grader.

At defendant's subsequent jury trial, the boy's mother, a single parent, explained that defendant, her cousin, had been "involved in [her] life" after she moved back to western New York, where she grew up; he helped her out with chores, and occasionally watched her young son. The boy was friendly with defendant's daughter and youngest stepson, who were just a few years older than he was; he visited defendant's residence and slept over in 1999 and 2000 a "[f]ew times a year," including during spring break in 1999. Defendant took the boy to sporting events, and was his soccer coach during 2004.

The mother first sensed that "something wasn't right" in early 2006, when defendant, who had a college degree in advanced accounting and was self-employed as a tax preparer, stopped by her house to drop off her tax return. Defendant approached her son and started to tickle him, which the mother did not consider to be anything other than ordinary horseplay; however, she thought her son's reactions were "weird." First, he "went . . . chest down on the ground . . . and tightened up and then . . . walked away" from defendant and retreated to the couch next to the chair in which she was seated. When defendant sat down beside the boy and rubbed his back, he responded by curling up into "the fetal position . . . and leaned away from" defendant.

At some point the week after this episode, the mother cautioned her son that if “anybody ever touche[d] [him] wrong [he] need[ed] to tell,” and reassured him that she would not care who it was, even if one of several male relatives whom she named, including defendant. The boy indicated that he had never experienced such a thing, saying “[N]o mom, it’s fine.” He testified that he answered in this way because he “didn’t know if [he] could go to the police or not” and “thought [he] would get in trouble,” and defendant “was close to the family and [he] just thought something really bad would happen” if he revealed that defendant had touched him inappropriately. But after the boy saw a video about on-line sexual predators, shown in his eighth-grade technology class in early April 2006, he realized that what defendant had done to him “was wrong,” and “felt like [he] should tell someone.” He resolved to confide in his mother, but still hesitated. Then, as he was showering before going to school on May 15, 2006, the day after Mother’s Day, he felt as though he “couldn’t hold it in anymore,” and he “just ran and told” his mother that “Mike had touched [him] many different ways.”

The boy made this disclosure at the age of 13, seven years after the first and almost six years after the last instance of alleged molestation. Upon hearing her son’s account, the mother immediately called her own mother, who was at work at the time, and the boy’s father, asking them to come to her house urgently. She testified that her son sat on the living room couch and cried for a long time after he divulged his secret, and that he was “withdrawn, sad, scared” as the day wore on, and for many months thereafter. The boy’s grandmother and father recalled finding him crying when they arrived; they described the mother as angry and distraught. The mother contacted the police, and a detective from the Erie County Sheriff’s Department called her back later that day. The following day, she took the boy to the Child Advocacy Center (CAC) in Buffalo, where he was interviewed by a prosecutor and examined by a nurse-practitioner, who recommended counseling.

On the witness stand, the boy recounted the sexual abuse as having taken place while defendant played “knee hockey” alone with him, in the nude, in the living room of defendant’s home, generally in the afternoon. In this game, the players got down on their knees and tried to shoot a ball into designated goals, using miniature hockey sticks. On cross-examination, defense counsel pressed two considerations in particular: that the boy

had taken a long time to report these events; and that he had continued to associate with defendant in the meantime. Thus, defense counsel asked questions causing the boy to acknowledge that for six or seven years he neglected to alert his mother, his grandmother, his friends, his teachers or any doctor who examined him; and that he visited defendant's house after the last alleged sexual encounter, saw defendant several times a week during soccer season in 2004, when defendant coached his team, and accompanied him on outings to stock car races and professional hockey games when he was 12 or 13 years old. Defense counsel also elicited an admission that the boy had not mentioned one vivid detail of his story to the grand jury.

Defendant testified on his own behalf. He stated that the boy first slept over at his residence during Christmas vacation in 1999, not the spring of 1999, and that he next slept over, accompanied by a friend, during Christmas vacation in 2000 and the Martin Luther King holiday weekend in 2001. Defendant asserted that he was never at any time alone in his house with the boy because there were always other family members around while the boy was there. Further, the boy "beg[ged]" to stay overnight after a family reunion in the summer of 2001 because "a week or two before [he] bought [his] kids a trampoline and [the boy] was having a lot of fun playing on the trampoline." According to defendant, the next time the boy slept over was after accompanying him and his youngest stepson to a stock car race over Memorial Day weekend of 2004; and he stayed over again, with another boy, after again going to a stock car race with defendant, this time in late September 2004. Defendant testified that he took the boy to professional hockey games in November 2005 and March 2006.

In defendant's telling, "knee hockey" was a game "invented" by his three stepsons, which the children played in the living room of his house. He sometimes joined in, "[j]ust to have fun with [his] kids," and the boy played with them when he visited. Defendant flatly denied ever having played "knee hockey" alone with the boy; he flatly denied the charges in the indictment.

On cross-examination, the prosecutor brought out that defendant had omitted his several-year stint as a full-time school bus driver from the lengthy work history he gave during direct examination. Defendant admitted that he was given a directive by the school superintendent in January 2002, and resigned from his post in May 2003 by mutual agreement with the union and the school district, although he denied ignoring the

directive.¹ He called the boy “a normal kid” with whom he had enjoyed good relations; he likewise indicated that he had always gotten along well with the boy’s mother. Although defendant suggested that he might have “some ideas” about why the boy would lie, he never shared these ideas with the jury. He admitted tickling and wrestling with the boy on occasion. Defendant denied having told the detective with whom he spoke by telephone on May 20, 2006 that he may have accidentally touched the boy in an intimate area, but noted that “whenever someone is wrestling you can accidentally touch someone’s private parts.”

The jury convicted defendant on all counts. On August 9, 2007, the trial judge sentenced him to concurrent determinate terms of 12 years for first-degree sodomy; seven years for first-degree sexual abuse; and one year for endangering the welfare of a child. Defendant appealed on numerous grounds, including that the trial judge erred when he permitted testimony from a nurse-practitioner who examined the boy and expert testimony from a clinical social worker relating to child sexual abuse accommodation syndrome (CSAAS). On April 24, 2009, the Appellate Division affirmed (61 AD3d 1434 [4th Dept 2009]). A Judge of this Court granted defendant permission to appeal (14 NY3d 805 [2010]), and we now affirm.

I.

The Nurse-Practitioner

A. The Objection

Defense counsel sought to preclude the testimony of the pediatric nurse-practitioner who examined the boy the day after he confided in his mother. He advanced several arguments: first, that the nurse “would not be in any position to give an opinion that the young man was molested or abused”; second, she found no physical evidence of sexual abuse; and third,

“she would be asked about a history that she received from [the boy], and by allowing that testimony that would be improper bolstering. It’s not outcry because it’s 6 or 7 years later. Even though they are statements made to a nurse they wouldn’t have any relevance to any diagnosis because she doesn’t make any diagnosis.

1. Defense counsel obtained a *Sandoval* ruling proscribing inquiry into the “parent concern” prompting the directive.

“So . . . to allow her to testify and to tell the jury about the history she received and any of her alleged findings would be unfairly prejudicial.”

When the trial judge asked the prosecutor why the nurse was being called, she gave several reasons. First, she pointed out that a nurse-practitioner is, unlike a registered nurse, competent and authorized to make a medical diagnosis; she cited CPLR 4518 (business records); she asserted that jurors may question the lack of physical evidence in a sexual abuse case, and the nurse could explain that this circumstance was not inconsistent with the boy’s account, which was especially important “when there [are] references by the defense . . . there is no medical evidence.”

The prosecutor also told the judge that she expected the nurse “to describe her actual observations both in terms of physical findings, . . . the lack of objective evidence [of sexual abuse], but also her observations of the child’s demeanor . . . [which] would relate to his credibility to rebut a potential defense of fabrication here.” Finally, she argued that the delay in reporting did “not in any way make [the nurse’s] subjective history or the patient’s objective history irrelevant,” as the nurse would still have to ask the same questions and perform the same examination “whether it’s 1 month or 6 years” after the alleged sexual abuse occurred.

The judge agreed that “the issue” was whether the boy’s statements were germane to his treatment, and asked what the boy told the nurse. The prosecutor responded that he had “describe[d] basically the oral contact.” The judge then said, “I presume it’s not a detailed account?” The prosecutor answered affirmatively, and told the judge that she had warned the nurse to stay away from identifying the perpetrator, or where or how many times the alleged sexual abuse occurred. The judge asked if she planned to offer the medical record into evidence. The prosecutor responded that she would rely solely on the nurse’s testimony “because there [were] so many things . . . that would be improper [she] would have to redact the whole record.” The judge ruled that the nurse could testify.

B. The Testimony

The nurse, who had extensive and specialized training and experience examining child victims of sexual and physical abuse, was asked to perform a medical examination of the boy on May 16, 2006 at the CAC, where she was employed. The boy was at

the CAC that day for an “MD, multiple disciplinary interview.” She testified that she would first take a child’s medical history and then perform a “top to bottom physical exam.” In terms of taking a medical history, she would ask a child why he or she was at the CAC, and would inquire about the child’s health because she “need[ed] to understand if there [were] any concerns or problems going on . . . [and] what [the child’s] developmental ability [was].” She stated that it would be necessary for her to take a subjective history from a patient even where suspected sexual abuse occurred a number of years earlier because she “need[ed] to know [of] any problems, any lesions, any sores, any concerns.” When asked if that was why she took a subjective history of the boy, she answered, “Yes, it is.”

The prosecutor reminded the witness that she could not “discuss . . . details other than what was specifically told to [her] that was relevant to [her] diagnosis and treatment”; and then asked what the boy said about what had happened to him. She answered that the boy indicated that “he had been touched inappropriately,” and “gestured to his groin that it had been put in his [*sic*] mouth and he was asked to put somebody else’s into his mouth.” She testified that the boy was “embarrassed, [with] downcast eyes, flushed face” when he gave her this information.

The prosecutor next posed questions to the nurse about the physical examination that she performed on the boy. The nurse described the first part as a general examination akin to a regular physical; she testified that the boy’s heart rate was elevated, which indicated to her that he was “nervous.” The last part of the examination focused on the genital and rectal area. Because of what he told her about “what had happened to him,” she “was looking to make sure that the exam would have been normal, that there were no lesions or sores, discharges.” The prosecutor next asked the nurse if the absence of lesions was in any way “inconsistent with what [the boy] had told [her] about what had happened.” She replied that it was not “[b]ecause we generally would not see or many times . . . do not see medical evidence from children who have been touched inappropriately.”

The nurse added that she “spent quite awhile talking with” the boy, who was concerned that “people would know that this happened to him.” Additionally, “he had some body changes as he was growing up and he was very uncomfortable with that, so [she] spent a long time talking about body change, hormones, normal growth, normal things that happen to your body.” The

nurse was asked how she could spot the boy's discomfort, and she replied, "He had downcast eyes. He was flushed, heart rate was up." She "reassured [the boy] that he hadn't done anything wrong and that his body was normal."

On cross-examination, the nurse acknowledged that she had no way of knowing whether the history of sexual abuse that the boy related to her was true or false; and that it would not be unusual for a 13-year-old boy to exhibit signs of nervousness when talking to a stranger about "private matters." Further, defense counsel brought out that she knew what physical signs or symptoms to look for that "could be consistent with abuse," and that she "found no physical evidence to support the history that [the boy] even had been touched inappropriately."

This cross-examination caused the prosecutor to return on redirect examination to ground that she had already covered: whether it was "at all unusual" that the nurse did not detect "any lesions or actual physical injury." The nurse replied that it was not unusual. On re-cross-examination, defense counsel countered, asking "And the fact that you found nothing is just as consistent with this child never having been abused or never having been molested, right?" The nurse responded "That is correct, sir."

C. Discussion

[1] Defendant contends that the nurse-practitioner's testimony improperly bolstered the boy's credibility "with regard to exactly what he claimed had occurred" by "describ[ing] the exact acts" that he related to her. To the extent that the boy's responses to the nurse's inquiries about why he was at the CAC were germane to diagnosis and treatment—and she testified that they were—these responses were properly admitted as an exception to the hearsay rule (*see People v Ortega*, 15 NY3d 610 [2010]). Indeed, without the boy's explanation of what he claimed to have happened and when, the nurse would hardly have known where to begin her examination. Moreover, the nurse did not identify who the boy said touched him (*cf. People v Caccese*, 211 AD2d 976, 977 [3d Dept 1995] [allowing nurse to testify that child informed her that foster mother had caused bruises on his hand]); she acknowledged that she did not know whether the boy was being truthful. The testimony about the nature of the alleged abuse consisted of a single question and a brief answer. And the nurse's observations of the boy's demeanor and manner were relevant to her medical decisions

about the necessity for counseling or psychological therapy or other treatment.²

In *People v Buie* (86 NY2d 501 [1995]), we considered whether the admission of a 911 tape under the hearsay exception for present sense impression, where the declarant was available and testified at trial, improperly bolstered his trial testimony. We explained that the term “bolstering” has “doctrinally referred to two distinct situations, both related to the rule against hearsay” (*id.* at 509-510). The first common use of the term arose “in the context of eyewitness identification, [where] the testimony of a third party (typically, a police officer) to the effect that the witness identified a defendant as the perpetrator on some prior occasion [was] generally inadmissible” because the “identification evidence [was] hearsay, not falling within any exception” (*id.* at 510). Second, the term “bolstering” “refers to the fortification of a witness’s testimony and credibility through the use of a prior consistent statement . . . Such evidence may be admissible, but only to rebut a claim of recent fabrication . . . A prior consistent statement is admitted under these limited circumstances as an exception to the hearsay rule” (*id.* [citations omitted]).

We concluded that the admission of the 911 tape did not constitute improper bolstering, observing that “merely because a statement suffers some impediment under one hearsay exception does not preclude the proponent of the evidence from satisfying a court that a different, better-fitting exception fully applies. That is when the trial courts . . . exercise their evaluation of probativeness versus undue prejudice” (*id.* at 511). Although the 911 tape “plainly did not qualify for admission under the prior consistent statement exception, as there was no charge of recent fabrication . . . [it] fulfilled all the requirements independently for the present sense impression exception” and was therefore admissible (*id.*). Similarly, the nurse’s complained-of

2. The dissent disagrees, stating that the “[c]omplainant’s embarrassment or nervousness . . . had no medical significance whatsoever” (dissenting op at 468). While we believe the boy’s demeanor was relevant to diagnosis and treatment, this fact has no bearing on the admissibility of the nurse’s testimony in this regard. The boy’s flushed skin and elevated heart rate are not “statements” and thus do not constitute inadmissible hearsay. We know of no decisions holding that a witness’s testimony describing a hearsay declarant’s demeanor or expression is inadmissible. A jury has to decide a declarant’s truthfulness, and the manner in which a statement was made can be important to that assessment—and might cut either (or no particular) way (see discussion, *infra* at 453).

testimony, as already discussed, falls within the exception to the hearsay rule for statements relevant to diagnosis and treatment. As a result, they do not improperly bolster the boy's testimony.

The nurse's testimony rounded out the narrative of the immediate aftermath of the boy's disclosure to his mother and, more importantly, addressed the negative inference that jurors might draw from the absence of medical evidence of abuse.³ The jury learned essentially three things: that a very thorough medical examination turned up no evidence of sexual abuse, that the boy told the nurse roughly what he told his mother the day before, and that he struck the nurse as nervous and uncomfortable. The first two pieces of information were not harmful to defendant. And assuming the jury believed that the nurse accurately perceived the boy's state of mind, there were, as defense counsel pointed out, any number of different explanations for his demeanor, none conclusively bearing on credibility. After all, he might have appeared nervous whether telling the truth or lying.

II.

The Clinical Social Worker

A. The Objection

The day jury selection was scheduled to begin, defense counsel argued a motion in limine, seeking to preclude certain evidence, including "the alleged expert testimony of an undisclosed prosecution witness on the topic of" CSAAS.⁴ In the motion papers, defense counsel mentioned that the prosecution, at a pretrial conference on March 2, 2006, "stated that it anticipate[d] calling an expert witness on the topic of" CSAAS "to address the delayed reporting of the alleged incident"; and that defense counsel, in turn, "anticipated that this prosecution expert [would] testify about CSAAS, a term initially coined by Dr. Roland Summit" to describe a pattern of "secrecy, helplessness, entrapment [and] accommodation, delayed disclosure, and

3. In his closing argument, defense counsel commented that although the nurse testified that she "found nothing, but that is consistent with this type of case[;] [i]t's also consistent with the claim never happened."

4. Defense counsel also sought to preclude the prosecution from introducing in its case-in-chief statements alleged to have been made by defendant to the detective in the May 20, 2006 telephone conversation; and asked for a *Sandoval* ruling precluding the questioning of defendant, if he took the stand, "about a matter concerning a student at the North Collins Central Elementary School" (*see supra* at 448 n 1).

recantation as common characteristics in children who report sexual abuse” (internal quotation marks omitted; see Roland C. Summit, *The Child Sexual Abuse Accommodation Syndrome*, 7 Child Abuse & Neglect 177 [1983]; see also Roland C. Summit, *Abuse of the Child Sexual Abuse Accommodation Syndrome*, 1 J Child Sexual Abuse 153 [1992] [emphasizing that CSAAS was not a diagnostic tool—i.e., the fact that a child exhibits one or more aspects of CSAAS does not tend to prove that sexual abuse occurred]).

Defense counsel argued that “[d]elayed disclosure may be indicative of abuse and it might not”; therefore, CSAAS “cannot establish or state that sexual abuse did in fact occur in this case.” Further, he complained that

“[t]o present a prosecution expert to testify that any way a child responds to sexual abuse and later reports the alleged abuse is consistent with the way other children have been observed to have reacted only suggests that any story told by any child should be believed. There is no way for the defense to refute such testimony since it cannot cross-examine that testimony without the expert having the ability to speak to the facts of the case the testimony relates to. Under the guise of objective assistance, the expert is a prosecution advocate by binding him or herself in ignorance of the facts of the case. This sends a message that the jury should consider that no matter the specific facts of this case, the child’s report has been made in a manner consistent with how some other sexually abused children reported in the past.”

Finally, defense counsel quoted a lengthy excerpt from an article reviewing the disclosure patterns of children with validated histories of sexual abuse. In the excerpt, the authors criticized courts for permitting CSAAS testimony without “carefully scrutiniz[ing]” its scientific basis, and opined that, under the testimonial standard established by *Daubert v Merrell Dow Pharmaceuticals, Inc.* (509 US 579 [1993]),

“the only component of the CSAAS that has empirical support is that delay of abuse disclosure is very common. However, the probative value of expert testimony on delayed disclosure, whether for evidentiary or rehabilitative reasons, is undetermined;

some evidence suggests that knowledge about delay of disclosure is within the ken of the jury, perhaps therefore obviating the need for expert evidence on the issue of delay . . .

“[T]here is no convincing evidence that CSAAS testimony on denial or recantation provides relevant or reliable assistance to the fact finder to assess allegations” (Kamala London et al., *Disclosure of Child Sexual Abuse: What Does the Research Tell Us About the Ways that Children Tell?*, 11 Psychol Pub Pol’y & L 194, 220 [2005]).

Defense counsel took the position that, in light of the quoted excerpt, there did not “appear to be either acceptance within the scientific community that CSAAS identifies and describes behavioral characteristics commonly found in victims of child sexual abuse or that such behavioral characteristics require the use of an expert to assist the jury.”

In oral argument of the motion in limine, defense counsel emphasized that there was a “fairly lengthy delay of 6 or 7 years” in this case, and he assumed the prosecution’s expert would “say that children who are abused invariably delay reporting . . . The expert will say there are reasons for that because of secrecy and other reasons personal to the child.” He contended, however, that “[j]uries understand that” and that it was not necessary for “an expert [to] come in and tell a jury that children who are abused don’t report it right away and sometimes it takes a long time.”

The trial judge then asked “Do you want to stipulate to that.” Defense counsel demurred, but he still maintained there was no need for an expert as potential jurors are “besieged with this [information] from the Oprah Show to Montel Williams to Jerry Springer” such that “the proverbial bottom line” was that they “understand [delayed reporting] and we don’t need an expert to come in and tell us.” He also objected because he assumed “the expert’s testimony . . . will be that this is the pattern with people who are abused. And when you are abused you wait” so that “even though the expert will say, oh, I never interviewed the victim or his family, the unavoidable inference almost always is that this kid must have been abused because he fits into this so-called pattern.”

The prosecutor rejoined that defense counsel’s arguments “pertain[ed] to the weight that the jury [would] afford the expert’s testimony”; and that the Fourth Department in *People*

v Miles (294 AD2d 930 [2002]) had held that expert testimony about CSAAS was admissible; the prosecutor also cited our decision in *People v Carroll* (95 NY2d 375, 387 [2000]). She concluded by arguing that

“[e]ssentially, as long as there is no attempt to the diagnostic or to offer an opinion that . . . abuse occurred, certainly counsel can conduct an extensive cross examination as to whether or not the presence of certain factors leads him or anyone to the conclusion that abuse did or did not occur. The expert is very cautious and careful in not invading the province of the jury by indicating that this is simply a discussion of a broad range of behaviors. And while it may not appear necessary [to defense counsel] . . . to have such an expert, unfortunately in today’s day and age it is necessary for the People to rely on this expert because many of the factors or components of the syndrome are completely counterintuitive . . . We know that based on our prior trial record in Erie County where jurors have acquitted defendants basically indicating well, if such and such abuse occurred that child never would have returned to the scene or location of the abuse . . . [Jurors] expect children . . . to tell right away . . . [J]uries watch a lot of CSI and all the various shows associated with the law and they do often expect children to tell right away.”

The judge indicated that it was “pretty well settled” that this type of testimony was admissible, apparently referring to *Carroll* and *Miles*, and that it was “going to come in.” Defense counsel noted that it was “discretionary with the Court,” causing the judge to reiterate “It’s coming in.”

B. The Testimony

The expert was a licensed clinical social worker at Child and Adolescent Treatment Services in Buffalo, who had extensive and specialized training and experience in the field of child sexual abuse. He testified that since 1975 he had provided direct treatment to over 3,000 children, and had testified in court 222 times, on behalf of both the defense and the prosecution. The expert was asked by the prosecutor if he was “familiar with any of the specific facts of this case,” and if he knew “anything at all about the parties involved.” He responded negatively on both counts. The prosecutor then questioned him as follows:

“Q. And is it true that you are not here to offer this jury an opinion as to whether or not the victim in this case was in fact a victim of sexual abuse?

“A. That is correct. I’m not here to offer an opinion.

“Q. What is the purpose of your testimony, sir?

“A. The purpose of my testimony is to provide information to a jury or the trier of fact regarding how children respond to being sexually abused and what is commonly seen. The other side is what are the common misconceptions that people have regarding children and child sexual abuse.

“Q. Is it fair to say then that you are here to talk about the range of behaviors that are associated with child victims of child sexual abuse?

“A. Yes, I am here to speak about the range that you observe.”

The prosecutor asked the expert if he was familiar “with the scientific research” in the field; specifically, CSAAS. The expert answered that he was. He identified CSAAS as originating with Dr. Summit’s work in 1983, and listed its five categories—secrecy; helplessness; entrapment and accommodation; delayed, conflicted or unconvincing disclosure; and retraction or recantation. The prosecutor asked if the syndrome was “a diagnosis in any way,” and the expert responded “No, it was never intended to be.”

The expert testified that CSAAS was generally accepted as valid within the relevant scientific community of his specialty, and that many follow-on studies, “some focusing on how children disclose,” had been undertaken since 1983.⁵ The prosecutor asked the expert if “the concepts of the syndrome show contradictions to widely held beliefs and views about behaviors of child sexual abuse victims.” He replied “Yes” and that “[f]or one . . . adults think that kids are going to immediately say when something happened to them.” He was asked if the presence of any one of the five kinds of behavior “mean[s] in and of

5. The expert mentioned the 2005 study by London and colleagues, referenced by defense counsel in his motion in limine, and a subsequent revision of it (see London et al., *Disclosure of Child Sexual Abuse: A Review of the Contemporary Empirical Literature*, in *Child Sexual Abuse: Disclosure, Delay and Denial*, at 11 [Margaret-Ellen Pipe et al. eds 2007] [hereafter, London 2007]).

itself that the child was abused,” to which he again warned that CSAAS “was never intended to be used in that manner.” He was then asked if the “absence of any one of those categories or behaviors necessarily mean[s] that [a] child was not abused,” to which he similarly responded “Again, it was not intended. It’s intended [to] get you to think, to include ideas.”

The prosecutor next called on the expert to explain each of the five categories in more detail, and posed various questions in this context; specifically, whether the degree of helplessness might vary, depending on the child’s age; whether a child is more likely to be abused by a stranger or someone whom the child knows; how a child abused by a trusted adult reacts; whether victims are predominantly male or female; how a child might react if the abuser was someone close to his or her mother; whether the abuse typically occurs outside the direct view of others; whether there are circumstances where the abuse occurs in the presence of others and in what type of case this might happen; whether the concept of secrecy requires a verbal threat; what types of activities, including sexual activity, an abused child might employ as a coping mechanism; whether a child’s psychological immaturity might affect willingness to return to the scene of the abuse; whether a child who had been sexually abused might still want to associate with the abuser; whether there was any research linking a higher incidence of delayed disclosure to one sex or the other, and, if so, the factors associated with such a phenomenon and the relative length of delay; whether a delayed disclosure on the order of six or seven years would be unusual; whether the range of delay might include waiting even longer; if the age of the child at the time of the abuse might affect whether there was a delay in reporting; whether a triggering event might prompt disclosure; whether “an educational component about the awareness of sexual abuse” might constitute a triggering event; the emotional consequences for a child after disclosure and whether such consequences might last a long time; how a delay in disclosure might affect a child’s memory of the actual abuse; and whether abused children always recant. To “recap,” the prosecutor asked “if the child’s behavior shows aspects of the first four categories that you discussed, but there is no recantation involved, does that automatically mean or does it still fit within the parameters of the syndrome?” The expert replied that “[s]ince the parameters were meant to get me to think about the child, it’s presence or absence is just something I note. It doesn’t have diagnostic value.”

Defense counsel did not object to any of the questions posed to the expert. On cross-examination, he brought out that the expert had testified only 20 times for the defense, and was not a physician, psychologist or Ph.D.; that CSAAS referred to a broad range of behaviors; that every case was different; that the expert knew nothing about the facts of this case, and, in particular, had never met, interviewed or had any discussions with the boy, his mother or anyone else in his family; and that he did not know whether the boy's allegations were true.

When defense counsel questioned whether the allegations might have been something the boy "made up" and "may never have happened," the expert replied "I don't know." The following questions and answers ensued:

"Q. And in many of the cases that you have seen children do make up these allegations from time to time, do they not?

"A. Well, you use the word many, and the answer to that is, no. Because in the 154 cases that I did for the Department of Social Services, we had 4 cases where the allegations were unfounded.⁶

"Q. But whether or not the allegations are unfounded in this case, you don't know?

"A. That is correct, I don't.

"Q. Whether there was any motive for this young man to make up a story, you don't know?

"A. I don't know anything about the case.

"Q. Whether he has some problem with his mother that would have caused this to happen you don't know, true?"

At this juncture, the prosecutor objected; the judge ruled that defense counsel could "make his point."

6. When describing his education, training and experience, the expert mentioned that he had treated 154 "perpetrators of sexual offenses." Defense counsel having provoked a damaging answer on cross-examination about the incidence of false claims, the prosecutor followed up on redirect examination. She elicited testimony from the expert that three of these false claims occurred in the context of divorces where the children had been coached, and the remaining case involved an adolescent female who was trying to get her father to pay attention to her in this "very misguided" way. Defense counsel did not object.

Defense counsel next reviewed with the expert his testimony that young children might return to the scene of their sexual abuse for various reasons, and asked if a child might return because no abuse had, in fact, taken place. The expert answered that “[a] youngster could go back for that reason,” and that he didn’t know “this child’s state of mind.” Defense counsel then added “Because all you have talked about here today are generalizations from these studies, right?” The expert agreed. Defense counsel concluded “And you don’t know anything specific about this case, what any motivations were or whether this young man was truthful or not, correct?” and the expert agreed “That’s correct. That’s the job of the jury.”

C. Discussion

Defendant maintains that the trial judge improperly admitted the expert’s testimony regarding CSAAS because it bolstered the boy’s credibility to prove that the abuse, in fact, occurred. This is not the first time we have dealt with this type of bolstering argument, or a close variation of it. In *People v Keindl* (68 NY2d 410 [1986]), the defendant was convicted of 26 counts of sodomy, sexual abuse and endangering the welfare of his stepchildren. He contended that the trial court erred in admitting the testimony of a psychiatrist, “presented to explain how children who have been repeatedly sexually abused by their stepfather[] [were] likely to suffer psychologically,” because such testimony would go to the “ultimate question” of the defendant’s guilt of endangering the welfare of a child, which was “within the province of the jury to decide and [was] not a subject matter beyond the ken of the ordinary juror” (*id.* at 422).

We disagreed, concluding that

“[f]or the Trial Judge to have ruled that the range of psychological reactions of child victims who suffer from sexual abuse at the hands of their step-parents is not a subject within the ken of the typical juror, and therefore may be addressed by expert testimony, cannot be said to be an abuse of discretion as a matter of law” (*id.*).

In *Keindl*, the defendant (as was the case here) had attempted to discredit the children by evidence that they had not promptly complained of the crimes (*see People v Taylor*, 75 NY2d 277, 288 [1990]).

In *Matter of Nicole V.* (71 NY2d 112 [1987]), the child made statements to her therapist describing sexual abuse by her

father. In addition to relating the child's hearsay statements describing incidents of sexual abuse, the therapist also testified that the child's behavior was symptomatic of a sexually abused child. The father contended that this opinion testimony was not corroborative within the meaning of Family Court Act § 1046 (a) (vi), which provides that a child's out-of-court statements may be corroborated by any other evidence tending to support their reliability. Citing *Keindl*, we observed that "[t]he psychological and behavioral characteristics and reactions typically shared by victims of abuse in a familial setting are not generally known by the average person and the courts have become increasingly more receptive to admitting expert testimony on the subject" (*id.* at 120). Additionally, we remarked that "such evidence has been accepted by us," referring to *Keindl*, "and by courts of other jurisdictions, *even in criminal cases, either to bolster credibility of infant victims or to corroborate the victim's testimony*" (*id.* at 121 [citations omitted; emphasis added]).

In *Taylor* and *People v Banks* (75 NY2d 277 [1990]), two cases decided together, we explored the proper and improper uses of expert testimony regarding rape trauma syndrome, affirming the conviction and sentence in *Taylor* and reversing in *Banks*. This case is relevant because we analogized this type of expert behavioral testimony to CSAAS, citing *Nicole V.* and *Keindl*. In *Taylor*, the complainant first told the police that she did not know who her attacker was, but then revealed to her mother that her attacker was the defendant, whom she had known for years. The expert—who had not examined the witness and was therefore not reflecting on her behavior specifically—testified "on the specifics of rape trauma syndrome[,] explain[ing] why the complainant might have been unwilling during the first few hours after the attack to name the defendant as her attacker where she had known [him] prior to the incident" (*id.* at 283). Second, the expert testified that "it was common for a rape victim to appear quiet and controlled following an attack, [which] responded to evidence that the complainant had appeared calm after the attack and tended to rebut the inference that because she was not excited and upset . . . , it had not been a rape" (*id.*). We ruled that this expert evidence was "relevant to dispel misconceptions that jurors might possess regarding the ordinary responses of rape victims in the first hours after their attack" (*id.* at 293).

In *Banks*, an 11-year-old girl claimed that the defendant had raped and sodomized her. Both the complainant and her

grandmother testified that after this alleged incident, the girl had suffered from nightmares and cold sweats in the middle of the night, had been afraid to return to school, had become fearful and had been running and staying away from home. The prosecution's expert then testified "hypothetically that the kind of symptoms demonstrated by the complainant were *consistent with a diagnosis* of rape trauma syndrome" (*id.* at 285 [emphasis added]). We reversed because

"[u]nlike *Taylor*, the evidence was not offered to explain behavior exhibited by the victim that the jury might not understand; instead, it was offered to show that the behavior that the complainant had exhibited after the incident was consistent with a set of symptoms commonly associated with women who had been forcibly attacked. The clear implication of such testimony would be that because the complainant exhibited these symptoms, it was more likely than not that she had been forcibly raped" (*id.* at 284).

We commented that although we had "accepted that rape produces identifiable symptoms in rape victims, we [did] not believe that evidence of the presence, or indeed of the absence, of those symptoms necessarily indicate[d] that the incident did or did not occur" (*id.* at 293); and emphasized that this type of evidence may not be introduced to show that a crime took place.

The defendant in *Carroll* was convicted of first-degree rape and first-degree sexual abuse. His appeal challenged the legal sufficiency of the proof supporting the rape convictions as well as evidentiary rulings, including the trial court's preclusion of a police-recorded audiotape of the defendant's conversation with the complainant, his stepdaughter. We agreed that the evidence was legally insufficient to sustain the rape convictions and that the complained-of evidentiary ruling was an abuse of discretion "result[ing] in a trial that was decidedly skewed in the People's favor" (*Carroll*, 95 NY2d at 387 [citation and internal quotation marks omitted]). Accordingly, we reversed the Appellate Division's order sustaining the defendant's convictions, dismissed the counts of the indictment charging rape, and ordered a new trial on the counts charging sexual abuse.

In light of the retrial, we addressed the defendant's objections to expert testimony explaining CSAAS. Citing *Keindl* and *Taylor*, we noted that

“[w]e have long held that expert testimony regarding rape trauma syndrome, abused child syndrome or similar conditions may be admitted to explain behavior of a victim that might appear unusual or that jurors may not be expected to understand. In [Keindl], expert testimony was permitted to rebut defendant’s attempt to impair the credibility of [sexually abused children] by evidence that they had not promptly complained of the abuse. Here, the People properly offered [the expert’s] testimony for the purpose of instructing the jury about possible reasons why a child might not immediately report incidents of sexual abuse” (id. [citations and internal quotation marks omitted; emphases added]).

We pointed out that the expert “did not attempt to impermissibly prove that the charged crimes occurred,” and that he “referred to [CSAAS] only generally insofar as it provides an understanding of why children may delay in reporting sexual abuse,” and

“never opined that [the] defendant committed the crimes, that [the] defendant’s stepdaughter was sexually abused, or even that her specific actions and behavior were consistent with such abuse. In fact, [the expert] had not interviewed either [the] defendant or his stepdaughter and was not aware of the facts of this case” (*id.* [citations omitted]).⁷

Here, there was no way for defendant to achieve an acquittal if the jury believed the boy because there was no way that the boy might have been honestly mistaken about defendant’s conduct; put another way, for defendant to succeed at trial, the jurors had to conclude that the boy was likely deliberately lying. And so from the beginning, defendant attacked the boy’s credibility, principally on the basis that he neglected to report the

7. The only other cases cited by the dissenting opinion are *People v Ciccio* (47 NY2d 431 [1979]) and *People v Mercado* (188 AD2d 941 [3d Dept 1992]). The facts in *Ciccio* are quite different from the facts here or in any of the other cases discussed: a detective gave “‘opinion’ evidence . . . that many hijackings occur as the victim had related” (47 NY2d at 439). *Mercado* was a case much like *Banks*. The defendant was accused of abusing his two stepchildren, and a social worker who had examined the two children testified that their behavior was “consistent” with the way abuse victims comport themselves. The court concluded that this testimony was impermissible, requiring reversal, but that “[t]o the extent that the expert testimony was directed to the issue of timely reporting, it was properly admitted” (188 AD2d at 943 n).

alleged abuse promptly and continued to associate with defendant after the abuse was claimed to have taken place. Defense counsel in his opening statement emphasized the boy's lengthy silence, the six or seven years when he said nothing "to his mother, to his father, to his grandmother . . . to a teacher at school, to a counselor at school . . . to any friend." He followed up by describing the several occasions after the fall of 2000 and before May of 2006 when the boy visited defendant's house or went on outings with him. Defense counsel's cross-examination of the boy similarly zeroed in on the delay in reporting and the boy's continued association with defendant after the alleged molestations.⁸

8. To complete the circle, defense counsel in his closing argument detailed several so-called "unanswered questions," including "[W]hy would that young man go back and return to [defendant's house] time after time if what he says happened happened?" and "[W]hy was there such a long delay, . . . some 6 or 7 years before the young man said anything?" He asked for, and received, the following instruction from the trial judge related to the boy's delay in reporting:

"There is another consideration that I want to mention to you. *That's a word about [the boy's] failure to promptly complain. Obviously, that's been raised throughout this proceeding.* The defendant contends that the failure of [the boy] to complain to family members, school personnel or law enforcement until approximately 6 or 7 years following the events of March '99 through November of 2000 should be considered by you in assessing the credibility of [the boy]. With reference to the time when [the boy] first complained to his mother . . . it is for you, the jury, to determine whether or not such complaint was made within a reasonable time or was in fact unreasonably delayed. Either circumstance may be considered by you as a jury as bearing upon the credibility of the complainant. Your evaluation of [the] time in which the complaint was made must be considered in light of all of the surrounding circumstances, particularly including, but not limited to, the opportunity of the complainant to make the complaint. Among other factors that you may wish to consider would be the complainant's age, past experiences, mental state, fear for his own safety or the safety of others in the household or the lack of such fear. You may also wish to consider the circumstances that motivated the complainant and any and all other circumstances which you may find operated to trigger a delayed disclosure. Whatever weight is to be given to the circumstances is entirely in your hands" (emphasis added; see CJI2d[NY] Prompt Outcry).

At defense counsel's request, the trial judge also gave the standard expert witness charge (see CJI2d[NY] Expert Witness). He added that "Basically, . . . opinions of expert witnesses are subject to the same rules and tests concerning reliability as the testimony of any other witness."

[2] In this context, the trial judge did not abuse his discretion when he allowed the expert to testify about CSAAS to rehabilitate the boy's credibility. The expert stressed that CSAAS was not a diagnosis; rather, it describes a range of behaviors observed in cases of validated child sexual abuse, some of which seem counterintuitive to a layperson. He confirmed that the presence or absence of any particular behavior was not substantive evidence that sexual abuse had, or had not, occurred. He made it clear that he knew nothing about the facts of the case before taking the witness stand; that he was not venturing an opinion as to whether sexual abuse took place in this case; that it was up to the jury to decide whether the boy was being truthful. In short, defendant staked his defense on the proposition that the boy's behavior, as demonstrated by the evidence, was inconsistent with having been molested; the legitimate purpose of the expert's testimony was to counter this inference. And in the end, the jury obviously believed the boy and disbelieved defendant, who never offered the jurors a motive for the boy to fabricate a report of sexual abuse.

As the discussion of our decisions in *Keindl*, *Nicole V.*, *Taylor*⁹ and *Carroll* shows, we have “long held” evidence of psychological syndromes affecting certain crime victims to be admissible for the purpose of explaining behavior that might be puzzling to a jury (*see Carroll*, 95 NY2d at 387). Indeed, the majority of states “permit expert testimony to explain delayed reporting, recantation, and inconsistency,” as well as “to explain why some abused children are angry, why some children want to live with the person who abused them, why a victim might appear ‘emotionally flat’ following sexual assault, why a child might run away from home, and for other purposes” (*see* 1 Myers on Evidence § 6.24, at 416-422 [collecting cases and noting that Kentucky, Pennsylvania and Tennessee are the only apparent exceptions]).

Defendant complains that the expert's testimony was not adequately constrained because certain of the hypothetical questions too closely mirrored the boy's circumstances and therefore

9. In *Nicole V.* we called CSAAS “a recognized diagnosis” (71 NY2d at 120); and in *Taylor*, we repeated this passage from *Nicole V.* (75 NY2d at 288). As our opinion in *Taylor* establishes, though, CSAAS is *not* a diagnosis in the sense that the presence of a CSAAS behavior proves child sexual abuse (*see* 1 Myers on Evidence in Child Domestic and Elder Abuse Cases § 6.20, at 408-411 [successor edition to Evidence in Child Abuse and Neglect Cases (3d ed 1997)] [2005] [hereafter, Myers on Evidence] [explaining the difference between diagnostic and nondiagnostic syndromes]).

improperly bolstered or vouched for his credibility so as to prove that the charged crimes occurred. To the extent defendant now complains of specific questions, his argument is not preserved because the questions were not objected to at trial. As a whole, the expert's testimony certainly supported the boy's credibility by supplying explanations other than fabrication for his post-molestation behavior. It was offered, after all, for purposes of just such rehabilitation. But as already discussed, the expert did not express an opinion on the boy's credibility. Early on in his testimony he disavowed any intention of giving an opinion about whether the boy was a victim of sexual abuse. And the jurors could not have become confused on this score since it was made plain to them that the expert could not, in fact, even possess an opinion about the boy's credibility: he had never talked to the boy and was ignorant of the particulars of his allegations; he did not know, for example, that the boy waited six or seven years to claim sexual abuse (the subject of one of the complained-of hypothetical questions) until defense counsel informed him of this on cross-examination. We note that in *Taylor*, the expert, who similarly had not interviewed the complainant before the trial and was not therefore testifying about her behavior as such, offered testimony about conduct that closely resembled the facts of that case (*see supra* at 461).

[3] Defendant also attacks the scientific reliability of CSAAS, citing the Second Circuit's decision in *Gersten v Senkowski* (426 F3d 588 [2d Cir 2005]). Referring to an expert's affidavit in support of the petitioner's federal petition for a writ of habeas corpus, the court declared in *Gersten* that "[i]t would appear" that CSAAS "lacked any scientific validity for the purpose for which the prosecution utilized it: as a generalized explanation of children's reactions to sexual abuse, including delayed disclosure" (*id.* at 611). While we have no way of knowing whether the record in *Gersten* justified the Second Circuit's conclusions about CSAAS, the record here does not support a similar result.

Defense counsel in this case disputed the scientific reliability of CSAAS in the motion in limine, quoting from a review written by London and colleagues, critics of CSAAS; however, the quoted passage does not question the empirical basis for delayed reporting (*see supra* at 454-455; *see also* Thomas D. Lyon, *Scientific Support for Expert Testimony on Child Sexual Abuse Accommodation*, in *Critical Issues in Child Sexual Abuse: Historical, Legal, and Psychological Perspectives*, at 107, 108 [2002]

[“Observational research demonstrates that a substantial proportion of abused children either delay reporting or fail to report their abuse”]; John E. B. Myers, *Expert Testimony in Child Sexual Abuse Litigation: Consensus and Confusion*, 14 UC Davis J Juv L & Pol’y 1, 44 [2010] [“Psychological research demonstrates that delayed reporting is common among sexually abused children”]).¹⁰ Rather, London and colleagues have reservations about the prevalence of denial and recantation, aspects of CSAAS not at issue in this case (*see* London 2007 at 12-13 [“(A)lthough a substantial proportion of children delay reporting or altogether fail to report incidents of child sexual abuse (the secrecy stage), there is little evidence to suggest that denials, recantations, and redisclosures are typical when the abused children are directly asked about abuse during forensic interviews”])).

III.

Finally, we conclude that the record is insufficient to permit our review of defendant’s claim of ineffective assistance of counsel, which he may raise in a CPL 440.10 motion; his remaining claims have been considered and are without merit.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (dissenting). This trial concerned events occurring between seven and eight years earlier, as to which no physical evidence could be produced. Defendant did not admit to any unlawful conduct; nor was there any other direct evidence linking him to the crimes. The case, therefore, was essentially a credibility contest between complainant and defendant. The prosecutor thereupon took several steps to improperly and prejudicially bolster the credibility of complainant, as a result of which defendant was deprived of a fair trial. Accordingly, I would reverse and remit to County Court for a new trial.

After complainant reported the alleged sexual abuse to his mother, his physical examination was conducted by a nurse-

10. And while London and colleagues assert that CSAAS does not in the main comport with *Daubert* (*see supra* at 454-455), this does not necessarily mean, even if true, that CSAAS is not generally accepted as reliable in the relevant scientific community (*see e.g.* London 2007 at 12 [“The CSAA (child sexual abuse accommodation) model has been endorsed by many clinicians and scholars and has been the basis of clinical and forensic judgments . . . Summit’s (1983) paper . . . was rated by professionals as one of the most influential papers in the field of child sexual abuse”])).

practitioner at the Erie County Child Advocacy Center. Defense counsel sought to preclude the nurse-practitioner's testimony for several reasons, including that it would constitute improper bolstering of the complainant's testimony and that it would be prejudicial to defendant. In response to an inquiry by the court, the prosecutor indicated that the testimony was being offered for several reasons. Notably, the prosecutor stated that, among other things, the nurse-practitioner would testify to:

“her observations of the child's demeanor, his accelerated heart rate, his flushed face, his downcast eyes, everything that would relate to his credibility to rebut a potential defense of fabrication here.

“So in other words, when the nurse is asking him she's documenting things in the chart that are certainly relevant not only to her diagnosis but in the broader sense to his credibility as a witness because she's showing that he's embarrassed, he['s] flustered, et cetera, and that she's actually looking for lesions.”

I agree with the majority that those portions of the nurse-practitioner's testimony that were relevant to diagnosis and treatment were properly admitted. For example, testimony concerning complainant's account of what had happened to him, the extent of the ensuing physical examination, the absence of any lesions or other visible signs of sexual abuse on complainant's body and the significance of such absence were all properly admitted as relevant to diagnosis and treatment (*see People v Ortega*, 15 NY3d 610, 617 [2010]).

The same cannot be said about the nurse-practitioner's testimony concerning complainant's demeanor during the examination. The nurse-practitioner testified that when complainant related what had happened to him, “[h]e was embarrassed, downcast eyes, flushed face.” She indicated that she had recorded these details “[b]ecause they were definitely significant when I saw them. He was embarrassed.” The nurse-practitioner further testified that complainant's elevated heart rate during the examination indicated to her that “[h]e was nervous.”

Complainant's embarrassment or nervousness attending the examination had no medical significance whatsoever. The majority's purported justification for the elicitation of this testimony—that it was relevant to whether some type of counseling or therapy would be required (majority op at 451-

452)—is pure invention. To the contrary, the prosecution was perfectly blunt about why the testimony as to complainant’s demeanor was being offered: it was for credibility purposes. The nurse-practitioner’s testimony on this point was not relevant to diagnosis and treatment and its admission on that basis was error.

Furthermore, in this situation the error cannot be considered harmless. “[U]nless the proof of the defendant’s guilt, without reference to the error, is overwhelming, there is no occasion for consideration of any doctrine of harmless error” (*People v Crimmins*, 36 NY2d 230, 241 [1975]). As noted, the People’s case rested almost entirely on the credibility of the alleged victim. It was therefore blatantly improper and prejudicial to use the testimony of a medical professional to bolster complainant’s testimony in this manner.

Moreover, the error was egregiously compounded by the scope of the expert testimony on child sexual abuse accommodation syndrome (CSAAS). Prior to trial, defense counsel sought to preclude the CSAAS expert’s testimony for two reasons. Counsel argued, first, that the subject matter of the expert’s testimony—that children often delay reporting abuse—was not outside the ken of the average juror. In addition, counsel asserted that the expert’s testimony would be “overwhelmingly prejudicial and unfair” because the jury would inevitably draw the conclusion that complainant had been abused because he fit within the pattern of behavior recognized by CSAAS. The request was denied and the prosecutor proceeded to ask the expert, in hypothetical terms, about virtually every detail in the case.

Several aspects of complainant’s testimony were later raised with the CSAAS expert. Specifically, during his direct testimony, complainant detailed his sexual abuse by a family member—his mother’s second cousin. Complainant also related two incidents where he and his young friends had touched each other’s penises, which complainant explained was, at least in part, because he was repeating behavior that had been done to him by defendant. Complainant further testified that what ultimately convinced him to tell his mother about the sexual abuse was a video about catching on-line predators that he had watched with his eighth grade computer tech class. Additionally, on cross-examination, complainant testified that his memory had improved as the years passed. Complainant also testified that he was not afraid to return to defendant’s house after the alleged abuse, but rather that he wanted to go to the house and had fun when he was there.

The expert testified after the jury had heard complainant's version of events. In response to the prosecution's questions, the expert testified that abuse by a stranger was rare; a child was more likely to be abused by a person he knows and the child's feelings of helplessness would be enhanced if the abuser were a trusted adult who was close to the child's mother. The expert also testified that he had seen children become hypersexualized and use sexuality as a coping mechanism. In response to a question about a child's willingness to return to the scene of the abuse, the expert testified that the child could convince himself that the abuse would not happen again and that the child could be willing to spend time with the abuser because he would want to repeat any positive experiences he had with that person. The expert also testified that boys were "far more likely to delay" reporting sexual abuse and that any period of delay was likely to be far longer than for girls—specifically, that a delay of six or seven years would not be unusual. The expert also responded in the affirmative to the prosecutor's query as to whether "an educational component about the awareness of sexual abuse [could] be a triggering event" for the disclosure of abuse. Finally, the expert testified that a child's memory could actually improve and that more details could come to mind after the child disclosed the abuse.*

"[E]xpert opinion is proper when it would help to clarify an issue calling for professional or technical knowledge, possessed by the expert and beyond the ken of the typical juror" (*People v Taylor*, 75 NY2d 277, 288 [1990] [citation omitted]). However, where "the sole reason for questioning the 'expert' witness is to bolster the testimony of [the complainant] by explaining that his version of the events is more believable than the defendant's, the 'expert's' testimony is equivalent to an opinion that the defendant is guilty, and the receipt of such testimony may not be condoned" (*People v Ciaccio*, 47 NY2d 431, 439 [1979]). Although we have recognized that CSAAS can be used for the purpose of explaining behavior by a complainant that might appear unusual to the average juror—such as why a child might not immediately report sexual abuse—we have contrasted the permissible use of such testimony with testimony that opines that complainant's "behavior [was] consistent with such abuse" (*People v Carroll*, 95 NY2d 375, 387 [2000]; see also *People v*

* On cross and redirect, the expert even managed to inform the jury that in his experience of 154 cases, he had seen only four instances of false allegations, three of them in the context of divorce battles.

Mercado, 188 AD2d 941, 942 [3d Dept 1992] [expert’s testimony “constitute(d) an impermissible comparison of the complainants’ behavior with that commonly associated with victims of these crimes”]).

Even though the expert did not expressly render an opinion as to whether or not complainant was a victim of sexual abuse, the expert’s confirmation of nearly every detail of the case and of complainant’s behavior as consistent with that of a victim of sexual abuse was the functional equivalent of rendering an opinion as to complainant’s truthfulness (*see Ciacchio*, 47 NY2d at 439). The expert’s testimony had the effect of improperly bolstering complainant’s testimony and, in the context of this case, was extremely prejudicial.

As noted above, this was a case where the credibility of the parties was the key issue facing the jury. Each of the errors, in bolstering complainant’s testimony with the nurse-practitioner’s perception of his demeanor and the CSAAS expert’s validation of his behavior as consistent with that of a victim of sexual abuse, and certainly their cumulative effect, deprived defendant of a fair trial.

Judges GRAFFEO, SMITH and PIGOTT concur with Judge READ; Chief Judge LIPPMAN dissents and votes to reverse in a separate opinion in which Judges CIPARICK and JONES concur.

Order affirmed.

[947 NE2d 135, 922 NYS2d 244]

LORI ALBUNIO et al., Respondents, v CITY OF NEW YORK et al.,
Appellants.

ROBERT SORRENTI, Plaintiff, v CITY OF NEW YORK et al., Appel-
lants.

Argued February 10, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 5, 2009. The Appellate Division order, insofar as appealed from, affirmed (1) a judgment of the Supreme Court, New York County (Martin Shulman, J.; *see* 17 Misc 3d 1102[A], 2007 NY Slip Op 51796[U]), entered after a jury trial, which awarded plaintiff Lori Albunio the total sum of \$579,728.83 and plaintiff Thomas Connors the total sum of \$588,113.45 against defendant City of New York, and (2) a judgment of that court, which awarded attorney's fees to counsel for plaintiffs Albunio and Connors. The following question was certified by the Appellate Division: "Was the order of this Court, to the extent that it affirmed the judgments of Supreme Court, properly made?"

Albunio v City of New York, 67 AD3d 407, affirmed.

HEADNOTES

Civil Rights — Discrimination in Employment — Retaliation against Employee Who Opposed Discrimination

1. Sufficient evidence supported a jury verdict finding that plaintiff, a member of the New York City Police Department, was subjected to retaliation by defendant commanding officer where plaintiff suffered a number of adverse employment actions after filing a complaint on behalf of another member of the police department alleging discrimination on the basis of his perceived sexual orientation. The New York City Human Rights Law, which makes it an unlawful discriminatory practice to retaliate against any person who has opposed discrimination based on a person's perceived sexual orientation (Administrative Code of City of NY § 8-107 [1] [a]; [7]), must be construed broadly in favor of discrimination plaintiffs (*see* Administrative Code § 8-130). Applying a broad interpretation of the word "opposed" to plaintiff's claim, the evidence supported a finding that he opposed discrimination against the other department member. Defendants conceded that the filing of the discrimination complaint was a protected activity. Given the evidence that plaintiff was contacted about the complaint by someone who worked directly for the commanding officer identified in the complaint, the jury could have found that the commanding officer knew of the complaint and that plaintiff was thereafter subjected to undesirable changes to his geographical assignments and hours of

work, shunning by the commanding officer and his subordinates and a transfer to a less desirable job than he had expected.

Civil Rights — Discrimination in Employment — Retaliation against Employee Who Opposed Discrimination

2. Sufficient evidence supported a jury verdict finding that plaintiff, a captain in the New York City Police Department, “opposed” defendant commanding officer’s discrimination against a fellow officer on the basis of his perceived sexual orientation and was subjected to retaliation in violation of Administrative Code of City of NY § 8-107 (7). The New York City Human Rights Law, which makes it an unlawful discriminatory practice to retaliate against any person who has opposed discrimination based on a person’s perceived sexual orientation (Administrative Code of City of NY § 8-107 [1] [a]; [7]), must be construed broadly in favor of discrimination plaintiffs (*see* Administrative Code § 8-130). Here, there was evidence that plaintiff recommended the fellow officer for a position and the commanding officer made statements which plaintiff perceived to be discriminatory. Upon being confronted with the accusation that she utilized poor judgment in requesting that individual, plaintiff verbally defended the recommendation by stating that she thought the fellow officer was the better candidate for the job and that she would recommend him again. Thereafter plaintiff was forced into a less desirable job assignment. Applying a broad interpretation of the word “opposed” to plaintiff’s claim, the evidence supported a finding that she opposed discrimination against the fellow officer, notwithstanding that she neither filed a discrimination complaint nor explicitly accused anyone of discrimination before her forced transfer. While plaintiff did not say that the fellow officer was a discrimination victim, the jury could have found that both she and her commanding officer knew that he was, and that plaintiff made clear her disapproval of that discrimination.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Job Discrimination §§ 214, 222, 223, 234, 240, 244–250.

NY JUR 2d, Civil Rights §§ 11, 32, 39, 210, 211.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination; Retaliation and Revenge.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: retaliat! /p oppos! /3 discrim! & evidence /3 suffic!

POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (Julie Steiner and Barry P. Schwartz of counsel), for appellants. I. As a matter of law, neither plaintiff Lori Albunio nor plaintiff Thomas Connors engaged in protected opposition activity when

they advocated for fellow police officer plaintiff Robert Sorrenti's transfer. That is because Albunio and Connors failed to directly or indirectly communicate to defendant James Hall their beliefs that he was discriminating against Sorrenti based on his perceived sexual orientation. Both Albunio and Connors kept their beliefs to themselves and only supported Sorrenti's transfer because they believed he was the better more qualified candidate for the position. (*Forrest v Jewish Guild for the Blind*, 3 NY3d 295; *Koester v New York Blood Ctr.*, 55 AD3d 447; *Rucker v Higher Educ. Aids Bd.*, 669 F2d 1179; *Womack v Munson*, 619 F2d 1292; *Tidwell v American Oil Co.*, 332 F Supp 424; *Mariotti v Alitalia-Line Aeree Italiane-Societa per Azioni*, 2008 NY Slip Op 32160[U]; *Barber v CSX Distrib. Servs.*, 68 F3d 694.) II. Even after plaintiffs Lori Albunio and Thomas Connors engaged in protected opposition activity when they subsequently filed their Office of Equal Employment Opportunity complaints, neither demonstrated that, as a result, they suffered any adverse employment action. As such, both Albunio and Connors failed, as a matter of law, to support their retaliation claims.

Law Offices of Mary D. Dorman, New York City (Mary D. Dorman and Paul O'Dwyer of counsel), for respondents. I. Lori Albunio and Thomas Connors engaged in protected opposition conduct when they continued to advocate for Robert Sorrenti's transfer even after James Hall made clear to them that he would not approve the transfer because of Sorrenti's perceived sexual orientation. (*Rucker v Higher Educ. Aids Bd.*, 669 F2d 1179; *Womack v Munson*, 619 F2d 1292; *Tidwell v American Oil Co.*, 332 F Supp 424; *Mariotti v Alitalia-Line Aeree Italiane-Societa per Azioni*, 2008 NY Slip Op 32160[U]; *Barber v CSX Distrib. Servs.*, 68 F3d 694; *Fogleman v Mercy Hosp.*, 283 F3d 561.) II. Lori Albunio engaged in protected activity when she was identified in and testified in support of Robert Sorrenti's Office of Equal Employment Opportunity (OEEO) complaint, filed her own OEEO complaints, and as a result, suffered acts reasonably likely to deter a person from engaging in protected activity. (*Gonzalez v Bratton*, 147 F Supp 2d 180; *Hashimoto v Dalton*, 118 F3d 671; *Equal Empl. Opportunity Commn. v L.B. Foster Co.*, 123 F3d 746; *Hillig v Rumsfeld*, 381 F3d 1028; *Forrest v Jewish Guild for the Blind*, 3 NY3d 295; *Koester v New York Blood Ctr.*, 55 AD3d 447.) III. Thomas Connors engaged in protected activity when he filed an Office of Equal Employment Opportunity (OEEO) complaint on behalf of Robert Sorrenti and filed two subsequent OEEO complaints against James Hall and others for retaliation. (*Hicks v Baines*, 593 F3d 159; *Ray v*

Henderson, 217 F3d 1234; *Bryant v Begin Manage Program*, 281 F Supp 2d 561; *Burlington N. & S. F. R. Co. v White*, 548 US 53.)

OPINION OF THE COURT

SMITH, J.

A jury found that two members of the New York City Police Department, Captain Lori Albunio and Lieutenant Thomas Connors, were subjected to retaliation because they opposed discrimination against a third member of the department, Sergeant Robert Sorrenti, on the basis of Sorrenti's perceived sexual orientation. We hold that there is sufficient evidence in the record to support the verdict.

I

Albunio was commanding officer of the Youth Services Section of the Police Department. Connors was operations coordinator of the section, and reported to Albunio. Sorrenti, then serving in another command, applied in 2001 to be transferred into the Youth Services Section. Albunio interviewed him, and was favorably impressed; when a position opened in April 2002 in a Youth Services program known as DARE, in which police officers educate New York City school children about the dangers of drugs, she requested that Sorrenti be chosen to fill the vacancy. The request was submitted to Inspector James Hall, who had recently become commanding officer of Community Affairs, and Albunio's immediate supervisor. Hall decided to interview Sorrenti himself, and did so, with Albunio present, on May 13, 2002.

From this point on, the facts were sharply disputed at trial, but the jury could have found the following: At the May 13 interview, Hall asked Sorrenti whether he was married, and whether he had children. He also questioned Sorrenti aggressively about Sorrenti's relationship with another male police officer to whom Sorrenti had loaned money, saying loudly, among other things: "You were more than just friends." Sorrenti became visibly uncomfortable with the questions. After the interview, Hall told Albunio "that there was something not right about that guy." Hall later chose another person for the open position with DARE, telling Albunio that he "found out some fucked up shit about Sorrenti and . . . wouldn't want him around children." Albunio's interpretation of this statement was: "[T]he guy must think the guy is gay and for some reason doesn't want him around kids."

In June or July of 2002, Hall called Connors into Hall's office and began to speak to him about Sorrenti, angrily and with the use of many expletives. He talked about Sorrenti's loan to his fellow officer, saying "[there] must be more between this cop and Sergeant Sorrenti," and added that he "wouldn't be able to sleep at night knowing that Sorrenti is going to be working around kids." Connors responded that he thought Sorrenti "would be more than qualified to work around kids" and showed Hall a favorable evaluation Sorrenti had received. Connors inferred from the conversation that Hall "believed that Sergeant Sorrenti was a child molester and homosexual."

In the fall of 2002, Albinio began to hear rumors that she would be removed from the command of the Youth Services Section. She asked for a meeting to discuss this subject with Hall's superior, Deputy Commissioner Frederick Patrick. The meeting took place on October 31, and Hall was present at it with Patrick.

At the October 31 meeting, Patrick confirmed that he and Hall "were contemplating" replacing Albinio, to which she responded: "[W]hy am I losing my command?" Hall interjected to say that Albinio "utilized poor judgment when requesting personnel," citing Sorrenti as the primary example. Albinio told Hall that "Sorrenti was the better candidate," adding: "If I had to do it all again, I would have recommended Sorrenti again." Albinio was told that it would be in her best interest to find another assignment, which she soon did—an assignment much less desirable than the one she left.

Albinio told Connors that she had been directed to go elsewhere. Connors, on November 8, 2002, filed a complaint with the Police Department's Office of Equal Employment Opportunity alleging that Hall had discriminated against Sorrenti because of Sorrenti's perceived sexual orientation. Soon after that, Connors was contacted about the complaint by someone who worked directly for Hall, leading Connors to believe that Hall knew of Connors's accusation. Connors put in for a transfer from the Youth Services Section, believing that with Albinio's forced departure "[t]he writing was on the wall for me." During his remaining time with Youth Services, he suffered a number of adverse employment actions: geographical assignments and hours of work were changed in ways he did not like; and he was shunned and excluded from meetings by Hall and Hall's other subordinates. When his transfer finally came through, he got a less desirable job than he had expected.

Albunio and Connors brought this action against the City, Hall and Patrick, alleging violations of the anti-retaliation section of the New York City Human Rights Law, New York City Administrative Code § 8-107 (7). (Sorrenti also brought a discrimination lawsuit, which was tried with Albunio's and Connors's case, but which is not involved in this appeal.) The jury found that the City and Hall had retaliated against both plaintiffs, and awarded damages. A judgment was entered on the verdict (17 Misc 3d 1102[A], 2007 NY Slip Op 51796[U]), which the Appellate Division affirmed, with one Justice dissenting as to Albunio (67 AD3d 407 [2009]). The Appellate Division granted leave to appeal to this Court, and we now affirm.

II

New York City Administrative Code § 8-107 (7) says, in relevant part: "It shall be an unlawful discriminatory practice . . . to retaliate or discriminate in any manner against any person because such person has . . . opposed any practice forbidden under this chapter."

The dispositive question on this appeal is whether the record supports the jury's finding that Albunio and Connors "opposed" discrimination against Sorrenti on the basis of Sorrenti's perceived sexual orientation (a practice forbidden by Administrative Code § 8-107 [1] [a]). In answering this question, we must be guided by the Local Civil Rights Restoration Act of 2005 (LCRRA), enacted by the City Council "to clarify the scope of New York City's Human Rights Law," which, the Council found "has been construed too narrowly to ensure protection of the civil rights of all persons covered by the law" (Local Law No. 85 [2005] of City of NY § 1). The LCRRA, among other things, amended Administrative Code § 8-130 to read:

"The provisions of this title [i.e., the New York City Human Rights Law] shall be construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof, regardless of whether federal or New York State civil and human rights laws, including those laws with provisions comparably-worded to provisions of this title, have been so construed."

The application of the LCRRA provision to this case is clear: we must construe Administrative Code § 8-107 (7), like other provisions of the City's Human Rights Law, broadly in favor of discrimination plaintiffs, to the extent that such a construction

is reasonably possible. We interpret the word “opposed” according to this principle, and conclude that the evidence supports a finding that both Alburnio and Connors opposed discrimination against Sorrenti.

[1] As to Connors, the case is easy. Connors filed a discrimination complaint on Sorrenti’s behalf; there is evidence from which the jury could find that Hall knew of the complaint; and, after the complaint was filed, Connors was subjected to a series of adverse employment actions. Indeed, defendants, after arguing that neither Alburnio nor Connors engaged in protected activity by advocating Sorrenti’s transfer into the Youth Services Section, concede that the filing of Connors’s discrimination complaint in November 2002 was protected. Thus, as to Connors, defendants effectively give the case away, making only a perfunctory—and meritless—argument that the jury could not find that the actions taken against Connors were the result of his protected activity, or that they were adverse.

As to Alburnio, the case is closer, because she had neither filed a discrimination complaint nor explicitly accused anyone of discrimination before she was ousted as commanding officer of the Youth Services Section. Indeed, we see nothing in the record to support a finding that Alburnio “opposed” discrimination before her October 31, 2002 meeting with Hall and Patrick. So far as the record shows, Alburnio observed and listened to Hall’s mistreatment of, and unfavorable remarks about, Sorrenti, but uttered no word of protest before October 31.

The record might, it is true, support a finding that, before October 31, Hall was displeased with Alburnio and decided she should be removed from her command because she had recommended an applicant who Hall thought was gay. We do not suggest that, if that happened, Hall’s conduct was either appropriate or legal, but we do not see how it can be called retaliation for opposition to discrimination. There is no evidence that Alburnio knew, when she advocated Sorrenti’s transfer, either that Sorrenti was or would be perceived as gay or that Hall was prejudiced against gay people. If Alburnio was removed for being Sorrenti’s advocate, she could perhaps have proved a violation of Administrative Code § 8-107 (20), which prohibits “discrimination against a person because of the actual or perceived . . . sexual orientation . . . of a person with whom such person has a known relationship or association.” But Alburnio brought no claim under that section of the City Human Rights Law.

[2] Since her claim is limited to retaliation, she can prevail only if she shows that she “opposed” discrimination. She did so, if at all, only at the October 31 meeting.* At that meeting, Albunio reacted to Hall’s criticism of her recommendation of Sorrenti by telling Hall that Sorrenti was the better candidate for the job and that “[i]f I had to do it all again, I would have recommended Sorrenti again.” While she did not say in so many words that Sorrenti was a discrimination victim, a jury could find that both Hall and Albunio knew that he was, and that Albunio made clear her disapproval of that discrimination by communicating to Hall, in substance, that she thought Hall’s treatment of Sorrenti was wrong. Bearing in mind the broad reading that we must give to the New York City Human Rights Law, we find that Albunio could be found to have “opposed” the discrimination against Sorrenti at the October 31 meeting.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs. The certified question is unnecessary and need not be answered.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, FIGOTT and JONES concur.

Order, insofar as appealed from, affirmed, etc.

* Defendants might argue, but have not argued, that by the time of that meeting the decision to remove Albunio from command had already been made. The parties appear to assume, and we accept the assumption, that the jury could find a causal connection between the October 31 meeting and her removal from command.

[947 NE2d 130, 922 NYS2d 239]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAIR
WILLIAMS, Appellant.

Argued February 9, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 21, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Joel M. Goldberg, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted murder in the second degree, and criminal possession of a weapon in the second degree.

People v Williams, 64 AD3d 734, affirmed.

HEADNOTES**Crimes — Verdict — Inconsistent Verdict**

1. The criminal defendant was not entitled to notice and a chance to be heard regarding the trial court's proposed response to the jury's reporting of a verdict inconsistent with the court's instructions before the court addressed the jury. CPL 310.30 applies to specific jury requests for further instruction or information by the court in response to a problem or concern identified by the jury, whereas CPL 310.50 (2) applies when a jury renders a verdict which in form is not in accordance with the court's instructions or is otherwise legally defective. Here, in response to the jury's announcement of its verdict, the court advised that it would not accept the verdict, explained the inconsistencies therein with regard to defendant's state of mind, and directed the jury to resume deliberations. Thus, as the trial court's explanation to the jury was a response to a verdict that was inconsistent with the court's instructions, not a response to a request for further instruction or information, CPL 310.50 (2) governed. The court therefore was not obligated to discuss with counsel its proposed explanation in response to the verdict prior to addressing the jury since the specific statutory duty to give the parties notice of a jury's request imposed upon the court by CPL 310.30 is not present in CPL 310.50 (2). By not including or incorporating CPL 310.30's notice requirement within the text of CPL 310.50 (2), the Legislature made a conscious choice that the notice requirement shall apply only to the court's response to a jury's request for further instruction or information, and not to the court's response to a jury's rendition of an inconsistent or defective verdict.

Crimes — Verdict — Jury Deliberation in Public

2. In a criminal prosecution, the trial court did not cause the jury to deliberate in public by directing the jury foreperson to complete, in open court, a verdict sheet that had not been filled out as to two counts if the jury had reached a verdict on those counts. While settled principles require jurors to deliberate in secret outside the courtroom, there is nothing in the record to suggest that the court's direction called for or encouraged deliberations among

the jurors. Here there was a short 5 to 15 second discussion among jurors after the court asked the foreperson to complete the verdict sheet that had not been filled out as to counts for which defendant was ultimately acquitted; as such, the conversation among the jurors was harmless. Moreover, in directing the jury foreperson to indicate a verdict as to the two overlooked counts, the court asked that the foreperson perform what amounts to a ministerial or clerical act, since CPL 310.50 (3) converts any incomplete counts into acquittals.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Trial §§ 1340, 1341, 1347, 1406, 1507, 1557–1559.

CARMODY-WAIT 2d, Jury Conduct and Deliberation §§ 201:11, 201:19; CARMODY-WAIT 2d, Verdict and Procedures Relating Thereto §§ 202:17, 202:19.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 24.8–24.10.

McKINNEY's, CPL 310.30, 310.50 (2), (3).

NY JUR 2d, Criminal Law: Procedure §§ 2804, 2810, 2820, 2822–2824, 2841, 2846.

ANNOTATION REFERENCE

Inconsistency of criminal verdict as between different counts of indictment or information. 18 ALR3d 259.

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POINTS OF COUNSEL

Appellate Advocates, New York City (Warren S. Landau and Lynn W.L. Fahey of counsel), for appellant. Appellant was denied his rights to due process, a jury trial, and the effective assistance of counsel when, during jury deliberations, the court (a) gave lengthy substantive instructions in response to the jury's first reported verdict without giving the defense advance notice and an opportunity to be heard; (b) delivered a coercive *Allen* charge, exhorting the jurors to eschew emotion and honor their oath; (c) allowed deliberations in open court in response to an incomplete verdict sheet; and (d) in numerous ways, signaled its personal view that appellant should be convicted of murder. (*Mullane v Central Hanover Bank & Trust Co.*, 339 US 306; *Filippon v Albion Vein Slate Co.*, 250 US 76; *People v O'Rama*, 78

NY2d 270; *Curtis v Duval*, 124 F3d 1; *Connecticut v Doeher*, 501 US 1; *Mathews v Eldridge*, 424 US 319; *North Ga. Finishing, Inc. v Di-Chem, Inc.*, 419 US 601; *Matter of Jung [State Commn. on Jud. Conduct]*, 11 NY3d 365; *People v David W.*, 95 NY2d 130; *People v Kisoona*, 8 NY3d 129.)

Charles J. Hynes, District Attorney, Brooklyn (Phyllis Mintz and Leonard Joblove of counsel), for respondent. I. Defendant failed to preserve his claim that the statutory requirement of notice to counsel that applies when a court responds to a jury request for instruction or information also applies when the court responds to a jury's rendition of a defective verdict. In any event, that claim is meritless. (*People v Harris*, 98 NY2d 452; *People v Laraby*, 92 NY2d 932; *People v Padro*, 75 NY2d 820; *People v Patterson*, 39 NY2d 288, 432 US 197; *People v Kelly*, 5 NY3d 116; *People v Antommarchi*, 80 NY2d 247; *People v Ahmed*, 66 NY2d 307; *People v Michael*, 48 NY2d 1; *People ex rel. Battista v Christian*, 249 NY 314; *People v Fleming*, 70 NY2d 947.) II. Defendant failed to preserve his claim that the *Allen* charge was improper. In any event, the claim is without merit. (*People v Tonge*, 93 NY2d 838; *People v Tevaha*, 84 NY2d 879; *People v Pagan*, 45 NY2d 725; *People v Hoke*, 62 NY2d 1022; *People v Kisoona*, 8 NY3d 129; *People v Weinberg*, 83 NY2d 262; *People v Malloy*, 55 NY2d 296; *Allen v United States*, 164 US 492; *People v Aponte*, 2 NY3d 304; *People v Faber*, 199 NY 256.) III. Defendant failed to preserve his claim that the court erred by directing the foreperson to complete the verdict sheet in open court and that the court thereby caused public deliberations to occur. In any event, that claim is meritless. (*People v Kelly*, 5 NY3d 116; *People v Harris*, 98 NY2d 452; *People v Laraby*, 92 NY2d 932; *People v Padro*, 75 NY2d 820; *People v Alfaro*, 66 NY2d 985; *People v Thomas*, 50 NY2d 467; *People v Agramonte*, 87 NY2d 765.) IV. Defendant failed to preserve his claim that the court's supplemental instructions, as a whole, were improper. In any event, the claim is meritless. (*People v Chin*, 67 NY2d 22; *People v Crimmins*, 36 NY2d 230; *People v Shilitano*, 218 NY 161; *People v Payne*, 3 NY3d 266.)

OPINION OF THE COURT

JONES, J.

Defendant was indicted for murder and other charges stemming from a shooting at a Brooklyn dance club in which a woman was killed and a man, with whom she was dancing, was wounded. The People theorized that the male victim was the

intended target and the female victim was accidentally killed by a bullet which struck her after passing through him.

At trial, the court submitted the following seven counts to the jury: (count 1) murder in the second degree (depraved indifference murder as to female victim); (count 2) murder in the second degree (intending to cause male victim's death, defendant caused female victim's death); (count 3) manslaughter in the first degree (intending to cause serious physical injury to male victim, defendant caused female victim's death); (count 4) manslaughter in the second degree (defendant recklessly caused female victim's death); (count 5) attempted (intentional) murder in the second degree (as to the male victim); (count 6) assault in the first degree (defendant intended to cause and caused serious physical injury to male victim); and (count 7) criminal possession of a weapon in the second degree. Counts 1-4 relate to the female victim, while counts 5 and 6 relate to the male victim.

On April 30, 2002, the second day of deliberations, the jury announced its verdict. The jury acquitted defendant of both second-degree murder counts (depraved indifference murder and intentional murder on a transferred intent theory), but convicted defendant of manslaughter in the first degree and attempted intentional murder in the second degree. The jury also acquitted defendant of assault in the first degree and criminal possession of a weapon in the second degree. Without notifying the parties of its intended response to the jury verdict, or of the instructions it proposed to give to the jury, the court responded to the jury's verdict. Defendant did not object to the court's not providing such notice.

The court explained to the jury that by its verdict acquitting defendant of transferred intent murder, it found that defendant did *not* intend to kill the male victim; whereas, by the jury's finding defendant guilty of attempted murder, it found that defendant had the requisite intent to kill the male victim. The court further explained that by acquitting defendant of first-degree assault, the jury found that defendant lacked the intent to cause the male victim serious physical injury; whereas the jury's guilty verdict on the first-degree manslaughter count necessarily required a finding that defendant intended to cause the male victim serious physical injury.

The court then advised the jury that it would not accept the verdict at that time, explained the inconsistencies in the verdict and the concept of transferred intent to the jury, instructed the jury to reconsider and decide what the People had proven regarding defendant's state of mind, and directed the jury to

resume deliberations. After the jury exited, defense counsel argued that the court's decision not to accept the verdict was a violation of defendant's right to a fair trial. In counsel's view, the verdict "should stand."

After deliberating for about an hour and a half, the jury sent a note to the court announcing it could not reach a unanimous verdict. Before bringing the jury back in, the court stated to counsel it would give an *Allen* charge and instruct the jury to resume deliberations. Defense counsel mounted a general objection to the proposed *Allen* charge, arguing the court should only instruct the jury to continue its deliberations. The court disagreed and issued an *Allen* charge to the jury. Defendant raised no objection that the actual charge given was coercive.

On the third day of deliberations, the jury reached a second verdict. According to the verdict sheet, the jury convicted defendant of transferred intent murder, attempted second-degree murder, and second-degree criminal possession of a weapon, but acquitted him of depraved indifference murder, first-degree manslaughter, second-degree manslaughter, and first-degree assault. The court informed the jury that the verdict sheet was not completed in accordance with its instructions and the instructions on the verdict sheet. The court stated, "I told you, if you found the defendant guilty of Count 1 and Count 2 [murder counts] return no verdict on Count 3 and Count 4 [manslaughter counts] . . . , leave the space blank on that verdict sheet." After explaining the error to the jury, the court returned the jurors to the jury room with a new verdict sheet.

Later that day, the jury returned its third (and final) verdict, but the verdict sheet did not indicate a verdict for count 1 (depraved indifference murder) and count 6 (first-degree assault). The court explained that the jury had to return a verdict on counts 1 and 6 and directed that if it had actually reached a verdict on those counts, the jury foreperson should complete the verdict sheet "at this time." After talking to some of the other jurors, the jury foreperson completed the verdict sheet in open court. Specifically, the jury foreperson checked "not guilty" on the two counts the jury overlooked.

Defendant was convicted of second-degree murder (on a transferred intent theory), second-degree attempted murder and weapon possession. He was sentenced to 25 years to life in prison. The Appellate Division affirmed (64 AD3d 734 [2009]), and a Judge of this Court granted defendant leave to appeal (14 NY3d 773 [2010]).

On appeal, defendant argues he was denied his constitutional right to due process, a fair trial, and the effective assistance of counsel because the trial court (1) contrary to CPL 310.30, did not afford defense counsel notice of and the opportunity to discuss the court's proposed response to the initial verdict before the court addressed the jury, (2) improperly directed the jury foreperson to complete the verdict sheet in open court and caused the jury to deliberate in public (in violation of the settled principle requiring jurors to deliberate in secret outside the courtroom), (3) gave a coercive *Allen* charge, and (4) signaled, through its supplemental instructions given in response to the first defective verdict, that defendant should be convicted of murder. These arguments are unavailing.

[1] Defendant's primary contention is that the jury's reporting of a verdict inconsistent with the trial court's instructions was the functional equivalent of a jury request for further instruction or information, and that, consequently, defendant was entitled to notice and a chance to be heard pursuant to CPL 310.30.¹ Defendant further maintains that this argument does not have to be preserved because, similar to the problem contemplated under CPL 310.30, the alleged error goes to the mode of proceedings. For the following reasons, we disagree. First, defendant's argument disregards the plain language of CPL 310.30 and 310.50 (2), and would render CPL 310.50 (2) superfluous.² CPL 310.30 applies to specific "request[s]" by the jury "for further instruction or information" by the court in

1. CPL 310.30 provides:

"At any time during its deliberation, the jury may request the court for further instruction or information with respect to the law, with respect to the content or substance of any trial evidence, or with respect to any other matter pertinent to the jury's consideration of the case. Upon such a request, the court must direct that the jury be returned to the courtroom and, after notice to both the people and counsel for the defendant, and in the presence of the defendant, must give such requested information or instruction as the court deems proper. With the consent of the parties and upon the request of the jury for further instruction with respect to a statute, the court may also give to the jury copies of the text of any statute which, in its discretion, the court deems proper."

2. CPL 310.50 (2) provides:

"If the jury renders a verdict which in form is not in accordance with the court's instructions or which is otherwise legally defective, the court must explain the defect or error and must direct the jury to reconsider such verdict, to resume its deliberation for

(n. cont'd)

response to a problem or concern *identified* by the jury; whereas CPL 310.50 (2) applies when a jury “renders a verdict which in form is not in accordance with the court’s instructions or which is otherwise legally defective.” That is, CPL 310.50 (2) addresses problems in a verdict of which the jury is necessarily unaware. Here, the trial court’s explanation to the jury was a response to a verdict that was inconsistent with the court’s instructions, not a response to a request for further instruction or information. Thus, the court’s response was governed by CPL 310.50 (2), not section 310.30.

Second, while CPL 310.30 imposes upon the court the specific statutory duty to give the parties notice of the jury’s request for further instruction or information before the court responds to the request (*see People v O’Rama*, 78 NY2d 270, 276-277 [1991] [Court addressed the scope of the CPL 310.30’s notice requirement]), CPL 310.50 (2) does not. Section 310.50 (2) only provides that where a jury returns an inconsistent or legally defective verdict, “the court must explain the defect or error and must direct the jury to reconsider such verdict, to resume its deliberation for such purpose, and to render a proper verdict.” The trial court here was not obligated to discuss with counsel its proposed explanation in response to the initial verdict prior to the court’s addressing the jury.

Third, the Legislature deliberately differentiated between what is required of the court pursuant to CPL 310.30 and CPL 310.50 (2), respectively. By not including (or incorporating) CPL 310.30’s notice requirement within the text of CPL 310.50 (2), the Legislature made a conscious choice that the notice requirement shall apply only to the court’s response to a jury’s request for further instruction or information, and not to the court’s response to a jury’s rendition of an inconsistent or defective verdict.

[2] Defendant also claims that the trial court improperly directed the jury foreperson to complete the verdict sheet in open court and caused the jury to deliberate in public. There is

such purpose, and to render a proper verdict. If the jury persists in rendering a defective or improper verdict, the court may in its discretion either order that the verdict in its entirety as to any defendant be recorded as an acquittal, or discharge the jury and authorize the people to retry the indictment or a specified count or counts thereof as to such defendant; provided that if it is clear that the jury intended to find a defendant not guilty upon any particular count, the court must order that the verdict be recorded as an acquittal of such defendant upon such count.”

nothing in the record suggesting that the court's direction called for or encouraged deliberations among the jurors. Further, the record does not show that any public deliberations in fact occurred. What the record shows is that there was a short (5 to 15 seconds) discussion among jurors after the court asked the foreperson to complete a verdict sheet that had not been filled out as to counts for which defendant was ultimately *acquitted*; as such, the conversation among the jurors was harmless.

In any event, the trial court, in directing the jury foreperson to indicate a verdict as to counts 1 and 6, asked that the foreperson perform what amounts to a ministerial (or clerical) act, since CPL 310.50 (3) converts any incomplete counts into acquittals. We hold that the performance of the instant ministerial act was not violative of the rule requiring jurors to deliberate in secret outside the courtroom.

Defendant's remaining contentions are not preserved for appellate review.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed.

[947 NE2d 149, 922 NYS2d 258]

**THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZUFER
CECUNJANIN, Appellant.**

Argued February 17, 2011; decided April 5, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 5, 2009. The Appellate Division affirmed a judgment of the Franklin County Court (Jerome J. Richards, J.), which had convicted defendant, upon a jury verdict, of attempted sexual abuse in the first degree and unlawful imprisonment in the second degree.

People v Cecunjanin, 67 AD3d 1072, modified.

HEADNOTE**Crimes — Sexual Abuse — Attempt — Physical Helplessness of Victim**

Defendant's conviction for attempted first degree sexual abuse was vacated where the evidence failed to support the jury's finding that defendant had attempted to subject a physically helpless woman to sexual contact. Defendant was charged with an attempt to violate Penal Law § 130.65 (2) which states that a person is guilty of sexual abuse in the first degree when he or she "subjects another person to sexual contact" when the other person is "incapable of consent by reason of being physically helpless." Here, a reading of the record as a whole showed that the victim, who was extremely intoxicated, may well have been physically helpless at some times, and that defendant may have attempted to subject her to sexual contact at other times, but there was no evidence that the two occurred together. When defendant tried to subject the victim to sexual contact, she could and did withhold her consent, with the result that sexual contact did not occur. Nor could defendant's conviction be sustained in light of testimony that the victim was physically helpless at the moment she prevented defendant from fondling her: she could not have blocked defendant if she were helpless.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law § 154; AM JUR 2d, Rape § 19.
NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 295–297, 641, 696.

ANNOTATION REFERENCE

See ALR Index under Attempt to Commit Crime; Intoxicating Liquors; Rape; Sex and Sexual Matters.

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Database: NY-ORCS

Query: attempt! /5 sex! /2 abuse & vacat! & intox!

POINTS OF COUNSEL

Kindlon Shanks & Associates, Albany (Terence L. Kindlon and Kathy Manley of counsel), for appellant. I. The attempted sexual abuse conviction was based on legally insufficient evidence of physical helplessness. (*People v Littebrant*, 55 AD3d 1151; *People v Chapman*, 54 AD3d 507; *People v Teicher*, 52 NY2d 638; *People v Huurre*, 193 AD2d 305, 84 NY2d 930; *People v Thomas*, 21 AD3d 643; *People v Himmel*, 252 AD2d 273; *People v Ferrer*, 250 AD2d 860; *People v Conto*, 218 AD2d 665; *People v Clyburn*, 212 AD2d 1030.) II. The convictions should be reversed based on ineffective assistance of counsel. (*People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5 NY3d 143; *People v Hull*, 71 AD3d 1336; *People v Bartley*, 298 AD2d 160; *United States v Tarricone*, 996 F2d 1414; *People v Clarke*, 66 AD3d 694; *People v Dean*, 50 AD3d 1052; *People v Tillman*, 179 AD2d 886; *People v Jenkins*, 68 NY2d 896.) III. The trial court failed to adequately investigate possible juror misconduct. (*People v Rodriguez*, 100 NY2d 30; *People v Arnold*, 96 NY2d 358; *People v Estella*, 68 AD3d 1155; *People v Rivera*, 304 AD2d 841; *People v Littebrant*, 55 AD3d 1151; *People v Maragh*, 94 NY2d 569; *People v Mosley*, 56 AD3d 1140; *People v Paulick*, 206 AD2d 895.)

Andrew J. Wylie, District Attorney, Plattsburgh (Timothy G. Blatchley of counsel), for respondent. I. Appellant's conviction for attempted sexual abuse was supported by legally sufficient evidence of physical helplessness. (*People v Ficarrota*, 91 NY2d 244; *People v Contes*, 60 NY2d 620; *People v Zeagers*, 248 AD2d 739; *People v Baker*, 251 AD2d 592; *People v Reeves*, 236 AD2d 635; *People v Bleakley*, 69 NY2d 490; *People v Borthwick*, 51 AD3d 1211; *People v Chapman*, 54 AD3d 507; *People v Teicher*, 52 NY2d 638.) II. Appellant was afforded meaningful representation as is required by the State and Federal Constitutions. (*People v Benevento*, 91 NY2d 708; *People v Satterfield*, 66 NY2d 796; *People v Garcia*, 187 AD2d 868; *People v Hull*, 71 AD3d 1336; *People v Baldi*, 54 NY2d 137; *People v Figueroa*, 187 Misc 2d 539.) III. Appellant was afforded a fair trial and was not prejudiced by any juror misconduct. (*People v Rivera*, 304 AD2d 841; *People v Rodriguez*, 100 NY2d 30.)

OPINION OF THE COURT

SMITH, J.

At defendant's trial, the People contended, and the jury found, that he had attempted to subject a physically helpless woman to

sexual contact. The evidence fails to support the jury's finding on this issue, and we therefore vacate defendant's conviction for attempted sexual abuse.

I

The alleged victim, whom we will call Catherine, went with friends to dance at a bar defendant owned. She had been drinking before she arrived at the bar, continued after she got there, and became extremely drunk. A blood test taken shortly after the events at issue here showed a blood alcohol concentration of .267%. (A driver is considered intoxicated with a .08% concentration [Vehicle and Traffic Law § 1192 (2)].)

Defendant and Catherine were acquaintances, and they engaged in some mild displays of affection after she arrived at the bar; Catherine hugged him, and permitted him to put his arm around her shoulders. But the People presented evidence that, as Catherine showed more severe signs of intoxication, defendant became more aggressive. He made "rude comments" to her as she sat on a bar stool drinking, and when she tried to get up to find one of her friends he prevented her by holding her wrist. He tugged on her shirt, and tried to put his hands under it. He held her chin, and tried to turn it towards him. He touched her thighs around where her shorts ended, and kissed her once. Holding her by her wrist or waist, he led her to a nearby storage room, pulled her in and closed the door.

Catherine found herself in the storage room with defendant and another man. Defendant held her wrist; the other man pulled at (but did not remove) her shorts; one or both of them pulled at her shirt. Defendant tried to put his hands under her shirt, and both men tried to kiss her. They asked her to go upstairs with them. She refused to go upstairs, and she resisted their physical advances by sitting on the floor. At one point she tried to leave the room but was unable to open the door (though the door had no lock). When Catherine's cell phone rang, defendant prevented her from answering, and took the phone away. The encounter ended after one of Catherine's friends called her family, and her father arrived and led her out.

Catherine did not describe her own mental or physical condition except to say that "it was pretty blurry" from around the time defendant's aggressive conduct began. Two of her friends, who observed her as she sat on the bar stool, supplied more information. One said that she was "slouched over in the seat" "very kind of looking out of it," that "her head was bobbing

back and forth” and that “she seemed very kind of lifeless.” The other friend gave a similar description, adding that Catherine did not respond when someone called her name, that at one point she slipped off the stool, and that defendant helped her back up. Catherine’s friends could not see her when she was in the storage room; Catherine’s own testimony does not suggest that she was ever unconscious, or too weak to offer resistance, during that part of the encounter.

Defendant was indicted for attempted sexual abuse in the first degree, unlawful imprisonment in the second degree and forcible touching. The jury convicted him on the first two counts, and, in compliance with the trial judge’s instructions, did not reach the third. The Appellate Division affirmed the conviction and sentence (67 AD3d 1072 [2009]). A Judge of this Court granted leave to appeal, and we now modify the judgment to vacate the conviction for attempted sexual abuse.

II

Defendant was charged with, and convicted of, an attempt to violate Penal Law § 130.65 (2), which says:

“A person is guilty of sexual abuse in the first degree when he or she subjects another person to sexual contact . . .

“When the other person is incapable of consent by reason of being physically helpless”

“Sexual contact” and “physically helpless” are defined in section 130.00 of the Penal Law. “ ‘Sexual contact’ means any touching of the sexual or other intimate parts of a person for the purpose of gratifying sexual desire of either party” (Penal Law § 130.00 [3]). “ ‘Physically helpless’ means that a person is unconscious or for any other reason is physically unable to communicate unwillingness to an act” (Penal Law § 130.00 [7]).

There is no evidence, and the People have never claimed, that defendant actually subjected Catherine to sexual contact. He was charged only with an attempt to commit sexual abuse, not with the completed crime. This raises a question: If a person is physically helpless, how can an attempt to subject her to sexual contact fall short of success? It could theoretically happen—for example, a third person could intervene—but the evidence does not show that it happened here.

There is no evidence that Catherine was physically helpless at any time after she entered the storage room. The People’s case

must therefore depend on what happened earlier, while she sat on a bar stool. We assume that the testimony of her friends—that she was slouched and unresponsive, with her head bobbing back and forth, and that she once slid off the stool—would support a finding that there were times when she became physically helpless while she was sitting there. There is no evidence, however, that defendant tried to subject her to sexual contact during any of those times. The only evidence of physical advances that Catherine was unable to resist is the testimony of one of her friends. That witness said that, while Catherine was “kind of lifeless,” defendant had his hands “under her shirt,” but it is clear in context that she was not saying he touched Catherine’s breasts; the witness added that defendant “leaned over and . . . gave her a kiss,” eliciting no response from Catherine. The witness was then asked: “Did he touch her in any other way that you saw?” The answer was no.

The People argue that the conviction for attempted sexual abuse can be sustained on the basis of the following passage from Catherine’s testimony:

“I just remember holding my arms up like this because he was trying to put like his hands under my shirt. I would hold my arms up close to me like to block putting his hands in my shirt.”

The People thus argue, in substance, that Catherine was physically helpless at the moment she prevented defendant from fondling her. The argument is self-refuting; she could not have blocked him if she were helpless. A reading of the record as a whole shows that Catherine may well have been physically helpless at some times, and that defendant may have attempted to subject her to sexual contact at other times, but there is no evidence that the two occurred together.

The People rely on *People v Teicher* (52 NY2d 638 [1981]), but the facts of that case are, in a critical way, the opposite of those present here. The defendant in *Teicher* was a dentist who abused his patients after putting them under sedation. One of his victims testified that, after losing consciousness, she became conscious again but was still weak from the drug’s effects. She testified that the defendant “lifted her hand and placed it on his pants directly over his penis” and that she “was able to pull her hand away” (*id.* at 644). We held that, though the victim was strong enough to remove her hand, “the trier of fact was entitled to infer that she lacked capacity to consent to the original touching because of her generally weakened condition” (*id.*

at 646). But in this case, the evidence shows that, when defendant tried to subject Catherine to sexual contact, she could and did withhold her consent—with the result that the sexual contact did not occur.

III

What we have said requires us to vacate defendant's conviction for attempted sexual abuse, and to dismiss that count of the indictment. Defendant contends that he is also entitled to a new trial on the charge of unlawful imprisonment, asserting that his counsel was ineffective and that the trial court failed to investigate allegations of juror misconduct. These arguments are without merit. Trial counsel's performance was competent, and the trial judge's handling of the juror misconduct claims was entirely appropriate.

Accordingly, the order of the Appellate Division should be modified to vacate defendant's conviction for attempted sexual abuse in the first degree, and to dismiss the first count of the indictment, and otherwise affirmed. The case should be remitted to County Court for resentencing.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES concur.

Order modified, etc.

[947 NE2d 140, 922 NYS2d 249]

In the Matter of RIDGE ROAD FIRE DISTRICT, Appellant, v
MICHAEL P. SCHIANO, as Hearing Officer Designated Pursuant to a Collective Bargaining Agreement between Ridge Road Fire District and Ridge Road Professional Firefighters Association IAFF, Local 3794, International Association of Firefighters, AFL-CIO, et al., Respondents.

Argued February 16, 2011; decided April 5, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 13, 2009. The Appellate Division (1) reversed, on the law, a judgment (denominated order) of the Supreme Court, Monroe County (Evelyn Frazee, J.), entered in a proceeding pursuant to CPLR article 78, which had (a) granted the petition seeking to annul the determination of respondent Michael P. Schiano, as hearing officer, awarding respondent firefighter benefits pursuant to General Municipal Law § 207-a, (b) annulled the determination, and (c) reinstated petitioner's original determination denying respondent firefighter such benefits, (2) dismissed the petition, and (3) reinstated the determination of the hearing officer.

Matter of Ridge Rd. Fire Dist. v Schiano, 67 AD3d 1342, reversed.

HEADNOTES

Administrative Law — Hearing — Substantial Evidence

1. In a proceeding in which respondent firefighter sought benefits pursuant to General Municipal Law § 207-a, the parties' collective bargaining agreement (CBA) and State Administrative Procedure Act § 306 required respondent hearing officer to defer to petitioner fire district's denial of the firefighter's benefits if petitioner's determination was supported by substantial evidence. Here the CBA required the hearing officer to "conduct the hearing in accordance with the established rules of evidence, consistent with the [New York State] Administrative Procedure Act," and that Act provides, in relevant part, that "[n]o decision, determination or order shall be made except upon consideration of the record as a whole or such portion thereof as may be cited by any party to the proceeding and as supported by and in accordance with substantial evidence" (State Administrative Procedure Act § 306 [1]). Therefore, in accordance with that standard and in light of the CBA's terms, the independent hearing officer was required to give deference to the employer's decision, and the firefighter bore the burden of establishing that his employer's denial determination had not been supported by substantial evidence.

Administrative Law — Judicial Review — Substantial Evidence

2. In a proceeding in which respondent firefighter sought benefits pursuant to General Municipal Law § 207-a, Supreme Court correctly held that respondent hearing officer's decision, which determined that petitioner fire district's denial of section 207-a benefits was not based on substantial evidence, was arbitrary and capricious. The fire district's evidence consisted of testimony from its medical expert that the firefighter's back injury was not causally related to an incident at work, but was instead attributed to prior events. There was testimony that the firefighter initially did not relate the version of events he later claimed was the cause of his injury. The fire district offered further testimony that the equipment that allegedly malfunctioned, leading to the firefighter's injury, was examined and found to be functioning properly. That evidence was significant in light of the testimony by the firefighter's neurosurgeon that if the accident did not occur in the manner claimed, then he would not causally relate the injury to a work-related incident. Accordingly, there was substantial evidence supporting the denial of benefits, and the hearing officer's conclusion to the contrary was irrational as a matter of law. Moreover, it was of no consequence that there was evidence supporting the firefighter's contention. The applicable standard was whether the denial of benefits was supported by substantial evidence and since there was substantial evidence supporting both sides' positions, the hearing officer acted arbitrarily in deciding that none supported the fire district's.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Administrative Law §§ 77, 488, 489, 491, 497–501; AM JUR 2d, Pensions and Retirement Funds §§ 1207, 1208, 1211, 1247–1251, 1255.

CARMODY-WAIT 2d, Proceeding Against a Body or Officer §§ 145:28–145:30, 145:32–145:35, 145:1108, 145:1109.

McKINNEY's, State Administrative Procedure Act § 306 (1).

NY JUR 2d, Article 78 and Related Proceedings §§ 15, 16, 27, 29, 53–57, 364; NY JUR 2d, Employment Relations § 629.

ANNOTATION REFERENCE

See ALR Index under Administrative Law; Fire Departments and Firefighters; Pension and Retirement.

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Database: NY-ORCS

Query: substantial /2 evidence /5 support! /p burden /p deference

POINTS OF COUNSEL

Coughlin & Gerhart, LLP, Binghamton (*Mary Louise Conrow* and *Katelyn R. Dumont* of counsel), for appellant. I. The appellate court erred by improperly reviewing the proceeding de novo,

applying an incorrect standard of review and substituting its judgment for that of the Ridge Road Fire District when it overturned the District's denial of General Municipal Law § 207-a benefits. (*Matter of Miller v DeBuono*, 90 NY2d 783; *Matter of Kingston v Gorman*, 17 AD3d 1079; *Matter of Board of Educ. of City School Dist. of City of N.Y. v Mills*, 293 AD2d 37; *Matter of Foresta v New York State Policemen's & Firemen's Retirement Sys.*, 95 AD2d 893; *Matter of Root v Regan*, 90 AD2d 654; *Matter of De Giacomo v Regan*, 84 AD2d 629, 55 NY2d 605; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Toys "R" Us v Silva*, 89 NY2d 411; *Matter of Berger v Board of Fire Commr. of the Jericho Fire Dist.*, 71 AD3d 881; *Matter of Tezeno v City of Watertown*, 37 AD3d 1122.) II. The Fourth Department violated public policy and the Taylor Law when it interfered with the collective bargaining agreement by changing the standard of review and deciding the matter de novo. (*Matter of Antonopoulou v Beame*, 32 NY2d 126; *Matter of New York City Tr. Auth. v Transport Workers Union of Am., Local 100, AFL-CIO*, 99 NY2d 1; *Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73; *Dye v New York City Tr. Auth.*, 88 AD2d 899; *Matter of Board of Educ. of City School Dist. of City of N.Y. v New York State Pub. Empl. Relations Bd.*, 75 NY2d 660; *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774; *Steelworkers v Rawson*, 495 US 362; *Matter of Green [Republic Steel Corp.—Levine]*, 37 NY2d 554; *Matter of Roma v Ruffo*, 92 NY2d 489; *Matter of Miller v DeBuono*, 90 NY2d 783.) III. The Fourth Department's incorrect application of the standard of review has created an irreconcilable fissure within the appellate courts. (*Matter of Price v Southwest Airlines, Inc.*, 66 AD3d 1267; *Matter of Walls v Wing*, 292 AD2d 624; *Matter of Coccozzo v Ward*, 162 AD2d 202; *Matter of DeOliveira v New York State Dept. of Motor Vehs.*, 271 AD2d 607; *Matter of Mize v State Div. of Human Rights*, 33 NY2d 53; *Matter of 3902 Long Beach Rd. v New York State Liq. Auth.*, 155 AD2d 463; *State Div. of Human Rights v Dynasty Hotel*, 222 AD2d 263; *Matter of Petrofsky [Allstate Ins. Co.]*, 54 NY2d 207; *Matter of Pierce [Utica Mut. Ins. Co.]*, 110 AD2d 1023; *Matter of Joyce v European Auto Serv.*, 226 AD2d 952.)

Trevett Cristo Salzer & Andolina P.C., Rochester (Daniel P. DeBolt and Lawrence J. Andolina of counsel), for respondents.
I. The Fourth Department applied the correct standard. (*Matter of Giorgio v Bucci*, 267 AD2d 924; *Matter of Williamson v City*

of Troy, 284 AD2d 649.) II. The hearing officer's decision was not irrational. (*Matter of Grella v Hevesi*, 38 AD3d 113; *Matter of Khan v New York State Dept. of Health*, 286 AD2d 562; *Matter of Silberfarb v Board of Coop. Educ. Servs., Third Supervisory Dist., Suffolk County*, 60 NY2d 979; *People v Shedrick*, 104 AD2d 263; *People v Cohen*, 223 NY 406; *Matter of Hauser v Town of Webb*, 34 AD3d 1353; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227; *Matter of White v County of Cortland*, 97 NY2d 336.) III. The Fourth Department's decision did not violate public policy or the Taylor Law. IV. There is no irreconcilable fissure within the appellate courts. V. The Ridge Road Fire District's position is contrary to the purpose of General Municipal Law § 207-a. (*Matter of Park v Kapica*, 25 AD3d 802.)

OPINION OF THE COURT

PIGOTT, J.

Respondent Kevin Nowack, a firefighter employed by petitioner Ridge Road Fire District, claimed to have sustained a back injury while on duty on November 7, 2002. Specifically, Nowack claimed that the fire truck he was driving hit a "low spot," manhole cover or pothole in the road, causing the truck's air suspension seat to elevate and "shoot" downward, causing a "twinge" or "tightness" in his low back.

Nowack sought General Municipal Law § 207-a benefits, to which certain firefighters are entitled if they are "injured in the performance of [their] duties" (General Municipal Law § 207-a [1]). He completed an "accident-sickness packet" containing, among other things, an employee injury report, physician report and authorization for medical records. The District denied Nowack's application finding that his complained-of injury was a preexisting one that he sustained while off duty.

Nowack requested a hearing with respect to the District's denial of benefits in accordance with the Collective Bargaining Agreement (CBA) between the District and respondent Ridge Road Professional Firefighters Association IAFF, Local 3794. The CBA provides that a hearing officer "shall conduct the hearing in accordance with the established rules of evidence, consistent with the NYS Administrative Procedure Act," and that "[i]t is the employee[s] burden to prove [that he] is entitled to GML 207-a benefits." The hearing was held before respondent hearing officer Michael Schiano. Nowack and the District

each called witnesses and presented evidence relative to their respective theories of causation.

In his written decision, the hearing officer stated, incorrectly, that the standard of review was “whether or not substantial evidence was presented to *override* the Fire District’s Determination” (emphasis supplied), and concluded that there was and that Nowack was therefore entitled to section 207-a benefits. The District challenged this determination in a CPLR article 78 proceeding. Supreme Court granted the petition, annulled the decision, and remanded the proceeding, directing the hearing officer to apply the proper standard of review, namely, whether the District’s determination denying Nowack benefits was supported by substantial evidence.

On remand, the hearing officer’s second decision proffered the same analysis word-for-word as his first and stated the proper standard of review, but nonetheless concluded that the District’s denial of Nowack’s section 207-a benefits was not supported by substantial evidence. The District again challenged that determination and Supreme Court granted the District’s petition, vacated the decision and reinstated the District’s original denial of section 207-a benefits. Supreme Court held that the hearing officer’s decision was arbitrary and capricious, and noted that the District’s determination denying benefits “was supported by substantial evidence in the record as a whole despite the fact that there was conflicting medical evidence to support a contrary result.”

The Appellate Division reversed and dismissed the petition, holding that the District’s “denial of benefits, which was based on the determination that the disability was solely related to a prior non-work-related injury, [was] not supported by substantial evidence” (67 AD3d 1342, 1345 [4th Dept 2009]). This Court granted leave, and we reverse.

[1] Under the CBA, the hearing officer was required to “conduct the hearing in accordance with the established rules of evidence, consistent with the [New York State] Administrative Procedure Act.” That Act provides, in relevant part, that “[n]o decision, determination or order shall be made except upon consideration of the record as a whole or such portion thereof as may be cited by any party to the proceeding and as supported by and in accordance with *substantial evidence*” (State Administrative Procedure Act § 306 [1] [emphasis supplied]). The parties here agree, and we therefore assume, that,

as applied to this case, the statute requires the District's denial of benefits to be upheld if substantial evidence supports it. Therefore, in accordance with this standard and in light of the CBA's terms, the independent hearing officer was required to give deference to the District's decision and Nowack bore the burden of establishing that the District's denial determination had not been supported by substantial evidence.

This Court has defined "substantial evidence" as such relevant proof as a reasonable mind may accept as adequate to support a conclusion or ultimate fact, and "is less than a preponderance of the evidence, overwhelming evidence or evidence beyond a reasonable doubt" (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 180-181 [1978]). The standard "demands only that 'a given inference is reasonable and plausible, not necessarily the most probable' " (*Matter of Miller v DeBuono*, 90 NY2d 783, 793 [1997], quoting Borchers and Markell, New York State Administrative Procedure and Practice § 3.12, at 51 [1995]).

[2] Viewing this record as a whole, Supreme Court correctly held that the hearing officer's decision, i.e. that the District's denial of section 207-a benefits was not based on substantial evidence, was arbitrary and capricious. The District's evidence consisted of testimony from its medical expert that Nowack's back injury was not causally related to the November 2002 incident, but was instead attributed to a fractured lumbar vertebra he had sustained in an accident in 1993 and an August 4, 2002 injury. The battalion chief testified that, after Nowack told him that he was experiencing back pain, he prepared an initial report. During his investigation, Nowack did not relate the version of events he now claims is the cause of his injury—that the air suspension seat on a fire truck had malfunctioned—nor did he tell him that he hit a "low spot" or "pothole" in the road. The District offered the further testimony of its group battalion chief, who stated that he had contacted the District mechanic and a representative of the manufacturer, who each examined the seat and found nothing wrong with its operation or adjustment mechanisms. This evidence was significant in light of the testimony by Nowack's neurosurgeon that if the accident did not occur in the manner that Nowack claimed, then he would not causally relate Nowack's injury to a work-related incident. Based on the foregoing, it is clear that there was substantial evidence supporting the District's denial of benefits, and the hearing officer's conclusion to the contrary was irrational as a matter of law.

It is of no consequence that the record also indicates that there was evidence supporting Nowack's contention. Quite often there is substantial evidence on both sides. The applicable standard here was whether the District's denial of benefits was supported by substantial evidence. Thus, the dissent errs in suggesting that, because either side might reasonably have prevailed, we are required to uphold the hearing officer's ruling. To the contrary, since, as all Judges of this Court agree, there is unquestionably substantial evidence supporting both sides' positions, the hearing officer acted arbitrarily in deciding that none supported the District's. The order of the Appellate Division should be reversed, with costs, and the judgment of Supreme Court reinstated.

Chief Judge LIPPMAN (dissenting). This would seem to be an easy case. The decision of a hearing officer as to whether a firefighter is entitled to General Municipal Law § 207-a benefits, issued pursuant to a procedure outlined in a collective bargaining agreement (CBA), has been challenged as arbitrary under CPLR article 78. There is, as the majority acknowledges, evidence supporting the hearing officer's decision, and, as the majority also acknowledges, "[q]uite often there is substantial evidence on both sides" (majority op at 500). In such cases, the decisions made by hearing officers are to be upheld, as the court's role in an article 78 proceeding is not to decide which side has the most persuasive case, but simply to decide if the hearing officer acted arbitrarily. This appeal is no different in any meaningful respect—the hearing officer determined that the firefighter met his burden under the CBA, concluded that the firefighter was injured in the performance of his duties, and concluded on the record before him that the fire district's "initial determination" denying the firefighter benefits was not supported by substantial evidence. Support for all of those conclusions is found in this record. Thus, the firefighter is, without question, entitled to receive his benefits.

Under this CBA, when a firefighter believes that he or she may be entitled to General Municipal Law § 207-a benefits, the Ridge Road Fire District (the District) makes what the CBA refers to as an "initial determination" with respect to benefits based on an "accident-sickness packet" completed by the firefighter. If, as here, the District denies benefits, the firefighter may take an appeal to a hearing officer to be chosen at random from a list of names attached to the CBA in an appendix. The hearing officer, pursuant to the CBA, conducts a hearing "in

accordance with the established rules of evidence, consistent with the NYS Administrative Procedure Act.” There is no dispute that the CBA, by reference to the Administrative Procedure Act, directs the hearing officer to apply the substantial evidence standard to the District’s “initial determination,” nor should there be dispute that it is the hearing officer’s decision, made after the record is developed at the hearing, that the CBA provides may be “appeal[ed]” by either the firefighter or the District pursuant to CPLR article 78.

Unlike the “initial determination” made by the District’s review of the “accident-sickness packet” of forms and other documentation, the hearing officer’s decision is made after a full hearing. The hearing officer in this case took medical evidence from several physicians, heard testimony from various witnesses, including the firefighter and others who interacted with him on the day of the alleged accident, and reviewed evidence concerning the operation of and inspections of the air suspension seat. As every court that has reviewed this record has acknowledged, there is evidence supporting the contentions of each side.

The majority states, however, that “[i]t is of no consequence that the record also indicates that there was evidence supporting” (majority op at 500) the firefighter’s contention and the hearing officer’s decision. I disagree. When the majority states that “[t]he applicable standard here was whether the District’s denial of benefits was supported by substantial evidence” (majority op at 500), it is correct only insofar as that was the standard to be applied by the hearing officer. That is most certainly not the standard for the courts to apply in this CPLR article 78 proceeding challenging the hearing officer’s decision. The District’s decision is not before us; we are not faced with determining, as the majority would have it, “whether the District’s denial of benefits was supported by substantial evidence” (majority op at 500). Rather, we are faced with determining whether the hearing officer’s decision was arbitrary.

Moreover, the majority appears in great measure to base its approach to the standard of review on a perceived agreement between the parties as to how the hearing officer was to apply the substantial evidence standard (majority op at 498-499). However, the majority is mistaken; the parties here are not in agreement as to whether the District’s initial determination to deny benefits was to be upheld if substantial evidence supported it. As the majority notes, State Administrative Procedure Act

§ 306 (1) (borrowed by the parties and applied to the hearing officer's job here only through the CBA's reference to it), provides that the substantial evidence standard is to be applied "upon consideration of the record as a whole." The record "as a whole," however, did not even exist at the time the District made its initial determination; rather, the record was created at the hearing conducted by the hearing officer.

The hearing officer, who heard and weighed all of the evidence, determined that the firefighter met his burden under the CBA and was entitled to General Municipal Law § 207-a benefits. When that decision is challenged as arbitrary in a CPLR article 78 proceeding, courts are not to weigh the persuasiveness of the evidence. Here, for instance, the majority comments that certain testimony from the District's battalion chief to the effect that he "contacted the District mechanic and a representative of the manufacturer, who each examined the seat and found nothing wrong with its operation or adjustment mechanisms" is "significant" (majority op at 499). The majority finds this evidence to be important "in light of the testimony" from the firefighter's "neurosurgeon that if the accident did not occur in the manner" the firefighter claimed, then "he would not causally relate" the injury to the alleged "work-related incident" (majority op at 499). The evidence on that point, however, is not at all clear cut. The majority, without an apparent rationale, finds it less significant that the neurosurgeon testified that if the incident did occur as the firefighter claimed it did (and the hearing officer concluded that the firefighter did sustain his injuries in the performance of his duties), then he would tie the firefighter's back injury to the work-related incident.

The conclusions to be reached from a detailed analysis of various portions of the testimony taken at the hearing is largely beside the point. This Court should not parse the relative significance or insignificance of the testimony the hearing officer heard. That was the role of the hearing officer and the entire purpose of holding a hearing. Other than to ascertain whether the hearing officer's decision was arbitrary and capricious, it simply is not the judiciary's job to weigh such conflicting evidence in an article 78 proceeding. The majority not only mistakes this Court's role, it gives the "initial determination" the veneer of an evidentiary hearing and elevates it beyond what it was—a preliminary decision made on the basis of a packet of forms—while vitiating the role of the officer conducting the only full hearing in this case.

Pursuant to the CBA, the District's "initial determination" is made by the "chief or his designee," who "will review the accident-sickness packet" of forms submitted by the firefighter and review "any available medical records and interviews with any witnesses." There was no testimony before the fire chief or his designee; testimony, like the testimony the majority relies upon, was only received by the hearing officer in the course of the full hearing. It was only during that hearing that evidence was marshaled, testimony was heard, and arguments relevant to the firefighter's eligibility for General Municipal Law § 207-a benefits were made.

Given this CBA's structure, by necessity the hearing officer was aware of the limited documentation that was before the fire chief or his designee when that determination was made. He was also in a position to compare that packet of forms to the fully developed record before him after the actual evidentiary hearing. It is from that vantage point that he is charged with determining whether or not substantial evidence supports the "initial determination" to deny benefits. To view the "initial determination" as the majority seems to—as a determination akin to a decision reached after review of a fully developed record that must be upheld by the hearing officer if it has any meaningful support at all—is to render this CBA's hearing process nonsensical. By the parties' design, the outcome reached by the District after only a preliminary review of application materials was not intended to be the final determination; rather, the hearing officer's decision reached after a full hearing was the final administrative determination that could be challenged in an article 78 proceeding. Thus, on this appeal, we are only to determine whether the hearing officer's decision was arbitrary.

Once it is clear which decision is before us and what the standard of review is, the analysis is straightforward. We "have noted that rationality is the underlying basis for both the arbitrary and capricious standard and the substantial evidence rule" (*Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227, 240 [1997]), and "where substantial evidence exists" to support a decision being reviewed by the courts, "that determination must be sustained, irrespective of whether a similar quantum of evidence is available to support other varying conclusions" (*Matter of Collins v Codd*, 38 NY2d 269, 270 [1976]; see *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 180-181 [1978]). With respect to causation in this context, it is settled that the firefighter "need only prove

a direct causal relationship between job duties and the resulting illness or injury,” and that preexisting “non-work-related conditions do not bar recovery” where the firefighter “demonstrates that the job duties were a direct cause of the disability” (*Matter of White v County of Cortland*, 97 NY2d 336, 340 [2002]).

As the hearing officer’s decision that the firefighter was injured in the course of performing his duties and was entitled to General Municipal Law § 207-a benefits was rational, I cannot join the majority’s determination to disturb it.

Judges GRAFFEO, READ and SMITH concur with Judge PIGOTT; Chief Judge LIPPMAN dissents and votes to affirm in a separate opinion in which Judges CIPARICK and JONES concur.

Order reversed, etc.

[947 NE2d 647, 922 NYS2d 873]

In the Matter of ROBERT THOMAS WOODS, Appellant, v NEW
YORK CITY DEPARTMENT OF CITYWIDE ADMINISTRATIVE SER-
VICES, Respondent.

Argued February 16, 2011; decided April 5, 2011

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 8, 2010. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Michael D. Stallman, J.; op 24 Misc 3d 849), entered in a proceeding pursuant to CPLR article 78, which had denied the petition and dismissed the proceeding seeking, among other things, to annul respondent's determination that petitioner was not qualified to be placed on a "special eligible list" pursuant to Military Law § 243 (7) and (7-b) and to direct respondent to place petitioner on such a list.

Matter of Woods v New York City Dept. of Citywide Admin. Servs., 72 AD3d 474, reversed.

HEADNOTE

Civil Service — Examinations — Special Eligible List for Individuals in Military Service

Military Law § 243 (7) required respondent New York City Department of Citywide Administrative Services to place petitioner, who passed a civil service examination to become a firefighter, on a "special eligible list" from which he could be certified for appointment after his military duty ended, and respondent had no discretion to refuse to add petitioner to the special eligible list on the ground that he had not met the qualifications for appointment when his name was first reached on the examination's eligible list. Here petitioner complied with the requirements of Military Law § 243 (7) where his name appeared on the examination's eligible list, he was "reached for certification" while he was serving in the military, and he timely submitted the paperwork necessary for placement on a special eligible list after his discharge. Although petitioner did not meet the qualifications for firefighter appointment when his name was first reached on the examination's eligible list as he had not then completed two years of military service, section 243 (7) makes no exception for those who do not meet qualifications at the time their names are reached and gives respondent no discretion to refuse to put names on a special eligible list. Moreover, while Civil Service Law § 50 (4) gives respondent discretion not to certify names of people who do not meet qualifications, that discretion is exercisable at the time when a decision about certification is made. Here, petitioner had completed his military service and had the necessary qualifications by the time his name was or should have been reached on the special list.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Civil Service §§ 23, 25, 26, 36.

McKINNEY's, Civil Service Law § 50 (4).

NY JUR 2d, Civil Servants and Other Public Officers and Employees §§ 371–373, 394, 399.

ANNOTATION REFERENCE

See ALR Index under Civil Service.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: civil /2 service & special /2 eligible /2 list /p military

POINTS OF COUNSEL

Brown & Gropper, LLP, New York City (*James A. Brown* of counsel), for appellant. I. The plain language of the Military Law confers upon appellant the right to be placed on a special eligible list. II. The appellate court below erred when it determined that appellant was required to satisfy the two-year military service requirement by the time his name was reached for certification in January 2008. (*Matter of Scanlan v Buffalo Pub. School Sys.*, 90 NY2d 662.) III. The Military Law was intended to be liberally construed. (*Jensen v General Elec. Co.*, 82 NY2d 77; *Warren v International Bus. Machs. Corp.*, 358 F Supp 2d 301; *21948, LLC v Riaz*, 191 Misc 2d 730.)

Michael A. Cardozo, Corporation Counsel, New York City (*Fay Ng, Pamela Seider Dolgow* and *Maxwell D. Leighton* of counsel), for respondent. Since petitioner did not meet the minimum qualifications for appointment at the time his name was reached on the eligible list and at the time the last appointments were made off the list, the Department of Citywide Administrative Services properly denied petitioner's request to be placed on a special eligible list pursuant to Military Law § 243 (7) and (7-b). (*Matter of DeFrancis v D'Ambrose*, 57 AD2d 804; *Matter of Cotter v Watson*, 282 App Div 292, 306 NY 681; *Matter of Lombardi v City of Schenectady*, 1 AD2d 24; *Matter of City of New York v City Civ. Serv. Commn.*, 60 NY2d 436; *Matter of Sherman v Leonard*, 40 NY2d 1038; *Matter of Bell v Nassau County Civ. Serv. Commn.*, 203 AD2d 285.)

OPINION OF THE COURT

PIGOTT, J.

After petitioner passed a civil service examination, his name was placed on a list maintained by the respondent New York

City Department of Citywide Administrative Services (DCAS) of those eligible to be appointed as a New York City firefighter. He was on military duty when his name was reached on the list. We hold that Military Law § 243 (7) required DCAS to place petitioner on a “special eligible list,” from which he could be certified for appointment after his military duty ended. It is irrelevant, under the governing statutes, whether he met the qualifications for appointment when his name was first reached, so long as he met them when the time to certify him for appointment arrived.

I.

On December 14, 2002, petitioner took an open competitive civil service examination to become a firefighter with the New York City Fire Department. One of the qualifications to be a firefighter is that a candidate, by the date of appointment, must have successfully completed 30 semester credits from an accredited college or university or obtained a four-year high school diploma and completed two years of honorable full-time U.S. military service. At the time petitioner took the examination, he had fulfilled neither of these requirements.

Petitioner passed the examination and was placed on the eligible list. The list was set to expire on May 5, 2008.

Petitioner enlisted in the U.S. Army in April 2006. In April 2007, while he was serving in the Army, the Fire Department notified petitioner by letter of its intent to appoint him from the eligible list. To be appointed, petitioner needed to complete certain medical and psychological testing. Petitioner’s mother responded to the letter and advised the Fire Department that her son was scheduled to be discharged from the Army in September 2008. She was told that upon his discharge, he should contact the Fire Department to complete the remaining parts of the examination.

On January 18, 2008, while he was still on active military duty, petitioner’s list number was reached for possible certification and appointment. All names certified on January 18, 2008 were later appointed to the Fire Department on January 21, 2008.

Petitioner was released from the Army in July 2008. Upon his release, petitioner contacted the Fire Department to take the medical and psychological parts of the examination and submit to a background investigation. In August 2008, petitioner filed an “Application Under State Military Law for Determination of

Rights on Eligible List” with the DCAS, seeking a determination of his rights under Military Law § 243. That section provides that any person whose name is on an eligible list and comes up for certification while on duty shall be placed on a special eligible list provided he makes a request following termination of his military duty and during the period of his eligibility. DCAS denied petitioner’s request to be placed on a special eligible list on the ground that when his name had been reached on January 18, 2008, he had not completed two years of military service.

II.

Petitioner commenced this CPLR article 78 proceeding, challenging the determination of DCAS as arbitrary and capricious and in violation of section 243 (7) and (7-b) of the Military Law. Supreme Court denied the petition and dismissed the proceeding (24 Misc 3d 849 [2009]).

The Appellate Division, with two Justices dissenting, affirmed (72 AD3d 474 [1st Dept 2010]). The majority reasoned that at the time petitioner was reached for certification on January 18, 2008, and January 21, 2008, when final appointments from the list were made, petitioner had completed neither of the alternative requirements of the position. Thus, the court held that

“[i]n January 2008, petitioner could not have been certified, not because he was in military service, but because he had failed at that time to meet the minimum eligibility requirements. Thus, he was not qualified for placement on a special eligible list from which selection for the position of firefighter could be made, and respondent’s determination was not arbitrary or capricious” (*id.* at 475).

Petitioner appealed to this Court as of right, contending that DCAS was obligated to place him on a special eligible list because he qualified for such status pursuant to Military Law § 243 (7). We agree, and now reverse.

III.

Military Law § 243 (7) provides, in relevant part:

“Any person whose name is on any eligible list shall, while in military duty, retain his rights and status on such list. If the name of any such person is reached for certification during his military duty, it

shall be placed on a special eligible list in the order of his original standing, provided he makes request therefor following termination of his military duty and during the period of his eligibility on such list” (emphasis added).

Here, it is undisputed that petitioner’s name appeared on the examination’s eligible list, and was “reached for certification” while he was serving in the military. Petitioner timely submitted the paperwork necessary for placement on a special eligible list after his discharge, thereby complying with the statutory requirements.

DCAS argues that petitioner was nonetheless ineligible to be placed on a special eligible list because he did not have the required two years of military service when his name was reached on the original eligible list. But DCAS has misconceived the statutory scheme. Section 243 (7) says “shall,” not “may,” and makes no exception for those who do not meet qualifications at the time their names are reached. It gives DCAS no discretion to refuse to put names on a special eligible list. Discretion is given by Civil Service Law § 50 (4) not to certify names of people who do not meet qualifications, but that discretion is exercisable at the time when a decision about certification is made—in this case, when petitioner had completed his military service and his name was or should have been reached on the special list. By then, petitioner had the necessary qualifications.

Accordingly, the order of the Appellate Division should be reversed, with costs, the petition granted, DCAS’s determination denying petitioner placement on a special eligible list annulled and the matter remitted to Supreme Court with directions to remand to DCAS for further proceedings in accordance with this opinion.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur.

Order reversed, etc.

[948 NE2d 428, 924 NYS2d 4]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
PHILLIPS, Appellant.

Argued February 10, 2011; decided March 29, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 15, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Marcy L. Kahn, J.; *see* 14 Misc 3d 1221[A], 2007 NY Slip Op 50119[U]), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, assault in the first degree, aggravated criminal contempt (two counts), criminal contempt in the first degree (two counts), criminal possession of a weapon in the third degree (two counts) and menacing in the third degree.

People v Phillips, 68 AD3d 541, affirmed.

HEADNOTE**Crimes — Fitness to Proceed to Trial**

In the prosecution of defendant arising from defendant's actions in threatening and then subsequently stabbing his wife, Supreme Court did not abuse its discretion in finding that defendant, who had suffered a series of strokes over an 11-year period prior to the criminal incidents that affected his ability to communicate, was fit for trial. The key inquiry in determining whether a criminal defendant is fit for trial is whether the defendant has sufficient present ability to consult with his or her lawyer with a reasonable degree of rational understanding—and whether the defendant has a rational as well as factual understanding of the proceedings against him or her. A finding of trial competency is within the sound discretion of the trial court and involves a legal and not a medical determination. Defendant was not per se unfit for trial given the nature and permanency of his brain injury. That defendant's experts took diametrically opposite positions from the People's experts on the issue of comprehension was a dispute to be resolved by the trial court after considering all available evidence. Here, the trial court concluded that defendant's expert witnesses performed abstract tests that did not properly determine whether defendant had legal competency for trial purposes, whereas the People's experts found that defendant evinced an understanding of the purpose of a trial, the actors in a trial, their roles, the nature of the charges against him, and the severity of a potential conviction and sentence. Moreover, the trial court factored its own personal observations of defendant in reaching its conclusions. Although defense counsel stated that defendant's condition impaired his power to communicate with counsel and undermined his ability to intelligently assist in his own defense, a defense counsel's representation regarding his or her client's fitness for trial is not dispositive, but merely a factor to be considered by the trial court.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 86, 88, 89, 92, 93, 99, 101, 103, 104.

CARMODY-WAIT 2d, Arraignment, Preliminary Hearing, and Fitness to Proceed §§ 179:53–179:56, 179:83, 179:84, 179:89, 179:90.

NY JUR 2d, Criminal Law: Procedure §§ 1785–1787, 1792, 1798, 1799.

ANNOTATION REFERENCE

See ALR Index under Expert and Opinion Evidence; Incompetent or Insane Persons.

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Database: NY-ORCS

Query: fit! /4 trial /s understand! & discretion & expert

POINTS OF COUNSEL

Office of the Appellate Defender, New York City (*Richard M. Greenberg* and *Jessica A. Yager* of counsel), for appellant. The prosecution failed to meet its burden of establishing that James Phillips was competent to assist in his defense where its evidence showed that Mr. Phillips would have extreme difficulty testifying and communicating with counsel, and where the defense established that his ability to understand language was significantly impaired. (*Cooper v Oklahoma*, 517 US 348; *Medina v California*, 505 US 437; *Pate v Robinson*, 383 US 375; *Riggins v Nevada*, 504 US 127; *Dusky v United States*, 362 US 402; *Godinez v Moran*, 509 US 389; *Drope v Missouri*, 420 US 162; *People v Mendez*, 1 NY3d 15; *People v Francabandera*, 33 NY2d 429; *People v Picozzi*, 106 AD2d 413.)

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Timothy C. Stone* and *Susan Gliner* of counsel), for respondent. As the Appellate Division correctly held, the hearing judge's finding that defendant was fit to stand trial was supported by ample evidence. (*People v Francabandera*, 33 NY2d 429; *Wilson v United States*, 391 F2d 460; *Dusky v United States*, 362 US 402; *People v Picozzi*, 106 AD2d 413; *People v Mendez*, 1 NY3d 15; *People v Christopher*, 65 NY2d 417; *People v Valentino*, 78 Misc 2d 678; *People v Pena*, 33 AD3d 374, 8 NY3d 848; *People v Delgado*, 202 AD2d 299, 83 NY2d 966; *People v Jackson*, 60 AD3d 599, 12 NY3d 916.)

OPINION OF THE COURT

JONES, J.

On August 23, 2004, defendant James Phillips was involved in a domestic dispute where he threatened his wife by brandishing a knife in the presence of their two daughters. Consequently, defendant was arrested and his wife obtained an order of protection against him. Approximately two weeks later, on September 10, 2004, defendant was found waiting near his wife's workplace and a second order of protection was issued against him.

On September 22, 2004, while screaming "Die," defendant attacked his wife in the lobby of her apartment building, stabbing her 17 times in the chest, abdomen, forearm, hand, and thigh. He fled the scene and was apprehended by the police minutes after the attack. Defendant's wife survived.

After being indicted on charges of attempted second degree murder, first degree assault, aggravated criminal contempt, first degree criminal contempt, third degree weapon possession, and third degree menacing, defendant was ordered to undergo an examination pursuant to CPL 730.30 (1). Prior to these criminal incidents—over an 11-year period that commenced in the late 1990s—defendant had suffered a series of strokes that affected his ability to communicate. At his initial examination, defendant was found unfit for trial by two psychiatric examiners, remanded to the custody of the Commissioner of Mental Health, and committed to Kirby Forensic Psychiatric Center.

After a five-month stay at Kirby, defendant's treatment team recommended that he was fit for trial and should be reevaluated. Defendant's case was referred to Kirby's Hospital Forensics Committee, and three members of that committee, which included Dr. Capruso, determined that he was unfit for trial based on a series of neurological examinations. Given the conflicting opinions, the matter was referred to Dr. Hicks, the Associate Clinical Director at Kirby, who concluded that defendant was fit for trial. Dr. Kunz, the Clinical Director at Kirby, also examined defendant and determined that he was fit to proceed to trial. After he was discharged from Kirby and returned to the custody of the New York City Commissioner of Correction at Rikers Island, defendant moved to contest the finding of trial competency pursuant to CPL 730.60 (2).

The ensuing hearing was conducted before Supreme Court over a six-month period where both the People and defendant proffered expert medical testimony with respect to defendant's

condition and fitness for trial. The People did not claim that he was malingering or exaggerating his symptoms as both sides agreed that defendant suffered from transcortical motor aphasia, a permanent brain injury that affects defendant's language and speech skills as evidenced by MRIs indicating a permanent lesion in the left hemisphere of defendant's brain. However, the expert opinions sharply diverged with respect to defendant's ability to perceive and comprehend trial proceedings.

On behalf of defendant, Dr. Capruso, a licensed psychologist board certified in clinical neuropsychology, testified that he had conducted several neurological examinations and concluded that defendant suffered from motor speech skill deficits and comprehension issues that called into question defendant's ability to understand legal concepts and assist his attorney. Particularly, defendant had a halting, stammering manner of speaking. And with respect to comprehension, while defendant may understand simple concepts, he appeared to struggle with slightly more complex, or compound concepts. For example, while defendant understood the terms "yellow" and "circle" individually, he had difficulty when questioned about the "yellow circle."

Dr. Henry, the Director of Neurology at Bellevue Hospital, also concluded that while defendant appeared to have general comprehension, he often gave inconsistent answers, casting doubt on his ability to comprehend questions and concepts. For example, when asked twice if he had asthma, defendant answered both "yes" and "no."

For the People, Dr. Hicks, a licensed physician, also board certified in general psychiatry and forensic psychiatry, concluded that defendant was fit for trial. While not a neurologist, Dr. Hicks did have training in neurology in addition to his expertise in forensic psychiatry, a field encompassing both law and psychiatry, and involving matters such as determining legal competency for trial. Dr. Hicks explained that when questioning defendant he would repeat the same question, but phrase it differently, to ensure that defendant understood what was being asked. By using this method, Dr. Hicks found no inconsistent answers. And while defendant had difficulty articulating lengthy responses, he did evince an understanding of the nature of the charges against him and the potential consequences of a trial when he answered that he was accused of stabbing his wife and that a trial could result in a lengthy prison sentence.

The People also produced Dr. Scheuer, a forensic psychologist, who had treated defendant in group therapy sessions at Kirby for seven months. Dr. Scheuer testified that while defendant exhibited speech difficulties, he appeared alert and attentive, and he perceived and understood small nuances like humor. Moreover, defendant acknowledged an understanding of legal terms like plea bargains and defenses when those issues were discussed during treatment sessions.

Finally, defendant testified during the competency hearing. When asked about legal concepts such as the purpose of a trial or pleadings, defendant responded “I know what you are saying, but it’s hard.” However, over the course of his testimony, defendant was able to articulate that he understood the roles of a judge, prosecutor, and defense attorney. Moreover, when asked by the People whether speaking slowly would assist him, defendant responded as follows:

“[THE PEOPLE]: And is it easier for you when we speak slowly?

“[THE DEFENDANT]: No, that doesn’t help.

“[THE PEOPLE]: That doesn’t matter?

“[THE DEFENDANT]: No, I understand, but I can’t say what you saying.

“[THE PEOPLE]: You can understand me, but you can’t say?

“[THE DEFENDANT]: Yeah.”

At the conclusion of the hearing, Supreme Court issued a 55-page decision finding defendant fit for trial. The court credited the People’s experts, finding that defendant’s experts performed tests in the abstract that had no bearing on the legal competency needed for trial. Furthermore, the court considered its own observations during the course of the six-month hearing which included, *inter alia*, defendant’s amusement during humorous moments, turning to counsel when important information was elicited, or answering “not me” when asked who the prosecutor would assist. Moreover, the court concluded that defendant’s responses were “appropriate, susceptible of understanding and rational.”

Following a pretrial conference, Supreme Court issued an order whereby it established numerous guidelines and procedures for the trial such as limiting the trial proceedings to the

morning so that defendant and his counsel could consult in the afternoon.¹

After trial, a jury convicted defendant of all charges. Defendant moved to set aside the verdict and for a new trial pursuant to *Wilson v United States* (391 F2d 460 [DC Cir 1968]) and *People v Francabandera* (33 NY2d 429 [1974]).² Supreme Court

1. Supreme Court's trial accommodations were as follows:

"1. The trial will be held only four days per week (Tuesday through Friday); 2. with the exception of jury selection and any other reasons of special necessity, the trial will be conducted each day from 9:30 a.m. until 1:00 p.m., so that counsel and defendant may confer each afternoon; 3. the court will be willing to take frequent breaks in the proceedings as needed to enable defendant and his counsel to confer; 4. the court will also afford the defendant a recess after the direct testimony of each prosecution witness to enable counsel to confer with the defendant about the witness's direct testimony; 5. in accordance with the court's discretion, the prosecution has provided open file discovery and all *Rosario* material to the defense well in advance of trial; 6. the attorneys will make their best efforts to structure their questions of witnesses to elicit short, unlayered responses, while avoiding leading questions to the greatest extent possible; 7. defendant and counsel have been furnished a copy of the videotape of the alleged incident on September 22, 2004 to enable them to review it well before trial; 8. the court [h]as held a two-day pre-trial conference to assure that adequate preparations are made to accommodate the defendant's transcortical motor aphasia condition; 9. the parties are instructed that should the defendant choose to testify, attorneys should restate their questions to him in different ways, to assure that he has used the word intended in responding to their questions; 10. the parties may obtain daily copies or expedited transcripts, at their own expense; the court will make the official court reporter available for readback, if necessary, prior to the receipt of the trial transcript; 11. should the need arise, the court will entertain a[n] application to recall witnesses to repeat portion[s] of their testimony, in the event that reference to the transcript is insufficient." (14 Misc 3d 1221[A], 2007 NY Slip Op 50119[U], *3 n 2.)

2. In the context of amnesiac criminal defendants, both *Wilson* and *Francabandera* require a post-trial review of the trial record to ensure that the defendant received a fair trial pursuant to the following factors:

"(1) The extent to which the amnesia affected the defendant's ability to consult with and assist his lawyer.

"(2) The extent to which the amnesia affected the defendant's ability to testify in his own behalf.

"(3) The extent to which the evidence in suit could be extrinsically reconstructed in view of the defendant's amnesia. Such evidence would include evidence relating to the crime itself as well as any reasonably possible alibi.

(n. cont'd)

concluded that defendant's condition did not inhibit his ability to communicate with counsel and present a defense as his conduct and responses during the course of the trial indicated comprehension and perception of the proceedings. The trial court had observed defendant react to evidence and consult with counsel. Furthermore, defendant engaged in colloquies with the court that demonstrated an understanding of the legal issues presented.

The Appellate Division affirmed, holding that there was no basis to overturn the finding that defendant was fit for trial based on the thorough competency hearing and the trial court's resolution of the conflicting expert testimony (68 AD3d 541 [1st Dept 2009]). A Judge of this Court granted defendant leave to appeal (14 NY3d 843 [2010]), and we now affirm.

The key inquiry in determining whether a criminal defendant is fit for trial is "whether he [or she] has sufficient present ability to consult with his [or her] lawyer with a reasonable degree of rational understanding—and whether he [or she] has a rational as well as factual understanding of the proceedings against him [or her]" (*Dusky v United States*, 362 US 402, 402 [1960]). In New York, article 730 of the Criminal Procedure Law prescribes the procedures that trial courts of this State must adhere to in determining a defendant's legal competency for trial. Particularly, CPL 730.30 (2) provides that "[i]f, following a hearing, the court is satisfied that the defendant is not an incapacitated person, the criminal action against him must proceed." An "incapacitated person" is "a defendant who as a result of mental disease or defect lacks capacity to understand the proceedings against him or to assist in his own defense" (CPL 730.10 [1]).

"(4) The extent to which the Government assisted the defendant and his counsel in that reconstruction.

"(5) The strength of the prosecution's case. Most important here will be whether the Government's case is such as to negate all reasonable hypotheses of innocence. If there is any substantial possibility that the accused could, but for his amnesia, establish an alibi or other defense, it should be presumed that he would have been able to do so.

"(6) Any other facts and circumstances which would indicate whether or not the defendant had a fair trial." (*Francabandera* at 436 n 4, quoting *Wilson* at 463-464.)

In its order on trial accommodations, the trial court had similarly provided for a post-trial review of the record in the event of a conviction.

A finding of trial competency is within the sound discretion of the trial court and involves “a legal and not a medical determination” (*People v Mendez*, 1 NY3d 15, 20 [2003]). The findings of the trial court are entitled to great weight (*see People v Pena*, 33 AD3d 374, 374 [1st Dept 2006]) and this Court’s review powers are limited. We must accord substantial deference to the trial court’s determination so long as it is supported by the record (*see Mendez*, 1 NY3d at 20; *People v Morgan*, 87 NY2d 878, 881 [1995]; *People v Robustelli*, 189 AD2d 668, 672 [1st Dept 1993]).

The trial court has the responsibility of assessing and weighing the competing evidence presented on the issue of a defendant’s fitness for trial. This often involves the extensive medical conclusions presented as well as the representations of defense counsel regarding his or her client’s fitness for trial. And while the testimony of experts and the assertions of counsel may be readily ascertained, there are other indicia of trial fitness considered by the court that may escape the record, but nonetheless evince a defendant’s understanding of the proceedings. For example, the manner in which the defendant interacts with the court, communicates with defense counsel, or physically reacts to a question or piece of testimony cannot adequately be captured by the record, but has a bearing on the issue of fitness for trial and can be perceived and evaluated by the trial judge. Accordingly, we have held that a court may consider its own personal observations of a defendant in determining fitness for trial (*see Mendez*, 1 NY3d at 20 [“Moreover, the trial court had the opportunity to observe defendant’s behavior and to evaluate the testimony of the psychiatrists”]; *People v Tortorici*, 92 NY2d 757, 766 [1999] [“The Trial Judge additionally could consider his ‘progressive personal observations of defendant’ ”]; *Morgan*, 87 NY2d at 880 [“The Judge also saw the defendant actively participating in every aspect of his case . . . Additionally, the Judge personally interacted with the defendant on several occasions, including plea discussions, in which the defendant evinced a particularized understanding of the nature of the proceedings and what was unfolding”]).

Defendant contends that he was per se unfit for trial given the nature and permanency of his brain injury. As an initial matter, trial fitness is a legal, judicial determination, and not a medical one (*see People v Gensler*, 72 NY2d 239, 244-245 [1988]). That defendant’s experts took diametrically opposite positions from the People’s experts on the issue of comprehension is a

dispute to be resolved by the trial court after considering all available evidence (*see id.*; *see also Pena*, 33 AD3d at 374). Here, the trial court concluded that defendant's expert witnesses performed abstract tests that did not properly determine whether defendant had legal competency for trial purposes, whereas the People's experts found that defendant evinced an understanding of the purpose of a trial, the actors in a trial, their roles, the nature of the charges against him, and the severity of a potential conviction and sentence.

The trial court credited Dr. Scheuer who had the most extensive interaction with defendant during the course of his treatment and had observed conduct indicating comprehension (*see People v Breeden*, 115 AD2d 484 [2d Dept 1985]). Furthermore, Dr. Hicks, a physician with training in neurology and forensic psychiatry, concluded that defendant evinced a comprehension of the proceedings. While all sides agreed that defendant possessed motor speech issues, Dr. Hicks presented findings that if a question was posed in multiple forms, it ensured that defendant understood what was being asked and that his answers were not inconsistent. Also, the trial court had found defendant's answers to be coherent, rational, and relevant, albeit truncated at times.

Moreover, the trial court factored its own personal observations of defendant in reaching its conclusions (*see Mendez*, 1 NY3d at 20; *Tortorici*, 92 NY2d at 766; *Morgan*, 87 NY2d at 880). Specifically, the court stated that it had observed and interacted with defendant during the six-month competency hearing and noted conduct and responses that evinced perception and comprehension of the nature of the proceedings. In addition, during the one-month trial, the court noted that defendant actively consulted with counsel, reacted appropriately to testimony and evidence, and engaged in colloquy with the court that demonstrated an understanding of the nature and import of the proceedings (*see Gensler*, 72 NY2d at 245).

Defendant also argues that the trial court disregarded defense counsel's representations that defendant's condition impaired his power to communicate with counsel and undermined his ability to intelligently assist in his own defense. However, a defense counsel's representation regarding his or her client's fitness for trial is not dispositive, but merely a factor to be considered by the trial court. A "defense counsel's observations and representations, without more, do not and should not serve as an automatic substitute for the court's statutory discretion" (*Morgan*, 87 NY2d at 880).

We also find significant the meticulous accommodations instituted by the court during the course of the trial that afforded defendant ample opportunity to consult with counsel and prepare his defense (*see generally Tortorici*, 92 NY2d at 767). The trial court was thorough and conscientious in its approach to this case as evidenced by the lengthy, six-month hearing to determine defendant's competency, its detailed findings and decisions, its comprehensive trial procedures to accommodate defendant, and its post-trial review of the record to ensure that defendant received a fair trial.

When crediting expert testimony in a CPL article 730 hearing, it is the role of the trial court to consider factors such as the qualifications of the expert witnesses. To conclude, as the dissent does, that the testimony of defendant's witnesses had more probative force because of their qualifications as neurological experts is to make a determination based on the weight of the evidence, a role beyond this Court's purview. It was for the instant trial court to credit, for example, the findings of Dr. Hicks, a licensed physician and forensic psychiatrist who also had training in neurology, over the testimony of Dr. Capruso, a licensed psychologist. This Court must defer to the findings of the trial court so long as there is record support for those determinations. Given the extensive record evidence in this case, we find no abuse of discretion and no basis to disturb defendant's judgment of conviction.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (dissenting). The issue is whether the People met their burden to show by a preponderance of the evidence that defendant was competent to stand trial. It is an issue of a kind that ordinarily implicates a mixture of factual and legal findings in its determination, and, accordingly, is rarely jurisdictionally appropriate for our review. This, however, is a most unusual case.

On September 22, 2004, defendant, convinced that his wife had been unfaithful to him and heedless of previously issued orders of protection obtained by her against him, accosted her in the lobby of her apartment building and stabbed her repeatedly. The incident was recorded by a surveillance video camera and defendant's commission of the stabbing has never been disputed.

Based on the stabbing and other related incidents of alleged spousal abuse committed in violation of outstanding orders of

protection, defendant was indicted for numerous crimes, most notably attempted murder, and, as an incident of the prosecution thus commenced, defendant was, pursuant to CPL 730.30 (1), ordered examined to determine whether he was fit to answer the charges against him. He was thereupon admitted to Bellevue Hospital and examined there in November and December of 2004 by two qualified psychiatrists and other health care professionals. His attorney was present during one evaluative session and his interaction with her was observed by the doctors.

Both psychiatrists concluded that defendant was unfit. They noted that defendant had a history of microvascular disease, and, some six years before, had suffered a series of strokes leaving him with extensive brain damage. CT and MRI scans performed during the Bellevue hospitalization disclosed a large lesion on the left side of defendant's brain and defendant exhibited halting and dysarthric speech, poor concentration, poor short-term memory and significant right-side weakness, all of which the doctors understood to be attributable to the lesion. Psychological testing, also performed during the Bellevue hospitalization, confirmed the existence of significant cognitive disabilities consistent with defendant's neurologic history. Defendant scored in the impaired range on both of the standard neurologic batteries administered to him: the testing showed significant impairment in defendant's memory (both immediate and delayed), attention, and abstract reasoning, and notable, although less severe, impairment of his executive functioning. Although he demonstrated some superficial familiarity with the roles of trial participants, his evident inability to think abstractly, even on a basic level, was found to preclude him from assisting his attorney in his defense. This conclusion was reached after both doctors had observed defendant's lawyer attempt to discuss with him his legal options.¹ Dr. Manuel Lopez-Leon wrote,

“[d]uring this interview [the interview conducted with defendant's attorney present] it became clear

1. Lest there should be any question as to whether the futility of this exercise was attributable to some flaw in the attorney's approach to the representation, it should be noted that the relationship was, apart from its apparently organically fated inutility, on a personal level, excellent. It is, moreover, clear from the record that defendant's attorney was an uncommonly gifted legal advocate and uniquely well-qualified for this particular representation by reason of her prior career as a psychologist.

that Mr. Phillips concrete reasoning, speech impediments, and other symptoms of dementia severely impaired his ability to understand and rationally manipulate information pertaining to his case. He was not able to retain and repeat information pertinent to potential legal strategies, and did not grasp the magnitude of the consequences derived from those strategies.”

And, the second examiner, Dr. Doonam Kim, similarly noted

“Mr. Phillips demonstrated much difficulty in using information provided by his lawyer to appropriately discuss legal options in regards to his case . . . Even when discussing issues unrelated to his legal case, he was unable to answer questions without difficulty or an extreme amount of effort given his physical and cognitive limitations.”

In receipt of these competency assessments, Justice Soloff adjudged defendant an incapacitated person within the meaning of CPL 730.10 (1), i.e., “a defendant who as a result of mental disease or defect lacks capacity to understand the proceedings against him or to assist in his own defense,” and in January of 2005 remanded him to the custody of the Commissioner of Mental Health pursuant to CPL 730.50 (1).

Some six months later, defendant’s “restoration of fitness” treatment team at Kirby Forensic Psychiatric Center announced that defendant was now fit to be tried. The treatment team’s conclusion as to the efficacy of its restorative efforts, however, was not concurred in by the Hospital Forensics Committee,² which, in accordance with the evaluation and recommendation of committee member Daniel Capruso, Ph.D., a diplomate in clinical neuropsychology, unanimously found that defendant remained unfit.

In his neuropsychological assessment and accompanying competency evaluation, and in his ensuing testimony at defendant’s competency hearing, Capruso stated that defendant suffered from transcortical motor aphasia, a diagnosis he had carried since his series of strokes in the late 1990s. This was a

2. Hospital forensics committees are required in state psychiatric facilities under the Office of Mental Health’s regulations (*see* 14 NYCRR 541.3). These committees, composed of licensed mental health clinicians (one of whom must be a board-certified psychiatrist) (*id.*) must be consulted in connection with all forensically related decisions made respecting patients committed via provisions of the Criminal Procedure Law (*see* 14 NYCRR 541.9).

permanent and irreversible condition following from and neurologically correlating with his stroke-induced brain damage. Capruso reviewed in considerable detail defendant's MRI brain scans, pointing out the damaged areas of defendant's left, and, to a lesser extent, right brain. He explained that the left hemisphere lesion, ventricular expansion and concomitant loss of brain mass could be expected to compromise brain function, particularly with respect to the transmission of impulses necessary to the use of language. Citing an authoritative text, Capruso stated that the vast majority of those who suffered left hemisphere injuries such as defendant's were left with language comprehension deficits. That defendant was not a fortunate exception was borne out in Capruso's neuropsychological testing. That testing, employing standard batteries scaled to account for social and educational factors, disclosed extraordinary language deficits. In fluency, naming, repetition and comprehension defendant, then 59 years of age, performed below the level of a six year old. The "problem" said Capruso, "is generating and understanding words, language." Although defendant was capable of responding to simple inquiries, he was demonstrably unable to comprehend or reliably respond to even slightly more complex statements and/or questions. In his neuropsychological evaluation report Capruso wrote:

"Although it is true that the patient is capable of comprehending simple words and phrases, he can not reliably comprehend and execute complex commands. Thus while the patient can understand relatively simple legal concepts, such as the charges against him, legal information of slightly greater complexity is beyond his comprehension. He would be unable to adequately follow the discourse in a typical court proceeding, which often involves complex questions, elaborated answers, and objections from opposing attorneys. Although his visual memory may be adequate under some circumstances, his verbal memory is deficient, and he remembers less than half of what he has been told, even when he needs only to recognize the material, instead of having to recall it himself. His verbal fluency is so limited that he could not possibly take the stand and testify in his own defense."

In his CPL article 730 fitness evaluation,³ Dr. Capruso noted, in response to the specifically framed inquiries on the standard form, that defendant by reason of his aphasia suffered from moderate impairments of perception and memory, and severe impairment of his ability to think and communicate. While Capruso detected that defendant had some rudimentary understanding of what happened at a trial, he found, as had the Bellevue evaluators, that defendant's ability to establish a working relationship with an attorney was severely impaired, as was his ability to listen to the advice of counsel and consider the risks and benefits of alternative courses of legal action. When Capruso asked defendant how he could help his lawyer defend him, defendant replied, "[t]he doctor put a wire in my heart."

In light of the sharply differing recommendations of the treatment team and the Hospital Forensics Committee, Dr. James Hicks, a board-certified psychiatrist and the Associate Clinical Director of Kirby Forensic Psychiatric Center, was called upon to review and resolve the matter.⁴ Hicks found defendant fit. In his CPL article 730 report to the court and subsequent hearing testimony he acknowledged that defendant had a large left hemisphere brain lesion, which he referred to as a "big hole," and that his condition could not improve and indeed could only worsen.⁵ He, however, was of the view that defendant's cognitive ability—at least as much of it as was necessary to comprehend trial proceedings—had not been significantly impaired. He noted that he had, by asking defendant yes-or-no questions or questions requiring only simple one-word answers, been able to gather that defendant understood what he had been accused of; that he was aware that a jury might have "mixed feelings"⁶ about his behavior towards his wife; that he understood the

3. Contrary to the majority's suggestion, Dr. Capruso's conclusion as to defendant's fitness was not based simply on a series of neurological examinations.

4. Hicks explained in his testimony that the defendant's case was initially referred to him for an opinion as to whether, in light of the untreatable nature of his disability, defendant was a candidate for *Jackson* relief, i.e., the dismissal of the indictment followed by either release or civil commitment (see *Jackson v Indiana*, 406 US 715, 738 [1972]).

5. Although it was Hicks's view that defendant was fit, he also was of the view that, if defendant was ultimately found unfit, he should be afforded *Jackson* relief since his condition was intransigent.

6. These were Hicks's words, not defendant's. Hicks, it should be noted, kept no notes of his interview with defendant and his testimony did not purport to convey with literal exactitude what was said. Defendant during his

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roles of the trial participants; that, if convicted, he faced a sentence of 25 years (which could well mean that he would die in prison); and, that he could receive a lesser sentence by entering a plea.

Hicks, however, did acknowledge significant impairment of defendant's ability to express himself and that his aphasia posed an obvious challenge to attorney-client communication. In finding defendant fit, he had apparently assumed that defendant would plead guilty; although he thought that defendant could be tried, he conceded that "[a] trial would be problematic," and that it would "require[] some thought by the people who know the court more than I do in terms of what exactly would be demanded of [defendant]." Hicks admitted during his hearing testimony that he had not previously considered whether defendant would be able to testify in his own behalf. Considering the prospect for the first time, he owned that testifying would be defendant's "biggest challenge." Defendant, he observed, could not respond to open-ended questions and, if he testified, would have to be led.

In addition to the testimony and evaluation of Dr. Hicks, the People relied at the competency hearing upon the testimony of Cynthia Scheuer, Ph.D., a psychologist and a member of defendant's treatment team at Kirby. Scheuer was quite clear that she was not defendant's therapist—at least not in any commonly understood sense. She never met with defendant individually. Rather, her observations and occasional interaction with him occurred when, once or twice a week, he along with 15 to 20 other patients attended "restoration of fitness" groups, which she led. The purpose of these meetings, explained Scheuer, was to educate unfit defendants respecting criminal justice issues so that they might eventually evince sufficient comprehension of criminal proceedings to be deemed fit and returned to court. Scheuer was quite certain that defendant had no cognitive deficits. She was also sure that he had made significant strides during his Kirby hospitalization and repeatedly noted in his chart that he had improved. She allowed that he had difficulty verbalizing and that he said very little, but insisted, without explanation, that "he just seemed to understand what was going on." She found it telling that he seemed to respond to her humor.

competency hearing testimony, denied that he had ever met with Hicks privately. He said that they spoke in the "gym."

The defense witnesses at the competency hearing, in addition to Dr. Capruso, included Dr. Katherine Henry and defendant himself.

Doctor Henry, the Director of the Department of Neurology at Bellevue, testified that she had interviewed defendant at Bellevue⁷ and, among other things, had elicited from him several sets of completely inconsistent responses to simple questions, which although differently worded, sought the same information. Based on her clinical findings, and after reviewing defendant's medical records, his brain scans, and the neuropsychological testing performed by Dr. Capruso, she concurred in the diagnosis of transcortical motor aphasia and agreed with Dr. Capruso that defendant's aphasia involved not only the compromise of his ability to use language expressively but also significant impairment of his ability to think and understand. Defendant, she said, was capable of following simple directions and giving simple responses, but could not execute commands involving several steps—even when they were very straightforward—and was incapable of reliably responding to open-ended (i.e., non-yes-or-no) questions. She reviewed his brain scans in considerable detail and explained that the radiologically confirmed damage to his left frontal lobe correlated well to his expressive and cognitive deficiencies; the damage affected areas of the brain through which neural impulses necessary to those faculties had to pass. It was, she noted, “a big lesion” affecting “[e]lloquence, speech, your ability to communicate, to be verbal, to function in life, as it were, to process information.”

Obliquely addressing Dr. Scheuer's impressions, Dr. Henry explained that aphasics commonly tried to cooperate and furnish what they believed were socially appropriate responses, and that by means of parroting, facial expressions and short answers they frequently succeeded in producing in inexperienced observers a false impression of comprehension. Even in clinical settings, much would be read into their answers and behavior that simply could not be there given the actual level of impairment disclosed in neuropsychological testing. Dr. Henry noted that defendant had, since his debilitating strokes in the late 1990s, been perceived to be significantly more comprehending than he was;

7. Defendant was readmitted to Bellevue from Rikers Island (to which he had been returned following his discharge from Kirby) during the competency hearing (which took place over seven days spread out over some six months) to ascertain whether he had had yet another stroke. It was during the course of that hospitalization that he was interviewed and examined by Dr. Henry.

there had not infrequently been a striking disparity between the clinical impressions of those untrained in neurology or speech pathology and defendant's expert neuropsychological evaluations and testing, which had consistently disclosed dramatic deficits in memory and comprehension. "Because of the expressive piece," explained Dr. Henry, "you can't tell. And if you can't tell, you can't tell. So somebody observing a patient in a ward will fill in the gaps if they need to. I mean, you'll take it at face value . . . Even a professional because it's natural to do that." Of course, defendant did understand some things, but the difficulty was that it was often very hard to ascertain precisely what he did and did not grasp. "The trouble," observed Dr. Henry, "is, you don't know where his capability would stop and his inability would step in . . . It would always be an assumption on somebody's part . . . [T]he damage to his brain is going to keep him from processing things coming in and expressing things coming out." Dr. Henry was of the opinion that defendant was not capable of informed consent in the medical setting and that his deficits would make his participation in his defense impracticable: "I don't think his working memory is working well enough to hear a piece of information here, store it, bring it back, observe what's going on and apply it to be able to participate actively in his own defense." In her view, there was no special accommodation that could compensate for these fundamental cognitive deficiencies.

Defendant's competency hearing testimony consisted largely of his response to a standard hypothetical evidently frequently used to assess a defendant's ability to assist in his or her defense. Defendant's answers, taken at face value, indicated that he did not understand what a guilty plea was or what it entailed,⁸ and, when he was questioned respecting the hypothetical—a simple scenario involving a fight in a bar—his responses demonstrated, not merely incomprehension, but characteristically paraphasic interpolations of at best irrelevant and at worst potentially incriminating detail. Defendant, for example, indicated that the most important fact to tell his attorney was that his hypothetical victim was bleeding when, in fact, there had been no mention at all of any such circumstance.

At the conclusion of the competency hearing, defendant's attorney implored the court to find defendant incapacitated,

8. This testimony is hard to reconcile with Dr. Hicks's account of defendant's knowledge of pleas. Hicks was apparently the only examiner favored by defendant with a display of his conversancy in the lore of pleas.

noting on the basis of her already lengthy experience representing him that her client's verbiage was "at best confusing, certainly unreliable, [and] sometimes inculpatory." She asserted that he could not testify and could not understand the theory upon which a trial defense would have to rest, namely, lack of responsibility by reason of mental defect. She stated, "I am telling you that I believe that Mr. Phillips is incapable of assisting me in his defense. I cannot get him to a point where I feel comfortable where I feel that he is able to assist me."

The court nonetheless found defendant fit. After a lengthy review of the evidence, it concluded, "[a]lthough [defendant] suffers from transcortical motor aphasia, he does not exhibit any severe mental impairment or imbalance in his current mental state." In reaching this conclusion, the court attached little weight to the neuropsychological testing adduced by the defense and elected to rely most heavily on the observations of defendant by Dr. Scheuer, which she felt corresponded to her own observations of him in court. Defendant seemed to her adequately to understand what was transpiring even if he could not always verbalize appropriate responses. She acknowledged the significant limitations in defendant's ability to express himself, but was of the opinion that various accommodations would enable defendant to participate sufficiently in his defense. These included shortened court sessions with frequent breaks and recesses to allow for more extended lawyer/client consultation; open file discovery; encouragement of questions that would elicit short, unlayered responses, and, if defendant testified, the restatement of questions in different ways "to assure that he has used the word intended in responding"; daily copies of the trial transcript; and the court's willingness to entertain applications for the recall of witnesses. The court also indicated that, in the event of a conviction, it would review the proceedings, applying the criteria set forth in *People v Francabandera* (33 NY2d 429 [1974]) and *Wilson v United States* (391 F2d 460 [DC Cir 1968]) to determine whether, in light of his disability, defendant had received a fair trial. The court eventually did perform this retrospective analysis over the objections of both sides⁹ and found that the trial had been fair.

9. Although defendant's counsel did in the end ask that the verdict be set aside as the product of an unfair trial, counsel had consistently opposed the retrospective evaluation proposed by the court, maintaining that no level of accommodation could compensate for her client's essential lack of capacity to

(n. cont'd)

The Appellate Division affirmed defendant's judgment of conviction in a brief memorandum (68 AD3d 541 [2009]). It found no basis to disturb the trial court's weighing of the conflicting testimony. It agreed with the trial court that standardized tests were of "limited value" in determining legal competency and that Dr. Scheuer's testimony was "very significant" because of her extended contact with defendant (*id.* at 542).

It is fundamentally incompatible with due process to try an incompetent defendant (*Cooper v Oklahoma*, 517 US 348, 364 [1996]). If, then, a defendant is to be tried he or she must have the basic capacity to exercise those rights upon which the fairness of a trial has been understood to depend, including the right to effective representation, to confront and cross-examine witnesses, and to elect to testify or to refrain from doing so without penalty. Minimally, a defendant must be able to understand the proceedings against him and possess "sufficient present ability to consult with his lawyer with a reasonable degree of rational understanding" (*Dusky v United States*, 362 US 402, 402 [1960]). Accordingly, in New York a defendant may not be tried and will be deemed an "incapacitated person" if "as a result of mental disease or defect [he or she] lacks capacity to understand the proceedings against him [or her] or to assist in his [or her] own defense" (CPL 730.10 [1]). Once a bona fide issue has been raised respecting a defendant's fitness, it is the prosecution's burden to demonstrate fitness by a preponderance (*People v Mendez*, 1 NY3d 15, 19 [2003]). Our review of a fitness determination is limited to whether the evidence is legally sufficient to support the determination (*id.* at 20). This does not mean, however, that a determination of fitness must be upheld because there is some evidence to support it. In *People v Jordan* (35 NY2d 577 [1974]), for example, we acknowledged that there was some medical evidence to support the view that defendant was fit but nonetheless found that "the proof [fell] short, as a matter of law, of meeting the requirement that defendant be able to comprehend his predicament and be capable of participating rationally in his own defense" (*id.* at 581). It is, of course, true that a fitness determination is ultimately a legal, and not a medical, finding (see *People v Tortorici*, 92 NY2d 757

understand the proceedings and assist in his defense. The prosecution, on the other hand, opposed the post-trial evaluation on the ground that, since defendant had been deemed fit, there should be no residual issue as to whether he had by reason of disability been deprived of a fair trial.

[1999]), but like any other legal finding it must rest upon an adequate factual foundation. This one did not.

In passing upon the sufficiency of the People's showing of defendant's fitness, it is useful to note that most of the material facts and circumstances are undisputed. Defendant suffers from aphasia secondary to stroke-induced brain damage. He is consequently largely bereft of the ability to express himself in words; he has no fluency, must labor to say even simple things and is prone to paraphasic intrusions (i.e., expressions that have no logical relevance but appear in speech simply as artifacts of neurologic disorder). Psychological testing has repeatedly shown that defendant's aphasia implicates not only his ability to communicate but his ability to think and understand. After evaluating defendant and observing his interaction with his attorney, two qualified examiners found him unfit to be tried upon the pending indictment because, in their judgment, his physical and cognitive limitations precluded him from effectively assisting his attorney in his defense. There is not and never has been a contention that defendant is malingering; his brain damage and its aphasic expression are demonstrably real, extensive and irremediable. All the medical experts agreed that defendant's condition cannot improve and will likely worsen. Indeed, despite Dr. Scheuer's many notations in the hospital chart to the effect that she had observed improvement in defendant, the medical evidence is overwhelming that defendant's basic debilitating condition could not have improved a whit during his stay at Kirby.¹⁰

The question which inevitably arises is how defendant could have been found fit by his "restoration of fitness" treatment team when he had only months before been found unfit by reason of the unalterable sequellae of irreversible brain damage. One can of course hypothesize that the extent of defendant's impairment was misjudged by his Bellevue evaluators—that although he manifested undeniable speech pathology he had, as Dr. Scheuer ventured, no cognitive deficits, or at least none that would prevent him from being deemed fit for trial. There is, however, no competent medical evidence to support such a theory and much to refute it.

As the trial court recognized, and as is in any case clear, defendant suffered and claimed to be incapacitated not from a

10. Dr. Hicks testified that he found these notes "a little puzzling" given the fundamentally irreversible nature of defendant's brain damage and consequent aphasia.

psychiatric illness but from a neurologic injury and consequent neurologic disorder. The only neurologic experts to testify at defendant's competency hearing were Dr. Capruso, who was qualified both as an expert in forensic psychology and neuropsychology, and Dr. Henry, a neurologist of evident eminence. Only these witnesses were qualified to offer expert opinion testimony as to the nature and extent of defendant's neurologic disorder. The People's witnesses, Drs. Hicks and Scheuer, although undoubtedly possessing expertise in forensic psychiatry and psychology, respectively, were never qualified as neurological experts. Indeed, the court stated quite clearly on the record that Dr. Hicks was not being qualified to testify as an expert in neurology and he repeatedly indicated that neurology and neuropsychology were not his areas of expertise. He, in fact, stated that he generally relied on Dr. Capruso for neuropsychological findings. As for Dr. Scheuer, there was not the slightest suggestion that she was qualified to offer a view as to the nature or extent of defendant's disorder. While Scheuer and Hicks could of course testify respecting their personal interactions with and observations of defendant, their opinions as to the severity of his underlying condition and the level of intellectual functioning it could be reasonably expected to permit, were not appropriately relied upon by the court.

While fitness to stand trial may be, and often is, established notwithstanding a defendant's affliction with a neurological disorder, it is obvious that there may come a point at which such a disorder will so compromise thought and judgment as to preclude a finding that he or she is capable of understanding the proceedings and assisting his or her attorney in presenting a defense. As this record compellingly demonstrates, whether that point has been reached is not always reliably ascertained on the basis of a standard competency exam. Here, it was manifest that defendant's ability to speak had been devastated by a catastrophic series of neurologic events. Whether, despite his substantial loss of expressive language, defendant retained sufficient cognitive capacity to understand the proceedings against him was an inquiry which an interview seeking to elicit information in spoken form was ill-suited to answer. Indeed, as Dr. Henry testified, it is treacherously difficult to gauge the extent of an aphasic's intellectual functioning and persons inexpert in neurology and language pathology—even otherwise learned health care professionals—are prone to err, often with the kindest of intentions, in ascribing to aphasics greater

comprehension than they actually possess. In this context particularly, science was not to be shunned in favor of what amounted to little more than anecdotal accounts of what the defendant on one occasion or another seemed to understand. Standardized neuropsychological testing was in defendant's case not, as the trial court and Appellate Division thought, of "limited value," it was the only scientifically reliable means of judging defendant's cognitive capacity.

As noted, that testing, both at Bellevue and as performed by Dr. Capruso at Kirby Forensic Psychiatric Center, showed that defendant was significantly impaired—that his basic ability to use language and think had been so compromised that in critical areas of cognitive performance he was functioning on the level of a six year old. While the threshold for fitness is not high and borderline intellectual functioning is ordinarily not preclusive of a fitness finding, the deficits disclosed by defendant's testing were profound, in numerous categories placing him in the very lowest percentiles, and, particularly when coupled with his expressive disability, raised a profound question as to whether he could in fact comprehend the proceedings and assist his attorney. Inasmuch as there was no competent countervailing proof that the defendant's neurologic injury was not so severe as to cast his fitness in doubt, it is plain that the People did not meet their burden to demonstrate fitness by a preponderance and that defendant should have been deemed an incapacitated person.

While it is true that numerous persons with medical and psychological expertise testified at defendant's competency hearing, and that they did not always agree, the proceeding is not therefore accurately pigeonholed as a "battle of the experts" properly and unreviewably resolved by the hearing court's crediting of the experts of one side. As noted, upon the crucial issue in this competency proceeding—the extent to which defendant's neurological defect would interfere with his ability to comprehend and participate in the trial—there was no "battle" at all. The qualified opinion testimony was unanimous that defendant's cognitive impairment was incompatible with comprehension of a proceeding as inevitably complex as a criminal trial.

Even if the expert testimony bearing upon the magnitude of defendant's neurologic injury and its cognitive sequelae were discounted, and consideration were limited to the information elicited on the standard competency exams, the evidence would

still be insufficient to support a fitness finding. Leaving aside the issue of how much defendant was capable of understanding, it was absolutely clear to all of the doctors who assessed his essentially static aphasic condition that defendant was severely impeded in communicating—that he could summon and use words only with the greatest difficulty and that, for the most part, he could communicate, even urgent needs, only by means of dialogue involving the skilled use of yes-or-no questions. The two Bellevue evaluators who had the benefit of seeing defendant interact with his attorney were quick to understand that he could not effectively assist her in responding to the serious charges against him, as was Dr. Capruso. The impracticability of effective trial representation was, of course, eloquently confirmed in court by defendant’s attorney, whose view, particularly after having represented and intensively dealt with defendant for a year, was entitled to serious consideration (*see Medina v California*, 505 US 437, 450 [1992] [“defense counsel will often have the best-informed view of the defendant’s ability to participate in his defense”]; *United States ex rel. Roth v Zelker*, 455 F2d 1105, 1108 [2d Cir 1972] [“The opinion of a defendant’s attorney as to his ability to understand the nature of the proceedings and to cooperate in the preparation of his defense, is indeed significant and probative”]; *People v Gellikaya*, 84 NY2d 456, 460 [1994] [defense counsel “was in the best position to assess defendant’s capacity”]; *see also People v Jordan*, 35 NY2d at 580), not only because of her extensive contact with defendant but because of the enormous practical and ethical difficulty of discharging the representational obligations that would be entailed by a finding that her profoundly disabled client was fit.¹¹ It was confirmed as well by defendant’s hearing testimony, which demonstrated, fairly dramatically, that defendant would not be able usefully to communicate with his counsel about legal matters.

Only Dr. Hicks proposed as a viable option that defendant collaborate with his attorney by means of yes-or-no exchanges. He, however, admitted that he had been thinking in terms of a plea and had not really considered how this device might be accommodated in the context of a rapidly unfolding trial. “A trial,” he

11. This, it should be stressed, was not, as the majority suggests in its citation to *People v Morgan* (87 NY2d 878, 880 [1995]), a situation in which the court had before it only the bare “observations and representations” of counsel. The record in this case overwhelmingly demonstrated that counsel’s representations were authentically premised.

said, would be “problematic” and testimony by the defendant in his own defense, even more so; defendant, he suggested, would have to be constantly led in his testimony and the discourse of the trial kept simple. Hicks, who acknowledged that he did not know much about trials, perhaps can be forgiven for proposing such a manifestly unworkable accommodation, but judges should know better. It was simply unrealistic to suppose that the legal, procedural and testimonial complexities of a criminal trial could be usefully discussed by a lawyer with his or her client in the form of serial yes-or-no questions, much less that such an unwieldy means of conferring—made all the more so by the need, recognized by Dr. Hicks, to check and recheck all of defendant’s replies by other yes-or-no questions¹²—could be availing amid the press of trial proceedings. Given all that Hicks did not consider and the contrary conclusions of all of the other professionals who had formally evaluated defendant,¹³ it would be exceedingly difficult to say “on the whole record in this case” (*People v Jordan*, 35 NY2d at 581) that defendant’s fitness had been made out.

The People’s other witness, Dr. Scheuer, it should be noted, never formally interviewed defendant or evaluated his competency. That her manifestly erroneous and highly subjective impressions of defendant were accorded practically dispositive significance on the fundamental issue of competency is a matter of concern. A determination as to a defendant’s mental competency, while ultimately made by a judge according to a legal standard, must, when bona fide questions have been raised as to a defendant’s fitness, be premised on qualified expert opinion. Indeed, it is a central purpose of article 730 of the Criminal Procedure Law to assure that competency determinations have a sound medical basis. The article, with its extensive provision for medical guidance of judicial decision making, implicitly recognizes that mental competency, when genuinely at issue, is not, like credibility, a quality that may be judged simply on the basis of the court’s unaided observations, or in exclusive reliance upon similarly inexperienced impressions of others.

12. The need to do this was recognized by the court as well when it required in its list of accommodations that, should defendant testify, the “attorneys should restate their questions to him in different ways, to assure that he has used the word intended in responding to their questions.”

13. Although there is reference made in the hearing and medical records to other doctors concurring in Dr. Hicks’s fitness finding, there is no indication that any of these physicians ever actually independently assessed defendant’s competency.

In the end, the trial court was apparently torn over her decision. While finding defendant fit, she prescribed numerous accommodations which themselves raise questions as to defendant's actual competency. For example, although the court found that defendant did not exhibit mental impairment, she required that where possible the attorneys should ask questions designed to elicit simple, unlayered responses. It is puzzling why such forced simplicity at odds with basic precepts governing the elicitation of trial testimony should be required to accommodate a defendant without mental impairment. But it was not only in her list of accommodations that the court can be understood to have expressed her ambivalence over her competency decision; she also undertook to review the fairness of the completed trial in light of defendant's disability. Both the defense and the prosecution objected to this review, albeit for different reasons.

It is on many levels wrong to subject an incapacitated person to a criminal trial. Fitness, then, is a matter that must be determined before trial; the subsequent course of any ensuing prosecutorial proceedings is not relevant to its adjudication. The cases relied upon by the trial court in proposing and conducting its post hoc review, *Wilson v United States* (391 F2d 460 [1968]) and our decision in *People v Francabandera* (33 NY2d 429 [1974]), address the issue of what should be done to assure that a defendant who suffers from amnesia as to the events upon which his prosecution is based has received a fair trial. We made clear in *Francabandera* that we did not view the discreet mnemonic deficiency there at issue as one raising a question as to the defendant's essential fitness, and, that being that case, there could have been no objection to a retrospective assessment to determine whether the deficiency did, in fact, operate to deprive the defendant of a fair trial; there was no possibility that an unfit defendant was being put through a trial to test the hypothesis that he was fit. Here, however, fitness was the issue at the beginning of the trial and, realistically, remained the issue at its end. The question was not whether defendant had some non-global deficiency that might, but would not necessarily, interfere with his right to a fair trial, but whether he had the basic capacity to understand the proceedings and assist his attorney. That issue was not appropriately reserved for final determination at the trial's end. If the court had such grave doubts about defendant's fitness, those doubts should, given the burden placed upon the People and the fundamental importance of a criminal defendant's competency

to the integrity of the proceedings against him, have been resolved against subjecting defendant to a trial.

Accordingly, while I agree with the majority that the trial court was extraordinarily painstaking in her review of this very unusual and difficult matter, I cannot agree that her legal conclusion as to defendant's fitness was, as a matter of law, correct.

Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur with Judge JONES; Chief Judge LIPPMAN dissents and votes to reverse in a separate opinion.

Order affirmed.

[947 NE2d 1174, 923 NYS2d 396]

In the Matter of the Liquidation of MIDLAND INSURANCE COMPANY. AMERICAN STANDARD INC. et al., Appellants, et al., Claimants; SWISS REINSURANCE AMERICA CORPORATION et al., Intervenor-Respondents, and SUPERINTENDENT OF INSURANCE OF THE STATE OF NEW YORK, as Liquidator of Midland Insurance Company, et al., Respondents.

Argued February 9, 2011; decided April 5, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 12, 2010. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Michael D. Stallman, J.; op 20 Misc 3d 488), which had (a) granted the major policyholders' motion for partial summary judgment in the Midland Insurance Company liquidation proceeding declaring that for each policyholder an individualized choice-of-law review must be undertaken following the "grouping of contacts" approach and giving predominant weight to the insured's principal place of business, and (b) denied the intervening reinsurers' cross motion for partial summary judgment on the applicability of New York substantive law to all policyholder claims under the Midland insurance policies at issue in the liquidation proceeding, (2) denied the major policyholders' motion, and (3) granted the intervening reinsurers' cross motion, declaring that New York substantive law governs the interpretation and application of the Midland insurance policies at issue in the liquidation proceeding. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Matter of Midland Ins. Co., 71 AD3d 221, reversed.

HEADNOTES

Conflict of Laws — Law Governing Contract Actions — Insurance Liquidation Proceeding

1. In a liquidation proceeding involving an insurance carrier that was headquartered in New York and authorized to conduct business throughout the United States and in Canada, an individual choice-of-law analysis was required to determine which jurisdiction's substantive law should govern for each insurance policy in dispute, notwithstanding that the insurer had been adjudged insolvent and placed in liquidation in New York. The "center of

gravity” or “grouping of contacts” is the appropriate analytical approach to choice-of-law questions in contract cases, and in the context of liability insurance contracts, the jurisdiction with the most significant relationship to the transaction and the parties will generally be the jurisdiction which the parties understood was to be the principal location of the insured risk. “Grouping-of-contacts” analysis to determine which jurisdiction’s laws governed the claims submitted was not precluded simply because the insurer had been adjudged insolvent in New York. Further, under Insurance Law § 7433 (a), which requires an insured’s proof of claim in a liquidation proceeding to contain a statement “that the sum claimed is justly owing from the insurer to the claimant” (Insurance Law § 7433 [a] [1]), determining the “sum” of a claim “justly owing from the insurer” requires a choice-of-law analysis because the methodology of calculating an insured’s loss can differ from one jurisdiction to the next. Moreover, an individual choice-of-law analysis on each of the policies would not create “subclasses” among the class of policyholders here in violation of Insurance Law § 7434 (a) (1), which merely governs the distribution of assets in a liquidation proceeding, not the allowed sum. Insurance Law article 74 recognizes that the allowance of claims and the distribution of the liquidated assets are two separate functions.

Conflict of Laws — Law Governing Contract Actions — Insurance Liquidation Proceeding

2. To the extent that *Matter of Midland Ins. Co.* (269 AD2d 50 [1st Dept 2000]) stands for the proposition that New York substantive law must apply to all claims in the Midland Insurance Company liquidation, that holding is no longer good authority.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Conflict of Laws §§ 73–77; AM JUR 2d, Insurance §§ 107, 108.
COUCH ON INSURANCE (3d ed) §§ 5:35–5:40.
MCKINNEY’S, Insurance Law § 7433 (a) (1); § 7434 (a) (1).
NY JUR 2d, Conflict of Laws §§ 37, 38; NY JUR 2d, Insurance §§ 358, 367, 368.

ANNOTATION REFERENCE

See ALR Index under Conflict of Laws; Dissolution or Liquidation; Insurance and Insurance Companies.

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POINTS OF COUNSEL

Eckert Seamans Cherin & Mellott, LLC (David J. Strasser, of the Pennsylvania bar, admitted pro hac vice, and Erin W. McDowell, of the Pennsylvania bar, admitted pro hac vice, of

counsel), and *Eckert Seamans Cherin & Mellott, LLC*, White Plains (*Steven R. Kramer* of counsel), for CBS Corporation, *K&L Gates LLP* (*David F. McGonigle*, of the Pennsylvania bar, admitted pro hac vice, and *Scott A. Bowan*, of the Pennsylvania bar, admitted pro hac vice, of counsel), for American Standard Inc., *Gilbert LLP* (*David B. Killalea*, of the District of Columbia bar, admitted pro hac vice, and *Jonathan M. Cohen*, of the District of Columbia bar, admitted pro hac vice, of counsel), for Babcock & Wilcox Company Asbestos PI Trust and others, *Pillsbury Winthrop Shaw Pittman LLP*, New York City (*Kerry A. Brennan* of counsel), and *Dughi & Hewit, P.C.* (*Russell L. Hewit*, of the New Jersey bar, admitted pro hac vice, and *Scott A. Hall*, of the New Jersey bar, admitted pro hac vice, of counsel), for Congoleum Corporation, appellants. I. Midland Insurance Company's insolvency does not change which state's law applies to its policies. (*Matter of Union Indem. Ins. Co. of N.Y.*, 89 NY2d 94; *Matter of Transit Cas. Co. [Digirol—Superintendent of Ins.]*, 79 NY2d 13; *Transit Commn. v Long Is. R.R. Co.*, 253 NY 345.) II. Even if Midland Insurance Company's insolvency could be considered in the choice-of-law analysis, Midland's insolvency does not give New York a paramount interest in applying its own law to every Midland policy. (*Matter of Dinallo v DiNapoli*, 9 NY3d 94; *Morris v Jones*, 329 US 545; *In re Columbia Ribbon Co.*, 117 F2d 999.) III. The premise of *Matter of Midland Ins. Co.* (269 AD2d 50 [2000]), that New York law must be applied to all claims so that "all creditors" are "treated equally," finds no support in New York law. (*Skandia Am. Reins. Corp. v Schenck*, 441 F Supp 715; *Matter of People*, 249 NY 139; *Pink v Title Guar. & Trust Co.*, 274 NY 167; *Bohlinger v Zanger*, 306 NY 228; *Matter of Transit Cas. Co. [Digirol—Superintendent of Ins.]*, 79 NY2d 13; *Matter of Knickerbocker Agency [Holz]*, 4 NY2d 245.) IV. *Matter of Midland Ins. Co.* (269 AD2d 50 [2000]) is not binding as precedent or law of the case. (*Rager v McCloskey*, 305 NY 75; *Kaufman v Eli Lilly & Co.*, 65 NY2d 449; *People v Evans*, 94 NY2d 499; *Green v Santa Fe Indus.*, 70 NY2d 244; *People v Hobson*, 39 NY2d 479.)

New York Liquidation Bureau, New York City (*David Axinn*, *John Pearson Kelly* and *Judy H. Kim* of counsel), for respondents. I. New York law applies to Insurance Law article 74 liquidation proceedings. (*Certain Underwriters at Lloyd's, London v Foster Wheeler Corp.*, 36 AD3d 17; *Auten v Auten*, 308 NY 155; *Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Matter of Knickerbocker Agency [Holz]*, 4 NY2d 245; *Corcoran v Hall & Co.*, 149 AD2d 165; *Matter of Dinallo v DiNapoli*,

9 NY3d 94; *People v Globe Mut. Life Ins. Co.*, 91 NY 174; *Matter of Bean v Stoddard*, 207 App Div 276, 238 NY 618; *Moscow Fire Ins. Co. v Bank of N.Y. & Trust Co.*, 280 NY 286; *First Natl. Bank of Saratoga Springs v Rock City Falls Paper Co.*, 22 Misc 599.) II. New York public policy requires the application of New York law to ensure that assets in an Insurance Law article 74 proceeding are distributed in accordance with New York principles of equity and fairness. (*Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Matter of Knickerbocker Agency [Holz]*, 4 NY2d 245; *Law Enforcement Ins. Co. v Corcoran*, 807 F2d 38; *Burford v Sun Oil Co.*, 319 US 315; *Keen Corp. v Insurance Co. of N. Am.*, 667 F2d 1034; *Matter of Allcity Ins. Co. [Kondak]*, 66 AD2d 531; *Matter of Dinallo v DiNapoli*, 9 NY3d 94.) III. The Appellate Division's holding in *Matter of Midland Ins. Co.* (269 AD2d 50 [2000]) is binding on all claimants in the Midland Insurance Company liquidation proceeding. (*Kimmel v State of New York*, 261 AD2d 843; *Rosen v Massachusetts Acc. Co.*, 282 NY 447; *Matter of People*, 249 NY 139; *Matter of Emmet [Empire State Sur. Co.]*, 214 NY 553; *Presbrey v Presbrey*, 6 AD2d 477, 8 NY2d 797.)

Simpson Thacher & Bartlett LLP, New York City (Barry R. Ostrager, Mary Kay Vyskocil and Jeffrey Coviello of counsel), for Swiss Reinsurance America Corporation and others, and *Crowell & Moring LLP*, New York City (Harry P. Cohen, Paul W. Kalish and Leslie A. Davis of counsel), for Everest Reinsurance Company, intervenor-respondents. I. The Appellate Division correctly held that New York choice-of-law principles require application of New York law to the policyholder claims at issue in Midland Insurance Company's New York liquidation. (*Auten v Auten*, 308 NY 155; *Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Schwartz v Liberty Mut. Ins. Co.*, 539 F3d 135; *Kaszak v Liberty Mut. Ins. Co.*, 192 Misc 2d 168; *Allen v Village of Farmingdale*, 282 AD2d 485; *Certain Underwriters at Lloyd's, London v Foster Wheeler Corp.*, 36 AD3d 17; *Fireman's Fund Ins. Co. v Schuster Films, Inc.*, 811 F Supp 978; *Walter E. Heller & Co. v Video Innovations, Inc.*, 730 F2d 50; *Babcock & Wilcox Co. v Arkwright-Boston Mfg. Mut. Ins. Co.*, 867 F Supp 573; *Flintkote Co. v General Acc. Assur. Co. of Can.*, 410 F Supp 2d 875.) II. *Certain Underwriters at Lloyd's, London v Foster Wheeler Corp.* (36 AD3d 17 [2006]) does not overrule *Matter of Midland Ins. Co.* (269 AD2d 50 [2000]) or conflict with the decision on appeal. (*Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Auten v Auten*, 308 NY 155; *Matter of Eagle Ins. Co. v Singletary*, 279 AD2d 56.) III. The Appellate Division correctly

held that the trial court was bound by *Matter of Midland Ins. Co.* (269 AD2d 50 [2000]) and there is no reason for this Court to disturb that decision. (*Misicki v Caradonna*, 12 NY3d 511; *People v Hobson*, 39 NY2d 479; *Red Tulip, LLC v Neiva*, 44 AD3d 204; *Ernie Otto Corp. v Inland Southeast Thompson Monticello, LLC*, 53 AD3d 924; *Agee v Ajar*, 154 AD2d 569; *Matter of Knickerbocker Agency [Holz]*, 4 AD2d 71; *Briggs v Chapman*, 53 AD3d 900; *Green v Sante Fe Indus.*, 70 NY2d 244.)

OPINION OF THE COURT

CIPARICK, J.

In this choice-of-law dispute between policyholders and the New York State Liquidation Bureau, the question presented is whether the insurance policies issued by Midland Insurance Company (Midland) must be interpreted under New York substantive law because Midland has been adjudged insolvent and placed into liquidation in New York. We conclude that New York law need not apply and hold that for each Midland policy in dispute an individual choice-of-law analysis must be conducted to determine which jurisdiction's law should govern.

I.

Headquartered in Lower Manhattan, Midland was incorporated under New York law in October 1959 as a stock casualty insurer. Its charter authorized Midland to conduct business throughout the United States and in Canada. Midland carried multiline insurance, a type of insurance that typically bundles together different exposures to risks. During its existence, Midland transacted with Fortune 500 companies nationwide, underwriting a substantial amount of excess coverage policies.

In 1985, the New York State Insurance Department (the Insurance Department) commenced an investigation into Midland's financial condition. The Insurance Department's analysis of Midland's financial condition revealed that the company's liabilities exceeded its assets. On March 7, 1986, the Insurance Department warned Midland that it would seek an order placing Midland into receivership if Midland was unable to get its financial affairs in order. Midland could not comply with the Insurance Department's directives and, by a unanimous vote of its board of directors, consented to liquidation.

By order dated April 3, 1986 (the Liquidation Order), Supreme Court adjudged Midland insolvent and placed it into liquidation pursuant to article 74 of the New York Insurance

Law. As of this date, Midland's financial records showed that its assets totaled approximately \$307 million while its liabilities totaled approximately \$354 million, making it insolvent by about \$47 million. The Liquidation Order authorized the Superintendent of the Insurance Department (the Liquidator) to take possession of Midland's property and to sell or otherwise dispose of it at the best obtainable price.

Following the entry of the Liquidation Order in Supreme Court, the Liquidator began the statutorily mandated process of notifying all persons with potential claims against Midland. To that end, the Liquidator mailed out over 38,000 proof of claim forms to known Midland policyholders, and other creditors. In addition to providing Midland's policyholders and creditors with notice of Midland's insolvency, the Liquidator informed them of their obligation to present their claims by filing the requisite proof of claim forms with the Insurance Department no later than April 3, 1987.¹

Article 74 of the Insurance Law vests the Liquidator with the authority to review these submitted claims and make recommendations to Supreme Court on what claims should be allowed or disallowed. Claims approved by Supreme Court are entitled to a share in Midland's estate while disallowed claims are not. By order dated March 15, 1994, Supreme Court established the procedure for the disallowance of claims. The order provided that the Liquidator must send a "Notice of Recommendation of Disallowance" (NOD) to those policyholders whose claims have been recommended for disallowance. The order also permitted anyone who received a NOD to file a written objection with the Liquidator within 60 days of the posted NOD date. Objections to the NOD timely received would be referred to a Supreme Court appointed referee who would review and conduct hearings on the disputed claims.

Claimants in this appeal (Major Policyholders) are among the corporate policyholders, headquartered in various states, who have timely submitted proof of claims to the Liquidator. The Major Policyholders have asserted claims against Midland for coverage stemming from exposure to, among other things, asbestos, environmental pollution, product liability, and other toxic torts. They seek to recover a significant percentage of the

1. The Liquidator was unable to identify every Midland creditor prior to the filing deadline. Creditors who returned their proof of claim forms after the filing deadline, but within four months of the Liquidator's mailing, were deemed to have timely filed.

billions of dollars at stake in this liquidation proceeding. Subsequent to the Major Policyholders' submission of their proof of claims against Midland, the Liquidator determined that some of their claims should be disallowed. Accordingly, the Liquidator furnished the Major Policyholders with NODs in compliance with the court-ordered procedure, and, in turn, the Major Policyholders filed timely objections.

In 2006, the Liquidator, the Major Policyholders, and Midland's reinsurers approached Supreme Court to address their disagreement concerning the Liquidator's decision to disallow certain of the Major Policyholders' claims. One of the disputes between the parties centered on the Liquidator's decision to exclusively apply substantive New York law in making its determination to disallow certain claims of the Major Policyholders. The Liquidator predicated its decision to apply New York law on the Appellate Division's decision in *Matter of Midland Ins. Co.* (269 AD2d 50 [1st Dept 2000] [*Midland LAQ*]). The Major Policyholders disputed the precedential value of the holding in *Midland LAQ* and argued that, under New York law, the Liquidator cannot legitimately disallow claims without first engaging in a choice-of-law analysis to determine the substantive state law that applies to each policy.

As a result, the parties requested that Supreme Court resolve this issue. Consequently, during the spring of 2006, the parties negotiated and agreed upon a proposed case management order. Supreme Court so-ordered the document, entitled "Stipulation and Case Management Order" (CMO), on July 31, 2006. The CMO set forth a procedure to resolve the legal disputes between the parties, dividing the legal issues into two phases. The legal issue posed by phase I of the CMO, which is the subject of this appeal, is "whether New York substantive law governs the interpretation and application of Midland insurance policies at issue in this litigation or whether [Supreme Court] must conduct an analysis utilizing the New York choice-of-law test to determine which jurisdiction's or jurisdictions' law(s) apply."

After reviewing memoranda of law submitted by the parties, Supreme Court agreed with the Major Policyholders that the Liquidator erred in automatically applying New York substantive law to every claim submitted. The court held that *Certain Underwriters at Lloyd's, London v Foster Wheeler Corp.* (36 AD3d 17 [1st Dept 2006], *affd for reasons stated below* 9 NY3d 928 [2007]) obligated the Liquidator to conduct a threshold analysis of each Midland policy to determine the applicable

substantive state law according to the “grouping of contacts” approach of the Restatement (Second) of Conflict of Laws. The court observed:

“On this motion, it cannot be determined whether analysis of the [Major Policyholders’] denied claims under the Restatement’s ‘grouping of contacts’ approach would have resulted in allowances of their claims. It may be possible for the [L]iquidator to defend his denial of the [Major Policyholders’] claims even when applying the Restatement’s approach. This must be determined on a claim-by-claim basis.” (20 Misc 3d 488, 507 [2008].)

The Appellate Division reversed the order of Supreme Court (*Matter of Midland Ins. Co.*, 71 AD3d 221 [1st Dept 2010]). The court concluded that its prior decision in *Midland LAQ*, which stood for the proposition that “New York law must apply to all claims in a liquidation proceeding,” was the law of the case and binding on Supreme Court (*id.* at 226). The court distinguished *Foster Wheeler* from its holding in *Midland LAQ* noting that *Foster Wheeler* “involved contract claims against a solvent insurer” (*id.*). The court reasoned that New York law must apply to the claims in a liquidation proceeding because New York has a “paramount state interest” in ensuring that the Liquidator makes “distributions from an insolvent insurer’s estate” in an equitable manner (*id.*). To interpret “Midland’s policies under the laws of more than one state,” the court held, “would run afoul” of Insurance Law § 7434 (a), which proscribes the creation of “subclasses among the policyholders-creditors” (*id.* at 227).

On April 29, 2010, the same panel of the Appellate Division granted the Major Policyholders leave to appeal to this Court and certified a question inquiring whether its order, which reversed the order of Supreme Court, was “properly made.” We now reverse and answer the certified question in the negative.

II.

It is well settled that New York has long recognized “the use of ‘center of gravity’ or ‘grouping of contacts’ as the appropriate analytical approach to choice of law questions in contract cases” (*Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309, 317 [1994]; see also *Auten v Auten*, 308 NY 155, 160-161 [1954]). “The purpose of grouping contacts is to establish which State has ‘the most significant relationship to the transaction and the

parties' ” (*Zurich*, 84 NY2d at 317, quoting Restatement [Second] of Conflict of Laws § 188 [1]). In *Auten*, we held that application of the “grouping of contacts” theory to choice-of-law disputes “gives . . . the place having the most interest in the problem paramount control over the legal issues arising out of a particular factual context, thus allowing the forum to apply the policy of the jurisdiction most intimately concerned with the outcome of the particular litigation” (308 NY at 161 [internal quotation marks, brackets and citation omitted]). In the context of liability insurance contracts, the jurisdiction with the most “significant relationship to the transaction and the parties” will generally be the jurisdiction “which the parties understood was to be the principal location of the insured risk . . . unless with respect to the particular issue, some other [jurisdiction] has a more significant relationship” (*Zurich*, 84 NY2d at 318, quoting Restatement [Second] of Conflict of Laws § 193).

We recently affirmed the Appellate Division’s application of these principles in *Foster Wheeler*. In that case, Foster Wheeler Corporation sought a declaratory judgment for an apportionment of the defense and indemnity costs associated with various asbestos-related personal injury claims from its insurers (*Foster Wheeler*, 36 AD3d at 19). “[T]he insurance policies in question cover[ed] risks that [were] spread through multiple states” (*id.* at 22) and the parties disputed whether New York or New Jersey law should apply when interpreting those policies (*see id.* at 21).

In applying New York’s “grouping of contacts” approach to choice-of-law questions, the Appellate Division concluded “where it is necessary to determine the law governing a liability insurance policy covering risks in multiple states, the state of the insured’s domicile should be regarded as a proxy for the principal location of the insured risk” (*id.* at 24; *see also Steadfast Ins. Co. v Sentinel Real Estate Corp.*, 283 AD2d 44, 50 [3d Dept 2001] [where insurance policy at issue covered risks stemming from “the nationwide scope of (the insured’s) operations, the principal location of the insured risk should be deemed to be the state where (the insured) is incorporated and has its principal place of business’’]). The Appellate Division observed that this approach promotes “certainty, predictability and uniformity of result” (Restatement [Second] of Conflict of Laws § 6 [2] [f]) in that “[t]he state of the insured’s domicile is a fact known to the parties at the time of contracting, and (in the absence of a contractual choice-of-law provision) application of the law of that state is most likely to conform to their expectations” (*Foster Wheeler*, 36 AD3d at 23).

[1] The Liquidator and the reinsurers do not quarrel with the holding in *Foster Wheeler*, but argue that the choice-of-law principles pronounced there are inapplicable to this case since Midland is in liquidation, having been adjudged insolvent in New York. They contend that article 74 of the Insurance Law abrogates the “grouping of contacts” approach to choice-of-law questions and requires the Liquidator to uniformly evaluate the claims submitted by the Major Policyholders under New York law. We find no statutory support for their position.

Our analysis of article 74 of the Insurance Law begins with section 7432 (b), which provides: “Where a liquidation, rehabilitation or conservation order has been entered in a proceeding against an insurer under this article, all persons who may have *claims against such insurer* shall present *the same* to the liquidator” (emphasis added). Here, the claims of the Major Policyholders derive from the insurance policies issued by Midland prior to its insolvency. There can be no doubt that, if solvent, Midland and the Major Policyholders would have engaged in a “grouping-of-contacts” analysis to determine which jurisdiction’s laws govern the claims submitted. We see no reason why the Liquidator and the Major Policyholders should be precluded from engaging in the same choice-of-law analysis simply because Midland has been adjudged insolvent in New York.

Indeed, we find further support for our conclusion that choice-of-law principles continue to apply once an insurer has been adjudged insolvent in Insurance Law § 7433 (a). That statute, which governs the proof and allowance of claims submitted by an insured, states, in part: “A proof of claim shall consist of a written statement . . . setting forth the claim, the consideration therefor, any securities held therefor, any payments made thereon, and that the *sum claimed is justly owing from the insurer to the claimant*” (*id.* § 7433 [a] [1] [emphasis added]). We interpret “justly owing” to mean the amount Midland would have been obligated to pay its Major Policyholders had it remained solvent. Thus, determining the “sum” of a claim “justly owing from the insurer” invariably requires a choice-of-law analysis because the methodology of calculating an insured’s loss can differ from one jurisdiction to the next (*see e.g. Foster Wheeler*, 36 AD3d at 20-21 [New Jersey’s “mathematical method of effecting a pro rata allocation of an insured loss over the period of its occurrence . . . would make tens of millions of dollars more coverage available” to the insured than New York’s method]).

Furthermore, there is nothing in the provisions of section 7433 (a) setting forth what claims “may be allowed” which requires that substantive New York law must apply in computing their value. Accordingly, we hold that a blanket application of New York law to Midland’s policies would frustrate the statutory mandate requiring the submission and allowance of claims by the Liquidator “justly owed” to the Major Policyholders.

Moreover, we reject the argument that an individual choice-of-law analysis on each of Midland’s policies would create “subclasses” among the Major Policyholders in violation of Insurance Law § 7434 (a) (1). Section 7434 (a) (1) merely governs the distribution of assets in a liquidation proceeding, not the allowed sum, and its reference to “subclasses” has no bearing on whether choice-of-law principles should apply to the valuation of the Major Policyholders’ claims. The statute, in relevant part, provides:

“distribution payments shall be made in a manner that will assure the proper recognition of priorities and a reasonable balance between the expeditious completion of the liquidation and the protection of unliquidated and undetermined claims. The priority of distribution of claims . . . shall be in accordance with the order in which each class of claims is set forth in this paragraph . . . Every claim in each class shall be paid in full or adequate funds retained for such payment before the members of the next class receive any payment. *No subclasses shall be established within any class*” (*id.* [emphasis added]).²

The purpose in including language proscribing the creation of “subclasses” is to ensure that members within a particular class are not given priority vis-à-vis one another in terms of distribution. This proscription becomes particularly important where there are insufficient funds to pay 100% of the allowed claims within a particular class as is the case here. In that situation, by eliminating the establishment of “subclasses,” the statute requires that the liquidator pay each member of the same class a pro rata share of the remaining assets from the liquidated estate (*see In re Columbia Ribbon Co.*, 117 F2d 999, 1002 [3d Cir 1941] [In the context of a federal bankruptcy

2. Insurance Law § 7434 designates nine classes of claimants for asset distribution purposes. The parties do not dispute that the Major Policyholders are in “class two.”

proceeding, “(i)t does not hold that (a) court may set up a subclassification of claims within a class given equal priority by the Bankruptcy Act”]).

Thus, the proscription against formulating “subclasses” in the distribution phase of a liquidation does not require that the Liquidator apply substantive New York law to all the claims submitted by the Major Policyholders. Rather, we conclude that article 74 of the Insurance Law recognizes that the allowance of claims and the distribution of the liquidated assets are two separate functions. While the statute is explicit in defining which classes of claimants receive priority for distribution purposes (*see* Insurance Law § 7434 [a] [1] [i]-[ix]), it does not address choice of law at the valuation stage. If the Legislature intended for substantive New York law to apply to every claim submitted by policyholders at the allowance phase, it would have said so.

On this point, we note that the claims submitted by the Major Policyholders are rooted in common-law principles of contract. It is axiomatic that “[r]ules of the common law are to be no further abrogated than the clear import of the language used in the statute” (*Transit Commn. v Long Is. R.R. Co.*, 253 NY 345, 355 [1930]; *see* McKinney’s Cons Laws of NY, Book 1, Statutes § 301 [a], [b]). Here, since there is no provision in article 74 of the Insurance Law that suggests otherwise, we conclude that the Major Policyholders are entitled to an evaluation of their claims by the Liquidator under the same common-law choice-of-law principles that clearly applied to their claims prior to Midland’s insolvency.

[2] Notably, we are not the only court to arrive at this determination. In *Viacom, Inc. v Transit Cas. Co.* (138 SW3d 723 [Mo 2004]), the Missouri Supreme Court rejected a similar argument that Missouri law should govern all insurance policies issued by an insolvent Missouri insurer, regardless of which state’s law would have applied to those policies prior to its insolvency (138 SW3d at 726). Rather, the court held that the insurer’s insolvency did not change its coverage obligations, which continued to be governed by the law of the state that the parties knew was controlling at the time of contracting (*see id.*). Moreover, the Missouri Supreme Court observed that its insurer insolvency laws did not address choice of law and therefore Missouri’s pre-insolvency choice-of-law principles continued to govern the insurance policies at issue. “Where the insolvency code is silent, courts apply the common law” (*id.*; *see generally* McKinney’s Statutes § 301 [a], [b]). Finally, even if we were to

accept respondents' argument that, under stare decisis and law of the case principles, the Appellate Division's holding in *Midland LAQ* was binding on Supreme Court as it arose out of the same liquidation proceeding, the ruling of a lower court, of course, is "not binding upon this [C]ourt" (*Rager v McCloskey*, 305 NY 75, 78 [1953]). To the extent that *Midland LAQ* stands for the proposition that New York substantive law must apply to all claims in the Midland liquidation, that holding, for the reasons stated herein, is no longer good authority.

Accordingly, the order of the Appellate Division should be reversed, with costs, the order of Supreme Court reinstated, and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order reversed, etc.

[949 NE2d 462, 925 NYS2d 371]

BESSEMER TRUST COMPANY, N.A., Respondent, v FRANCIS S.
BRANIN, JR., Appellant.

Argued March 21, 2011; decided April 28, 2011

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “What degree of participation in a new employer’s solicitation of a former employer’s client by a voluntary seller of that client’s good will constitutes improper solicitation?”

HEADNOTES

Covenants — Covenant of Good Will Accompanying Sale of Business — “Implied Covenant” Not to Solicit Former Customers — Scope of Rule

1. Under New York common law, a seller has an implied covenant not to solicit former customers, which arises upon the sale of the “good will” of a business, and the determination as to whether the seller has improperly solicited former clients is made on a case-by-case basis considering the principles underlying the rule in *Mohawk Maintenance Co. v Kessler* (52 NY2d 276 [1981]) and the factors involved within the relevant industry that may impair the “good will” conveyed by the original seller. An implied covenant is based on the rationale that a seller may not destroy or depreciate that which he or she has sold and since the sale of the good will of a business is, in effect, an attempt to transfer the loyalties of the business’ customers, it is a fraud on the contract for the seller to improperly solicit former customers. The seller’s implied covenant is a permanent covenant and not subject to divestiture, but it is more limited in scope than an express or restrictive covenant. Notwithstanding the implied covenant, the seller of a business is free to subsequently compete with the purchaser and even accept the trade of his former customers, provided that he does not actively solicit such trade; this is particularly relevant where the seller remains in the industry. The implied covenant bars a seller from taking affirmative steps to directly communicate with former customers. On the other hand, absent an express or restrictive covenant not to compete, a seller of good will who lawfully competes with a purchaser may advertise to the public, so long as the advertisement is general in nature and not specifically aimed at the seller’s former customers.

Covenants — Covenant of Good Will Accompanying Sale of Business — “Implied Covenant” Not to Solicit Former Customers — Responding to Inquiries from Former Customers

2. While the “implied covenant” not to solicit former customers bars a seller of the “good will” of a business from taking affirmative steps to directly

communicate with former customers, a seller may answer factual inquiries from a former client, made on the former client's own initiative, so long as the seller's responses do not go beyond the scope of the specific information sought. In the context of the financial services industry, a former client, contemplating the transfer of his or her business from the purchaser of an investment management firm back to the seller, might appropriately seek factual information pertaining to investment strategy, resources available to the seller, personnel and fee structure. Nevertheless, the implied covenant places some limitations on a seller's right to answer all the questions posed by a former client. A seller of good will engages in improper solicitation when the seller disparages the purchaser of his or her business, even if prompted to do so. In relinquishing the good will of his or her business to a purchaser, a seller loses the right to explain why he or she believes his or her products or services are superior. This rule comports with the purpose of the implied covenant, which precludes a seller from destroying or depreciating that which he or she has sold.

Covenants — Covenant of Good Will Accompanying Sale of Business — “Implied Covenant” Not to Solicit Former Customers — Assisting New Employer in Solicitation

3. While the “implied covenant” not to solicit former customers bars a seller of the “good will” of a business from taking affirmative steps to directly communicate with former customers, a seller who subsequently joins a competing firm may assist the new employer in the active development of a plan to respond to inquiries from a former client where the former client, in exercising due diligence, requests further information. In the context of the financial services industry, a seller of an investment management firm and its good will is free to convey to his or her new employer information such as a former client's investment preferences, financial goals and tolerance of risk. However, that seller may not convey information that is proprietary to the purchaser of good will. A seller may also aid his or her new employer in preparing for a “sales pitch” meeting requested by a former client and may be present when such meeting takes place, although the implied covenant restricts the seller's involvement to responses to factual matters.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Good Will §§ 6, 7, 11–14.

NY JUR 2d, Good Will §§ 17, 19, 20; NY JUR 2d, Trade Regulation §§ 112, 113, 116.

ANNOTATION REFERENCE

See ALR Index under Covenants Not to Compete; Good Will.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: implied /2 covenant /s solicit! /s sale /5 good /2 will

POINTS OF COUNSEL

Bond, Schoeneck & King, PLLC, New York City (Louis P. DiLorenzo, Michael I. Bernstein and Michael P. Collins of

counsel), for appellant. I. The District Court drew its own line in contravention of the *Mohawk* doctrine. (*Mohawk Maintenance Co. v Kessler*, 52 NY2d 276; *Von Bremen v MacMonnies*, 200 NY 41.) II. A meaningful approach must take into account the dictates of the *Mohawk* doctrine as clarified by this Court. (*Mohawk Maintenance Co. v Kessler*, 52 NY2d 276; *Von Bremen v MacMonnies*, 200 NY 41; *SEC v Capital Gains Research Bureau, Inc.*, 375 US 180; *Tactica Intl., Inc. v Atlantic Horizon Intl., Inc.*, 154 F Supp 2d 586; *Graubard Mollen Dannett & Horowitz v Moskovitz*, 86 NY2d 112.)

Chadbourne & Parke LLP, New York City (*Donald I. Strauber, Mary T. Yelenick and Marcello M. Blackburn* of counsel), for respondent. I. The District Court correctly held that Francis S. Branin, Jr. violated New York law when he caused the Palmer family accounts to move to Stein Roe Investment Counsel LLC. (*Mohawk Maintenance Co. v Kessler*, 52 NY2d 276; *Von Bremen v MacMonnies*, 200 NY 41; *Hyde Park Prods. Corp. v Lerner Corp.*, 65 NY2d 316; *Borne Chem. Co. v Dictrow*, 85 AD2d 646; *Delta Resources v Harkin*, 118 AD2d 133; *Brasscrafters, Inc. v Ehrlich*, 109 AD2d 724.) II. The District Court’s interpretation of *Mohawk Maintenance Co. v Kessler* (52 NY2d 276 [1981]) is sound as a matter of New York law and public policy. (*Von Bremen v MacMonnies*, 200 NY 41; *511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144; *Matter of Co-operative Law Co.*, 198 NY 479.)

OPINION OF THE COURT

CIPARICK, J.

The United States Court of Appeals for the Second Circuit has certified the following question for our consideration: “What degree of participation in a new employer’s solicitation of a former employer’s client by a voluntary seller of that client’s good will constitutes improper solicitation?” (*Bessemer Trust Co., N.A. v Branin*, 618 F3d 76, 94 [2d Cir 2010].)

Specifically, the Second Circuit seeks our guidance on whether the following two sets of actions, taken together, make out “improper solicitation” under New York law:

“(1) the active development and participation by the seller, in response to inquiries from a former client whose good will the seller has voluntarily sold to a third party, in a plan whereby others at the

seller's new company solicit a client, and (2) participation by the seller in solicitation meetings where the seller's role is largely passive." (*Id.*)

I.

Plaintiff Bessemer Trust Company, N.A. (Bessemer) is a privately owned wealth management and investment advisory firm headquartered in New York City. Founded in 1907, Bessemer provides services to high net worth individuals, families, and institutional clients. Defendant Francis S. Branin, Jr. is an investment portfolio manager. In 1977, Branin joined the New York City based investment management firm Brundage, Story & Rose, LLC (Brundage) where he too advised high net worth clients. Branin became a principal at Brundage in 1982 and served as its chief executive officer from 1996 through October 2000.

By purchase agreement dated August 18, 2000 (the Purchase Agreement), the shareholders of Brundage agreed to sell the assets of their firm, including Brundage's client accounts and related good will, to Bessemer for more than \$75 million. Bessemer acquired these assets in October 2000 and Branin, along with the seven other Brundage principals, began to work at Bessemer at that time.

The Purchase Agreement imposed no express restrictive covenants on the Brundage principals. They were at-will employees of Bessemer with no ownership interest in the newly formed firm. The Purchase Agreement further provided that only \$50 million of the purchase price was payable up front. Branin, the largest Brundage shareholder, received more than \$9.1 million of this amount. The remainder of the purchase price was conditional. If the Brundage principals were able to achieve certain thresholds related to client retention, revenue enhancement, and reduction of expenses, they were eligible to receive the remainder of the purchase price in four subsequent installments. In September 2001 and in April 2002, the Brundage principals, having met designated benchmarks, qualified for the first two contingency payments. In total, Branin received over \$15 million for the sale of his interest in Brundage between October 2000 and April 2002. Branin and the rest of the Brundage principals were ineligible for the remaining two contingency payments.

Branin soon became unhappy with his role at Bessemer. He disliked the fact that Bessemer management had reduced his

responsibilities and excluded him from key management meetings. As a result, Branin started to explore different opportunities. To that end, from November 2001 to June 2002, Branin periodically met with William Rankin, the president and chief executive officer of Stein Roe Investment Counsel LLC (Stein Roe), a wealth management firm, to discuss the possibility of his employment. The two discussed Branin's desired level of compensation and how such compensation would be structured. Rankin was aware that Bessemer had recently acquired Brundage and understood from these conversations that if Branin were to join Stein Roe, he could not actively solicit his clients to transfer their accounts from Bessemer to Stein Roe.

By late May or early June, Branin had made the decision to join Stein Roe. On July 12, 2002—less than two years after Bessemer acquired Brundage—Branin resigned from Bessemer. Ten days later, by letter dated July 22, 2002, Stein Roe formally offered Branin the position of senior vice-president and principal. Branin commenced his employment with Stein Roe on July 29, 2002.

Branin did not notify his existing clients about his decision to resign from Bessemer and join Stein Roe. Bessemer instructed Branin to prepare a list of his clients with the pertinent account holder information so that Bessemer could transition these accounts to other investment advisors at the firm. Branin complied with this directive. Shortly after reviewing the list of Branin's accounts, Bessemer mailed letters to Branin's clients, informing them that Branin was "leaving Bessemer to pursue other career opportunities."

Once Branin joined Stein Roe, some of his former Bessemer clients contacted him. Many of these clients asked Branin why he had left Bessemer. Branin's standard response to these inquiries was "a firm like Stein Roe was far more appropriate for me, . . . that the method of dealing with clients, that the approach whereby portfolio managers managed the client portfolios and interacted directly with the clients was more . . . appropriate for my training and experience of 30 years in the business."

Several of Branin's clients elected to transfer their accounts to Stein Roe in the ensuing months. As relevant to this appeal, the Palmer family, Branin's largest client at Bessemer, were among those who had followed Branin to Stein Roe. The Palmer family first developed a relationship with Branin at Brundage

in the 1980s, where Branin served as the junior investment advisor on the account. Eventually, Branin was elevated to lead advisor on the account and he and the head of the Palmer family, Carleton Palmer III (Palmer), had become friends. Despite this friendship, Branin refrained from informing Palmer of his decision to work at Stein Roe. The Palmer family first learned that Branin had left Bessemer when Paul Barkus, a Bessemer employee, telephoned Palmer's brother. Indeed, Barkus specifically advised Palmer's brother that Branin was not permitted to contact them; Barkus informed Palmer's brother that Branin had accepted an offer with a different firm, but did not disclose that it was Stein Roe.

The news that Branin was no longer with Bessemer alarmed the Palmer family. Although Palmer knew Barkus, his primary and virtually exclusive contact at Bessemer was Branin. Palmer immediately called Branin at his home. During this conversation, Branin disclosed that he had joined Stein Roe and, on the advice of counsel, was told not to solicit his Bessemer clients. At the conclusion of the telephone call, Palmer indicated that his family would need time to consider their options and hinted that they "would more than likely solicit or investigate both firms," meaning Stein Roe and Bessemer.

As a follow-up, Palmer sent Branin a letter, dated July 31, 2002, seeking to organize a "preliminary meeting" in order to discuss how their accounts "would be handled within your new organization." Palmer also sought information on "the background of the organization and the continuity of account management that could be provided." The Palmer family and Stein Roe agreed to meet in New York on August 29, 2002. The Palmer family similarly arranged a meeting with Bessemer on the same day.

Once Branin received Palmer's letter, he requested president Rankin's guidance in determining who should represent Stein Roe in the upcoming meeting with the Palmer family. Rankin referred Branin to the appropriate personnel and Branin facilitated a strategy session with them one week prior to Stein Roe's presentation to the Palmers. During this session, Branin described the Palmer family's investment philosophy and other background information related to this long-standing client. On the day of the Stein Roe meeting, Branin was present. He introduced the Palmer family to Rankin and the other participating Stein Roe executives. From there, Palmer conducted the

meeting, directing questions toward the Stein Roe representatives. Branin essentially played no role in this meeting and would only “occasionally amplify a point” that the others were making. Palmer did not inquire about the fee structure at Stein Roe.

After his meetings with both Stein Roe and Bessemer, Palmer’s instinct was to transfer the family’s accounts to Stein Roe. Since Palmer’s first meeting with Stein Roe, however, was introductory in nature, Palmer wanted a formal proposal from Branin. Palmer invited Branin to his home state of Ohio to discuss the specifics. Branin obliged and traveled to Ohio on September 16, 2002. Branin explained that he would be the lead investment advisor on the account and that Stein Roe’s president would serve as the backup advisor to the account. Branin also confirmed that Stein Roe would charge the same fees that Bessemer was currently charging the Palmer family. The following day, the Palmer family moved their accounts to Stein Roe.

On November 22, 2002, after a number of Branin’s clients left Bessemer for Stein Roe, Bessemer commenced this action in Supreme Court. Bessemer, in relevant part, alleged that Branin had breached his duty of loyalty to Bessemer under the theory that Branin improperly solicited his former clients to join him at Stein Roe, thereby impairing the good will that Branin had sold to Bessemer in connection with Bessemer’s acquisition of Brundage. Branin removed the case to federal District Court on diversity grounds and filed a number of counterclaims.

Once the parties completed pretrial discovery, they each brought a motion for summary judgment. The United States District Court for the Southern District of New York denied the motions. With the consent of the parties, District Court conducted a bench trial solely as to Branin’s liability on Bessemer’s claims. By order dated April 10, 2006, District Court found that Branin “improperly induced the Palmer account to leave Bessemer and that this inducement in fact caused the Palmer account to leave Bessemer and join Stein Roe” in violation of New York law (*Bessemer Trust Co., N.A. v Branin*, 427 F Supp 2d 386, 393 [SD NY 2006]). With respect to the other accounts that transferred from Bessemer to Stein Roe, however, District Court found that Bessemer did not meet its burden of proving that Branin had violated New York law (*see id.*).

Following the bench trial on the question of liability, Bessemer moved for summary judgment on Branin’s counterclaims,

which District Court granted (*Bessemer Trust Co., N.A. v Branin*, 498 F Supp 2d 632 [SD NY 2007]). Thereafter, the parties proceeded to trial on the issue of damages. District Court conducted a second bench trial and awarded Bessemer over \$1.2 million in damages and prejudgment interest (*see Bessemer Trust Co., N.A. v Branin*, 544 F Supp 2d 385, 393 [SD NY 2008]).

The parties appealed to the United States Court of Appeals for the Second Circuit. As relevant to the issue before us, Branin appealed District Court's liability determination with respect to the Palmer account.¹ As noted earlier, the Second Circuit certified a question to our Court, seeking guidance "in determining what actions [under New York law] constitute improper solicitation" (*Bessemer Trust Co.*, 618 F3d at 87 [internal quotation marks omitted]).

II.

[1] Under New York common law, a seller has an "implied covenant" or "duty to refrain from soliciting former customers, which arises upon the sale of the 'good will' of an established business" (*Mohawk Maintenance Co. v Kessler*, 52 NY2d 276, 283 [1981]). We first adopted this rule, which derives from English common law, in *Von Bremen v MacMonnies* (200 NY 41 [1910]). The rationale underlying the rule is that

" '[a] man may not derogate from his own grant; the vendor is not at liberty to destroy or depreciate the thing which he has sold; there is an implied covenant, on the sale of good will, that the vendor does not solicit the custom which he has parted with; it would be a fraud on the contract to do so. . . . It is not right to profess and to purport to sell that which you do not mean the purchaser to have; it is not an honest thing to pocket the price and then to recapture the subject of sale; to decoy it away or call it back before the purchaser has had time to attach it to himself and make it his very own' " (*Von Bremen*, 200 NY at 50-51, quoting *Trego v Hunt*, [1896] AC 7, 25; *see also Mohawk*, 52 NY2d at 286; *Bessemer Trust Co.*, 618 F3d at 86).

1. Branin also appealed District Court's award of damages and the court's dismissal of his counterclaims against Bessemer. Bessemer appealed District Court's calculation of damages. In light of its certified question to our Court, the Second Circuit reserved its decision on District Court's award of damages (*see Bessemer Trust Co.*, 618 F3d at 91). It affirmed District Court's dismissal of Branin's counterclaims against Bessemer (*see id.* at 91-93).

A seller's "implied covenant" not to solicit his former customers is "a permanent one that is not subject to divestiture upon the passage of a reasonable period of time" (*Mohawk*, 52 NY2d at 285). Indeed, we have recognized that upon the sale of "good will," a "purchaser acquires the right to expect that the firm's established customers will continue to patronize the business" (*id.*, citing *People ex rel. Johnson Co. v Roberts*, 159 NY 70, 80-84 [1899]). This is so because "[t]he essence of [these types of] transaction[s] is, in effect, an attempt to transfer the loyalties of the business' customers from the seller, who cultivated and created them, to the new proprietor" (*id.*).

Notwithstanding this "implied covenant," a buyer assumes certain risks when he purchases an existing business and attempts to transfer the loyalties or "good will" of that business as his own. For example, the customers of the acquired business, "as a consequence of the change in ownership," may choose to take their patronage elsewhere (*id.*). Indeed, "the occurrence of a certain amount of attrition is one of the risks that the purchaser must assume when he acquires an established business" (*id.*). Moreover, the seller of a business is free to subsequently compete with the purchaser and even "accept[] the trade of his former customers, provided that he does not *actively* solicit such trade" (*id.* at 285 n 6 [emphasis added]). To militate against these risks, which extend beyond the limited scope of a seller's "implied covenant," a purchaser is free to negotiate an express covenant, reasonably restricting, for instance, a "seller's right to compete in a particular geographical area or field of endeavor" (*id.* at 284).

There is no hard and fast rule in determining whether a seller of "good will" has improperly solicited his former clients, and we decline to create one here. Rather, in making this assessment on a case-by-case basis, the trier of fact must consider the principles underlying the rule in *Mohawk* and the factors involved within the relevant industry that may impair the "good will" conveyed by the original seller.

A trier of fact ought to consider whether, following the sale of a business and its good will, a seller initiated contact with his former customers or clients. Such initiation is particularly relevant where a seller, like Branin, remains in the industry. On this point, Branin has conceded that such contact would impair the "good will" acquired by a bona fide purchaser. We agree. The "implied covenant" not to solicit former customers bars a seller from taking affirmative steps to directly communicate

with them (see e.g. *Hyde Park Prods. Corp. v Lerner Corp.*, 65 NY2d 316, 321 [1985] [deliberate solicitation of seller's former customers "breached the duty against impairment of the goodwill transferred as part of the sale of the business"]). A seller may not, for example, send targeted mailings or make individualized telephone calls to his former customers informing them of his new business ventures. These examples are illustrative, not exhaustive, of the types of purposeful communications with former customers that the "implied covenant" proscribes. On the other hand, absent an express or restrictive covenant not to compete, a seller of "good will" who lawfully competes with a purchaser may advertise to the public. So long as such advertisement is general in nature—and not specifically aimed at the seller's former customers—it is permissible under New York law.

A seller, of course, is not free to tout his new business venture simply because a former client has fortuitously communicated with him first. Such a rule would contravene our holdings in *Von Bremen* and *Mohawk* and lead to inconsistent results. Nonetheless, not all discussions between a seller and former client are impermissible. While the "implied covenant" places certain barriers on a seller's conduct, it in no way prohibits a former customer or client from gathering information about that seller. In the free market, consumers of goods and services have the right to make informed choices.² The issue we must resolve is to what extent a seller of "good will" may respond to the various inquiries of a former client.

[2] In the context of the financial services industry, as in this case, a former client, contemplating the transfer of his business from the purchaser back to the seller, will invariably conduct due diligence and seek factual information pertaining to topics such as investment strategy, resources available to the seller, personnel, and fee structure. Given the competitive nature and the complexity of the financial services sector, these types of questions are entirely appropriate and, indeed, expected, especially in a case such as this where the Palmer family placed a great deal of personal trust in Branin (see generally *SEC v Capital Gains Research Bureau, Inc.*, 375 US 180, 189-190 [1963]). Thus, a seller of "good will" may answer the factual

2. Indeed, it has been observed that "the public interest is better served with open competition in the securities field and access to advisors of clients' choice" (*Smith Barney v Burrow*, 558 F Supp 2d 1066, 1084 [ED Cal 2008]).

inquiries of a former client, so long as such responses do not go beyond the scope of the specific information sought.

Nevertheless, the “implied covenant” places some limitations on a seller’s right to answer all the questions posed by a former client. A seller of “good will” engages in improper solicitation when, even if prompted, he disparages the purchaser of his business. In relinquishing the “good will” of his business to a purchaser, a seller loses his right to explain, for example, why he believes his products or services are superior. This rule comports with the purpose of the “implied covenant,” which precludes a seller from “destroy[ing] or depreciat[ing] the thing which he has sold” (*Von Bremen*, 200 NY at 51 [internal quotation marks omitted]).

[3] Our discussion applies with equal force to the seller of “good will” who subsequently establishes a new business as a solo practitioner or joins a competing firm (*see Bessemer Trust Co.*, 618 F3d at 89 n 5). In this case, Branin opted to join Stein Roe, a firm that competes with Bessemer. The issue in which the Second Circuit seeks our guidance is to what degree a seller may assist his new employer in responding to inquiries made by a former client. Since the seller of “good will,” absent a restrictive covenant, may compete with a purchaser, we conclude that certain activity within a new employer’s firm must be permissible.

A seller of “good will,” for example, is free to convey certain information about his former client to his new employer. In the context of the financial services industry, appropriate topics may include items such as a former client’s investment preferences, financial goals, and tolerance of risk; it may not include information that is proprietary to a purchaser of “good will.” A seller may also aid his new employer in preparing for a “sales pitch” meeting requested by a former client and may be present when such meeting takes place, although the “implied covenant” imposes some restrictions on the seller’s level of involvement during such a meeting. So long as a seller’s role is limited to responses to factual matters, his participation in such a meeting will not violate the “implied covenant.”

In answering the certified question, we continue to apply our precedents in *Von Bremen* and *Mohawk* and hold that the “implied covenant” bars a seller of “good will” from improperly soliciting his former clients. We conclude that, while a seller may not contact his former clients directly, he may, “in response

to inquiries” made on a former client’s own initiative, answer factual questions. Furthermore, under the circumstances where a client exercising due diligence requests further information, a seller may assist his new employer in the “active development . . . [of] a plan” to respond to that client’s inquiries. Should that plan result in a meeting with a client, a seller’s “largely passive” role at such meeting does not constitute improper solicitation in violation of the “implied covenant.” As such, a seller or his new employer may then accept the trade of a former client.

Accordingly, the certified question should be answered in accordance with this opinion.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of Practice of the New York State Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and consideration of the briefs and the record submitted, certified question answered in accordance with the opinion herein.

[948 NE2d 1285, 925 NYS2d 1]

In the Matter of JAMES J. SEIFERHELD, Respondent, v RAYMOND KELLY, as Police Commissioner of the City of New York, and as Chairman of the Board of Trustees of the Police Pension Fund, Article II, et al., Appellants.

Argued March 24, 2011; decided April 28, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 11, 2010. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Lottie E. Wilkins, J.; op 22 Misc 3d 1132[A], 2008 NY Slip Op 52670[U]), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to annul a determination of respondent Police Commissioner of the City of New York revoking petitioner's accident disability retirement benefits, and, among other things, to restore those benefits, and dismissed the proceeding, (2) reinstated the proceeding, (3) granted the petition to the extent of annulling the determination, and (4) remanded the matter to respondent Board of Trustees of the Police Pension Fund, Article II, for further proceedings. The following question was certified by the Appellate Division: "Was the order of this Court which reversed the order of the Supreme Court properly made?"

Matter of Seiferheld v Kelly, 70 AD3d 460, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement — Police Officer

Only the Board of Trustees of the Police Pension Fund can act under the "safeguards" statute (Administrative Code of City of NY § 13-254) which, in summary, provides that a disability pensioner found to be able to work shall be put on a civil service list, and his or her pension reduced based on outside earnings and the amount "earned . . . or earnable" in any city job that he or she is offered. Accordingly, the accident disability retirement of petitioner, a New York City police officer, was improperly terminated where the trustees voted to bring petitioner "back off disability" through the safeguards statute following a Medical Board finding that he had recovered from his injury; petitioner was found medically disqualified for a police officer position due to cocaine use; the New York City Law Department advised the Pension Fund that, notwithstanding petitioner's medical disqualification, he was no longer deemed to be disabled, and no longer entitled to a disability pension; and the Pension Fund's Director of Pension Payroll advised petitioner of the suspension of his pension benefit. There was no indication in the record that prior to

the suspension of petitioner's pension benefit the trustees ever considered or acted on the Law Department's advice. Application of the confusing safeguards statute was something the trustees were required to address. The advice of the City's Law Department should have been weighed in deciding the question, but the decision was the trustees', subject to appropriate judicial review. Moreover, it cannot be said that the Board of Trustees revoked petitioner's pension by its vote to bring petitioner "back off disability" through the safeguards statute, which offers no grounds, at least on the facts as they existed, for terminating benefits rather than reducing them.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Pensions and Retirement Funds §§ 1211, 1212, 1248, 1253.

NY JUR 2d, Pensions and Retirement Systems §§ 347, 352, 353.

ANNOTATION REFERENCE

See ALR Index under Pension and Retirement; Police and Law Enforcement Officers.

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POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (Mordecai Newman, Leonard J. Koerner, Larry A. Sonnenshein and Karen J. Seemen of counsel), for appellants. Pursuant to Administrative Code of the City of New York § 13-254, the Board of Trustees of the Police Pension Fund is directed to place a pensioner on an eligibles list for a position for which he or she is qualified. It follows that the statute presumes a pensioner who is qualified for a return to city employment. Since the Department of Citywide Administrative Services, within its statutory authority, declined to find petitioner qualified for any city position based on his cocaine use, petitioner falls outside the scope of Administrative Code § 13-254 and is not entitled, as a matter of law, to the benefits it provides. Accordingly, there is nothing left for the Board of Trustees to decide and nothing to be gained by a remand. (*Matter of Caruso v Ward*, 72 NY2d 432; *Matter of Jennings v Leon*, 31 AD3d 762; *Matter of Stephens v Suffolk County Dept. of Civ. Serv.*, 15 AD3d 589; *Matter of Connor v New York City Police Dept.*, 22 AD3d 425; *Matter of*

Jackson v Safir, 261 AD2d 348; *Matter of Kearse v Brown*, 184 AD2d 271; *Matter of Boudreau v Levitt*, 67 AD2d 1053; *Matter of Mahoney v McGuire*, 107 AD2d 363, 66 NY2d 622; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Gunning v Codd*, 49 NY2d 495.)

Ungaro & Cifuni, New York City (Nicholas G. Cifuni and Robert A. Ungaro of counsel), for respondent. I. Suspension of petitioner's accident disability retirement benefits is arbitrary, capricious and an abuse of discretion. (*Matter of O'Marah v Levitt*, 35 NY2d 593; *Roddy v Valentine*, 268 NY 228; *Matter of Day v Mruk*, 307 NY 349; *Birnbaum v New York State Teachers Retirement Sys.*, 5 NY2d 1; *Matter of Jones v Board of Trustees of N.Y. Fire Dept. Art. 1-B Pension Fund*, 123 AD2d 628; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of 125 Bar Corp. v State Liq. Auth. of State of N.Y.*, 24 NY2d 174; *Sag Harbor Union Free School Dist. v Helsby*, 54 AD2d 391; *Matter of Gilligan*, 175 Misc 160.) II. Petitioner remains medically incapacitated from the performance of police duty and respondent's determination to the contrary was not based upon credible evidence. (*Matter of Meschino v Lowery*, 34 AD2d 255; *Matter of Drayson v Board of Trustees of Police Pension Fund of City of N.Y.*, 37 AD2d 378; *Matter of Scotto v Board of Trustees of Police Pension Fund of City of N.Y., Art. II*, 76 AD2d 774, 54 NY2d 918; *Matter of Nicolosi v Board of Trustees of N.Y. City Fire Dept., Art. 1-B Pension Fund*, 198 AD2d 282; *Matter of Holzberg v Kelly*, 13 AD3d 280; *Colwell v Suffolk County Police Dept.*, 158 F3d 635; *Daley v Koch*, 892 F2d 212; *Nelson v Bowen*, 882 F2d 45; *Murdaugh v Secretary of Dept. of Health & Human Servs. of U.S.*, 837 F2d 99; *Matter of Brady v City of New York*, 22 NY2d 601.) III. Respondent's authority under the provisions of Administrative Code of the City of New York § 13-254, safeguards on disability retirement, is rigidly defined and specifically limited. (*Matter of Caruso v New York City Police Dept. Pension Funds, Arts. 1 & 2*, 136 AD2d 266.) IV. The New York City Law Department has no authority in law to direct the termination of the petitioner's civil service pension benefits. (*United States v Rossomando*, 144 F3d 197; *Pajak v Pajak*, 56 NY2d 394; *Matter of Holzberg v Kelly*, 13 AD3d 280; *Silberzweig v Doherty*, 23 Misc 3d 618; *Matter of Benjamin [Hartnett]*, 175 AD2d 936.)

OPINION OF THE COURT

SMITH, J.

Petitioner, a New York City police officer, retired in 2004 and was awarded accident disability benefits. In the following years, the Police Department received information indicating that petitioner was not disabled; that he had made false representations to the Pension Fund; and that he had ingested cocaine, thus becoming ineligible to return to duty. The City, understandably, claims that it should not have to continue paying him a pension.

Despite the common-sense appeal of the City's position, we affirm the Appellate Division's order annulling the termination of petitioner's pension benefits. The Appellate Division correctly held that the benefits can be terminated only by the trustees of the Police Pension Fund, who have not taken the necessary action. However, while we recognize the technical merit of petitioner's argument, we express our distress at the way the system has malfunctioned in this case.

I

In December 2003, petitioner, after 11 years on the police force, applied for accident disability retirement. He claimed that as a result of a line-of-duty accident (a fall while walking on ice and snow) he suffered from constant pain in his right shoulder and neck, loss of range of motion in his neck and shoulder, and pain radiating into his arm, which prevented him from performing police duty. His application was granted, and he was awarded accident disability retirement on May 12, 2004 (*see* Administrative Code of City of NY § 13-252).

The following month, the Police Department received information that petitioner was working, and began an investigation that led a department official to report that petitioner was "performing construction work on a daily basis." The investigation included observations of the work, some of them videotaped. An investigator's reports say that petitioner was seen picking up siding, passing it to others, lifting it over his head and nailing materials above his head with both arms extended for some time—all tasks performed without apparent difficulty.

The Police Department informed the Police Pension Fund in November 2004 that petitioner "may no longer be disabled," and the Pension Fund agreed in December 2004 to "reexamine" petitioner. The reexamination included an interview by the

Pension Fund’s Medical Board at which petitioner, according to the board’s memorandum of the interview, said that he “cannot lift any heavy objects . . . cannot work overhead . . . has no outside work and his major occupation is babysitting his two children.”

Despite the difference between petitioner’s assertions and the videotapes, neither the Police Department nor the Pension Fund suggested—and neither, so far as the record shows, has suggested to date—that petitioner was guilty of fraud or misrepresentation, or that he should refund any of the pension money he had received. However, the Pension Fund’s Medical Board did conclude in May 2005 that petitioner’s condition “has improved dramatically,” and recommended disapproval of his retirement application. The Pension Fund’s trustees took no action on this recommendation for approximately two years, other than to remand the matter twice to the Medical Board, which twice reaffirmed its previous recommendation, noting in its second reaffirmance on September 19, 2006 that petitioner “seems to have made a remarkable recovery from his injury.”

Finally, on April 11, 2007, the Pension Fund Board of Trustees voted, over the dissent of several trustees, to invoke New York City Administrative Code § 13-254, entitled “Safeguards on disability retirement,” under which a disability pensioner found to be able to work may be returned to city service. The “safeguards” procedure soon hit a snag, however. Petitioner was placed on a list of candidates eligible to become police officers, but on July 6, 2007 he was informed that he was “medically disqualified” for that position “due to the presence of an unauthorized substance, cocaine, in your hair sample.”

On July 12, the New York City Law Department advised the Pension Fund that “notwithstanding” petitioner’s disqualification, “he is no longer deemed to be disabled, and he is no longer entitled to a disability pension.” There is no indication in the record that the Pension Fund’s Board of Trustees ever considered or acted on this advice, but on July 18, 2007 the Pension Fund’s Director of Pension Payroll advised petitioner “that your pension benefit will be suspended beginning with the July 2007 payroll.”

Petitioner brought this CPLR article 78 proceeding, seeking to annul the determination to suspend his pension benefits. Supreme Court denied the application (22 Misc 3d 1132[A], 2008 NY Slip Op 52670[U]). The Appellate Division reversed, annulling the suspension of benefits (70 AD3d 460 [2010]), and

granted leave to appeal to this Court. We now reluctantly affirm.

II

The “safeguards” statute, New York City Administrative Code § 13-254, under which the Pension Fund tried to bring petitioner back to work, says, in relevant part:

“Once each year the board [of trustees of the Police Pension Fund] may . . . require any disability pensioner, under the minimum age or period for service retirement elected by him or her, to undergo medical examination. . . . Upon the completion of such examination the medical board shall report and certify to the board whether such beneficiary is or is not totally or partially incapacitated physically or mentally and whether he or she is or is not engaged in or able to engage in a gainful occupation. If the board concurs in a report by the medical board that such beneficiary is able to engage in a gainful occupation, he or she [*sic*] shall certify the name of such beneficiary to the appropriate civil service commission . . . and such commission shall place his or her name as a preferred eligible on such appropriate lists of candidates as are prepared for appointment to positions for which he or she is stated to be qualified. Should such beneficiary be engaged in a gainful occupation, or should he or she be offered city-service as a result of the placing of his or her name on a civil service list, such board shall reduce the amount of his or her disability pension . . . if any, to an amount which, when added to that then earned by him or her, or earnable by him or her in city-service so offered him or her, shall not exceed the current maximum salary for the title next higher than that held by him or her when he or she was retired.” (§ 13-254 [a].)

The statute is complicated. In simplified summary, adequate for present purposes: A disability pensioner found to be able to work is put on a civil service list, and his or her pension is reduced based on outside earnings and the amount “earned . . . or earnable” in any city job that is offered.

The application of the statute to this case presents something of a puzzle, because although petitioner was put on a civil

service list, he was not, and evidently could not be, offered a job because of his cocaine use. If the statute is mechanically applied, petitioner might actually *benefit* from using cocaine, because he presumably does not want to be offered a city job; he wants to remain retired and receive his pension. Supreme Court, in a thoughtful opinion, correctly concluded that this anomaly could not have been intended by the statute's authors.

Supreme Court wrote: "These provisions . . . do not contemplate a situation where the beneficiary refuses to return to City service . . . or . . . where the beneficiary is disqualified from City service for reasons unrelated to the physical or mental ability to work." (2008 NY Slip Op 52670[U] at *8.) We do not necessarily agree that a beneficiary's *refusal* to return would not be covered by the text of the statute; the statute seems to contemplate a pension reduction for money "earnable" by a beneficiary who is "offered" city employment. In the situation before us, however, Supreme Court was right that there is a problem the text of the statute does not address. Where a beneficiary who would otherwise be brought back to city employment is disqualified from that employment by his own fault, either the reduction or suspension of his benefits must be a consequence, though the statute does not expressly say so.

The Appellate Division reversed Supreme Court's order, without discussing Supreme Court's analysis of the statute, because the suspension of petitioner's benefits "was not directed by the Board of Trustees" of the Pension Fund (70 AD3d at 462). The Appellate Division was correct.

It is clear from a reading of the safeguards statute that action under that statute must be taken by the board ("the board may . . . require"; "such board shall reduce"). Elsewhere, the Administrative Code, in two apparently redundant sections, says that the Pension Fund "shall be administered by a board of trustees" and that "[e]very act of the board of trustees shall be by resolution" (Administrative Code of City of NY § 13-202 [a], [b]; § 13-216 [a], [b]). The City points to no relevant exception to these provisions, or to any other provision of law that authorizes a suspension of benefits without a board vote.

The City's argument on this point is that, because petitioner was no longer entitled to benefits, ceasing to pay them was a "purely ministerial act." We disagree. However well justified a reduction or termination of benefits may be in this case, the Board of Trustees has to do it. There might be cases in which

the impropriety of paying benefits is so obvious that Pension Fund employees can simply stop paying, without either advance approval or ratification from the board; this might be true, for example, if the statute said on its face, “No benefits shall be paid to any beneficiary who has a positive drug test.” But the application of the confusing safeguards statute to this case is something the trustees must address. Of course the trustees should weigh the advice of the City’s Law Department in deciding the question, but the decision is theirs, subject to appropriate judicial review.

Nor can we accept the dissent’s argument that the Board of Trustees revoked petitioner’s pension by its April 11, 2007 vote. The minutes of the April 11 meeting say nothing about terminating benefits. They make clear that the trustees voted to bring petitioner “back off disability” through the safeguards statute, which offers no grounds, at least on the facts as they existed on April 11, for terminating benefits rather than reducing them. Indeed, the City has not argued here that petitioner’s benefits were terminated on April 11. The City’s position is that petitioner would have continued to be entitled to benefits but for his positive drug test in July.

Though petitioner is entitled to prevail here, the case as a whole is very troubling. It seems from the record that petitioner either has received or is in a position to claim accident disability benefits for the last seven years, and counting. Yet any reader of this record must have serious doubt that he was ever really disabled. Whether any of the benefits paid to him may be recouped is a subject on which we express no opinion. But we do express the hope that the Pension Fund’s Board of Trustees will generally act to protect the Fund and the public with more efficiency than it has displayed in this case.

Accordingly, the order of the Appellate Division should be affirmed, without costs, and the certified question answered in the affirmative.

PIGOTT, J. (dissenting). Because I believe that the Police Pension Fund Board of Trustees revoked petitioner’s disability retirement benefits on April 11, 2007, and that the July 12, 2007 Law Department memorandum challenged by petitioner merely interpreted that revocation, I respectfully dissent.

The Board of Trustees voted on April 11, 2007 not only to return Seiferheld to city service, but also to deny him—“disapprov[e]” him for—accident disability retirement, “bringing the

member back off disability.” As the Deputy Executive Director of the Police Pension Fund informed the Department of City-wide Administrative Services (DCAS), in a letter of May 2, 2007, the Board of Trustees had rescinded its earlier decision approving Seiferheld’s accident disability retirement application, and “denied him a continuation of disability benefits.” In my view, the Board of Trustees *did*, despite Seiferheld’s allegations to the contrary, make the final determination regarding the revocation of his accident disability retirement benefits.

With his disability pension revoked, petitioner became subject to the “safeguards” statute, New York City Administrative Code § 13-254, and he would have been placed on a special preferred list for a position as a police officer, except that cocaine was found in his hair sample, disqualifying him. At this point, unsurprisingly, DCAS failed to recommend him for any other civil service title position.

When the Chief of the New York City Law Department’s Pensions Division informed the Police Pension Fund’s Deputy Executive Director that Seiferheld’s accident disability retirement should be “suspended,” i.e. terminated, in its entirety, because he was no longer considered disabled, she was not terminating Seiferheld’s accident disability retirement benefits because of his drug test failure. She was merely interpreting the effects that the drug test failure might have on the April 11, 2007 Board of Trustees determination denying Seiferheld accident disability retirement. Her conclusion was that the drug test failure would have no effect on Seiferheld’s status with respect to accident disability; those benefits had been revoked by the Board of Trustees, and the revocation would stand, “notwithstanding” the fact that Seiferheld now would have no job. The drug test failure would not affect the prior revocation of benefits determination.

In other words, no new, allegedly unauthorized, determination was made by the Law Department. Rather, it was interpreting the preexisting, April 11, 2007 Board of Trustees decision to revoke Seiferheld’s accident disability retirement benefits. Seiferheld’s disability benefits were not revoked by the Law Department; they had already been revoked by the Board of Trustees.

Seiferheld’s real problem—and one for which there may be no legal recourse—is that DCAS decided not to recommend that he be placed on any other special preferred list (i.e. for other civil service title positions) after he failed the drug test. This meant

that he had not been “offered city-service as a result of the placing of his or her name on a civil service list” (Administrative Code of City of NY § 13-254 [a]), and would not qualify for a “safeguards” pension in place of his revoked disability pension. But challenging DCAS’s decision is an argument that Seiferheld has chosen not to make. Seiferheld does not argue that DCAS acted in excess of its authority in its decision not to recommend him for a position.

In my view, the Appellate Division erred in finding that the Board of Trustees had not considered what action should be taken with respect to revocation of the accident disability retirement benefits. This error, which the majority of this Court repeats, rests on an assumption that the Board’s final determination had merely been that Seiferheld should be returned to work as a police officer. This leaves out a crucial part of the Board’s ruling. The Board’s final determination was that Seiferheld was not disabled, *should not receive disability benefits*, and should be returned to work.

I would therefore reverse, deny the petition and dismiss the CPLR article 78 proceeding.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and JONES concur with Judge SMITH; Judge PIGOTT dissents and votes to reverse in a separate opinion.

Order affirmed, etc.

[949 NE2d 457, 925 NYS2d 366]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHA-
REEF EVANS, Appellant.

Argued February 16, 2011; decided March 31, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 5, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Randall T. Eng, J.), which had convicted defendant, after a nonjury trial, of manslaughter in the first degree.

People v Evans, 69 AD3d 649, affirmed.

HEADNOTES

Crimes — Appeal — Denial of Motion to Vacate Judgment

1. In a criminal prosecution where Supreme Court denied defendant's motion pursuant to CPL 440.10 to vacate his conviction on the grounds of ineffective assistance of counsel without consideration of the merits and the Appellate Division denied his application for leave to appeal the denial of this motion, attorney affirmations provided with respect to the motion were never properly considered by any court and were not part of the record on defendant's direct appeal to the Appellate Division from the conviction. Although the attorney's affirmations were not dispositive of the ineffective assistance claim, they plainly were relevant. However, because the Appellate Division denied defendant leave on his article 440 motion, the Court of Appeals was limited to a review of the record before it. This problem can be remedied in similar future situations if the Appellate Division grants leave to appeal from the denial of the CPL 440.10 motion and consolidates it with the direct appeal.

Crimes — Right to Counsel — Effective Representation — Failure to Raise Limitations Defense

2. In a prosecution in which defendant was charged with murder and manslaughter counts, defendant was not deprived of effective representation by counsel's failure to raise the defense of the statute of limitations as to the manslaughter count, notwithstanding that there was no dispute that the manslaughter count was barred by the statute of limitations, since, based on the record before the Court of Appeals, counsel's failure to raise the defense reflected a legitimate trial strategy of a reasonably competent attorney. At trial, defendant was facing second-degree murder charges with an admission that he had fired the shot that caused the victim's death. Therefore, had the manslaughter count been dismissed prior to verdict, the trier of fact would have been left with murder as the only choice if defendant were to be found criminally responsible for the homicide. Accordingly, allowing the trial court to consider the manslaughter count would be a legitimate strategy, and it was clear from the record that defense counsel wanted the court, in this bench trial, to do just that. Moreover, counsel was not ineffective for failing to move

to reopen the suppression hearing since it was clear that that would not have resulted in a different ruling.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 441, 576, 577, 618; AM JUR 2d, Criminal Law §§ 1135–1139.

CARMODY-WAIT 2d, Right to Counsel §§ 184:162–184:167, 184:174, 184:175, 184:234, 184:257; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:102, 207:169, 207:170.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.6, 11.7, 27.5.

NY JUR 2d, Criminal Law: Procedure §§ 864–870, 878, 919, 913, 916, 3485, 3488, 3550, 3637.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Attorneys; Criminal Procedure Rules.

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Database: NY-ORCS

Query: ineffective /5 counsel /s review! /4 appeal /s outside /3 record

POINTS OF COUNSEL

Legal Aid Society, New York City (*William B. Carney* and *Steven Banks* of counsel), for appellant. Appellant was deprived of his due process rights (a) to effective post-conviction review by the Appellate Division's refusal to consider the actual reasons for counsel's failing to raise the statute of limitations defense, and (b) to effective assistance of counsel when his trial lawyer acknowledged that he did not raise the statute of limitations defense because he was completely unaware of this absolute defense, and also failed to reopen the *Huntley* hearing after the lead detective told a critically different account of how appellant's statement was obtained. (*Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5 NY3d 143; *People v Benevento*, 91 NY2d 708; *People v Turner*, 5 NY3d 476; *Massaro v United States*, 538 US 500; *People v Brown*, 45 NY2d 852; *Walker v Dalsheim*, 669 F Supp 68; *People v Ramos*, 63 NY2d 640; *People v Love*, 57 NY2d 998.)

Richard A. Brown, District Attorney, Kew Gardens (*Jennifer Hagan* and *John M. Castellano* of counsel), for respondent. I.

This Court is jurisdictionally barred from reviewing defendant's claim that his attorney was ineffective because he was unaware that he could raise a statute of limitations defense to the manslaughter charges. (*People v Sevenscan*, 12 NY3d 388; *People v Bautista*, 7 NY3d 838; *Matter of State of New York v King*, 36 NY2d 59; *People v Zerillo*, 200 NY 443; *People v Grossmann*, 87 NY2d 1003; *People v Jones*, 85 NY2d 882; *People v Ginsberg*, 43 NY2d 715; *People v Sommer*, 33 NY2d 688; *People v Kim*, 91 NY2d 407; *People v Kellar*, 89 NY2d 948.) II. The Appellate Division correctly found that defendant received the effective assistance of counsel at trial. (*People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Baker*, 14 NY3d 266; *People v Satterfield*, 66 NY2d 796; *People v Borrell*, 12 NY3d 365; *People v Turner*, 5 NY3d 476; *People v Henry*, 95 NY2d 563; *People v Flores*, 84 NY2d 184; *Strickland v Washington*, 466 US 668; *Arizona v Fulminante*, 499 US 279.)

OPINION OF THE COURT

PIGOTT, J.

The primary issue presented on this appeal is whether defendant's trial counsel was ineffective for failing to raise a statute of limitations defense. Based on the record before us, we conclude that he was not.

On October 3, 1993, defendant, 15 years old at the time, shot and killed a cab driver in Queens. Nearly eight years later, he was indicted on three counts of murder in the second degree (Penal Law § 125.25 [1], [2], [3]) and one count of manslaughter in the first degree (Penal Law § 125.20). The manslaughter count was subject to a five-year statute of limitations (*see* CPL 30.10 [2] [b]).

Following a bench trial, defendant was acquitted of murder but convicted of manslaughter.

Defendant then appealed his conviction and at about the same time, through assigned counsel, filed a motion pursuant to CPL 440.10 to vacate his conviction. In his motion he claimed, as relevant to this appeal, that his attorney was ineffective for failing to raise the statute of limitations defense with respect to the manslaughter count.¹ Trial counsel saw fit to provide two affirmations with respect to the motion, one for each side. In the

1. There were actually two CPL 440.10 motions; one by the defendant pro se, the other filed by assigned counsel. We are dealing here with the one filed by counsel.

affirmation provided for defendant, he stated that he did not consider raising any defense at all and that “perhaps [he] was mistaken and ‘maybe [he] had missed something.’” In the affirmation he provided the People, he averred that “[h]ad [he] considered a statute of limitations defense . . . , [he] would not have raised it, because [he] would have wanted the Court to consider the manslaughter charge as an alternative to potentially finding defendant guilty of the greater charge of murder.” Instead of deciding the motion on the merits, Supreme Court found that sufficient facts appeared on the record with respect to the issues raised to permit adequate review on direct appeal and denied the motion. Defendant sought leave to appeal the denial of his motion and to consolidate that appeal with his direct appeal, but a Justice of the Appellate Division denied that application.

Defendant then proceeded with his direct appeal. The Appellate Division unanimously affirmed the conviction finding, as relevant here, that defendant’s claims of ineffective assistance of counsel involved matters *outside* the record, and that those matters may not be reviewed on appeal (69 AD3d 649 [2d Dept 2010]). To the extent that the claim could be reviewed, the court held that counsel’s failure to raise the statute of limitations defense reflected a legitimate trial strategy of a reasonably competent attorney, noting, in addition, that counsel adequately cross-examined the People’s witnesses, and provided a cogent summation.

A Judge of this Court granted defendant leave to appeal and we now affirm.

[1] As an initial matter, defendant here found himself in a dilemma when the trial court denied his CPL 440.10 motion because, in its view, the issue was sufficiently preserved on his direct appeal, only to find that the appellate court disagreed. As a result, trial counsel’s affirmations, concerning his failure to raise the statute of limitations defense, were never properly considered by any court. Although the attorney’s affirmations are not dispositive of the ineffective assistance claim, they plainly are relevant. This problem could have easily been remedied had the Appellate Division granted leave on the CPL 440.10 motion and consolidated it with the direct appeal—a solution we hope our appellate courts will consider in the future

should this situation arise.² But because the Appellate Division denied defendant leave on his article 440 motion, we are limited to a review of the record before us. And, unless it is clear from the record that there could not have been any legitimate trial strategy for failing to raise the statute of limitations defense, we must deny defendant relief (*cf. People v Turner*, 5 NY3d 476, 483-484 [2005]). Here, we agree with the Appellate Division that on the record before us, it cannot be said that counsel did not provide meaningful representation (*see People v Benevento*, 91 NY2d 708, 712 [1998]).

We have previously ruled that the single error of failing to raise a statute of limitations defense may qualify as ineffective assistance. In *People v Turner* (5 NY3d 476 [2005]), we held that appellate counsel was ineffective for failing to argue that trial counsel was ineffective for failing to raise the five-year statute of limitations with respect to a manslaughter count. There, counsel had objected to the submission of the manslaughter count, so it was clear from the record that counsel did not want the jury to consider it as an alternative to murder, yet trial counsel inexplicably failed to support the objection by raising a clear statute of limitations defense. But we have also recognized that in many cases a defendant who thinks his chances of acquittal are small may welcome giving the jury an opportunity to consider a lesser charge (*id.* at 483-484, citing *People v Boettcher*, 69 NY2d 174, 182 n 3 [1987]).

[2] The issue here, then, is whether counsel's failure to raise the defense reflects a legitimate trial strategy of a reasonably competent attorney. In *People v Satterfield* (66 NY2d 796, 799 [1985]), we held that in ineffective assistance cases, counsel's *subjective* reasons for a decision are immaterial, so long as "[v]iewed *objectively*, the transcript and the submissions reveal the existence of a trial strategy that might well have been pursued by a reasonably competent attorney" (emphasis

2. (See Edelstein, Outside Counsel, *Ineffective Assistance of Counsel*, N.Y. *Collateral Review*, NYLJ, Mar. 3, 2008, at 4, col 4.) The federal courts have recently resolved the problem that arises when an ineffective assistance of counsel claim involves such "mixed claims" relating to both record-based and nonrecord-based issues (*see Massaro v United States*, 538 US 500 [2003]). An ineffective assistance of counsel claim may be brought in a collateral proceeding, *whether or not* the petitioner could have raised the claim on direct appeal. When such a claim is brought on direct appeal, the federal courts have reasoned, appellate counsel and the court must proceed on a trial record that was not developed precisely for the object of litigating or preserving the claim and is often incomplete or inadequate for this purpose (*id.* at 504-505).

added). Here, there is no dispute that the manslaughter count was barred by the statute of limitations and that such a defense, if raised by trial counsel, would have been successful. But at the time of trial, defendant was facing second-degree murder charges with an admission that he had fired the shot that caused the cab driver's death. Therefore, had the manslaughter count been dismissed prior to verdict, the trier of fact would have been left with murder as the only choice if defendant was to be found criminally responsible for the homicide. So allowing the trial court to consider the manslaughter count would be a legitimate strategy. And it is clear from the record that the defense counsel in this case wanted the court to do just that. During summation, he specifically requested that the court consider the manslaughter count on the theory that defendant stated that he took out the weapon to stop a robbery. Based on differing trial strategies, defense counsel then argued that defendant should be acquitted of all of the counts or be convicted only of manslaughter.

As to the other issue raised on this appeal, we reject defendant's claim that defense counsel was ineffective for failing to move to reopen the suppression hearing since, on this record, it is clear that it would not have resulted in a different ruling.

Accordingly, the order of the Appellate Division should be affirmed.

JONES, J. (dissenting). On this record, I believe that defendant received ineffective assistance of counsel. Therefore, I respectfully dissent.

Defendant was convicted in 2005 of manslaughter in connection with a homicide which occurred in 1993. At the same trial, he was acquitted of murder. There is no dispute that the manslaughter charge was time-barred. The sole issue is whether the failure to object to the charge was a deliberate trial strategy or amounted to ineffective assistance of counsel.

Following his conviction, defendant filed a *pro se* motion pursuant to CPL 440.10. He contended that he had received ineffective assistance of counsel because counsel failed to object on the ground that the five-year statute of limitations relating to the manslaughter charge had expired (*see* CPL 30.10 [2] [b]). Supreme Court denied defendant's motion. The court accepted the People's contention that defendant could raise the issue of ineffective assistance of counsel on direct appeal. A Justice of the Appellate Division denied defendant's application for leave to appeal from the denial of the motion.

On direct appeal, the Appellate Division affirmed the judgment of conviction. Although trial counsel submitted affirmations acknowledging ignorance of the statute of limitations defense, the court held that they were matters outside the record, which could not be reviewed. On the record, however, the court held, among other things, that defense counsel provided effective assistance. It concluded that “[c]ounsel’s failure to raise the statute of limitations as a defense to the first-degree manslaughter count reflect[ed] a legitimate trial strategy of a reasonably competent attorney” (69 AD3d 649, 650 [2010]). This conclusion was speculative and unsupported by the record.

This record is sufficient to resolve defendant’s ineffective assistance of counsel claim in his favor. As a threshold matter, I disagree with my colleagues regarding the relevancy of trial counsel’s affirmations (*see* majority op at 574). An affirmation by trial counsel regarding his internal deliberations on how to proceed is immaterial (*see People v Satterfield*, 66 NY2d 796, 799 [1985] [“counsel’s subjective reasons for (a decision are) immaterial”]). It is how trial counsel proceeded *on the record* which is of importance in this matter. It is clear on this record that neither the court nor the parties recognized that the manslaughter charge was time-barred (*cf. People v Mills*, 1 NY3d 269 [2003]). Moreover, acknowledging that the manslaughter charge was time-barred on the record would not have removed the charge from consideration. Contrarily, it would have been objective proof of defense counsel’s trial strategy to have the *time-barred* manslaughter charge considered by the trial court; in addition, it might have constituted a waiver of the defense (*see id.*). In *Mills*, the defendant had been charged with second-degree murder, but in a pretrial motion and a subsequent charge conference, he affirmatively requested that lesser included offenses be submitted to the jury (*id.* at 272). The trial court considered the request, conditioned upon “defendant’s ‘understanding that, if convicted of any lesser included offense, he has waived his objection on statute of limitation[s] grounds’ ” (*id.*). Unlike *Mills*, where there was an objective basis in the record to conclude that the affirmative request for the lesser included charges was a form of trial strategy, this record fails to demonstrate such a deliberate choice by defense counsel. Because the record clearly demonstrates that defendant should not have been charged with manslaughter, as its statute of limitations had run and no tolling provisions applied, and neither party nor

the court recognized that the charge was time-barred, defendant's ineffective assistance of counsel claim can be resolved on the existing record alone (see *People v Benevento*, 91 NY2d 708 [1998]), and, for the foregoing reasons, should be resolved in defendant's favor.

Effective assistance of counsel is a right guaranteed by the Sixth Amendment of the United States Constitution and article I, § 6 of the State Constitution (see *People v Baldi*, 54 NY2d 137, 146 [1981]). It is a right that exists "to protect the fundamental right to a fair trial" (*Strickland v Washington*, 466 US 668, 684 [1984]). A defendant's "constitutional rights are violated if a defendant's counsel fails to meet a minimum standard of effectiveness, and defendant suffers prejudice from that failure" (*People v Turner*, 5 NY3d 476, 479 [2005]).

In rare cases, "a single failing in an otherwise competent performance is so 'egregious and prejudicial' as to deprive a defendant of his constitutional right" that it can bring about ineffective assistance of counsel (*id.* at 480). It is most obvious when counsel "fail[ed] to raise a defense as clear-cut and completely dispositive as a statute of limitations. Such a failure, in the absence of a reasonable explanation for it, is hard to reconcile with a defendant's constitutional right to the effective assistance of counsel" (*id.* at 481).

Similar to the case at bar, in *Turner*, the defendant was indicted for murder in the second degree. At trial, the prosecutor asked that the jury be instructed to consider the lesser included offense, manslaughter in the first degree, which was time-barred. Defense counsel objected, but failed to specifically invoke the statute of limitations. The defendant was acquitted of second-degree murder, but convicted of first-degree manslaughter. After his conviction, the defendant unsuccessfully tried to raise the statute of limitations issue through his appellate counsel. Appellate counsel failed to argue that issue on direct appeal, and his conviction was affirmed.

This Court subsequently considered the issue on defendant's second petition for a writ of error coram nobis. Although the ultimate issue in *Turner* involved ineffective assistance of appellate counsel, the question "depend[ed] on how strong defendant's statute of limitations defense was" (5 NY3d at 481). The *Turner* Court concluded that the statute of limitations defense "was a winning argument [and] that trial counsel could not reasonably have thought that the defense was not worth raising" (*id.*).

In the *Turner* case, because trial counsel objected to the manslaughter charge without arguing that the charge was time-barred, no reasonable explanation existed for failing to raise that specific defense. The record in *Turner*, as in the instant case, did not support the conclusion that counsel had waived the defense. Though the circumstances of ineffective assistance of counsel in *Turner* differ from that of this case, the principle remains the same. Defendants were convicted of manslaughter despite the existence of the clear-cut and dispositive defense of the statute of limitations to those charges. Such a failure to raise the defense is clearly prejudicial to a defendant who is acquitted of all other charges save for the time-barred charge. Particularly given that counsel could have advised the court on the record that the manslaughter charge, although time-barred, still could be considered. Thus, I submit, where it is clear, as it is on this record, that no consideration regarding the expiration of the time to prosecute had been given, it should not be *presumed* that defense counsel's failure to raise the defense was a legitimate strategy.

Furthermore, the majority urges that when future, similar cases are presented, the Appellate Division should consolidate a defendant's CPL 440.10 motion with his or her direct appeal in order to allow review of matters de hors the record. However, this does not solve the predicament that the instant defendant finds himself in. Defendant has had two CPL 440.10 motions claiming ineffective assistance of counsel denied and as a result of the majority's opinion, his direct appeal has now been exhausted. While the majority's suggestion seeks to remedy this procedural dilemma, for this defendant, this holding effectively forecloses him from a legitimate avenue and basis for future CPL 440.10 motions because the majority has definitively held that defense counsel's failure to object to the manslaughter charge was a reasonable trial strategy despite the lack of record support for such a conclusion. The conclusion that defense counsel's reference to the manslaughter charge in his summation was trial strategy, without further evidence that counsel or the trial court was aware of this statute of limitations issue, is unfounded speculation.

In sum, defendant's ineffective assistance of counsel claim rests on a single issue, which is indisputable. The People charged defendant with manslaughter after the expiration of the five-year statute of limitations, and trial counsel failed to raise the statute of limitations as a defense. Moreover, at no point during

the bench trial was there any discussion on the record regarding the statute of limitations of the manslaughter charge. Thus, without discussing on the record that the statute of limitations had run, contrary to the majority's conclusions, trial counsel's references to the manslaughter charge cannot be said to be a trial strategy. Given that such a defense may be forfeited or waived (*Mills*, 1 NY3d at 274 ["New York courts have long recognized that the statute of limitations defense . . . can be forfeited or waived by a defendant"]), there is nothing in this record to suggest that trial counsel consented to having the manslaughter charge considered even though the time to prosecute that crime had run. Therefore, in light of the prejudice to defendant, trial counsel's failure to raise the statute of limitations defense, on this record, constitutes ineffective assistance of counsel.

Accordingly, I would reverse the Appellate Division order and vacate the judgment of conviction.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and SMITH concur with Judge PIGOTT; Judge JONES dissents and votes to reverse in a separate opinion.

Order affirmed.

[949 NE2d 471, 925 NYS2d 380]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ROBERT
ALONSO and EMILIA ALONSO, Respondents.

Argued March 22, 2011; decided May 3, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 16, 2010. The Appellate Division dismissed an appeal from an order of the Supreme Court, Westchester County (Rory J. Bellantoni, J.), which had (1) granted defendants' motion to dismiss the indictments with prejudice and (2) dismissed the indictments.

People v Alonso, 70 AD3d 957, reversed.

HEADNOTE

Crimes — Appeal — Matters Appealable — Dismissal of Indictments Based on Failure to Disclose Exculpatory Evidence

In a criminal prosecution, the People had the right to appeal from an order of Supreme Court that dismissed the indictments, with prejudice, upon a finding that the People's failure to meet their obligation to disclose exculpatory evidence prejudiced defendants such that a fair trial was impossible, notwithstanding that Supreme Court premised the dismissal on the language of CPL 240.70. CPL 450.20 provides the People with a right to appeal from an order dismissing an accusatory instrument entered pursuant to certain CPL provisions, including CPL 210.20, but omits an order imposing discovery sanctions pursuant to CPL 240.70. There is no express grant of dismissal power in CPL 240.70, and that statute's catchall language allowing the court to "take any other appropriate action" does not, in and of itself, empower the court to dismiss an indictment. That power emanates from CPL 210.20, which provides for dismissal of an indictment when "[t]here exists some other jurisdictional or legal impediment to conviction of the defendant for the offense charged" (CPL 210.20 [1] [h]). Here, although Supreme Court did not expressly refer to CPL 210.20 (1) (h), in that court's view, the impossibility of a fair trial created by the *Brady* violation presented a "legal impediment to conviction" within the meaning of CPL 210.20 (1) (h). Thus, Supreme Court's order dismissing the indictments was issued pursuant to CPL 210.20 and was appealable under CPL 450.20.

RESEARCH REFERENCES

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AM JUR 2d, Appellate Review § 204; AM JUR 2d, Depositions and Discovery §§ 220, 280.

CARMODY-WAIT 2d, Discovery §§ 187:129, 187:132;
CARMODY-WAIT 2d, Pretrial Motions § 189:110;

CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:7, 207:10, 207:159.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 20.3, 27.3.

McKINNEY's, CPL 210.20 (1) (h); 240.70 (1); 450.20.

NY JUR 2d, Criminal Law: Procedure §§ 1299, 1573, 1729, 1730, 3491.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Discovery; Exculpatory Evidence.

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POINTS OF COUNSEL

Eric T. Schneiderman, Attorney General, New York City (Roseann B. MacKechnie and Barbara D. Underwood of counsel), for appellant. The trial court's order dismissing the indictments as a sanction for a purported discovery violation is appealable. (*People v Dunn*, 4 NY3d 495; *People v Stevens*, 91 NY2d 270; *People v Laing*, 79 NY2d 166; *People v Hernandez*, 98 NY2d 8; *People v Franco*, 196 AD2d 357, 86 NY2d 493; *People v Coppa*, 45 NY2d 244; *People v Rosenberg*, 45 NY2d 251; *People v Wallace*, 220 AD2d 248; *People v Williams*, 186 Misc 2d 705; *People v Gonzalez*, 184 Misc 2d 262.)

Diane E. Selker, Peekskill, for respondents. The Appellate Division correctly held that the trial court order dismissing the indictment as a discovery sanction under CPL 240.70 (1) is not appealable under CPL 450.20. (*People v Laing*, 79 NY2d 166; *People v Hernandez*, 98 NY2d 8; *People v Allen*, 92 NY2d 378; *People v Schaum*, 98 NY2d 667; *People v Franco*, 86 NY2d 493; *People v Swamp*, 84 NY2d 725; *People v Coppa*, 45 NY2d 244; *People v Doe*, 170 AD2d 690, 77 NY2d 956; *People v Myers*, 226 AD2d 557; *People v Rosenberg*, 45 NY2d 251.)

Derek P. Champagne, District Attorney, Malone (Patrick J. Hynes and Sara M. Zausmer of counsel), for District Attorneys Association of the State of New York, amicus curiae. A court's order dismissing a felony indictment as an "appropriate" sanction under CPL 240.70 is an exercise of the power conferred by CPL 210.20 and is thus appealable. (*People v Rosenberg*, 45 NY2d 251; *People v Kelly*, 62 NY2d 516; *People v Douglass*, 60

NY2d 194; *People v Jones*, 93 AD2d 743; *People v Schaum*, 98 NY2d 667; *People v Coppia*, 45 NY2d 244; *People v Wallace*, 220 AD2d 248, 87 NY2d 1026; *People v Belge*, 41 NY2d 60; *People v Colon*, 110 Misc 2d 917, 112 Misc 2d 790, 59 NY2d 921; *People v Chu Zhu*, 171 Misc 2d 298, 245 AD2d 296.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

Several months into a criminal trial on charges related to alleged Medicaid fraud, Supreme Court determined that the People had failed to meet their obligation to disclose exculpatory evidence pursuant to *Brady v Maryland* (373 US 83 [1963]). Supreme Court found that the constitutional violation was of such a magnitude that the prejudice to defendants could not be overcome by any remedy short of dismissing the indictments. Having concluded that the defendants could not receive a fair trial under the circumstances, Supreme Court dismissed the indictments, with prejudice.

The People brought an appeal to the Appellate Division. That court, however, dismissed the appeal without passing upon the merits. The Appellate Division reasoned that the People lacked the statutory right to bring an appeal from a dismissal of an indictment in response to a discovery violation (*People v Alonso*, 70 AD3d 957 [2d Dept 2010]). A Judge of this Court granted the People leave to appeal (15 NY3d 746 [2010]). For the reasons that follow, and without expressing any view as to the merits of Supreme Court's decision, we conclude that the People have a right to appeal the dismissal of the indictments. We therefore reverse the Appellate Division order and remit the case to that court for consideration of the merits of the People's appeal.

Historically, the People "were authorized, in general terms, to appeal to an intermediate appellate court from any order dismissing an indictment on any ground other than insufficiency of the evidence at trial" (*People v Coppia*, 45 NY2d 244, 249 [1978]). The availability of a People's appeal from the dismissal of an indictment has since been circumscribed by statute and is now governed by Criminal Procedure Law § 450.20 (see *People v Dunn*, 4 NY3d 495, 497 [2005]; see also *People v Laing*, 79 NY2d 166, 170 [1992] [recognizing "the Legislature's policy prerogative to limit appellate proliferation in criminal matters" (internal quotation marks omitted)]). Under that provision, as relevant here, the People have a right to appeal from "[a]n order dismissing an accusatory instrument or a count thereof,

entered pursuant to section 170.30, 170.50 or 210.20, or an order terminating a prosecution pursuant to subdivision four of section 180.85” (CPL 450.20 [1]), and we will not resort to “interpretative contrivances to broaden the scope” of CPL 450.20 (*Laing*, 79 NY2d at 170-171; *see People v Hernandez*, 98 NY2d 8, 10 [2002]).

Here, neither Supreme Court’s order dismissing the indictments nor its otherwise comprehensive discussion on the record with counsel as to how it should address the *Brady* violation unequivocally states on what authority Supreme Court relied in dismissing the indictments. However, in context, it is clear that Supreme Court premised the dismissal of the indictments on the language of CPL 240.70. A court faced with a party’s discovery violation is empowered by CPL 240.70 to take a number of actions, including ordering the noncompliant party “to permit discovery of the property not previously disclosed, grant a continuance, issue a protective order, prohibit the introduction of certain evidence or the calling of certain witnesses or take any other appropriate action” (CPL 240.70 [1]). In its discussions with counsel on the record, Supreme Court referred to CPL 240.70, and it appears Supreme Court concluded that it had the power to dismiss the indictments under the “any other appropriate action” language of CPL 240.70 (1).

The Legislature, however, provided the grounds upon which Supreme Court may dismiss an indictment in a different section of the Criminal Procedure Law, section 210.20. That provision provides that “[a]fter arraignment upon an indictment, the superior court may, upon motion of the defendant, dismiss such indictment or any count thereof” upon a series of enumerated grounds (*see* CPL 210.20 [1] [a]-[i]).

The People do not argue that Supreme Court lacked the power to dismiss these indictments (*see Dunn*, 4 NY3d at 497 [recognizing that “the People may seek a writ of prohibition in a CPLR article 78 proceeding when a trial court clearly acts in excess of its authorized powers and there is no adequate remedy at law,” such as a direct appeal, “to address the People’s grievance” (internal quotation marks omitted)]). Rather, the parties disagree as to whether Supreme Court’s power to dismiss these indictments springs exclusively from CPL 240.70 (the discovery sanctions provision of the CPL). Defendants argue that it does, but the People argue that the dismissal power arises either from CPL 210.20 (the provision listing the grounds upon which a court may dismiss an indictment) alone or from reading CPL

240.70 and 210.20 together. Whether resort to CPL 210.20 is necessary is determinative of the question of whether the People have a right to appeal because, simply put, CPL 210.20 is listed in CPL 450.20 (1), while CPL 240.70 is not among the provisions listed in CPL 450.20. We agree with the People that Supreme Court's power to dismiss these indictments emanates from CPL 210.20. Thus, the People have the right to appeal Supreme Court's order dismissing the indictments.

CPL 210.20's catchall provision, CPL 210.20 (1) (h), empowers a court to dismiss an indictment when "[t]here exists some other jurisdictional or legal impediment to conviction of the defendant for the offense charged." The catchall language of CPL 240.70 (1) ("or take any other appropriate action") allows Supreme Court to exercise any other power it possesses in fashioning an appropriate remedy for a discovery violation, but it does not, in and of itself, empower Supreme Court to dismiss an indictment. As the People argue, resort to CPL 210.20 (1) (h) was necessary to effectuate dismissal.

But, defendants protest, Supreme Court never referred to CPL 210.20 (1) (h) in its written order or in its discussions with counsel on the record, thus it must be assumed that Supreme Court acted solely pursuant to CPL 240.70 in remedying the *Brady* violation. We cannot agree.

First, under defendants' argument, a court could effectively insulate its own dismissal of an indictment from appellate review simply by stating erroneously that it acted in reliance on a statutory provision not listed in CPL 450.20. The absurdity of such a result is obvious (*see generally People v D'Alessandro*, 13 NY3d 216, 218-219 [2009], citing *People v Giles*, 73 NY2d 666, 669-670 [1989]).¹

Second, although Supreme Court did not expressly refer to CPL 210.20 (1) (h), it is clear that the import of its order fell squarely within its terms. Supreme Court stressed in thorough discussions with counsel on the record that the magnitude of the *Brady* violation here, in the court's view, was such that it would be impossible for the defendants to receive a fair trial.

1. Here, there is no suggestion that Supreme Court sought to shield its order from appellate review. Indeed, immediately after Supreme Court orally announced its decision to dismiss the indictments, the record reflects that the court presumed that its order would be the subject of an appeal; it was only after additional discussion with counsel that Supreme Court learned that defendants took a different view and believed that the People could not take an appeal.

Supreme Court struggled to fashion a remedy for the violation and engaged the People and defense counsel in that effort, but it ultimately concluded that it had no choice but to dismiss the indictments, with prejudice. The *Brady* violation, therefore, in Supreme Court's view, became a "legal impediment to conviction" within the meaning of CPL 210.20 (1) (h) (*see* Commission Staff Notes, reprinted following NY CLS, CPL 210.20, Book 7C, at 171 [describing CPL 210.20 (1) (h) as a "dragnet provision" designed as such given "the impossibility of specifying every kind of contention which may properly be raised in an attack upon an indictment"]).

Our conclusion that the People have a right to appeal the dismissal of the indictments here is not contrary to our decision in *People v Hernandez* (98 NY2d 8 [2002]), where we determined that the order dismissing the accusatory instrument there could not be appealed. In fact, *Hernandez* may be usefully distinguished. There, the defendant was subjected to a warrantless arrest and was charged in a misdemeanor complaint with consuming alcohol in public. The dismissal of the complaint was made pursuant to CPL 140.45, which "requires dismissal when an accusatory instrument filed pursuant to warrantless arrest provisions is facially insufficient" and the court determines that it would be impossible, on the basis of the known facts, to draft a sufficient accusatory instrument (*Hernandez*, 98 NY2d at 10; CPL 140.45). Thus, contrary to the discovery sanctions provision at issue here (CPL 240.70), CPL 140.45 itself empowered the court to dismiss the accusatory instrument under certain circumstances. Given that express legislative grant of power, coupled with the Legislature's omission of CPL 140.45 from the provisions listed in CPL 450.20, we found the People had no right to appeal.² The same cannot be said here. The Legislature empowered Supreme Court to take "appropriate action" in

2. We explained in *Hernandez*, too, that the legislative rationale behind not providing the People with an appeal in those circumstances is clear:

"As the legislative history of CPL 140.45 explains, in a case of an arrest under a warrant, the information or felony complaint underlying the warrant is filed with, and examined for sufficiency by, a local criminal court before the arrest, whereas, when an arrest is made without a warrant, since the arraignment is the court's first opportunity to examine it, it should have the power to reject it on that occasion" (98 NY2d at 10 [internal quotation marks omitted]).

No analogous principle animates the Legislature's language in CPL 240.70 (1) allowing a trial court to take "appropriate action" in the face of a discovery violation.

addressing a discovery violation under CPL 240.70, but, unlike CPL 140.45, there is no express grant of dismissal power in CPL 240.70.

The impossibility of a fair trial created, in Supreme Court's view, by the *Brady* violation presented a "legal impediment to conviction" within the meaning of CPL 210.20 (1) (h). Thus, Supreme Court's order was issued pursuant to CPL 210.20, and, as CPL 210.20 is among the provisions listed in CPL 450.20 (1), the People may take an appeal of the dismissal order to the Appellate Division.

Accordingly, the order of the Appellate Division should be reversed and the case remitted to the Appellate Division for consideration of the merits of the appeal.

JONES, J. (dissenting). Criminal Procedure Law § 450.20 (1) authorizes the People to take an appeal as of right from "[a]n order dismissing an accusatory instrument . . . entered pursuant to section 170.30, 170.50 or 210.20." Until now, this Court has consistently held that "[n]o appeal lies from a determination made in a criminal proceeding unless specifically provided for by statute" (*People v Dunn*, 4 NY3d 495, 497 [2005]; see also *People v Hernandez*, 98 NY2d 8, 10 [2002]; *People v Stevens*, 91 NY2d 270, 278 [1998]).

In *Dunn*, Supreme Court purported to dismiss an indictment under Judiciary Law § 2-b (3), a statute not mentioned in CPL 450.20's grant of appellate jurisdiction. The court's power to dismiss under that Judiciary Law section was questionable at best, and the People argued that the order "should be deemed to have been made pursuant to CPL 330.30," and thus appealable (*Dunn*, 4 NY3d at 497). We affirmed the Appellate Division's dismissal of the appeal, repeating declarations made in both *Hernandez* and *People v Laing* (79 NY2d 166, 170-171 [1992]): "we will not resort to interpretative contrivances to broaden the scope and application of CPL 450.20" (4 NY3d at 497 [internal quotation marks omitted]).

Notwithstanding the almost identical argument in *Dunn*, the majority now holds that Supreme Court did not have the power to dismiss an indictment under CPL 240.70, and therefore it must have dismissed under CPL 210.20, making the dismissal appealable. The majority does so without distinguishing *Dunn* or explaining why the Court does not follow that rule here. Despite this Court's jurisprudence, the majority converts indictments dismissed under CPL 240.70 into indictments dismissed

under CPL 210.20 so that an appeal may be taken by the People pursuant to CPL 450.20. As a result, rather than “constru[ing the] clear and unambiguous statutes as enacted,” the majority’s interpretation clearly “broaden[s] the scope and application of” CPL 450.20 (*Laing*, 79 NY2d at 170-171).

Here, Supreme Court dismissed the indictments pursuant to CPL 240.70, penalizing the People for a discovery violation. CPL 240.70 is not specifically enumerated in section 450.20. Because there is no express statutory authority for the People’s appeal from an order dismissing accusatory instruments pursuant to section 240.70, the People have no right to appeal under CPL 450.20 (see *Hernandez*, 98 NY2d at 10; *Laing*, 79 NY2d at 170).

Accordingly, I dissent and would vote to affirm the Appellate Division order.

Judges CIPARICK, GRAFFEO, READ and PIGOTT concur with Chief Judge LIPPMAN; Judge JONES dissents and votes to affirm in a separate opinion in which Judge SMITH concurs.

Order reversed, etc.

[949 NE2d 475, 925 NYS2d 384]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
SCOTT, Appellant.

Argued March 22, 2011; decided May 3, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 5, 2009. The Appellate Division affirmed a judgment of the Saratoga County Court (Jerry J. Scarano, Jr., J.), which had convicted defendant, upon a jury verdict, of rape in the second degree and endangering the welfare of a child (three counts).

People v Scott, 67 AD3d 1052, affirmed.

HEADNOTES

Crimes — Evidence — Victim’s Prior Sexual Conduct — Interests of Justice Exception — Evidence Must be Relevant to Defense

1. In a prosecution for rape and related crimes, the trial court properly exercised its discretion in determining that evidence of the complainant’s prior sexual conduct on the same evening at the party where she was allegedly raped by the defendant was inadmissible under the Rape Shield Law’s “interests of justice” exception (CPL 60.42 [5]). If evidence of a complainant’s sexual conduct is relevant to a defense, it may be admissible in the interests of justice. However, if such evidence does not tend to establish a defense to the crime, it must be precluded because it will only harass the victim and possibly confuse the jurors. Here, the trial court determined that evidence relative to any prior sexual conduct of the complainant with any of the other individuals who were present at the party where the alleged rape occurred would be relevant to the defense only if the People introduced evidence of the complainant’s bruising and attributed that bruising to the defendant. Such evidence would have been relevant to the charges of forcible and statutory rape, but the People decided not to offer evidence of bruising. In addition, although the People presented proof that the complainant was crying when she emerged from the bedroom with defendant to buttress their proof of forcible compulsion, there was no need to resolve whether the trial court abused its discretion in declining to admit, pursuant to CPL 60.42 (5), evidence that the complainant was crying because she had sex with another person at the party. Such evidence would have been probative, if at all, of only the forcible rape charge and defendant was acquitted of that count.

Crimes — Jurors — Discharge of Juror — Challenge to Sworn Juror for Cause

2. In a prosecution for rape and related crimes where the People had asked the prospective jurors, during jury selection, whether the lack of DNA evidence would “affect anybody’s decision in this matter?” and, after being sworn, a juror stated to the court that he thought there should be DNA evidence, the trial court did not err when it made a limited inquiry about the

juror's statement and then granted the People's request to remove the juror. Pursuant to CPL 270.15 (4), a court may allow a challenge of a sworn juror for cause, prior to the time a witness is sworn at the trial, where the challenge is made upon a ground that was not known to the challenging party before the juror was sworn. Although the trial court failed to make a probing inquiry regarding the sworn juror's ability to render an impartial verdict, its discharge was authorized by CPL 270.15 (4). Furthermore, a trial court should lean toward disqualifying a prospective juror of dubious impartiality, rather than testing the bounds of discretion by permitting such a juror to serve.

Crimes — Jurors — Selection of Jury — Challenge for Cause — Former Professional Relationship with Prosecutor

3. In a criminal prosecution, the trial court did not err when it denied defendant's challenge for cause to a prospective juror who advised the court that the prosecutor "took a case for me for my son" about 13 or 14 years earlier when asked whether any of the jurors knew the prosecutor. Because the professional relationship between the prosecutor and prospective juror was distant in time and limited in nature, it was not an abuse of discretion for the trial court to permit the juror to serve.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence §§ 509, 511, 514, 515; AM JUR 2d, Jury §§ 200, 202, 268; AM JUR 2d, Rape §§ 66, 88.
CARMODY-WAIT 2d, Jury Selection and Supervision §§ 191:28, 191:29, 191:33, 191:41; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:40, 194:41.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 22.3, 24.4.
MCKINNEY'S, CPL 60.42 (5); 270.15 (4).
NY JUR 2d, Criminal Law: Procedure §§ 2046, 2546, 2547, 2584; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 723, 728.

ANNOTATION REFERENCE

Modern status of admissibility, in forcible rape prosecution, of complainant's prior sexual acts. 94 ALR3d 257.

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Query: rape /p victim /2 sex! /2 conduct /s evidence & interest /3 justice

POINTS OF COUNSEL

Paul J. Connolly, Delmar, for appellant. I. County Court committed reversible error in granting the prosecution's motion to excuse a sworn juror for cause though he had not been shown

to have a state of mind with which he could not render an impartial verdict. (*People v Harris*, 57 NY2d 335; *People v Williams*, 63 NY2d 882; *People v Arnold*, 96 NY2d 358; *People v Lipsky*, 57 NY2d 560; *People v Russell*, 16 AD3d 776, 5 NY3d 809; *People v Kenner*, 8 AD3d 296; *People v Tankleff*, 84 NY2d 992; *People v Jackson*, 182 AD2d 919, 80 NY2d 832; *People v Victor*, 62 NY2d 374; *People v Cahill*, 2 NY3d 14.) II. County Court committed reversible error in denying a defense challenge for cause of a prospective juror who had effectively had an attorney-client relationship with the prosecuting attorney. (*People v Johnson*, 94 NY2d 600; *People v Arnold*, 96 NY2d 358; *People v Clark*, 125 AD2d 868; *People v Branch*, 46 NY2d 645; *Matter of Cooperman*, 83 NY2d 465; *Matter of Wallach*, 164 App Div 600, 215 NY 622; *People v Provenzano*, 50 NY2d 420; *People v Levandowski*, 8 AD3d 898; *People v Hall*, 138 AD2d 404; *People v Kane*, 57 AD2d 575.) III. County Court's rape shield ruling was an abuse of discretion that violated defendant's constitutional right to confront witnesses and constitutional due process right to present a defense. (*People v Williams*, 81 NY2d 303; *People v Loja*, 305 AD2d 189; *People v Jovanovic*, 263 AD2d 182, 95 NY2d 846; *People v Santiago*, 13 AD3d 81, 4 NY3d 767; *People v Salko*, 47 NY2d 230; *People v Segarra*, 46 AD3d 363, 10 NY3d 816; *People v Mann*, 41 AD3d 977, 9 NY3d 924; *People v White*, 261 AD2d 653, 93 NY2d 1029; *People v Wise*, 46 NY2d 321; *People v Beavers*, 127 AD2d 138; 70 NY2d 642.)

James A. Murphy, III, District Attorney, Ballston Spa (Nicholas E. Tishler of counsel), for respondent. I. The trial judge properly exercised his discretion in excusing a sworn juror for cause after the juror revealed that he violated his oath under Criminal Procedure Law § 270.15 (1) (a), misled the court during voir dire and failed to follow the court's instructions. (*People v Williams*, 63 NY2d 882; *People v Arnold*, 96 NY2d 358; *People v Culhane*, 33 NY2d 90; *People v Blyden*, 55 NY2d 73; *People v Johnson*, 94 NY2d 600; *People v Dukes*, 8 NY3d 952; *People v Buford*, 69 NY2d 290; *People v Torpey*, 63 NY2d 361; *People v Hoffler*, 53 AD3d 116; *People v Norwood*, 177 Misc 2d 172.) II. Defendant's challenge for cause on the ground that a prospective juror had a professional relationship with the trial prosecutor was properly denied after the juror assured the court that the prosecutor's representation of her son in a personal injury case approximately 14 years before the trial of this matter would not affect the prospective juror's judgment. (*People v Branch*, 46 NY2d 645; *People v Provenzano*, 50 NY2d 420; *People v Williams*, 243 AD2d 833, 91 NY2d 931; *Matter of Cooperman*, 83

NY2d 465; *Matter of Wallach*, 164 App Div 600, 215 NY 622; *People v Levandowski*, 8 AD3d 898; *People v Hall*, 138 AD2d 404; *People v Kane*, 57 AD2d 575; *People v Clark*, 125 AD2d 868.) III. The rulings made by County Court on the rape shield issue were proper exercises of discretion, did not unduly prejudice defendant and did not violate his constitutional right to due process or his constitutional right to confront witnesses. (*People v Mandel*, 48 NY2d 952; *People v Williams*, 81 NY2d 303; *People v Halbert*, 175 AD2d 88, 80 NY2d 865; *People v Jovanovic*, 263 AD2d 182; *People v Loja*, 305 AD2d 189; *People v Lyng*, 154 AD2d 787; *People v Malizia*, 62 NY2d 755; *People v Anthony*, 24 NY2d 696; *People v Crimmins*, 36 NY2d 230.)

OPINION OF THE COURT

JONES, J.

This appeal requires the Court to resolve whether the trial court erred (1) in precluding evidence of a victim's sexual conduct around the time of the incident pursuant to New York's Rape Shield Law (Criminal Procedure Law § 60.42) and (2) in disqualifying one juror and failing to discharge another.

In March 2007, three eighth-grade girls, K.D., A.B. and R.S., left a slumber party and went to the home of Steven A., a 16-year-old friend of theirs. Defendant, a 23-year-old man, and another adult were also there. While at Steven A.'s home, the girls drank alcohol and smoked marijuana with Steven A. and his friends, and also engaged in sexual activity. Two days later, K.D. informed the police that she had intercourse with Steven A. at his party, but did not accuse defendant. K.D. gave a second statement to the police a few days later, stating she had intercourse with the defendant that night against her will. Defendant was charged with rape in the first degree (forcible), rape in the second degree (statutory) and three counts of endangering the welfare of a child.

During jury selection, the People asked the prospective jurors whether the lack of DNA evidence would "affect anybody's decision in this matter?" After being sworn, a juror asked to approach the bench and informed the court: "I guess I think that there should be DNA evidence." County Court made a limited inquiry about the juror's statement. It then granted the People's request to remove the juror over defendant's objection. The court found him to be "unqualified to serve as a juror." As to another prospective juror, that juror advised the court, when asked whether any of the jurors knew the prosecutor, that the

prosecutor “took a case for me for my son,” about 13 or 14 years earlier. County Court denied defendant’s challenge for cause.

Prior to trial, defendant moved for an order allowing him to introduce evidence at trial of K.D.’s sexual conduct at the party, specifically her involvement with Steven A. County Court held a hearing pursuant to CPL 60.42 (5).^{*} The court initially granted the motion, but subsequently granted the People’s motion to reargue this issue. The court then ruled that the defense was “prohibited from eliciting testimony relative to any prior sexual conduct of the victim with any of the other individuals who were present” unless the People introduced evidence attributing K.D.’s bruises to sexual activity.

At trial, K.D. testified that she was raped by defendant. A.B. testified that K.D. had been alone with defendant in a bedroom and when she emerged, wearing only a sheet, she was crying and saying, “I didn’t want to do it.” Because of County Court’s Rape Shield Law determination, defendant was prohibited from introducing, among other things, R.S.’s statement to the police that K.D. was crying because she was upset that she had sex with Steven A.

The jury acquitted defendant of rape in the first degree, but convicted him of rape in the second degree and three counts of endangering the welfare of a child. Defendant appealed, contesting, *inter alia*, County Court’s rape shield and jury selection rulings. The Appellate Division affirmed, finding no error or abuse of discretion by County Court in its discharge of one juror and failure to disqualify another and rejecting defendant’s Rape Shield Law argument (67 AD3d 1052 [2009]). This Court now affirms.

[1] Defendant contends that the trial court erred by rejecting evidence of K.D.’s sexual activity with another person around the time of the incident pursuant to CPL 60.42 (5). CPL 60.42 declares “[e]vidence of a victim’s sexual conduct” inadmissible in a prosecution for a sex offense under article 130 of the Penal

^{*} CPL 60.42 states: “Evidence of a victim’s sexual conduct shall not be admissible in a prosecution for an offense or an attempt to commit an offense defined in article one hundred thirty of the penal law [‘Sex Offenses’].” Subdivision (5) permits such evidence if a court determines “after an offer of proof by the accused outside the hearing of the jury, or such hearing as the court may require, and a statement by the court of its findings of fact essential to its determination, to be relevant and admissible in the interests of justice.”

Law, except in certain circumstances. CPL 60.42 provides five statutory exceptions. “The first four allow evidence of a complainant’s prior sexual conduct in narrowly defined factual circumstances,” and the fifth, the subdivision at issue here, “vest[s] discretion in the trial court” (*People v Williams*, 81 NY2d 303, 311 [1993]). Pursuant to subdivision (5), evidence of a victim’s prior sexual conduct may be introduced upon a determination by the court that such evidence is “relevant and admissible in the *interests of justice*” (CPL 60.42 [5] [emphasis added]).

The Legislature specifically intended the Rape Shield Law to limit the inquiry into “a victim’s past sex life in prosecutions for sex offenses” because it found that such evidence, in forcible rape cases, rarely “elicits testimony relevant to the issues of the victim’s consent on credibility, but serves only to harass the alleged victim and confuse the jurors” (Mem of Assemblyman Stanley Fink, 1975 NY Legis Ann, at 47-48).

We recognize that, “in the interests of justice,” evidence of a complainant’s sexual conduct may be admissible if it is relevant to a defense (*see generally People v Jovanovic*, 263 AD2d 182, 198 [1st Dept 1999] [application of section 60.42 (5) to redacted e-mails—containing evidence to which the Rape Shield Law would have applied—because they were “highly relevant to establishing the defense”]). In contrast, such evidence must be precluded if it does not tend to establish a defense to the crime because it will only harass the victim and possibly confuse the jurors.

In this case, County Court appropriately accepted the defendant’s argument that evidence of the complainant’s sexual conduct that evening would be relevant to his defense if the People introduced evidence of her bruising caused by sexual contact and attributed such evidence to him. Such evidence would have been relevant to both charges of rape, but the People decided not to offer evidence of bruising. Defendant argues that R.S.’s statement to the police—that K.D. told her that she was crying because she had sex with Steven A.—should have been admitted pursuant to CPL 60.42 (5) because it raised an alternative basis for admissibility since the People presented proof that the victim was crying when she emerged from the bedroom with defendant to buttress their proof of forcible compulsion. Since it would have been probative, if at all, of only the forcible rape charge and defendant was acquitted of that count, we need not resolve whether the trial court abused its discretion in declining to admit that evidence.

Defendant also assigns error to the trial court's rulings regarding whether to exclude two jurors for cause. However, no abuse of discretion is apparent (*see* CPL 270.15 [4]; CPL 270.20).

Pursuant to CPL 270.15 (4), a court may allow a challenge of a sworn juror for cause, prior to the time a witness is sworn at the trial, where the challenge is made upon a ground that was not known to the challenging party before the trial juror was sworn (*see also* *People v Harris*, 57 NY2d 335, 349 [1982]). Additionally, CPL 270.20 (1) specifically enumerates the grounds upon which a prospective juror may be challenged for cause. CPL 270.20 (1) (b) focuses on the prospective juror's state of mind to render an impartial verdict, and subdivision (1) (c) addresses any relationship between the juror and a person involved in the criminal action which could affect the juror's impartiality.

[2] Although County Court failed to make a probing inquiry regarding the sworn juror's ability to render an impartial verdict, its discharge was not error as such action is authorized by CPL 270.15 (4). Furthermore, this Court has noted that a "trial court should lean toward disqualifying a prospective juror of dubious impartiality, rather than testing the bounds of discretion by permitting such a juror to serve" (*People v Branch*, 46 NY2d 645, 651 [1979]; *see also* *People v Blyden*, 55 NY2d 73, 78 [1982] ["The costs to society and the criminal justice system of discharging the juror are comparatively slight, while the costs in fairness to the defendant and the general perception of fairness of not discharging such a juror are great"]).

[3] Likewise, there was no error in refusing to disqualify a prospective juror due to a former professional relationship (*see* *People v Provenzano*, 50 NY2d 420 [1980] [trial court did not abuse its discretion in permitting an acquaintance and supporter of the District Attorney to serve as a juror]). Because the relationship between the prosecutor and prospective juror was distant in time and limited in nature, County Court did not abuse its discretion by permitting this juror to serve.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed.

[949 NE2d 484, 925 NYS2d 393]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERNEST BRANNON, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE FERNANDEZ, Appellant.

Argued March 23, 2011; decided May 5, 2011

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 17, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Arlene R. Silverman, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the third degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 24, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (A. Kirke Bartley, J., at suppression hearing; Gregory Carro, J., at plea and sentence), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the third degree.

People v Brannon, 60 AD3d 498, reversed.

People v Fernandez, 60 AD3d 549, affirmed.

HEADNOTES

Crimes — Unlawful Search and Seizure — Stop and Frisk — Level of Knowledge Required to Form Reasonable Suspicion

1. In a prosecution arising from defendant's possession of a gravity knife (see Penal Law § 265.01 [1]), the arresting officer's observations of the hinged top of a closed knife and outline of a knife in defendant's pocket did not, as a matter of law, provide reasonable suspicion of criminal activity justifying a stop and frisk where the arresting officer was unable to testify that he suspected or believed the observed object to be a gravity knife. Reasonable suspicion does not require absolute certainty that the knife carried is a gravity knife, as opposed to a similar, but legal object, such as a pocketknife. However, the detaining officer must have reason to believe, based on his or her experience and training and/or observable, identifiable characteristics, that the object observed is a gravity knife. The detaining officer must possess specific and articulable facts from which he or she inferred that the defendant was

carrying a gravity knife. Here, the arresting officer testified that the knife in defendant's pocket looked like a pocketknife. Consequently the defendant's motion to suppress was granted.

Crimes — Unlawful Search and Seizure — Stop and Frisk — Level of Knowledge Required to Form Reasonable Suspicion

2. In a prosecution arising from defendant's possession of a gravity knife (*see* Penal Law § 265.01 [1]), there was record support for the Appellate Division's conclusion that there was reasonable suspicion that defendant possessed a gravity knife justifying a stop and frisk where the detaining officer observed a knife clipped to defendant's front pants pocket with the "head" of the knife protruding in plain view and the officer testified that he believed it was a gravity knife because, in his experience, this type of knife was typically carried with a clip on the outside of the pocket, and with the "head" protruding. Reasonable suspicion does not require absolute certainty that the knife carried is a gravity knife, as opposed to a similar, but legal object, such as a pocketknife. However, the detaining officer must have reason to believe, based on his or her experience and training and/or observable, identifiable characteristics, that the object observed is a gravity knife. The detaining officer must possess specific and articulable facts from which he or she inferred that the defendant was carrying a gravity knife. Here, the officer had made approximately 300 arrests involving gravity knives and testified that gravity knives are often carried in such a way as to make them readily accessible.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Searches and Seizures §§ 92, 282.

CARMODY-WAIT 2d, Search and Seizure §§ 173:258, 173:259, 173:265, 173:266; CARMODY-WAIT 2d, Arrest or Other Detention; Post-Arrest Procedure §§ 172:80, 172:89.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 3.8.

NY JUR 2d, Criminal Law: Procedure §§ 69, 461–464, 467.

ANNOTATION REFERENCE

See ALR Index under Knives and Knifings; Search and Seizure; Stop and Frisk.

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Query: reasonable /2 suspicion /s frisk & gravity /2 knife

POINTS OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (*Karen M. Kalikow* and *Steven Banks* of counsel), for appellant in the first above-entitled action. The police lacked reasonable suspicion to stop and frisk appellant and probable cause to search his pocket where the officer merely observed the hinge and then observed and felt the outline of a closed pocketknife in

appellant's pocket. (*People v Dodt*, 61 NY2d 408; *People v Berrios*, 28 NY2d 361; *Terry v Ohio*, 392 US 1; *People v De Bour*, 40 NY2d 210; *People v Hollman*, 79 NY2d 181; *People v Howard*, 50 NY2d 583; *Florida v Bostick*, 501 US 429; *California v Hodari D.*, 499 US 621; *United States v Simmons*, 560 F3d 98; *People v Cantor*, 36 NY2d 106.)

Cyrus R. Vance, Jr., District Attorney, New York City (David P. Stromes and Caitlin J. Halligan of counsel), for respondent in the first above-entitled action. Defendant's claim is unreviewable, and in any event, the recovery of defendant's gravity knife was lawful. (*People v Ramirez-Portoreal*, 88 NY2d 99; *People v Chipp*, 75 NY2d 327; *People v Bora*, 83 NY2d 531; *People v Chestnut*, 51 NY2d 14; *People v Harrison*, 57 NY2d 470; *People v McRay*, 51 NY2d 594; *People v Francois*, 14 NY3d 732; *People v Greenidge*, 91 NY2d 967; *People v McIntosh*, 96 NY2d 521; *Pennsylvania v Mimms*, 434 US 106.)

Center for Appellate Litigation, New York City (Barbara Zolot and Robert S. Dean of counsel), for appellant in the second above-entitled action. I. The police officer's observations of the head of a knife protruding from a clip attached to appellant's pants pocket fell below the minimum standard necessary to establish reasonable suspicion that appellant possessed an illegal gravity knife because these observations were equally consistent with the knife being legal to possess; nor, even if the officer reasonably suspected the commission of a crime, was the officer justified in immediately seizing the knife, as he lacked probable cause for the search he conducted or reason to believe that appellant posed a danger to his safety. (*People v De Bour*, 40 NY2d 210; *Sibron v New York*, 392 US 40; *People v Cantor*, 36 NY2d 106; *People v Martinez*, 80 NY2d 444; *People v Carrasquillo*, 54 NY2d 248; *People v Mendez*, 68 AD3d 662; *People v Dreyden*, 15 NY3d 100; *United States v Irizarry*, 509 F Supp 2d 198; *People v Best*, 57 AD3d 279; *People v Sosa*, 20 Misc 3d 1140[A], 2008 NY Slip Op 51805[U].) II. Penal Law § 265.01 (1) is unconstitutionally vague both on its face and as applied to appellant because it fails to give a citizen adequate notice of the nature of the proscribed conduct and permits arbitrary and discriminatory enforcement. (*People v Shack*, 86 NY2d 529; *United States v Irizarry*, 509 F Supp 2d 198; *People v Stuart*, 100 NY2d 412; *People v Bright*, 71 NY2d 376; *Kolender v Lawson*, 461 US 352; *Grayned v City of Rockford*, 408 US 104; *People v Nelson*, 69 NY2d 302; *United States v Harriss*, 347 US 612; *Smith v Goguen*, 415 US 566; *People v Grogan*, 260 NY 138.)

Cyrus R. Vance, Jr., District Attorney, New York City (David P. Stromes and Caitlin J. Halligan of counsel), for respondent in the second above-entitled action. I. Defendant's claim is unreviewable, and in any event, the recovery of defendant's gravity knife was lawful. (*People v Bora*, 83 NY2d 531; *People v Chestnut*, 51 NY2d 14; *People v Harrison*, 57 NY2d 470; *People v McRay*, 51 NY2d 594; *People v Francois*, 14 NY3d 732; *People v McIntosh*, 96 NY2d 521; *People v Greenidge*, 91 NY2d 967; *People v Campbell*, 87 NY2d 855; *People v Bianchi*, 85 NY2d 1022; *People v De Bour*, 40 NY2d 210.) II. Penal Law § 265.01 (1), which criminalizes the possession of a gravity knife, is fully constitutional. (*United States v Irizarry*, 509 F Supp 2d 198; *People v Foley*, 94 NY2d 668; *People v Shack*, 86 NY2d 529; *People v Bright*, 71 NY2d 376; *United States v Batchelder*, 442 US 114; *Lanzetta v New Jersey*, 306 US 451; *United States v Harriss*, 347 US 612; *People v Munoz*, 9 NY2d 51; *United States v Mazurie*, 419 US 544; *People v Stuart*, 100 NY2d 412.)

OPINION OF THE COURT

FIGOTT, J.

In these appeals, we are asked to decide the level of knowledge a police officer must possess before, consistent with the principles articulated in *People v De Bour* (40 NY2d 210 [1976]), he or she has reasonable suspicion to believe an individual possesses a gravity knife, as opposed to other similar knives such as a pocketknife, and therefore is authorized to conduct a stop and frisk. The Penal Law identifies gravity knives* as per se weapons and criminalizes the mere possession of one (see Penal Law § 265.01 [1]). We hold that the detaining officer must have reason to believe that the object observed is indeed a gravity knife, based on his or her experience and training and/or observable, identifiable characteristics of the knife. An individual may not be detained merely because he or she is seen in possession of an object that appears to be a similar, but legal object, such as a pocketknife.

People v Ernest Brannon

On September 8, 2006, defendant was walking with a friend along West 122nd Street in Manhattan at approximately 6:00 P.M.

* A gravity knife is defined as a knife with a blade that (1) "is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force" and that (2) "when released, is locked in place by means of a button, spring, lever or other device" (Penal Law § 265.00 [5]; see *People v Dreyden*, 15 NY3d 100, 104 [2010]).

Officer Kevin Blake and another officer, both in plain clothes, were on the same side of the street and dealing with children who were trying to manipulate the lock on a school yard gate. Blake testified that he observed the men and, in particular, noticed that defendant's behavior became "somewhat suspicious," evincing a desire to avoid walking near the officers. As defendant passed, Blake observed the hinged top of a knife in defendant's back pocket. He asked the men to stop twice before defendant complied. When defendant approached Blake, he saw the outline of a knife through the material of defendant's pocket. Upon questioning, defendant admitted that he had a knife in his pocket. Blake then frisked defendant and recovered the knife. Blake testified that upon inspection, he found that it was a gravity knife and arrested defendant.

Before trial, defendant moved to suppress the knife and a statement he made to the officer at the time of his arrest. At the suppression hearing, Blake testified that he had been an officer for 4½ years and had made approximately 10 arrests of his own for possession of a gravity knife and participated in two dozen other arrests for the same crime. He had observed in defendant's pocket what he believed to be a knife. On further questioning, he described it as a "typical pocket knife."

Supreme Court denied the motion to suppress, finding that, under the circumstances, the stop and search was proper. Defendant pleaded guilty and then appealed his conviction, arguing that the gravity knife and his statement should have been suppressed as the fruits of an illegal search and seizure. The Appellate Division affirmed, holding that "[t]he combination of defendant's suspiciously evasive conduct, the officer's observation that defendant was carrying what was at the least a large and possibly dangerous knife, and defendant's acknowledgment, in response to a proper common-law inquiry, that he had a knife, permitted the officer to conduct a self-protective frisk" (60 AD3d 498, 499 [1st Dept 2009]).

People v Jose Fernandez

On February 24, 2007, while walking on Ludlow Street in Manhattan at approximately 12:30 A.M., defendant was stopped by Officer Daniel Hoffman, who observed defendant walking on the sidewalk with a knife clipped to his front right pants pocket, the top or "head" of the knife protruding in plain view. Before any questioning, Hoffman approached defendant, retrieved the knife from defendant's front pocket and asked defendant if he

had any other weapons. Defendant stated that he had another knife in his left jacket pocket. When questioned why he was carrying the knife, defendant answered it was for his protection. After retrieving both knives, Hoffman opened them, confirming they were gravity knives.

Defendant was charged with two counts of criminal possession of a weapon in the third degree. He thereafter moved to suppress the two knives recovered from him and statements he made to the police officer.

A suppression hearing was held at which Hoffman testified that he had been a police officer for four years and had made approximately 300 arrests involving gravity knives. In his career, he had examined around 200 gravity knives and described the difference between a gravity knife and other types of knives. He explained that gravity knives are often carried in such a way as to make them readily accessible. Hoffman testified that when he first saw the knife he believed it was a gravity knife because, based on his experience, this type of knife was typically carried with a clip on the outside of the pocket, and with the “head” of the knife “usually sticking up outside of the pocket.”

Supreme Court denied the motion to suppress, finding that the officer had probable cause to recover the knife that he observed clipped to defendant’s pocket. The court noted that the officer had concluded that the weapon was a gravity knife based on his experience, coupled with his observation of the clip and the “head” of the knife in plain view. The court also found that the officer lawfully reached into defendant’s pocket to recover the second knife, once defendant stated that he had a second knife in his jacket pocket. The Appellate Division affirmed (60 AD3d 549 [1st Dept 2009]).

A Judge of this Court granted both defendants leave to appeal (15 NY3d 747 [2010], 15 NY3d 749 [2010]). We now reverse in *Brannon* and affirm in *Fernandez*.

Reasonable Suspicion Standard

These cases are governed by our holding in *People v De Bour* (40 NY2d 210 [1976]), requiring that before a police officer may stop and frisk a person in a public place, he must have “reasonable suspicion” that such person is committing, has committed or is about to commit a crime (*id.* at 223). We have defined reasonable suspicion as “the quantum of knowledge to induce an

ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand” (*People v Cantor*, 36 NY2d 106, 112-113 [1975]). It may not rest on equivocal or “innocuous behavior” that is susceptible of an innocent as well as a culpable interpretation (*People v Carrasquillo*, 54 NY2d 248, 252 [1981]). A stop based on reasonable suspicion will be upheld so long as the intruding officer can point to “specific and articulable facts which, along with any logical deductions, reasonably prompted th[e] intrusion” (*Cantor*, 36 NY2d at 113).

Here, in each appeal, we are dealing with a statute that criminalizes the mere possession, and not use, of a gravity knife. At the same time, the possession of many similar objects, including other knives, is not illegal. Defendants argue that the police officers in each case did not have reasonable suspicion to believe that the defendant was carrying a gravity knife. Typically, one cannot tell if a knife is a gravity knife until the knife is opened. Reasonable suspicion, however, does not require absolute certainty that the knife the individual is carrying is a gravity knife. Rather, the issue is whether, under the circumstances, the officer possessed specific and articulable facts from which he or she inferred that the defendant was carrying a gravity knife.

[1] In *Brannon*, although Blake testified that he was able to see a hinged top of a closed knife and observed the outline of a pocketknife in defendant’s pocket, he was unable to testify that he suspected or believed it to be a gravity knife. To the contrary, he testified that it looked like a pocketknife. The officer’s testimony therefore does not, as a matter of law, support the conclusion that he had a reasonable suspicion that the knife in defendant’s pocket was unlawful.

[2] On the other hand, in *Fernandez*, there is record support for the Appellate Division’s conclusion that reasonable suspicion existed. The officer’s attention was drawn to defendant, who was only 10 to 15 feet away, because the officer saw, in plain view, the “head” of a knife that was sticking out of and clipped to defendant’s pants pocket. He testified, based on his experience that gravity knives are commonly carried in a person’s pocket, attached with a clip, with the “head” protruding.

We have reviewed defendants’ remaining contentions and find them without merit.

Accordingly, in *People v Brannon*, the order of the Appellate Division should be reversed, defendant’s motion to suppress

granted and the indictment dismissed. In *People v Fernandez*, the order of the Appellate Division should be affirmed.

JONES, J. (concurring in *People v Brannon* and dissenting in *People v Fernandez*). Because a gravity knife can be indistinguishable from a lawful knife in appearance, and its illegality can only be ascertained by its operation, I would hold that a stop and frisk based on the mere observance of a portion of a knife and the experience of the arresting police officer is not supported by sufficient reasonable suspicion. Therefore, I concur with the majority's result in *People v Brannon*, but respectfully dissent in *People v Fernandez*, for the reasons below.

Penal Law § 265.00 (5) defines a gravity knife as: “any knife which has a blade which is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force which, when released, is locked in place by means of a button, spring, lever or other device.”

By its very definition, a gravity knife cannot be identified until it is operated because there is no inherently distinguishing mark or physical trait that would allow for the plain identification of a gravity knife. The only manner in which the possession of a gravity knife can be confirmed is when the knife is activated through “the force of gravity” or “centrifugal force.” Therefore, until a gravity knife is operated, it can be easily mistaken for a pocketknife or folding knife (neither of which is unlawful to carry).

In *Brannon*, on September 8, 2006, while dispersing some young children from a school yard, Officer Blake testified that his suspicions were alerted when defendant “furtively mov[ed]” towards the curb to cross the street, an action he interpreted as an attempt to avoid the police (even though defendant never crossed the street). When he further observed defendant, the officer stated that he noticed a “[h]alf to a quarter of an inch” of “the back portion of the knife where the joint is. Where the blade extends from the handle,” and concluded that defendant was carrying a “typical pocket knife.” Based on these observations, Officer Blake forcibly stopped defendant when, without inquiry, he ordered him to place his hands against a fence. The pocketknife was tested and found to be a gravity knife.

In the accompanying case of *Fernandez*, while on patrol in a police vehicle on February 24, 2007, at 12:26 A.M., from 10 to 15 feet away, Officer Hoffman observed defendant with a knife clipped in his front right pants pocket. Specifically, Officer

Hoffman testified that he had seen “the clip, observed the top head of the knife and shiny metal,” leading him to believe that defendant was carrying a gravity knife. The weapon was confirmed to be a gravity knife when the officer recovered it and “flick[ed] the knife open.”

The majority distinguishes these two cases on the fact that the officer in *Brannon* testified that he observed a pocketknife while the officer in *Fernandez* testified to a belief that he had seen a gravity knife, and had training and experience based on 600 to 700 arrests, with approximately half of those arrests involving gravity knives. However, this minimal distinction is of no moment where both stops were premised on insufficient reasonable suspicion due to the lack of inherent criminality in the mere physical appearance of a gravity knife.

In *People v De Bour* (40 NY2d 210 [1976]), we outlined various levels of police interaction with the public and the accompanying standards required to justify such intrusion. To perform a lawful, level-three stop and frisk, a police officer must have “a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor” (*id.* at 223). While I acknowledge that reasonable suspicion does not require absolute certainty of a crime, it is equally true that “innocuous behavior” or conduct capable of innocent interpretation cannot serve as a basis for reasonable suspicion (*see id.* at 216). Thus, since a gravity knife can bear an unremarkable superficial similarity to other lawful knives and its illegality cannot be confirmed until its operation, the mere possession of a gravity knife is conduct susceptible to innocent interpretation.

The absence of an identifying physical trait makes it equally likely that an individual possesses a lawful knife as he or she may possess an unlawful one, and there is nothing within the respective records of these cases to indicate that the physical characteristics the officers observed were unique to, and shared by, gravity knives. That the officers viewed a clip, a metal portion, and a handle joint of a knife protruding from defendants’ pockets is not so uncommon and innately criminal as to differentiate it from the lawful possession of a knife in one’s own pants pocket. In fact, in *Fernandez*, the only testimony demonstrating any distinction between an illegal gravity knife and a lawful one is the difference in operation: “[A] [f]olding knife does not lock in place, a gravity knife does.” The reasonable

inference to be drawn from this testimony is that the criminality of a gravity knife can only be verified upon inspection. And without a more specific basis, the observations here, based solely on police training and experience, border on “hunches” which can never constitute reasonable suspicion (*Terry v Ohio*, 392 US 1, 22 [1968]).

Additionally, a forcible stop is only justified so long as there are “specific and articulable facts which, alone with any logical deductions, reasonably prompted th[e] intrusion” (*People v Cantor*, 36 NY2d 106, 113 [1975]). In these cases, there were no specific facts supporting the beliefs that defendants were carrying gravity knives, and justifying the forcible stops. In *Brannon*, the officer simply had no basis to conclude that defendant was carrying a gravity knife. The allegedly “furtive” movement of defendant and the mere observation of a knife believed to be a “typical pocket knife” did not supply the reasonable suspicion needed to justify the forcible stop (see *People v Mendez*, 68 AD3d 662, 662-663 [1st Dept 2009]). Similarly, in *Fernandez*, the officer’s testimony was conclusory as there were no specific facts to support his belief that defendant possessed a gravity knife. The mere fact that a knife may have a clip or has a metal portion cannot be considered an identifying trait of gravity knives. Rather, too much credence is given to the training and experience of the officer without evidence of specific, articulable facts indicating the presence of a gravity knife. Quite simply, the only observation the officer was justified in making was that defendant was carrying a knife; there was no other indication of criminality. Without further evidence that the knife in question possessed intrinsic characteristics that would signal its illegality as a gravity knife, there was no basis to escalate the observation to a forcible stop of defendant.

The likely result of the majority’s holding is that it will establish a catechism for the admission of gravity knife evidence, permitting the admission of evidence with a minimal basis for reasonable suspicion—the conclusory observations of a police officer. The finding of reasonable suspicion based solely on testimony regarding the training and experience of the officer and the belief that a gravity knife was present is highlighted in recent cases. In *Mendez*, the Appellate Division held that evidence should be suppressed because the officer’s testimony indicated a belief that the defendant was carrying a “folding knife” (68 AD3d at 662-663), whereas in *People v Neal* (79 AD3d 523 [1st Dept 2010]) and *People v Herrera* (76 AD3d 891 [1st

Dept 2010]), the court concluded there was reasonable suspicion because training and experience led the respective officers to believe it was “more likely than not it was a gravity knife” (*Neal*, 79 AD3d at 523).

The weight given to an officer’s training and experience is evident here, in *Brannon* and *Fernandez*, as both officers similarly observed minute, innocuous portions of a knife, but concluded differently on the criminal nature of the weapons. In my view, had the officer in *Brannon* merely testified that he believed a gravity knife, and not a pocketknife, was present, then the outcome in that case would have been different. Instead of requiring the police and the People to articulate a specific factual basis for reasonable suspicion justifying these stops, in these types of cases, prosecutors will now be encouraged to present police officers who can describe their training and experience with gravity knives, and testify that a gravity knife, and not a “typical pocket knife,” was observed. Given the highly intrusive nature of these stops, the acceptance of these conclusory statements at *Mapp/Dunaway* hearings as a minimal basis for the admission of evidence poses a significant danger (*People v Howard*, 147 AD2d 177, 181-182 [1st Dept 1989] [court held that conclusory statements by officers at hearings were “rote recital(s) of the words deemed necessary to retroactively validate a patently improper search”]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and SMITH concur with Judge PIGOTT; Judge JONES concurs in result in a separate opinion.

In *People v Brannon*: Order reversed, etc.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and SMITH concur with Judge PIGOTT; Judge JONES dissents in a separate opinion.

In *People v Fernandez*: Order affirmed.

[949 NE2d 491, 925 NYS2d 400]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROY
MARTIN, Also Known as REALITY MARTIN, Appellant.

Argued March 24, 2011; decided May 10, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 16, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Thomas J. Carroll, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree.

People v Martin, 71 AD3d 917, reversed.

HEADNOTES

Crimes — Right to Public Trial — Removal of Defendant's Father during Voir Dire

1. In a criminal prosecution, defendant's right to a public trial was violated when the trial judge sua sponte closed the courtroom, specifically ejecting defendant's father during voir dire without considering any alternative accommodations. The right to a public trial extends to the voir dire, and while trial courts have discretion to close the courtroom, that discretion must be exercised only when unusual circumstances necessitate it. Although the trial judge here was concerned that there would not be enough seats in the courtroom for potential jurors and that defendant's father might influence them, neither of those concerns, without more, rose to the level of an overriding interest that was likely to be prejudiced. Absent a specific threat that a spectator may influence a prospective juror, it was improper to close the courtroom for that reason. The need for judicial efficiency and the conservation of judicial resources does not trump the constitutional right to a public trial, and while the court has the inherent discretionary power to monitor admittance to the courtroom to prevent overcrowding, that power does not extend to excluding specific members of the public. Accordingly, the trial court's failure to consider any alternate accommodations violated defendant's right to an open trial, regardless of the reasons for closure.

Crimes — Right to Public Trial — Harmless Error Analysis

2. A violation of the right to an open trial is not subject to harmless error analysis and a per se rule of reversal irrespective of prejudice is the only realistic means to implement that important constitutional guarantee. Here, defendant's right to a public trial was violated when the trial judge sua sponte closed the courtroom, specifically ejecting defendant's father during voir dire without considering any alternative accommodations. It could not be said that the closing of the courtroom was so inconsequential that it was trivial. There was extensive questioning of prospective jurors in open court about such matters as their familiarity with the neighborhood of the crime and their experiences with police officers. The ability of the public to observe questioning of

that sort was important, both so that the judge, the lawyers and the prospective jurors would be conscious that they were observed, and so that the public could evaluate the fairness of the jury selection process. Accordingly, defendant's conviction was reversed and a new trial ordered.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 654, 671, 686; AM JUR 2d, Criminal Law §§ 967, 969, 971, 972.
CARMODY-WAIT 2d, Conduct of Trial, in General §§ 190:67, 190:68, 190:76, 190:81–190:84; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:119, 207:121.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 22.3, 24.1, 27.6.
NY JUR 2d, Criminal Law: Procedure §§ 2468, 2471, 2477, 2538, 2541, 3574.

ANNOTATION REFERENCE

Exclusion of public and media from voir dire examination of prospective jurors in state criminal case. 16 ALR5th 152.

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POINTS OF COUNSEL

Appellate Advocates, New York City (*Katherine A. Levine* and *Lynn W.L. Fahey* of counsel), for appellant. I. The trial court denied appellant his Sixth Amendment right to a public trial when it ejected appellant's father, the sole spectator, from the courtroom during jury selection. (*People v Hinton*, 31 NY2d 71; *People v Clemons*, 78 NY2d 48; *People v Jelke*, 308 NY 56; *People v Nazario*, 4 NY3d 70; *People v Jones*, 47 NY2d 409; *Waller v Georgia*, 467 US 39; *People v Jones*, 96 NY2d 213; *People v Martinez*, 82 NY2d 436; *People v Kin Kan*, 78 NY2d 54; *People v Ramos*, 90 NY2d 490.) II. Appellant was improperly sentenced as a second felony offender because the period during which he was incarcerated before sentencing on his prior conviction should not have been used to toll the 10-year limitation period of Penal Law § 70.06. (*People v McEachern*, 275 AD2d 330; *People v Holman*, 53 AD3d 775; *Matter of Yolanda D.*, 88 NY2d 790; *Friedman v Connecticut Gen. Life Ins. Co.*, 9 NY3d 105; *People v Santi*, 3 NY3d 234; *People v Dozier*, 78 NY2d 242; *Matter of Caraballo v Community School Bd. Dist. 3*, 49 NY2d 488; *People v Faust*, 235 AD2d 430; *People v Tatta*, 196 AD2d 328.)

Charles J. Hynes, District Attorney, Brooklyn (Sholom J. Twersky, Leonard Joblove and Victor Barall of counsel), for respondent. I. Defendant failed to preserve his specific claims on appeal regarding the alleged abridgement of his right to a public trial. Moreover, defendant's public trial claim should be rejected because defendant failed to create an adequate record for appellate review. Finally, the trial court's temporary exclusion of defendant's father from a limited portion of the voir dire was of a de minimis nature, and thus does not warrant reversal of defendant's conviction. (*Waller v Georgia*, 467 US 39; *People v Tevaha*, 84 NY2d 879; *People v Martinez*, 82 NY2d 436; *People v Cameron*, 254 AD2d 367; *People v Suarez*, 245 AD2d 320; *People v Richards*, 235 AD2d 557; *People v Pollock*, 50 NY2d 547; *People v Armond*, 251 AD2d 80; *People v Latta*, 222 AD2d 303; *People v Stovens*, 237 AD2d 154.) II. Defendant was properly adjudicated a second felony offender. (*People v Cagle*, 7 NY3d 647; *People v Tatta*, 196 AD2d 328; *People v Dozier*, 78 NY2d 242; *People v Orr*, 57 AD2d 578; *People v McEachern*, 275 AD2d 330; *People v Holman*, 53 AD3d 775; *People v Cortez*, 231 AD2d 450; *Doctors Council v New York City Employees' Retirement Sys.*, 71 NY2d 669; *People v Tychanski*, 78 NY2d 909; *People v Kisina*, 14 NY3d 153.)

OPINION OF THE COURT

CIPARICK, J.

The issue presented for our determination is whether defendant's right to a public trial was violated when the trial judge sua sponte closed the courtroom, specifically ejecting defendant's father during voir dire without considering any alternative accommodations. We hold that such an action violated defendant's right to a public trial and warrants reversal.

Defendant was arrested on November 19, 2006. He was subsequently charged with criminal possession of a controlled substance in the third degree (Penal Law § 220.16 [1]), criminal possession of a controlled substance in the fifth degree (Penal Law § 220.06 [5]), two counts of criminal possession of a controlled substance in the seventh degree (Penal Law § 220.03), criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [2]), criminal possession of marijuana in the fifth degree (Penal Law § 221.10) and two counts of unlawful possession of marijuana (Penal Law § 221.05).

On March 4, 2008, after a *Sandoval* hearing and just prior to the commencement of voir dire, the court engaged in the following colloquy:

“THE COURT: . . . I turn to the defendant’s father. Would you please rise for a moment. State your name.

“MR. MARTIN SR.: Roy Martin senior.

“THE COURT: Sir, we’re going to be bringing in a panel of jurors in just a few minutes and we will need every seat in the courtroom. Do you understand that?

“MR. MARTIN SR.: Yes, your honor.

“THE COURT: I don’t want you physically near any of these people. Consequently, I am going to ask you to step out and go to the far end of the hallway. I want no form of communication between you and any of these jurors. No verbal communication. I want no non-verbal communication. Do you understand?

“After that we will excuse a number of jurors as we proceed. Consequently, there will be room in the courtroom. The Sergeant will ask one of his officers to tell you when there is room here for you to step in. Do you understand that?

“MR. MARTIN SR.: Yes, Your honor.

“THE COURT: Sergeant, I want nobody sitting in the row in front of him or in the same row. Do you understand that?

“MR. KLIMAN [defendant’s counsel]: For the record, I object.

“THE COURT: Sir, when you step out I want you to have no form of communication with these people.

“MR. KLIMAN: I object to my client’s father not being allowed to observe every aspect of the trial. This is a public trial. He has a right to have his father’s support and to be in the audience for every aspect. . . .

“THE COURT: The Court sees no reason to change its rule. The Court is obligated to observe the integrity of the proceeding and that minor action is acceptable to do this.”

The record does not reflect that the court considered alternatives to closure, such as reserving a row of seating for the public or allowing defendant’s father to be present elsewhere in the

courtroom until a seat became available. During the morning of voir dire, which lasted approximately 2½ hours, 10 jurors were excused. At no time was defendant's father informed he was free to reenter the courtroom. After a lunch break, the court reconvened and defendant's attorney notified the court that defendant's father had not been let in during the morning and had left the building after the court broke for lunch. The trial court informed defendant's attorney that "[w]hen there is room in the courtroom he will be allowed in and we are close approaching that . . . point in time." Voir dire continued that afternoon and concluded at the end of the following day. Defendant's father attended the trial proceedings and defendant was convicted of criminal possession of a controlled substance in the third degree (Penal Law § 220.16 [1]). The Appellate Division affirmed (71 AD3d 917 [2010]). A Judge of this Court granted leave to appeal (15 NY3d 753 [2010]) and we now reverse.

"In all criminal prosecutions, the accused shall enjoy the right to a . . . public trial" (US Const 6th, 14th Amends; *see also* Civil Rights Law § 12; Judiciary Law § 4). This right "has long been regarded as a fundamental privilege of the defendant in a criminal prosecution" (*People v Jelke*, 308 NY 56, 61 [1954]) and extends to the voir dire portion of a trial (*see Presley v Georgia*, 558 US —, —, 130 S Ct 721, 723-724 [2010]). While trial courts have discretion to close the courtroom to the public, that discretion must be exercised only " " "when unusual circumstances necessitate it" " " (*People v Jones*, 96 NY2d 213, 216 [2001], quoting *People v Hinton*, 31 NY2d 71, 76 [1972]). A party "seeking to close [a] hearing must advance an overriding interest that is likely to be prejudiced, the closure must be no broader than necessary to protect that interest, the trial court must consider reasonable alternatives to closing the proceeding, and . . . must make findings adequate to support the closure" (*Waller v Georgia*, 467 US 39, 48 [1984]).

[1] In closing the courtroom, the court indicated two possible reasons for the closure: first, that every seat would be occupied by potential jurors and, second, a concern that defendant's father might influence them. Although these were relevant considerations, neither of these concerns, without more, rises to the level of "an overriding interest that is likely to be prejudiced."

Absent a specific threat that a spectator may influence a prospective juror, it is improper to close the courtroom for that reason.

“The generic risk of jurors overhearing prejudicial remarks, unsubstantiated by any specific threat or incident, is inherent whenever members of the public are present during the selection of jurors. If broad concerns of this sort were sufficient to override a defendant’s constitutional right to a public trial, a court could exclude the public from jury selection almost as a matter of course” (*Presley*, 558 US at —, 130 S Ct at 725).

It is the court’s duty to make a finding on the record that threats of “improper communications with jurors or safety concerns are concrete enough to warrant closing voir dire” (558 US at —, 130 S Ct at 725). The court here made no such finding.

Neither does the need for judicial efficiency and the conservation of judicial resources trump this constitutional right. While the trial court does have an inherent power, at its discretion, to “monitor admittance to the courtroom, as the circumstances require, in order to prevent overcrowding [or] to accommodate limited seating capacity,” such power does not extend to excluding specific members of the public from the courtroom (*People v Colon*, 71 NY2d 410, 416 [1988]).

“Trial courts are obligated to take every reasonable measure to accommodate public attendance at criminal trials” (*Presley*, 558 US at —, 130 S Ct at 725). Like the court in *Presley*, the court in this instance did not consider any alternatives to closing the courtroom in order to prevent overcrowding or potential jury contamination. There is nothing in the record that shows that the court could not have accommodated defendant’s father. As noted in *Presley*, “some possibilities include reserving one or more rows for the public; dividing the jury venire panel to reduce courtroom congestion; or instructing prospective jurors not to engage or interact with audience members” (558 US at —, 130 S Ct at 725). The court is required to consider alternatives even if neither party suggests any (558 US at —, 130 S Ct at 724). Consequently, pursuant to *Presley*, the trial court’s failure to consider any alternate accommodations violated defendant’s right to an open trial, regardless of the reasons for closure. “[E]ven assuming, *arguendo*, that the trial court had an overriding interest in closing *voir dire*, it was still incumbent upon it to consider all reasonable alternatives to closure. It did not, and that is all this Court needs to decide” (558 US at —, 130 S Ct at 725).

[2] A violation of the right to an open trial is not subject to harmless error analysis and “a per se rule of reversal irrespective of prejudice is the only realistic means to implement this important constitutional guarantee” (*People v Jones*, 47 NY2d 409, 417 [1979]). However, the People have proffered the argument that the closing of the courtroom in this instance was so inconsequential that it is trivial, citing *Gibbons v Savage* (555 F3d 112 [2d Cir 2009]) and *People v Peterson* (81 NY2d 824 [1993]).

While the facts in *Gibbons*, which predates *Presley*, are remarkably similar to the instant case, the Second Circuit found that “nothing of significance happened” while petitioner’s mother was kept out of the courtroom (*Gibbons v Savage*, 555 F3d at 121). Here, there was extensive questioning of prospective jurors in open court about such matters as their familiarity with the neighborhood of the crime and their experiences with police officers. The ability of the public to observe questioning of this sort is important, both so that the judge, the lawyers and the prospective jurors will be conscious that they are observed, and so that the public can evaluate the fairness of the jury selection process. “The process of juror selection is itself a matter of importance, not simply to the adversaries but to the criminal justice system” (*Press-Enterprise Co. v Superior Court of Cal., Riverside Cty.*, 464 US 501, 505 [1984]).

Finally, the People’s reliance on *People v Peterson* (*supra*) is misplaced. *Peterson* stands for the proposition that a “brief and inadvertent continuation of a proper courtroom closing, which was not noticed by any of the participants, did not violate defendant’s right to a public trial” (81 NY2d at 825). However, it further held that “[a] denial of the public trial right requires an affirmative act by the trial court excluding persons from the courtroom, which in effect explicitly overcomes the presumption of openness” (*id.*). That is precisely what occurred in this case.

Therefore, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and JONES concur.

Order reversed, etc.

[949 NE2d 949, 926 NYS2d 1]

In the Matter of DYLAN C., a Person Alleged to be a Juvenile
Delinquent, Respondent. PRESENTMENT AGENCY, Appellant.

Argued January 17, 2011; decided April 5, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 13, 2009. The Appellate Division affirmed an order of the Family Court, Kings County (Lee H. Elkins, J.; op 20 Misc 3d 942), which had granted respondent's motion to dismiss the juvenile delinquency petition and dismissed the petition.

Matter of Dylan C., 69 AD3d 127, affirmed.

HEADNOTE

Crimes — Escape — Juvenile Delinquents — What Constitutes “Detention Facility” under Second Degree Felony Escape Statute

Family Court properly granted respondent juvenile's motion to dismiss the petition alleging that he committed acts which, if committed by an adult, would have constituted the crime of escape in the second degree, because the nonsecure juvenile detention facility from which he absconded pending adjudication on a prior juvenile delinquency petition did not constitute a “detention facility” within the proscription of Penal Law § 205.10 (1). While the facility from which respondent absconded fell within the literal description of “detention facility” in Penal Law § 205.00 (1) (a) and (b), Family Court Act article 3, which specifically governs the disposition and treatment of juveniles detained while awaiting adjudication on delinquency charges, distinguishes between secure detention facilities and nonsecure detention facilities. A nonsecure detention facility is “characterized by the absence of physically restrict[ive] construction, hardware and procedures” (Family Ct Act § 301.2 [5]), and has been specifically held, in the context of psychiatric commitment, not to constitute a detention facility within the meaning of Penal Law § 205.00 (1). Inasmuch as nonsecure psychiatric facilities and nonsecure juvenile detention facilities are both designed to detain but not imprison, and to rehabilitate rather than punish, and neither has as a principal end the protection of the public, it would be incongruous to apply Penal Law § 205.10 here in a disparate manner from how the statute has been applied in the context of an alleged escape from a nonsecure psychiatric facility.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Escape § 6; AM JUR 2d, Juvenile Courts and Delinquent and Dependent Children §§ 57, 63.

McKINNEY'S, Family Ct Act § 301.2 (5); Penal Law § 205.00 (1) (a), (b); § 205.10 (1).

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1406, 1411, 1415; NY JUR 2d, Domestic Relations § 1365.

ANNOTATION REFERENCE

Validity, construction, and application of juvenile escape statutes. 46 ALR5th 523.

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POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Deborah A. Brenner* and *Kristin M. Helmers* of counsel), for appellant. Because a nonsecure detention facility for juvenile delinquents is a “detention facility,” the petition sufficiently alleged acts constituting escape in the second degree. (*People v Ortega*, 69 NY2d 763; *Reddington v Staten Is. Univ. Hosp.*, 11 NY3d 80; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Walker*, 81 NY2d 661; *Samiento v World Yacht Inc.*, 10 NY3d 70; *Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98; *People v Finnegan*, 85 NY2d 53, 516 US 919; *People v Zimmerman*, 9 NY3d 421; *Matter of Yong-Myun Rho v Ambach*, 74 NY2d 318; *Finger Lakes Racing Assn. v New York State Racing & Wagering Bd.*, 45 NY2d 471.)

Legal Aid Society, New York City (*Marcia Egger*, *Steven A. Banks*, *Tamara A. Steckler* and *Lori Masco* of counsel), for respondent. A “nonsecure detention facility,” which under the Family Court Act and the Executive Law is defined as a setting devoid of restrictive construction, hardware, and procedures that provides temporary care and maintenance of juveniles awaiting Family Court Act article 3 and article 7 proceedings, is outside the category of a “detention facility” as defined in section 205.00 (1) of the Penal Law. (*People v Ortega*, 69 NY2d 763; *Matter of Jahron S.*, 79 NY2d 632; *Matter of Benjamin L.*, 92 NY2d 660; *People v Nancy C.*, 188 Misc 2d 383; *Matter of Ellery C.*, 32 NY2d 588; *Shimamoto v S&F Warehouses*, 99 NY2d 165; *Matter of Seaman*, 78 NY2d 451; *Anglin v Anglin*, 80 NY2d 553; *Matter of Plato’s Cave Corp. v State Liq. Auth.*, 68 NY2d 791; *Alifieris v American Airlines*, 63 NY2d 370.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

Respondent Dylan C. ran out the door of the nonsecure juvenile detention facility to which he had been remanded

pending his adjudication upon a juvenile delinquency petition. For absconding, he was charged in a second juvenile delinquency petition with the commission of acts which, if performed by an adult, would constitute the crime of escape in the second degree (Penal Law § 205.10 [1]), a class E felony. Family Court granted respondent's motion to dismiss the petition alleging escape upon the ground that elopement¹ from a nonsecure facility did not fall within the proscription of the felony escape statute relied upon by the presentment agency (20 Misc 3d 942 [Fam Ct, Kings County 2008]). The Appellate Division in a thorough and thoughtful opinion affirmed, essentially upon the same ground (69 AD3d 127 [2d Dept 2009]), and we, having agreed to review the Appellate Division's decision and order (14 NY3d 710 [2010]), now, also affirm.

The felony escape statute setting forth the offense presently alleged against respondent, Penal Law § 205.10 (1), provides in relevant part that “[a] person is guilty of escape in the second degree when: 1. [h]e escapes from a detention facility.” “Detention [f]acility” is, in turn, pertinently defined in Penal Law § 205.00 (1) as “any place used for the confinement, pursuant to an order of a court, of a person (a) charged with or convicted of an offense, or (b) charged with being or adjudicated a youthful offender, person in need of supervision or juvenile delinquent.”

It is clear from the just quoted language that respondent escaped from a “detention facility” within the literal description of Penal Law § 205.00 (1) (a) and (b), and, if that language were to be considered in isolation, it would dictate the conclusion that the conduct of which respondent is accused is proscribed by Penal Law § 205.10 (1). However, article 3 of the Family Court Act, the body of law specifically governing the disposition and treatment of juveniles, such as respondent, detained while awaiting adjudication of delinquency charges (*see* Family Ct Act § 301.1), does not equate detention with confinement, as does the Penal Law, but rather defines it for purposes of the article more broadly as “the temporary care and maintenance of children away from their own homes” (Family Ct Act § 301.2 [3]). And, in that connection, article 3 has, since

1. While the dissent finds the use of this term amusing in this decidedly nonromantic context, it is a term more widely used and specifically with reference to the act of leaving a facility without permission (*see e.g.* 10 NYCRR 405.8 [b] [5]; 405.22).

the enactment of the above-quoted Penal Law provisions, introduced a distinction, not articulated in the Penal Law, between secure detention facilities, i.e., “facilit[ies] characterized by physically restricti[ve] construction, hardware and procedures” (Family Ct Act § 301.2 [4]), and nonsecure detention facilities, i.e., “facilit[ies] characterized by the absence of physically restricti[ve] construction, hardware and procedures” (Family Ct Act § 301.2 [5]). The distinction is, we believe, crucial in judging the reach of the subject second-degree escape statute, not simply because it is no small measure anomalous to speak of “escaping” from a facility “characterized by the absence of physically restricti[ve] construction, hardware and procedures,” but because we have specifically held in *People v Ortega* (69 NY2d 763 [1987]) that “a nonsecure facility does not constitute a detention facility within the meaning of Penal Law § 205.00 (1),” and, accordingly that one may not commit the crime of escape in the second degree by leaving such a facility without permission (*id.* at 764).²

There is, of course, a tension between the literal significance of the relevant Penal Law provisions and *Ortega*’s carve-out for nonsecure facilities. *Ortega* involved an alleged escape from a nonsecure psychiatric hospital, and its carve-out was explained as warranted by the very different objectives of secure and nonsecure psychiatric commitment. Secure commitment, we recognized, had as a principal objective the protection of the public, a purpose obviously frustrated by escape and vindicated by subjecting an escapee to serious criminal sanction. The dominant purposes of nonsecure commitment, therapy and rehabilitation (69 NY2d at 764-765), however, would not have been similarly advanced, and could in fact have been significantly impaired, if on every occasion that a psychiatric patient wandered off the grounds of the nonsecure facility to which he or she had been committed, there arose the possibility of a felony prosecution. The question now posed is whether there is some sensible, statutorily relevant distinction to be made

2. Contrary to the dissent, we were necessarily aware at the time *Ortega* was decided that Bronx Psychiatric Center, the facility from which *Ortega* absconded, was, while nonsecure in contrast to Mid-Hudson Psychiatric Center (the secure psychiatric facility at which *Ortega* had initially been hospitalized following his insanity acquittal), nonetheless a facility at which involuntarily committed individuals, among them *Ortega*, were detained. We expressly noted that, notwithstanding *Ortega*’s transfer to the nonsecure facility, he remained in the custody of the Commissioner of Mental Health (69 NY2d at 764-765).

between a nonsecure psychiatric facility and a nonsecure juvenile detention facility.

Inasmuch as both are designed to detain but not imprison, and to rehabilitate rather than punish, and neither has as a principal end the protection of the public—that objective being present in both cases but necessarily subordinate to the creation of a salutary therapeutic milieu for troubled but presumably not particularly dangerous persons (see *Sebastian v State of New York*, 93 NY2d 790, 795 [1999])—it is difficult to discern for present purposes any cogent distinction between the two types of facilities. It would moreover be entirely incongruous to treat an adult acquitted of rape upon a plea of insanity with impunity for his escape from a nonsecure psychiatric facility, as we did in *Ortega*, but to deem a child awaiting adjudication upon a juvenile delinquency petition answerable to a felony grade charge for taking his leave of the nonsecure detention facility to which he had been remanded, through its evidently unlocked door.³ Having with good reason and humane purpose read the second-degree escape statute as we did some 24 years ago, it would not be prudent now to apply the statute in the evidently disparate manner proposed by petitioner.

Although petitioner protests that there will be untoward consequences if second-degree escape is not made available as a charge whenever a juvenile detained pending adjudication of juvenile delinquency charges leaves a nonsecure detention facility without permission, there appears little reason to suppose that that is so. It may well be desirable that some significant consequence attach to a child's noncompliance with the conditions upon which a nonsecure remand is made, but the filing of a new petition alleging felony escape is demonstrably inessential to that purpose. In the event of noncompliance, a child may without the need of a new juvenile delinquency petition, but in

3. The door, we note, cannot be supposed to have been left unlocked by accident, since, as the Department of Juvenile Justice explains on its Web site, “[w]hile locks on the doors and other hardware distinguish Secure Detention, [nonsecure detention (NSD)] is characterized by the absence of such restrictions. Residents are staff-supervised and may leave the NSD group homes to attend community programs if escorted by staff” (<http://www.nyc.gov/html/djj/html/faq.html> [accessed Mar. 18, 2011]; see also Sobie, Practice Commentaries, McKinney's Cons Laws of NY, Book 29A, Family Ct Act § 301.2, at 371-372 [(“t)he essential distinction (between secure and nonsecure facilities for juveniles) is that a non-secure facility is ‘open’ or not locked. In a sense, the term is an oxymoronic phrase; the usual non-secure setting, a community group home or open campus-like structure, would not be deemed to be ‘detention’ by most lay persons”)]).

accordance with a provision in the order detaining him or her, be directly transferred to a secure facility, as indeed respondent was.

Accordingly, the order of the Appellate Division should be affirmed.

SMITH, J. (dissenting). On the face of the applicable statutes, the result the majority reaches seems impossible. The question is whether “non-secure detention facilities” (so named by statute, Executive Law §§ 503, 504) are detention facilities—a question that answers itself. The obvious conclusion is reinforced by the statutory definition of “detention facility”: “any place used for the confinement, pursuant to an order of a court, of a person . . . charged with being . . . a . . . juvenile delinquent” (Penal Law § 205.00 [1] [b]). Dylan C. was charged with being a juvenile delinquent and remanded by order of the Family Court to the Catholic Guardian Non-Secure Detention Center. Any argument that the facility was not used for his “confinement” must deal with the awkward fact that, when Dylan walked out the door, a facility employee chased him and brought him back. Indeed, the relevant statutes fit the facts here so well that the majority, to avoid calling Dylan’s act an “escape”—the act with which he is charged—uses instead the word “elopement” (majority op at 616), which usually refers to a more romantic event.

Acknowledging that the “literal” words of the statute do not support its holding (majority op at 616), the majority finds justification for disregarding those words in *People v Ortega* (69 NY2d 763, 764 [1987]), which does indeed say: “a nonsecure facility does not constitute a detention facility.” *Ortega* dealt with a psychiatric facility, not one for the detention of juvenile offenders. The words “non-secure *detention* facility” do not appear in *Ortega*. It is not apparent that we were aware, when we wrote our memorandum decision in *Ortega*—devoting only two sentences to the question of what “detention facility” means—that such a thing as a “non-secure detention facility” existed.

The majority makes a reasonable argument that a mentally ill adult, like the *Ortega* defendant, who flees from confinement is probably not less dangerous than a fleeing juvenile offender like Dylan. I would not, however, extend the *Ortega* decision to the limits of its logic. I would confine *Ortega* to its facts, and apply to this case the statutes as they are written.

Judges CIPARICK, GRAFFEO and JONES concur with Chief Judge LIPPMAN; Judge SMITH dissents and votes to reverse in a separate opinion in which Judges READ and PIGOTT concur.

Order affirmed, without costs.

[949 NE2d 952, 926 NYS2d 4]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN LINGLE, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN PARISI, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOMINIQUE MURRELL, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN PRENDERGAST, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MANUEL RODRIGUEZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRYL SHARLOW, Appellant.

Argued March 21, 2011; decided April 28, 2011

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 27, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Charles J. Tejada, J.), which had resentenced defendant, as a second felony offender, to concurrent terms of imprisonment of 14 years and 3½ to 7 years with five years' postrelease supervision.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 20, 2010. The Appellate Division affirmed (1) a resentence of the Suffolk County Court (C. Randall Hinrichs, J.), which had imposed periods of post-release supervision of five years in addition to each of the previously imposed determinate sentences of imprisonment of 25 years; and (2) a resentence of that court, which had imposed a period of postrelease supervision of five years in addition to the previously imposed determinate sentence of imprisonment of seven years.

APPEAL, in the third above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial

Department, entered May 20, 2010. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Richard D. Carruthers, J.), which had resentenced defendant to concurrent terms of 10 years, with five years' postrelease supervision.

APPEAL, in the fourth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 23, 2010. The Appellate Division affirmed a sentence of the Supreme Court, Queens County (Stephen A. Knopf, J.; op 19 Misc 3d 1125[A], 2008 NY Slip Op 50847[U]), which had imposed a period of postrelease supervision of five years in addition to the previously imposed terms of imprisonment.

APPEAL, in the fifth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 3, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Gregory Carro, J.), which had resentenced defendant to a term of 25 years to life with three years' postrelease supervision.

APPEAL, in the sixth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 13, 2010. The Appellate Division (1) reversed a sentence of the Supreme Court, Kings County (Michael J. Brennan, J.), which had imposed a period of postrelease supervision in addition to the determinate term of imprisonment previously imposed; (2) vacated the term of postrelease supervision; and (3) reinstated the original sentence.

People v Lingle, 66 AD3d 582, affirmed.

People v Parisi, 72 AD3d 989, affirmed.

People v Murrell, 73 AD3d 598, affirmed.

People v Prendergast, 71 AD3d 1055, affirmed.

People v Rodriguez, 82 AD3d 418, affirmed.

People v Sharlow, 75 AD3d 568, reversed.

HEADNOTES

Crimes — Sentence — Resentence — Postrelease Supervision — Double Jeopardy

1. The Double Jeopardy Clause of the Federal Constitution did not bar the imposition of postrelease supervision (PRS) at the resentencing of defendants,

who were resentenced, before completion of their originally-imposed sentences of imprisonment, so as to add the mandatory term of PRS that their respective sentencing judges had failed to pronounce when defendants were originally sentenced. An expectation of finality arises for purposes of double jeopardy when a defendant completes the lawful portion of an illegal sentence and exhausts any appeal taken. Here, five of the six defendants were still incarcerated when resentenced, and the sixth had been conditionally released from prison after serving six sevenths of his originally-imposed sentence; accordingly, none had yet completed their sentences. A rule that resentencing to PRS should be precluded when a “significant” or “substantial” portion of the originally-imposed sentence of imprisonment has been served would supply no meaningful standard by which to measure a reasonable expectation of finality. Moreover, defendants offered no principled basis to interpret the State Constitution’s Double Jeopardy Clause more broadly than its federal counterpart.

Crimes — Sentence — Resentence — Postrelease Supervision — Due Process

2. Substantive due process did not bar the imposition of postrelease supervision (PRS) at the resentencing of defendants, who were resentenced, before completion of their originally-imposed sentences of imprisonment, so as to add the mandatory term of PRS that their respective sentencing judges had failed to pronounce when defendants were originally sentenced. Substantive due process analysis requires a determination as to whether the right at issue is so deeply rooted in this Nation’s history and traditions as to be considered fundamental, and, if so, whether the government’s action is so egregious, so outrageous, that it may fairly be said to shock the conscience; negligence alone is insufficient to shock the conscience. Even assuming a defendant possesses a fundamental right not to have an illegal sentence revised upward to correct an error, defendants here could not establish that the government’s conduct shocked the conscience. The resentencings merely imposed statutorily-required sentences and were aimed at an entire category of defendants whose sentences were improperly pronounced. Defendants also failed to meet the largely abandoned multi-factor test for determining when a defendant’s expectation that his or her sentence will remain unchanged has “crystallized” such that resentencing would offend substantive due process. Here, among the multiple factors to be considered, defendants could not have developed a reasonable expectation in a prison sentence without PRS; any prejudice resulting from resentencing was de minimis; and the government acted diligently to correct the sentencing errors. Moreover, defendants suggested no reason to interpret substantive due process more broadly in these circumstances as a matter of state constitutional law.

Crimes — Sentence — Resentence — Postrelease Supervision — Consideration of Propriety of Sentence

3. A judge resentencing a defendant in order to correct a *Sparber* error (*People v Sparber*, 10 NY3d 457 [2008]), namely the failure of the original sentencing judge to pronounce a mandatory postrelease supervision (PRS) term in the defendant’s presence in open court, may not revisit the propriety of the defendant’s sentence as a whole, i.e., the incarceratory and PRS components. A *Sparber* error amounts only to a procedural error, akin to a misstatement or clerical error, which the sentencing court can easily remedy. The sole remedy is to vacate the sentence and remit for a resentencing hearing so that the trial judge can make the required pronouncement that will include the relevant PRS term. Resentencing to set right the flawed imposition of PRS at the original sentencing is not a plenary proceeding.

**Crimes — Sentence — Resentence — Postrelease Supervision —
Consideration by Appellate Court of Propriety of Sentence**

4. An appellate court may not reduce the prison sentence on appeal in the interest of justice of a defendant who was resentenced in order to correct a *Sparber* error (*People v Sparber*, 10 NY3d 457 [2008]), namely the failure of the original sentencing judge to pronounce a mandatory postrelease supervision (PRS) term in the defendant's presence in open court. A defendant's right to appeal is limited to the correction of errors or the abuse of discretion at the resentencing proceeding. As a resentencing court is not authorized to lower the prison sentence at a *Sparber* resentencing, appellate courts are likewise unauthorized to do so—i.e., the resentencing court's failure to consider a lesser sentence was not an error or defect subject to reversal or modification.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 791, 859, 862.

CARMODY-WAIT 2d, Exemption from Prosecution By Reason of Previous Prosecution § 185:53; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:73, 203:209, 203:210; CARMODY-WAIT 2d, Postjudgment Motions § 205:51; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:114–207:116.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 26.3, 26.4, 26.7.

NY JUR 2d, Criminal Law: Procedure §§ 1931, 1958, 2927, 3178, 3179, 3632.

ANNOTATION REFERENCE

See ALR Index under Double Jeopardy; Due Process; Parole, Probation and Pardon; Sentence and Punishment.

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POINTS OF COUNSEL

Center for Appellate Litigation, New York City (*Jonathan M. Kirshbaum* and *Robert S. Dean* of counsel), for appellant in the first above-entitled action. I. State and federal double jeopardy barred the resentencing court from imposing postrelease supervision on appellant, who had already served more than five years of his sentence at the time of resentencing. (*North Carolina v Pearce*, 395 US 711; *United States v DiFrancesco*, 449 US 117; *United States v Fogel*, 829 F2d 77; *People v*

Williams, 14 NY3d 198; *Stewart v Scully*, 925 F2d 58; *Breest v Helgemoe*, 579 F2d 95; *Bozza v United States*, 330 US 160; *Williams v Travis*, 143 F3d 98; *People v Williams*, 87 NY2d 1014; *People v Momplaisir*, 2 AD3d 320.) II. A court conducting a postrelease supervision resentencing has the authority to exercise its own independent discretion to reconsider the term of imprisonment of the original determinate sentence upon imposing postrelease supervision. (*People v Catu*, 4 NY3d 242; *People v Sparber*, 10 NY3d 457; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358; *People v Perry*, 36 NY2d 114; *People v Sturgis*, 69 NY2d 816; *People v Stroman*, 36 NY2d 939; *People v Kuey*, 83 NY2d 278; *Matter of Murray v Goord*, 1 NY3d 29; *People v Martinez*, 136 AD2d 745; *People v Desulma*, 26 AD3d 443.) III. The Appellate Division had the power to reduce the sentence in the interest of justice because this was an appeal of a sentence as of right under CPL 450.10 (2) and 450.30 (1) and (3). (*People v Delgado*, 80 NY2d 780; *People v Rivera*, 5 NY3d 61; *People v Pollenz*, 67 NY2d 264; *People v Sparber*, 10 NY3d 457; *People v Rodriguez*, 73 AD3d 541, 15 NY3d 855; *People v Lopez*, 6 NY3d 248.)

Cyrus R. Vance, Jr., District Attorney, New York City (Vincent Rivellese and Patrick J. Hynes of counsel), for respondent in the first above-entitled action. The trial judge's correct imposition of the legal sentence he always intended to impose should be affirmed. (*Earley v Murray*, 451 F3d 71; *People v Sparber*, 10 NY3d 457; *People v Hernandez*, 59 AD3d 180; *People v Williams*, 14 NY3d 198; *Bozza v United States*, 330 US 160; *United States v DiFrancesco*, 449 US 117; *United States v Rosario*, 386 F3d 166; *United States v Fogel*, 829 F2d 77; *People v Minaya*, 54 NY2d 360; *Strickland v Washington*, 466 US 668.)

Legal Aid Society of Suffolk County, Inc., Appeals Bureau, Riverhead (Kirk R. Brandt, Robert C. Mitchell, Robert L. Cicale and Alfred J. Cicale of counsel), for appellant in the second above-entitled action. In view of the fact that a period of 74 months and 20 days had elapsed from the time the original sentence was imposed on defendant, and cognizant of a time delay of such magnitude in addressing a corrective sentence, the resentencing court lacked both jurisdiction and authority over defendant and, as such, the imposition of the mandatory five-year period of postrelease supervision on the determinate sentences previously decreed violated fundamental fairness and due process and constituted an illegal sentence. (*People v Williams*, 14 NY3d 198; *Hawkins v Freeman*, 195 F3d 732; *DeWitt*

v Ventetoulo, 6 F3d 32, 511 US 1032; *Breest v Helgemoe*, 579 F2d 95, 439 US 933; *United States v Lundien*, 769 F2d 981, 474 US 1064; *United States v Cook*, 890 F2d 672.)

Thomas J. Spota, District Attorney, Riverhead (*Michael J. Brennan* of counsel), for respondent in the second above-entitled action. The County Court's resentencing of appellant to post-release supervision did not violate fundamental fairness or due process and was, thus, a legal sentence. (*People v Williams*, 14 NY3d 198; *United States v Rourke*, 984 F2d 1063; *United States v Warner*, 690 F2d 545; *United States v Silvers*, 90 F3d 95; *United States v Daddino*, 5 F3d 262; *United States v Arrellano-Rios*, 799 F2d 520; *DeWitt v Ventetoulo*, 6 F3d 32; *United States v Lundien*, 769 F2d 981; *Breest v Helgemoe*, 579 F2d 95; *United States v Cook*, 890 F2d 672.)

Office of the Appellate Defender, New York City (*Joseph M. Nursey* and *Richard M. Greenberg* of counsel), for appellant in the third above-entitled action. Dominique Murrell was improperly resentenced to add a term of postrelease supervision, after he had served more than eight years of his sentence and was within two months of release, in violation of the prohibition against double jeopardy and his right to due process of law. (*People v Williams*, 14 NY3d 198; *Benton v Maryland*, 395 US 784; *People v Vasquez*, 89 NY2d 521; *United States v DiFrancesco*, 449 US 117; *Stewart v Scully*, 925 F2d 58; *People v Campanella*, 297 AD2d 642; *People v Trimm*, 252 AD2d 673; *People v Gilchrist*, 231 AD2d 424; *People v Hoppie*, 220 AD2d 528; *People v White*, 292 AD2d 158.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Timothy C. Stone* and *Vincent Rivelles* of counsel), for respondent in the third above-entitled action. The lower court properly resentenced defendant. (*People v Sparber*, 10 NY3d 457; *People v Williams*, 14 NY3d 198; *People v Simms*, 77 AD3d 562; *People v Parisi*, 72 AD3d 989; *People v Becker*, 72 AD3d 1290; *People v Bing*, 76 NY2d 331; *People v Taylor*, 9 NY3d 129; *Stewart v Scully*, 925 F2d 58; *People v Konstantinides*, 14 NY3d 1; *United States v Lundien*, 769 F2d 981.)

Appellate Advocates, New York City (*Warren S. Landau* and *Lynn W.L. Fahey* of counsel), for appellant in the fourth above-entitled action. I. The court violated double jeopardy and denied appellant due process when, more than five years after his original sentencing, it added a five-year term of postrelease supervision to his sentence. (*United States v DiFrancesco*, 449 US 117;

People v Williams, 14 NY3d 198; *United States v Lundien*, 769 F2d 981, 474 US 1064; *People v Sparber*, 10 NY3d 457; *People v Wright*, 56 NY2d 613; *Ex parte Lange*, 18 Wall [85 US 163]; *North Carolina v Pearce*, 395 US 711; *People v Biggs*, 1 NY3d 225; *Stewart v Scully*, 925 F2d 58; *United States v Fogel*, 829 F2d 77.) II. The resentencing court erroneously failed to recognize its authority and obligation to revisit the term of imprisonment of the original sentence and consider the appropriateness of appellant's sentence as a whole. (*People v Sparber*, 10 NY3d 457; *United States v Rourke*, 984 F2d 1063; *People v Catu*, 4 NY3d 242; *People v Kuey*, 83 NY2d 278; *People v Martinez*, 136 AD2d 745; *People v Desulma*, 26 AD3d 443; *People v Bibbs*, 17 AD3d 170; *People v Wiggins*, 17 AD3d 196; *People v Lucks*, 91 AD2d 896; *People v Green*, 54 NY2d 878.)

Richard A. Brown, District Attorney, Kew Gardens (*Anastasia Spanakos* and *John M. Castellano* of counsel), for respondent in the fourth above-entitled action. I. Defendant's resentencing to correct his illegal sentence did not violate double jeopardy or due process. (*People v Williams*, 14 NY3d 198; *People v Sparber*, 10 NY3d 457; *United States v Rourke*, 984 F2d 1063; *United States v Silvers*, 90 F3d 95; *People v Johnson*, 79 AD3d 1072; *People v Velez*, 79 AD3d 542; *People v Ragbirsingh*, 78 AD3d 738; *People v Young*, 78 AD3d 744; *People v Simms*, 77 AD3d 562; *People v Murrell*, 73 AD3d 598, 15 NY3d 854.) II. The record does not support defendant's claim that the resentencing court believed it had no authority to reconsider the incarceration part of his sentence, and the ambiguity in the record on this point precludes review here. At any rate, the resentencing court in fact had no such authority, and thus defendant's claim is meritless. (*People v Sparber*, 10 NY3d 457; *People v Yannicelli*, 40 NY2d 598; *People v Damiano*, 87 NY2d 477; *People v Kinchen*, 60 NY2d 772; *People v Phelps*, 74 NY2d 919; *People v McLean*, 15 NY3d 117; *United States v Pridgeon*, 153 US 48; *Stewart v Scully*, 925 F2d 58; *Adams v United States*, 375 F2d 635; *People v Richardson*, 100 NY2d 847.)

Center for Appellate Litigation, New York City (*Claudia S. Trupp* and *Robert S. Dean* of counsel), for appellant in the fifth above-entitled action. I. The Appellate Division has greater authority than the trial courts to review sentences and properly exercised its interest of justice review power to reduce Mr. Rodriguez's sentence in his appeal as of right under CPL 450.10 (2) and 450.30 (1) and (3). (*People v Delgado*, 80 NY2d 780; *People v Thompson*, 60 NY2d 513; *People v Rivera*, 5 NY3d 61;

Judson v Central Vt. R.R. Co., 158 NY 597; *People v Rosenthal*, 305 AD2d 327; *People v Suitte*, 90 AD2d 80; *People v Pollenz*, 67 NY2d 264; *People v Williams*, 6 NY2d 193; *People v Evans*, 94 NY2d 499.) II. A judge conducting a postrelease supervision (PRS) resentencing has the authority to exercise his independent discretion in determining an appropriate sentence and is not limited to merely pronouncing a term of PRS without considering the propriety of the entire sentence, including the prison term. (*People v Sparber*, 10 NY3d 457; *People v Catu*, 4 NY3d 242; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358; *People v DeValle*, 94 NY2d 870; *People v Wright*, 56 NY2d 613; *People v Minaya*, 54 NY2d 360; *People v Sturgis*, 69 NY2d 816; *People v Stroman*, 36 NY2d 939; *People v Richardson*, 100 NY2d 847; *People v Samms*, 95 NY2d 52.) III. State and federal double jeopardy and due process principles barred the resentencing court from imposing post-release supervision on Mr. Rodriguez, who had already served more than six years of his sentence at the time of resentencing. (*North Carolina v Pearce*, 395 US 711; *United States v Di-Francesco*, 449 US 117; *United States v Fogel*, 829 F2d 77; *People v Williams*, 14 NY3d 198; *Stewart v Scully*, 925 F2d 58; *Breest v Helgemoe*, 579 F2d 95; *Bozza v United States*, 330 US 160; *Williams v Travis*, 143 F3d 98; *People v Williams*, 87 NY2d 1014; *People v Momplaisir*, 2 AD3d 320.)

Cyrus R. Vance, Jr., District Attorney, New York City (Richard Nahas and Patrick J. Hynes of counsel), for respondent in the fifth above-entitled action. Where a resentencing court convened for pronouncement of a defendant's postrelease supervision term is not authorized to modify defendant's prison term, the Appellate Division has no power to modify the prison term on appeal from the resentencing. (*People v Sparber*, 10 NY3d 457; *People v DeValle*, 94 NY2d 870; *People v Wright*, 56 NY2d 613; *People v Minaya*, 54 NY2d 360, 455 US 1024; *People v Acevedo*, 14 NY3d 828; *People v Kuey*, 83 NY2d 278; *People v Yannicelli*, 40 NY2d 598; *People v Harrington*, 21 NY2d 61; *People v Carpenter*, 19 AD3d 730, 5 NY3d 804; *People v LaSalle*, 95 NY2d 827.)

Charles J. Hynes, District Attorney, Brooklyn (Solomon Neubort of counsel), for appellant in the sixth above-entitled action. The resentencing of defendant for the purpose of adding a mandatory period of postrelease supervision was authorized, because the resentencing occurred before the maximum expiration date of the original sentence. (*People v Williams*, 14 NY3d

198; *People ex rel. Johnson v Warden, Rikers Is. Correctional Facility*, 4 Misc 3d 535, 16 AD3d 183; *Matter of Deal v Goord*, 8 AD3d 769; *People v Melio*, 304 AD2d 247; *People v Crump*, 302 AD2d 901; *People v Sparber*, 10 NY3d 457; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358; *United States v DiFrancesco*, 449 US 117; *United States v Halper*, 490 US 435; *Bozza v United States*, 330 US 160.)

Legal Aid Society, Criminal Appeals Bureau, New York City (Steven J. Miraglia of counsel), for respondent in the sixth above-entitled action. This Court should reject the People's interpretation of *People v Williams* (14 NY3d 198 [2010]) because it is contrary to everything that opinion stands for. Instead, this Court should, pursuant to *Williams*, vacate the order resentencing appellant to include a period of postrelease supervision.

OPINION OF THE COURT

READ, J.

In *People v Sparber* (10 NY3d 457 [2008]), we held that defendants subject to postrelease supervision (PRS) have a statutory right under CPL 380.20 and 380.40 for a judge to pronounce the PRS sentence in their presence in open court, and that the remedy when a judge neglects to do this is resentencing to correct the error. Although the facts in these six cases vary, they share two essential features: the judges who sentenced defendants did not pronounce PRS (i.e., they committed a *Sparber* error), and defendants were resentenced to PRS before completion of their originally-imposed sentences of imprisonment. Specifically, defendants John Lingle, John Parisi, Dominique Murrell, John Prendergast and Manuel Rodriguez were still incarcerated when resentenced; defendant Darryl Sharlow was conditionally released from prison after having served six sevenths of his originally-imposed sentence.

Defendants Lingle, Parisi, Murrell, Prendergast, Rodriguez and Sharlow seek upon resentencing to be relieved of their statutory obligation to serve PRS on grounds of double jeopardy and/or due process. Alternatively, defendants Lingle, Prendergast and Rodriguez maintain that resentencing courts have discretion to reconsider the propriety of their sentences as a whole (i.e., both the incarceratory and the PRS components). Defendants Lingle and Rodriguez contend, in addition, that the Appellate Division possesses plenary power to modify their sentences after resentencing in the interest of justice. We reject all these arguments, and thus affirm in *Lingle*, *Parisi*, *Murrell*, *Prendergast* and *Rodriguez*, and reverse in *People v Sharlow*.

Double Jeopardy

Defendants contend that because they served “significant” or “substantial” portions of their originally-imposed sentences before resentencing, they acquired a legitimate expectation of finality, and, as a result, their cases are not comparable to those where the Double Jeopardy Clause did not bar a greater sentence (*see e.g. Bozza v United States*, 330 US 160 [1947] [defendant resentenced five hours after original sentence imposed]; *Williams v Travis*, 143 F3d 98 [2d Cir 1998] [one week]; *People v Williams*, 87 NY2d 1014 [1996] [one week]). In order to avoid a double jeopardy violation, they continue, resentencing courts may only impose PRS by reducing the incarceratory portion of their sentences such that the incarceratory and PRS components of the resentences, when added together, do not exceed the length of their originally-imposed sentences of imprisonment.

[1] Our decision in *People v Williams* (14 NY3d 198 [2010], *cert denied* 562 US —, 131 S Ct 125 [2010]) defeats defendants’ double jeopardy argument. We pointed out in *Williams* that defendants are “presumed to be aware that a determinate prison sentence without a term of PRS is illegal” and subject to correction, and therefore “cannot claim a legitimate expectation that the originally-imposed, improper sentence is final for all purposes” (*id.* at 217). Nonetheless, “there must be a temporal limitation on a court’s ability to resentence a defendant . . . since criminal courts do not have perpetual jurisdiction over all persons who were once sentenced for criminal acts” (*id.*). Citing federal precedent that we found to be persuasive, we held in *Williams* that an expectation of finality arises for purposes of double jeopardy when a defendant *completes* the lawful portion of an illegal sentence and exhausts any appeal taken (*id.* [(“T)here is a legitimate expectation of finality once the initial sentence has been served and the direct appeal has been completed (or the time to appeal has expired)”]; *see also id.* at 227 [Pigott, J., dissenting] [characterizing majority’s “holding” as requiring two conditions for a legitimate expectation of finality to “attach”: “the completion of the initial sentence and the completion of the direct appeal or time to appeal” (internal quotation marks omitted)]). The defendants in *Williams* and the cases decided along with it had all completed their sentences (including any discharge on conditional release) before being resentenced. By contrast, the six defendants in these cases

had not yet completed their originally-imposed sentences of imprisonment when they were resentenced to add PRS.¹

To counter *Williams*, defendants highlight the Second Circuit's decision in *Stewart v Scully* (925 F2d 58 [2d Cir 1991]). Focusing on the "substantial portion" of the originally-imposed indeterminate sentence already served, the court in *Stewart* decided that the petitioner possessed a "legitimate expectation in the finality of his sentence, thus violating the protection against multiple punishments guaranteed by the double jeopardy clause" (*id.* at 58). But Stewart pleaded guilty in exchange for a maximum sentencing exposure of 20 years. Upon subsequently learning that the minimum sentence had to be one third (as opposed to one half) the maximum, the sentencing court increased Stewart's maximum sentence to 24 years. By contrast, these defendants were not caught unaware when a sentencing agreement was changed: defendants Lingle, Parisi, Murrell, Prendergast and Rodriguez were sentenced after trials; defendant Sharlow was sentenced, "*as promised*, to seven years" (dissenting op at 636 [emphasis added]).

Importantly, defendants' suggested rule—that resentencing to PRS should be precluded when a "significant" or "substantial" portion of the originally-imposed sentence of imprisonment has been served—supplies no meaningful standard by which to measure a reasonable expectation of finality. Given the thousands of resentencings—past and future—brought about by *Sparber* errors, our rule in *Williams*, by contrast, promotes clarity, certainty and fairness.

Finally, defendants offer no principled basis for us to go beyond our recent decision in *Williams* and interpret the State Constitution's Double Jeopardy Clause more broadly than its federal counterpart, particularly in light of our other recent decision in *Matter of Suarez v Byrne* (10 NY3d 523, 534 [2008]). True, the Legislature has enacted certain statutes affording broader double jeopardy protection than the Federal Constitution requires, but these laws have nothing to do with sentencing. Indeed, after we handed down *Sparber* the Legislature promptly adopted legislation to allow resentencing as many

1. The dissent opines that once Sharlow was conditionally released, he was "entitle[d] . . . to a 'legitimate expectation' that . . . his sentence [was] final for all purposes" (dissenting op at 637). But someone released conditionally knows, almost by definition, that he has not yet paid his full debt to society, whereas someone whose sentence has expired can legitimately think of his punishment as in the past.

defendants as possible to sentences that include PRS (*see* L 2008, ch 141).

Due Process

Defendants also argue that substantive due process bars their resentencing to PRS. To support a due process claim, they rely principally on the decisions of the First and Fourth Circuits in *Breest v Helgemoe* (579 F2d 95 [1st Cir 1978]), *United States v Lundien* (769 F2d 981 [4th Cir 1985]) and *DeWitt v Ventetoulo* (6 F3d 32 [1st Cir 1993]). These decisions generally apply a multi-factor test to determine when a defendant's expectation that his sentence will remain unchanged has "crystallized" such that resentencing would offend substantive due process (*see Lundien*, 769 F2d at 987). But subsequent decisions by the very same courts have largely abandoned the multi-factor test in favor of a "shocks the conscience" standard (*see Gonzalez-Fuentes v Molina*, 607 F3d 864, 882 [1st Cir 2010] [applying the "shocks the conscience" standard to evaluate substantive due process claims]; *Espinoza v Sabol*, 558 F3d 83, 87 [1st Cir 2009] [describing *DeWitt* as an "extreme case," as the *DeWitt* court itself acknowledged (*see* 6 F3d at 36 [characterizing case as "the very rare exception to the general rule that courts can, after sentence, revise sentences upward to correct errors"])]]; *Hawkins v Freeman*, 195 F3d 732, 749 [4th Cir 1999] [holding that *Lundien*'s pronouncements on due process were merely dicta and that the court had failed to engage in the "rigorous historical inquiry" mandated in *Washington v Glucksberg* (521 US 702, 720-721 [1997])]).

The proper substantive due process analysis thus requires a determination, first, as to whether the right at issue is so deeply rooted in this Nation's history and traditions as to be considered fundamental, and, if so, whether the government's action is "so egregious, so outrageous, that it may fairly be said to shock the contemporary conscience" (*Gonzalez-Fuentes*, 607 F3d at 880 [citation omitted]). Negligence alone is insufficient to "shock the conscience," and in successful due process challenges, there is generally an extreme lack of proportionality inspired by malice or sadism rather than carelessness or excess of zeal (*id.* at 881).

[2] Even assuming a defendant possesses a fundamental right not to have an illegal sentence revised upward to correct an error, these defendants cannot establish that the government's conduct shocks the conscience. The resentencings merely

imposed statutorily-required sentences. The State was not acting out of malice or sadism, but out of a desire to see that legislatively determined mandatory sentences were actually served. And the State's action was not subjectively or standardlessly directed at particular individuals; rather, it was aimed at an entire category of defendants whose sentences were improperly pronounced. In sum, judged by the "shock the conscience" standard, defendants cannot make out a substantive due process violation.

While defendants fare marginally better under the *DeWitt* standard, they still fall short. *DeWitt* calls for a court to consider multiple factors, including the length of time between the mistake and its attempted correction and whether the defendant contributed to the mistake; the reasonableness of the defendant's intervening expectations; the prejudice resulting from the change; and the government's diligence in seeking the change (6 F3d at 35).

In some of these cases, the lapse of time between the *Sparber* error and its correction at resentencing was several years; in no case did defendants contribute to the mistake. Still, defendants could not have developed a reasonable expectation in a prison sentence without PRS. PRS is statutorily mandated, and defendants are charged with knowledge of the law. They were represented by presumably competent counsel who should have informed them of their exposure to PRS. The Department of Correctional Services informs defendants of the PRS component of their sentences upon their entry into the correctional system (see e.g. Correction Law § 803 [6]). Significantly, defendants do not protest that they were actually unaware that PRS would be a component of their sentences.

In short, there is every reason to believe that defendants did, in fact, know that they were subject to PRS long before efforts to resentence them were undertaken. Because defendants are merely being required to serve a part of their sentences of which they were always cognizant, any prejudice resulting from resentencing is de minimis. Moreover, the government has acted diligently to correct *Sparber* errors. Finally, defendants suggest no reason for us to interpret substantive due process more broadly in these circumstances as a matter of state constitutional law.

Whether a Resentencing Court May Reconsider a Defendant's
Sentence at a Resentencing to Correct a *Sparber* Error

[3] Defendants read *Sparber* to direct or empower judges to revisit the propriety of a defendant's sentence as a whole—both the incarceration and PRS components—when resentencing to correct a *Sparber* error. While there is, at least arguably, isolated language in *Sparber* which lends itself to this interpretation (principally, our single use of the word “vacate” in the body of the opinion), this is clearly not what we meant. If it had, in fact, been what we intended, we surely would have expressed an unambiguous holding to this effect rather than risk creating a situation where thousands of *Sparber* resentencings might have to be repeated.

We start with the proposition that a *Sparber* error “amounts only to a *procedural* error, *akin to a misstatement or clerical error*, which the sentencing court [can] easily remedy” (*Sparber*, 10 NY3d at 472 [emphasis added]). In support of this statement, we cited *People v DeValle* (94 NY2d 870 [2000]), *People v Wright* (56 NY2d 613, 614 [1982]) and *People v Minaya* (54 NY2d 360 [1981]). We did not suggest in these cases that the sentencing judge was supposed to do anything at resentencing other than correct the discrete error prompting the resentencing in the first place (*see also People v Yannicelli*, 40 NY2d 598, 602 [1976] [it was error for the trial court to revisit the defendant's entire sentence when a procedural mistake in imposing a fine was the sole defect in the original sentencing and thus “the only reason why resentencing was ordered”]; *People v Harrington*, 21 NY2d 61 [1967] [although the order, in form, was vacated by reason of a ministerial error, the reason for the remand was merely to correct this mistake and therefore the net sentence should not have been changed]).

In *Sparber*, the defendants urged us to fix the pronouncement mistake, the only harm they alleged, by striking PRS from their sentences. We rejected this proposed remedy, deciding instead to remit their cases to Supreme Court “for resentencing and *the proper judicial pronouncement of the relevant PRS terms*” (10 NY3d at 465 [emphasis added]). Accordingly, we declared that “[t]he sole remedy for a procedural error such as this is to vacate the sentence and remit for a resentencing hearing *so that the trial judge can make the required pronouncement*” (*id.* at 471 [emphasis added]). In the decretal paragraph itself, we directed that “the order of the Appellate Division should be

modified by remitting to Supreme Court for a resentencing hearing *that will include the proper pronouncement of the relevant PRS term* (*id.* at 473 [emphasis added]).

By contrast, we have explained the required corrective action in far more general language when remitting for a resentencing requiring the exercise of discretion. For example, in *People v Yancy* (86 NY2d 239, 247 [1995]) the sentencing court mistakenly believed that the defendant was a predicate felon. Accordingly, in the decretal paragraph we modified the Appellate Division's order by "vacating defendant's sentence, and . . . remitt[ing the case] to Supreme Court, New York County, for resentencing." (*Id.*) Because the sentencing court in *Yancy* considered inappropriate factors in fashioning the sentence, resentencing logically entailed general, plenary proceedings. But in *Sparber*, the sentencing court merely failed to articulate properly the altogether appropriate sentence that it intended to impose. As a result, resentencing is limited to remedying this specific procedural error—i.e., to "mak[ing] the required pronouncement" (10 NY3d at 471). Put another way, resentencing to set right the flawed imposition of PRS at the original sentencing is not a plenary proceeding.

Whether the Appellate Division May Reduce a Defendant's
Sentence on Appeal from a Resentencing to Correct a *Sparber*
Error

[4] Because a trial court lacks discretion to reconsider the incarceration component of a defendant's sentence at a resentencing to correct a *Sparber* error, the Appellate Division may not reduce the prison sentence on appeal in the interest of justice. The defendant's right to appeal is limited to the correction of errors or the abuse of discretion at the resentencing proceeding (*see* CPL 470.15 [1]; 470.20). Since the resentencing court is not authorized to lower the prison sentence at a *Sparber* resentencing, appellate courts are likewise unauthorized to do this—i.e., the resentencing court's failure to consider a lesser sentence was not an "error or defect" subject to reversal or modification (CPL 470.20).²

2. The dissenting Judges are hard-pressed to explain why they would reverse in *Rodriguez*, but not in *Lingle*. Both Rodriguez and Lingle contend that the Appellate Division has the power to reduce their sentences in the interest of justice, and the dissenting Judges agree. Similarly, both Lingle and Pendergast take the position, also espoused by Rodriguez and endorsed by the

Accordingly, the order of the Appellate Division should be affirmed in each case addressed in this opinion except *People v Sharlow*, where the Appellate Division's order should be reversed and the resentence imposed by Supreme Court reinstated.

CIPARICK, J. (dissenting in *People v Sharlow* and *People v Rodriguez*). I join the majority opinion in only four of these cases, dissenting in *People v Sharlow* and *People v Rodriguez*.

People v Sharlow

On October 31, 2000, Sharlow pleaded guilty to one count of burglary in the second degree (Penal Law § 140.25 [1]) and one count of petit larceny (Penal Law § 155.25). Sharlow entered this guilty plea with the understanding that, if he successfully completed a drug treatment program in the ensuing 18 to 24 months, the burglary charge against him would be dismissed and that Supreme Court would sentence him to a conditional discharge on the petit larceny count. Supreme Court advised Sharlow, however, that if he failed to complete the drug treatment program or was rearrested during this period, the court would impose a seven-year determinate term of imprisonment. Supreme Court made no mention of the mandatory five-year term of postrelease supervision (PRS).

Sharlow did not complete the drug treatment program. Consequently, on November 1, 2002, Supreme Court sentenced defendant, as promised, to seven years. The court did not impose PRS at sentencing.

On May 14, 2008, after Sharlow became eligible for release from prison having served six sevenths of his term of imprisonment, the Department of Correctional Services (DOCS) conditionally released him pursuant to Correction Law § 803 (1). At that time, Sharlow began to serve a purported term of PRS that had been administratively imposed unlawfully by DOCS while he was in custody. Unfortunately, Sharlow violated the terms of his release and was reincarcerated on July 11, 2008. On July 31, 2008, DOCS notified Supreme Court that Sharlow was a "designated person," meaning that the original sentencing court had not properly imposed PRS (*see* Correction Law § 601-d [1]). As a result, Sharlow was brought back to court on September 17, 2008. Over Sharlow's objection, Supreme Court resentenced him by adding five years PRS to the original term of imprisonment. Sharlow appealed.

dissenting Judges, that resentencing courts are authorized to reconsider the incarceratory portion of a defendant's sentence at a *Sparber* resentencing.

Citing our holding in *People v Williams* (14 NY3d 198 [2010]), the Appellate Division reversed and vacated the term of PRS. The court concluded that Sharlow's "release from prison erected a bar under the Double Jeopardy Clause of the United States Constitution . . . to the addition thereafter of a period of PRS" (*People v Sharlow*, 75 AD3d 568, 569 [2d Dept 2010]). A Judge of this Court granted the People leave to appeal (15 NY3d 924 [2010]). The majority now reverses the order of the Appellate Division and I respectfully dissent.

In *Williams*, we recognized that despite a court's "inherent authority to correct illegal sentences . . . , there must be a temporal limitation on a court's ability to resentence a defendant" (14 NY3d at 217). Thus, we held "that the Double Jeopardy Clause prohibits a court from resentencing [a] defendant to the mandatory term of PRS after [a] defendant has served the determinate term of imprisonment and has been released from confinement by DOCS" (*id.*). This is so because "once a defendant [has been] released from custody and *returns to the community after serving the period of incarceration that was ordered by the sentencing court* . . . there is a legitimate expectation that the sentence, although illegal under the Penal Law, is final" (*id.* at 219 [emphasis added]). In adopting this rule, we cited federal authority standing for the proposition that "the resentencing of a defendant who has been released from confinement would be unconstitutional" (*id.* at 216, citing *DeWitt v Ventetoulo*, 6 F3d 32, 35-36 [1st Cir 1993], *cert denied* 511 US 1032 [1994]; *United States v Lundien*, 769 F2d 981, 986-987 [4th Cir 1985], *cert denied* 474 US 1064 [1986]; *Breest v Helgemoe*, 579 F2d 95, 101 [1st Cir 1978], *cert denied* 439 US 933 [1978]).

Here, Sharlow's release from confinement clearly bars resentencing under our holding in *Williams*. Sharlow duly served the period of incarceration ordered by the sentencing court (*cf. Williams*, 14 NY3d at 218 n 3 ["(t)his analysis has no application to a person who, for example, is erroneously released early by DOCS"]). Moreover, once DOCS calculated Sharlow's precise release date by operation of statute (*see* Correction Law § 803 [1] [a], [c]), he was discharged and returned to the community (*see id.*). These factors, as discussed in *Williams*, entitle Sharlow to a "legitimate expectation" that he will no longer be subject to additional punishment, thereby making his sentence final for all purposes.

Nonetheless, the majority construes our holding in *Williams* differently and now finds "that an expectation of finality arises

for purposes of double jeopardy when a defendant *completes* the lawful portion of an illegal sentence” (majority op at 630). Thus, under the majority’s rationale, Sharlow’s release from custody into the community is of no moment because Sharlow was still subject to DOCS supervision for the remaining one seventh of his prison term. In my view, this goes beyond what we held in *Williams*. Indeed, we did not create a rule that, upon a defendant’s proper release from custody into the community, as here, a legitimate expectation of finality would not arise until such defendant was no longer subject to DOCS supervision. In fact, we never considered the maximum expiration date of a sentence in *Williams*, but rather focused our entire discussion on an inmate’s release from confinement. Notably, we observed that “[s]ome [federal] courts have held that a reasonable expectation of finality arises upon completion of the imposed sentence, resulting in the attachment of jeopardy precluding resentencing” (14 NY3d at 216 [citations omitted]). Ultimately, however, we rejected this reasoning in favor of a rule, adopted by other federal courts, that double jeopardy bars resentencing once a defendant has been duly released from custody (*see id.* at 217).

Furthermore, other departments of the Appellate Division, in applying *Williams*, have also held that the conditional release of a defendant from prison bars the imposition of PRS on double jeopardy grounds (*see e.g. People v Velez*, 79 AD3d 542, 542 [1st Dept 2010] [“When a person serving a determinate sentence is conditionally released, the determinate sentence is still in effect, but the person has clearly been released from imprisonment within the meaning of *Williams*”]; *People v Peterkin*, 71 AD3d 1402, 1402 [4th Dept 2010] [although defendant returned to DOCS custody for violating the terms of his release, “County Court erred in resentencing him to a period of (PRS) after he had been conditionally released from the previously imposed determinate sentence of incarceration”]).

The Appellate Division in this case properly applied our holding in *Williams* and held that, following Sharlow’s conditional release from custody into the community double jeopardy barred the imposition of PRS at a resentencing proceeding. That this resentencing occurred before the maximum expiration date of the original sentence does not change the proper understanding and application of *Williams* by the Appellate Division here, which drew the double jeopardy line at Sharlow’s release from custody. Accordingly, I would vote to affirm.

People v Rodriguez

On June 17, 2002, a jury convicted Rodriguez of gang assault in the first degree (Penal Law § 120.07). Supreme Court sentenced Rodriguez to a determinate prison term of 25 years. Although the court sheet initialed by the trial judge and the commitment sheet prepared by the court clerk indicated a five-year period of PRS, Supreme Court made no mention of PRS during the sentencing proceeding.

Rodriguez pursued his direct appeal. The Appellate Division affirmed the judgment of his conviction and sentence (*People v Rodriguez*, 33 AD3d 543 [1st Dept 2006]). On appeal to this Court, Rodriguez argued that the PRS component to his case was unlawful because Supreme Court failed to pronounce it orally at sentencing. A Judge of this Court granted Rodriguez leave to appeal (9 NY3d 881 [2007]). We consolidated his case with *People v Sparber* (10 NY3d 457 [2008]) wherein we agreed with Rodriguez that his PRS had been unlawfully imposed and remitted his case to Supreme Court for resentencing.

Upon remittal to Supreme Court, Rodriguez requested a reduction of his 25-year prison term. Supreme Court denied the request and resented defendant to the originally imposed 25 years followed by three years PRS. Initially, on May 18, 2010, the Appellate Division modified the judgment of resentence, as a matter of discretion in the interest of justice, by reducing the sentence to a term of 20 years, and, as so modified, affirmed (see *People v Rodriguez*, 73 AD3d 541, 541 [1st Dept 2010]). The court concluded that a *Sparber* resentencing was not a plenary proceeding that “present[ed] the sentencing court with an occasion to revisit the original prison sentence” (*id.*). Nonetheless, finding the prison term to be excessive, the court exercised its interest of justice discretion to modify the sentence as noted (see *id.* at 542).

The People moved for reargument at the Appellate Division. While that application remained pending, a Judge of this Court granted both Rodriguez and the People leave to appeal (15 NY3d 855 [2010]). Subsequently, on March 3, 2011, the Appellate Division granted the People’s reargument motion and recalled its May 18, 2010 decision. (*People v Rodriguez*, 82 AD3d 418 [1st Dept 2011].) Although the court adhered to its prior conclusion that a *Sparber* resentencing is not a plenary proceeding that gives “occasion to revisit the original prison sentence” (*id.* at 418), the court now held that it was “without authority” to

reduce Rodriguez's term of imprisonment "as a matter of discretion in the interest of justice" (*id.* at 419). In light of the Appellate Division's holding, the People's appeal to this Court became moot. However, a Judge of this Court once again granted Rodriguez leave to appeal (16 NY3d 836 [2011]). The majority now affirms the order of the Appellate Division and I respectfully dissent.

I disagree with the majority's conclusion that, pursuant to our holding in *Sparber*, a resentencing court is not empowered to revisit the incarceratory component of a defendant's sentence (*see* majority op at 634-635). In *Sparber*, we found that the lower courts "intended to impose a sentence . . . that consisted of a determinate sentence and a period of PRS" (10 NY3d at 472). Absent any evidence to the contrary, we held the error in failing to pronounce PRS in those cases was "a procedural error, akin to a misstatement or clerical error" (*id.*). However, in concluding that vacatur of a defendant's sentence was the appropriate remedy in these cases, we never sought to limit the trial court's inherent power to revisit the incarceratory period of a sentence, if warranted.¹ The majority's assertion that a holding which allows a resentencing court to reconsider the incarceratory component of a defendant's sentence would "creat[e] a situation where thousands of *Sparber* resentencings might have to be repeated" (majority op at 634) is purely speculative and assumes that resentencing courts, following our decision in *Sparber*, did not believe they had such authority in the first instance.

I also disagree with the majority's conclusion that the Appellate Division is without authority to modify a defendant's sentence upon appeal to that court (*see* majority op at 635). It is axiomatic that "[a]n appeal to an intermediate appellate court may be taken as of right by [a] defendant from" a judgment of sentencing (CPL 450.10 [2]). "An appeal from a sentence . . . means an appeal from either the sentence originally imposed or *from a sentence following an order vacating the original sentence*" (CPL 450.30 [3] [emphasis added]). The appeal from a sentence "may be based upon the ground that such sentence either was (a) invalid as a matter of law, or (b) harsh or excessive" (CPL 450.30 [1]).

1. In that regard, we observed that a defendant is also free to make a motion pursuant to CPL 440.20 at any time alleging that the original sentencing court failed to consider PRS when determining the appropriate term of imprisonment (*see Sparber*, 10 NY3d at 471 n 6).

Here, Rodriguez does not assert that the sentence imposed by Supreme Court at the resentencing proceeding was invalid as a matter of law. Rather, he maintains that the Appellate Division may consider whether the sentence imposed by the lower court at resentencing was unduly “harsh or excessive” in its interest of justice discretion. I agree.

Indeed, CPL 470.15 (3) (c) specifically permits the Appellate Division to modify a sentence “[a]s a matter of discretion in the interest of justice.” Moreover, CPL 470.15 (6) (b) defines “[t]he kinds of . . . modification[s] deemed to be made as a matter of discretion in the interest of justice” to include a modification of “a sentence [that], though legal, was unduly harsh or severe.” Thus, contrary to the conclusion drawn by the majority, the Appellate Division’s authority to modify a judgment of sentence is not limited to a resentencing where it has been established that an “error or defect” has occurred (*see People v Delgado*, 80 NY2d 780, 783 [1992] [even though a sentence may be lawful, “(a)n intermediate appellate court has broad, plenary power to modify a sentence that is unduly harsh or severe”]).

The majority decision here has the effect of stripping the Appellate Division of the broad discretionary authority it enjoys to reduce a sentence in the interest of justice upon an appeal from a resentencing to that court as a matter of right. Thus, I would reverse the order of the Appellate Division and remit the case to that court for the exercise of its interest of justice discretion.²

Accordingly, I would affirm the order of the Appellate Division in *People v Sharlow* and reverse in *People v Rodriguez*.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES concur.

In *People v Lingle*, *People v Parisi*, *People v Murrell*, *People v Prendergast*: Order affirmed.

2. The majority opines that my position in *Rodriguez* is inconsistent with my decision to affirm in *Lingle* and *Prendergast* (*see* majority op at 635-636 n 2). I disagree. In *Lingle*, the Appellate Division considered whether Lingle’s request for a reduction in the incarceratory portion of his sentence should be granted “as a matter of discretion in the interest of justice” but found such request to be “without merit” (*People v Lingle*, 66 AD3d 582, 583 [1st Dept 2009]). By contrast, the Appellate Division in *Rodriguez* held that it had no interest of justice discretion to modify a sentence imposed in a *Sparber* resentencing.

Moreover, unlike *Rodriguez*, *Lingle* and *Prendergast* do not stand for the proposition that a resentencing court is precluded from revisiting the incarceratory component of a defendant’s prison sentence.

Judges GRAFFEO, SMITH and PIGOTT concur with Judge READ; Judge CIPARICK dissents and votes to reverse in a separate opinion in which Chief Judge LIPPMAN and Judge JONES concur.

In *People v Rodriguez*: Order affirmed.

Judges GRAFFEO, SMITH and PIGOTT concur with Judge READ; Judge CIPARICK dissents and votes to affirm in another opinion in which Chief Judge LIPPMAN and Judge JONES concur.

In *People v Sharlow*: Order reversed, etc.

[950 NE2d 85, 926 NYS2d 349]

ROSLYN UNION FREE SCHOOL DISTRICT, Appellant, v MICHAEL
BARKAN et al., Defendants, and CAROL MARGARITIS, Respon-
dent.

Argued March 21, 2011; decided May 3, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 2, 2010. The Appellate Division affirmed an order of the Supreme Court, Nassau County (R. Bruce Cozzens, J.; op 2008 NY Slip Op 33625[U]), which had granted the motion of defendant Carol Margaritis pursuant to CPLR 3211 (a) (5) and (7) to dismiss the complaint insofar as asserted against her.

Roslyn Union Free School Dist. v Barkan, 71 AD3d 660, modified.

HEADNOTES

Limitation of Actions — Six-Year Statute of Limitations — Action by School District against Former School Board Member

1. The six-year limitations period in CPLR 213 (7) was applicable to plaintiff school district's causes of action for negligence, breach of fiduciary duty, declaratory judgment and accounting against defendant, a former member of the school board, arising from the theft by certain district employees of approximately \$11,000,000 in district funds. Causes of action that seek monetary damages for injury to property are generally subject to a three-year statute of limitations (*see* CPLR 214 [4]), but CPLR 213 (7) extends the limitations period to six years for "an action by or on behalf of a corporation against a present or former . . . officer . . . to recover damages for waste or for an injury to property or for an accounting in conjunction therewith." A school district is a "corporation" within the meaning of CPLR 213 (7) and, as such, benefits from the limitations period that applies to certain corporate causes of action. In addition, CPLR 213 (7) covers both equitable and nonequitable causes of action.

Accounts and Accounting — When Remedy Appropriate

2. In an action by plaintiff school district against former and current members of the district's board of education for their allegedly lax management during the period that certain district employees stole approximately \$11,000,000 in district funds, plaintiff's allegations did not state a cognizable cause of action for an accounting against defendant, a former board member who was a member during a time period that funds were being stolen but had left the board before the criminal activities came to light. The equitable remedy of an accounting is designed to require a person in possession of financial records to produce them, demonstrate how money was expended and return

pilfered funds in his or her possession. There was no allegation here that defendant received any of the stolen monies or possessed any relevant documentary proof that plaintiff itself had not acquired. Since the State Comptroller was able to trace countless financial transactions in order to determine how the vast bulk of the stolen monies was used and the identity of the individuals who received the funds, there was no apparent need for an accounting against defendant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Accounts and Accounting §§ 54, 55, 58, 59, 62, 64; AM JUR 2d, Limitation of Actions § 142.

CARMODY-WAIT 2d, Limitation of Actions §§ 13:79, 13:184; CARMODY-WAIT 2d, Accounting Procedure §§ 166:19, 166:54-166:56.

McKINNEY's, CPLR 213 (7); 214 (4).

NY JUR 2d, Accounts and Accounting §§ 33, 34, 38-40; NY JUR 2d, Limitations and Laches §§ 53, 115, 203.

SIEGEL, NY PRAC § 35.

ANNOTATION REFERENCE

See ALR Index under Accounts and Accounting; Corporations; Limitation of Actions; Schools and Education.

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POINTS OF COUNSEL

Farrell Fritz, P.C., Uniondale (*James M. Wicks, Kathryn C. Cole* and *Aaron E. Zerykier* of counsel), for appellant. I. The six-year statute of limitations is applicable to the Roslyn Union Free School District's claims for breach of fiduciary duty, negligence and declaratory judgment. (*People v Avilas, Inc.*, 29 AD3d 764; *Whitney Holdings, Ltd. v Givotovsky*, 988 F Supp 732; *Bassett v Fish*, 75 NY 303; *Van Tassell v Hill*, 285 App Div 584; *Matter of East Meadow Union Free School Dist. v New York State Div. of Human Rights*, 65 AD3d 1342; *Jericho Water Dist. v One Call Users Council, Inc.*, 10 NY3d 385; *Schoen v Board of Educ. of Cambridge Cent. School Dist. No. 10*, 274 App Div 682; *Sardanis v Sumitomo Corp.*, 279 AD2d 225; *Weingarten v Board of Educ. of City School Dist. of City of N.Y.*, 3 Misc 3d 418; *Toscano v Toscano*, 285 AD2d 590.) II. The Roslyn Union Free School District has sufficiently stated an accounting claim

against Carol Margaritis. (*Pelkey v Pelkey*, 236 App Div 55; *Cruz v McAneney*, 31 AD3d 54; *Matter of Kummer*, 93 AD2d 135; *Matter of Rothko*, 43 NY2d 305; *Amherst Magnetic Imaging Assoc. v Community Blue, HMO of Blue Cross of W. N.Y.*, 239 AD2d 892.)

Spellman Rice Schure Gibbons McDonough & Polizzi, LLP, Garden City (*John P. Gibbons, Jr.*, and *Peter S. Trentacoste* of counsel), for respondent. I. The first cause of action in the complaint for breach of fiduciary duty was correctly dismissed as time-barred. (*Nathanson v Nathanson*, 20 AD3d 403; *Klein v Gutman*, 12 AD3d 417; *Carlingford Ctr. Point Assoc. v MR Realty Assoc.*, 4 AD3d 179; *Tatko v Sheldon Slate Prods. Co.*, 2 AD3d 1030; *Kaufman v Cohen*, 307 AD2d 113; *Matter of Kasz-irer v Kaszirer*, 286 AD2d 598.) II. The second cause of action in the complaint for common-law negligence was correctly dismissed as time-barred. (*Mauro v Niemann Agency*, 303 AD2d 468.) III. The third cause of action in the complaint for a declaratory judgment was correctly dismissed. (*Walsh v Andorn*, 33 NY2d 503; *Board of Coop. Educ. Servs., Nassau County v Goldin*, 38 AD2d 267; *Solnick v Whalen*, 49 NY2d 224.) IV. The fourth cause of action in the complaint against Carol Margaritis for an accounting was correctly dismissed. (*Chalasani v State Bank of India, N.Y. Branch*, 235 AD2d 449; *Matter of Kummer*, 93 AD2d 135; *Raymond v Brimberg*, 99 AD2d 988; *IMG Fragrance Brands, LLC v Houbigant, Inc.*, 679 F Supp 2d 395; *Conroy v Cadillac Fairview Shopping Ctr. Props. [Md.]*, 143 AD2d 726.) V. The six-year statutes of limitations set forth in CPLR 213 (5) and (7) are not applicable. (*Toscano v Toscano*, 285 AD2d 590; *Sardanis v Sumitomo Corp.*, 279 AD2d 225; *Rupert v Tigue*, 259 AD2d 946; *Whitney Holdings, Ltd. v Givotovsky*, 988 F Supp 732; *Westchester Religious Inst. v Kameron*, 262 AD2d 131; *Spitzer v Schussel*, 7 Misc 3d 171; *Nathanson v Nathanson*, 20 AD3d 403; *State of New York v Seventh Regiment Fund*, 98 NY2d 249; *Woods v Rondout Val. Cent. School Dist. Bd. of Educ.*, 466 F3d 232.)

OPINION OF THE COURT

GRAFFEO, J.

In this case, we are asked whether a three- or six-year statute of limitations applies to causes of action for negligence and breach of fiduciary duty by a school district against a former member of the school board. We hold that the six-year limitations period in CPLR 213 (7) is applicable and, therefore, this action was timely commenced.

I

In September 2002, an accounting firm hired by plaintiff Roslyn Union Free School District discovered irregularities in the district's financial records. An audit revealed that Pamela Gluckin, the assistant superintendent for business, had stolen \$223,000 from district accounts. The Roslyn Union Free School District Board of Education (the Board) was notified of Gluckin's misconduct and it decided to allow Gluckin to repay the misappropriated funds (along with attorney's fees and accounting costs) and retire. The Board, however, did not notify law enforcement authorities or state officials about Gluckin's criminal activities, nor did it publicly disclose her illegal conduct.

Unfortunately, the theft by Gluckin turned out to be just one component of a long-running conspiracy to loot the school district's coffers. After Gluckin left her post, information about additional missing funds surfaced and eventually a criminal investigation was undertaken by the Nassau County District Attorney's Office. In June 2004, Gluckin was arrested for grand larceny in the first degree for stealing more than \$1 million from the school district. The investigation also implicated the school district's superintendent (Frank Tassone) and an account clerk (Deborah Rigano, who was Gluckin's niece), and they too were arrested for grand larceny. An extensive forensic audit by the State Comptroller determined that, from 1998 through 2004, approximately \$11 million had been misappropriated: Gluckin had stolen over \$4.6 million; Tassone had taken more than \$2.4 million; and Rigano had received about \$300,000.¹ In total, various sums had been funneled to more than two dozen people.²

In addition to the criminal prosecutions that emerged from these investigations, the school district initiated a lawsuit against former and current members of the Board for their allegedly lax management during the years the funds disappeared and their attempt to keep these illegal activities under wraps. The action was commenced in April 2005 under several theories

1. Gluckin and Rigano were convicted of second-degree grand larceny and sentenced to prison terms of 3 to 9 years and 2 to 6 years, respectively. Tassone received a 4-to-12-year sentence after being convicted of grand larceny in the first degree.

2. See Office of the New York State Comptroller, Division of Local Government Services & Economic Development, *Roslyn Union Free School District, Anatomy of a Scandal, Report of Examination*, at 54 (2005), available at <http://www.osc.state.ny.us/localgov/audits/2005/schools/roslyn2.pdf>.

of liability, including causes of action for breach of fiduciary duty and common-law negligence based on the Board's failure to identify and prevent the ongoing thievery or take further investigatory action after Gluckin's misappropriations were first discovered.³ The complaint also asserted that the Board members should have implemented internal financial control policies and procedures to ensure reliable oversight and protection of the school district's assets.⁴

Defendant Carol Margaritis was a member of the Board for approximately one year, beginning in 2000. Her departure from the Board occurred before Gluckin's criminal activities came to light. There are no allegations that Margaritis knew about the ongoing illegal scheme, benefitted from the theft of the school district's funds or received any portion of the stolen monies. Margaritis also did not participate in the Board's decision not to reveal Gluckin's initial thievery. Margaritis was, however, a member of the Board during a time period that funds were being stolen by school district employees.

Margaritis moved to dismiss the complaint against her, arguing that the causes of action were time-barred because the school district's claims were subject to the three-year statute of limitations in CPLR 214 (4) and the complaint was filed more than three years after she ceased being a school board member. The school district countered that CPLR 213 (7) provided a six-year statute of limitations since the school district is, by definition, a municipal corporation that may sue a former board member to recover damages. Supreme Court agreed with Margaritis and dismissed the claims against her (2008 NY Slip Op 33625[U]). The Appellate Division affirmed, reasoning that the three-year period set forth in CPLR 214 (4) was applicable (71

3. In addition to breach of fiduciary duty and negligence, the complaint includes causes of action for declaratory judgment, accounting, unjust enrichment and constructive trust (the latter two claims have been abandoned by the school district).

4. In a separate but related action, Supreme Court, Nassau County, explained in its decision that the school district had several insurance policies that may have provided coverage for a portion of its losses (*see Roslyn Union Free School Dist. v Jaspan Schlesinger Hoffman LLP*, 2006 NY Slip Op 30632[U] [Sup Ct, Nassau County, July 7, 2006, Davis, J., index No. 17083/05]). Apparently, the insurers had disclaimed coverage because the Board had not timely informed them about Gluckin's activities after her misconduct was discovered (*see id.*). The Board's alleged failure to promptly notify the insurance carriers and the school district's corresponding lost opportunity to pursue insurance claims are among the underlying liability issues in the appeal before us.

AD3d 660 [2d Dept 2010]). We granted leave to appeal (15 NY3d 702 [2010]) and now conclude that the causes of action for breach of fiduciary duty, negligence and declaratory judgment should be reinstated as timely.

II

This is an unusual case because it is rare for school districts to engage in litigation against the individuals who voluntarily seek election to serve on school boards. Such public service is commendable and a vital component of our State's legal and moral duty to educate its children. The filing of a lawsuit by a school district against the members of its school board is certainly a disincentive for attracting qualified candidates to perform this important civic function. Here, apparently, the school district responded to a particularly egregious set of facts involving severe financial mismanagement—over \$11 million was stolen from taxpayers in a criminal conspiracy operated by two high-ranking school district employees and certain members of the Board were allegedly complicit because they may have breached the duties that were entrusted to them to protect the school district's assets. The question before us is not whether any Board members bear a degree of responsibility for these losses, but whether the case against defendant Margaritis was timely filed.

[1] Causes of action that seek monetary damages for injury to property are generally subject to a three-year statute of limitations (*see* CPLR 214 [4]; *IDT Corp. v Morgan Stanley Dean Witter & Co.*, 12 NY3d 132, 139 [2009]). But CPLR 213 (7) extends the limitations period to six years for “an action by or on behalf of a corporation against a present or former . . . officer . . . to recover damages for waste or for an injury to property or for an accounting in conjunction therewith.”⁵ If the specific language of CPLR 213 (7) encompasses a particular claim, it supplants the general three-year rule of CPLR 214 (4). The issue here then distills to whether a school district is a “corporation”

5. An “injury to property” is broadly defined as “an actionable act, whereby the estate of another is lessened, other than a personal injury, or the breach of a contract” (General Construction Law § 25-b). Three of the causes of action at issue here are premised on an injury to property—the loss of the school district's funds: the claims for breach of fiduciary duty and negligence seek monetary damages as relief, and the claim for declaratory judgment is premised on the existence of a breach of fiduciary duty (*see generally Solnick v Whalen*, 49 NY2d 224, 229-230 [1980]). The fourth cause of action, for an accounting, is addressed in CPLR 213 (7).

within the meaning of CPLR 213 (7), thereby providing a six-year statute of limitations for covered claims. We hold that it is.

We begin our analysis with the General Construction Law, which supplies the definitions of certain statutory terms used to interpret the language and purpose of a statute (*see* General Construction Law § 110). This Court has previously relied on the General Construction Law when considering the applicability of a statute of limitations (*see Western Elec. Co. v Brenner*, 41 NY2d 291, 293 [1977]; *Empire Trust Co. v Heinze*, 242 NY 475, 478-479 [1926]) and we again find it appropriate to do so.

General Construction Law § 65 (a) (1) defines the term “corporation” as referring to, among other entities, a “public corporation.” A “public corporation,” in turn, includes a “municipal corporation” under General Construction Law § 65 (b) (1) and § 66 (1). And the term “municipal corporation,” as defined in General Construction Law § 66 (2), expressly embraces a “school district.” Because a school district is both a municipal corporation and a public corporation, it falls within the ambit of the term “corporation” in CPLR 213 (7).

Other provisions of state law recognize that school districts are corporations. The State Constitution, for example, describes a school district as a “public corporation” (NY Const, art X, § 5)—terminology identical to that appearing in General Construction Law § 65 (a) (1). Education Law § 1701 similarly denotes that the board of a union free school district is a “body corporate.” Other statutes also refer to school districts as municipal corporations (*see* General Municipal Law § 119-n [a]; Public Officers Law § 10; RPTL 102 [10]). Furthermore, we have long observed that school districts are inherently corporate in nature (*see e.g. Greater Poughkeepsie Lib. Dist. v Town of Poughkeepsie*, 81 NY2d 574, 580-581 [1993]; *Bassett v Fish*, 75 NY 303, 311-312 [1878]). Utilizing a plain language analysis, school districts have been deemed corporations and, as such, they benefit from the limitations period that applies to certain corporate causes of action.⁶

Margaritis maintains that we should reject this definitional approach because, when the Legislature intends for a statute to apply to a school district, it has used the specific term “school

6. Under Executive Law § 63-c, the Attorney General is empowered to elect to sue on behalf of a school district to recover public property that has been misappropriated. Such an action is subject to a limitations period of six years (*see* CPLR 213 [5]).

district” in the statutory text. Margaritis points to Education Law § 3813, which imposes certain notice of claim requirements on actions brought “against any school district.” This argument fails to appreciate the distinction between a narrowly drawn statute and a more general provision—such as CPLR 213 (7)—which was intended to apply in a myriad of different circumstances. Education Law § 3813 is a specific statute that sets forth the procedures for pursuing a claim against a school district as well as certain other educational entities. But it has no bearing on the statute of limitations governing when a school district may initiate a lawsuit. The Legislature could have enacted a statute that narrowly imposes time limitations for actions commenced by school districts against present or former board members, but it has not done so. In the absence of such a legislative directive, the appropriate limitations period must be determined by referring to the CPLR, which is general by design. Indeed, since the Legislature used the more general term, which it had defined to include “school district[s]” (General Construction Law § 66 [2]), it would have been redundant to separately list “school districts” in CPLR 213 (7), as Margaritis insists should have happened. Consequently, we cannot agree that school districts should be excluded from the purview of CPLR 213 (7).⁷

III

It has been suggested that CPLR 213 (7) should not control here because that statute is restricted to equitable causes of action asserted by a corporation against its former officers or directors. This is not so. Equitable claims evoke nonmonetary relief, such as the issuance of an injunction, an accounting, or a remedy in the nature of specific performance or reformation of a contract (*see* Black’s Law Dictionary 33 [9th ed]). But CPLR 213 (7) applies to all “action[s],” with no differentiation between legal and equitable claims. In fact, equitable causes of action are usually subject to a six-year statute of limitations by application of the “catch-all” provision in CPLR 213 (1) (*see*

7. Another contention proffered by Margaritis—that school board members are not “directors” covered by CPLR 213 (7)—is refuted by General Construction Law § 66 (15), which defines the term “director” to include “any member of the governing board of such corporation, whether designated as director, trustee, manager, governor, or by any other title, designated to manage the affairs of a corporation.” A member of a school board is necessarily a member of the governing board of the school district, the entity responsible for managing the district.

Siegel, NY Prac § 36 [4th ed]), which suggests that there is no basis for limiting subdivision (7) to equitable claims. Furthermore, subdivision (7) employs the phrase “to recover damages”—the quintessential reference to nonequitable monetary relief. From its plain language, CPLR 213 (7) provides a corporation, such as a school district, with six years to assert both equitable and nonequitable causes of action against a former director, officer or shareholder.

The legislative history of CPLR 213 (7) further confirms that its reach covers nonequitable and equitable causes of action. The statute’s lineage can be traced back to at least the early 1800s (*see* 2 Rev Stat of NY, part III, ch IV, tit 2, art 4, § 44, at 300 [1st ed 1829]), the Field Code (*see* L 1848, ch 379, § 89; L 1849, ch 438, § 109) and the Code of Remedial Justice (*see* L 1876, ch 448, chap IV, tit 2, § 394; *see generally* *Denman v McGuire*, 101 NY 161, 164 [1886]; Throop, Code of Civil Procedure, at xii [1877]). The limitations period was reduced from six to three years when the Code of Civil Procedure was adopted (*see* L 1877, ch 416, § 1, amending Code Civ Pro § 394) and that time limit was carried over when the Civil Practice Act became law (*see* L 1920, ch 925, enacting Civ Prac Act § 49 [4]).

Despite the shortened statute of limitations enacted in section 49 of the Civil Practice Act, this Court decided that a six-year statute of limitations applied to causes of action to recover for an injury to corporate property caused by negligence and that a 10-year period applied to equitable claims (*see* *Potter v Walker*, 276 NY 15, 26-27 [1937]). After *Potter*, New York courts began to apply various limitations periods—3, 6 or 10 years (*see* NY Law Rev Commn, Acts, Recommendations and Study relating to the Statute of Limitations, Bill Jacket, L 1942, ch 851, at 29, 34)—depending on the theory of liability asserted, the relative culpability of the alleged wrongdoer and the nature of the corporation (*see e.g.* *Dunlop’s Sons, Inc. v Spurr*, 285 NY 333, 336 [1941]; *Mencher v Richards*, 283 NY 176, 182 [1940]). In fact, all three periods were examined in some cases (*see e.g.* *Coane v American Distilling Co.*, 298 NY 197, 207 [1948]). Needless to say, this situation caused much confusion (*see* Mem of Assn of Bar of City of NY Comm on State Legislation; Letter of Assn of Bar of City of NY, Comm on Law Reform; Mem from Counsel to the Governor, Bill Jacket, L 1942, ch 851, at 14, 57, 80-82).

The Legislature responded in 1942 by enacting Civil Practice Act § 48 (8) (*see* L 1942, ch 851, § 1). It resurrected the six-year rule as the general statute of limitations for corporate actions against directors, officers or shareholders. Notably, the statute also abrogated the distinction between legal and equitable claims by applying the six-year period to all “legal or equitable” actions by a corporation against an officer for an accounting or fraud “or to recover a penalty or forfeiture imposed or to enforce a liability created by common law or by statute” (Civ Prac Act § 48 [8]). But actions “to recover damages for waste or for an injury to property or for an accounting in connection therewith” were excluded from the six-year limitations period—a three-year statute of limitations applied to these types of claims (*see id.*).

Eventually, in 1962, the Legislature eliminated this distinction, making the six-year limitations period “applicable to *all* actions against a director, officer, or stockholder of a corporation” (Sixth Report to the Legislature by the Senate Finance Committee relative to the Revision of the Civil Practice Act, 1962 NY Legis Doc No. 8, at 91 [emphasis added]; *see* Bill Jacket, L 1962, ch 308, at 552, 617; Advisory Committee Notes, NY CLS, Book 4A, Part 1, CPLR 213, at 334). This new provision was codified as CPLR 213 (8) (*see* L 1962, ch 308) and read as follows:

“an action by or on behalf of a corporation against a present or former director, officer or stockholder for an accounting, or to procure a judgment on the ground of fraud, or to enforce a [liability], penalty or forfeiture, or to recover damages for waste or for an injury to property or for an accounting in conjunction therewith.”⁸

Subdivision (8) was later renumbered as subdivision (7) (*see* L 1975, ch 43, § 2), but its substantive language has not been altered since the CPLR took effect. Hence, since 1963, section 213 has provided a uniform six-year statute of limitations for any action by a corporation against its present or former officers, directors or stockholders, whether seeking equitable or legal relief. Because CPLR 213 (7) has remained worded in this manner for almost five decades without any substantive restructuring, there is no merit to the assertion that the statute does not cover causes of action for money damages.

8. The statute was amended to correct a typographical error before the effective date of the CPLR (*see* L 1963, ch 532, § 5).

IV

Based on the text of CPLR 213 (7), the applicable definitional provisions of the General Construction Law and the statute's underlying legislative history, we conclude that a six-year statute of limitations governs claims of this nature. As a result, the causes of action in this case for breach of fiduciary duty, common-law negligence, declaratory judgment and an accounting were timely commenced against defendant Margaritis.⁹

V

[2] Although the complaint here was not barred by the statute of limitations, we agree with the Appellate Division that the school district's allegations do not state a cognizable cause of action against Margaritis for an accounting. This equitable remedy is designed to require a person in possession of financial records to produce them, demonstrate how money was expended and return pilfered funds in his or her possession (*see generally Ederer v Gursky*, 9 NY3d 514, 525 [2007]). As we have noted, there is no allegation that Margaritis received any of the stolen monies or possessed any relevant documentary proof that the district itself has not acquired. Since the State Comptroller was able to trace countless financial transactions in order to determine how the vast bulk of the stolen monies was used and the identity of the individuals who received the funds, there appears to be no need for an accounting against this individual. On these facts, this cause of action should be dismissed.

Accordingly, the order of the Appellate Division should be modified, without costs, by reinstating the causes of action for breach of fiduciary duty, common-law negligence and declaratory judgment as against defendant Margaritis, and, as so modified, affirmed.

Chief Judge LIPPMAN and Judges CIPARICK, READ, SMITH, FIGOTT and JONES concur.

Order modified, etc.

9. Because we find the claims timely under CPLR 213 (7), it is unnecessary for us to address the school district's alternative argument premised on CPLR 213 (5).

[949 NE2d 964, 926 NYS2d 16]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PETER RIVERA, Respondent.

Argued March 22, 2011; decided May 3, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 2, 2010. The Appellate Division affirmed so much of an order of the Supreme Court, Westchester County (Susan Cacace, J.), as had granted that branch of a motion by defendant which was to dismiss count two of the indictment charging him with aggravated unlicensed operation of a motor vehicle in the first degree.

People v Rivera, 71 AD3d 700, affirmed.

HEADNOTE

Motor Vehicles — Operator's License — Conditional License — Unauthorized Operation

A driver whose license has been revoked, but who has received a conditional license and failed to comply with its conditions, may be prosecuted only for the traffic infraction of driving for a use not authorized by his license (Vehicle and Traffic Law § 1196 [7] [f]), not for the crime of driving while his license is revoked. Here, defendant's license had been revoked following a conviction for driving while intoxicated and a conditional license had been issued. Defendant was again arrested for driving while intoxicated while operating a vehicle in violation of the restrictions imposed on his conditional license. However, defendant could not be prosecuted for aggravated unlicensed operation of a motor vehicle in the first degree (Vehicle and Traffic Law § 511 [3] [a] [i]) since, at the time in question, he had a valid, unrevoked driver's license, though a conditional one. The legislative history of Vehicle and Traffic Law § 1196 (7) (f) indicates that the Legislature decided not to amend section 511 to make what defendant did a crime, but instead created a more serious traffic infraction by adding paragraph (f) to section 1196 (7). That history reinforces what is the most plausible reading of the statutory language: Vehicle and Traffic Law § 511 does not apply to drivers who fail to meet the conditions on a conditional license.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Automobiles and Highway Traffic §§ 116, 138, 160, 258, 260.

McKINNEY's, Vehicle and Traffic Law § 511 (3) (a) (i); § 1196.

NY JUR 2d, Automobiles and Other Vehicles §§ 548, 652, 935.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic; Drivers' Licenses.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: driving /5 license /3 revoked /p conditional /2 license

POINTS OF COUNSEL

Janet DiFiore, District Attorney, White Plains (*Hae Jin Liu*, *Lois Cullen Valerio* and *Richard Longworth Hecht* of counsel), for appellant. A conditional license reverts back to a revoked or suspended license when driven outside of its conditions. Accordingly, the People may charge aggravated unlicensed operation of a motor vehicle when a defendant drives drunk outside the terms of the conditional license. (*People v Eboli*, 34 NY2d 281; *People v Tousley*, 86 Misc 2d 1059; *People v Greco*, 151 Misc 2d 859; *People v Buckley*, 13 Misc 3d 910; *People v Sabin*, 139 Misc 2d 641; *People v Mattocks*, 12 NY3d 326; *People v Duffy*, 79 NY2d 611; *People v Urbaez*, 10 NY3d 773; *Pringle v Wolfe*, 88 NY2d 426.)

Janet A. Gandolfo, Sleepy Hollow, for respondent. I. The only charge available to the People pursuant to the facts herein is a violation of Vehicle and Traffic Law § 1196 (7) (f). (*People v Tousley*, 86 Misc 2d 1059; *People v Greco*, 151 Misc 2d 859.) II. Evidence presented to the grand jury was insufficient to show that defendant was driving out of conditions of conditional license. III. The People's argument—that it is within their discretionary authority to choose whether to prosecute under section 1196 of the Vehicle and Traffic Law or section 511 of the Vehicle and Traffic Law—is misplaced. (*People v Mattocks*, 12 NY3d 326; *People v Eboli*, 34 NY2d 281.)

OPINION OF THE COURT

SMITH, J.

We hold that a driver whose license has been revoked, but who has received a conditional license and failed to comply with its conditions, may be prosecuted only for the traffic infraction

of driving for a use not authorized by his license, not for the crime of driving while his license is revoked.

I

On November 14, 2007, defendant was convicted of driving while intoxicated. The conviction carried with it the revocation of his license for a minimum of six months (Vehicle and Traffic Law § 1192 [2]; § 1193 [2] [b] [2]). However, as a first-time offender, defendant was eligible to participate in a rehabilitation program offered by the Department of Motor Vehicles (*see* Vehicle and Traffic Law § 1196) and, as a participant in the program, to receive a conditional license (Vehicle and Traffic Law § 1196 [7] [a]). Defendant entered the program and received a conditional license, which permitted him to drive to and from his place of work; as required by his job; to and from the rehabilitation program and related activities; to and from a school; and between noon and 3:00 P.M. on Saturdays.

On February 10, 2008, while his conditional license was in effect, defendant was arrested for driving while intoxicated at 1:04 A.M. He was with a woman he identified as his girlfriend, and told the arresting officer he was coming from “the bars.” He was indicted for several offenses, but the only count of the indictment that now concerns us charged him with aggravated unlicensed operation of a motor vehicle in the first degree (Vehicle and Traffic Law § 511 [3]). On defendant’s motion, Supreme Court dismissed this count before trial, and the Appellate Division affirmed (71 AD3d 700 [2010]). A Judge of this Court granted the People leave to appeal (15 NY3d 756 [2010]), and we now affirm.

II

At issue is the relationship between two offenses defined in separate sections of the Vehicle and Traffic Law. Defendant’s alleged conduct clearly violated Vehicle and Traffic Law § 1196 (7) (f), which says: “It shall be a traffic infraction for the holder of a conditional license . . . to operate a motor vehicle upon a public highway for any use other than those authorized.” A violation of section 1196 (7) (f) is punishable by a fine of up to \$500, not more than 15 days of imprisonment and revocation of the conditional license.

The People argue, however, that defendant also violated Vehicle and Traffic Law § 511, which prohibits “aggravated unlicensed operation of a motor vehicle.” That crime is committed when a person “operates a motor vehicle upon a public

highway while knowing or having reason to know that such person's license or privilege of operating such motor vehicle . . . is . . . revoked" (Vehicle and Traffic Law § 511 [1] [a]). Simply driving with a revoked license constitutes third degree aggravated unlicensed operation, a misdemeanor punishable by a fine, a jail term of up to 30 days, or both (*id.*). Doing so when the license was revoked for driving while intoxicated is second degree aggravated unlicensed operation, a more serious misdemeanor that can bring a jail term of up to 180 days (Vehicle and Traffic Law § 511 [2] [a] [ii]; [b]). And committing the second degree crime while under the influence of alcohol constitutes the first degree crime, with which defendant was charged; it is a class E felony punishable by up to four years of imprisonment (Vehicle and Traffic Law § 511 [3] [a] [i]; [b]; Penal Law § 70.00 [2] [e]).

Defendant points out that, at the time in question, he had a valid, unrevoked driver's license, though a conditional one. Thus he cannot, he says, be prosecuted for driving while his license was revoked. The People argue in substance that defendant should be viewed as having two licenses: the conditional one, good only at certain times and for certain purposes; and the revoked license, in existence at all other times. When defendant was arrested, on the People's theory, only his revoked license existed.

Defendant's reading of the statutory language is the more natural and straightforward one. It also finds strong support in the legislative history of Vehicle and Traffic Law § 1196 (7) (f).

Until section 1196 (7) (f) was enacted in 1989, the only Vehicle and Traffic Law provision that addressed violations of conditions stated in a driver's license was section 509 (3): "Whenever a permit or license is required to operate a motor vehicle, no person shall operate any motor vehicle in violation of any restriction contained on, or applicable to, the permit or license." Before 1989, a violation of section 509 (3) was a traffic infraction for which the fine could not exceed \$50, and for which imprisonment for a first offense could not exceed 15 days (*see* former Vehicle and Traffic Law § 1800). In two pre-1989 cases, trial level courts considered whether someone in the position of defendant here—someone whose license had been revoked, who had received a conditional license as part of a rehabilitation program, and who had then violated the conditions on the license—should be prosecuted under Vehicle and Traffic Law

§ 509 (3) or Vehicle and Traffic Law § 511. The court in *People v Tousley* (86 Misc 2d 1059 [Yates County Ct 1976]) held that section 509 (3) was applicable and section 511 was not. The court in *People v Sabin* (139 Misc 2d 641 [Westchester County Ct 1988]) disagreed, concluding that the driver could be prosecuted under section 511.

In March 1989, a bill was introduced in the Senate at the request of the State Police that would have rejected *Tousley* and enacted the *Sabin* court's view of the law. As introduced, it would have amended Vehicle and Traffic Law § 511 (a) to add:

“The suspension or revocation of the license or operating privilege of a person convicted of a violation of section eleven hundred ninety-two of this chapter, and who has been issued a conditional license or privilege pursuant to subdivision seven of section eleven hundred ninety-six of this chapter, shall continue to be effective any time such person operates a motor vehicle in violation of the terms of such conditional license or privilege.” (1989 NY Senate Bill S3103 § 1 [a].)

This proposal—which states the position the People advance in this case—was not adopted. It was replaced during the legislative process by a bill that left section 511 unchanged in substance and instead created a new paragraph (f) of section 1196 (7). That paragraph, quoted above, created a new and more serious traffic infraction to deal with cases like this one—an infraction resulting in a larger fine than a violation of section 509 (3), and revocation of the conditional license. A letter from the Assembly sponsor of this measure to the Governor's Counsel described the existing law that the bill would change as being in accord with the *Tousley*, not the *Sabin*, case—in other words, with defendant's position here, not the People's: “a person who operates outside the terms of a conditional license granted after conviction for an alcohol-related offense is subject *only* to the standard traffic infraction involving a fine of up to \$100 and/or 15 days in jail.” (Letter of Michael J. Bragman to Evan A. Davis, July 7, 1989, Bill Jacket, L 1989, ch 420, at 7 [emphasis added].) The letter went on to explain that the bill the Legislature enacted

“addresses the disparity by making the penalty for operating outside the terms of a conditional license subject to a fine of not less [than] \$200 nor more

than \$500 and/or a term of imprisonment of up to 15 days. The measure also calls for the revocation of the conditional license” (*id.*).

In sum, the Legislature decided not to amend section 511 to make what this defendant did a crime, but instead to make it a more serious traffic infraction; and the Assembly sponsor said plainly that he thought such offenders could be prosecuted only for traffic infractions. Comments from the Department of Motor Vehicles (Bill Jacket, L 1989, ch 420, at 10-11), the Division of Criminal Justice Services (*id.* at 14-15) and the Division of Alcoholism and Alcohol Abuse (*id.* at 19) expressed a similar opinion, though the Division of Parole thought otherwise (*id.* at 20).

Thus the legislative history as a whole powerfully reinforces what is in any event the most plausible reading of the statutory language: Vehicle and Traffic Law § 511 does not reach cases like this one. Every court to have considered the question since Vehicle and Traffic Law § 1196 (7) (f) was enacted—the courts in *People v Greco* (151 Misc 2d 859 [App Term 1992]) and *People v Buckley* (13 Misc 3d 910 [Sullivan County Ct 2006]), and the lower courts in this case—has reached that conclusion, and so do we.

The People argue that this reading of the statute disserves our State’s strong public policy to combat drunken driving with serious penalties. They suggest that a maximum punishment of a \$500 fine and 15 days in jail, coupled with revocation of the conditional license, is simply not an adequate sanction for someone who, having been given a limited right to drive after violating the law, has violated it again by ignoring the limitations. Admittedly, there is a large disparity between the punishments available under Vehicle and Traffic Law § 1196 (7) (f) for a driver who fails to meet the conditions on a conditional license and those available under Vehicle and Traffic Law § 511 for one who has only a revoked or suspended license. But that is exactly the problem that the Legislature addressed when it enacted section 1196 (7) (f). If its way of dealing with the problem was not adequate, it should be asked to take up the issue again.

Accordingly, the order of the Appellate Division should be affirmed.

GRAFFEO, J. (dissenting). When conduct falls under two or more penal provisions, this Court has consistently held that it is within the realm of a District Attorney’s exercise of prosecutorial discretion to determine what offense to charge. Because the

conduct at issue in this case—defendant’s operation of a motor vehicle at a time when he was not privileged to do so and while under the influence of alcohol—could be prosecuted either as a violation of Vehicle and Traffic Law § 1196 (7) (f) or Vehicle and Traffic Law § 511 (3) (a) (i), the People’s decision to charge the latter offense should not have been disturbed. Since, under the majority analysis, a driver like defendant who not only disregards the limitations in the conditional license but also drives drunk will receive the same penalty as a person who engages in a minor violation of the terms of a conditional license, I respectfully dissent.

In November 2007, when defendant was convicted of misdemeanor driving while intoxicated (DWI), his driver’s license was revoked for six months by the Department of Motor Vehicles (DMV). The day after the license revocation order was effective, the Department granted defendant a conditional license permitting him to drive to and from a drinking driver rehabilitation program, his employment, his classes at a local broadcasting school and during a three-hour period on Saturday afternoons. In February 2008, at 1:04 A.M., defendant was stopped by police after he drove through a red light. His slurred speech, the odor of alcohol and his performance on field sobriety tests led police to conclude he was intoxicated. Defendant admitted to police that he and his girlfriend, a passenger in the car, were coming from “the bars” nearby. After refusing to take a chemical test, defendant was charged with a variety of offenses, including aggravated unlicensed operation of a motor vehicle (AUO) in the first degree under Vehicle and Traffic Law § 511 (3) (a) (i), a class E felony. Pursuant to this provision, the People alleged that defendant’s conduct met the following three elements: (1) defendant drove under the influence of alcohol; (2) at a time when his license was suspended, revoked or withdrawn by DMV; and (3) the suspension/revocation was based on a prior DWI conviction.

Before trial, defendant moved to dismiss the AUO count, arguing that a person who drives outside the terms of a conditional license can be charged only with a traffic infraction under Vehicle and Traffic Law § 1196 (7) (f). In opposition, the People argued that although defendant’s violation of the conditional license could give rise to a traffic violation, that did not prevent them from instead charging him with AUO. Supreme Court dismissed the AUO count on the rationale that, by creating a statute that permitted defendant to be charged with a traffic

infraction for violating the terms of his conditional license (*see* Vehicle and Traffic Law § 1196 [7] [f]), the Legislature created an exclusive penalty for such conduct. The Appellate Division affirmed on a different basis, reasoning that “[u]pon the issuance of the conditional license, the defendant’s status as a person with a revoked license was superceded by his status as a person with a conditional license,” which negated the second element of AUO (*People v Rivera*, 71 AD3d 700, 701 [2d Dept 2010]). A majority of this Court also now affirms the dismissal of the AUO count of the indictment.

In my view, the majority and the courts below err in precluding the People from prosecuting defendant for first-degree AUO. The threshold question—the issue the Appellate Division found to be dispositive—is whether a defendant with a conditional license continues to hold the status of a person with a revoked or suspended license, thereby satisfying the second element of the AUO offense. Defendant maintains that, once he was issued a conditional license, he no longer could be characterized as having a revoked license. The People counter that the license revocation order remained in effect after the conditional license was issued and, when driving outside the limited, permissible conditions specified in the conditional license, defendant was operating his vehicle while his license was revoked.

This issue has been addressed in three other cases: two courts have concluded that a person who possesses a conditional license does not have the status of a person with a revoked or suspended license (*see People v Buckley*, 13 Misc 3d 910 [Sullivan County Ct 2006]; *People v Tousley*, 86 Misc 2d 1059 [Yates County Ct 1976]), and one determined that a person who drives in violation of the parameters of a conditional license is operating with a revoked or suspended license (*see People v Sabin*, 139 Misc 2d 641 [Westchester County Ct 1988]).¹ Our Court has not previously been presented with this question.

Resolution of this issue requires an understanding of the history and purpose of the conditional license program. Since 1975, New York has offered an alcohol and drug rehabilitation program to individuals convicted of DWI and related offenses

1. Another court has addressed the related—but distinct—issue of whether a person who is operating outside the limitations in a restricted use license is operating with a revoked or suspended license and has concluded that the restricted use license superceded the revocation or suspension (*see People v Greco*, 151 Misc 2d 859 [App Term 1992]).

(see L 1975, ch 291). Upon conviction of an alcohol-related driving offense, an offender's driver's license is typically suspended or revoked. As an incentive to participation in the rehabilitation program, those offenders who enroll are eligible to apply for a conditional license. Vehicle and Traffic Law § 1196 (7) (a) authorizes the Commissioner of DMV to grant a program participant a conditional driver's license "valid only for use[] by the holder thereof" while driving to or from a variety of specified destinations, including program activities and the person's school or employment. Under the statute, the license may also permit the participant to drive during a "three hour consecutive daytime period" on a day when he or she is not engaged at work or school.² Of critical relevance to this case, subdivision (7) (a) further provides: "Such license or privilege shall remain in effect during the term of the suspension or revocation of the participant's license or privilege unless earlier revoked by the commissioner."

This language indicates that the conditional license does not supercede the suspension or revocation order but instead is coterminous with that order since the conditional license "remain[s] in effect *during the term of the suspension or revocation*" (emphasis added). Put another way, the suspension or revocation does not end when a conditional license is issued, otherwise there would be no "term of the suspension or revocation" for the conditional license to track.

Vehicle and Traffic Law § 1196 (5) also provides:

"upon successful completion of the [alcohol and drug rehabilitation program], a participant may apply to the commissioner . . . for the termination of the suspension or revocation order issued as a result of the participant's conviction which caused the participation in such course. In the exercise of discretion . . . the commissioner is authorized to terminate such order or orders and return the

2. The DMV, in its discretion, encourages voluntary participation in the drinking driver rehabilitation program by permitting the conditional license holder to drive not only to and from the rehabilitation program but also to and from work, school and a limited number of other venues, thereby accommodating the participant's basic transportation needs. But, that being said, the DMV may authorize operation of a motor vehicle only for the personal purposes listed in the statute. Consistent with the ongoing suspension or revocation order, a program participant cannot obtain a commercial license and may not use the conditional license for commercial purposes, such as to operate a taxicab (see Vehicle and Traffic Law § 1196 [7] [g]).

participant's license or reinstate the privilege of operating a motor vehicle in this state."

This clause is further evidence that the suspension or revocation continues in effect while a participant attends the drinking driver program, even if a conditional license has been issued, since, at the successful conclusion of the program, the participant must apply to the Commissioner "for termination of the suspension or revocation" when requesting restoration of full license privileges—restoration is not automatic. Rather, in order to obtain reinstatement of full license status, the participant must seek termination of the revocation or suspension—which, again, demonstrates that the revocation or suspension remains in effect, even after a conditional license has been issued.

Based on this statutory language, I disagree with the majority's conclusion that defendant's status as a person with a revoked license was "superceded" when the DMV issued him a conditional license. To the contrary, when the DMV revokes or suspends a person's license for a six-month period but then provides a conditional license to a program participant, it has not vitiated the original revocation or suspension order. The conditional license merely grants its holder a limited privilege to drive for particular purposes as specified in the license. When the DMV revoked defendant's license, it took away all his driving privileges. When it issued the conditional license the next day, it allowed a narrow range of permissible driving activities, but all remaining privileges continued to be revoked. Thus, when defendant drove outside the bounds of the limited privilege, he could not rely on the conditional license but instead had the status of a person with a revoked license. More particularly, his privilege to drive himself and a passenger home from a bar at 1:00 A.M. had not been restored; it remained revoked pursuant to the revocation order.

Several of the courts that have reached the contrary conclusion have relied on Vehicle and Traffic Law § 509 (5), which states that "[n]o person shall hold more than one unexpired license issued by the commissioner at any one time," reasoning that if a conditional license has been issued, this is the only license defendant holds, nullifying the prior revocation or suspension. For example, in *Buckley* (13 Misc 3d at 913), the court determined that in order to find that a person retained the status of a person with a revoked or suspended license after a conditional license had issued, it would have to conclude "that a person may hold two licenses at the same time, a conditional

license and a revoked license.” The majority similarly adopts this reasoning, suggesting that the People are essentially arguing that defendant has two licenses: a conditional license and a revoked license.

I believe this misapprehends the People’s argument. Consistent with Vehicle and Traffic Law § 509 (5), the only license a person with a conditional license holds is the conditional license—the prior full license has been revoked. The revocation or suspension of the full license is, in fact, a condition precedent to issuance of a conditional license—and the latter is valid during the term of the revocation or suspension order. While a conditional license restores a handful of driving privileges, permitting its holder to operate a vehicle only during the limited periods and for the narrow purposes detailed in the license, most have been withdrawn. This is precisely why—when he drove outside the conditions in the conditional license during the term of the revocation order—defendant may accurately be characterized as a person who operated a motor vehicle while his “license or privilege of operating such motor vehicle in this state . . . [was] suspended, revoked or otherwise withdrawn by the commissioner” (Vehicle and Traffic Law § 511 [1] [a]). Defendant could not rely on the conditional license to privilege his conduct at that time and it therefore fell within the category of driving privileges still covered exclusively by the revocation order. Thus, the People have alleged facts that, if proved, fulfill the second element of the first-degree AUO statute.

Since defendant’s conduct fell within the purview of the AUO statute, the next issue is whether the People were precluded from charging defendant with AUO because there is another penal provision that also covered his conduct—the traffic infraction defined in Vehicle and Traffic Law § 1196 (7) (f). When a defendant engages in behavior that falls within more than one penal provision, it is generally left to the People to decide which statute to charge—and this rule holds true even if one offense is of a higher level of seriousness than the other. “[T]he existence of a statutory prohibition against a particular type of conduct . . . will not be deemed to constitute the exclusive vehicle for prosecuting that conduct unless the Legislature clearly intended such a result” (*People v Mattocks*, 12 NY3d 326, 333 [2009] [internal quotation marks and citations omitted]). “[O]verlapping in criminal statutes, and the opportunity for prosecutorial choice they represent, is no bar to prosecution. Unless there is evidence of legislative intent to the contrary, . . . the existence

of a specific statute prohibiting the conduct involved[] does not prevent prosecution under a more general statute” (*People v Eboli*, 34 NY2d 281, 287 [1974] [citations omitted]; see *People v Duffy*, 79 NY2d 611 [1992]).

For example, in *Mattocks*, we held that a defendant who defrauded the Metropolitan Transportation Authority by strategically creasing subway fare cards to facilitate their improper use for a free ride could be prosecuted for the class D offense of second-degree forgery, a provision generally criminalizing the possession or use of a false or altered written instrument. We reached this conclusion even though there were several other provisions covering the same conduct, including a class B misdemeanor offense that the Legislature had enacted in 2005 specifically addressing the use of a “doctored farecard” (see Penal Law § 165.16 [1]). We rejected the notion that, by creating a specific crime covering the fraudulent use of altered fare cards, the Legislature had evinced an intent to make that offense the exclusive vehicle of prosecution, noting the absence of a “legislative direction to eliminate the applicability of forgery statutes” (12 NY3d at 333). Although the criminal conduct at issue there was “subject to varying degrees of prosecution,” ranging from a noncriminal violation defined in a regulation to the class D felony forgery charge for which defendant had been indicted, the Court recognized that “prosecutors have considerable discretion in choosing among these classifications,” depending on the circumstances presented in the particular case, including defendant’s criminal history (*id.* at 334).

The same analysis should govern in this case. Vehicle and Traffic Law § 1196 (7) (f) specifically penalizes driving outside the conditions in a conditional license, making such conduct punishable as a traffic infraction. But nothing in the statutory language evinces a legislative intent for this to be the exclusive means of prosecuting that conduct, particularly in a situation like the one presented here. In this case, defendant, who obtained his conditional license by virtue of his participation in a drunk driver rehabilitation program, not only drove outside the terms of the conditional license but was also operating a motor vehicle while in an intoxicated condition—the precise illegal conduct that led to his prior conviction and enrollment in the rehabilitation program. I do not believe that the Legislature had this scenario in mind when it created the traffic infraction.

Nor is an intent to treat this type of conduct exclusively as a traffic infraction clear from the legislative history of section

1196 (7) (f). When conditional licenses were first permitted in 1975, the conditional licensing statute did not contain a penalty for driving outside the terms of the license and there was some controversy as to how to prosecute a person who operated a vehicle during unprivileged periods or for unprivileged purposes. The majority suggests that, at that time, the only Vehicle and Traffic Law statute that covered this conduct was section 509 (3), which dealt with driving in violation of a restriction on a permit or license (see majority op at 657). But this observation assumes the answer to the question that this Court is charged with deciding in this case—which is whether a person who violated the terms of a conditional license could be charged with AUO, an offense that predated the conditional licensing scheme.

In 1976, in *People v Tousley* (86 Misc 2d 1059 [1976]), county court considered whether a person who had violated a conditional license should be charged with the section 509 (3) traffic infraction or misdemeanor AUO. There, defendant had been charged with the traffic infraction and, analogizing a conditional license to a restricted use license, the court concluded that this was appropriate. It went on to indicate in dicta that a defendant who drove outside the terms of a conditional license could not be charged with AUO. Twelve years later, a different county court reached the opposite conclusion in *People v Sabin* (139 Misc 2d 641 [1988]), a case with facts similar to this case. There, a defendant was charged with first-degree AUO when she was caught driving outside the terms of her conditional license while in an intoxicated condition. Noting the significant differences between a conditional license and a restricted license, and citing the language in the conditional licensing statute that I have highlighted earlier, the *Sabin* court concluded that a person who drives outside the conditions of a conditional license during the term of a license revocation order is driving with a revoked license and may be prosecuted for AUO.

This was the state of the law when, in 1989, the Legislature added a new subdivision (7) (f) to Vehicle and Traffic Law § 1196, creating a specific provision covering violations of conditional licenses. The Legislature categorized the new offense as a traffic infraction but imposed a penalty more severe than the penalty for a violation of section 509, the provision the *Tousley* court had applied. In fact, at the time of the amendment, the penalty for violating section 1196 (7) (f) (a fine of \$200 to \$500 and/or up to 15 days in jail) was identical to the penalty a person convicted of third-degree AUO would receive.

Although aware of the controversy concerning the applicability of the AUO statute, the Legislature did not indicate in adopting section 1196 (7) (f) that a person who violated the terms of a conditional license could be prosecuted only under that provision. There is no exclusivity language in the statute.

The majority points out that a prior version of the legislation would have amended the AUO statute to specifically declare that a person driving outside the conditions of a conditional license could be prosecuted for AUO—but the Legislature instead amended the conditional licensing statute to create a separate traffic infraction covering that conduct. From this development the majority infers that the Legislature did not intend the AUO statute to reach cases like this one (*see* majority op at 659).

But such an inference is unwarranted. Certainly, had the Legislature adopted the earlier version of the legislation, it would have confirmed the applicability of the AUO statute—but its failure to do so is no substitute for a clear expression of contrary intent. This Court has previously declined to place this type of significance on omitted language found in prior versions of a bill not ultimately adopted by the Legislature (*see Tzolis v Wolff*, 10 NY3d 100 [2008] [although Legislature did not enact prior version of bill that would have expressly permitted derivative suits on behalf of LLCs, this did not evince legislative intent to preclude such suits]). The fact that the Legislature did not amend the AUO statute to explicitly clarify that driving outside the conditions of a conditional license could constitute AUO does not establish that the Legislature intended to categorically preclude such prosecutions. If the AUO statute already encompassed that conduct (as the *Sabin* court had concluded, correctly in my view), then the addition of a new provision elsewhere in the statutory scheme specifically directed at conditional license violations did nothing to alter that fact. To remove a category of conduct from the purview of the AUO statute, lawmakers would have had to either amend that statute or include language in the newly enacted section 1196 (7) (f) stating that the latter was the exclusive vehicle for prosecuting such behavior. The Legislature did neither.

To be sure, we can infer from the legislative history of section 1196 (7) (f) that the Legislature intended that conduct consisting of nothing more than driving outside the limitations of a conditional license should generally be treated as a traffic infraction. Certainly, prosecution for a traffic infraction would be

appropriate for an individual found operating a vehicle at 4:00 P.M. on a Saturday when the conditional license permitted operation only between the hours of noon and 3:00 P.M. No doubt the People would agree.

But nothing in the legislative history of section 1196 (7) (f) suggests that the Legislature determined that a person who engaged in that type of infraction should receive precisely the same penalty as an offender who not only drove outside the temporal conditions of his license but was also in an intoxicated state—much more egregious behavior. A conditional license is a significant privilege granted to participants in DWI rehabilitation programs. When an individual who already has a history of operating a motor vehicle while intoxicated and who is supposed to be learning responsible driving behaviors nonetheless decides to disregard the terms of a conditional license and endanger himself and others by once again driving drunk, it is reasonable for the District Attorney to conclude that the behavior invites a more serious response. Where such aggravating conduct is present, I see no evidence that the Legislature divested the People of the discretion to prosecute it as first-degree AUO, a class E felony, rather than as a traffic infraction.

Moreover, defendant's participation in the conditional license program—a privilege that he severely abused—should not entitle him to more lenient treatment than he would have received had he engaged in the same conduct without ever having received that benefit. Yet, under the majority's view of the statutory scheme, defendant has committed only a traffic infraction while a similarly situated driver who never received a conditional license has committed first-degree AUO. This is one "benefit" of the limited license the Legislature surely never expected to confer. Because I find the majority's holding to be inconsistent with the statutory scheme and the policies underlying conditional licensing, I would reinstate the first-degree AUO count.

Chief Judge LIPPMAN and Judges CIPARICK, READ and JONES concur with Judge SMITH; Judge GRAFFEO dissents in a separate opinion in which Judge PIGOTT concurs.

Order affirmed.
